SUPPLEMENT NO. 73, 6-26
June 2026

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4662 passed March 23, 2026)

Looseleaf Supplement

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SUPPLEMENT NO. 72, 4-26
October 2025

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4647 passed October 27, 2025)

Looseleaf Supplement

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SUPPLEMENT NO. 71, 12-25
October 2025

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(Covering Ordinances through 4643 passed September 22, 2025)

Looseleaf Supplement

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SUPPLEMENT NO. 70, 9-25
October 2025

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(Covering Ordinances through 4622 passed May 12, 2025)

Looseleaf Supplement

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SUPPLEMENT NO. 69, 6-25
June 2025

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4616 passed March 10, 2025)

Looseleaf Supplement

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SUPPLEMENT NO. 68, 3-25
April 2025

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(Covering Ordinances through 4606 passed December 23, 2024)

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SUPPLEMENT NO. 67, 11-24
January 2025

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4589 passed September 9, 2024)

Looseleaf Supplement

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SUPPLEMENT NO. 66, 9-24
October 2024

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4579, passed June 24, 2024)

Looseleaf Supplement

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July 2024

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4555 passed March 25, 2024)

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August 2023

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4537 passed December 21, 2023)

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August 2023

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4525 passed September 25, 2023)

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SUPPLEMENT NO. 62, 8-23
August 2023

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4508 passed June 26, 2023)

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SUPPLEMENT NO. 61, 5-23
May 2023

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4496 passed March 27, 2023)

Looseleaf Supplement

Remove Old Pages	*Insert New Pages*
v	v
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 60, 1-23
February, 2023

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(Covering Ordinances through 4466 passed September 26, 2022)

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SUPPLEMENT NO. 59, 9-22
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(Covering Ordinances through 4446 passed June 13, 2022)

Looseleaf Supplement

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(Covering Ordinances through 4424 passed March 28, 2022)

Looseleaf Supplement

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Looseleaf Supplement

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(Covering Ordinances through 4395 passed September 27, 2021)

Looseleaf Supplement

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CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4350 passed March 22, 2021)

Looseleaf Supplement

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(Covering Ordinances through 4336 passed December 14, 2020)

Looseleaf Supplement

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December 2020

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(Covering Ordinances through 4325 passed September 28, 2020)

Looseleaf Supplement

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SUPPLEMENT NO. 52, 6-20
June 2020

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(Covering Ordinances through 4298 passed March 23, 2020)

Looseleaf Supplement

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SUPPLEMENT NO. 51, 2-20
March 2020

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(Covering Ordinances through 4291 passed December 9, 2019)

Looseleaf Supplement

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SUPPLEMENT NO. 50, 9-19
October 2019

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(Covering Ordinances through 4277 passed June 24, 2019)

Looseleaf Supplement

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February 2019

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(Covering Ordinances through 4255 passed December 20, 2018)

Looseleaf Supplement

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(Covering Ordinances through 4245 passed September 24, 2018)

Looseleaf Supplement

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SUPPLEMENT NO. 47, 8-18
September 2018

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4235 passed June 25, 2018)

Looseleaf Supplement

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April 2018

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(Covering Ordinances through 4213 passed December 20, 2017)

Looseleaf Supplement

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November 2017

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(Covering Ordinances through 4203 passed September 25, 2017)

Looseleaf Supplement

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(Covering Ordinances through 4186 passed June 26, 2017)

Looseleaf Supplement

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February 2017

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4161 passed November 28, 2016)

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November 2016

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(Covering Ordinances through 4153 passed August 8, 2016)

Looseleaf Supplement

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September 2016

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(Covering Ordinances through 4142 passed June 27, 2016)

Looseleaf Supplement

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SUPPLEMENT NO. 40, 5-16
May 2016

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4121 passed March 14, 2016)

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SUPPLEMENT NO. 39, 2-16
February 2016

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4111 passed December 28, 2015)

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SUPPLEMENT NO. 38, 11-15
November 2015

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4099 passed September 28, 2015)

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SUPPLEMENT NO. 37, 8-15
August 2015

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4079 passed June 22, 2015)

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(Covering Ordinances through 4049 passed December 22, 2014)

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November 2014

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 4041 passed September 8, 2014)

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(Covering Ordinances through 4012 passed December 23, 2013)

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(Covering Ordinances through 3999 passed September 23, 2013)

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SUPPLEMENT NO. 32, 4-13
April 2013

INSTRUCTION SHEET

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 3970 passed February 11, 2013)

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SUPPLEMENT NO. 28, 2-12
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SUPPLEMENT NO. 27, 11-11
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CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 3930 passed August 8, 2011)

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SUPPLEMENT NO. 24
October 2010

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(Covering Ordinances through 3907 passed September 27, 2010)

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SUPPLEMENT NO. 23
August 2010

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January 2010

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(Covering Ordinances through 3870 passed September 14, 2009)

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(Covering Ordinances through 3865 passed June 22, 2009)

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SUPPLEMENT NO. 19
May 2009

CHEYENNE MUNICIPAL CODE

(Covering Ordinances through 3842 passed February 23, 2009)

Looseleaf Supplement

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CHEYENNE, WYOMING

MUNICIPAL CODE

A Codification of the General Ordinances of the City of Cheyenne, Wyoming

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Beginning with Supp. No. 19,
Supplemented by Municipal Code Corporation

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HISTORICAL SUMMARY

On August 8, 1867, the first Charter for the government of the City of Cheyenne was created after a group of citizens had met the day before at a mass meeting. At the time, Cheyenne was situated in Dakota Territory, and had a population of approximately 600 people.

By virtue of an Organic Act of the U.S. Congress, passed on July 25, 1868, Cheyenne came under the governmental jurisdiction of the Territory of Wyoming. The Council and House of Representatives of the Territory of Wyoming then passed an Act on December 10, 1869, declaring Cheyenne a corporation. The first official plat of the city was prepared and certified on September 14, 1870, by General G. M. Dodge, surveyor and chief engineer for the Union Pacific Railroad Company. The plat, known as Plat No. 1, was certified by General Dodge before O.F. Davis, a notary public, Douglas County, Nebraska, and was filed in the office of the County Clerk and Recorder of Laramie County, Wyoming, on September 21, 1870 at the hour of 10:30 a.m.

The Council and House of Representatives of the Territory of Wyoming passed a second Act of Incorporation on December 14, 1877, and in this second Act repealed the previous Act passed on December 10, 1869. On the first Tuesday in November, 1889, the people of the Territory of Wyoming by election ratified and adopted a State Constitution. The Constitution had been drawn and prepared by a convention of delegates called for that purpose on September 30, 1889.

The first survey of the city boundaries was filed in the office of the County Clerk and Recorder of Laramie County, Wyoming, on June 16,1890, and recorded in Book 40, Page 190. The survey was conducted by Fred Bond, City Engineer, pursuant to an ordinance passed by the city council on March 18, 1890. Four days earlier, the Eleventh Legislative Assembly of the Territory of Wyoming had passed an Act entitled, "An Act concerning the location of the boundaries and providing for the extension [of] the limits of cities and towns."

The first boundary map of the city was also prepared by Fred Bond, Civil Engineer of the City of Cheyenne, and filed in the Plat No. 1 folder on July 10, 1890 in the office of the County Clerk and Recorder of Laramie County, Wyoming. On the same date, the U.S. Congress passed an Act by which Wyoming was declared to be a state of the United States, and admitted to the Union. The Wyoming State Legislature passed an Act on February 21, 1911, whereby cities in Wyoming with over 10,000 population which had already been incorporated could adopt a commissioner form of government. On January 5, 1914, the commissioner form of government was formally adopted by the City of Cheyenne.

On the 9th day of July, 1965, Governor Clifford P. Hansen proclaimed the City of Cheyenne to be a "City of the First Class" organized under the provisions of the State of Wyoming with all the powers and obligations thereto.

A special election was held on June 22, 1971 to determine whether the commissioner form of government should be abandoned in favor of a Mayor-Council form under the First Class City Law of the State of Wyoming. The results of that election were in favor of the change and in the fall of that year, a Mayor and nine councilmen were elected to take office under the new form of government on January 3, 1972.

PREFACE

The Cheyenne, Wyoming Municipal Code, has been kept current by regular supplementation by Matthew Bender & Company, Inc., its successor in interest.

Beginning with Supplement 19, Municipal Code Corporation will be keeping this code current by regular supplementation.

During original codification, the ordinances were compiled, edited and indexed by the editorial staff of LexisNexis under the direction of Carol A. Intlekofer, city clerk and Mary B. Guthrie, city attorney.

The code is organized by subject matter under an expandable three-factor decimal numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the Title, chapter, and section. Thus, Section 2.12.040 is Section .040, located in Chapter 2.12 of Title 2. In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

In parentheses following each section is a legislative history identifying the specific sources for the provisions of that section. This legislative history is complemented by an ordinance disposition table, following the text of the code, listing by number all ordinances, their subjects, and where they appear in the codification; and beginning with Supplement No. 19, legislation can be tracked using the "Code Comparative Table and Disposition List."

A subject-matter index, with complete cross-referencing, locates specific code provisions by individual section numbers.

This supplement brings the code up to date through Ord. No. 4662, passed March 23, 2026.

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of the
CITY OF CHEYENNE, WYOMING

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Mayor

Dr. Michelle D. Aldrich
Dr. Kathy Emmons
Ken A. Esquibel
Pete Laybourn
Mark A. Moody
Dr. Mark Rinne
Thomas W. Segrave
Jeff White
Lawrence J. Wolfe
Council members

John A. Brodie
City Attorney

Kylie Soden
City Clerk

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HOW TO USE YOUR CODE

This code is organized to make the laws of the city as accessible as possible to city officials, city employees and private citizens. Please take a moment to familiarize yourself with some of the important elements of this code.

Numbering System.

The numbering system is the backbone of a Code of Ordinances; Municipal Code Corporation uses a unique and versatile numbering structure that allows for easy expansion and amendment of this Code. It is based on three tiers, beginning with title, then chapter, and ending with section. Each part is represented in the code section number. For example, Section 2.04.010 is Section .010, in Chapter 2.04 of Title 2.

Title.

A title is a broad category under which ordinances on a related subject are compiled. This code contains about 15 to 20 titles. For example, the first title is Title 1, General Provisions, which may contain ordinances about the general penalty, code adoption and definitions. The titles in this code are separated by tabbed divider pages for quick reference. Some titles are **Reserved** for later use.

Chapter.

Chapters deal with more specific subjects, and are often derived from one ordinance. All of the chapters on a related subject are grouped in one title. The chapters are numbered so that new chapters which should logically be placed near certain existing chapters can be added at a later time without renumbering existing material. For example, Chapter 2.06, City Manager, can be added between 2.04, City Council, and Chapter 2.08, City Attorney.

Section.

Each section of the code contains substantive ordinance material. The sections are numbered by "tens" to allow for expansion of the code without renumbering.

Tables of Contents.

There are many tables of contents in this code to assist in locating specific information. At the beginning of the code is the main table of contents listing each title. In addition, each title and chapter has its own table of contents listing the chapters and sections, respectively.

Ordinance History Note.

At the end of each code section, you will find an "ordinance history note," which lists the underlying ordinances for that section. The ordinances are listed by number, section (if applicable) and year. (Example: (Ord. 272 § 1, 1992).)

Beginning with Supplement No. 19 a secondary ordinance history note will be appended to affected sections. Ordinance history notes will be amended with the most recent ordinance added to the end. These history notes can be cross referenced to the code comparative table and disposition list appearing at the back of the volume preceding the index.

Statutory References.

The statutory references direct the code user to those portions of the state statutes that are applicable to the laws of the municipality. As the statutes are revised, these references will be updated.

Cross-Reference Table.

When a code is based on an earlier codification, the cross-reference table will help users find older or "prior" code references in the new code. The cross-reference table is located near the end of the code, under the tabbed divider "Tables." This table lists the prior code section in the column labeled "Prior Code Section" and the new code section in the column labeled "Herein."

As of Supplement No. 19, this table will no longer be updated.

Ordinance List and Disposition Table.

To find a specific ordinance in the code, turn to the section called "Tables" for the Ordinance List and Disposition Table. This very useful table tells you the status of every ordinance reviewed for inclusion in the code. The table is organized by ordinance number and provides a brief description and the disposition of the ordinance. If the ordinance is codified, the chapter (or chapters) will be indicated. (Example: (2.04, 6.12, 9.04).) If the ordinance is of a temporary nature or deals with subjects not normally codified, such as budgets, taxes, annexations or rezones, the disposition will be "(Special)." If the ordinance is for some reason omitted from the code, usually at the direction of the municipality, the disposition will be "(Not codified)." Other dispositions sometimes used are "(Tabled)," "(Pending)," "(Number Not Used)" or "(Missing)."

Beginning with Supplement No. 19 this table will be replaced with the "Code Comparative Table and Disposition List."

Code Comparative Table and Disposition List.

Beginning with Supplement No. 19, a Code Comparative Table and Disposition List has been added for use in tracking legislative history. Located in the back of this volume, this table is a chronological listing of each ordinance considered for codification. The Code Comparative Table and Disposition List specifies the ordinance number, adoption date, description of the ordinance and the disposition within the code of each ordinance. By use of the Code Comparative Table and Disposition List, the reader can locate any section of the code as supplemented, and any subsequent ordinance included herein.

Index.

If you are not certain where to look for a particular subject in this code, start with the index. This is an alphabetical multi-tier subject index which uses section numbers as the reference, and cross-references where necessary. Look for the main heading of the subject you need, then the appropriate subheadings:

BUSINESS LICENSE

See also BUSINESS TAX
Fee 5.04.030
Required when 5.04.010

The index will be updated as necessary when the code text is amended.

Instruction Sheet.

Each supplement to the new code will be accompanied by an Instruction Sheet. The Instruction Sheet will tell the code user the date of the most recent supplement and the last ordinance contained in that supplement. It will then list the pages that must be pulled from the code and the new pages that must be inserted. Following these instructions carefully will assure that the code is kept accurate and current. Removed pages should be kept for future reference.

Page Numbers.

When originally published, the pages of this code were consecutively numbered. As of Supplement No. 19, when new pages are inserted with amendments, the pages will follow a "Point Numbering System". (Example: 32, 32.1, 32.2, 32.2.1, 32.2.2., 33). Backs of pages that are blank (in codes that are printed double-sided) will be left unnumbered but the number will be "reserved" for later use.

Electronic Submission.

In the interests of accuracy and speed, we encourage you to submit your ordinances electronically if at all possible. We can accept most any file format, including Word, WordPerfect or text files. If you have a choice, we prefer Word, any version. You can send files to us as an e-mail attachment, by FTP, on a diskette or CD-ROM. Electronic files enable us not only to get you your code more quickly but also ensure that it is error-free. Our e-mail address is: **ords@municode.com**.

For hard copy, send two copies of all ordinances passed to:

Municipal Code Corporation
P.O. Box 2235
Tallahassee, FL 32316

Customer Service.

If you have any questions about this code or our services, please contact Municipal Code Corporation at 1-800-262-2633 or:

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310

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Title 1

GENERAL PROVISIONS

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Chapter 1.01
CODE ADOPTION

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1.01.010 In-house code

That in preparation of codifying the existing city code, the city clerk and city attorney have prepared an in-house general revision to the current code of ordinances for the city of Cheyenne, Wyoming to assist in providing a modern and systematic reorganization of material. (Ord. 3514 § 1, 2003)

1.01.020 Code adopted.

That based upon the in-house revision, the code of ordinances of the city of Cheyenne, Wyoming, as professionally compiled, edited, recodified and published by Book Publishing Company, Seattle, Washington, now known as LexisNexis Municipal Codes, of Charlottesville, Virginia, is adopted pursuant to authority granted cities and towns set forth in Wyoming Statute §15-1-103 (a) (xxxviii). (Ord. 3514 § 2, 2003)

1.01.030 References to code.

This code shall be known as the code of ordinances of the city of Cheyenne, Wyoming and may be referred to as the Cheyenne city code in any prosecution for the violation of any provision thereof or in any proceeding at law or equity. It will be sufficient to designate any ordinance adding to, amending, correcting or repealing all of any part or portion thereof as an addition to, amendment to, correction or repeal of the Cheyenne city code. References may be made to the titles, chapters, sections and subsections of the Cheyenne city code and references apply to those titles, chapters, sections or subsections as they appear in the code. (Ord. 3514 § 3, 2003)

1.01.040 References—Applicability.

That whenever a reference is made to this code as the Cheyenne city code or to any portion thereof, or to any ordinance of the city of Cheyenne, Wyoming, codified herein, the reference will apply to all amendments, corrections and additions heretofore, now or hereafter made. (Ord. 3514 § 4, 2003)

1.01.050 Code divisions—Interpretation of scope, meaning or intent.

Title, chapter and section headings contained within the Cheyenne city code will not be deemed to govern, limit, modify or in any manner affect the scope, meaning or intent of the provisions of any title, chapter or section hereof. (Ord. 3514 § 5, 2003)

1.01.060 Provisions of code—Limitations.

The provisions of this code will not in any manner affect matters of record which refer to, or are otherwise connected with ordinances which are specifically designated by number or otherwise and which are included within the code, but such reference shall be construed to apply to the corresponding provisions contained within this code. (Ord. 3514 § 6, 2003)

1.01.070 Codified ordinances—In house code.

The last ordinance included in this code was Ordinance No. 3446, approved on August 13, 2001. Ordinances approved by the governing body subsequent to Ordinance No. 3446, but prior to adoption of this code, are hereby adopted and made a part of this code. (Ord. 3514 § 7, 2003)

1.01.080 Effectiveness.

The adoption of this code does not affect prosecutions for ordinance violations committed prior to the effective date of this code, does not waive any fee or penalty due and unpaid on the effective date of this code, and does not affect the validity of any bond or cash deposit posted, filed or deposited pursuant to the requirements of any ordinance. (Ord. 3514 § 8, 2003)

1.01.090 Prospective applicability.

References in city forms, documents and regulations to the chapters, sections and subsections of the former code of ordinances for the city of Cheyenne, Wyoming, will be construed to apply to the corresponding provisions contained within this code. (Ord. 3514 § 9, 2003)

1.01.100 Ordinances not codified—Effectiveness.

That all other ordinances, including but not limited to franchises, annexation, zoning, and vacations of real property, bond issues and administrative ordinances, which are not included in this compilation and recodification remain in full force and effect. (Ord. 3514 § 10, 2003)

1.01.110 In-house code—On file.

That the in-house code prepared by the city clerk and city attorney in preparation for the compilation, editing and recodification of the code is approved, and the Cheyenne city code prepared by Book Publishing Company is hereby adopted and on file for public inspection in the office of city clerk. (Ord. 3514 § 11, 2003)

Chapter 1.04
GENERAL PROVISIONS

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1.04.120	Severability of parts of code.
1.04.130	Municipal elections.

1.04.010 How code designated and cited.

The ordinances in this and the following chapters and sections constitute and are designated as "Cheyenne City Code" and may also be cited as "The Code of the City of Cheyenne, Wyoming", or "city code". (2001 In-house code § 1-1)

1.04.020 Definitions.

A. In the interpretation of this code, the following definitions and rules of construction shall be observed:

"Agency" means any board, commission, department, division, office or other organization of city government, including any elective officer, appointee, or person acting in the exercise of official duties.

"City" means the city of Cheyenne, county of Laramie, state of Wyoming.

"Computation of time" means any period of time prescribed or allowed by this city code; the day of the act, event or default from which the designated period of time begins to run will not be included. The last day of the period so computed will be included, unless it is a Saturday, Sunday or a legal holiday recognized by the city, or, if city offices are closed due to weather or other conditions, the last day of the period will run until the end of the next business day.

"Governing body" means the elected mayor and members of the Cheyenne city council; the legislative body of the city of Cheyenne government.

"Laramie County," "county of Laramie" or "county" means the elected county commissioners for Laramie County, state of Wyoming.

"Oath" and "affirmation" are used interchangeably. An affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" are equivalent to the words "affirm" and "affirmed."

"Officer" or "officers" means the elected and appointed officials of the city and their executive staffs, all heads of departments and divisions, and members of boards and commissions.

"Owner", when associated with a building or land, means the owner of the whole, any part owner, joint owner, tenant in common, or joint tenant of the whole or a part of such building or land, and includes any agent of such owner; where "owner" is a body corporate it means the managing agent or officer of the entity.

"Person" means an individual, firm, partnership, corporation or other business entity, or the executor, administrator, trustee, receiver, assignee or personal representative thereof.

"Shall, Will, and May." When used throughout this code and other ordinances of the city, the words "shall" and "will" are mandatory; the word "may" is permissive.

"State" means the state of Wyoming.

"Street" means public streets, avenues, boulevards, highways, roads, alleys, lanes, viaducts, bridges and approaches thereto.

"Wyoming Statute" means laws enacted by the legislative body of the State, and will be referred to as Wyo. Stat. Section or Wyo. Stat. Sections.

"Year" means a calendar year, except where otherwise provided.

B. Definitions set forth in Wyo. Stat. Section 15-1-101 et seq., as amended, are incorporated and made a part of this chapter by reference. (2001 In-house code § 1-2(a), (b))

1.04.030 Amendments.

All subsequent additions and amendments to this code are expressly incorporated herein.

A. All ordinances passed after this code has been adopted will be numbered in accordance with the numbering system and printed for inclusion in this code.

B. Amendments to any of the provisions of this code should be made by specific reference to the applicable section in the following manner: "That Chapter/Title _____, Section _____ of Cheyenne City Code, as approved by Ordinance No. ___ by the governing body on ____(date)_____is hereby amended to read as follows: ...". The new provisions will be set out in full.

C. All repeals of sections, articles, chapters or other provisions of this code must be specifically repealed by ordinance number, chapter/title, article, section or other number. (2001 In-house code § 1-2(c))

1.04.040 New Material.

In the event a new section is added, the following language should be used: "That Chapter/Title ____, Section ____ of the Cheyenne City Code is hereby created to read as follows: ...". The provisions shall then be set out in full. (2001 In-house code § 1-2(d))

1.04.050 Supplements.

Supplements to the code, including all substantive permanent and general parts of ordinances passed by the governing body, shall be prepared as authorized by the governing body. Supplement pages will be numbered to properly fit into the structure of the code and will, where necessary, replace pages which have become obsolete or partially obsolete. New pages will be prepared and inserted in such manner as to provide that the code is current through the date of approval of the latest ordinance included in the supplement.

A. Code supplements must provide that all portions of the code that have been repealed will be excluded from the code by omission from the reprinted pages.

B. In preparing supplements to this code, the codifier (meaning the person, agency or company authorized to prepare the supplements) may make formal, nonsubstantive changes in ordinances as necessary to embody them into a unified code. The codifier, for example, may:

1. Organize ordinance material into appropriate subdivisions;

2. Provide appropriate catchlines, headings and titles for sections and other subdivisions of the code printed in the supplement, and make changes in such catchlines, headings and titles;

3. Assign appropriate numbers to sections and other subdivisions to be inserted in the code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

4. Change such words as "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," "this section," etc. to be applicable to the code which embodies the substantive sections of the ordinance included in the supplement;

5. Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the code; but, in no case, will the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied within the code. (2001 In-house code § 1-2(e))

1.04.060 Effect of codification.

The ordinances in effect on the date of this recodification are still in effect, unless otherwise specifically noted. (2001 In-house code § 1-3)

1.04.070 Titles of sections.

The titles of the sections of this code printed in boldface type are intended as catchwords to indicate the contents of the sections and are not part of the ordinance. (2001 In-house code § 1-4)

1.04.080 History notes.

The notes appearing after sections in this code are not intended to have any legal effect, but merely in-

dicate the history of the section. (2001 In-house code § 1-5)

1.04.090 References and editor's notes.

The references and editor's notes appearing throughout this code are not intended to have any legal effect, but are merely intended to assist the user of the code. (2001 In-house code § 1-6)

1.04.100 Certain ordinances not affected by code.

Nothing in this code or the ordinance adopting this code may be construed to repeal or otherwise affect the validity of any ordinances not contained within this code, including but not limited to franchises, annexations, zoning, vacations and all other administrative ordinances. (2001 In-house code § 1-7)

1.04.110 Effect of repeal of ordinances.

The repeal of an ordinance will not revive any ordinance in force before or at the time of repeal, unless expressly provided.

The repeal of an ordinance will not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for an offense committed or cause of action arising under the repealed ordinance. (2001 In-house code § 1-8)

1.04.120 Severability of parts of code.

Sections, paragraphs, sentences, clauses and phrases of this code are severable. If any phrase, clause, sentence, paragraph or section of this code is declared unconstitutional, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections. (2001 In-house code § 1-9)

1.04.130 Municipal elections.

All municipal elections shall be held in conformity with the most recently compiled election laws of the state applicable to municipal elections. (2001 In-house code § 2-4)

Chapter 1.08

OFFICIAL SEAL, EMBLEM AND SONG

Sections:

1.08.010	**Official seal and emblem—Description.**
1.08.020	**Official seal—Use.**
1.08.030	**Official song—Recognition and use.**

1.08.010 Official seal and emblem—Description.

A. The official seal of the city of Cheyenne is: a circular impression of a rope two and one-eighth inches in diameter, in the center of which is an impression of the State Capitol Building. The impression is a three-fourth elevation view of the south side of the Capitol Building from east of center of the building. Entirely surrounding the impression of the Capitol is a circular chain one and seven-sixteenths inches in diameter. At the top of the seal centered between the rope and the chain in capital letters in an arc are the words "City of Cheyenne." At the bottom of the seal centered between the rope and chain in capital letters in an arc are the words "State of Wyoming." Immediately under the impression of the State Capitol centered in a straight line in capital letters is the word "seal." All of the letters used in the seal are block letters of the same typeface and size.

B. The official seal of the city may be made of metal for purposes of imprinting the seal on documents by embossing the document or may be a rubber stamp, and either type of seal may be used on various documents as the city clerk deems appropriate.

C. The official seal is to be kept in the city clerk's office.

D. The official emblem of the city of Cheyenne is: three concentric circles, the outer one of which is a solid line. The middle circle is also a solid line whose diameter is approximately sixty-eight and one-half percent of the diameter of the outer circle. The innermost circle is a band with an outside diameter which is approximately sixty-five (65) percent of the outer circle and an inside diameter which is approximately fifty-five (55) percent of the outer circle. Between the outer and middle circles centered at the top of the emblem in capital letters in an arc are the words "City of" and centered at the bottom of the seal in capital letters in an arc is the word "Cheyenne." Centered at the top of the inner circle and within that circle in capital letters in an arc are the words "The Equality State," and centered at the bottom of the inner circle and within that circle in capital letters in an arc is the word "Wyoming." Also located within the inner circle are four small stars located at three o'clock, 4:20 o'clock, 7:40 o'clock, and nine o'clock. In addition, there are two larger stars within the inner circle located at 3:40 o'clock and 8:20 o'clock. Centered in the center of the emblem inside the inner circle is the picture of a male bison from a three-quarter front view with the bison's left shoulder in the center of the emblem. (2001 In-house code § 2-1)

1.08.020 Official seal—Use.

A. The city clerk is the sole custodian of the official seal of the city of Cheyenne, which can only be used by the clerk or the clerk's designee.

B. The seal of the city shall be affixed to all licenses, contracts, deeds, resolutions, ordinances, record of governing body proceedings, and all other papers, with the exception of city warrants, which are signed by the mayor, city treasurer, and city clerk. (2001 In-house code § 2-2)

1.08.030 Official song—Recognition and use.

A. "Cheyenne Anthem" (© 2018), words and music written by Amy and Annie Smith, Ty Warner and Todd Dereemer, is hereby designated as the official song of the City of Cheyenne.

B. The city shall have non-exclusive gratis right to use the entire song or any portion thereof, and the name of the song, for any and all official city commercial and/or non-commercial uses including, but not limited to, merchandise, promotion, advertising, marketing, tourism and education.

C. The songwriters, Amy and Annie Smith, co-owners of AAI Music Publishing, and Ty Warner and Todd Dereemer, reserve all other rights in the song, including the city's obligation to negotiate with AAI Music Publishing for the commercial use of the song in any manner other than as set forth in section B. of this section. (Ord. No. 4253, § 1, 12-10-18)

Chapter 1.12

DATUM PLANE

Sections:

1.12.010	**Findings of fact.**
1.12.020	**Filing of plats and maps.**
1.12.030	**Maintenance of control diagram.**
1.12.040	**Purpose—Obligations of city.**

1.12.010 Findings of fact.

A. A control survey has been executed by the city. One purpose of the survey was to establish the horizontal positions and elevations of a network of survey control stations within, and in the vicinity of, the city of Cheyenne, Laramie County, Wyoming.

B. Azimuths, distances and coordinates have been determined, by measurement and computation, for the control stations and interconnecting lines established by the survey. (Ord. No. 4212, § 1, 12-11-17; 2001 In-house code § 33-25)

1.12.020 Filing of plats and maps.

A. It is required that all plats and maps to be recorded with the office of county clerk and ex officio register of deeds for Laramie County, of lands within the corporate limits of the city or where approval of the governing body is required, be tied by actual survey tie to the Wyoming state plane coordinates (NAD 1983-1992) as converted to U.S. survey feet.

B. Copies of the control diagram, station descriptions and other documents are on file at the office of the city engineer and a copy of each document is available to each surveying or engineering firm or government agency engaged in surveying or engineering, upon request, at no charge from the city engineer.

C. The land surveyor, in the performance or direct supervision of necessary work, must meet the following minimum requirements:

1. A survey tie, as stated above, consists of the grid azimuth and distance from a city control station to a monumented corner of the lands being platted or surveyed. This tie is to be shown as a straight line and must be executed to a precision of not less than one part in ten thousand (10,000) parts;

2. Additionally, at least one boundary course, from the corner thus tied to an adjacent monumented corner, is to be shown on the plat or map by grid azimuth and distance;

3. Coordinates of the two corners, as described above, in addition to those of the control stations from which the survey tie originates, are to be shown by tabulation or other means on the plat or map. These coordinates are to be designated "X" (east) and "Y" (north) and will represent the state plane coordinates;

4. In all cases it will be noted, upon the plat or map, the basis to which the bearings and/or azimuths are referenced. Where bearings are computed from grid azimuths and used as a basis of bearing for the survey it will be clearly noted. Where the bearings are determined by solar or other celestial observation, a diagram, or clear wording, is to be used to show or explain the relationship of the basis used to the grid. Where a record bearing is used as a basis it will be clearly noted, with reference made to its origin and its relationship to the grid. Azimuths, rather than bearings, may be used provided differentiation between grid and other azimuths is clearly shown on the plat or map;

5. Where a land surveyor deems it advantageous to establish a new control station the work will be accepted subject to review and approval of the city engineer. When accepted, the new control station will become a component of the network system. New stations will be marked by a substantial, immutable and easily discernible monument, adequately referenced to bearing monuments or objects. A sketch will be drafted showing the station, reference monuments and/or objects and other pertinent information to aid in the recovery of the station. The land surveyor responsible for establishment of the station must execute a certificate, which may be part of the sketch, regarding proce-

dures used, precision obtained and correctness of the work. The position of new control stations will be determined by ties to at least two established city control stations, the ties being executed to a precision of not less than one part in twenty thousand (20,000) parts. (Ord. No. 4212, § 1, 12-11-17; 2001 In-house code § 33-26)

1.12.030 Maintenance of control diagram.

The city engineer will maintain an amended version of the control diagram and the diagram is to reflect the current status of the city of Cheyenne datum, as closely as possible, at all times in order to perpetuate the data shown. (2001 In-house code § 33-27)

1.12.040 Purpose—Obligations of city.

A primary purpose of these sections on the city of Cheyenne datum is to provide a method to assist the perpetuation of positions of property corner monuments and lines in, and in the vicinity of, the city, but in no way do these sections obligate the city to perform or execute actual surveys or surveying in conjunction therewith. (2001 In-house code § 33-28)

Chapter 1.16

INFRASTRUCTURE IMPROVEMENTS*

Sections:

1.16.010	**Definitions.**
1.16.020	**Reserved.**
1.16.030	**Reserved.**
1.16.040	**Off-site improvements.**
1.16.050	**Off-site improvements—Requirements.**
1.16.060	**Developer's responsibilities.**
1.16.070	**Infrastructure improvements—Reimbursement to developer.**
1.16.080	**Infrastructure improvements—Reimbursement to city.**

1.16.010 Definitions.

The following definitions apply in the interpretation and enforcement of this chapter:

"Development action" means any action by a developer or landowner:

1. Occurring on or after September 1, 2022 that requires public improvements pursuant to the code; or

2. Subject to an infrastructure reimbursement agreement executed before September 1, 2022 that includes, but is not limited to, platting, replatting, site plan process, annexation, connection to water or sanitary sewer or building permits for additions, modifications, repairs or alterations of a building, which exceed twenty-five (25) percent of the building value within any twelve (12) month period.

"Development office" means the Planning and Development Department for the city of Cheyenne.

"Infrastructure improvements" means all facilities intended for public use including, but not limited to, the following:

1. Water mains with connecting lines to the then available supply;

2. Sewer mains and appurtenances extended to the farthest point up-grade in the respective lines of the development;

3. Curb and gutter for any streets within the area;

4. Streets within the described area connecting to the most nearly adjacent traffic route;

5. Alleys;

6. Flood control and drainage systems to include such elements as storm sewers, aboveground and underground drainage facilities, detention and holding facilities, and other related drainage structures;

7. Traffic control devices, street lighting, park facilities and landscaping required by the city; and

8. Other facilities as determined by the city engineer.

"Off-site improvements" means required public improvements constructed in association with a development action that may or may not be adjacent to a development site or city project that benefits a latecomer. (Ord. No. 4456, § 1, 8-22-22; Ord. 3723 § 2 (part), 2006)

1.16.020 Reserved.

Editor's note—Ord. No. 4456, § 1, adopted Aug. 22, 2022, repealed § 1.16.020, which pertained to modifications and derived from Ord. 3723 § 2 (part), adopted in 2006.

1.16.030 Reserved.

Editor's note—Ord. No. 4456, § 1, adopted Aug. 22, 2022, repealed § 1.16.030, which pertained to petition and derived from Ord. 3723 § 2 (part), adopted in 2006.

1.16.040 Off-site improvements.

The developer must agree to install all required off-site improvements associated with lands which are the subject of development action. All off-site improvements installed or to be installed shall be subject to approval by the city as to the plans and specifications and as to compliance with the in-

***Editor's note**—Ord. No. 4456, § 1, adopted Aug. 22, 2022, amended Ch. 1.16, and in doing so amended the title of said chapter from "Annexation and Infrastructure Improvements" to "Infrastructure Improvements," as set out herein.

spection procedures and schedules determined by the city. (Ord. No. 4456, § 1, 8-22-22; Ord. 3723 § 2 (part), 2006)

1.16.050 Off-site improvements—Requirements.

In the event that off-site improvements, which are the subject of Section 1.16.040 of this chapter, have not been installed at the time that the development action is submitted to the city then before any certificate of occupancy will be issued for any buildings constructed within the development area, the required sewer and water mains must be released for service by the board of public utilities and permanent service lines must be installed, the overlot grading completed to assure proper drainage, and one of the following requirements (either subsection A or B of this section) must be met in its entirety:

A. Signed Contract and Bond.

1. A signed contract, satisfactory to the city engineer for substantive sufficiency for the project, between the developer and a qualified contractor for the installation of each noncompleted off-site improvement;

2. A performance bond by the contractor or developer satisfactory to the city engineer of the qualification and capacity of the contractor to complete the job in accordance with the terms and provisions of the construction contract;

3. The contract(s) required by this section for the installation of the off-site improvements will specify completion dates to be approved by the city engineer in order to guarantee regular and reasonable occupancy time for residence of structures to be completed in the area and the building requirements as determined by weather conditions.

B. Cash Deposit or Letter of Credit. A cash deposit or letter of credit satisfactory to the city engineer in an amount not less than one hundred fifty (150) percent of the contract price relative to the installation costs for infrastructure improvements. All construction contracts, letters of credit, payment assurances and deposits must cover an area of not less than one lineal block encompassing the street where the certificate of occupancy is required with sufficient curb, gutter, sidewalk, paving and other facilities to meet the requirements.

1. Upon receipt of a cash deposit pursuant to this section, the city treasurer shall deposit such funds into an account designated for the sole purpose of constructing the off-site infrastructure improvements for which the cash deposit was made.

2. If upon the conclusion of the tenth fiscal year after the fiscal year in which the cash deposit was made, the off-site infrastructure improvements for which the cash deposit was made have not been constructed, then the person or persons making such cash deposit or such other person as is legally entitled thereto, may request a refund of the cash deposit, plus interest earned thereon, such refund request not to be unreasonably denied. After passage of Ordinance No. 4221, cash deposits presently held by the city treasurer that meet the requirements described herein, shall be eligible for refund beginning on the effective date of the ordinance from which this chapter is derived.

3. If such refund is paid and the recipient is then the current record property owner, the city engineer shall record a "Notice of Potential Infrastructure Improvement Reimbursement" with the Laramie County real estate office on the property affected by the refund request. Such person shall not be relieved from the responsibility for the cost of the infrastructure improvements in the amount deposited with the City, consistent with this chapter. Copies of the same shall be delivered to the affected property owner(s) and the planning and development department.

4. If such refund is paid and the recipient is no longer the current record property owner, such person or persons shall not be relieved from the responsibility for the cost of the infrastructure improvements in the amount deposited with the city, consistent with this chapter.

5. If the person or persons having made such cash deposit or such other person as is legally entitled thereto has not requested a refund more

than one year after such funds became eligible for refund, the city will proceed in accordance with the provisions of the Wyoming Uniform Unclaimed Property Act, Wyo. Stat. Section 34-24-101 et seq.

C. In addition to either subsection A or B of this section, any off-site improvements not directly attributable to any specific location within the development shall be included in the letter of credit, cash deposit or performance bond for the first phase of development construction. (Ord. No. 4456, § 1, 8-22-22; Ord. No. 4221, § 1, 3-26-18; Ord. 3723 § 2 (part), 2006)

1.16.060 Developer's responsibilities.

As a condition of any development action, the developer is responsible for the cost of installation of infrastructure improvements, as determined by the city engineer, for all lots to be developed pursuant to this chapter. The installation of any infrastructure improvements will not commence until the plans and specifications have been approved in writing by the city and the board of public utilities, who have the authority to inspect infrastructure improvements during and following installation and to compel corrections, if necessary, in order to comply with the approved plans and specifications. (Ord. 3723 § 2 (part), 2006)

1.16.070 Infrastructure improvements—Reimbursement to developer.

A. Pursuant to the requirements of this chapter pertaining to development actions, on occasion the developer may be required to pay for the installation of off-site improvements to serve a development. In these cases, the entire cost shall be paid by the developer.

B. Reimbursement to Developer Process.

1. A nonrefundable fee of two thousand dollars ($2,000.00) shall be submitted by the developer with an application for reimbursement on forms provided by the development office. The developer may begin the reimbursement process by submitting a completed reimbursement application form to the development office at the start of construction. Upon receipt of an application by the development office, the request for reimbursement shall be considered to be in effect contingent upon finalized information to be submitted and approved by the city engineer.

2. After the infrastructure is installed by the developer, the city shall inspect the improvements. The developer shall have one hundred and eighty (180) days from the date of acceptance of completion by the city engineer in which to provide the following finalized information:

a. Cost Information. The cost information will be actual costs, including engineering, construction and permit fees. The developer shall provide information clearly describing the cost of the installed infrastructure.

b. Cost Allocation. The proportionate share of costs for each affected property owner shall be described.

c. Notification. The developer shall notify affected property owners via certified mail and provide proof of notification to the development office. Notice shall describe the nature, location, the cost allocated and reasonable method utilized of cost allocation to the affected property owner. If significant changes occur to the reimbursement application after the initial notification, the developer may be required to make additional notifications.

d. The city engineer may require any additional information as necessary.

3. The application shall not be approved by the city engineer less than twenty (20) calendar days after developer's notification to affected property owners to allow comment by the affected property owners. After approval by the city engineer, the developer will record with the Laramie County real estate office "Notice of Potential Infrastructure Improvement Reimbursement" on all properties that are included in the reimbursement request, and will provide affected property owners and the development office a copy of such filing.

4. When a latecomer pursues development action(s), the city will require, as a condition of

approving the development action(s), that the latecomer pays their proportionate share of already installed infrastructure improvements.

a. The development director shall compute the proportionate share value to be reimbursed by using the construction cost index for twenty (20) cities, as issued by the current Engineering News Record, at the date of construction compared to the construction cost index at the date of reimbursement.

b. Prior to a latecomer's development action being approved, the development office will receive the required amount or a lesser amount agreed upon by the originating developer who installed infrastructure improvements.

c. When the reimbursement has been paid, the development director shall prepare and file a "Release of Potential Infrastructure Improvement Reimbursement" with the Laramie County real estate office.

d. Once the reimbursement amount has been collected, the city will remit the reimbursement amount to the originating developer within ninety (90) days; however, the city will have the option to retain funds due any originating developer that is in arrears to the city or for noncompliance with city code or other agreement.

e. It will be the responsibility of the originating developer to notify the city of any change of address or business name. If the city is not able to contact the originating developer, the city will proceed in accordance with the provisions of the Wyoming Uniform Unclaimed Property Act, Wyo. Stat. Section 34-24-101 et seq.

5. The right to any reimbursement under the provisions of this chapter will terminate twenty (20) years after the notice of potential infrastructure improvement reimbursement is recorded with the Laramie County real estate office. (Ord. No. 4456, § 1, 8-22-22; Ord. 3723 § 2 (part), 2006)

1.16.080 Infrastructure improvements—Reimbursement to city.

From time to time, the city may find it appropriate or necessary, due to overriding community need or pressing health and safety concerns, to make certain infrastructure improvements including, but not limited to, any or all of the off-site improvements outlined in Section 1.16.040 of this chapter, using its own funds or other funds available, through areas that may either be developed or are undeveloped. The city may utilize the procedure outlined in this chapter relative to reimbursement for infrastructure it has installed. Reimbursement actions initiated by the city shall be exempt from fees. (Ord. No. 4456, § 1, 8-22-22; Ord. 3723 § 2 (part), 2006)

Chapter 1.20

MAJOR STREET PLAN OFFICIAL MAP

Sections:

1.20.010 Major street plan official map.

1.20.010 Major street plan official map.

A. The governing body has adopted Resolution Numbers 3342, 3409 and 3604 in support of the Cheyenne Area Master Transportation plan which was prepared in conformity with Wyo. Stat. Section 15-1-508.

B. Pursuant to the above referenced resolutions, an accurate major street plan official map for the city has been prepared, accepted, and executed by the city engineer.

C. Wyo. Stat. Sections 15-1-508 through 15-1-512 direct the city to establish procedures for amendments or modifications to the official map in order to preserve its integrity.

D. The city clerk has filed Ordinance Number 3267, approved October 23, 1995, and major street plan official map with the county clerk for Laramie County, Wyoming, copies of which are on file in the city clerk's office for public inspection during normal business hours.

E. The city engineer, or his or her designated representative, is instructed to amend the road, street, and site planning and design standards manual, adopted by city Ordinance Number 3091, dated January 31, 1990, as amended, to incorporate standards, procedures and application process for amendments or modifications to the major street plan official map, as required by Wyo. Stat. Sections 15-1-508 through 15-1-512, and Section 16-3-103. (2001 In-house code § 33-15)

Chapter 1.24

GENERAL PENALTY

Sections:

1.24.010 Violations—Penalties.

1.24.010 Violations—Penalties.

A. Whenever in this code, or in any ordinance, or rule or regulation or order promulgated by any officer or agency of the city under authority vested in them by law or ordinance, any act is prohibited or is declared to be unlawful, or the doing of any act is required, or the failure to do any act is declared to be unlawful, and no specific penalty is provided therefore, the violation of any such provision of this code, or any such ordinance, rule or regulation shall constitute a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00) and costs, or by imprisonment for a period not to exceed six months, or both, in the discretion of the court. Each day a violation continues will constitute a separate offense.

B. In the event that any violation is designated as a nuisance under the provisions of this code, such nuisance may be summarily abated by the police department. (2001 In-house code § 1-10)

Chapter 1.28

ADMINISTRATIVE INSPECTION WARRANTS

Sections:

1.28.010	**Issuance of administrative inspection warrants.**
1.28.020	**Grounds for issuance.**
1.28.030	**Procedure for issuance.**
1.28.040	**Execution of administrative inspection warrants.**

1.28.010 Issuance of administrative inspection warrants.

A. A municipal judge may issue an administrative inspection warrant only upon proper application of the fire chief, the fire marshal or the chief building official. The judge may issue the warrant only where inspection is required, authorized or reasonably necessary as provided under the Cheyenne city code or Wyoming Statutes as specified in subsection (B) of this section, and only if the issuance of the warrant otherwise complies with the requirements imposed under this chapter. Any inspection warrant sought under this chapter shall be limited to property as provided in subsection (C) of this section.

B. Administrative inspection warrants shall be issued under this chapter only for inspections conducted pursuant to the following chapters and sections of the Cheyenne city code and Wyoming Statutes, as adopted and amended by the city:

1. When requested by the fire chief or fire marshal acting pursuant to:

a. Chapter 8.12—International Fire Code;

b. Section 8.32.040—Compliance;

c. Section 8.40.050—Authority—Inspections required—Deficiencies;

d. Wyo. Stat. Section 35-9-109—Investigation of fires; notification to fire marshal; powers of fire marshal;

e. Wyo. Stat. Section 35-9-111—Certain structures declared nuisance; repair or demolition; procedure;

f. Wyo. Stat. Section 35-9-116—Removal of combustible material; remedy of flammable conditions; and

g. Wyo. Stat. Section 35-9-156—Local response authority.

2. When requested by the chief building official acting pursuant to:

a. Chapter 15.08—International Building Code;

b. Chapter 15.09—International Existing Building Code;

c. Chapter 15.10—International Residential Code;

d. Chapter 15.12—International Plumbing Code;

e. Chapter 15.16—International Mechanical Code;

f. Chapter 15.20—National Electrical Code, including Appendix K of the International Building Code;

g. Chapter 15.22—International Fuel Gas Code;

h. Chapter 15.24—International Property Maintenance Code; and

i. Chapter 15.26—International Energy Conservation Code.

C. An administrative inspection warrant may authorize entry onto property only where consent to inspect has been expressly denied or could not be obtained after compliance with the affidavit and consent-seeking requirements set forth in Section 1.28.020(C) of this chapter, and only if the property is:

1. Damaged as a result of a fire event and a post-fire investigation is required or authorized by the Cheyenne city code or the Wyoming Statutes specified in paragraph (B)(1) of this section;

2. Subject to fire or life-safety inspections by the fire chief or fire marshal where the inspection is required or authorized by the Cheyenne city code or the Wyoming Statutes specified in paragraph (B)(1) of this section;

3. Subject to inspection in accordance with a permit issued by the building safety department, which permit was requested by the property owner

or the property owner's agent, for the purpose of constructing, enlarging, altering, repairing, moving, demolishing or changing the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical or plumbing system regulated by the Cheyenne city code as specified in paragraph (B)(2) of this section; or

4. Abandoned as provided in this paragraph. For purposes of this paragraph, a property is considered abandoned only where:

a. The property is unoccupied by any lawful occupant. The presence of an unauthorized person, as defined by Wyo. Stat. Section 1-21-1401(a)(v), shall not constitute occupancy;

b. The property is not merely temporarily vacant or seasonally unoccupied; and

c. The property exhibits two or more objectively observable exterior indicators of abandonment, including:

i. Verified termination of one or more essential utilities, where such termination has been confirmed through lawful coordination with, or information obtained from, the applicable utility provider;

ii. Removal or stripping of essential fixtures;

iii. Vandalism;

iv. Secured or boarded openings inconsistent with lawful residential occupancy; or

v. Other comparable exterior conditions that, taken together, clearly demonstrate the dwelling is not being used for lawful purposes.

D. An administrative inspection warrant issued under this chapter shall be in the form of a written order and shall comply with the form and particularity requirements set forth in Section 1.28.030(B) of this chapter.

E. The warrant shall authorize entry onto the designated property only at reasonable times and in a reasonable manner for the purposes of conducting the inspection specified therein. Absent a specific finding by the issuing court to the contrary, entry between the hours of 7:00 a.m. and 7:00 p.m. shall be presumed to constitute a reasonable time for purposes of this subsection.

F. Nothing in this section shall be construed to authorize the issuance of an administrative inspection warrant in a manner inconsistent with the United States Constitution, the Wyoming Constitution, or the laws of the United States or the state of Wyoming. (Ord. No. 4656, § 1, 2-9-26)

1.28.020 Grounds for issuance.

A. An administrative inspection warrant shall be issued only upon probable cause, supported by affidavit made under oath or affirmation, particularly describing:

1. The applicant's authority and status in applying for the warrant;

2. The legal authority requiring or authorizing the inspection;

3. The property to be inspected; and

4. The purpose for the inspection, including the basis upon which probable cause exists to inspect.

B. Probable cause shall be deemed to exist if:

1. Reasonable legislative or administrative standards for conducting a routine, periodic, or area inspection of commercial properties are satisfied with respect to the particular commercial property, or reasonable legislative or administrative standards for conducting a routine, periodic, or area inspection are satisfied with respect to a property subject to inspection pursuant to a permit as described in Section 1.28.010(C)(3) of this chapter;

2. There is probable cause to believe that a condition of nonconformity, violation or other circumstance requiring corrective action exists with respect to the designated property or that causes an immediate risk to public health or safety; or

3. An inspection is reasonably necessary to verify the condition of the property or structures for compliance with applicable law as provided in this chapter.

C. In addition to the requirements imposed under subsection (A) of this section, and before any warrant under this chapter may be issued, the affidavit shall affirmatively state that entry has been sought and refused, or that a reasonable

attempt to contact the property owner or lawful occupant to obtain consent has been unsuccessful. The affidavit shall further state that the following sequential efforts to contact the property owner or lawful occupant, specified in paragraphs (1) through (3) of this subsection, were undertaken, as applicable. No administrative inspection warrant shall be issued unless compliance with this subsection is demonstrated to the satisfaction of the municipal court judge as part of the warrant application:

1. An attempt to make personal contact at the location of the property;

2. An attempt to make contact by telephone, electronic mail, or other reasonably available digital means using contact information known to or reasonably obtainable by the city; and

3. If the attempts described in paragraphs (1) and (2) of this subsection are unsuccessful, transmission of a certified letter to the property owner at the owner's last known address as reflected in county records or other reliable sources. (Ord. No. 4656, § 1, 2-9-26)

1.28.030 Procedure for issuance.

A. Before issuing an administrative inspection warrant, the municipal judge shall determine, based upon a sworn affidavit, whether probable cause exists to believe that the inspection is authorized under this chapter and that sufficient grounds exist for granting the application.

B. If the municipal judge finds probable cause exists and further finds that all other requirements imposed by this chapter have been satisfied, the judge shall issue the warrant. The warrant shall particularly describe the name and title of the person or persons authorized to execute it, the specific property, area, premises or building to be inspected, and the scope and purpose of the inspection.

C. The warrant shall direct that it be executed only during reasonable hours and in a reasonable manner, except that where the municipal judge makes a specific finding, supported by the affidavit, that effective execution cannot be accomplished during those hours, the judge may authorize execution at such other times as the judge determines appropriate.

D. The municipal judge shall retain the warrant application, the sworn affidavit, and a copy of the warrant as part of the official record of the proceeding. (Ord. No. 4656, § 1, 2-9-26)

1.28.040 Execution of administrative inspection warrants.

A. In executing an administrative inspection warrant, the person authorized to execute the warrant shall, before entry, make a reasonable effort to present their credentials and state their authority and purpose to any occupant or person in possession of the property designated in the warrant and shall, upon request, display a copy of the warrant.

B. No administrative inspection warrant issued under this chapter shall authorize entry without prior announcement of authority and purpose where any occupant or person is present. Entry commonly referred to as a "no-knock" entry is expressly prohibited. The announcement of authority and purpose required under subsection (A) of this section shall not apply where the property is deemed abandoned as provided by Section 1.28.010(C)(4) of this chapter.

C. A peace officer or other law enforcement official may be requested to accompany or assist in the execution of an administrative inspection warrant when reasonably necessary to ensure the safety of personnel or the security of the property.

D. An administrative inspection warrant shall be executed and returned to the municipal judge within ten (10) days from its date of issuance, unless the judge, before the expiration of the ten (10) day period, extends the time for execution by written endorsement for an additional five days. Any warrant not executed within the prescribed time shall be void. (Ord. No. 4656, § 1, 2-9-26)

Title 2

ADMINISTRATION AND PERSONNEL

Chapters:

2.04	**Mayor and City Council**
2.08	**City Officers and Employees Generally**
2.12	**City Clerk**
2.16	**City Treasurer**
2.20	**Police Department**
2.24	**Reserved**
2.28	**Reserve Police Officers**
2.29	**Community Service Officers**
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2.40	**Municipal Court**
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2.48	**Juvenile Probation System**
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2.56	**Planning Commission**
2.60	**Airport Board**
2.64	**Historic Preservation Board**
2.68	**Board of Public Utilities**
2.72	**Housing Authority**
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Chapter 2.04

MAYOR AND CITY COUNCIL

Sections:

2.04.010 Council members—Election—Term of office.

2.04.020 Mayor—Election—Term of office—Staffing.

2.04.030 Oath.

2.04.040 Vacancies.

2.04.050 Council officers—Standing committees.

2.04.060 Meetings of the governing body.

2.04.070 Special meetings—Notice.

2.04.080 Presiding officer—Mayor's vote.

2.04.090 Certain officers to attend meetings.

2.04.100 Presence on dais.

2.04.110 Call to order—Roll call.

2.04.120 Quorum.

2.04.130 Executive session.

2.04.140 Rules of order—Modifications—Suspension of rules.

2.04.142 Consent agenda.

2.04.145 Public participation at meetings.

2.04.150 Legislation—Ordinances, resolutions and style.

2.04.160 Readings; committee reports; amendments; contract approval.

2.04.170 Required vote.

2.04.180 Execution—Effective date.

2.04.190 Mayor's veto—When ordinance becomes law.

2.04.200 Purchasing policy.

2.04.010 Council members—Election—Term of office.

A. Three members of city council shall be elected from each ward established within the city. The wards of the city shall be as shown and indicated on an official map on file in the city clerk's office.

B. Election of members of city council shall be conducted in accordance with Wyo. Stat. Section 22-23-101, et seq. Council members shall be elected biennially for staggered terms of four years, with the same number of members being elected at each biennial election as there are council members whose terms of office expire within each ward. (2001 In-house code § 2-5)

2.04.020 Mayor—Election—Term of office—Staffing.

A. The mayor of the city shall be elected at large. The election shall be conducted in accordance with Wyo. Stat. 22-23-101, et seq. The mayor shall be elected for a term of four years.

B. The mayor may hire a chief of staff whose duties shall be specified by the mayor, whose position shall be at will and who shall serve at the pleasure of the mayor. To the extent any provisions of the city of Cheyenne Personnel Rules and Regulations conflict with the employment classification of the chief of staff as an at will employee, or notwithstanding any other provisions as further specified by the mayor, those provisions shall not apply. Any other person hired in the mayor's office may only have their employment terminated for just cause. (Ord. No. 4529, § 1, 11-13-23; Ord. No. 4340, § 1, 1-11-21; 2001 In-house code § 2-6)

Editor's note—Ord. No. 4529, § 1, adopted Nov. 13, 2023, amended § 2.04.020 and in doing so changed the title of said section from "Mayor—Election—Term of office" to "Mayor—Election—Term of office—Staffing," as set out herein.

2.04.030 Oath.

Each person elected to municipal office shall, before performing the duties of the office, take and subscribe the constitutional oath of office set forth in the Wyoming Constitution, Article 6, Section 20. Officers authorized to administer oaths of

office are designated in Wyo. Stat. Section 1-2-102, Section 15-1-108 and Section 15-1-109. (2001 In-house code § 2-7)

2.04.040 Vacancies.

A. Resolution Declaring Vacancy Required. If there is a vacancy in the office of mayor or on the city council, the governing body must adopt a resolution declaring that a vacancy exists before the governing body may fill the office of city council. The city council must adopt a resolution declaring that a vacancy exists before the city council may fill the office of mayor.

B. Meeting to Select Mayor. If the office of mayor is declared vacant, a member of city council who has been selected in accordance with Wyo. Stat. Section 15-3-203 will, as soon as practical, convene a regular or special meeting of the city council and call for nominations and seconds of qualified city council members to fill the office of mayor until the next general election. Only qualified members of the city council may make nominations and seconds. There must be a quorum present based upon the number of council members who are qualified at the time of the meeting. A simple majority of those present must vote. All members present, including the nominee and the presiding officer (council member) chairing the meeting, may vote. The member selected to fill the mayoral vacancy will be required to resign his or her council office when sworn in as mayor.

C. Filling Vacancy in Council Office. If one of the council offices is declared to be vacant, council members from the ward where the vacancy exists shall select and submit the name of an individual from that ward for the approval and appointment by a majority of the governing body to fill the vacancy until the next general election. If, however, the ward members are unable to agree on a single name, each shall submit a separate name to the governing body who will make the selection by majority vote. The council president shall set the time frame for submission of names. The nominee(s) must meet all legal requirements pursuant to the state election code and applicable city ordinances to hold office.

D. Mayor Pro Tem. If the office of mayor becomes vacant or the mayor is unable or unavailable to perform the duties of his or her office, the council president, as mayor pro tem, shall occupy the mayor's office until the mayor is able to serve or until a vacancy is declared.

E. Application of this Section. During the pendency of the procedures set forth in this section, all applicable provisions of Section 2.04.050 shall apply. (Ord. No. 3831, § 1, 11-10-08; Ord. 3563 § 1, 2004; 2001 In-house code § 2-8)

2.04.050 Council officers—Standing committees.

A. President and Vice-President. The city council will elect one of its members to be president. The election will be held not sooner than the last regular meeting of the governing body each calendar year and not later than the first regular meeting of the next calendar year. The mayor will conduct the election but may not vote. The mayor will call for nominations and seconds. A motion and second must be made and approved to cease nominations. Nominees will be elected by voice vote with the successful nominee receiving the most votes. Following the election of the council president, the council will elect a vice-president in the same manner the president was elected.

B. Committee Appointments. It shall be the duty of the council president to make committee appointments which will include chairperson of the finance committee, and chairperson of the public services committee. The council president will serve as chairperson of the committee of the whole. The president shall make any other committee and/or task force appointments to fill positions which are created by a majority vote of the council, and the president may make such other appointments as the president deems appropriate.

C. Occupancy of Mayor's Office by Council President. If the office of the mayor becomes vacant, or the mayor is unable or unavailable to perform the duties of his or her office, the council president shall occupy the mayor's office until the mayor is able to serve, or until the vacancy is filled.

D. Performance of Duties by Vice-President. The council vice-president will perform the duties of the council president if the council president is unable or unavailable to serve.

E. Elections for President or Vice-President. The council may hold elections to fill the office of the president or vice-president whenever a majority of the city council declares either office to be

vacant. (Ord. 3462 § 1, 2002: 2001 In-house code § 2-9)

2.04.060 Meetings of the governing body.

Meetings of the governing body shall be held on the first Monday of January after the election of the mayor or council members, and on the second and fourth Mondays of each month thereafter during their term of office; provided, that if a Monday is observed as a legal holiday for city offices, the meeting shall be held on the following day. Regular meetings shall be held at the hour of six p.m. on the second and fourth Mondays, or in unique or unusual circumstances, on such other day and at such other time as the mayor may direct. (Ord. No. 3912, § 1, 1-24-11; Ord. 3755 § 1, 2007: Ord. 3461 § 1, 2002: 2001 In-house code § 2-10)

2.04.070 Special meetings—Notice.

A. Special meetings of the governing body may be called by the mayor, or, in the absence of the mayor, by the mayor pro tem, or a majority of the qualified members of the governing body, in accordance with Wyo. Stat. Section 16-4-404 and Section 15-1-105. Each member of the city council must be given at least twenty-four (24) hours' notice by the city clerk, or designee; provided that the mayor may, in the case of an emergency, call a special meeting of the governing body without regard to the twenty-four (24) hour notice provision contained in this section; and provided further, that all members of the governing body shall be considered to have received proper notice in the event that a special meeting is announced or called at any regular meeting of the governing body.

B. The city clerk, or designee, shall provide twenty-four (24) hours' notice of special meetings in written or oral form to each member of the governing body and local media setting forth the time, place and the business to be transacted at the special meeting. No other business will be considered at a special meeting. (2001 In-house code § 2-11)

2.04.080 Presiding officer—Mayor's vote.

The mayor shall preside at all meetings of the governing body and shall have one vote on all matters coming before the governing body upon which a vote is taken, except as otherwise provided by Wyo. Stat. Section 15-1-108, or this code. (2001 In-house code § 2-12)

2.04.090 Certain officers to attend meetings.

The city clerk, or designee, shall attend all regular and special meetings of the governing body and prepare an official record of all business transacted. Other city officers shall attend meetings as requested by the presiding officer. (2001 In-house code § 2-13)

2.04.100 Presence on dais.

No person, other than the mayor, members of city council, and designated city officers, shall be admitted to the dais unless invited by the mayor or a member of council. (2001 In-house code § 2-14)

2.04.110 Call to order—Roll call.

At the hour appointed for the meeting, the governing body shall be called to order by the presiding officer. The city clerk, or designee, shall roll call the governing body in alphabetical order on a rotation basis, using the last name on the previous roll call as the first name on the next roll call. A quorum is required for the conduct of business. (2001 In-house code § 2-15)

2.04.120 Quorum.

A majority of all the elected members of the governing body constitutes a quorum for the transaction of business; any number may adjourn to compel the attendance of and punish absent members. (2001 In-house code § 2-16)

2.04.130 Executive session.

The governing body may, by a vote of two-thirds of the members present, go into executive session for purposes set out in Wyo. Stat. Section 16-4-405. (2001 In-house code § 2-17)

2.04.140 Rules of order—Modifications—Suspension of rules.

A. Except as controlled by Wyoming Statute, or modified by ordinance duly enacted by the governing body, the 10th Edition of Robert's Rules of Order, newly revised, published by Perseus Publishing, shall govern the proceedings and deliberations of the governing body and its committees.

B. A motion to reconsider may be made by any member of city council who voted with the prevailing side. A motion to reconsider may be made at the same meeting at which the matter to be reconsidered was acted upon. Except in cases where legislation has been vetoed, a motion to reconsider may be made at the next meeting of the governing body at which official business is or may be conducted. The motion to reconsider requires a second, which may be made by any member of the city council. The motion to reconsider is debatable. The governing body may amend the legislation being reconsidered. Passage of a motion to reconsider requires a simple majority vote.

C. Any motion to suspend the rules of order governing proceedings of the governing body shall be made pursuant to Wyo. Stat. Section 15-1-115(c) and Section 15-1-105 and requires an affirmative three-fourths vote of the qualified members of the governing body. (2001 In-house code § 2-18)

2.04.142 Consent agenda.

A. To provide for a more efficient and orderly governmental meeting process, effective March 1, 2005, agendas for regular meetings of the governing body will include a consent agenda format for those items typically considered to be routine, noncontroversial matters in which public comments or inquiries are not anticipated, and for which a member of the governing body would not be required to disclose a potential conflict or abstention from voting.

B. The mayor, city clerk and city attorney will review and determine which agenda items should be included in the consent agenda. Similar to nonconsent agenda items, documentation pertaining to consent agenda items will be provided, in advance, to all members of the governing body and available for public inspection prior to the regular meeting.

1. Matters to be placed on the consent agenda will include referrals and those items that have been previously discussed by the governing body or reviewed at city council standing committees in which sufficient information has been obtained by governing body members that would not require further documentation or explanation, and those that are considered routine or self-explanatory in nature that passage without discussion is likely. Agenda items involving ordinances, public meetings, hearings or public announcements will not be included in a consent agenda.

C. All items listed on a consent agenda are intended to be considered by the governing body as a single item enacted by one motion to approve with vote. The motion shall be nondebatable, unless a member of the governing body requests a procedural clarification, and will have the effect of moving to approve all items designated as being included on the consent agenda. Any member of the governing body present shall have the right to request, upon their own initiative or in response to an audience request, without vote or debate, that any item(s) be removed from the consent agenda. Such item(s) shall be removed from the consent agenda if the request is supported by at least two other members of the governing body. The supporting members may limit their support to one or more, or all of the items. Audience members may request any member of the governing body to remove item(s) from the consent agenda. Prior to calling for a motion to approve, the mayor will inquire whether a member of the governing body wishes to remove any item(s) from the consent agenda. If a request is made to remove an item(s) and required support of two other members is also received, the mayor will announce the item(s) for which a request and the required support was received has been removed and the item(s) so removed will then be acted upon in the normal

agenda sequence as for nonconsent agenda items. Items on the consent agenda for referral to committee are exempt from removal.

1. Approval of a motion to approve the consent agenda shall be fully equivalent to approval, adoption or enactment of each consent agenda item as if each item had been acted upon individually.

D. All items to be considered as part of the consent agenda will be distinctly designated on each official regular meeting agenda with a general explanation of the designation and consent agenda process included. Unless required by state law or other city ordinances, the entitlement of items contained in a consent agenda will not be required to be read into the record by the city clerk prior to the taking of the vote to approve the consent agenda. However, the city clerk will include all consent agenda item entitlements, and the result from the vote to approve the consent agenda, in the official record of proceedings (minutes) of the governing body. (Ord. No. 3830, § 1, 10-27-08; Ord. 3706 § 1, 2006: Ord. 3628 § 1, 2005)

2.04.145 Public participation at meetings.

A. Specific to agenda items for governing body and city council committee meetings, after each agenda item is read, the chair shall call for public comment. During this time, any member of the public may address the item. Comments should be concise, to the point and not be repetitive. When all public comment has been received, the chair will close the public comment period and call for a motion on the item. Thereafter, the elected officials may discuss, consider and debate the item, and the chair may accept additional public comment.

B. All comments on an incidental or subsidiary motion must be limited to the merits of the motion on the floor. (Ord. 3629 § 1, 2005)

2.04.150 Legislation—Ordinances, resolutions and style.

The governing body is authorized to pass ordinances and resolutions. An ordinance is a legislative act prescribing general, uniform and permanent rules of conduct or government, to continue in force until the ordinance is repealed. A resolution is an expression of administrative policy which typically deals with matters of a temporary or special nature.

Every proposed ordinance and resolution to be considered by the governing body shall be introduced by a member of city council.

A. The style of an ordinance shall be: " . . . BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE . . . ".

B. The style of a resolution shall be: " . . . BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE . . . ". (2001 In-house code § 2-19)

2.04.160 Readings; committee reports; amendments; contract approval.

A. Pursuant to Wyo. Stat. Section 15-1-115, every ordinance shall be publicly read on three different days. Public reading may be by title only. At least ten (10) days shall elapse between the introduction and final passage of every ordinance. For an emergency ordinance, the requirements of this section may be suspended by the affirmative vote of three-fourths of the qualified members of the governing body. No franchise may be granted by emergency ordinance. A member of the governing body may request any ordinance be read in full.

B. An ordinance, resolution, approval of a bid for public improvements, contracts or other matters brought before the governing body shall be referred to a city council standing committee prior to final action.

C. An ordinance, resolution, approval of a bid for public improvements, or other matters may be amended by the governing body in whole or in part only after the item has been referred to a standing committee.

D. Contracts requiring governing body approval prior to execution by the mayor are as follows:

1. Public improvements in excess of the amount proscribed by state statutes;

2. Purchase of new motor vehicles;

3. Franchise agreements;

4. Those which generate revenue for the city in excess of seventy-five thousand dollars ($75,000.00);

5. For the sale or trade of city property as specified in state statute;

6. Except that contracts for professional services for seventy-five thousand dollars ($75,000.00) or less shall not require governing body approval prior to execution by the mayor;

E. Notwithstanding the requirements imposed under subsection (D) of this section, any contract previously approved by the governing body shall not require further governing body approval for the contract to be later modified to effectuate a project completion date extension or for a modification that increases the original contract price by less than fifty thousand dollars ($50,000.00), subject to the following conditions:

1. Governing body approval shall be required when the additive sum of one or more contract modifications will exceed fifty thousand dollars ($50,000.00); and

2. Any contract modification to be executed without governing body approval in accordance with this subsection that increases the contract price shall not increase the total price of original contract by more than twenty percent (20%).

F. Any contract or contract modification that does not require governing body approval prior execution under subsections (D) or (E) of this section or Section 12.04.180(B) shall be reviewed by the department of the city treasurer and the city attorney before the contract may be executed by the mayor. (Ord. No. 4502, § 1, 5-8-23; Ord. No. 4462, § 1, 9-12-22; Ord. No. 4290, § 1, 11-12-19; Ord. No. 4279, § 1, 7-22-19; Ord. No. 3831, § 1, 11-10-08; Ord. 3818 § 1, 2008; 2001 In-house code § 2-20)

Editor's note—Ord. No. 4462, § 1, adopted Sept. 12, 2022, amended § 2.04.160 and in doing so changed the title of said section from "Readings—Committee reports—Amendments" to "Readings; committee reports; amendments; contract approval," as set out herein.

2.04.170 Required vote.

Unless otherwise provided by state statute, passage of an ordinance requires the affirmative vote of a majority of the qualified members of the governing body. All other matters require a majority vote of the members present at meetings. Passage of an emergency ordinance requires the affirmative vote of three-fourths of the qualified members of the governing body. (Ord. No. 3831, § 1, 11-10-08; 2001 In-house code § 2-21)

2.04.180 Execution—Effective date.

A correct copy of an ordinance, resolution, or other matters passed by the governing body shall be provided to the city clerk, who will submit it to the mayor for consideration.

A. When an ordinance, resolution or other matter is approved and signed by the mayor, the signature shall be attested to by the city clerk and the seal of the city shall be attached. All approved or effective ordinances and resolutions will be recorded in whole in books designated for same by the city clerk.

B. Ordinances will be published as provided by Wyo. Stat. Section 15-1-116. Ordinances may be effective upon publication or, following publication, on a designated date stated within the ordinance. (2001 In-house code § 2-22)

2.04.190 Mayor's veto—When ordinance becomes law.

A. The mayor is entitled to sign or veto any ordinance, resolution or other matter passed by the governing body. If any ordinance, resolution or other matter is vetoed by the mayor, it may be overridden by a vote of two-thirds of all the qualified members of the city council. The mayor may veto any item or items of any appropriation ordinance and approve the remainder; items vetoed may be overridden.

B. If the mayor neglects or refuses to sign any ordinance, resolution or other matter brought before the governing body, he or she shall return it with written objections at the next regular meeting of the governing body. If the mayor neglects or

refuses to sign any ordinance, resolution or other matter brought before the governing body, he or she shall return it with written objections at the next regular meeting of the governing body. If the mayor neglects or refuses to sign any ordinance, resolution or other matter, or if the mayor's veto is overridden by members of city council, the ordinance, resolution or other matter will become effective without the mayor's signature. The city clerk shall indicate the same and attest to the fact of the passage of the approved action, and attach the seal of the city. (2001 In-house code § 2-23)

2.04.200 Purchasing policy.

A. The intent of the City of Cheyenne Purchasing Policy is to provide guidelines for city elected officials, department directors and city employees who are involved in any segment of the procurement process for their departments or offices. The purpose of the purchasing policy is to clarify and standardize procurement practices, and to provide increased economy in city procurement activities. The cooperation of everyone is essential if the city is to maximize the economic benefit of materials, equipment and services purchased by the city. The purchasing policy expressly applies to elected officials. Violations of the purchasing policy by employees are addressed through the city disciplinary process. Violations by elected officials are addressed by the governing body.

B. The purchasing policy does not answer all questions relating to purchasing, but does provide a foundation for a sound procurement system. The material may be revised occasionally as changes occur in policy or state law, federal law, the purchasing field, or in the economy.

C. The purchasing policy describes procedures that should be followed prior to the sale, lease, or other disposition of real property (land and/or buildings) owned by the city.

D. The purchasing policy is effective immediately upon issuance and supersedes all previous purchasing instructions or directives. (Ord. No. 4298, § 1, 03-23-20)

Chapter 2.08

CITY OFFICERS AND EMPLOYEES GENERALLY

Sections:

2.08.010 **Appointment and term—Removal—Vacancy.**

2.08.020 **Oath—Administration.**

2.08.030 **Bonds—Amounts.**

2.08.040 **Duties of city attorney.**

2.08.050 **Duties of other appointed officers.**

2.08.060 **City employees and immediate family members; conflict of interest policy.**

2.08.010 Appointment and term—Removal—Vacancy.

A. At the first regular meeting of the governing body in the official year following the city election, or at such other times as needed to fill an appointed position set forth in this section, there shall be appointed by the mayor, by and with the consent of the city council, the following officers: city clerk, city treasurer, city engineer, city attorney, fire chief, police chief, public works director, planning and development director, community recreation and events director, any and all judges of the municipal court and juvenile court, and such other officers and employees as are necessary for the efficient operation of the city.

B. Each officer appointed pursuant to subsection 2.28.010(A), shall hold office for a term as provided in the certificate of appointment, which certificate shall specify the beginning and ending dates of the term of appointment.

C. The mayor may remove any appointed officer for incompetency or neglect of duty.

D. If a vacancy occurs in any appointed office for any reason, the new appointment shall be only for a period to complete the unexpired term of that officer. (Ord. No. 4472, § 1, 11-14-22; Ord. No. 4460, § 2, 9-12-22; Ord. No. 4182, § 1, 6-12-17; Ord. No. 4088, § 1, 9-14-15; Ord. 3469 § 1, 2002: 2001 In-house code § 2-24)

2.08.020 Oath—Administration.

A. Each person appointed to any office under this code or other ordinances of the city shall, before performing the duties of such office, subscribe an oath or affirmation to honestly and faithfully perform and discharge the duties of the office to the best of his or her ability.

B. The city clerk, assistant city clerk, mayor and mayor pro tem may administer all oaths pursuant to Wyo. Stat. Section 1-2-102, and Sections 15-1-108 through 109. (2001 In-house code § 2-25)

2.08.030 Bonds—Amounts.

The city treasurer or other city officials and employees having custody of money belonging to the city, shall, before performing respective duties, be required to furnish a bond pursuant to Wyo. Stat. Section 15-1-124. The bond shall be filed with the city clerk. The bond shall be in an amount required by the governing body with the cost paid from the city's budget. (2001 In-house code § 2-26)

2.08.040 Duties of city attorney.

It is the duty of the city attorney, or designee, to attend all meetings of the governing body as requested; to appear and prosecute for and defend the city in all cases in which it is a party, and to render other professional services as may be required by the mayor, members of city council, or by law. (2001 In-house code § 2-29)

2.08.050 Duties of other appointed officers.

The duties of other appointed officers shall be defined by the mayor and as provided in provisions of this code, other city ordinances pertaining to their respective departments, or by state law. (2001 In-house code § 2-30)

2.08.060 City employees and immediate family members; conflict of interest policy.

A. In accordance with Wyo. Stat. Section 15-1-127(c), each employee of the city and any member of his or her immediate family shall be governed by the conflict of interest policy specified

under this section. The human resources department for the city of Cheyenne shall consult with the city attorney and other appropriate parties as designated by the director of the department and adopt and promulgate the policy. The purpose of the conflict of interest policy required under this section shall be to recognize that every city employee should seek to prevent conflicts between private interests and public duties, and to foster integrity in public service and promote trust and confidence by the general public in that service. The policy required under this section shall include provisions governing:

1. Financial relationships between an employee of the city or any member of his or her immediate family and any outside party that could provide the outside party a financial benefit that is only available due to the relationship;

2. Circumstances whereby employees with power or influence over city business or decision making could unduly favor relatives, friends or associates with employment opportunities with the city of Cheyenne or more favorable supervisory conditions if the relative, friend or associate is currently employed by the city;

3. The acceptance of gifts by city employees, including establishing a maximum monetary gift value threshold not to exceed fifty dollars ($50.00);

4. The ability of a city employee to obtain secondary employment outside his or her employment with the city of Cheyenne, and if permitted, provisions governing reporting requirements for employees who have obtained secondary employment outside of the city of Cheyenne;

5. The administration of a reporting process whereby employees may submit concerns or complaints regarding potential conflicts of interest of an employee of the city or any member of his or her immediate family. The reporting process required under this paragraph shall implement mechanisms to combat retaliation against any employee submitting a conflict of interest concern or complaint;

6. Any necessary and appropriate exemptions whereby an employee or any member of his or her immediate family may not be subject to the requirements of the conflict of interest policy required under this section; and

7. Other circumstances as specified by the director of the human resources department in consultation with the city attorney and other appropriate parties as designated by the director.

B. The director of the human resources department for the city of Cheyenne shall make the conflict of interest policy required under this section available to all employees of the city upon request and publish the policy on the city's website. (Ord. No. 4521, § 1, 8-28-23)

Chapter 2.12

CITY CLERK

Sections:

2.12.010 Duties.

2.12.010 Duties.

Duties of the city clerk are to:

A. Safely keep the corporate seal, papers, records and books belonging to the city;

B. Attend official meetings of the governing body, record the minutes, which, after approval by the governing body, shall be entered into a journal signed by the mayor, attested by the city clerk, with the seal of the city affixed;

C. Preserve records of all ordinances and resolutions passed by the governing body;

D. Attest to the signature of the mayor and affix the seal of the city to the following:

1. All records of proceedings, or minutes, from official meetings of the governing body as required by state law,

2. All ordinances and resolutions,

3. All bonds and business licenses and permits issued, including liquor licenses and permits,

4. Other documents as required;

E. Issue business licenses and permits, including liquor licenses and permits, and cemetery certificates and permits in accordance with city ordinances;

F. Perform other duties as may be required by the mayor, members of city council, or by law;

G. Act as assistant city treasurer, in which capacity the clerk shall assist the city treasurer, and may sign checks and issue warrants against the funds of the city. In the absence or disability of the city treasurer, the city clerk may perform all the duties and exercise all powers of the city treasurer as prescribed by state law and city ordinances. (2001 In-house code § 2-28)

Chapter 2.16

CITY TREASURER

Sections:

2.16.010 Duties.

2.16.010 Duties.

Duties of the city treasurer are to:

A. Receive all money derived for the benefit of the city, from every source, and issue an official receipt;

B. Keep permanent, accurate and complete accounts and records of all receipts, orders and warrants;

C. If, at any time, any orders and warrants are not paid for lack of funds, the city treasurer shall endorse the date of presentation across the back, and the reason for nonpayment; the holder of such order or warrant is entitled to receive interest from such date until paid;

D. Endorse upon or attach to every bond or other evidence issued by the city pursuant to law, a certificate that it is within the lawful debt limit of the city and is issued pursuant to law, and sign such certificates as city treasurer;

E. Prior to the appointment or reappointment of any person to a city board, council or commission, review whether that person is overdue on any payments owed to the city, has outstanding city debts for services received, or is otherwise liable for any city fines or fees. The treasurer shall report the findings of this review to the governing body for consideration on whether to approve or deny the appointment or reappointment; and

F. Perform other duties as may be required by the mayor, members of city council, or by law. (Ord. No. 4605, § 1, 12-23-24; 2001 In-house code § 2-27)

Chapter 2.20

POLICE DEPARTMENT

Sections:

2.20.010 Purpose and authority—General provisions.

2.20.020 Composition.

2.20.030 Duties and appointments governed by civil service commission.

2.20.040 Chief of police—Appointment and bond.

2.20.050 Chief of police—Duties.

2.20.060 Chief of police—Custody of department property.

2.20.070 Police officers subject to orders of mayor and chief of police only.

2.20.080 Reserved.

2.20.010 Purpose and authority—General provisions.

A. The purpose of this chapter is to describe the administrative establishment of the Cheyenne police department and duties and powers of police officers, under authority of the city, to monitor and enforce state laws and city ordinances within their jurisdiction.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xxxiv) to exercise its corporate powers and authority for the benefit of public health, safety and welfare, and to establish a city police department and provide for job descriptions of department personnel.

C. The chief of police and all members of the city police department shall comply with the city police department civil service commission rules and regulations, on file with the office of city clerk, and enforce all laws, city ordinances and orders of the mayor in order to preserve peace, law and order and protect the rights of persons and property. (2001 In-house code § 35-1)

2.20.020 Composition.

The city police department consists of the mayor, the chief of police and all qualified and appointed police officers employed by the city. (2001 In-house code § 35-2)

2.20.030 Duties and appointments governed by civil service commission.

The procedure for appointing sworn officers of the police department and provide for pensions and benefits are defined by Wyo. Stat. Sections 15-5-101 through 314, city ordinances, and the rules and regulations of the city police department civil service commission. Commission rules and regulations are incorporated within this chapter as if fully incorporated. (2001 In-house code § 35-3)

2.20.040 Chief of police—Appointment and bond.

The chief of police is appointed by the mayor in accordance with Wyo. Stat. Section 15-3-204 and city code Section 2.08.010. The chief of police is required to furnish a bond as provided by Section 2.08.030. The chief of police is subject to the orders of the mayor only. (2001 In-house code § 35-4)

2.20.050 Chief of police—Duties.

The chief of police is authorized to perform the following duties:

A. Make and Order Arrests. The chief of police is authorized to make and order arrests for any violation of this code, other city ordinances or the laws of the state, and bring the offender to trial before the proper officer.

B. Keep a Record of Arrests. The chief shall keep, or cause to be kept, permanent records of the police department, listing all persons arrested by police, the dates of arrests, the offenses for which each arrest is made and a complete record of all money and other personal property found on persons who have been arrested. (Ord. No. 4459, §§ 1, 2, 9-12-22; 2001 In-house code § 35-5)

2.20.060 Chief of police—Custody of department property.

The chief of police has custody and control of all books, records, equipment and other property belonging to the police department and of all stolen or other goods which have been seized and retained. Upon the expiration of his or her term of office, resignation or removal from office, he or she shall surrender to his or her successor all city records and property in his or her possession and all stolen or other goods which have been seized and retained by the police department. (2001 In-house code § 35-6)

2.20.070 Police officers subject to orders of mayor and chief of police only.

Police officers of the city, in the discharge of their duties, are subject to the orders of the mayor and chief of police only. (2001 In-house code § 35-7)

2.20.080 Reserved.

Editor's note—Ord. No. 4459, § 2, adopted Sept. 12, 2022, repealed § 2.20.080, which pertained to special officers appointed by mayor and derived from 2001 In-house code § 35-35.

Chapter 2.24

RESERVED*

*__Editor's note__—Ord. No. 4459, § 2, adopted Sept. 12, 2022, repealed Ch. 2.24, §§ 2.24.010, 2.24.020, which pertained to police pension board and fund and derived from 2001 In-house code §§ 2-73, 35-8.

Chapter 2.28

RESERVE POLICE OFFICERS

Sections:

2.28.010	**Authorization; program requirements.**
2.28.020	**Reserve coordinator; established; duties.**
2.28.030	**Purpose.**
2.28.040	**Supervision.**
2.28.050	**Reserved.**
2.28.060	**Reserved.**
2.28.070	**Oath of office.**
2.28.080	**Reserved.**
2.28.090	**Reserved.**
2.28.100	**Reserved.**
2.28.110	**Reserved.**
2.28.120	**Reserved.**
2.28.130	**Reserved.**
2.28.140	**Dismissal; reserve police officers.**
2.28.150	**Honorary appointments prohibited.**
2.28.160	**Reserved.**

2.28.010 Authorization; program requirements.

A. The chief of police may appoint adult residents of Laramie County to serve as part-time police officers or reserve police officers, to serve in accordance with this chapter and under the rules, orders and regulations of the Cheyenne Police Department. Any rules, orders or regulations enacted under this chapter shall include provisions regarding:

1. Minimum qualification standards for appointment as a part-time or reserve police officer that shall include:

a. Prior law enforcement experience either as a part-time police officer, reserve police officer, military police officer or security police officer;

b. Certification by the Peace Officer Standards and Training Commission under Title 9, Chapter 1, Article 7 of Wyoming Statutes or by a law enforcement certifying authority of another state that has reciprocity with the state of Wyoming;

c. Demonstrated knowledge of the duties and obligations of a Wyoming police officer by passing a standard examination which may be written or oral, as prescribed by the chief of police.

2. Defined scopes of employment for part-time and reserve police officers;

3. Minimum initial and continuing training requirements, which shall conform to best practices for the training of part-time and reserve police officers;

4. Police uniform and equipment requirements.

B. In addition to the requirements imposed by subsection (A) of this section:

1. A part-time police officer shall only be compensated in accordance with the rules, orders and regulations of the Cheyenne police department enacted under this chapter; and

2. Reserve police officers shall be considered volunteers and no reserve police officer shall be qualified to receive any salary or other compensation from the city of Cheyenne or the police department.

C. Each part-time police officer and reserve police officer appointed in accordance with this chapter shall be eligible for coverage under the Wyoming Worker's Compensation Act. (Ord. No. 4460, § 2, 9-12-22; 2001 In-house code § 35-19)

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, amended § 2.28.010 and in doing so changed the title of said section from "Authorization" to "Authorization; program requirements," as set out herein.

2.28.020 Reserve coordinator; established; duties.

There is established a reserve coordinator within the Cheyenne police department, which shall be a

department staff member designated by the chief of police. The reserve coordinator shall be responsible for:

A. Coordinating with the police department training officer in keeping and maintaining all reserve police officer training and personnel records;

B. Coordinating all work assignments for each reserve police officer with each reserve police officer's direct supervisor; and

C. Other assignments as directed by the chief of police. (Ord. No. 4460, § 2, 9-12-22; 2001 In-house code § 35-20)

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, amended § 2.28.020 and in doing so changed the title of said section from "Definition of reserve coordinator" to "Reserve coordinator; established; duties," as set out herein.

2.28.030 Purpose.

The purpose of appointing part-time and reserve police officers is to preserve the public peace and promote general welfare of the city by providing authority to certain persons to assist police officers in enforcing city ordinances and state laws. (Ord. No. 4460, § 2, 9-12-22; 2001 In-house code § 35-21)

2.28.040 Supervision.

The chief of police shall be in direct charge of part-time and reserve police officers but may delegate supervision authority to full-time police officers as necessary for the functions of the police part-time and reserve system. (Ord. No. 4460, § 2, 9-12-22; 2001 In-house code § 35-22)

2.28.050 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.050, which pertained to qualifications for appointment and derived from 2001 In-house code § 35-23.

2.28.060 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.060, which pertained to training and derived from 2001 In-house code § 35-24.

2.28.070 Oath of office.

Every person appointed by the chief of police as a part-time or reserve police officer shall be sworn to faithful performance of their duties as defined by the chief of police. (Ord. No. 4460, § 2, 9-12-22; 2001 In-house code § 35-25)

2.28.080 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.080, which pertained to reserve duty assignments and derived from 2001 In-house code § 35-26.

2.28.090 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.090, which pertained to uniforms and equipment and derived from 2001 In-house code § 35-27.

2.28.100 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.100, which pertained to weapons and derived from 2001 In-house code § 35-28.

2.28.110 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.110, which pertained to chain of command and derived from 2001 In-house code § 35-29.

2.28.120 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.120, which pertained to compliance with police department regulations and derived from 2001 In-house code § 35-30.

2.28.130 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.130, which pertained to official status and derived from 2001 In-house code § 35-31.

2.28.140 Dismissal; reserve police officers.

The chief of police shall have the authority to dismiss any reserve police officer upon a finding that such dismissal is in the best interest of the city. (Ord. No. 4460, § 2, 9-12-22; 2001 In-house code § 35-32)

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, amended § 2.28.140 and in doing so changed the title of said section from "Dismissal" to "Dismissal; reserve police officers," as set out herein.

2.28.150 Honorary appointments prohibited.

The chief of police shall not appoint any person as a part-time police officer or as a reserve police officer who does not, or will not, serve as an active police officer in accordance with this chapter and the rules, orders and regulations of the Cheyenne Police Department. (Ord. No. 4460, § 2, 9-12-22; 2001 In-house code § 35-33)

2.28.160 Reserved.

Editor's note—Ord. No. 4460, § 2, adopted Sept. 12, 2022, repealed § 2.28.160, which pertained to maintaining reserve officer status and derived from 2001 In-house code § 35-34.

Chapter 2.29

COMMUNITY SERVICE OFFICERS

Sections:

2.29.010	**Purpose—Authority—General provisions.**
2.29.020	**Qualifications and training.**
2.29.030	**Appointment.**
2.29.040	**Oath of office.**
2.29.050	**Additional responsibilities of Municipal Security Officers.**

2.29.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to recognize and approve the existing community service officers (CSO) program implemented by the Cheyenne police department, and set forth the qualifications for residents interested in serving as community service officers.

B. The chief of police may appoint residents of Laramie County as a CSO to serve under the rules, orders and regulations of the Cheyenne police department. CSOs may be volunteers or, at the discretion of the police chief, paid employees.

C. The CSO program supports the functions of the police department by assisting police officers in the performance of their duties that do not require peace officer statutory authority and are considered to be community care-taking functions. CSOs may enforce city ordinances involving municipal violations following an investigation of a traffic crash, parking violations, animal control violations and nuisance control violations, at the direction of the police chief or his or her designee.

D. A subset of the CSO program is further created to provide security services for the protection of life, limb and property at municipal facilities and surrounding premises. This subset shall be known as Municipal Security Officers (MSOs). (Ord. No. 4322, § 1, 8-10-20; Ord. No. 4177, § 1, 5-8-17; Ord. 3669 § 1, 2005: Ord. 3525 § 1 (part), 2003)

2.29.020 Qualifications and training.

A. The following criteria must be met by CSO/MSO applicants to be considered for appointment:

1. CSOs must be at least eighteen (18) years of age; MSOs must be at least twenty-one (21) years of age;
2. High school diploma or recognized equivalent;
3. Physically able to perform CSO/MSO functions as directed;
4. No felony convictions; and
5. Valid Wyoming driver's license.

B. The chief of police, or designee, will identify, develop and implement an appropriate training program to ensure a CSO/MSO is capable of performing required duties in a professional and competent manner.

C. MSOs must complete a required forty-hour training on the use of firearms and complete a minimum of six firearm training days each year.

D. MSOs may, at the direction of the chief of police, be armed with firearms after completion of all MSO basic training as prescribed by the chief of police. (Ord. No. 4322, § 2, 8-10-20; Ord. 3797 § 1, 2008; Ord. 3525 § 1 (part), 2003)

2.29.030 Appointment.

Applicants for the volunteer CSO program will be selected for appointment, and retained within the program, at the sole discretion of the chief of police. The chief may establish policies outlining criteria for selection that may include a written test, psychological and medical screening, and oral interviews. (Ord. 3525 § 1 (part), 2003)

2.29.040 Oath of office.

Every person appointed by the chief of police as a community service officer shall first be administered an oath acknowledging their intent to fulfill the performance of their duties as defined by the chief of police. The oath may be administered by the mayor, city clerk or deputy city clerk and shall be on file with the office of the city clerk. (Ord. 3525 § 1 (part), 2003)

2.29.050 Additional responsibilities of Municipal Security Officers.

A. At the Municipal Court Building, MSOs may engage in the following additional functions:

1. Confiscate property including contraband and prohibited items as described and itemized by the standing order of the senior municipal court judge.

2. Transport inmates and prisoners within the court facility.

3. MSOs may transport inmates and prisoners to and from detention facilities and to and from the Cheyenne Municipal Court.

B. In order to protect life, limb and property at municipal facilities and surrounding premises, MSOs have the authority to:

1. Detain an individual, only to the extent necessary, to prevent injury to persons or damage to property.

2. Act in the defense of others to prevent injury. (Ord. No. 4322, § 3, 8-10-20)

Chapter 2.32

FIRE DEPARTMENT

Sections:

2.32.010 **Adoption and applicability of rules and regulations of fire department civil service commission.**

2.32.020 **Department personnel.**

2.32.030 **Protection of property from fire and water.**

2.32.040 **Protection of fire department apparatus.**

2.32.010 Adoption and applicability of rules and regulations of fire department civil service commission.

The qualifications, appointment and duties of members of the city fire department will be in accordance with the rules and regulations of the city's fire department civil service commission. The rules and regulations, on file in the office of city clerk, are made an adjunctive part of this section by reference as though incorporated in its entirety. (2001 In-house code § 17-4)

2.32.020 Department personnel.

A. The fire department consists of the chief of the department, division chiefs, battalion chiefs, lieutenants, engineers and firefighters as determined by the mayor and city council.

B. The chief of the fire department shall be appointed by the mayor, in accordance with state law and Chapter 2.08 of this code. All other officers and members of the department shall be appointed by the chief of the fire department from applicants certified by the fire department civil service commission. Their compensation will be fixed by the governing body.

C. In case of an emergency, the mayor may, with approval of city council, appoint additional personnel necessary for the efficient operation of the department. If no applicants are available from the eligibility list, the mayor will employ, temporarily, such other persons necessary to meet the needs of the emergency. (Ord. No. 4466, § 1, 9-26-22; Ord. No. 4252, § 1, 12-10-18; Ord. No. 4006, § 1, 11-12-13; 2001 In-house code § 17-5)

2.32.030 Protection of property from fire and water.

When personal property or merchandise is in danger of damage from fire or water, members of the department not directly engaged in extinguishing the fire or saving life will, under the direction of the chief or his or her assistants, remove or place salvage covers over the property and use all diligence to prevent damage or loss. (2001 In-house code § 17-6)

2.32.040 Protection of fire department apparatus.

It is the duty of all members of the fire department to prevent all persons who are not members of the department from handling or riding on apparatus belonging to the department, without permission of the chief. (2001 In-house code § 17-7)

Chapter 2.36

BUILDING SAFETY DEPARTMENT

Sections:

2.36.010 Administration—Authority of staff.

2.36.020 Violations—Penalties.

2.36.010 Administration—Authority of staff.

A. The city's chief building official is the chief administrative and enforcement officer of the building safety department. The building official is the individual occupying the position of chief building official, also referred to as code official. The chief building official is hereby authorized and directed to interpret and enforce the provisions of Chapters 15.04 through 15.48, and Chapter 5.44 of this code. The chief building official shall issue necessary notices and/or orders to ensure compliance with this title.

B. Building safety department staff, under the direction of the chief building official, will perform all plan review and building inspection functions including, but not limited to, issuing building, electrical, plumbing, mechanical and other permits pertinent to building construction, whether public or private buildings; compile affiliated building records, and ensure the collection of plan review, building permit, inspection and related fees. (Ord. No. 3862, § 1, 6-22-09; 2001 In-house code § 10-1(c))

2.36.020 Violations—Penalties.

A. The chief building official may cause complaints or citations to be issued to persons for violating the provisions of Chapters 15.04 through 15.48, and/or Chapter 5.44 of this code.

B. Any person who violates the provisions of Chapters 15.04 through 15.48, and/or Chapter 5.44 of this code, will be deemed guilty of a misdemeanor, punishable pursuant to general penalty provisions set forth in Chapter 1.24 of this code. (Ord. No. 3862, § 1, 6-22-09)

Chapter 2.40

MUNICIPAL COURT

Sections:

2.40.010 **Purpose—Authority—General provisions.**

2.40.020 **Appointment of judges—Powers generally; assessment of costs and fees; waiver.**

2.40.030 **General penalty.**

2.40.035 **Traffic school—Administrative fee.**

2.40.040 **Execution of judgments—Imprisonment upon failure to pay fine.**

2.40.050 **Complaints—Procedure.**

2.40.060 **Contempt of court.**

2.40.070 **Posting of bail bonds.**

2.40.080 **Failure to appear.**

2.40.090 **Action against sureties.**

2.40.100 **Public defender and representation of needy persons; determination of need.**

2.40.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to set forth the jurisdiction of the municipal and juvenile court and describes its administration, procedures and authority pursuant to city ordinance and state law.

B. Authority is granted cities and towns by Wyo. Stat. Section 5-6-101 to prosecute violations of city ordinances. Authority of appointed judges of the municipal and juvenile court is governed by the laws of the state of Wyoming that regulate the practice and proceedings in cases before it, and relevant city ordinances. Judges have exclusive jurisdiction and will hear and determine all cases involving violations of this code and other city ordinances. (2001 In-house code § 15-1)

2.40.020 Appointment of judges—Powers generally; assessment of costs and fees; waiver.

A. The mayor, with consent of city council, will appoint municipal judges pursuant to Wyo. Stat. Section 5-6-103, who will preside at all regular and special sessions of the municipal and juvenile court. The senior municipal court judge is responsible for the administration of the municipal court and the juvenile court of the city.

B. Municipal court judges have the same power as the district court in the issuance of warrants, search warrants, subpoenas or other process necessary, and may fine or imprison for contempt of court or to process issued by him or her.

C. Municipal court judges may assess costs in all trials before the court as may be necessary or deemed expedient, not to exceed the statutory maximum authorized by Wyo. Stat. 5-6-108(a), with the costs collected to be submitted to the city treasurer.

D. Municipal court judges shall assess the following fees:

1. A court automation fee in the amount provided by Wyo. Stat. 5-6-108(a)(i) to be paid by every person guilty of a violation of a city ordinance. Any fee collected under this paragraph shall be submitted to the city treasurer. The city treasurer shall retain the amount authorized under Wyo. Stat. 5-6-204 for the purpose of defraying costs and expenses related to establishing and maintaining an electronic citation system. The remaining portion of the fee shall be remitted to the judicial systems automation account administered by the Wyoming Supreme Court and as created by Wyo. Stat. 5-2-120; and

2. A fee in the amount provided by Wyo. Stat. 5-6-108(a)(ii) to provide indigent individuals with civil legal services in accordance with Wyo. Stat. 5-2-121. Any fee collected under this paragraph shall be submitted to the city treasurer. The city treasurer shall remit the entirety of the fee to the indigent civil legal services account administered by the Wyoming Supreme Court and as created by Wyo. Stat. 5-2-121.

E. Upon assessment of the fees required by subsection (D) of this section, a municipal court judge may waive imposition of either or both of the fees upon a finding on the record that the defendant has an inability to pay the fees or that imposition of the fees constitutes an undue hardship.

F. When a defendant is acquitted in any case brought before the court, the informer or prosecutor may, in the discretion of the municipal judge, be required to pay the costs, if it appears that the prosecution was instituted vexatiously, maliciously or without reasonable cause, and judgment shall be so rendered. (Ord. No. 4452, § 1, 7-25-22; 2001 In-house code § 15-2)

Editor's note—Ord. No. 4452, § 1, adopted July 25, 2022, amended § 2.40.020 and in doing so changed the title of said section from "Appointment of judges—Powers generally" to "Appointment of judges—Powers generally; assessment of costs and fees; waiver," as set out herein.

2.40.030 General penalty.

Whenever in this code or in any ordinance of the city or rule, regulation or order promulgated by any officer or agency of the city, under authority invested in him or her or it by law or ordinance, any act is prohibited or is declared to be unlawful or the doing of any act is required, or the failure to do any act is declared to be unlawful and no specific penalty is provided, the violation of such code, ordinance, rule or regulation is punishable by a fine not to exceed seven hundred fifty dollars ($750.00) and costs, or imprisonment in jail for a period not to exceed six months, or both. Each day a violation continues will constitute a separate offense. If a violation is designated as a nuisance by provisions of the city code, it may be summarily abated by the police department. (2001 In-house code § 15-3)

2.40.035 Traffic school—Administrative fee.

A. The municipal court judge may, in his or her discretion, defer or postpone court proceedings of persons cited for violations of certain traffic violations regulated by city code for the purpose of offering individuals the opportunity to attend and successfully complete a court approved traffic school or defensive driving education class which are designed to improve safety and habits of drivers.

B. The municipal court judge is authorized to impose an administrative fee in an amount not to exceed fifty dollars ($50.00) per person to provide for administration of this program. (Ord. No. 4120, § 1, 2-22-16; Ord. 3560 § 1, 2004)

2.40.040 Execution of judgments—Imprisonment upon failure to pay fine.

Upon rendition of judgment against any defendant for violation of any provision of this code or other city ordinance, the municipal judge shall make an order, entering the same upon the docket, that, if the defendant neglects or refuses to satisfy such judgment and costs of suit, the defendant will be confined in jail, one day for each dollar ($1.00) of the judgment and costs, but not to exceed three months for any one offense. Executions will be issued immediately upon rendition of the judgment. (2001 In-house code § 15-4)

2.40.050 Complaints—Procedure.

A. Actions for violations of this code or other city ordinances may be commenced by filing with the municipal court judge a statement or complaint stating the nature of the offense, signed by the city attorney, a member of the police department or any reasonable citizen of the city. The complaint will be made in accordance with forms in use by the police department. If any person shall, on oath, make complaint that any one has violated any provision of the code or other city ordinance, setting forth the section of the code or other city ordinance allegedly violated, the municipal court judge may issue a warrant for the apprehension of the offender.

B. No action before the court will be dismissed for any defect of form in the statement or complaint if it substantially sets forth the nature of the violation alleged, so as to give the defendant notice of the charge he or she will be required to

answer. Such statement or complaint may include several persons charged with the same offense. (2001 In-house code § 15-5)

2.40.060 Contempt of court.

A. It will be unlawful for persons to knowingly and willfully engage in any of the following types of conduct:

1. Disorderly, contemptuous, or insolvent behavior toward a municipal judge which tends to interrupt proceedings or to impair the respect due the court;

2. Any breach of peace, noise, or disturbance, tending to interrupt the official proceedings of a municipal judge;

3. Resistance or disobedience to any lawful order or process made, issued or served by a municipal court;

4. Refusal to be sworn or refusal to answer any pertinent or proper questions;

5. Repeatedly filing complaints which are frivolous or without merit.

B. Persons found guilty of contempt by the municipal judge may be fined not more than seven hundred fifty dollars ($750.00) for each offense, to which may be added court costs, or imprisonment not to exceed six months for each offense, or both. (2001 In-house code § 15-6)

2.40.070 Posting of bail bonds.

Any person arrested for an offense under any provision of this code may be admitted to bail upon posting a bond to the city, in such sum as shall be deemed proper, conditioned that he or she will appear upon a day and at a time named before the municipal judge and answer the accusation for which he or she has been arrested, and will not depart the court without leave. The municipal judge may, in his or her discretion, admit to bail the person so arrested upon the execution of a recognizance to appear in municipal court, signed by two sureties, each of whom shall swear under oath that he or she is worth double the amount of the recognizance over and above all debts, liabilities and exemptions, and has property equal to such amount in the city. (2001 In-house code § 15-7)

2.40.080 Failure to appear.

If any defendant fails to appear according to the conditions of the bond provided for in this chapter or appearing, departs the court without leave, the municipal judge may enter judgment against him or her and his or her sureties for the penalty of such bond. In addition to the charge that is defaulted against the defendant, the court may also render a separate judgment for the defendant's failure to appear. Any plaintiff or complaining witness who is given notice to appear in municipal court, but fails to appear, may also have judgment rendered against them for failure to appear. The judge may assess court costs against any party. (2001 In-house code § 15-8)

2.40.090 Action against sureties.

Upon entering judgment as provided in Section 2.40.080, the municipal judge shall issue process on behalf of the city, against the parties liable on such bond, requiring them to appear before him or her on a day to be mentioned therein and show cause, if any, why judgment should not be confirmed against them, and execution issued on such judgment.

Any judgment may be set aside by the municipal judge if the defendant personally appears before him or her at the time named in such process and shows good cause for setting aside the judgment. The sureties in such bond may appear before the municipal judge and make the same defense that is allowed for the nonappearance of the principal. (2001 In-house code § 15-9)

2.40.100 Public defender and representation of needy persons; determination of need.

A. The municipal court shall appoint a public defender to provide legal representation to any needy person who is formally charged with having committed a jailable offense if:

1. The defendant requests counsel; or

2. The court, on its own motion or otherwise, orders the appointment of a public defender and the defendant does not affirmatively waive or reject, on the record, the opportunity to be represented by a public defender in the proceeding.

B. The determination of whether a person is a needy person shall be deferred until his or her first appearance or arraignment in court, whichever is earlier. Thereafter, the court shall determine, with respect to each proceeding, whether he or she is a needy person. At the person's initial appearance or arraignment, whichever is earlier, the court shall advise any defendant who is a needy person of his or her right to be represented by a public defender. The court shall further explain to the needy person the possibility that he or she may be ordered to reimburse the city for the costs associated with his or her legal representation. For purposes of this section, a probation revocation or proceeding to correct or modify a sentence is a separate proceeding. The determination of need shall be based on a separate application submitted at the time of each proceeding.

C. In determining whether a person is a needy person and in determining the extent of his or her inability to pay, and, in the case of an unemancipated minor, the inability to pay of his or her custodial parent or another person who has a legal obligation of support, the court shall consider the standards set forth in subsections (D) and (E) of this section and Rule 44(d), Wyoming Rules of Criminal Procedure. Release on bond or bail does not necessarily prevent a person from being determined to be needy. In each case the person, subject to the penalties for perjury, shall certify in writing, or by other record, the material factors relating to his or her ability to pay as the court prescribes.

D. The following income standards shall be used to determine whether a person is needy for purposes of this section:

1. A person whose annual gross income is less than one hundred twenty-five percent (125%) of the current federally established poverty level for his or her immediate family unit is needy;

2. A person whose annual gross income is between one hundred twenty-five percent (125%) and two hundred eighteen percent (218%) of the current federally established poverty level for his or her immediate family unit may be deemed needy; and

3. A person whose annual gross income is greater than two hundred eighteen percent (218%) of the current federally established poverty level for his or her immediate family unit shall not be deemed needy under this section.

E. Notwithstanding subsection (D) of this section, a person shall be presumed needy if:

1. He or she receives at least one of the following types of public assistance:

a. Temporary Assistance for Needy Families (TANF);

b. Emergency Aid to Elderly, Disabled and Children (EAEDC);

c. Poverty related veteran's benefits;

d. Supplemental nutrition assistance program (SNAP);

e. Medicaid; or

f. Supplemental Security Income (SSI).

F. In every case in which a person eighteen (18) years of age or over has received services from a public defender appointed under this section, the presiding judge shall determine whether the person is able to provide any funds towards payment of part or all of the cost associated with such services. If the person is not able to provide any funds towards payment of costs, the court shall enter a specific finding on the record. If the court determines the person is able to provide any amount as reimbursement, the court shall order the person to reimburse the city for all or part of the costs of the services provided or shall state on the record the reasons why an order for reimbursement was not entered. Where a person is initially provided with a public defender, but subsequently retains private counsel, the court may order the person to reimburse the city for the services already provided. All reimbursements under this section shall be made through the clerk of court and thereafter remitted to the city treasurer.

G. As used in this section:

1. "Jailable offense " means:

a. Any misdemeanor under the laws of the city of Cheyenne for which incarceration as a punishment is a practical possibility, provided, however, that a public defender need not be appointed if the judge, at the initial appearance or arraignment, whichever is earlier, determines and states on the record that he or she will not sentence the defendant to any period of imprisonment if the defendant is convicted of the misdemeanor; or

b. Any misdemeanor offense under the laws of the city of Cheyenne, a conviction of which is a "misdemeanor crime of domestic violence" as defined in 18 U.S.C. § 921(a)(33), and which may therefore result in the disqualification of the person to possess firearms pursuant to the provisions of 18 U.S.C. §§ 922(g)(9) and 924(a)(2), regardless of the determination of the judge that he or she intends not to impose a term of incarceration for the stated offense.

2. "Needy person" means a person who at the time of his or her need of an attorney is unable to provide for the full payment of an attorney and all other necessary expenses of representation without prejudicing his or her financial ability to provide basic economic necessities for himself or herself, or his or her family, considering the person's available funds and the anticipated cost of the attorney. (Ord. No. 4554, § 1, 3-11-24)

Chapter 2.44
JUVENILE COURT

Sections:

2.44.010 Established—Jurisdiction.
2.44.020 Juvenile judge—Appointment and qualifications.
2.44.030 Juvenile judge—Powers generally.
2.44.040 Juvenile counselor—Appointment, qualifications and duties.
2.44.050 Arrest of juvenile—Procedure.
2.44.060 Arrest of juvenile—Detention.
2.44.070 Pre-court juvenile diversion.
2.44.080 Trials of juvenile offender—Conduct generally.
2.44.090 Imposition of sentence.
2.44.100 Postponement of sentencing—Probation.
2.44.110 Appeal from judgment of juvenile court.
2.44.120 Confinement of juvenile offenders—Visits.
2.44.130 Consultation with parents of juveniles.
2.44.140 Interfering with order of judge, encouraging juvenile to disregard probation, violate law, prohibited.
2.44.150 Parents of juvenile offenders.

2.44.010 Established—Jurisdiction.

There is established a juvenile court of the city, which is a separate division of the municipal court. The juvenile court has concurrent jurisdiction over all cases in which juveniles of either sex under eighteen (18) years of age are accused of violations of this code or other city ordinances. (2001 In-house code § 15-10)

2.44.020 Juvenile judge—Appointment and qualifications.

A. The judge of the juvenile court shall be appointed at the same time and in the same manner as other municipal judges of the city. The mayor may, at his or her discretion, allow the municipal court judges to preside as the juvenile judge, and the appointed juvenile judge to preside over all municipal court cases.

B. The juvenile judge must be over twenty one (21) years of age, and duly qualified to handle the affairs of the court in a judicious and expedient manner. (Ord. 3691 § 1, 2006; 2001 In-house code § 15-11)

2.44.030 Juvenile judge—Powers generally.

A. The juvenile judge shall preside over all sessions of the juvenile court, which may be held when and where as he or she may, with the approval of the mayor, determine.

B. The juvenile judge has all powers incident to the operation of a municipal court, including the right to issue process of any kind, issue subpoenas compelling the attendance of witnesses, impose sentences, issue warrants, utilize the city police force for the purpose of making investigations and arrests, issue complaints and apprehend violators of this code or other city ordinances. The juvenile judge has the power to enforce due obedience to all rules and judgments. (2001 In-house code § 15-12)

2.44.040 Juvenile counselor—Appointment, qualifications and duties.

The city, whether by itself or with the participation of the county, with the advice and consent of the juvenile judge, may employ a juvenile counselor, qualified by education and experience to carry out the duties of his or her post. It is the duty of the juvenile counselor, when acting on behalf of the city, to supervise the activities of juveniles placed on probation by the juvenile court and to provide counseling, home visitation and other appropriate services to juveniles placed under his or her jurisdiction. Such juvenile counselor is under the direction and supervision of the juvenile court, and shall work in cooperation with other probation officers within or without the state. (2001 In-house code § 15-13)

2.44.050 Arrest of juvenile—Procedure.

Whenever any juvenile is arrested for violation of any provision of this code or other city ordinance, the police department shall notify the parent, guardian or custodian of the juvenile, if known, as soon as possible following such arrest. In the case of the arrest of a juvenile, whenever practical, the juvenile shall be released to the custody of the parent, guardian or custodian upon the written promise of such person to produce the juvenile in the juvenile court when directed. Nothing in this section shall be construed to require the police department to hold any juvenile in custody pending such notification if the department determines that the issuance of a citation or summons would be appropriate in view of the circumstances. (2001 In-house code § 15-14)

2.44.060 Arrest of juvenile—Detention.

If the parent, guardian or custodian of the juvenile apprehended cannot be located and the juvenile cannot post a cash bond as provided in Section 2.40.070, the juvenile shall be detained until ordered released by the juvenile judge. (2001 In-house code § 15-15)

2.44.070 Pre-court juvenile diversion.

A. There is established a pre-court juvenile diversion program through the city juvenile probation office entitled, "Friends of the Court."

B. The program will provide the city with a coordinated effort for providing counseling services for selected first offenders and their families in lieu of a court appearance.

C. The judge, in conjunction with the complainant, may at his or her discretion, defer the court hearing of the juvenile for a reasonable time, during which time the juvenile may be placed in a counseling program through the city juvenile probation office.

D. In the event the juvenile offender fails to comply with the reasonable requests of the juvenile probation office, the juvenile judge may, during the period of deferred prosecution:

1. Revoke or modify any condition of this deferred prosecution;

2. Change the period of supervision;

3. Discharge the juvenile from supervision;

4. Allow prosecution of juvenile offender for the offense.

E. The juvenile judge may, when he or she feels that placement is satisfactory, discontinue any further juvenile proceedings for the offense.

F. The juvenile judge may authorize any or all expungement of juvenile offender's court, and/or arrest records upon the successful completion of the offender's placement. (2001 In-house code § 15-16)

2.44.080 Trials of juvenile offender—Conduct generally.

The trials of all juvenile offenders may be conducted in court or in chambers and shall be conducted separate and apart from and at different times than the trial of adults except for traffic violations. The parent, guardian or custodian of the juvenile may in all cases be present at the hearing. The hearing may be postponed until the presence of the parent, guardian or custodian can be obtained. Other persons as authorized by the judge may also attend the trials. The juvenile court shall, after hearing the evidence, make findings as to guilt or innocence of the juvenile offender and impose penalties in accordance with Section 2.44.090. (2001 In-house code § 15-17)

2.44.090 Imposition of sentence.

In the event a juvenile offender is found guilty of a violation of any provision of this code or other city ordinances, the juvenile judge shall pronounce sentence and is empowered to impose a fine of any amount not exceeding seven hundred fifty dollars ($750.00) or six months in jail, or both; provided, that a jail sentence shall not be imposed upon a juvenile offender until after efforts have been made to correct his or her delinquency; and a jail sentence shall not be imposed for a violation of Sections 9.16.010 (A)(2) through (A)(6). (2001 In-house code § 15-18)

2.44.100 Postponement of sentencing—Probation.

The judge may, in his or her discretion, postpone the imposition of all or a part of the sentence of the juvenile for a reasonable time, during which time the juvenile may be placed on probation to any responsible adult or to the juvenile counselor or the court under such conditions as the court may impose. Such probation may be altered or extended from time to time with appropriate notice to and appearance of the juvenile and the probation officer under whose supervision the juvenile has been placed. When the judge is assured that the probation has served its purpose, he or she may discharge such juvenile and make satisfaction of the sentence permanent. (2001 In-house code § 15-19)

2.44.110 Appeal from judgment of juvenile court.

Appeal may be taken from the judgment of the juvenile court in the same manner as provided for appeals from the other municipal courts. (2001 In-house code § 15-20)

2.44.120 Confinement of juvenile offenders—Visits.

Under no circumstances shall a juvenile be confined in jail with adult prisoners. Parents and such other persons as are authorized by the juvenile judge shall be allowed to visit any juvenile committed to jail at any time without regard to visiting hours or days. (2001 In-house code § 15-21)

2.44.130 Consultation with parents of juveniles.

The juvenile judge, juvenile counselor and members of the police department may, as necessary to carry out the intent of this chapter, consult with parents, guardians and others for the purpose of rehabilitation and improvement of juveniles coming under the provisions of this chapter. (2001 In-house code § 15-22)

2.44.140 Interfering with order of judge, encouraging juvenile to disregard probation, violate law, prohibited.

No person shall interfere with any order or process made or issued by the juvenile judge in any case or aid or abet or encourage any minor placed on probation by the court to disregard the orders of the juvenile judge, juvenile counselor or probation officer or otherwise knowingly induce, aid or encourage any such minor to violate this code or any other law or city ordinance. (2001 In-house code § 15-23)

2.44.150 Parents of juvenile offenders.

A. The governing body finds that it benefits juvenile offenders for the parents, guardians or custodians of the offenders to be required to be present at all court appearances with the offenders and that, in certain situations, it benefits the juvenile offender to require the parents, guardians or custodians to submit to family counseling.

B. The parents, guardians or custodians of juvenile offenders appearing before the juvenile court are required to appear in court with their sons, daughters or wards, as the case may be.

C. The parents, guardians or custodians of juvenile offenders appearing before the juvenile court are required to submit themselves, if the judge of the juvenile court in his or her discretion deems it appropriate, to family counseling under such terms and conditions as the judge may require.

D. The judge of the juvenile court also has the authority to order the parents, guardians or custodians of juvenile offenders to:

1. Perform any acts, duties and responsibilities the court deems necessary; or

2. Refrain from any act or conduct the court deems detrimental to the best interest and welfare of the juvenile or essential to the enforcement of any lawful order regarding the juvenile made by the court. (2001 In-house code § 15-26)

Chapter 2.48
JUVENILE PROBATION SYSTEM

Sections:

2.48.010 **Establishment—General supervision.**
2.48.020 **Director.**

2.48.010 Establishment—General supervision.

A juvenile probation system is established to function under the direct supervision of the juvenile division of the municipal court. The probation program will be subject to the general supervision and direction of the mayor. (2001 In-house code § 15-27)

2.48.020 Director.

The office of director of juvenile probation is established. The director will have the following duties:

A. The director shall set up and maintain an office to keep the books and records of juvenile offenders who have been placed on probation by the court, which books and records shall at all times remain confidential.

B. The director shall, with the advice and consent of the court, set up reasonable rules and regulations which shall be filed with the city clerk, concerning the conduct of juvenile offenders during the term of their probation.

C. The director shall recruit and train volunteers who are acceptable to the court to serve as volunteer probation officers.

D. The director shall assign the volunteer probation officers to handle individual cases as submitted to him or her from the court.

E. The director shall be responsible to report violators of probation to the court with recommendations and suggestions concerning such cases.

F. The director shall advise the court when the term of probation has expired so that the juvenile may be released from probation.

G. The director shall carry out such other functions incidental to the above directives as shall be ordered by the court. (2001 In-house code § 15-28)

Chapter 2.52

PERSONNEL SYSTEM*

Sections:

2.52.010 Regulations and benefits.

2.52.010 Regulations and benefits.

Unless otherwise provided in accordance with Section 2.08.060 of the city code or by law or contract, officers and employees of the city are governed by the city personnel (employee) rules and regulations on file in the offices of the human resources department and the city clerk.

A. Changes to the city personnel (employee) rules and regulations shall be in accordance with the Wyoming Administrative Procedure Act, Wyo. Stat. Sections 16-3-101, et seq.

B. Any employee appeal from administrative decisions regarding city personnel (employee) rules and regulations must be filed with and pursuant to established procedures of Chapter 2.92, Administrative Hearing Procedure. This procedure does not apply to grievance procedures prior to an appeal. (Ord. No. 4521, § 2, 8-28-23; Ord. No. 4368, §§ 1, 2, 6-14-21)

***Editor's note**—Ord. No. 4368, §§ 1, 2, adopted July 14, 2021, repealed the former Ch. 2.52, §§ 2.52.010—2.52.050, and enacted a new Ch. 2.52 as set out herein. The former Ch. 2.52 pertained to personnel commission and derived from 2001 In-house code §§ 2-66—2-70; and Ord. 3562 § 3 (part), adopted in 2004.

Chapter 2.56
PLANNING COMMISSION

Sections:

2.56.010 Purpose—Authority—General provisions.
2.56.020 Established.
2.56.030 Composition.
2.56.040 Removal of city members.
2.56.050 Vacancies.
2.56.060 Purpose of the commission.
2.56.070 Meeting procedures.
2.56.080 Long range planning.
2.56.090 Zoning ordinance and subdivision regulations.
2.56.100 Additional recommendations.
2.56.110 Public hearings.
2.56.120 Applications.
2.56.130 Policy direction.
2.56.140 Staffing support.

2.56.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to provide for the current and future physical development and growth of the community involving, but not limited to, land, and transportation planning within the city.

B. Authority is granted cities and towns by Wyo. Stat. Sections 15-1-502 through 512 to establish a planning commission to assist the governing body with a review and recommendation process concerning land and transportation planning and development, and public improvements. Further authority pursuant to Wyo. Stat. Section 15-1-101(a)(v) allows for the establishment of planning regulations and policies through city ordinances, resolutions and rules and regulations. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-1)

2.56.020 Established.

The commission is created and named the "City of Cheyenne Planning Commission." (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-2)

2.56.030 Composition.

The planning commission will consist of between five and seven members, to be appointed by the mayor, with the consent of city council. Commissioners will serve for terms of three years, to expire the last day of December. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-3)

2.56.040 Removal of city members.

The governing body has the power to remove members of the planning commission for cause. Absence at more than three consecutive meetings or absence at more than twenty-five (25) percent of the meetings over a six-month period will constitute cause for removal. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-4)

2.56.050 Vacancies.

A vacancy occurring on the planning commission will be filled as soon as possible for the unexpired term by the mayor, with approval of city council. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-5)

2.56.060 Purpose of the commission.

The planning commission is established in order to accomplish the maximum economic, physical and social welfare and a coordinated and harmonious development of land, buildings and transportation facilities. The commission will have the powers necessary to carry out its functions in accordance with this chapter and Wyoming State Statutes related to planning, zoning and land subdivision. The planning commission may be assigned additional powers by the governing body. Any party aggrieved by a recommendation or decision of the planning commission may request the governing body, in writing, review the recommendation or decision. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-6)

2.56.070 Meeting procedures.

The planning commission will adopt rules of practice and by-laws, in accordance with the Wyoming Administrative Procedure Act, governing the election and duties of officers, conduct and scheduling of

regular and special meetings, basis for establishing a quorum, and any other procedures required to be specified by the Administrative Procedure Act. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-7)

2.56.080 Long range planning.

The planning commission will advise the governing body on long-range planning of the physical development of the city and may make surveys. The commission will adopt and certify to the governing body a comprehensive plan for the physical development of the city. The commission will recommend specific provisions for implementation of the plan. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-8)

2.56.090 Zoning ordinance and subdivision regulations.

The planning commission will adopt and recommend to the governing body, regulations to accomplish zoning purposes and control the subdivision of lands and amendments, as provided by state law. No zoning or subdivision regulation or amendment will be approved until a public hearing has been held before and a recommendation made by the planning commission. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-9)

2.56.100 Additional recommendations.

The planning commission will make recommendations to the governing body, and the board of adjustments, regarding city street and alley vacations, preliminary plats and final plats (when subdivision regulations require that final plats be submitted to the planning commission). (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-10)

2.56.110 Public hearings.

Prior to making its recommendations to the governing body regarding adoption of and amendments to: (1) comprehensive plans or portions thereof; (2) regulations which accomplish zoning purposes or which control the subdivision of land; (3) the major street and highway plan; (4) the approval or denial of preliminary plats, or city street or alley vacations, the planning commission must hold public hearings as specified by state law and appropriate city ordinances or resolutions except public hearings held by the commission on the comprehensive plan for the city or portions or amendments; amendments to the regulations to accomplish zoning purposes for the city; and city street or alley vacations are deemed to be the only public hearings required by state law prior to final approval by the governing body. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-11)

2.56.120 Applications.

The planning commission will establish procedures for the filing of applications. The procedures will be published with the application forms and will be available to the public. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-12)

2.56.130 Policy direction.

The planning commission will keep itself advised of policies and regulations of the city and act in conformance with those policies and regulations. The commission will request policy direction from the governing body, when direction is needed. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-13)

2.56.140 Staffing support.

The Cheyenne planning office will provide staff support to the planning commission. Staff support will include: (1) review of applications presented to the commission and professional recommendations; (2) preparation of documents such as plans, policy statements and recommended amendments to regulations at the direction of the commission; (3) preparation of agendas; (4) publication of notices of commission hearings as required by law; (5) processing of applications made to the commission; and (6) recording of minutes of regular commission meetings. (Ord. 3788 § 1 (part), 2008: 2001 In-house code § 33-14)

Chapter 2.60

AIRPORT BOARD

Sections:

2.60.010	**Created.**
2.60.020	**Membership—Term—Vacancy.**
2.60.030	**Officers.**
2.60.040	**Meetings.**
2.60.050	**Powers and duties.**
2.60.060	**Dissolution procedures.**
2.60.070	**Ownership of airport properties.**
2.60.080	**Consideration of recommendations for operations, fees and leasing.**

2.60.010 Created.

There is created a Cheyenne airport board, successor to the Cheyenne airport authority, created and operated with the full and joint cooperation of the governing bodies of the city of Cheyenne and county of Laramie. (2001 In-house code § 2-34)

2.60.020 Membership—Term—Vacancy.

A. The board consists of five members, all of whom shall be qualified electors of Laramie County.

B. The board shall be appointed by the governing bodies of the city and county with two members appointed by the city, two members appointed by the county, and one member jointly appointed by the city and county. Each member will serve a five-year term.

C. Upon expiration of each member's term, the city or county governing body as appropriate shall appoint a successor to the board. Board vacancies for unexpired terms shall be filled by appointment by the city or county governing body that made the appointment.

D. No individual member of the board shall be personally liable for any action or procedure of the board. Members shall serve without compensation, but shall be entitled to payment for travel and other necessary expenses incurred while attending to business or meetings of the board. (2001 In-house code § 2-35)

2.60.030 Officers.

The board shall organize in January of each year and select a president, a vice president, a secretary and a treasurer from its membership. (2001 In-house code § 2-36)

2.60.040 Meetings.

Meetings of the board shall be held quarterly, at such place as is designated by the board and at such other time as may be desirable upon call of the board. (2001 In-house code § 2-37)

2.60.050 Powers and duties.

A. Upon the board's organization and filing of certificate showing its organization with the offices of county clerk and the secretary of state, the board will become a body corporate and shall have those powers as set forth in Wyo. Stat. Sections 10-5-101 and 10-5-202.

B. The board shall submit on or before the first day of May of each year, to the governing bodies of the city and the county, a proposed budget for the ensuing fiscal year from July 1st until June 30th of the next year. Copies of the proposed budget shall be provided to the mayor, the city treasurer, each member of city council, and each county commissioner. This budget shall be subject to alteration, modification or revision by the governing bodies, and after being approved by them shall be adopted as the fiscal plan of the board for the subsequent year. Such fiscal plan, as approved by the governing bodies shall be funded from revenues derived from the Cheyenne Airport operation, supplemented by additional appropriations on an equal basis from the city and the county. (2001 In-house code § 2-38)

2.60.060 Dissolution procedures.

The board may be dissolved by resolution adopted by the governing bodies of the city and

county in a regular and public meeting and pursuant to the provisions of Wyo. Stat. Section 10-5-203. (2001 In-house code § 2-39)

2.60.070 Ownership of airport properties.

A. Title to airport now in the ownership of the city and other properties on airport grounds that fall to the city in the future shall be transferred to the airport board. The board shall own any improvements made to the facility.

B. The board is prohibited from selling or otherwise disposing of, except leasing and mortgaging, airport lands and real property without the express written approval of the city and the county.

C. In the event the board is dissolved, the percentage of reversionary ownership of each participating agency in the airport board shall be as follows:

1. City. The city will own one hundred (100) percent of the equity in the facility to and including June 30, 1980, and a percentage of the equity in this facility acquired beyond that date based on its financial participation in the airport board.

2. County. The county will own a percentage of the equity in this facility acquired beyond the date of this agreement [per the provisions of Ordinances No. 2407 and No. 2426] based on its financial participation in the airport board. (2001 In-house code § 2-40)

2.60.080 Consideration of recommendations for operations, fees and leasing.

The board shall consider recommendations of the city and county regarding the operations of the airport, the setting of landing fees, and the leasing of airport property. (2001 In-house code § 2-41)

Chapter 2.64

HISTORIC PRESERVATION BOARD

Sections:

2.64.010	**Created.**
2.64.020	**Legislative intent.**
2.64.030	**Definitions.**
2.64.040	**Members—Terms—Meetings.**
2.64.050	**General provisions.**
2.64.060	**Powers and duties.**
2.64.070	**Process for designation of historic districts and landmarks.**
2.64.080	**National Register of Historical Places.**
2.64.090	**Demolition permit and moving permit review.**

2.64.010 Created.

A historic preservation board is established. (2001 In-house code § 2-55)

2.64.020 Legislative intent.

A. Purpose. The governing body recognizes that many areas, improvements and landscape features have historic character or special historical or aesthetic interest or value and many improvements representing the finest architectural products or distinct periods in the history of Cheyenne. It is declared a matter of public policy that the protection, enhancement and perpetuation of areas, improvements and landscape features having historic character or special historical or aesthetic interest or value is a public necessity and is required in the interest of the people. The purpose of this chapter is to:

1. Effect and accomplish the protection, enhancement and perpetuation of such areas, buildings, structures or other features which represent or reflect elements of the city's cultural, social, economic, political and architectural history;

2. Safeguard the city's historic, aesthetic and cultural heritage, as embodied and reflected in such areas, buildings, structures or other features;

3. Stabilize and improve property values in such districts;

4. Foster civic pride in the beauty and noble accomplishments of the past;

5. Protect and enhance the city's attractions to tourists and visitors and the support and stimulus to business and industry thereby provided;

6. Strengthen the economy of the city; and

7. Promote the use of historic districts and landmarks for the education, pleasure and welfare of the people of the city.

B. Authority to Enact. Authority for enacting this chapter to protect historic integrity is provided by Wyo. Stat. Section 15-1-601(d)(iv).

C. Endorsement of Partnership—Authority for Participation. The governing body endorses the local-state-federal partnership engendered by certified local government. Authority for participation in this program is provided by Wyo. Stat. Section 16-1-101. (2001 In-house code § 2-56)

2.64.030 Definitions.

As used in these sections relative to the historic preservation board, the following terms shall have the following meanings, unless the context clearly indicates that a different meaning is intended:

"Alteration" means any change to the exterior of a building that modifies its structural appearance. This shall not be construed to include painting or cleaning.

"Board" means the duly appointed members of the historic preservation board.

"Chairperson" means the presiding officer of the board.

"Demolition" means the removal of a building or structure, or a portion thereof, or removing or destroying significant architectural elements of the exterior of a building or structure. Demolition does not include routine maintenance, simple repairs, painting, cleaning or the replacement or repair of existing features using similar or like materials.

"Historic character" means having special historical, architectural, cultural, archeological or other value to the community.

"Historic district" means an area designated as conveying a sense of time and place due to the historic and architectural merits of the area, inclusive of architectural and landscape features.

"Improvements" means any manmade structure, building, feature or landscape.

"Landmark" means a structure, building, site or feature designated as having architectural, historical or cultural significance.

"List of contributing structures" or "contributing structures list" means the list of historic structures maintained by the city's planning department and ratified by the governing body pursuant to Section 2.64.060(J) of this chapter.

"Moving" means the moving of a building or structure pursuant to Chapter 15.44 of city code.

"National Register of Historic Places" means the list of significant districts, buildings, structures, sites and objects kept by the U.S. Department of Interior.

"Significant" means having architectural and historical characteristics that make the building, structure, feature or area worthy of preservation. (Ord. No. 4111, § 1, 12-28-15; 2001 In-house code § 2-57)

2.64.040 Members—Terms—Meetings.

A. The board shall consist of at least five members appointed by the mayor, subject to approval by the city council, to serve without compensation for a term of three years. Members may be reimbursed for expenses necessarily incurred in the performance of their duties.

B. Board members shall have demonstrated interest, knowledge or experience in historic preservation or related fields. At least two members shall be knowledgeable in fields related to historic preservation, including, but not limited to, history, architectural history, archeology historical architecture, planning, real estate, law, architecture and landscape architecture. (2001 In-house code § 2-58)

2.64.050 General provisions.

A. The board shall adopt rules of procedure for the conduct of its business. The rules shall be filed with the city clerk.

B. The board may work with the city to obtain the services of qualified staff or consultants, as is necessary to carry out the board's purposes, to direct, advise and assist the board.

C. The board, in addition to the appropriations made by the city, shall have the right to request that the city receive, hold and spend funds which it may legally receive from any and every source both in and out of the state of Wyoming (such funds shall be deposited with the city treasurer).

D. A record shall be kept of pertinent information presented at all public hearings. A verbatim record may be made by any interested party but shall not be required unless directed by the board. Copies of all records made of board meetings shall be forwarded to the governing body.

E. An annual report of the activities of the board shall be submitted to members of the governing body and state historic preservation officer. The reports shall include, but not be limited to: districts and landmarks designated; the number and types of cases reviewed; review decisions; updated resumes of board members; meeting attendance records; findings of survey activities; overall changes to landmarks and historic districts; National Register nominations reviewed. (2001 In-house code § 2-59)

2.64.060 Powers and duties.

The board shall have the following powers and duties:

A. Conduct surveys of buildings, structures, areas and other features for the purpose of determining those of architectural, historical, cultural and/or archeological significance; to maintain and revise detailed listings of significant structures and districts. Buildings, sites and districts listed in, or eligible for listing in, the National Register of Historic Places shall be incorporated into this listing;

B. Propose to the governing body, criteria for designation of structures and districts;

C. Designate areas, buildings, structures or other features which meet the criteria for designation and have historic character. Designations by the board shall be submitted to the governing body for ratification;

D. Develop and adopt design review standards or guidelines, with the assistance of city staff, to be used as a basis for board decisions;

E. Advise the governing body and city agencies in matters material to or involving structures or areas of significance;

F. Advise owners or residents of significant structures or areas on techniques or and resources for historic preservation;

G. Prepare and publish maps, brochures and description materials about the city's areas and structures of significance;

H. Promote public interest in the foregoing purposes;

I. Encourage and assist in the establishment of educational and cultural programs to advance the foregoing purposes;

J. Establish and maintain, within the planning office, records of the city's historic resources including a compilation of specific and recognized contributing historic structures. The compilation of specific and recognized contributing historic structures is to be composed of those structures that have been designated by the board and ratified by the governing body pursuant to Section 2.64.070. (2001 In-house code § 2-60)

2.64.070 Process for designation of historic districts and landmarks.

A. The board shall designate historic districts and landmarks in accordance with Section 2.64.060(A) through (C). The designation shall contain specific and understandable boundaries for areas and properties under consideration.

B. A petition for designation may be submitted by members of the governing body, members of the board, or any owner of land within the area proposed for designation.

C. Notice of a proposed designation shall be sent by mail to the property owner of record describing the property proposed referencing the historic preservation ordinance, and announcing a public hearing by the board to consider the designation.

D. All property owners of record shall be notified of public hearing as above in subsection C of this section. The staff agency shall advertise the petitioner's request once in each daily local newspaper at least fifteen (15) days prior to the board meeting. At the hearing:

1. The board may solicit expert testimony regarding the historic character of the area, building, structure or other features under consideration for designation.

2. The board may present testimony or documentary evidence of its own to establish a record regarding the historic character of the proposed designation.

3. The board shall afford to the owner of said property reasonable opportunity to present testimony or documentary evidence regarding the importance of the proposed designation.

4. The owner of the property proposed for landmark designation shall be afforded the right to representation by counsel and reasonable opportunity to cross-examine witnesses presented by the board.

5. Any interested party may present testimony or documentary evidence regarding the proposed designation at the public hearing.

E. The board shall make findings of fact and submit its decision to the governing body within thirty (30) days of the public hearing.

F. Notification of designation must be mailed to owners within thirty (30) working days of the public hearing.

G. The chief building inspector, city engineer, regional planning office and state historic preservation office, and other agencies as appropriate, shall also be notified of governing body ratification. Failure to so notify does not in any way affect the processes described in this portion of the city code.

H. Within ninety (90) days of the date on which the governing body ratifies designation of any area, building, structure or other feature as worthy of preservation, the board shall cause to be recorded with the Laramie County clerk notification that such property is designated, and the notification shall be maintained on the public records until such time as the designation may be withdrawn by the board. Recording fees, if necessary, shall be paid by the petitioner.

I. Each landmark and historic district may be marked by an appropriate plaque carrying a brief description and account of the historical, architectural, cultural or archeological significance of the property. The board shall prepare a design for such plaques which is compatible with state standards for similar signs. The board shall also review the content of such plaques if requested to do so by the property owner.

J. The board may effect the amendment or rescission of any designation in the same manner and procedure as was followed in the original designation. (2001 In-house code § 2-61)

2.64.080 National Register of Historical Places.

A. The board may review and render an opinion on proposed alterations, relocations, demolitions and new construction within historic districts or upon properties listed in or eligible for listing in the National Register of Historic Places at the request of the state historic preservation office.

B. The board shall review all proposed National Register nominations for properties within its jurisdiction and make a recommendation to the state historic preservation office. (2001 In-house code § 2-62)

2.64.090 Demolition permit and moving permit review.

A. Applicability. This section applies to buildings and structures constructed fifty (50) years or more before the date an application for a demolition or moving permit is submitted to the city's chief building official.

B. Administrative Procedures. The following process shall be followed prior to issuance of a demolition or moving permit in accordance with Chapter 15.44 or Chapter 15.48 of [the] city code:

1. Planning Department and Board Review. Upon receipt of an application for a permit to move or demolish a building or structure subject to this section, the chief building official shall refer the application to the planning department.

a. The planning department staff shall determine if the building is listed on the contributing structures list within five business days after receipt of the application.

b. The determination required by subsection (B)(1)(a), of this section shall be issued by the planning department in writing and shall be served upon the applicant and the board by mail or personal delivery. If the planning department determines that the building or structure is listed on the contributing structures list, planning department staff shall provide a form that the applicant must complete in order to secure board review of the application for a moving or demolition permit. The form supplied by the planning department and completed by the applicant shall contain the following information:

i. Estimated cost to rehabilitate and maintain the building or structure at its current location;

ii. The outcome of previous efforts to sell or rent the property, building or structure, if any;

iii. Proposed measures to mitigate any historic loss from the demolition or moving of the building or structure, if any;

iv. A description of the historic character or value the building or structure contributes to the city and the historic districts;

v. The outcome of any previous efforts to convert the building or structure to other permitted uses;

vi. The current zoning, uses, and characteristics of surrounding properties;

vii. Proposed future use of the property, buildings or structures, if any, that will remain if the demolition or moving permit is granted, including

a description of character, scale, massing, landscaping, and compatibility with adjacent buildings;

viii. Whether the denial of a demolition or moving permit will create any health or safety hazards or conflict with the general welfare of the city;

ix. The current market value of the building or structure to be moved or demolished based on one or more recent appraisals, real property tax assessments, or data compiled by real estate sales professionals;

x. Current use of the building or structure. If the building or structure is vacant or in disuse, the applicant shall disclose the length of time that the building or structure has been vacant or not in use; and

xi. Any additional information the applicant may wish to provide the board.

c. The board shall not have the authority to deny an application for a demolition or moving permit for a building or structure that has been formally condemned by the chief building official based on at least two of the criteria specified in Section 108.1.5 of the International Property Maintenance Code adopted pursuant to the city's dangerous building code in Chapter 15.24 of the Cheyenne City Code.

d. If the building or structure is located within the Historic Governors' Mansion Protective Area, the provisions of Section 15.50.060 shall be followed.

C. Public Hearing. Upon receipt of the applicant's completed form as required by subsection 2.64.090(B)(1)(b) of this chapter, planning department staff shall:

1. Within twenty (20) calendar days after receipt of the applicant's completed form, issue a written public hearing notice that shall state the date, time and location of the public hearing to be conducted by the board to consider the application. The public hearing notice shall be served on the applicant and board by mail or personal delivery. The public hearing shall be conducted not more than sixty (60) calendar days from the date of receipt of the applicant's completed form.

2. Upon receipt of the public hearing notice issued pursuant to subsection (C)(1) of this section, the applicant shall post one or more signs provided by the planning department. The sign or signs shall be posted at least fourteen (14) calendar days prior to the public hearing and shall be posted on each road frontage of the property that is the site of the building(s) or structure(s) proposed for demolition or moving. The applicant shall make reasonable and good faith efforts to maintain the signs at the property for the entire fourteen (14) calendar days public notice period. The failure to make reasonable efforts to maintain all of the posted signs for the entire public notice period shall not constitute the sole basis for a recommendation to deny a demolition or moving permit.

3. Publish the public hearing notice required by subsection (C)(1) of this section in a local newspaper of general circulation and on the city's website at least fifteen (15) calendar days prior to the public hearing. The notice shall state the general location of the site of the building(s) or structure(s) proposed for demolition or moving, the purpose of the public hearing and its date, time, and location, and the manner in which the public may obtain further information regarding the permit application that will be the subject of the public hearing.

4. Mail a copy of the public hearing notice required by subsection (C)(1) of this section to the current record owners of all parcels of land located within three hundred (300) feet of any of the boundaries of the site of the building(s) or structure(s) proposed for demolition or moving. The names and addresses of the current record owners of such parcels shall be determined using the interactive mapping feature of the website of the Laramie County Assessor's office. The planning department shall have no obligation to conduct any other research or inquiry regarding the current record ownership of parcels located in whole or in part within the three hundred (300) foot buffer.

5. Issue a staff report that shall be served on the board and the applicant by mail or personal delivery at least fifteen (15) calendar days prior to the public hearing.

D. Board Quorum Required. If the board lacks a quorum upon the date and time that the public hearing is scheduled to take place, the board shall have no further jurisdiction and the chief building official will process the pending demolition or moving permit application in accordance with Chapter 15.44 or Chapter 15.48 of [the] city code.

E. Public Comment. At the public hearing, the board shall take comment from the applicant or the applicant's designee, city staff, and members of the public. Sworn testimony shall not be required and only board members shall have the authority to question persons offering comment. Minutes of the public hearing proceedings shall be made pursuant to Section 2.64.050(D) of this chapter.

F. Review Criteria. In its review of an application for a demolition or moving permit, the board shall consider the information provided by the applicant as set forth in subsections 2.64.090(B)(1)(b)(i)—(xi), public input and information received during the public hearing.

G. Decision. Following closure of the public hearing, the board shall take one of the following actions on the permit application:

1. Approve the demolition or moving permit application with or without conditions;

2. Deny the demolition or moving permit application with a statement of the specific reason(s) for denial, which shall be recorded in the board's minutes; or

3. Postpone its consideration of the approval or denial of a permit for good cause for a period no greater than sixty (60) calendar days after the initial public hearing, provided however that the board shall have no power to postpone the consideration of its decision in the absence of the written consent of the applicant.

4. Only those members of the board who were present at the public hearing shall participate in the board's deliberations and decision. The board's decision shall be provided in writing to the applicant and the chief building official no later than fifteen (15) days.

H. Effect of Decision. If the board denies a demolition or moving permit application, and the applicant does not perfect an appeal as provided in subsection I of this section, the applicant may not file an application for a demolition or moving permit for the same building(s) or structure(s) for a period of one hundred eighty (180) calendar days from the date of the issuance of the board's written decision. If the board denies an application for a demolition permit, the applicant may submit an application for a moving permit in addition to perfecting an appeal of the board's recommendation. An application for a moving permit shall be processed as an original application under this chapter.

I. Appeal to the Board of Adjustment. Within fifteen (15) days following receipt of written notice of the board's denial or conditional approval of a moving or demolition permit application, the applicant may appeal the board's decision by submitting a written notice of appeal to the city's board of adjustment in accordance with the board of adjustment's rules and regulations. The notice of appeal must be filed in the office of the city clerk and copies of the notice must be served on the board. The board of adjustment shall conduct a contested case hearing pursuant to the Wyoming Administrative Procedure Act, Wyo. Stat. § 16-3-101 et seq., the board of adjustment's rules and regulations, and applicable laws. The decision of the board of adjustment constitutes final agency action on the permit application and may be appealed as provided by law. (Ord. No. 4111, § 1, 12-28-15)

Editor's note—Ord. No. 4111, § 1, approved December 28, 2015, repealed the former § 2.64.090, and enacted a new § 2.64.090 as set out herein. The former § 2.64.090 pertained to demolition permit review and derived from the 2001 In-house code § 2-63.

Chapter 2.68

BOARD OF PUBLIC UTILITIES

Sections:

2.68.010 Intent—Authority—General provisions.

2.68.020 Appointment, qualifications, terms and removal of members—Vacancies.

2.68.030 Officers—Meetings—Records—Quorum.

2.68.040 Inspection of utility systems—Construction inspection fee.

2.68.050 Use of surplus water or sewage funds.

2.68.010 Intent—Authority—General provisions.

A. In accordance with and pursuant to the provisions of Wyo. Stat. Sections 15-7-401 through 15-7-412 a board of commissioners to be known as the board of public utilities is established. The board shall have exclusive authority to manage, operate, maintain and control the waterworks, sanitary sewage system, and sewage disposal plants of the city and shall make all rules and regulations necessary for the safe, economical and efficient operation and management of the above facilities. The board shall have all powers and duties contained in Wyo. Stat. Sections 15-7-401 through 15-7-412.

B. Powers and Duties. Pursuant to the provisions of Wyo. Stat. Section 15-7-401, et seq., a board of commissioners to be known as the board of public utilities is created. Provisions relating to the powers and duties of the board are located in this chapter and Title 13 of the city code regarding the administration and operation of city public utilities. (2001 In-house code § 2-74, § 44-1)

2.68.020 Appointment, qualifications, terms and removal of members—Vacancies.

The board consists of five members, to be appointed by the mayor with the advice and consent of the governing body, for the terms specified in, and subject to Wyo. Stat. Section 15-7-402. (2001 In-house code § 44-2)

2.68.030 Officers—Meetings—Records—Quorum.

The board will elect a president and a secretary and hold meetings at least once a month. Meetings may also be held at the call of the president or three members of the board. The board shall adopt its own rules of procedure and keep a record of its proceedings. Three members of the board constitute a quorum for the transaction of business. (2001 In-house code § 44-3)

2.68.040 Inspection of utility systems—Construction inspection fee.

A. The board of public utilities shall inspect all public water and wastewater main and service work performed in making service pipe connections with the mains, the laying of the mains, installing manholes and stop boxes, and all other work connected therewith.

B. No public utility construction work may begin prior to board approval. Applicants are responsible for the payment of utility fees, including construction inspection fees and overtime fees, at rates established by the board and approved by the governing body. (2001 In-house code § 44-23)

2.68.050 Use of surplus water or sewage funds.

The board shall use any surplus funds arising from the sale of water or sewage services in accordance with Wyo. Stat. Section 15-7-408, as amended. (2001 In-house code § 44-24)

Chapter 2.72

HOUSING AUTHORITY

Sections:

2.72.010 Purpose—Authority—General provisions.

2.72.020 Membership—Term.

2.72.030 Advisory members.

2.72.010 Purpose—Authority—General provisions.

A. 1. Pursuant to the purpose of Ordinance No. 1710 approved by the governing body, there is hereby created in the city a public body, corporate and politic, known as the "housing authority of the city of Cheyenne."

2. The housing project powers of the city will be vested in the housing authority pursuant to this chapter and Wyo. Stat. Section 15-10-101, et seq. provided that the city expressly reserves the following functions:

a. Findings required to be made as provided in Wyo. Stat. Section 15-10-102;

b. The power to approve a housing project;

c. Powers relating to cooperation among municipalities and counties under Wyo. Stat. Section 15-10-113;

d. Powers of municipalities and counties under Wyo. Stat. Section 15-10-115.

B. Powers and Duties. Provisions relating to the powers and duties of the housing authority of the city are located in this chapter of the city code and Ordinance No. 1710 approved by the governing body.

C. In addition the authority provided in subsection A of this section, the housing authority shall have the power to adopt by-laws, rules, regulations and policies to govern its operations. (2001 In-house code §§ 2-64, 24-1, 24-4)

2.72.020 Membership—Term.

The housing authority shall be composed of five members (commissioners) appointed by the mayor with the advice and consent of city council. Commissioners shall serve for a term of five years, with initial terms ranging from one to five years so that one commissioner's term shall expire each year on the first day of October. (2001 In-house code § 24-2)

2.72.030 Advisory members.

The mayor, with the advice and consent of city council, shall also appoint three persons representing groups served by the housing authority to meet regularly with the authority to make suggestions and advise the authority regarding the needs and wishes of the low-income community. Such persons shall serve solely in an advisory capacity without a vote. (2001 In-house code § 24-3)

Chapter 2.76

DOWNTOWN DEVELOPMENT AUTHORITY

Sections:

2.76.010	**Creation.**
2.76.020	**Members—Terms—Vacancies.**
2.76.030	**Meetings.**
2.76.040	**Designation of downtown development district.**
2.76.050	**Powers and duties.**
2.76.060	**Professional and administrative support.**
2.76.070	**Development project financing.**
2.76.080	**Dissolution and termination.**
2.76.090	**Conflict of interest by board members or employees.**

2.76.010 Creation.

There is hereby created pursuant to Wyo. Stat. Section 15-9-201, the city downtown development authority, a body corporate and capable of being a party to suits, proceedings and contracts the same as municipalities in the state of Wyoming. (2001 In-house code § 2-44)

2.76.020 Members—Terms—Vacancies.

A. The reorganized authority shall consist of newly appointed board members numbering not less than five nor more than eleven (11) members appointed initially by the Mayor and subsequently by the governing body. The affairs of the authority shall be under the direct supervision and control of the board. A majority of the members shall reside, be a lessee or own property in the downtown development district.

B. The board shall be constituted as follows:

1. At least one member shall be a member of the governing body appointed to serve at the pleasure of the governing body;

2. The remaining members shall be appointed to staggered terms in accordance with Wyo. Stat. Section 15-9-205(b).

C. A member shall hold office until his or her successor has been appointed and qualified. After the terms of the initial members have expired, the terms of all members, except the appointed member of the governing body, shall expire four years from the expiration date of the terms of their predecessors. Appointments to fill vacancies shall be for the unexpired term, and shall be made within thirty (30) days after the occurrence of the vacancy.

D. Board members shall serve without compensation, but may be reimbursed for actual and necessary expenses.

E. If the board enters into a cooperative agreement with any other entity to carry out all, or any part, of its duties, a positive vote of a majority of the members in attendance at any meeting of the cooperative shall be required on all matters affecting the statutory authority of the board. (Ord. No. 4393, § 1, 7-26-21; Ord. No. 4316, § 1, 7-13-20; Ord. No. 4026, § 1, 6-9-14; Ord. 3776 § 1, 2007; 2001 In-house code § 2-45)

2.76.030 Meetings.

The board shall hold regular or special meetings in the manner provided in the rules of the board. All meetings of the board shall be open to the public except those dealing with land acquisition or sales, personnel matters or legal matters. (2001 In-house code § 2-46)

2.76.040 Designation of downtown development district.

The boundaries of the downtown development district within which the authority shall exercise its powers shall be as follows:

A. Area One: Commencing at a point described as the intersection of the east right-of-way of House Avenue and the north right-of-way of 22nd Street; thence in a southwesterly direction along the north right-of-way line to a point intersecting with the west right-of-way of Snyder Ave-

nue; thence in a southeasterly direction along the west right-of-way line and along the extension of that line to a point which intersects with a line that is 17.2 feet parallel to the center line of the north most rail of the Union Pacific Railroad; thence in a northeasterly direction along said parallel line to a point intersecting with the extension of the east right-of-way line of House Avenue; thence in a northwesterly direction along the east right-of-way line of House Avenue to the point of beginning.

B. Area Two: Commencing at a point described as the intersection of the east right-of-way line of Central Avenue and the north right-of-way line of 11th Street; thence southwesterly along the north right-of-way of 11th Street to a point intersecting the west right-of-way line of Capitol Avenue; thence southeasterly along the west right-of-way line and that line extends to a point intersecting the constructed center line of Deming Drive; thence southeasterly along the center line of Deming Drive to the extension of the right-of-way line of Central Avenue; thence northwesterly along the east right-of-way line of Central Avenue to the point of beginning.

C. Area Three: Lot 5 and the W. 51 feet of Lot 6, Block 163; Lot 5, Block 165; all of Block 208; Lots 1 through 4, and Lot 6, Block 209; Lots 6, 7 and 8, Block 164; that portion of Block 210 as described in Warranty Deed recorded in Book 2864, Page 772 in the Office of the Laramie County Clerk situate North and East of the railroad spur line; and all adjacent public rights-of-way to said parcels; all in the Original City of Cheyenne. (Ord. No. 4589, § 1, 9-9-24; 2001 In-house code § 2-47)

2.76.050 Powers and duties.

A. The authority has those powers enumerated in Wyo. Stat. Sections 15-9-207 through 209, and any other applicable provisions of law.

B. The board shall adopt and promulgate rules governing its procedure, including election of officers. A copy of the rules shall be filed in the office of city clerk.

C. The board shall, before the first day of May of each year, submit to the governing body and city treasurer, a proposed operating budget for the forthcoming fiscal year from July 1st until June 30th of the following year. Such budget shall be subject to alteration, modification and approval by the governing body in accordance with the policies of the city, and after being approved shall be adopted as the fiscal plan for the board for the ensuing year.

D. The board shall keep books and financial records for the operation of its projects and activities showing in detail any business transaction. Immediately following the close of each month, the board shall report to the governing body all transactions for the preceding month, and the financial condition of the board.

E. The board shall appoint and remove a director and other staff members, who shall be employed upon recommendation of the director; prescribe their duties; fix their compensation, and exercise supervisory control over their activities.

F. At the request of the governing body, the board shall prepare an analysis of economic changes taking place in the central business district of the city.

G. The board shall study and analyze the impact of metropolitan growth upon the central business district.

H. The board shall plan and propose, within the downtown development area, plans of development for public facilities and other improvements to public or private property of all kinds, including removal, site preparation, renovation, repair, remodeling, reconstruction or other changes in existing buildings which may be necessary or appropriate to the execution of any development plan which in the opinion of the board will aid and improve the downtown development area.

I. The board shall implement as provided by state law, any plan of development, whether economic or physical, in the downtown development area as is necessary to carry out its functions.

J. The board shall, in cooperation with the planning board and planning department of the

city, develop long-range plans designed to carry out the purposes of the authority and to promote the economic growth of the district, and implement education and public relations programs to persuade property owners and business proprietors to implement such plans to the fullest extent possible.

K. The board shall retain and fix the compensation of legal counsel to advise the board in the proper performance of their duties.

L. The board shall make and enter into all contracts necessary or incidental to the exercise of its powers and the performance of its duties. (2001 In-house code § 2-48)

2.76.060 Professional and administrative support.

A. Close cooperation between the city and the board is both expected and anticipated. To the extent that this cooperation can be provided within the framework of the normal course of carrying out the duties of each entity, the cooperation can and will be provided as each entity requests and as each entity can satisfy those requests.

B. However, there may be periods when, for convenience or necessity, the board prefers to have the city provide the professional and administrative support necessary to continue the planning and activities of the board or to perform other functions that the board and city find appropriate. In such instances, the city and the board shall prepare an agreement that will include a work program to ensure a harmonious working relationship between the two bodies. This work program and agreement shall be revised and agreed upon during the budget cycle for each fiscal year that this arrangement is to continue. The arrangement shall continue in effect for that fiscal year.

C. Section 2.76.050(D) is modified during these periods of close cooperation to require the board to prepare a final financial statement of its books and records current as of the date of the agreement and then every six months for the length the agreement and its extensions are in effect. (2001 In-house code § 2-49)

2.76.070 Development project financing.

The authority may finance development projects through any method of financing identified in Wyo. Stat. Section 15-9-201, et seq. Any ordinance or resolution by which bonds are issued shall specify the maximum net effective interest rate on such bonds. (2001 In-house code § 2-50)

2.76.080 Dissolution and termination.

The authority shall continue in existence until dissolved by ordinance of the governing body; provided, however, that the authority and applicable sections of the city code pertaining to the authority and its board shall only be dissolved or terminated if there is no outstanding indebtedness of the authority or if adequate provision for the payment of such indebtedness is provided. (2001 In-house code § 2-51)

2.76.090 Conflict of interest by board members or employees.

No board member or employee of the board shall vote or otherwise participate in any matter in which he or she has a specific financial interest, defined as a matter in which the member or employee would receive a benefit or incur a cost substantially greater than other property owners within the district. When such interest appears, the board member or employee shall make such interest known, and refrain from voting on or otherwise participating in the particular transaction involving such interest. Willful violation of the provisions of this section constitutes grounds for dismissal subject to the provisions of Wyo. Stat. Section 15-9-206(d). (2001 In-house code § 2-52)

Chapter 2.80

URBAN RENEWAL AUTHORITY

Sections:

2.80.010	**Creation.**
2.80.020	**Members—Term—Vacancies.**
2.80.030	**Meetings.**
2.80.040	**Powers and duties.**
2.80.050	**Annual reports.**
2.80.060	**Voluntary conflicts of interest prohibited; disclosure of involuntary conflicts; violation.**
2.80.070	**Dissolution and termination.**

2.80.010 Creation.

There is hereby created pursuant to Wyo. Stat. Section 15-9-134 the urban renewal authority. (Ord. No. 4381, § 1, 6-28-21)

2.80.020 Members—Term—Vacancies.

A. Pursuant to Wyo. Stat. Section 15-9-134, the mayor, by and with the consent and advice of the local governing body, shall appoint a board of five commissioners of the urban renewal agency selected on the basis of their interest in and knowledge of community planning, urban renewal, and business management. An application process shall be adopted by the mayor and shall be made available in the office of the city clerk. The application shall further specify additional required qualifications, as deemed necessary by the mayor.

B. Any person may be appointed as commissioner if he or she resides within the area of operation of the agency (which shall have the same bounds or limits as the area of operation of the municipality) and is otherwise eligible for appointment under this chapter. The original appointment of commissioners shall be as follows: one for a term of one year; one for a term of two years; one for a term of three years; one for a term of four years; and one for a term of five years. Thereafter each appointment shall be for a term of five years.

C. Each commissioner shall hold office until his or her successor is appointed and qualified. A certificate of the appointment or reappointment of any commissioner shall be filed with the clerk of the municipality and the certificate is conclusive evidence of the commissioner's due and proper appointment.

D. A commissioner shall receive no compensation for his or her services but is entitled to necessary expenses incurred in the discharge of his or her duties. No commissioner or other officer of any urban renewal agency, board, or commission exercising powers pursuant to this chapter shall hold any other public municipal office for which compensation is received.

E. The powers of an urban renewal agency shall be exercised by the commissioners thereof. A majority of the commissioners constitute a quorum for all purposes. Action may be taken by the agency upon a vote of a majority of the commissioners present, unless in any case the bylaws require a larger number. Annually, at the first meeting, the board of commissioners shall elect its officers. Each officer shall hold office for a term of one year and until his successor is elected and qualified.

F. A commissioner may be removed from office for inefficiency, neglect of duty, or misconduct in office only after:

1. A hearing;

a. All hearings shall be conducted in accordance with the city's administrative hearing processes as outlined in Chapter 2.92 of this code.

2. He or she has been given a copy of the charges at least ten (10) days prior to the hearing; and

3. He or she has had an opportunity to be heard in person or by counsel. (Ord. No. 4381, § 1, 6-28-21)

2.80.030 Meetings.

The authority shall hold regular or special meetings in the manner provided in the rules of the agency. All meetings of the authority shall be open to the public in accordance with the Wyoming

Public Meetings Act, Wyo. Stat. Section 16-4-401, et seq. (Ord. No. 4381, § 1, 6-28-21)

2.80.040 Powers and duties.

A. The agency shall have the following authority in conjunction with the municipality:

1. To undertake and carry out urban renewal projects and related activities within its area of operation, and to:

a. Make and execute contracts and other instruments necessary or convenient to the exercise of its powers under this act;

b. Disseminate slum clearance and urban renewal information;

2. To provide or to arrange or contract for the furnishing or repair by any person or agency, public or private, of services, privileges, works, streets, roads, public utilities, or other facilities for or in connection with an urban renewal project;

3. To install, construct, and reconstruct streets, utilities, parks, playgrounds, and other public improvements;

4. To agree to any conditions that it deems reasonable and appropriate attached to federal financial assistance and imposed pursuant to federal law relating to the determination of prevailing salaries or wages or compliance with labor standards, in the undertaking or carrying out of an urban renewal project and related activities and to include in any contract let in connection with such a project and related activities, provisions to fulfill those conditions as it deems reasonable and appropriate;

5. Within its area of operation, to enter into any building or property in any urban renewal area in order to make inspections, surveys, appraisals, soundings, or test borings, and to obtain an order for this purpose from a court of competent jurisdiction in the event entry is denied or resisted as provided by law;

6. To acquire by purchase, lease, option, gift, grant, bequest, devise, eminent domain, or otherwise, any real property (or personal property for its administrative purposes) together with any improvements thereon and to hold, improve, clear, or prepare for redevelopment any such property;

7. To mortgage, pledge, hypothecate, or otherwise encumber or dispose of any real property;

8. To insure or provide for the insurance of any real or personal property;

9. To enter into any contracts necessary to effectuate the purposes of this act;

10. To invest any urban renewal project funds held in reserves or sinking funds or any such funds not required for immediate disbursement in property or securities in which savings banks may legally invest funds subject to their control, or to deposit in savings accounts in national or state banks and to redeem any bonds issued pursuant to Wyo. Stat. Section 15-9-119 at the redemption price established therein or to purchase those bonds at less than redemption price, all such bonds so redeemed or purchased to be cancelled;

11. To borrow money and to apply for and accept any form of financial assistance from any source for the purposes of this chapter, to give such security as may be required, to enter into and carry out contracts or agreements in connection therewith and to include in any contract for financial assistance with the federal government for or with respect to any urban renewal project and related activities such conditions imposed pursuant to federal laws as the municipality deems reasonable and appropriate and which are not inconsistent with the purposes of this chapter;

12. Within its area of operation, to make or have made all surveys and plans necessary to the carrying out of the purposes of this chapter and to contract with any person, public or private, in making and carrying out those plans and to adopt or approve, modify, and amend those plans, which plans may include, but are not limited to:

a. A general plan for the locality as a whole;

b. Urban renewal plans;

c. Plans for carrying out a program of voluntary or compulsory repair and rehabilitation of buildings and improvements;

d. Plans for the enforcement of state and local laws, codes, ordinances, and regulations relating to the use of land, the use and occupancy of buildings and improvements and to the compulsory repair, rehabilitation, demolition, or removal of buildings and improvements; and

e. Perform or contract the performance of appraisals, title searches, surveys, studies, and other plans and work necessary to prepare for the undertaking of urban renewal projects and related activities, to develop, test, and report methods and techniques, and carry out demonstrations and other activities for the prevention and the elimination of slums and urban blight;

13. To prepare plans for and assist in the relocation of any persons displaced by an urban renewal project, and to make relocation payments to or with respect to those persons for moving expenses and losses of property for which reimbursement or compensation is not otherwise made, including the making of such payments financed by the federal government;

14. To appropriate funds, make expenditures and levy taxes and assessments as may be necessary to carry out the purposes of this act;

15. To zone or rezone any part of the municipality or make exceptions from building regulations;

16. To enter into agreements with an urban renewal agency vested with urban renewal project power under Wyo. Stat. Section 15-9-133, which agreements may extend over any period, notwithstanding any provision or rule of law to the contrary, respecting action to be taken by a municipality pursuant to any of the powers granted by this chapter;

17. To close, vacate, plan, or replan streets, roads, sidewalks, ways, or other places;

18. To plan or replan any part of the urban renewal area;

19. Within its area of operation, to organize, coordinate, and direct the administration of the provisions of this act as they apply to the municipality in order that the objective of remedying slum and blighted areas and preventing the causes thereof within the municipality may be most effectively promoted and achieved and to establish new offices of the municipality or to reorganize existing offices in order to carry out the purpose most effectively;

20. To exercise all or any part or combination of powers granted by this section; and

21. To plan and undertake neighborhood development programs consisting of urban renewal project undertakings and activities in one or more urban renewal areas which are planned and carried out on the basis of annual increments in accordance with the provisions of this chapter for planning and carrying out urban renewal projects. (Ord. No. 4381, § 1, 6-28-21)

2.80.050 Annual reports.

The agency authorized to transact business and exercise powers under this section shall file with the local governing body on or before May 31 of each year a report of its activities for the preceding calendar year. The report shall include a complete financial statement setting forth its assets, liabilities, income, and operating expenses as of the end of that calendar year. At the time of filing the report, the agency shall publish in a newspaper of general circulation in the community a notice to the effect that the report has been filed with the municipality and is available for inspection during business hours in the office of the clerk of the municipality and in the office of the agency. (Ord. No. 4381, § 1, 6-28-21)

2.80.060 Voluntary conflicts of interest prohibited; disclosure of involuntary conflicts; violation.

A. No public official or employee of a municipality, or board or commission thereof, and no commissioner or employee of the agency created by this section shall voluntarily acquire any personal interest, direct or indirect, in any urban renewal project, or in any property included or planned to be included in any urban renewal project of that municipality or in any contract or proposed contract in connection with that urban renewal project.

B. If the acquisition is not voluntary, the interest acquired shall be immediately disclosed in writing to the local governing body, and the disclosure shall be entered upon the minutes thereof. If any official, commissioner, or employee presently owns or controls, or owned or controlled within the preceding two years, any interest, directly or indirectly, in any property which he knows is included or planned to be included in any urban renewal project, he or she shall immediately disclose this fact in writing to the local governing body.

C. The disclosure shall be entered upon the minutes of the governing body, and no such official, commissioner, or employee shall participate in any action by the municipality, or board or commission thereof, or urban renewal agency, affecting the property. Any disclosure required to be made by this section to the local governing body shall concurrently be made to an urban renewal agency which has been vested with urban renewal project powers by the municipality pursuant to this chapter.

D. Any violation of the provisions of this section constitutes misconduct in office as define in Wyoming Statutes. (Ord. No. 4381, § 1, 6-28-21)

2.80.070 Dissolution and termination.

The authority shall continue in existence until dissolved by ordinance of the governing body; provided, however, that the authority and applicable sections of the city code pertaining to the authority and its board shall only be dissolved or terminated if there is no outstanding indebtedness of the authority or if adequate provision for the payment of such indebtedness is provided. (Ord. No. 4381, § 1, 6-28-21)

Chapter 2.84

MISCELLANEOUS BOARDS AND COMMISSIONS

Sections:

2.84.010 Regional planning commission.

2.84.020 Police department civil service commission.

2.84.030 Surface water management review board.

2.84.040 Fire department civil service commission.

2.84.050 International Fire Code board of appeals.

2.84.060 International Building Code board of appeals.

2.84.070 Board of adjustment.

2.84.080 City contractor licensing board.

2.84.090 Joint powers boards.

2.84.010 Regional planning commission.

Provisions relating to the powers and duties of the City-Laramie County regional planning commission are located in Chapter 2.56 of the city code and Wyo. Stat. Section 15-1-501, et seq. Rules of the board are on file with the office of city clerk. (2001 In-house code § 2-71)

2.84.020 Police department civil service commission.

Provisions relating to the powers and duties of the police department civil service commission are located in Chapters 2.20 through 2.28 of the city code and Wyo. Stat. Sections 15-5-106, and 15-5-117 through 119. The commission's rules and regulations are on file in the office of city clerk. (2001 In-house code § 2-72)

2.84.030 Surface water management review board.

Provisions relating to the powers and duties of the surface water management review board are located in Chapter 13.24 of the city code, and Wyo. Stat. Sections 16-10-101 through 16-10-110. (2001 In-house code § 2-75)

2.84.040 Fire department civil service commission.

Provisions relating to the powers and duties of the city fire department civil service commission are located in Chapters 8.12 through 8.36 of the city code and Wyo. Stat. Sections 15-5-106, and 15-5-117 through 120. The commission's rules and regulations are on file in the office of city clerk. (2001 In-house code § 2-54)

2.84.050 International Fire Code board of appeals.

Provisions relating to the powers and duties of the International Fire Code board of appeals are located in the International Fire Code, 2021 Edition, Appendix A, adopted by the city in Chapter 8.12 of the city code. A copy of the board's rules and regulations are on file in the office of the city clerk. (Ord. No. 4486, § 1, 1-9-23; Ord. No. 4252, § 1, 12-10-18; Ord. No. 4142, § 1, 6-27-16; Ord. No. 4006, § 1, 11-12-13; Ord. 3637 § 2, 2005)

2.84.060 International Building Code board of appeals.

Provisions relating to the powers and duties of the International Building Code board of appeals are located in Title 15 of the city code. The board's rules and regulations are on file in the office of city clerk. (Ord. No. 4142, § 2, 6-27-16; 2001 In-house code § 2-42)

2.84.070 Board of adjustment.

Provisions relating to the powers and duties of the board of adjustment are contained in the Unified Development Code adopted by the City of Cheyenne on January 23, 2012 and in Wyo. Stat. Section 15-1-601, et seq. (Ord. No. 4334, § 1, 12-14-20; 2001 In-house code § 2-33)

2.84.080 City contractor licensing board.

Provisions relating to the powers and duties of the city contractor licensing board are located in

Chapter 5.44 of the city code. The board's rules and regulations are on file in the office of city clerk. (2001 In-house code § 2-43)

2.84.090 Joint powers boards.

The city participates in various joint powers boards and cooperative agreements as authorized by state law. Agreements are on file in the office of the city clerk. (2001 In-house code § 2-65)

Chapter 2.88

UNCLAIMED PROPERTY DISPOSITION

Sections:

2.88.010	**Authorization.**
2.88.020	**Records to be kept on all articles.**
2.88.030	**Sale of articles—Notice.**
2.88.040	**Disposition of proceeds of sale.**

2.88.010 Authorization.

The chief of police shall sell at public auction any bicycles, automobiles, guns, revolvers, watches or any other personal possessions or property or parts thereof that may have been entrusted to the care of the police department or come into the possession of the department in the course of the duties of the department, which may not have been redeemed or claimed. However, the chief of police may direct that articles without value be destroyed and bicycles be donated to a nonprofit or charitable organization or other city agency. (Ord. 3680 § 1, 2005: Ord. 3474 § 1, 2002: 2001 In-house code § 35-9)

2.88.020 Records to be kept on all articles.

A record shall be kept of all articles received by the police department, giving the date, the origin of receipt, the name of the owner (if known), the purpose for which held and any other information that may be available, including the date the articles were sold and to whom sold. (2001 In-house code § 35-10)

2.88.030 Sale of articles—Notice.

A. Sales of unclaimed articles may be conducted at intervals of three months or semiannually, as may be deemed advisable, but in no case may an article be sold that has been in the possession of the police department for a period of less than thirty (30) days.

B. When a sale of any article is to be held, notice of the time and place of the sale must be given at least ten (10) days prior to the date of sale by publishing notice of the sale in a local newspaper of general circulation, and by mailing a written notice to the owners of the various articles to be sold at their last-known or given address. (2001 In-house code § 35-11)

2.88.040 Disposition of proceeds of sale.

A. If an article is sold for more than the expenses which were incurred by its storage, including incidental expense for advertising or notification, etc., the excess funds will be deposited with the city treasurer and, upon order of the governing body, paid to the person entitled to the possession of same, provided claim and proper proof is made before the governing body.

B. In the event no claim for the proceeds is made within thirty (30) days after the sale, the proceeds will be remitted to the city treasurer as a part of the police department receipts. (2001 In-house code § 35-12)

Chapter 2.92

ADMINISTRATIVE HEARING PROCEDURE*

Sections:

2.92.010	**Adoption.**
2.92.020	**Scope.**
2.92.030	**Appointment of hearing officer.**
2.92.040	**Adoption of OAH Rules.**

2.92.010 Adoption.

In accordance with the provisions of the Wyoming Administrative Procedure Act, Wyo. Stat. Sections 16-3-101, et seq., these rules of practice and procedure are adopted.
(Ord. No. 4369, § 1, 6-15-21)

2.92.020 Scope.

These rules of practice and procedure are applicable only in contested cases, as defined in Wyo. Stat. Sections 16-3-101, et seq., for all personnel matters as defined in Chapter 2.52, all business licenses and regulation matters in Title 5, all nuisance matters in Chapter 8.60, and any other administrative appeal matter, as needed.
(Ord. No. 4369, § 1, 6-15-21)

2.92.030 Appointment of hearing officer.

An independent hearing officer shall preside over and conduct all contested case hearings. Hearing officers shall be appointed by the mayor and confirmed by the city council. Initial appointment of a hearing officer shall occur by the mayor and the term of that appointment shall run from date of confirmation through December 31, 2022. A second hearing officer shall be appointed prior to December 31, 2021, and the term of that appointment shall run from date of confirmation through December 31, 2023. If the number of hearing officers falls below two, the mayor shall appoint a new hearing officer as soon as is reasonably possible. All subsequent appointments shall have terms that run from date of confirmation through December 31 of the calendar year which best approximates a two-year term and allows for staggered appointments. The city clerk shall appoint a hearing examiner from the list of confirmed hearing officers and rotate appointments among those confirmed hearing officers. Hearing officers shall conduct contested case hearings in accordance with the provisions of the Wyoming Administrative Procedures Act, Wyo. Stat. Sections 16-3-101, et seq. All hearings shall be clerked by the city clerk or his or her designee. The cost of the hearing officer shall be borne by the city unless the request for a contested case hearing is deemed frivolous under Wyoming Rule of Civil Procedure 11(b), in which case the petitioner shall bear the cost of the hearing examiner.
(Ord. No. 4369, § 1, 6-15-21)

2.92.040 Adoption of OAH Rules.

A. The following State of Wyoming Rules for Contested Case Practice and Procedure Before the Office of Administrative Hearings (OAH Rules) are adopted and incorporated by reference herein (as modified), and attached:

Chapter 1 General Provisions

Chapter 2 Contested Case Proceedings

Appendix A Statutory and Regulatory References

Appendix B Subpoena

B. All references in the OAH rules to the office of administrative hearings or the office are deemed to be references to the hearing officer appointed by the city clerk to conduct the contested case. A hearing officer shall be appointed in every properly initiated contested case.

C. Initiation of a contested case in accordance with Chapter 2, Section 5(a) of the OAH Rules shall include, in writing, the name and contact information of the petitioner, a short and plain

***Editor's note**—Ord. No. 4369, § 1, adopted June 15, 2021, repealed the former Ch. 2.92, § 2.92.010, and enacted a new Ch. 2.92 as set out herein. The former Ch. 2.92 pertained to personnel system and derived from 2001 In-house code §§ 2-31, 2-32.

statement of the matters asserted, identification of the action or inaction of the agency, and be signed by the petitioner or the petitioner's attorney or representative.

D. All filings in a contested case shall be with the Office of the City Clerk of the City of Cheyenne.

E. Unless otherwise required by law, the decision of the hearing officer shall be limited to whether or not the action or inaction of the agency was within the rules, policies, and practices of that agency.

(Ord. No. 4369, § 1, 6-15-21)

Title 3

REVENUE AND FINANCE

Chapters:

3.04 Fiscal Provisions Generally

3.08 Taxation

Chapter 3.04

FISCAL PROVISIONS GENERALLY

Sections:

3.04.010 Administration of bills and claims.

3.04.010 Administration of bills and claims.

A. Bills of the city paid pursuant to contracts entered into in accordance with Section 2.04.160, as well as artist's guarantees and buyouts, payroll and payroll related expenditures, utilities, fuel, insurance and other bills that the city is legally obligated to pay, require no further approval by the governing body, but shall be reported to the governing body at its regularly scheduled meetings.

B. All claims submitted against the city shall be made in accordance with Wyo. Stat. Section 15-1-125 and/or the Wyoming Governmental Claims Act, Wyo. Stat. Section 1-39-101, et seq. (Ord. No. 4290, § 2, 11-12-19; 2001 In-house code § 2-3)

Chapter 3.08

TAXATION

Sections:

3.08.010 Resolution of expenditure intent required.

3.08.020 Expenditure intent resolution—Contents.

3.08.030 Excess and unexpended funds shall be budgeted.

3.08.010 Resolution of expenditure intent required.

The governing body must adopt a resolution of expenditure intent, specifying the uses for which the governing body will expend one percent optional sales tax revenue made available to it by the electorate pursuant to Wyo. Stat. Section 39-15-203, no less than sixty (60) days before a vote on the one percent optional sales tax proposition at a general election. (2001 In-house code § 41-1)

3.08.020 Expenditure intent resolution—Contents.

The resolution of expenditure intent required in Section 3.08.010 must contain the following information:

A. An estimate of the total revenue expected to be received through adoption or renewal of the one percent optional sales tax.

B. A list of the projects on which the revenue will be expended including:

1. List of projects;

2. Estimate of the revenue to be expended on each project;

3. The total estimated revenue to be expended on the listed projects must equal the estimated total revenue to be received.

C. Interest obtained through deposits of any one percent tax revenue may be applied to defray the administrative costs incurred by the city in implementing the projects. (2001 In-house code § 41-2)

3.08.030 Excess and unexpended funds shall be budgeted.

Any one percent optional sales tax revenue received in excess of that estimated in the resolution of expenditure intent, and/or any tax revenue unexpended may not be expended until and unless such revenue has been budgeted in a resolution except in the case of municipal emergency as declared by the governing body. (2001 In-house code § 41-3)

Title 4

RESERVED

Title 5

BUSINESS LICENSES AND REGULATIONS

Chapters:

5.04	**Business Licenses Generally**
5.08	**Business License Fees**
5.12	**Alcoholic Liquor and Malt Beverages**
5.13	**Malt Beverage Keg Registration**
5.16	**Auctions**
5.20	**Automobile Service Stations, Garages and Lots**
5.24	**Automobile Wrecking and Junkyard Businesses**
5.28	**Bed and Breakfast Establishments**
5.32	**Reserved**
5.36	**Circuses, Carnivals and Amusement Rides**
5.40	**Coin-Operated Machines**
5.44	**Contractors**
5.48	**Detective, Patrol and Guard Service Businesses**
5.52	**Massage Establishments**
5.56	**Pawnbrokers**
5.60	**Secondhand Dealers**
5.64	**Sexually Oriented Businesses**
5.68	**Body Art Establishments and Operations**
5.72	**Public Transportation**
5.76	**Temporary or Transient Merchants; Residential Door-to-Door Solicitors**
5.77	**Nicotine Product Sales**
5.78	**Towing and Wrecker Recovery Operations**
5.80	**Tree Maintenance Businesses**
5.85	**Events and Activities on City-Owned Property Located within the City's Downtown Business Area**

Chapter 5.04

BUSINESS LICENSES GENERALLY

Sections:

5.04.010	**Purpose—Authority—General provision.**
5.04.020	**Definitions.**
5.04.030	**Types of businesses, activities and events.**
5.04.040	**License required—Documentation—Fees.**
5.04.050	**License display—Possession.**
5.04.060	**Transfer of ownership—Fee.**
5.04.070	**Transfer of location—Fee.**
5.04.080	**Register of licenses.**
5.04.090	**License and permit duration—Renewal.**
5.04.100	**Suspension and revocation.**
5.04.110	**Emergency suspension.**
5.04.120	**Violation—Penalty.**

5.04.010 Purpose—Authority—General provision.

A. The purpose of this chapter of licensing and regulating certain types of businesses and events held within the city is to protect the health, safety and general welfare of those receiving goods and services, and to provide uniform regulations for the providers of goods and services.

B. The provisions of this chapter are pursuant to authority granted cities and towns under Wyo. Stat. Section 15-1-103(a)(xiii).

C. The provisions of this chapter govern every occupation or business specified except where other chapters of the city code provide more specific regulations and requirements for the business or activity for which a license or permit is issued.

D. The mayor or city council may suspend or revoke a license or permit when the licensee or permittee commits one or more of the following:

1. A violation of any provision of this chapter;

2. A violation of any ordinance provision relating to health and safety;

3. Securing any license or permit by fraud or misrepresentation, to specifically include false or incorrect information on the license or permit application form; or

4. A conviction of the licensee or permittee of a crime of moral turpitude, or of a felony offense. (2001 In-house code § 26-1)

5.04.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter and Chapter 5.08:

"License" or "permit" means the authority granted by the city to a person to engage in a specific business or occupation, or to conduct an event for which a license or permit is required. Unless otherwise provided by city code or state law, each license and permit issued shall contain a facsimile signature of the mayor and city clerk under the city emblem. (Ord. No. 4171, § 1, 4-10-17; 2001 In-house code § 26-2)

5.04.030 Types of businesses, activities and events.

A. For the purposes of this chapter, the following types of business and event activities are identified, and may include more specific regulations contained elsewhere in the city code or other ordinances per type of business, activity or event:

1. Amusements (billiard/pool tables; bowling lanes; circuses and carnivals; coin-operated vending machines; skating rinks; theaters);

2. Auctioneer;

3. Barber and beauty shops;

4. Bed and breakfast inn/facility;

5. Body art establishments and operations, body artists;

6. Firearm dealer;

7. Fireworks permit;

8. Food service establishments (restaurants, dairies, food wagons/stands/push carts, temporary parade vendors);

9. Fuel dispensing; flammable liquid (private, retail, wholesale);

10. Garages, car lots, service stations (new and used sales; vehicular repair);

11. Junkyards/auto wrecking salvage;

12. Liquor sales, businesses and operations;

13. Massage business establishments and massage therapists;

14. Mobile home parks;

15. Motor-assisted scooters, electric bicycles, and bicycles equipped with GPS;

16. Nicotine product sales (retail);

17. Noise permits;

18. Parade; marching permits;

19. Pawnbrokers;

20. Private detective/security guard (businesses and employees);

21. Public transport (taxis, carriages and drivers);

22. Recycling;

23. Secondhand dealer;

24. Sexually-oriented businesses;

25. Temporary/transient merchants; door to door solicitors;

26. Towing and wrecker recovery operations;

27. Tree sales (temporary cut evergreen, Christmas trees); and

28. Tree maintenance businesses. (Ord. No. 4592, § 1, 11-12-24; Ord. No. 4380, § 1, 6-28-21; Ord. No. 4327, § 1, 10-26-20; Ord. No 4205, § 2, 10-9-17; Ord. No. 4009, § 2, 12-9-13; Ord. No. 3872, § 1, 10-12-09; Ord. 3614 § 1 (part), 2004; Ord. 3610 § 1 (part), 2004; 2001 In-house code § 26-12)

5.04.040 License required—Documentation—Fees.

A. Each person required to obtain a license or permit under provisions of this chapter shall submit an application to the city clerk. Application forms will be provided by the city clerk. The applicant must provide all information requested on the form for each particular type of license or permit sought, including the applicant's name, business and/or event name, location or street address where the business or event will be conducted. All applications must be signed by the applicant as being true and correct.

1. No business shall be licensed or permitted, or conducted from any location unless the same is in compliance with the provisions of the city's zoning ordinance.

2. Supporting or additional documentation may be required prior to issuance of any license or permit. The city risk manager must approve all bonds or proof of insurance required as a condition to the issuance of a license or permit.

B. The initial and renewal fee for each license and permit required shall be as set forth for that particular type of business or event. No license or permit will be issued until the fee has been paid, and no license will be granted for an amount less than the stipulated fee.

No fee will be refunded once the license or permit is issued by reason of discontinuance of any business.

C. All applications for initial licenses and permits for the operation of a specific business or event, or for a location not previously utilized for such business or event, must be approved and a license or permit issued by the city clerk contingent upon compliance with provisions of city code applicable to such license or permit. Any application recommended for denial, as provided in this title, must be reviewed by the city attorney. (Ord. No. 4171, § 1, 4-10-17; Ord. No. 3844, § 1, 6-8-09; 2001 In-house code § 26-3)

5.04.050 License display—Possession.

The holder of every business or event license and permit issued under this chapter, or other ordinance of the city, shall at all times prominently display the license and permit in the business or at the site of the event. Each person who is licensed under this chapter to work at any specified occupation shall be in possession of a current license or permit at all times while engaged in such work. (2001 In-house code § 26-4)

5.04.060 Transfer of ownership—Fee.

A. Licenses and permits are personal privileges to the person to whom they are issued, but may be transferred by making application on forms provided by the city clerk. If required by the city clerk, a transfer request may require written proof of the assignment. All transfer of ownership applications should be filed within thirty (30) days of the sale or assignment of the business.

B. A fee of thirty dollars ($30.00) will be assessed for each transfer of ownership application filed. Upon approval of the transfer application, a new license will be issued to be effective for the balance of the existing licensing term. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 26-5)

5.04.070 Transfer of location—Fee.

A. Each business license and permit issued entitles the licensee or permittee to operate only in the location described in the license or permit. Should any licensee or permittee desire to move to a different location, a formal request for such change shall be made on forms provided by the city clerk.

B. A fee of thirty dollars ($30.00) will be assessed for each transfer of location application filed. Upon approval of the transfer application, a new license will be issued to be effective for the balance of the existing licensing term. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 26-6)

5.04.080 Register of licenses.

The city clerk shall maintain a license and permit register, reflecting the name of each licensee and permittee, the address at which such business or event is conducted, the date of issuance, the type of license or permit, the fee paid, and the duration of the license or permit. (2001 In-house code § 26-7)

5.04.090 License and permit duration—Renewal.

A. All annual licenses and permits issued under this title shall expire annually, one year from the date of issuance, unless otherwise provided by city code.

B. Each person licensed or permitted to engage in any annual business or event as outlined in this chapter must renew such license or permit prior to expiration of the current license and permit. The city clerk will provide renewal application forms. The city clerk has the authority to approve or deny an application for renewal.

C. If a renewal application has not been received by the city clerk prior to expiration of the current annual license or permit, the licensee or permittee will have thirty (30) days from the expiration date to submit the renewal application together with payment of the annual fee plus an additional twenty-five dollar ($25.00) late renewal fee. Following the thirty (30) day period, the license or permit shall expire and will not be eligible for renewal. An application for a new license or permit may be submitted. Upon written request by the applicant, the city clerk may waive the late renewal fee based upon extenuating circumstances.

D. Any person who continues to operate a business without renewing a license, or securing a new license as required to continue operation will be deemed to be operating without a license in violation of this chapter. (Ord. No. 3844, § 1, 6-8-09; 2001 In-house code § 26-8)

5.04.100 Suspension and revocation.

In the event the city clerk deems a license or permit should be suspended or revoked, the following procedure shall be followed:

A. The licensee or permittee will be notified, in writing, by certified mail, by the city clerk at least seven days prior to the action contemplated, stating the reasons therefor.

B. Upon receipt of the notice, the licensee or permittee may request a hearing. The request must be in writing and received by the city clerk within seven days of receipt of the notice. Failure on the part of the licensee or permittee to request a hearing in writing within the specified time period shall be deemed a waiver of the licensee's or permittee's right to request a hearing.

C. If a hearing is requested and received by the city clerk within the specified time period, the

matter shall follow the provisions of Chapter 2.92, Administrative Hearing Procedure. (Ord. No. 4384, § 1, 7-12-21; 2001 In-house code § 26-9)

5.04.110 Emergency suspension.

If the city clerk finds that cause exists for an immediate suspension or revocation of a license or permit, he or she may enter an order for immediate suspension of same. The licensee or permittee, upon notice of suspension or revocation, may request a hearing pursuant to Chapter 2.92, Administrative Hearing Procedure. (Ord. No. 4384, § 1, 7-12-21; 2001 In-house code § 26-10)

5.04.120 Violation—Penalty.

A person who violates the provisions of this chapter will be guilty of a misdemeanor, punishable pursuant to the provisions of the general penalty of the city code. (2001 In-house code § 26-11)

Chapter 5.08

BUSINESS LICENSE FEES

Sections:

5.08.010 Amusements.

5.08.020 Auctioneer.

5.08.030 Barber and beauty shops.

5.08.040 Bed and breakfast inn/facility.

5.08.050 Reserved.

5.08.060 Firearms dealer.

5.08.070 Fireworks permit.

5.08.080 Fire extinguishers (portable)—Hose station equipment (servicing and testing).

5.08.090 Food service establishments (restaurants, dairies, food stands, wagons or pushcarts, mobile food units, temporary parade vendors).

5.08.100 Fuel dispensing—Flammable liquids (private, retail, wholesale).

5.08.110 Garages (vehicular repair), car lots (new and used sales), service stations.

5.08.120 Junkyards and automobile wrecking business.

5.08.130 Liquor and malt beverage sales.

5.08.140 Massage.

5.08.150 Mobile home parks.

5.08.155 Motor-assisted scooters, electric bicycles, and bicycles equipped with GPS.

5.08.160 Noise permits.

5.08.170 Parade—Marching permits.

5.08.180 Pawnbrokers.

5.08.190 Private detectives and security patrol.

5.08.200 Public transport (taxis, carriages and drivers).

5.08.210 Recycling.

5.08.220 Secondhand dealers.

5.08.230 Sexually oriented businesses.

5.08.240 Nicotine product sales (retail).

5.08.250 Body art establishments and operations—Body artists.

5.08.260 Temporary/transient merchants—Door to door solicitors.

5.08.270 Towing and wrecker recovery operations.

5.08.280 Tree sales.

5.08.290 Tree maintenance businesses.

5.08.010 Amusements.

A. Billiard and Pool Tables—Bowling Alleys and Lanes.

1. The license fee for any business owning and providing for monetary consideration billiard/pool tables for customer use upon the business premises will be seventy-five dollars ($75.00) annually per location.

2. The license fee for conducting a business involving rentals of billiard/pool tables to businesses will be one hundred dollars ($100.00) annually.

3. The license fee for conducting business as a bowling alley/lanes will be one hundred thirty-five dollars ($135.00) annually per location.

B. Circuses and Carnivals. Every person to be licensed under this subsection must conform to the requirements of Chapter 5.36 concerning circuses, carnivals and exhibitions.

C. Coin-Operated Vending Machines. Every person to be licensed under this subsection must conform to the requirements of Chapter 5.40 concerning coin-operated vending machines.

D. Skating Rinks. The license fee for conducting a skating rink business will be one hundred thirty-five dollars ($135.00) annually per location.

E. Theaters. The license fee for conducting a theater business will be one hundred thirty dollars ($130.00) annually per location of business. (Ord. No. 3942, § 1, 1-9-12; Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 26-13)

5.08.020 Auctioneer.

Every person to be licensed under this section must conform to the requirements of Chapter 5.16 concerning auctioneers and auction businesses. (2001 In-house code § 26-14)

5.08.030 Barber and beauty shops.

The license fee for engaging in a barber or beauty shop business will be sixty-five dollars ($65.00) annually per location. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 26-15)

5.08.040 Bed and breakfast inn/facility.

Every person to be licensed under this section must conform to the requirements of Chapter 5.28 concerning bed and breakfast inns and facilities. (2001 In-house code § 26-16)

5.08.050 Reserved.

Editor's note—Ord. No. 4205, § 2, adopted October 9, 2017, repealed § 5.08.050. Former § 5.08.050 pertained to bingo and pull tabs and derived from the In-house Code of 2001.

5.08.060 Firearms dealer.

Every person to be licensed under this section must conform to the applicable requirements of Chapter 9.24 concerning firearms. (2001 In-house code § 26-18)

5.08.070 Fireworks permit.

Every person to be permitted under this section must conform to the applicable requirements of Chapter 8.20 concerning fireworks. (2001 In-house code § 26-19)

5.08.080 Fire extinguishers (portable)—Hose station equipment (servicing and testing).

Every person to be licensed under this section must conform to the requirements of Chapter 8.28 concerning fire extinguishers (portable) and hose station equipment (servicing and testing). (2001 In-house code § 26-20)

5.08.090 Food service establishments (restaurants, dairies, food stands, wagons or pushcarts, mobile food units, temporary parade vendors).

Every person to be licensed or permitted under this section must conform to the requirements of Chapter 8.40 pertaining to food and food handlers. (2001 In-house code § 26-21)

5.08.100 Fuel dispensing—Flammable liquids (private, retail, wholesale).

Every person to be licensed under this section must conform to the requirements of Chapter 8.32 concerning fuel dispensing and flammable liquids (private, retail, wholesale). (2001 In-house code § 26-22)

5.08.110 Garages (vehicular repair), car lots (new and used sales), service stations.

Every person to be licensed under this section must conform to the requirements of Chapter 5.20 concerning garages (vehicular repair), car lots (new and used sales) and service stations. (2001 In-house code § 26-23)

5.08.120 Junkyards and automobile wrecking business.

Every person to be licensed under this section must conform to the requirements of Chapter 5.24 concerning junkyard and automobile wrecking businesses. (2001 In-house code § 26-24)

5.08.130 Liquor and malt beverage sales.

Every person to be licensed or permitted under this section must conform to the requirements of

Chapter 5.12 concerning sales of alcoholic and malt beverages. (2001 In-house code § 26-25)

5.08.140 Massage.

Every person to be licensed under this section must conform to the requirements of Chapter 5.52 concerning massage business establishments and massage therapists. (Ord. 3610 § 1 (part), 2004: 2001 In-house code § 26-26)

5.08.150 Mobile home parks.

The license fee for conducting a mobile home park business will be one hundred fifteen dollars ($115.00) annually per location. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 26-27)

5.08.155 Motor-assisted scooters, electric bicycles, and bicycles equipped with GPS.

A. Every person to be licensed under this section must conform to the requirements of Chapter 10.82 concerning motor-assisted scooters, electric bicycles, and bicycles equipped with GPS.

B. The non-refundable license fee for a business operating motor-assisted scooters, electric bicycles, and bicycles equipped with GPS shall be two hundred dollars ($200.00) per year.

C. The non-refundable license fee for motor-assisted scooters, electric bicycles, and bicycles equipped with GPS which are to be operated within the city shall be five dollars ($5.00) per year for each motor-assisted scooter, electric bicycle, or bicycle equipped with GPS. (Ord. No. 4380, § 2, 6-28-21)

5.08.160 Noise permits.

Every person to be permitted under this section must conform to the requirements of Chapter 8.56 of this code concerning noise permits, and Chapter 5.36 of this title concerning public addresses, entertainment, etc. The fee for a noise permit will be fifteen dollars ($15.00) daily per event or activity as requested by the applicant on forms provided by the city clerk. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 26-28)

5.08.170 Parade—Marching permits.

The license fee for any person, organization, association or group of ten (10) or more individuals wishing to walk, march, run or jog, for an organized community or special event or purpose, or with the intent of conducting a parade, will be fifteen dollars ($15.00) daily per organized event or activity. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 26-29)

5.08.180 Pawnbrokers.

Every person to be licensed under this section must conform to the requirements of Chapter 5.56 concerning pawnbroker businesses. (2001 In-house code § 26-30)

5.08.190 Private detectives and security patrol.

Every person to be licensed under this section must conform to the requirements of Chapter 5.48 concerning private detective and security patrol businesses and employees. (2001 In-house code § 26-31)

5.08.200 Public transport (taxis, carriages and drivers).

Every person to be licensed under this section must conform to the requirements of Chapter 5.72 concerning public transport businesses and employees, including taxis and carriages. (2001 In-house code § 26-32)

5.08.210 Recycling.

A. All persons desiring to engage in the business of recycling aluminum cans, glass products, paper products, or any other materials composed principally of nonferrous metals must pay a licensing fee of sixty-five dollars ($65.00) annually per location.

A license is not required for grocery stores or other retail businesses which engage in recycling

aluminum cans, glass products, or paper products incidental to their principal business, nor is a license required for any business licensed as a junkyard or automobile salvage business pursuant to Chapter 5.24.

B. All licensees must construct and maintain a fence enclosing the premises of the recycling business, which will be of sufficient design and height to ensure that any materials, containers or equipment stored within the fenced area are obscured from view by other businesses, residences, or passing motorists.

C. The proprietor of any recycling business, upon acceptance of a business license, must consent to inspection of the premises at any reasonable time by any official or officer of the city for the purpose of determining compliance with city code or any conditions placed upon the license as may be reasonably imposed by the governing body. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 26-33)

5.08.220 Secondhand dealers.

Every person to be licensed under this section must conform to the requirements of Chapter 5.60 concerning the business of secondhand dealers. (2001 In-house code § 26-34)

5.08.230 Sexually oriented businesses.

Every person to be licensed under this section must conform to the requirements of Chapter 5.64 concerning sexually oriented businesses. (2001 In-house code § 26-35)

5.08.240 Nicotine product sales (retail).

The license fee for selling nicotine products at retail will be sixty-five dollars ($65.00) annually per location. (Ord. No. 4327, § 2, 10-26-20; Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 26-36)

Editor's note—Ord. No. 4327, § 2, adopted Oct. 26, 2020 amended § 5.08.240 and in doing so changed the title of said section from "Soft drinks and/or tobacco product sales (retail)" to "Nicotine product sales (retail)," as set out herein.

5.08.250 Body art establishments and operations—Body artists.

A. Every person to be licensed under this section must conform to the requirements of Chapter 5.68 concerning body art establishments and operations, and body artists.

B. The license fee for a body art establishment shall be one hundred sixty-five dollars ($165.00) annually per location.

C. The permit fee for a body artist shall be seventy-five dollars ($75.00) per year.

D. The license fee for a temporary body art establishment shall be one hundred dollars ($100.00) per fourteen (14) day period or portion thereof. No separate permit is required for any permitted body artist to provide body art services at a licensed temporary body art establishment.

E. The license fee for each body art special event shall be one hundred dollars ($100.00) and each license issued shall be effective for not more than seven consecutive days, or portion thereof. The license is not renewable and each special event requires a separate application and approval process. (Ord. No. 3984, § 1, 7-8-13; Ord. No. 3872, § 1, 10-12-09; Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; Ord. 3460 § 1, 2001: In-house code § 26-37: prior code § 40½-3)

5.08.260 Temporary/transient merchants—Door to door solicitors.

Every person to be licensed under this section must conform to the requirements of Chapter 5.76 concerning temporary/transient merchant businesses and door to door solicitation in residential areas. (2001 In-house code § 26-38)

5.08.270 Towing and wrecker recovery operations.

The license fee for conducting a towing and wrecker recovery operations business will be ninety dollars ($90.00) annually per location of business. All persons applying for a license must comply with the provisions set forth in Chapter 5.78 of city code. (Ord. No. 4009, § 3, 12-9-13; Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 26-39)

5.08.280 Tree sales.

The license fee for conducting a temporary business for sale of evergreens or Christmas trees will be eighty dollars ($80.00) per thirty (30) day period or portion thereof. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 26-40)

5.08.290 Tree maintenance businesses.

Every person to be licensed under this section must conform to the requirements of Chapters 5.80 and 12.16 concerning tree maintenance businesses. (Ord. 3614 § 1 (part), 2004: 2001 In-house code § 26-41)

Chapter 5.12

ALCOHOLIC LIQUOR AND MALT BEVERAGES*

Sections:

5.12.010 Purpose—Authority—General provisions.

5.12.020 Definitions.

5.12.030 Licenses and permits—Types.

5.12.040 License or permit required.

5.12.050 Application—Fees—Procedures for issuance.

5.12.055 Manufacturing and rectifying.

5.12.060 Transfer of ownership; location.

5.12.070 Restrictions upon license or permit applicants and holders.

5.12.080 Term—Renewal of annual licenses and permits.

5.12.090 Annual review compliance criteria.

5.12.100 Temporary permits.

5.12.110 Open container—Sales and consumption—Exceptions.

5.12.120 Special use areas—Special event permit.

5.12.130 Hours of operation.

5.12.140 Persons under the age of twenty-one (21) years—Restrictions—Provisions.

5.12.150 Suspension or revocation of license; denial of permit.

5.12.160 Violations.

5.12.170 Monitoring of violations—Administrative fee—Hearings.

5.12.180 Penalty.

***Editor's note**—Ord. No. 4186, § 1, adopted June 26, 2017, repealed ch. 5.12, §§ 5.12.010—5.12.110 and enacted a new ch. 5.12, §§ 5.12.010—5.12.180 as set out herein. Former ch. 5.12 pertained to similar subject matter and derived from the 2001 In-house code; Ord. 3470 adopted in 2002; Ord. 3489 adopted in 2002; Ord. 3576 adopted in 2004; Ord. 3592 adopted in 2004; Ord. 3649 adopted in 2005; Ord. 3651 adopted in 2005; Ord. 3701 adopted in 2006; Ord. 3785 adopted in 2008; Ord. No. 3844, adopted June 8, 2009; Ord. No. 3888, adopted April 12, 2010; Ord. No. 3915, adopted March 28, 2011; Ord. No. 4080, adopted July 13, 2015 and Ord. No. 4171, adopted April 10, 2017.

5.12.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to establish regulations and procedures for the review, licensing, permitting, regulation and administration of alcoholic liquor and malt beverage sales, consumption and related activities within the city.

B. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-101, et seq., and Wyo. Stat. Title 12, Alcoholic Beverages, the sale, consumption, regulation and related activities pertaining to alcoholic liquor and malt beverages shall comply with city code and Wyo. Stat. Sections 12-1-101, et seq., which is made a part of this chapter by reference, except as otherwise set forth in this chapter.

C. On behalf of the governing body (licensing authority), the city clerk is authorized to review and issue temporary catering, malt beverage, manufacturer's off-premises, winery off-premises, special event and consumption permits, and to request supporting documentation in conjunction with all applications filed with the city clerk for any type of license or permit identified in this chapter. Prior to issuance, review and approval of applications, including inspection of the proposed premises to be licensed or permitted, will be conducted by various city department representatives and determined by the city clerk.

1. The city clerk and chief of police are authorized to review and approve requests from licensees and permittees for certain special use areas and special event permits pursuant to Sections 5.12.110 and 5.12.120 of this chapter.

D. Representatives of law enforcement, health, building and fire departments may enter a licensed and permitted building and room to make reasonable inspections to enforce compliance.

(Ord. No. 4453, § 1, 7-25-22; Ord. No. 4277, § 1, 6-24-19; Ord. No. 4206, § 1, 10-9-17; Ord. No. 4186, § 1, 6-26-17)

5.12.020 Definitions.

A. As used in this chapter:

1. "Adult entertainment" means any form of dancing, exhibition or display involving male or female nudity or partial nudity for any period of time intended to gratify the sexual desires of any entertainer or patron. For the purposes of this chapter, "adult entertainment" shall also include any "sexually oriented business" as defined by Section 5.64.020 of the city code;

2. "Building" means a roofed and walled structure built or set in place for permanent use;

3. "Delivery" means the act of providing alcohol to a purchaser;

4. "Delivery employee" means a licensee's employee or contractor responsible for delivering alcohol to the purchaser;

5. "Delivery service" means the taking of orders and providing the transporting and delivery of alcoholic liquor and malt beverage products to patrons at a residence, organization or business for a fee, and includes a liquor licensee's process by which their employee or contractor provides alcohol to a purchaser;

6. "Operational" means offering for sale on an ongoing weekly basis to the general public alcoholic liquor and malt beverages as authorized under a license or permit issued under this chapter and Wyo. Stat. Section 12-1-101, et seq. "Operational" shall not apply to a holder of a special malt beverage permit under Section 5.12.030(A)(15) of this chapter;

7. "Open container" means any bottle, can, container or other receptacle that contains any amount of alcoholic liquor or malt beverage that is open, has a broken or tampered seal, or the contents of which are partially removed. As used in this chapter, "open container" shall not include:

a. Wine that is resealed for a patron in compliance with the provisions of Wyo. Stat. Sections 12-4-410(e) and 12-4-413(f),

b. "Slushies" that are securely sealed and are unopened or untampered with for a patron by a retail liquor licensee pursuant to Section 5.12.070(B)(2) of this chapter; or

c. Licenses and permits issued with an approved waiver of open container prohibitions;

8. "Restaurant dispensing area" means an area approved by the licensing authority pursuant to Wyo. Stat. Section 12-4-410;

9. "Room" means an enclosed and partitioned space within a building large enough for a person to enter but not a cabinet. Partitions may contain windows and doorways, but any partition shall extend from floor to ceiling;

10. "Sealed" means in its original package and unopened factory sealed (bottle of wine or spirits/case of beer), in a plastic bag, heat sealed closed, or in a container that has a breakable seal incorporated in the top;

11. "Sell" or "sale" means offering for sale, trafficking in, bartering, delivering or dispensing and pouring for value, exchanging for goods, services or patronage or an exchange in any way other than purely gratuitously. As used in this chapter, "sell" or "sale" includes the delivery of any alcoholic liquor or malt beverage made otherwise than by gift;

12. "Serve" means the act of delivering alcohol to a purchaser or delivery employee or contractor on the licensed premises;

13. "Weekly" means at least one eight-hour day within a period of seven consecutive calendar days beginning on Sunday.

(Ord. No. 4508, § 1, 6-26-23; Ord. No. 4367, § 1, 6-14-21; Ord. No. 4366, § 1, 6-14-21; Ord. No. 4277, § 1, 6-24-19; Ord. No. 4242, § 1, 9-24-18; Ord. No. 4206, § 1, 10-9-17; Ord. No. 4186, § 1, 6-26-17)

5.12.030 Licenses and permits—Types.

A. The city is authorized, pursuant to Wyo. Stat. Section 12-1-101, et. seq., to issue the following types of alcohol, microbrewery, winery, satellite, special event and malt beverage licenses and permits:

1. Bar and Grill Liquor License. The governing body may authorize issuance of a bar and grill liquor license to an applicant pursuant to Wyo. Stat. Section 12-4-413.

2. Catering Permit. The city clerk may authorize issuance of a temporary catering permit to retail and resort liquor licensees authorizing off-premises sales of alcoholic liquor and malt beverages.

a. On behalf of the licensing authority, the city clerk is authorized to provide written approval to eligible city liquor licensees who wish to submit an application for a temporary catering permit within the jurisdiction of another liquor licensing authority within the state of Wyoming. Written request for approval must be submitted by the eligible licensee which contains information as required by the city clerk.

3. Consumption Permit. The city clerk, with approval by the chief of police, may issue a temporary permit to applicants under the provisions of this chapter.

4. Limited Retail Liquor License. The governing body may authorize issuance of a license to a club, as defined in Wyo. Stat. Section 12-1-101, to provide sales and service of alcoholic liquor and malt beverages within a licensed building to its members and their guests.

5. Malt Beverage Permit. The city clerk, with approval by the chief of police, may authorize issuance of a temporary permit to any responsible person or organization allowing malt beverages sales only at a picnic, bazaar, fair, special holiday or similar public gathering.

6. Malt Beverage Permit with Open Container Waiver. The city clerk, with approval by the chief of police, may authorize issuance of a temporary permit in conjunction with a special community-based event, waiving the city's open container restriction.

7. Manufacturer's Off-Premises Permit. The city clerk, with approval by the chief of police, may authorize issuance of a permit to the holder of a manufacturer's license, as issued by the Wyoming Liquor Division, pursuant to Wyo. Stat. Section 12-2-203, authorizing the permittee to sell product manufactured at the site identified on the manufacturer's license only for sales at meetings, conventions, private parties, dinners and other similar gatherings to promote their product. No permittee holding a manufacturer's off-premises permit shall sell or permit consumption of any of their manufactured product off the premises described in the permit. An off-premises permit shall be issued for one twenty-four-hour period, subject to the schedule of operating hours set pursuant to Wyo. Stat. Section 12-5-101 and Section 5.12.130 of this chapter. No holder of a manufacturer's license shall receive more than twelve (12) off-premises permits in any one calendar year.

a. In addition to the one additional license or permit authorized under Wyo. Stat. Section 12-4-412(b)(iii), the holder of a microbrewery or winery permit under this section may also hold a manufacturer's license under Wyo. Stat. Section 12-2-203(a).

8. Microbrewery Permit. The governing body may authorize issuance of a microbrewery permit to an applicant to provide for brewing and dispensing of malt beverages pursuant to Wyo. Stat. Sections 12-2-201(e) and 12-4-415. The holder of a microbrewery permit may also hold a malt beverage permit under Wyo. Stat. Section 12-4-502(a) and Section 5.12.100 of this chapter for the purpose of selling its own brewed malt beverages. An applicant may submit a written request to the governing body for approval of an outdoor fenced or enclosed area immediately adjacent to the licensed brewing site for the purpose of dispensing and consumption of its product pursuant to Wyo. Stat. Section 12-4-415, and Sections 5.12.120(E) and 5.12.130 of this chapter.

9. Resort Liquor License. The governing body may authorize issuance of a license to an applicant for alcoholic liquor and malt beverage sales and service at a resort pursuant to Wyo. Stat. Sections 12-4-401 and 12-5-201.

10. Restaurant Liquor License. The governing body may authorize issuance of a license to an applicant for sales and service of alcoholic liquor and malt beverages, as prepared and dispensed from areas approved at a restaurant by the licensing authority pursuant to Wyo. Stat. Sections 12-1-101(a)(xiv) and 12-4-410.

a. Qualifying food service restaurants shall have a suitable kitchen necessary for preparing, cook-

ing, and serving individually priced meals which are prepared and served primarily for on-premises consumption and seating/dining areas that shall be inspected and approved by Cheyenne/Laramie County Health Department, Division of Environmental Health, and the licensing authority and are subject to requirements pursuant to Wyo. Stat. Section 12-1-101(a)(xiv).

b. No consumption of alcoholic or malt beverages shall be permitted within the dispensing areas pursuant to Wyo. Stat. Section 12-4-410(b).

c. No restaurant liquor licensee shall promote or operate the restaurant as a bar and/or lounge pursuant to Wyo. Stat. Section 12-4-410(d).

d. All sales of alcoholic or malt beverages authorized by a restaurant liquor license shall cease at the time food sales cease, or at the hours specified by Section 5.12.130(B) of this chapter if food sales extend beyond the hours specified therein.

e. Restaurant liquor licensees shall submit, at the time of renewal, an annual report to the licensing authority that the primary source of revenue from the operation of the restaurant to be licensed will be derived from food services and not from the sale of alcoholic or malt beverages pursuant to Wyo. Stat. Section 12-4-408.

f. Exceptions. Convenience stores whose primary function is for off- premises consumption of food sales are not eligible to obtain a restaurant liquor license.

11. Retail Liquor License. In accordance with Wyo. Stat. Section 12-4-201, the governing body may authorize issuance of a license to an applicant for direct sales and service of alcoholic liquor and malt beverages within a licensed building to patrons in a lounge or bar environment, which may include sales for off-premises consumption conducted through a separate room within the licensed building designated as a package store and/or through a drive-up facility adjoining the room as approved by the governing body.

12. Satellite Manufacturing Permit. The governing body, upon application, may authorize issuance of a permit to the holder of a manufacturer's license, as issued by the Wyoming Liquor Division, pursuant to Wyo. Stat. Section 12-2-203.

13. Satellite Winery Permit. The governing body, upon application, may authorize issuance of a permit to the holder of a winery permit pursuant to Wyo. Stat. Section 12-4-412.

14. Special Event Permit. The city clerk, with approval by the chief of police, may authorize the issuance of a permit to a retail liquor licensee in conjunction with holding a special event in the licensed building of the licensee at which primarily persons under the age of twenty-one (21) years of age are permitted pursuant to Wyo. Stat. Section 12-5-201(k).

15. Special Malt Beverage Permit. The governing body may issue an annual special malt beverage permit to any reasonable person or organization for sales of malt beverages only at public auditoriums, civic centers or events centers.

a. The public auditorium, civic center or events center shall be an enclosed building and shall contain an auditorium setting that seats at least two hundred fifty (250) persons and be used for public gatherings, events or entertainment. Written confirmation by the applicant must be provided with the application stating that the owner of the building authorizes the sale and consumption of malt beverages within the building for which the permit will be effective. If the applicant is not the owner of the building, a written lease agreement between the applicant and building owner must be submitted containing the authorization. As used in this section, auditorium setting means an area designated for the primary purpose of seating an audience to view or partake in an event or entertainment.

b. Upon application and any renewal application, the person or organization holding a special malt beverage permit must provide written confirmation to the city clerk that the owner of the building authorizes the sale and consumption of malt beverages within the building for the term in which the permit will be effective.

c. No permittee shall sell any malt beverages for off-site consumption outside of the building,

and it shall be the responsibility of the permittee to ensure that no sales are made to nor any consumption allowed by any person under the legal drinking age within the licensed building.

d. No transfer of permit ownership or building location shall be allowed.

e. Provisions pertaining to "operational," as defined in Section 5.12.020, contained within this chapter do not apply to a holder of a special malt beverage (annual) permit.

16. Special Malt Beverage Permit for Events at Rodeo Arenas. Pursuant to Wyo. Stat. Section 12-4-507, the city clerk shall issue a special malt beverage permit for the sale of malt beverages upon submission of a reasonable plan only at events conducted on the grounds of an indoor or outdoor rodeo with a total seating capacity of over seven thousand five hundred (7,500).

17. Winery Permit. The governing body may authorize issuance of a permit to an applicant for the manufacturing and dispensing of wines pursuant to Wyo. Stat. Section 12-4-414.

18. Winery-Off-Premises Permit. The city clerk, with approval by the chief of police, may authorize issuance of a permit to the holder of a Winery permit, pursuant to Wyo. Stat. Section 12-4-414(g), authorizing the permittee to sell product manufactured at the site identified on the winery permit only for sales at meetings, conventions, private parties, dinners and other similar gatherings to promote their product. No permittee holding a winery off-premises permit shall sell or permit consumption of any of their manufactured product off the premises described in the permit. An off-premises permit shall be issued for one twenty-four-hour period, subject to the schedule of operating hours set pursuant to Wyo. Stat. Section 12-5-101 and Section 5.12.130 of this chapter. No holder of a winery permit shall receive more than twelve (12) off-premises permits in any one calendar year. (Ord. No. 4508, § 1, 6-26-23; Ord. No. 4453, § 1, 7-25-22; Ord. No. 4367, § 1, 6-14-21; Ord. No. 4365, § 1, 6-14-21; Ord. No. 4360, §§ 1, 2, 4-12-21; Ord. No. 4277, § 1, 6-24-19; Ord. No. 4242, § 1, 9-24-18; Ord. No. 4186, § 1, 6-26-17)

5.12.040 License or permit required.

A. It is unlawful for any person to manufacture, brew, vint, or distill, or possess for sale, sell or dispense for any pecuniary advantage or give away to the public, as an inducement to the public to patronize any business, place or person within the city, any alcoholic liquor or malt beverage as defined in this chapter, or to operate a microbrewery, winery, or manufacturing operation within the city without first obtaining a license or permit to do so and paying the license or permit fees therefor, and for a distiller or rectifier, a satellite manufacturer's permit or manufacturer's off-premises permit.

B. A consumption permit, and payment of the permit fee, is required pursuant to the provisions of this chapter.

(Ord. No. 4277, § 2, 6-24-19; Ord. No. 4186, § 1, 6-26-17)

5.12.050 Application—Fees—Procedures for issuance.

A. Pursuant to the provisions of Wyoming Statutes Sections 12-1-101, et seq. and this chapter, any person desiring a license or permit to sell, dispense, consume, or pertaining to alcoholic liquor and malt beverages within the city, shall file an application with the city clerk, including supporting documentation as required by the city clerk and payment of applicable fees as follows:

Type	Fee
Retail liquor license	$1,500.00
Limited retail liquor license	625.00
Resort liquor license	1,500.00
Restaurant liquor license	1,050.00
Bar and grill liquor license	10,500.00 (initial/new) 1,500.00 (renewal)
Transfer of ownership/ location	100.00*
Catering permit	50.00
Consumption permit	10.00
Malt beverage permit	50.00**
Malt beverage permit with open container waiver	50.00**
Manufacturer's off-premises permit	50.00

Type	Fee
Winery off-premises permit	50.00
Microbrewery permit	500.00***
Satellite winery permit	100.00
Satellite manufacturer's permit	100.00
Special event permit (under 21 years of age attendees; retail liquor licensee only)	10.00
Special malt beverage permit (annual)	1,500.00
Special malt beverage permit for events at rodeo arenas	$100.00 per day of event
Winery permit	500.00***

* Transfer of ownership and/or location for certain types of licenses is not allowed pursuant to Wyoming Statutes, Title 12, or this chapter.

** The city clerk may grant a permit at a lower daily fee of not less than $10.00 to a nonprofit organization classified as nonprofit under the federal IRS code.

***When dual holding of a microbrewery or winery permit with a retail, restaurant, resort or bar and grill liquor license exists, no additional fee other than the retail, restaurant, resort or bar and grill license fee is assessed.

B. In addition to paying an application fee at the time of filing, an applicant shall also pay, if applicable, a nonrefundable publication fee in an amount designated by the city clerk to cover the cost of publishing public hearing notices as required by Wyoming Statute, Title 12.

C. Annual licenses and permits. When filing new, renewal, or transfer of ownership or location applications for annual licenses or permits, the applicant shall submit a signed affidavit and authorization form, as provided by the city clerk, which includes the applicant's name, signature, address, and date of birth to assist with application processing by the city clerk and chief of police. The applicant shall agree to a background check conducted through the police department or as approved by the chief of police.

1. Applications for licenses and permits will be reviewed for approval and issuance pursuant to compliance with state law and city code. Upon issuance and prior to alcoholic liquor and malt beverage sales and services being provided to patrons, the licensee or permittee shall display the license or permit in a conspicuous place within the licensed or permitted building for the term of the license or permit.

2. Any license or permit approved for issuance by the governing body shall not be issued by the city clerk until the license or permit can be posted and displayed in a physically functional building following any applicable approvals required by city law enforcement, development, zoning, health, building and fire representatives, and the city clerk.

D. The chief of police is authorized to assess a fee payable by licensees and permittees in conjunction with extra law enforcement resources as required by the chief in conjunction with events or activities in which the chief determines extra law enforcement presence is needed to monitor and enforce the provisions of this chapter or to provide for the health, safety and welfare of the public. The chief is authorized to establish and revise the fee schedule with said schedule on file in the office of the chief of police.

1. Exception. This section does not apply to special malt beverage permits for events at rodeo arenas. However, the city and permittee may engage in negotiations relating to recouping costs included by the licensing authority related to the permitted event.

(Ord. No. 4453, § 1, 7-25-22; Ord. No. 4360, § 2, 4-12-21; Ord. No. 4277, § 2, 6-24-19; Ord. No. 4186, § 1, 6-26-17)

5.12.055 Manufacturing and rectifying.

A. A holder of a manufacturer's license who is a federally licensed distiller or rectifier may dispense free of charge at the site identified on the manufacturer's license samples in quantities not to exceed one and one-half ounces of their product manufactured at the site identified on the manufacturer's license and no more than three ounces of samples per consumer per day. The dispensing of samples shall be subject to the schedule of operat-

ing hours set pursuant to Section 5.12.130, the licensed building provisions provided in Wyo. Stat. Section 12-5-201 and licensed building requirements and restrictions contained in this chapter.

B. The governing body, upon application, payment of the permit fee and following a public hearing, may issue to the holder of a manufacturer's license granted under subsection A of this section who is a federally licensed distiller or rectifier, a satellite manufacturer's permit which allows the permittee to sell product manufactured at the site identified on the manufacturer's license at not more than one satellite location within Wyoming separate from its manufacturing site under the original permit. Products sold at a manufacturer's satellite location may be obtained through the Wyoming Liquor Division as provided by Wyo. Stat. Section 12-2-303(a). If the satellite location is situated within the property boundary of the manufacturing site, the product may be distributed directly from the permit holder's manufacturing site subject to Wyo. Stat. Section 12-2-303(d). The satellite manufacturer's permit may be issued on application to the governing body. The satellite manufacturer's permit shall be subject to the terms and conditions of Wyo. Stat. Sections 12-2-203 and 12-4-106, the licensed building provisions pursuant to Wyo. Stat. Section 12-5-201, and Sections 5.12.080, 5.12.090, 5.12.130 and corresponding provisions, including licensed building requirements and restrictions, contained in this chapter.

C. For purposes of this section:

1. "Distiller" includes any person who:

a. Produces distilled spirits from any source or substance;

b. Brews or makes mash, wort or wash fit for distillation or for the production of distilled spirits, other than the making or using of mash, wort or wash in the authorized production of wine or beer, or the production of vinegar by fermentation;

c. By any process separates alcoholic spirits from any fermented substance; or

d. Making or keeping mash, wort or wash, has a still in operation at the site identified on the manufacturer's license.

2. "In operation" means is currently being operated or has been operated in the preceding twelve (12) months with all necessary permits;

3. "Manufacture" or "manufactured" means distilling or rectifying and bottling or packaging any spirituous fluid, substance or compound intended for beverage purposes which contains at least one-half of one percent alcohol by volume;

4. "Rectifier" includes any person who colors, flavors or otherwise processes distilled spirits by distillation, blending, percolating or other processes.

(Ord. No. 4277, § 2, 6-24-19)

5.12.060 Transfer of ownership; location.

An eligible licensee or permittee seeking to request a transfer of ownership and/or location of an existing annual license shall submit an application with the applicable fee, including a nonrefundable publication fee, pursuant to Section 5.12.050 of this chapter. The transfer application shall be set for public hearing and consideration by the governing body in a manner consistent with Wyo. Stat. Sections 12-4-104 and 12-4-601.

(Ord. No. 4186, § 1, 6-26-17)

5.12.070 Restrictions upon license or permit applicants and holders.

A. Pursuant to Wyo. Stat. Section 12-4-104(iv), a license or permit authorized by this title shall not be held by, issued or transferred to any annual licensee or permittee who fails to demonstrate that his licensed alcoholic or malt beverage enterprise will be operational in a planned but not physically functional building within one year after a license or permit has been approved, issued or transferred, or if holding a license, fails to open his business in a functional building within one year after license issuance or transfer and remain operational thereafter. Upon a showing of good cause by the licensee or permittee and for an additional period of not to exceed one year, the governing body may extend the time period in which the business or enterprise of the licensee or permittee is required to become operational or open for

business. Any license or permit in violation of this section shall not be renewed by the governing body and once the enterprise is operational or open for business, no licensee shall be eligible to repeat the grace periods made available by this section without the consent of the governing body due to extraordinary circumstances. For purposes of this section "remain operational" means operational consecutively, in any license or permit term year, for twelve (12) months or for not less than three months if determined by the governing body to be a seasonal operation.

B. Retail Liquor Licensees.

1. A licensee offering the sale of alcoholic liquor and/or malt beverages from a package store for off-premises consumption must designate a room within the licensed building for this purpose, and shall submit a suitable drawing of the building, including a depiction of the room, to the city clerk in conjunction with any new or renewal application.

2. A licensee may offer pre-mixed alcoholic drinks known as "slushies" within their licensed building that may be removed from the building for off-premises consumption. The drink(s) shall be securely sealed by the licensee, or their employees or agents, in a tamper-proof transparent bag which shall also be securely sealed prior to removal from the premises. The drinks sealed in accordance with the provisions of this section, when unopened or untampered with, shall not be deemed an open container under this chapter.

3. A licensee may provide alcoholic liquor or malt beverage delivery services in conjunction with the licensee's business operations pursuant to Wyo. Stat. Section 12-5-601.

a. Retail liquor licensees, microbrewery permittees, winery permittees, satellite winery permittees, and satellite manufacturing permittees, may be permitted to provide delivery service for the delivery of alcohol to customers. Microbreweries and wineries shall only be permitted to provide delivery of their manufactured product. Delivery services shall be subject to the following:

i. No order shall be received from nor delivery made to a person under twenty-one (21) years of age. Each purchaser shall be required to provide a valid driver's license or valid government issued identification upon delivery.

ii. No part of a publicly owned sidewalk, highway, street, or alley shall be used for taking orders or conducting sales. No sales shall be made to intoxicated individuals pursuant to Section 5.12.160(C) of this chapter.

iii. Alcohol shall only be delivered to customers in a sealed package.

iv. Delivery shall not be made to or on public property and shall not be delivered outside the city of Cheyenne boundaries unless otherwise allowed by Wyoming Statute, resolution of the Laramie County Commissioners, or order of the Governor of Wyoming.

v. Delivery service employees shall have completed an alcohol server training programs as approved by the Wyoming Liquor Division and pursuant to Section 5.12.090 of this chapter; shall be at least twenty-one (21) years of age; shall maintain a valid driver's license; shall maintain valid vehicle insurance coverage as required by Wyoming Statute; shall be an employee or contractor of the licensee; and shall be required to confirm the identification of the purchaser.

vi. The licensee and/or the delivery service employee or contractor shall notify the Cheyenne Police Department of any criminal incident or criminal activity which is observed or occurs as soon as reasonably possible.

vii. All sales shall occur on the licensee's premises by in-person purchase, online order, order by app, or order by phone. Payment shall be received at the time of purchase. Payment may not occur upon delivery.

viii. Licensees shall keep a record of each delivery service transaction for a period of no less than two years which shall be made available to the city upon request. The record shall include, at minimum, the name and address of the purchaser, date and time of order, address of delivery, name of delivery employee or contractor, and the product purchased and delivered.

ix. Delivery shall only be made to the purchaser.

x. Delivery shall be prohibited for kegs.

xi. Delivery shall be completed the day of the sale.

4. All retail liquor licensees, microbrewery permittees, winery permittees, satellite winery permittees, and satellite manufacturing permittees, may establish a delivery service without submitting an amended operation plan, provided that the licensee submits written notice to the city clerk of its intent to provide delivery services. Failure to provide notice shall prohibit the licensee from providing delivery services.

5. All retail liquor licensees, microbrewery permittees, winery permittees, satellite winery permittees, and satellite manufacturing permittees, may establish curbside pick-up services at the licensed premises without submitting an amended operation plan.

6. Any violation of the aforementioned requirements, restrictions, or procedures by any licensee, licensee's employee, or contractor shall be a misdemeanor punishable pursuant to the general penalty provisions set forth in chapter 1.24.010 of the city code.

7. Should any portion of this section be in conflict with any other city of Cheyenne ordinance, this section is deemed to control or supersede.

(Ord. No. 4366, § 1, 6-14-21; Ord. No. 4299, § 1, 4-13-20; Ord. No. 4186, § 1, 6-26-17)

5.12.080 Term—Renewal of annual licenses and permits.

A. Licenses and permits renewed on an annual basis (i.e. retail, limited retail, resort, restaurant, and bar and grill licenses, and microbrewery, winery, satellite and special malt beverage permits) are effective for a period of not more than one year, expiring each year on March 31. A license or permit is considered a personal privilege to the holder and the term of the license or permit will be for one year unless sooner revoked or suspended. The term of a license or permit may be less than one year if specified by the governing body to coincide with the annual dates of license or permit renewal. The city clerk shall pro-rate the annual application fee accordingly for any initial license or permit issued for less than one year.

1. Any licensee or permittee not attempting to renew a newly issued pro-rated license or permit valid for one year shall not be eligible for any annual license or permit authorized under this chapter for a period of two years after the expiration date of the pro-rated license or permit.

B. Applications for renewal of an annual license or permit, together with applicable fees, must be submitted by the date and time established annually by the city clerk. An annual report of licensees and permittees shall be submitted to the governing body and city clerk by the chief of police and will include information on compliance, noncompliance and any violations resulting in convictions imputed to the licensee or permittee, during the previous licensing term, with state law, city code, and review compliance criteria. The report will be evaluated by the governing body during the renewal process. Any violation or noncompliance with state law or city code will be considered by the governing body in its decision to renew, or not renew, an annual license or permit.
(Ord. No. 4186, § 1, 6-26-17)

5.12.090 Annual review compliance criteria.

A. The provisions in this section constitute the governing body's annual licensee and permittee review compliance criteria. Licensees and permittees shall:

1. Provide initial orientation training on alcohol and malt beverage related sales and service for new employees and all volunteers who will be selling or furnishing alcohol or malt beverages, and on-site managers and persons who may provide on-site security services on behalf of the licensee or permittee upon the premises.

a. Provide training prior to any duties being performed that relate to alcohol and malt beverage sales and service. Orientation training materials must be approved by the chief of police.

b. Ensure that persons who physically sell, serve or deliver alcoholic liquor or malt beverages at

retail on or off the premises of a licensee or permittee, and on-site managers and any persons providing on-site security services successfully complete an alcohol training program as approved by the Wyoming Liquor Division pursuant to state law and the division's rules and regulations. Program participants must successfully complete the program within ninety (90) days of employment or initial date of providing services. Licensees and permittees must maintain, upon the business premises, a current list of bona fide employees, volunteers, on-site managers and any persons providing on-site security services; date of hire/service; dates of orientation training and successful completion of the approved training program, including any required continuing training. The list shall be available for inspection by law enforcement personnel.

2. Prohibit sales to and consumption by persons under the legal drinking age within the licensed or permitted building or authorized areas of service.

3. Report to local law enforcement by the licensee, permittee, employee, volunteer, on-site manager, agents or any persons providing on-site security services, any incidents upon the premises requiring law enforcement response services. Immediate notification to the police department shall be provided when any criminal or illegal activity occurs or is observed in or upon the licensee's or permittee's property involving the licensed building and adjoining property affiliated with the sale or consumption of alcoholic liquor and malt beverages, including the reporting of any assault, aggravated assault, or assault and battery.

B. The governing body shall use the annual review compliance criteria to assist with identifying licensees, permittees and their agents who repeatedly violate any applicable provisions of law. Violations by persons, while acting in the service of the licensee or permittee, shall be imputed to the licensee or permittee for purposes of this section. A licensee or permittee may also be reviewed at any time during the licensing or permitting term upon the conviction of the licensee, permittee, its employees and/or agents for violations of this section.

C. The provisions contained in Sections 5.12.170 and 5.12.180 of this chapter shall apply to any violation of this section pertaining to annual review compliance criteria.
(Ord. No. 4186, § 1, 6-26-17)

5.12.100 Temporary permits.

A. Temporary permits, such as catering, consumption, malt beverage, malt beverage with open container waiver, and special events involving under 21 years of age attendees, are effective only for the term listed upon the permit issued by the city clerk. The permittee shall display the permit in a conspicuous place upon the premises, as disclosed in the application submitted to the city clerk, for the term of the permit.

B. All permittees and individuals, including volunteers, who will be selling, serving or delivering alcohol liquors and/or malt beverages pursuant to issuance of a temporary catering, malt beverage or malt beverage with open container waiver permit must complete initial orientation training as set forth in subsections 5.12.090 (A) (1) and (A) (1) (a) of this chapter.

C. Applicants for a catering, malt beverage or malt beverage with open container waiver permit must agree to and provide written signature of agreement on a conditions of approval form, as provided by the chief of police through the city clerk. The form, in addition to the permit, must be prominently posted upon the permitted premises for the term of the permit.

D. The chief of police, or authorized designee, may temporarily suspend for no longer than four hours any temporary permit issued under this chapter to maintain peace and order; health, safety and welfare of the public; for situations in which an emergency arises, or where there is an immediate threat to the security, property and welfare of any member of the public. The chief of police, or authorized designee, will work with the permittee to regain order; health, safety and welfare of the public and reinstate the permit at the earliest opportunity, if it can be done safely. The chief of police will submit a report to the governing body

within twenty-four (24) hours of the suspension of the permit outlining the specific reasons for the emergency suspension. Only the governing body has the authority to revoke a temporary permit. The governing body shall hold an emergency hearing if requested by the chief of police or city clerk to revoke any temporary permit. The governing body shall convene and consider the revocation request within twenty-four (24) hours of the request for revocation. If the permit has expired, the hearing may be held during a regularly scheduled meeting. The governing body shall receive testimony from city officials and the holder of the temporary permit and reach a conclusion on the request to revoke the temporary permit by a majority vote of the governing body within twenty-four (24) hours of the hearing.
(Ord. No. 4306, § 1, 5-26-20; Ord. No. 4186, § 1, 6-26-17)

5.12.110 Open container—Sales and consumption—Exceptions.

A. Unless authorized under Wyo. Stat. Sections 12-4-410(e) and 12-4-413(f) or otherwise authorized under this chapter, including subsections (B), (D), (E) and (G) of this this section and Section 5.12.120 of the city code, no person shall consume or carry in their immediate possession an alcoholic liquor or malt beverage in an open container, either on foot, within a motor vehicle or other means of conveyance, upon city streets, sidewalks, parks, public parking lots, public school property, or without the consent of the owner upon any private parking lot or any private areas that are open to the public.

B. The city clerk, with approval by the chief of police, may issue a catering or malt beverage permit, including a waiver of open container restrictions, to applicants requesting to have offered for sale:

1. Alcoholic liquor and/or malt beverages at the Cheyenne-Kiwanis Community House, Cheyenne Botanic Gardens and affiliated facilities, located within Lions Park; the community center located within the David R. Romero South Cheyenne Community Park; Cheyenne Civic Center; and the city-owned ice and events center, when under lease, as authorized by city staff responsible for reserving the facility for applicant use in accordance with facility reservation policies;.

2. Malt beverages in conjunction with adult softball/baseball games and tournaments held at the Pioneer Park Baseball Complex and Powers Field Complex, as authorized by city staff responsible for reserving the facility for applicant use in accordance with facility reservation policies. Sales provided under a catering permit shall be restricted to malt beverages only; or

3. Alcoholic liquor and/or malt beverages in conjunction with an event or activity held within Frontier Park, which permit shall also authorize consumption and carry by patrons of the event or activity.

C. Permits authorized under subsection (B) of this section shall not be issued unless:

1. The applicant submits proof of general liability coverage, including liquor liability, as approved and in an amount determined by the city risk manager or city attorney. Proof of coverage document must name the city of Cheyenne as an additional insured and certificate holder for the date and location of the event or activities for which the permit will be issued;

2. The applicant provides the city clerk with a written release, indemnification and hold harmless agreement as stated upon the permit application form; and

3. Sales, dispensing and consumption boundaries are approved by the chief of police and city clerk.

D. The city clerk, with approval by the chief of police, may issue a catering or malt beverage permit, with a waiver of open container restrictions, for community-based events and activities proposed to be held upon city-owned property, including the Depot Plaza; streets; sidewalks; and rights-of-way. A catering permit may be restricted to sales of wine and malt beverages only.

E. Subject to the requirements imposed under subsection (F) of this section, the chief of police

may authorize the city clerk to issue a consumption permit to any applicant requesting to consume or carry:

1. An alcoholic liquor or malt beverage in an open container on foot or as a passenger within a motor vehicle or other means of conveyance as part of a ceremony, show, theatre, parade or similar public event. A consumption permit shall not authorize the permit holder to sell alcoholic liquor or malt beverages; or

2. Champagne, wine and/or malt beverages in a park or facility with a space that may be individually reserved when approved by the city's department director or authorized representative, overseeing the grounds or responsible for reserving the grounds for applicant use in accordance with facility reservation policies. A consumption permit may be restricted to malt beverages only.

F. Prior to the city clerk issuing a consumption permit under subsection (E) of this section, the permit applicant shall provide the city clerk with a written release and an indemnification and hold harmless agreement and agree to assume responsibility relative to liquor liability coverage as approved by the city risk manager or city attorney.

G. Exceptions:

1. It shall not be unlawful for any person to consume or have in his or her possession any alcoholic liquor or malt beverage in a container that has been open or unsealed where a state limited transportation liquor license has been issued by the Wyoming Liquor Division. While traveling within the city, each vehicle operating under a state limited transportation liquor license must have a copy of the license conspicuously displayed in the rear window of the vehicle.

2. Alcoholic liquor or malt beverages may be consumed by those who are of legal drinking age within a limousine or horse-drawn carriage traveling within the city for the purposes of special private activities, as approved by the chief of police, in which there is no fee for the alcoholic liquor or malt beverages assessed by the owner or operator of the limousine or horse-drawn carriage.

3. The possession of open containers shall be permitted year-round within the downtown development authority's boundary defined in Section 2.76.040 of the city code subject to the following conditions:

a. The possession of open containers shall only be allowed between the hours of 12:00 p.m. and 10:00 p.m.;

b. This paragraph shall only allow for the possession of open containers of wine and malt beverages;

c. The possession of open containers shall only be authorized through the use of plastic cups or reusable containers provided by a wine or malt beverage vendor. The use of any glass container shall be strictly prohibited under this paragraph;

d. By resolution, the governing body may impose additional restrictions, or may modify the restrictions imposed under this subsection, on periods of time, boundaries of special areas or districts, beverage distribution, tracking, or event control;

e. A wine or malt beverage vendor shall refuse to sell or offer for sale wine or malt beverages in an open container to any person during an inclement weather event if in judgement of the vendor, the health and safety of the person will be endangered because of the effects of alcohol on the person and the dangers presented due to the inclement weather event; and

f. The possession of open containers shall only be permitted on foot within the downtown development authority's boundary defined in Section 2.76.040 of the city code. Open containers in motor vehicles or other means of conveyance shall be strictly prohibited. (Ord. No. 4475, § 1, 11-28-22; Ord. No. 4351, § 1, 4-12-21; Ord. No. 4350, § 1, 3-22-21; Ord. No. 4312, § 1, 6-16-20; Ord. No. 4206, § 1, 10-9-17; Ord. No. 4186, § 1, 6-26-17)

5.12.120 Special use areas—Special event permit.

A. Club Premises. Pursuant to Wyo. Stat. Section 12-4-301 (c), a club, as defined in Wyo. Stat. Section 12-1-101, holding a limited retail liquor

license may sell alcoholic or malt beverages for consumption by its members and guests from adjoining premises, which are owned or leased by the licensee, of the licensed building as approved by the chief of police and city clerk in conjunction with special events and activities sponsored or hosted by the licensee. The adjoining premises shall not be a separate building.

B. Golf Club Premises. Pursuant to Wyo. Stat. Sections 12-5-201 (g) and (h) and upon written request to the city clerk and approval by the chief of police, retail, limited retail or restaurant liquor licensees operating golf clubs, as defined in Wyo. Stat. Section 12-1-101, may sell, dispense and allow consumption of alcoholic liquor and malt beverages from any location within the boundaries of the golf club premises. Following initial approval by the chief of police, unless a licensee submits written notification to the city clerk that the sale, dispensing and/or consumption of alcoholic liquor and malt beverages is being discontinued by the licensee, approval will remain effective unless the holder of the license changes or the chief of police rescinds his or her approval.

C. Hotel or Motel Premises. Pursuant to Wyo. Stat. Section 12-5-201 (e) and upon approval by the governing body, holders of a resort, retail or bar and grill liquor license, who are engaged in a business operation with motel or hotel sleeping room accommodations at the same premises, may sell alcoholic liquor and malt beverages in sealed containers from a minibar located in a sleeping room of the licensee's hotel or motel premises.

D. Resort Premises. Pursuant to Wyo. Stat. Section 12-5-201 (f) and upon approval by the governing body, a resort liquor licensee may dispense alcoholic liquor and malt beverages from any location within the boundaries of the resort premises. The resort premises shall be a single property within a contiguous boundary upon which the resort is located and which is identified in the liquor license.

E. Sidewalk Premises. Pursuant to Wyo. Stat. Section 12-5-201(a) and upon written request to the city clerk and approval by the chief of police, retail liquor licensees, special malt beverage permittees, satellite distillery permittees, microbrewery permittees, or satellite winery permittees may sell, dispense, and allow consumption of alcoholic liquor and malt beverages on the enclosed sidewalk directly adjacent to the licensed building. The adjoining premises may not include a separate building. All enclosed sidewalk premises as allowed by this section must have a fence which separates the public sidewalk from the permitted sidewalk premises. Plans for the permitted sidewalk premises must be submitted to the city engineer for approval prior to construction and encroachment in the public right-of-way.

F. Special Event Premises. Pursuant to Wyo. Stat. Section 12-5-201 (k) and upon application to the city clerk and approval by the chief of police, the city clerk is authorized to issue a special event permit to a retail licensee in conjunction with holding an event in the licensed building at which primarily persons under the age of twenty-one (21) are permitted if:

1. No alcoholic liquor or malt beverages are sold, served, consumed or possessed by any person attending the event;

2. No alcoholic liquor or malt beverages are accessible to persons attending the event; and

3. The licensee complies with any additional conditions imposed through administrative procedures on file with the office of city clerk.

4. The chief of police shall have the authority to revoke a special event permit issued pursuant to this section for good cause or for the health, safety and welfare of the community or event participants.

(Ord. No. 4312, § 2, 6-16-20; Ord. No. 4186, § 1, 6-26-17)

5.12.130 Hours of operation.

A. The hours of operation allowed for sales by any annual licensee and permittee shall be daily from 6:00 a.m. to 2:00 a.m. the following day. Licensees and permittees shall clear the licensed building of all persons other than bona fide em-

ployees, who are providing clerical, janitorial, inventory stocking or similar work-related services, by 2:30 a.m.

B. Hours of operation allowed for sales, dispensing and/or consumption pursuant to temporary permits issued under the provisions of this chapter shall be determined by the chief of police and city clerk. If a temporary permit is issued in conjunction with an event or activity to be held within or upon a city-owned park, grounds or building, a representative of the city's staff overseeing the park, grounds or building who has responsibility for reserving the same for use by the permittee, in accordance with facility reservation policies, shall also approve the hours of operation. (Ord. No. 4186, § 1, 6-26-17)

5.12.140 Persons under the age of twenty-one (21) years—Restrictions—Provisions.

A. Except as provided in this section, no retail liquor licensee, employee, server or agent thereof shall knowingly permit any person under the age of twenty-one (21) years to enter or remain in a licensed building:

1. Where alcoholic liquor and malt beverages being sold, dispensed and consumed are the primary source of revenue for the licensee's business operation unless the licensee also provides a full-service restaurant, as defined in Wyo. Stat. Section 12-1-101(a)(xiv), operation within the building, and the restaurant is consistently open to the public;

a. If a licensed building contains a separate room designated for the sale of alcoholic liquor and malt beverages for off-premises consumption, commonly referred to as a package store, an underage person may temporarily be allowed within the room but must be accompanied by his or her parent, spouse or legal guardian who is at least twenty-one (21) years of age.

2. Where alcoholic liquor and malt beverages are sold, dispensed and/or consumed in a business establishment that provides adult entertainment, exotic dancing or similar venues;

3. Unless the person is a license holder, pursuant to provisions of Wyo. Stat. Section 12-1-101, et seq., and city code; or

4. Unless the primary purpose of the business operation within the licensed building is operation as a bowling center business and commercially provided food services.

B. Establishments, authorized under an annual liquor license to sell alcoholic liquors and malt beverages, that meet the definition of a restaurant under Wyo. Stat. Section 12-1-101(a)(xiv) may permit a bona fide employee who is at least eighteen (18) years of age to enter dispensing areas and serve alcoholic liquor and malt beverages to patrons in designated dining areas which are open to the public pursuant to Wyo. Stat. Section 12-4-410(b).

C. No person under the legal drinking age may buy, sell, possess, consume or otherwise solicit the sale or purchase of alcoholic liquor or malt beverages except as provided in Wyo. Stat. Section 12-6-101.

1. It is unlawful for any person, including licensees, permittees or their employees and agents, to sell, give or deliver any alcoholic liquor or malt beverages to any person under the legal drinking age as defined by state law, except in compliance with Wyo. Stat. Section 12-6-101.

D. No person under the legal drinking age shall be allowed to be seated at a bar at which alcoholic liquor and malt beverages are directly sold, dispensed and consumed by patrons seated at the bar.
(Ord. No. 4367, § 1, 6-14-21; Ord. No. 4237, § 1, 7-9-18; Ord. No. 4206, § 1, 10-9-17; Ord. No. 4186, § 1, 6-26-17)

5.12.150 Suspension or revocation of license; denial of permit.

A. Wyo. Stat. Section 12-7-103 authorizes the governing body to suspend a liquor license or permit if the licensee or permittee has not paid state sales taxes and the Wyoming Liquor Division has ceased sales of alcoholic liquor to the licensee or permittee. The determination that sales

taxes have not been paid will be made by the liquor division, upon notification from the Wyoming Department of Revenue and Sales Tax, with a notice of delinquency being provided to the city clerk.

B. After receiving notification of a sales tax delinquency, the city clerk will notify the licensee or permittee by certified mail if the city intends to hold a hearing on whether the license or permit should be suspended. Any suspension hearing will be conducted pursuant to the provisions of the Wyoming Administrative Procedure Act and any rules adopted by the city. The liquor division's notice of delinquency to the city clerk and all evidence presented at the hearing will be admitted and considered prima facie evidence of the licensee's or permittee's sales tax delinquency. The liquor division may conduct a suspension hearing pursuant to Wyo. Stat. Section 12-7-201.

C. Any revocation procedures of a license or permit will be in accordance with Wyo. Stat. Sections 12-7-101 through 12-7-201.

D. Upon recommendation by any of the reviewing agencies pursuant to Section 5.12.010 (C) of this chapter, if an application for any temporary permit authorized under the provisions of this chapter is denied by the city clerk, the applicant may appeal the decision to the mayor. If the mayor supports denial of the application, the applicant may request a hearing before the governing body by following the provisions set forth in Chapter 5.04.100 of city code.
(Ord. No. 4186, § 1, 6-26-17)

5.12.160 Violations.

A. It shall be unlawful for any person to knowingly submit false information on an application for any license or permit authorized under this chapter. Each application submitted shall be affirmed as being true and correct to the best of the applicant's knowledge. If, in the opinion of the city attorney, a licensee or permittee has violated this subsection, the city attorney may request the governing body initiate or take action pursuant to Wyo. Stat. Section 12-7-101 through 12-7-201, to suspend or revoke the applicable license or permit.

B. It shall be unlawful for any person to operate a bottle club within the city. Used herein, "bottle club" means an operation or enterprise in which no alcoholic liquors are sold, but where food, soft drinks and mixes are sold, and the safekeeping of liquors is provided for individual club members who bring liquors upon the premises for their own use and consumption. Income, profits or fees of the operator of a bottle club are typically derived from the sales or furnishing of mixes, ice, food or glasses, or from dues, charges, contributions, membership cards or assessments.

C. It shall be unlawful for any licensee, permittee or their employees or agents to serve alcoholic liquor or malt beverages to a person who is excessively intoxicated, displays impaired coordination and signs of being a danger to self or others.

1. A licensee, permittee or their employees or agents shall not allow an excessively intoxicated person, who is a danger to self or others, to frequent or loiter on the licensed premises except where the intoxicated person has been refused service of further alcoholic liquor or malt beverages and the licensee, permittee or their employees or agents allows the person to remain on the premises for the purpose of eating food, seeking medical attention, arranging transportation that does not involve the person operating a motor vehicle, or any other circumstances where requiring the person to vacate the premises immediately would be considered dangerous to that person or to the public.

D. It shall be unlawful for any person to consume or carry any open container of alcoholic liquor or malt beverages upon the private business premises of another without permission of the owner, manager or person in control of such private premises.

E. Except as provided by Wyoming Statute or authorized pursuant to the provisions of this chapter, liquor licensees and permit holders shall not knowingly sell or provide an open container, as defined in Section 5.12.020 of this chapter, for

patrons to exit the licensed building or to consume outside of the licensee's or permittee's approved consumption premises.
(Ord. No. 4366, § 1, 6-14-21; Ord. No. 4206, § 1, 10-9-17; Ord. No. 4186, § 1, 6-26-17)

5.12.170 Monitoring of violations—Administrative fee—Hearings.

A. Convictions of any violations of this chapter shall be monitored by the chief of police. In addition to any other penalty, sanction or fee authorized by law, if a license holder, permit holder, or its employees or agents, is convicted of a violation, the licensee shall, upon written notice issued by the chief of police, pay an administrative fee to the city as a means to assist with municipal costs involving law enforcement and repeat offenders. Based upon the number of convictions imputed to the license holder within each twelve (12) month licensing year term, the administrative fee will be as follows:

1st conviction	$100.00
2nd conviction	250.00
3rd conviction	500.00
4th conviction	750.00
5th and any following convictions	1,000.00

B. The chief of police shall waive the first administrative fee if the licensee or permittee has not had any violations within the previous twelve (12) months. Additional administrative fees may be waived by the chief of police if the licensee or permittee provides a written cooperative plan designed to prevent future violations.

C. Within thirty (30) days of a licensee's, permittee's, employee and/or agent's conviction resulting in the licensee or permittee receiving more than five convictions within the twelve (12) month period, the chief of police will report the violations to the governing body and city clerk. Upon direction, by resolution, by the governing body, the city clerk will provide the licensee, permittee or their agent with a notice and an opportunity for public hearing. Date of the notice shall precede any hearing by at least ten days. The notice shall be served by personal service or by certified, return receipt requested, and first class mail.

D. In the event a public hearing is conducted and the governing body concludes there is substantial evidence that a licensee, permittee, their employee and/or agent has routinely failed to correct areas or change their plans of operation where violations have occurred, the governing body may request action be taken to suspend or revoke the license or permit pursuant to Wyo. Stat. Section 12-7-101, et seq.
(Ord. No. 4186, § 1, 6-26-17)

5.12.180 Penalty.

A. Any person who violates any provision of this chapter is guilty of a misdemeanor punishable pursuant to the general penalty provisions set forth in Chapter 1.24.010 of city code.
(Ord. No. 4186, § 1, 6-26-17)

Chapter 5.13

MALT BEVERAGE KEG REGISTRATION

Sections:

5.13.010 **Purpose—Authority—General provisions.**

5.13.020 **Definitions.**

5.13.030 **Keg stamp or tag; purchaser identification—Required.**

5.13.040 **Keg stamp or tag—Restrictions.**

5.13.050 **Keg inspection; possession.**

5.13.060 **Violation—Penalty.**

5.13.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to establish regulations, standards and procedures for the registration, identification and monitoring of malt beverage keg sales and related activities within the city to provide local law enforcement authorities with the ability to track malt beverage keg sales, distribution and consumption.

B. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-101(a)(xli) and Wyo. Stat. Section 12-4-101(a), the sale, consumption and related activities involving malt beverage keg sales by authorized city liquor licensees and permittees will be in compliance with Wyo. Stat. Section 12-1-101, et. seq., and city code.

C. The chief of police is authorized to establish and enforce procedures for the implementation of a city malt beverage keg registration program as set forth in this chapter. (Ord. 3554 § 1 (part), 2003)

5.13.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Keg" means any brewery-sealed, individual container having a malt beverage liquid capacity of more than five gallons.

"Licensee or permittee" means a person authorized to sell malt beverage kegs for off-premise consumption under a current retail liquor license, or microbrewery permit, issued by the city of Cheyenne.

"Malt beverage" means any fluid, substance or compound intended for beverage purposes manufactured from malt, wholly or in part, or from any substitute therefore, containing at least one-half of one percent of alcohol by volume, or as defined by state law. (Ord. 3554 § 1 (part), 2003)

5.13.030 Keg stamp or tag; purchaser identification—Required.

A. A licensee or permittee selling malt beverages by the keg for off-premise consumption shall be required, at the time of sale, to affix to the keg an identification stamp or tag as provided by the Cheyenne police department.

B. At the time of sale, the licensee or permittee, or their authorized employee, shall require proof that the keg purchaser is at least twenty-one (21) years of age by means of identification, as defined by Wyo. Stat. Section 12-6-101(e), and completion of a written keg purchase agreement on forms provided by the chief of police. The agreement will contain, but may not be limited to, the following information: Purchaser's name, residence address, phone number, date of birth, driver's license number or other authorized form of identification, date of sale, pump number, malt beverage brand, size of keg, the assigned keg stamp or tag number, and date of keg return to the licensee or permittee.

1. Licensees and permittees must maintain the signed keg purchase agreement for a period of six months from the date of keg sale. The agreement will be open to inspection by city police department representatives during the licensee's or permittee's normal business hours. (Ord. 3554 § 1 (part), 2003)

5.13.040 Keg stamp or tag—Restrictions.

A. It is unlawful for any person who purchases malt beverages by the keg from a licensee or permittee to remove or alter the identification stamp or tag required in Section 5.13.030(A). It is not a

violation for a licensee or permittee, or their authorized employee, to remove an identification stamp or tag following the return of a keg to their establishment, and after any deposit has been returned to the purchaser.

Chapter 5.13
MALT BEVERAGE KEG REGISTRATION

Sections:

5.13.010 Purpose—Authority—General provisions.
5.13.020 Definitions.
5.13.030 Keg stamp or tag; purchaser identification—Required.
5.13.040 Keg stamp or tag—Restrictions.
5.13.050 Keg inspection; possession.
5.13.060 Violation—Penalty.

5.13.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to establish regulations, standards and procedures for the registration, identification and monitoring of malt beverage keg sales and related activities within the city to provide local law enforcement authorities with the ability to track malt beverage keg sales, distribution and consumption.

B. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-101(a)(xli) and Wyo. Stat. Section 12-4-101(a), the sale, consumption and related activities involving malt beverage keg sales by authorized city liquor licensees and permittees will be in compliance with Wyo. Stat. Section 12-1-101, et. seq., and city code.

C. The chief of police is authorized to establish and enforce procedures for the implementation of a city malt beverage keg registration program as set forth in this chapter. (Ord. 3554 § 1 (part), 2003)

5.13.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Keg" means any brewery-sealed, individual container having a malt beverage liquid capacity of more than five gallons.

"Licensee or permittee" means a person authorized to sell malt beverage kegs for off-premise consumption under a current retail liquor license, or microbrewery permit, issued by the city of Cheyenne.

"Malt beverage" means any fluid, substance or compound intended for beverage purposes manufactured from malt, wholly or in part, or from any substitute therefore, containing at least one-half of one percent of alcohol by volume, or as defined by state law. (Ord. 3554 § 1 (part), 2003)

5.13.030 Keg stamp or tag; purchaser identification—Required.

A. A licensee or permittee selling malt beverages by the keg for off-premise consumption shall be required, at the time of sale, to affix to the keg an identification stamp or tag as provided by the Cheyenne police department.

B. At the time of sale, the licensee or permittee, or their authorized employee, shall require proof that the keg purchaser is at least twenty-one (21) years of age by means of identification, as defined by Wyo. Stat. Section 12-6-101(e), and completion of a written keg purchase agreement on forms provided by the chief of police. The agreement will contain, but may not be limited to, the following information: Purchaser's name, residence address, phone number, date of birth, driver's license number or other authorized form of identification, date of sale, pump number, malt beverage brand, size of keg, the assigned keg stamp or tag number, and date of keg return to the licensee or permittee.

1. Licensees and permittees must maintain the signed keg purchase agreement for a period of six months from the date of keg sale. The agreement will be open to inspection by city police department representatives during the licensee's or permittee's normal business hours. (Ord. 3554 § 1 (part), 2003)

5.13.040 Keg stamp or tag—Restrictions.

A. It is unlawful for any person who purchases malt beverages by the keg from a licensee or permittee to remove or alter the identification stamp or tag required in Section 5.13.030(A). It is not a violation for a licensee or permittee, or their authorized employee, to remove an identification stamp or tag following the return of a keg to their establishment, and after any deposit has been returned to the purchaser.

B. Pursuant to this chapter, it is unlawful for any purchaser of a malt beverage keg to allow anyone to remove or alter the identification stamp or tag from the keg prior to its return to the licensee or permittee who sold the keg.

C. It is unlawful for a licensee or permittee to sell or offer to sell malt beverages by the keg without affixing an identification stamp or tag to the keg, and completing a signed keg purchase agreement on forms provided by the chief of police. (Ord. 3554 § 1 (part), 2003)

5.13.050 Keg inspection; possession.

A. Any licensee or permittee, or their authorized employee, who receives a keg being returned by the purchaser, or their designee, shall inspect the returned keg to verify the identification stamp or tag is intact. If the stamp or tag has been removed, altered or tampered with, the licensee or permittee, or their authorized employee, shall immediately notify the city police department. Failure to provide notification to the police department shall be a violation of this chapter.

B. It is unlawful for any person who is in possession of a malt beverage keg required to be registered under the provisions of this chapter, either with or without malt beverage fluid contents, to remove, alter or tamper with the identification stamp or tag that has been affixed to the keg by the licensee or permittee.

C. It is unlawful for anyone purchasing or possessing a malt beverage keg under the provisions of this chapter to provide malt beverages to persons under the legal drinking age as defined by state law. (Ord. 3554 § 1 (part), 2003)

5.13.060 Violation—Penalty.

Any person who violates the provisions of this chapter will be deemed guilty of a misdemeanor, punishable pursuant to the general penalty provision of city code. (Ord. 3554 § 1 (part), 2003)

Chapter 5.16

AUCTIONS

Sections:

5.16.010 **Purpose—Authority—General provisions.**

5.16.020 **Auction defined.**

5.16.030 **License required—Fee.**

5.16.040 **Operating restrictions.**

5.16.050 **Exemptions.**

5.16.060 **Violation—Penalty.**

5.16.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to regulate, license and control the activities of auctioneers and auction businesses conducting said services or business within the city for the health, safety and welfare of the community.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xiii) to license and regulate businesses, which includes auctioneers and auction businesses. (2001 In-house code § 8-1)

5.16.020 Auction defined.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Auction" means all sales commonly known as "auctions," including "dutch auctions" and auctions where the auctioneer shall do any of the following:

1. Call for public bids;
2. Progressively decrease the price at which the auctioneer will sell merchandise until an offer is accepted;
3. Add additional merchandise to original items for sale until a bid or offer is received for the accumulated items. (2001 In-house code § 8-2)

5.16.030 License required—Fee.

A. A person may not sell, or cause or permit to be sold at an auction within the city, any personal property unless the sale is conducted by a holder of an auction business license issued by the city clerk whose activities are in compliance with the provisions of this chapter. Persons desiring to conduct auction activities must submit to the city clerk an application, with nonrefundable annual license fee of one hundred thirty-five dollars ($135.00), on forms provided by the city clerk.

B. The chief of police will conduct an investigation of each initial applicant and provide written approval to the city clerk prior to issuance of any license to new applicants.

C. Applicants must file with the city clerk a surety bond in favor of the city in the amount of one thousand dollars ($1,000.00), and conditioned upon the applicant, if issued an auctioneer or auction business license, complying fully with all provisions of this code or other ordinances of the city and state law regulating and concerning auctioneers and auction businesses. Licensees will render true and strict accounts of sales to any person employing them; will not practice any fraud or deceit upon bidders or purchasers of property at any auction sale, or permit any person in their employ to practice any such fraud or deceit; and will pay all damages which may be sustained by any person by reason of any fraud, deceit, negligence or other wrongful act on the part of the licensee, his or her agent or employees in the conduct of any action or in the exercise of the calling of auctioneer. A liability insurance policy issued by an insurance company authorized to do business in the state which conforms to the above requirements may be permitted in lieu of a bond.

D. Licenses are effective for one year from date of issuance. Upon receipt, each licensee must post the license upon the auction premises in a conspicuous place visible to the public. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 8-3)

5.16.040 Operating restrictions.

Auction sales of personal property on any of the streets, sidewalks or public property of the city are not allowed. (2001 In-house code § 8-4)

5.16.050 Exemptions.

Provisions of this chapter are not applicable to auction sales conducted by trustees or referees in

bankruptcy; executors, administrators, receivers or other public officers acting under judicial process, or any other lien sale held pursuant to law. No householder informally selling his or her own personal private property, as distinguished from property used in a trade or business, without the services of an auctioneer or auction service, is required to comply with the requirements, except that sales may not be conducted on public property. (2001 In-house code § 8-5)

5.16.060 Violation—Penalty.

Any person violating the provisions of this chapter will be deemed guilty of a misdemeanor, punishable pursuant to the general penalty of the city code. Each day a violation continues will be considered a separate offense. (2001 In-house code § 8-6)

Chapter 5.20

AUTOMOBILE SERVICE STATIONS, GARAGES AND LOTS

Sections:

5.20.010 **Purpose—Authority—General provisions.**

5.20.020 **Definitions.**

5.20.030 **License required—Application.**

5.20.040 **Operations which service stations may perform without a license.**

5.20.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to regulate and license business operations within the city known as garages, car lots and service stations to protect the health, safety and welfare of the public.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xiii) to regulate and license certain business activities. General business licensing provisions outlined in Chapter 5.04, including sections pertaining to violations, and license suspension and revocation, shall apply to any person required to comply with the provisions of this chapter. (2001 In-house code § 20-1)

5.20.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Car lot" means any establishment maintaining a place of business where new and/or used motor vehicles are sold or offered for sale.

"Garage" means any establishment maintaining a place of business where motor vehicles are stored or offered to be stored for the general public for pay or where general repairs or maintenance work for pay is performed on motor vehicles of all kinds.

"Service stations" means a building or lot having fuel pumps and storage tanks where petroleum products or accessories for motor vehicles are dispensed, sold or offered for sale at retail only. (2001 In-house code § 20-2)

5.20.030 License required—Application.

No person shall engage in any form of the garage or car lot business without first obtaining a business license from the city clerk. Persons desiring a license shall submit an application, together with a nonrefundable annual license fee of sixty-five dollars ($65.00) per location on forms provided by the city clerk. Licenses issued will expire annually, one year from the date of issuance. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 20-3)

5.20.040 Operations which service stations may perform without a license.

A service station may perform any of the following operations on motor vehicles, but no others, without being required to obtain a garage license:

A. Fill with gasoline;

B. Change or add oil to the motor or lubricant to the transmission or differential and install filter elements;

C. Replace or clean spark plugs;

D. Replace or adjust fan belts;

E. Replace radiator or heater hose;

F. Wash, clean or polish cars;

G. Replace or change batteries;

H. Lubricate wheel bearings;

I. Lubricate chassis without disassembly;

J. Replace and repair tires without wheel alignment or wheel balancing;

K. Refill shock absorbers without removal;

L. Flush and clean radiators without removal;

M. Replace lamp bulbs and sealed beam units;

N. Service air cleaners;

O. Replace hubcaps, windshield wiper blades and arms;

P. Install radiator covers and insect screens and seat covers;

Q. Replace mufflers and tail pipes. (2001 In-house code § 20-4)

Chapter 5.24

AUTOMOBILE WRECKING AND JUNKYARD BUSINESSES

Sections:

5.24.010 **Purpose—Authority—General provisions.**

5.24.020 **Definitions.**

5.24.030 **Business license required.**

5.24.040 **Fence enclosing premises required—Specifications.**

5.24.050 **Condition of premises.**

5.24.060 **Merchandise and stock to be confined to premises.**

5.24.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to license and regulate the operations and activities of junkyards and automobile wrecking businesses within the city.

B. Authority is granted cities and towns in Wyo. Stat. Section 15-1-103(a)(xiii) to license and regulate businesses to promote public health, safety and welfare of its citizens.

C. All premises used for either junkyard or automobile wrecking businesses, including all merchandise or stock, must be open to inspection by the chief of police, any police officer or other person authorized by the mayor or city council to make inspections.

D. No junkyard dealer or automobile wrecking business shall purchase any property or parts from any person under the age of eighteen (18) years. (2001 In-house code § 25-1)

5.24.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Automobile wrecking business" means buying or otherwise acquiring used automobiles or parts and wrecking them and selling or disposing of salvaged parts.

"Junkyard business" means buying or acquiring and selling or disposing of junk of any kind. (2001 In-house code § 25-2)

5.24.030 Business license required.

All business licenses required by the provisions of this chapter shall be issued in accordance with Chapter 5.04 of this title. The annual nonrefundable license fee will be one hundred fifteen dollars ($115.00) per location. Each license issued will plainly state whether it is issued for an automobile wrecking or a junkyard business or both. All licenses issued expire one year from date of issuance. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 25-3)

5.24.040 Fence enclosing premises required—Specifications.

A. Any person who engages in the business of buying, storing or selling any used or secondhand merchandise or conducts business as a junk dealer and stores or keeps such merchandise, junk or salvage materials in the open, must construct and maintain a fence enclosing the premises.

B. The fence must be at least eight feet in height and be constructed of materials approved by the city council so that the interior of the enclosed premises is closed to the public view. Buildings whose walls are at least eight feet high may be used as a part of the fence. Gates or openings must be constructed so that when closed the view of the public shall be obstructed.

C. This section applies only to the holders of junk dealer licenses. (2001 In-house code § 25-4)

5.24.050 Condition of premises.

Any premises used for either an automobile wrecking or a junkyard business must be kept clean and orderly at all times. All refuse, materials or junk must be hauled periodically to the city landfill by the proprietor of such business. (2001 In-house code § 25-5)

5.24.060 Merchandise and stock to be confined to premises.

No licensee under this chapter may permit any merchandise, stock or any discarded or waste ma-

terials to occupy any ground or space adjacent to the immediate premises other than that authorized under the license. (2001 In-house code § 25-6)

Chapter 5.28

BED AND BREAKFAST ESTABLISHMENTS

Sections:

5.28.010 **Purpose—Authority—General provisions.**

5.28.020 **Definitions.**

5.28.030 **License required—Display—Renewal.**

5.28.040 **Food permits—Inspections—Restrictions.**

5.28.050 **License applications.**

5.28.060 **Violation—Penalty.**

5.28.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to protect the general health, safety and welfare of the public through enactment of licensing and operating requirements for bed and breakfast facility and inn operations within the city.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xiii) to regulate and license businesses, including bed and breakfast facilities and inns. For the purpose of regulating bed and breakfast facilities, the "Wyoming Regulations for Bed and Breakfast and Ranch Recreation, December 1986 edition," as amended, promulgated by the Wyoming Department of Health, is adopted by reference and incorporated as part of this chapter as if fully set forth.

C. A bed and breakfast inn must comply with all applicable provisions of the city code.

D. In the event of a conflict between this chapter and any other provisions of city code, or any state law, rule or regulation, the more stringent provision will apply.

E. Guest registers must be maintained at all times, kept for at least three years and open to inspection by the city clerk, the health officer or any other person designated by the city clerk. (2001 In-house code § 46-1)

5.28.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Bed and breakfast facility" means a private home which is used to provide temporary accommodations for a charge to the public with not more than four lodging units or not more than a daily average of eight persons per night during any thirty (30) day period, and in which no more than two family-style meals are provided per twenty-four (24) hour period. Residence in the home by the licensee is a requirement of a bed and breakfast facility.

"Bed and breakfast inn" means a home atmosphere which is used to provide limited lodging, temporary overnight accommodations for paying guests for five or more lodging units, or more than eight persons per night during any thirty (30) day period, and in which meals are served to lodging guests and/or general patronage. A bed and breakfast inn is a business land use, with the optional provision of residential use by the owner/operator, and will only be allowed within a designated business district zone. A bed and breakfast inn is distinguished from a hotel or motel operation by its size and more personal atmosphere with limited services.

"Health officer" means the city of Cheyenne/Laramie County health officer and/or designated representative(s) as defined in Wyo. Stat. Section 35-1-305(a). (2001 In-house code § 46-2)

5.28.030 License required—Display—Renewal.

A. Any person operating a bed and breakfast inn or bed and breakfast facility within the city must first obtain a license from the city clerk.

B. Licenses will be issued as provided in this chapter and Chapter 5.04. Following issuance of a license, no fees paid for the licensing period will be refunded. Licenses must be displayed in a conspicuous place in the guest registration area of the inn or facility.

C. Licenses may be renewed by the city clerk upon proper application, subject to the approval

of appropriate city departments and agencies. (Ord. No. 4171, § 1, 4-10-17; 2001 In-house code § 46-3)

5.28.040 Food permits—Inspections—Restrictions.

A. The health officer is authorized by the city to issue permits as required for food services offered by a bed and breakfast inn or bed and breakfast facility. The health officer and other city officials and agents, required by the city clerk, will conduct on-site inspections of any premises and equipment used or proposed to be used in the operation of an inn or facility.

B. Inspections may be made at any bed and breakfast inn or facility at any reasonable time, or at any time in the event of an emergency or to protect the health, safety and welfare of guests or other members of the public.

C. No retail sales can be conducted on the premises of any bed and breakfast facility. (2001 In-house code § 46-4)

5.28.050 License applications.

Applications for a license to operate a bed and breakfast inn or facility must be made on forms provided by the city clerk and will include the following:

A. Proof that the applicant has applied for:

1. A state of Wyoming bed and breakfast permit through the environmental health unit of the city/county health department, and

2. A sales tax permit filed with the Wyoming Department of Revenue;

B. Signature of applicant(s) and owner of record of the premises;

C. Payment of application fee in the amount of sixty-five dollars ($65.00) annually per location;

D. Approvals as required by the city clerk. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 46-5)

5.28.060 Violation—Penalty.

Any person violating the provisions of this chapter will be deemed guilty of a misdemeanor, punishable as provided by the general penalty provision of the city code. (2001 In-house code § 46-6)

Chapter 5.32

RESERVED*

*Editor's note—Ord. No. 4205, § 1, adopted October 9, 2017, repealed ch. 5.32, §§ 5.32.010—5.32.110. Former ch. 5.32 pertained to bingo and pull tabs and derived from the In-house code of 2001; Ord. No. 3844, adopted June 8, 2009; and Ord. No. 3714, adopted 2006.

Chapter 5.36

CIRCUSES, CARNIVALS AND AMUSEMENT RIDES*

Sections:

5.36.010 **Purpose—Authority—General provisions.**

5.36.020 **Definitions.**

5.36.030 **Public addresses, entertainment and advertising on streets.**

5.36.040 **Reserved.**

5.36.050 **License required—Fees—Hours of operation.**

5.36.060 **Bond and liability insurance required.**

5.36.070 **Responsibility for compliance and operations.**

5.36.080 **Amusement rides—Safety requirements.**

5.36.090 **Amusement rides—Maintenance requirements.**

5.36.100 **Amusement rides—Structural requirements—Design, equipment and materials criteria.**

5.36.110 **Amusement rides—Electrical requirements.**

5.36.120 **Amusement rides—Operation requirements.**

5.36.130 **Reserved.**

5.36.140 **Carnival games generally.**

5.36.150 **Inspection of games.**

5.36.160 **Carnival game operations.**

5.36.170 **Violation—Penalty.**

5.36.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to regulate, license, permit and monitor public addresses, entertainment and advertising on public property, and activities and operations affiliated with carnivals, circuses, and amusement rides, including carnival games, conducted within the city.

B. Authority is granted cities and towns by Wyo. Stat. Sections 15-1-103 and 33-6-101 through 104 to license, inspect and regulate carnivals and circuses.

C. The chief of police, or his or her designee(s), is authorized to pre-inspect any carnival game to determine its nature and acceptability. In addition, the chief of police, or his or her designee, is authorized to close any amusement ride not in compliance with Section 5.36.070. (Ord. No. 3917, § 2, 3-28-11; 2001 In-house code § 6-1)

5.36.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Agent" means any person who is employed, whether or not paid in any manner by a concessionaire, to operate or work in any carnival game or carnival novelty stand or booth.

"Amusement ride" means a device that carries or conveys passengers along, around, or over a fixed or restricted route or course or within a defined area, for the purpose of giving its passengers amusement, pleasure, thrills or excitement. The definition of an amusement ride does not include:

1. A coin-operated ride that:

a. Is manually, mechanically, or electrically operated;

b. Is customarily placed in a public location; and

c. Does not normally require the supervision or services of an operator.

2. Non-mechanized playground equipment including, but not limited to, a swing, seesaw, stationary spring-mounted feature, climbing walls, rider-propelled merry-go-round, composite playground structure, free standing spin rides, climber, playground slide, and trampoline.

***Editor's note**—Ord. No. 3917, § 1, approved March 28, 2011, renamed Chapter 5.36, from circuses, carnivals, exhibitions and amusement rides to circuses, carnivals and amusement rides.

3. Air inflatable rides or devices, live animal rides, physical fitness/training devices, or obstacle, challenge course, ropes or climbing course equipment.

4. For purposes of this chapter, temporarily operated Halloween amusement venues are not included in the definition of an amusement ride.

5. A bungee jump and mechanical bull are not considered an amusement ride, however, the owner must provide the city with a certificate of insurance, in accordance with Section 5.36.060, and execute a city approved indemnification and hold harmless agreement in favor of the city, if operated on city owned public property.

"Carnival" means any traveling enterprise offering a variety of games, rides, exhibits and amusements to the public.

"Circus" means an arena, which may or may not be tent-covered, used for providing public entertainment generally featuring feats of physical skill and daring, animal acts and performances by clowns.

"Concession" means a subsidiary business operation leased by the operator in conjunction with a circus or carnival event.

"Concessionaire" means an operator of a concession.

"Containing device" means a strap, belt, bar, gate, or other safety device designed to prevent accidental or inadvertent dislodgement of a passenger from a ride or attraction but which does not actually provide physical support.

"Exit" means a doorway or other opening affording safe and unobstructed access to a safe area.

"License" means the authority granted by the city clerk to a person, as defined in Chapter 1.04, Section 1.04.020, of the Cheyenne City Code, to conduct any circus, carnival, or amusement ride within the city.

"Licensee" means the holder of a license issued by the city pursuant to the provisions of this chapter.

"National Electrical Code" means the National Electrical Code, as adopted in Chapter 15.20 of this code.

"Operator" means a person engaged in or directly controlling the operation of an amusement ride, concession, or a carnival game.

"Owner" means a person who owns or has legal possession of an amusement ride, circus or carnival.

"Player" means any person who plays a carnival game.

"Prize" means any item won or represented to the player as capable of being won at a carnival upon the successful completion of a given task.

"Restraining device" means a safety belt, harness, chain, bar, or other device which affords actual physical support, retention, or restraint to the passenger of a ride.

"Rope and wire rope" are synonymous; does not include fiber rope but does include bungee cords.

"Safety retainer" means a secondary safety wire rope, bar attachment, or other device designed to prevent parts of a ride from becoming disengaged from the mechanism or from tipping or tilting in a manner to cause hazard to persons riding on, or in the vicinity of, a ride. (Ord. No. 4171, § 1, 4-10-17; Ord. No. 3917, § 3, 3-28-11; 2001 In-house code § 6-2)

5.36.030 Public addresses, entertainment and advertising on streets.

Persons desiring to deliver a public address or engage in singing or playing of musical instruments or give any other form of entertainment or advertise upon any streets, alleys, sidewalks or other thoroughfares or public property of the city must not block the same. If a noise permit is required, applicants must abide by the licensing provisions of Chapter 5.04. Persons shall obtain the consent of the owner or manager of the premises in front of the place such person proposes to give such public address, entertainment or advertising. (Ord. No. 4168, § 1, 2-23-17; 2001 In-house code § 6-3)

5.36.040 Reserved.

Editor's note—Ord. No. 3917, § 4, approved March 28, 2011, repealed § 5.36.040, which pertained to parades for circuses, shows and exhibitions—water use charges and derived from the 2001 In-house code § 6-4.

5.36.050 License required—Fees—Hours of operation.

A. Persons desiring to conduct any circus, carnival, or amusement ride within the city must first obtain a business license from the city clerk. Persons shall submit written application, including information and/or supporting documentation as required by the city clerk and the payment of the licensing fee in the amount of two hundred dollars ($200.00), for each day of operation on forms provided through the office of city clerk. This fee shall be in addition to any additional fees assessed pursuant to this chapter and Section 5.36.040. Prior to issuance of any license the city clerk shall first obtain the approval of the development director, the chief of police, the fire chief, and the city risk manager or city attorney.

B. Licensees shall also pay for each day, or a portion thereof, that such business or equipment is to be located within the city, a charge for handling and disposal of refuse as determined by the mayor or director of public works.

C. Any circus or carnival conducted on a nonprofit basis must obtain a license. However, a license fee shall not be charged; provided, that a profit and loss statement is submitted to the city clerk, that any fees for refuse removal are paid, and compliance with applicable provisions of this chapter is met.

D. The permissible hours of operation for every circus, carnival or exhibition conducted within the city will be daily from eleven a.m. to twelve midnight, except that the hours of operation will be extended from twelve midnight until one a.m. Friday, Saturday and Sunday nights the weekend prior to and the weekend of Frontier Days.

E. Although an activity enumerated within sections of this chapter may not require a business license pursuant to Section 5.36.050, a license or permit may be required pursuant to other provisions of city, county or state laws, ordinances, rules or regulations. (Ord. No. 3917, § 5, 3-28-11; 2001 In-house code § 6-5)

5.36.060 Bond and liability insurance required.

A. Persons conducting, operating, managing or sponsoring any amusement ride shall file with the city clerk a bond or certificate of general liability insurance in the amount of not less than one million dollars ($1,000,000.00) or in an amount as required by the city risk manager or city attorney, indemnifying the public against damages sustained by reason of the operation of such ride. The requirement to file a bond or certificate of insurance shall apply to all owners and licensees whether or not a license or permit is required by any other provision of city, county or state law.

B. If an amusement ride is operated on property owned by the city of Cheyenne, the owner and licensee shall be jointly required to indemnify and hold the city harmless from any and all claims, demands, causes of action, injuries, damages, costs and attorney's fees which may be asserted against the city as a result of or in any way arising out of such operation. The indemnification and hold harmless provisions shall be set forth in forms approved by the city attorney. In addition, each owner and licensee shall be jointly required to provide commercial general liability insurance naming the city of Cheyenne as an additional insured, and as a certificate holder, and to provide a certificate of liability insurance coverage and other endorsements as may be required by the city. (Ord. No. 3917, § 6, 3-28-11; 2001 In-house code § 6-6)

5.36.070 Responsibility for compliance and operations.

A. Every owner and licensee of an amusement ride permanently or temporarily erected at carnivals, fairs, and amusements parks within the city

shall comply with the provisions of this chapter, and any reasonable and specific regulation applicable to a given amusement ride as determined by a National Association of Amusement Ride Safety Officials (NAARSO) certified inspector, and applicable provisions of Chapter 5.04.

For purposes of this chapter, "NAARSO certified inspector" means an individual who currently is a certified National Association of Amusement Ride Safety Official (NAARSO) Level III Amusement Ride Inspector.

B. Any amusement ride, or a portion thereof, which is not in compliance with this chapter may not be utilized or occupied by the public until brought into compliance. The noncomplying amusement ride, or portion thereof, will be tagged. No amusement ride shall be placed back into service until approved in writing by the NAARSO certified inspector.

C. Every owner and licensee of each amusement ride shall be jointly responsible for providing the city with a certificate of inspection pursuant to subsection D below.

D. Requirements for Operation. No owner, operator or licensee shall operate an amusement ride unless the ride has been inspected during set up on the premises to be utilized for operation within the city. In addition, a final inspection of each ride must also be conducted prior to admitting any member of the public to the ride. Inspections shall be conducted by the owner's or licensee's insurer or by an independent contractor retained by an owner or licensee and qualified to conduct inspections in accordance with this chapter. No person shall be qualified to conduct an inspection of an amusement ride who is not a certified NAARSO Level III Amusement Ride Inspector or other expert as may be accepted by the city. Daily inspections shall be conducted in accordance with Section 5.36.090.

1. Inspection Requirements. The inspection required by this section must test for stress-related and wear-related damage of the critical parts of a ride that the manufacturer of the amusement ride determines:

a. Are reasonably subject to failure as the result of stress and wear; and

b. Could cause injury to the public utilizing the ride as a result of failure.

2. If at any time the inspection reveals that an amusement ride does not meet the insurer's underwriting standards, the NAARSO certified inspector shall notify the insurer, city risk manager, the owner, the operator and the licensee.

3. If repair or replacement of equipment is required, it is the joint responsibility of the owner and licensee to make the repair or install the replacement equipment before the amusement ride is offered for public use.

4. The owner and licensee shall be jointly required to file with the city clerk a written certificate of inspection for each ride to be operated. The certificate shall be provided by the owner's and licensee's insurer or by an independent contractor retained by an owner and licensee and qualified to conduct inspections in accordance with this chapter. The certificate shall state that the ride has been inspected, meets the standards for insurance coverage, and complies with Section 5.36.060.

a. The inspection certificate and proof of compliance with Section 5.36.060, or photocopies of same, must be submitted to the office of city clerk prior to offering the ride for public use.

E. In the event NAARSO has not adopted safety standards for a particular type of amusement ride, the owners and operators thereof may set up, operate, and maintain the amusement ride in accordance with such national or other safety standards as may be accepted by the city of Cheyenne in its sole and absolute discretion. For amusement rides subject to this subsection, the inspections required by this section shall be conducted by experts who have knowledge and expertise in the application of the safety standards which have been accepted by the city of Cheyenne. (Ord. No. 4035, § 1, 7-28-14; Ord. No. 3917, § 7, 3-28-11; 2001 In-house code § 6-7)

5.36.080 Amusement rides—Safety requirements.

A. General. All amusement rides subject to the provisions of this chapter shall be maintained

and operated in such a manner as to ensure the safety of persons in, on or around such ride and shall comply with all manufacturers' safety precautions and requirements as determined by the NAARSO certified inspector.

In the event NAARSO has not adopted safety standards for a particular type of amusement ride, the owners and operators thereof shall maintain and operate the amusement ride in accordance with all manufacturer's safety precautions and requirements and in accordance with such national or other safety standards as may be accepted by the city of Cheyenne in its sole and absolute discretion. The city may require the owners and operators of any such amusement ride to provide a written certification of compliance with such manufacturer's and other safety standards which certification shall be prepared by an expert with knowledge and expertise in the application of such standards.

B. Medical and First Aid. As a condition of granting a license under this chapter, the city may require the licensee to submit a plan for the provision of emergency medical services for persons who suffer any bodily injury as a result of the operation of an amusement ride.

C. Hazardous Conditions. During a lightning storm, tornado warning, severe storm warning, fire, or when violence, riot or civil disturbance occurs or threatens in or near an amusement park or a carnival lot, passengers shall be unloaded and evacuated from each ride and the ride closed and immediately secured. Operations may not resume until the situation has been returned to a safe condition.

D. Illumination. Access to and exits from rides erected permanently or temporarily at carnivals, fairs and amusement parks shall be provided with illumination by natural or artificial means of no less than one foot-candle measured at grade level.

E. Owners and licensees of circuses, carnivals and amusement rides shall comply with applicable provisions of the International Fire Code, as determined by the city fire code official.

F. Safety Devices. Retaining, restraining, and containing devices shall be inspected to ensure their continuous function. Worn and damaged areas shall be immediately repaired or replaced. Owners and licensees shall be jointly responsible for the proper maintenance of safety devices. Operators shall ensure all such devices are used and securely locked into place during operation.

G. Assurance of Knowledge. Owners and licensees shall ensure that all operators have thorough knowledge of the ride they are operating and of applicable emergency procedures pertaining thereto. (Ord. No. 4035, § 2, 7-28-14; Ord. No. 3917, § 8, 3-28-11; 2001 In-house code § 6-8)

5.36.090 Amusement rides—Maintenance requirements.

All maintenance requirements shall include, but are not limited to, the following:

A. Daily Inspections. Rides shall be inspected each day they are intended to be used. This inspection shall be made by the NAARSO certified inspection. The inspection shall include the operation of control devices, speed-limiting devices, brakes and other equipment provided for safety. A record of each inspection shall be made at once upon completion and signed and dated by the NAARSO certified inspector. Inspection records must be maintained by the owner and licensee for a period of two years.

1. In the event NAARSO has not adopted safety standards for a particular type of amusement ride, the owners and operators thereof shall maintain and operate the amusement ride in accordance with all manufacturer's safety precautions and requirements and in accordance with such national or other safety standards as may be accepted by the city of Cheyenne in its sole and absolute discretion and all inspections required by this section shall be conducted in accordance with such manufacturer's and other safety standards and inspections required by this section shall be prepared by an expert with knowledge and expertise in the application of such standards.

B. Mechanical Parts. Worn mechanical parts and machinery shall be periodically inspected for loose fasteners. Lockout devices must be engaged before inspecting or servicing a piece of equipment. Equipment and structure for amusement rides and concessions booths shall be kept free from protruding nails, loose nails, splintered wood, loose and wobbly seats, and rough, loose or dangerous arm rests.

C. Manufacturers' Recommended Maintenance. Owners and licensees shall be jointly responsible for the performance of manufacturers' recommended maintenance procedures at intervals and in a manner specified by the operation and maintenance manual, in the following general areas: lubrication; air and hydraulic systems; torquing of bolts, wear of bolted or pinned joints; adjustments and care of mechanical components, such as brakes, clutches and air compressors; passenger-securing devices; crowd-control devices; operating and emergency controls; electrical systems and factory-installed safety devices. Such maintenance shall be verified by the NAARSO certified inspector or other expert as may be accepted by the city.

D. Wire Rope.

1. Upon examination, wire rope found to be worn or damaged shall be replaced with new wire rope of proper design and capacity under the manufacturer's recommendations for replacement. Wire ropes used to support, suspend, bear, or control forces and weights involved in the movement and utilization of tubs, cars, chairs, seats, gondolas, other carriers, the sweeps, or other supporting members of a ride may not be lengthened or repaired by splicing.

2. Mechanical devices that brake, control, or come into contact with wire rope, such as rollers, drums and sheaves, shall be examined on a periodic basis to ensure cleanliness and safe condition. Mechanical devices with broken chips, undue roughness, or uneven wear shall be immediately replaced.

E. Wood Components. Footings, splices, uprights, track timbers, ledgers, sills, laps, bracing, flooring, and all other wooden components of rides, and structures shall be inspected for deterioration, cracks or fractures. Emphasis shall be given to ensuring tight nails, bolts, lag bolts, and other fasteners. When wood piling requires replacement, ground level concrete piers shall be used. Wooden members found to be defective must be removed and replaced with material of equal or greater strength and capacity. Repairs and replacements to fixed roller coasters shall be made in accordance with the recommendations of the manufacturer.

F. Articulations, Bearings, Gear Alignment and Drives. Articulating pinions, frames, sweeps, eccentrics and other mechanical members shall be inspected for wear, out-of-round, cracks, and other signs of deterioration, and shall be kept in good repair. Bearing surfaces, ball joints and other single or multiple direction mechanical surfaces must be kept well lubricated, clean, and inspected for out-of-round or out-of-spherical, and shall be kept in good repair. Gear alignment and drives shall also be kept in good repair.

G. Hydraulic Systems. All systems must be checked for leaks, damaged pipes, and worn or deteriorated hoses. (Ord. No. 4035, § 3, 7-28-14; Ord. No. 3917, § 9, 3-28-11; 2001 In-house code § 6-9)

5.36.100 Amusement rides—Structural requirements—Design, equipment and materials criteria.

Structural materials, construction and design of rides shall conform to recognized manufacturers' practices, procedures, standards and specifications. (Ord. No. 3917, § 10, 3-28-11; 2001 In-house code § 6-10)

5.36.110 Amusement rides—Electrical requirements.

A. All electrical conductors and equipment for amusement rides must be inspected and approved by a NAARSO certified inspector, or other expert as may be accepted by the city, prior to operation and must conform to the requirements of the National Electrical Code.

B. All access to electrical equipment will be strictly controlled by the owner and licensee. (Ord. No. 4035, § 4, 7-28-14; Ord. No. 3917, § 11, 3-28-11; 2001 In-house code § 6-11)

5.36.120 Amusement rides—Operation requirements.

A. Operation Generally. Every owner and licensee shall ensure that all operators have knowledge of the use and function of all normal operating controls, signal systems and safety devices applicable to the ride, and the proper use, function, capacity and speed of the particular ride which is being operated.

1. Controls. An operator must be in the immediate vicinity of the operating controls during operation and have complete control of the ride at all times when it is being operated for the public's use. No person other than the operator may be permitted to handle the controls during normal operation. This provision does not apply to amusement rides designed to be operated or controlled by a passenger. When a ride is closed, provisions must be made to prevent operation by unauthorized persons.

2. Signal Systems. Signal systems must be provided and utilized for controlling, starting and stopping a ride when the operator of the ride does not have a clear view of the point where passengers are loaded or unloaded. Systems will be tested each day before operation. A ride requiring a signal system may not be operated if the system is not performing correctly. Signals for the movement or operation of a ride may not be given until all passengers and other persons who may be endangered are in a position of safety.

3. Overspeeding and Overloading. A ride may not be loaded beyond its rated capacity or operated at an unsafe speed or any speed other than that prescribed by the manufacturer. When this information is not obtainable, the criteria for safe operational speeds and rate capacities shall be established by the NAARSO certified inspector, or other expert as may be accepted by the city.

B. Access, Egress and Walking Surfaces.

1. Safe and adequate means of access to and egress from rides or temporary structures shall be provided. All accesses and egresses shall have the following: protection from adjacent hazards or from falling by use of guard rails, enclosures, barriers or similar means; secure treading and supporting surface free from debris, obstructions, projections and slipping, tripping and other hazards; adequate clearance.

2. All passageways are to be kept free of debris, obstructions, projections and other hazards; surfaces must prevent slipping and tripping, and floors must be kept free of protruding nails, splinters, holes or loose boards. Where mechanical handling equipment is used, sufficient safe clearances must be allowed for passageways.

C. Stairways, Landings and Ramps. Adequate stairways, ramps and necessary landings and platforms shall be provided as follows: (a) where people enter or leave a ride which is above or below grade or floor level, and (b) at the entrance to or the exit from the ride. (Ord. No. 4035, § 5, 7-28-14; Ord. No. 3917, § 12, 3-28-11; 2001 In-house code § 6-12)

5.36.130 Reserved.

Editor's note—Ord. No. 3917, § 13, approved March 28, 2011, repealed § 5.36.130, which pertained to appeal and derived from the 2001 In-house code § 6-13.

5.36.140 Carnival games generally.

Prior to the operation of any carnival game, the carnival owner or licensee must notify the police department in writing of the carnival location, names and addresses of the owners, operators and agents of each carnival game, and the nature of the game. No person, agent, owner, operator or licensee, individually or in conspiracy or concert with another, will carry on, own, operate or promote any carnival game, scheme or device where, by false pretenses, the purpose is to obtain from any player or persons any money, goods or other valuable thing whatever, with intent to cheat or defraud any such player or person. (Ord. No. 3917, § 14, 3-28-11; 2001 In-house code § 6-14)

5.36.150 Inspection of games.

The police chief, or designee, may pre-inspect any carnival game to determine its nature and

acceptability. Pre-inspection and acceptance or failure to reject a game for noncompliance with the law is not to be considered as a ruling or finding by the chief of police that the game is legal in its nature or its operation nor will such inspection be utilized as proof of compliance with this chapter and state laws. (2001 In-house code § 6-15)

5.36.160 Carnival game operations.

The following controls on carnival games, or activities or rules in the operation of games, are applicable and operation contrary will be considered a violation of Section 5.36.140 of this chapter:

A. No game shall be allowed which, either by its design or operation, can be, or is, controlled by the operator to the extent that the outcome of the game is, or can be, determined either partially or entirely by such control.

B. No game shall be allowed for which cash prizes are awarded.

C. No game shall be played so as to "alibi" the outcome (where the outcome depends upon the word of the operator against the word of the player).

D. No merchandise shall be displayed in any carnival game which is not one of the prizes possible to win.

E. While in operation, there shall be a sign stating the rules of the game, the cost to play, how the game is played, and exactly what is required of the player in order to win each prize offered. Signs shall be of a sturdy material and the lettering shall be plain and clearly posted and of sufficient height to be readable by all players.

F. No foul lines shall be permitted. The concessionaire or agent may designate a line a certain distance from the target behind which a player must stand to play the game, but appropriate structures or barriers must be placed at the line; otherwise, no foul lines are permitted.

G. No hidden device which limits the player's chance of winning is permitted.

H. The following rules or restrictions shall apply to operation of games as hereafter set forth:

1. No agent or employee shall be paid on the basis of a wage or percentage of the gross or net profit where a deduction from the wage or commission is made for the value of prizes won by players.

2. In all "spot-spot" games, the size of the disk must equal 0.622 times the diameter of the circle.

3. No "alibiing" in "spot-spot" games is allowed by the operator(s); nor shall the agents or operators move the disks once placed; nor shall there be any rules as to the distance required to drop the disk; nor shall the operators or agents drop any of the disks for the players except for the purpose of demonstration.

4. No more than twelve (12) build-up (incremental) prizes may be stocked or awarded at any one booth, and each prize must be clearly displayed and marked in the order of being awarded.

5. On a shooting game ordinarily referred to as "shoot out the star," only stars may be used as targets and no airplanes, etc. The star must be one and one-fourth inch or less and the gun must contain one hundred (100) BB's. Games may be played without prizes solely as a game of skill and when so played, no restrictions shall be placed upon the size of the star or the object used as the target. (2001 In-house code § 6-16)

5.36.170 Violation—Penalty.

Any person violating the provisions of this chapter is punishable pursuant to the general penalty provided for within this code, and/or by state law. (2001 In-house code § 6-17)

Chapter 5.40

COIN-OPERATED MACHINES

Sections:

5.40.010 **Purpose—Authority—General provisions.**

5.40.020 **Business license required—Application—Fee.**

5.40.030 **Restrictions.**

5.40.040 **Exception.**

5.40.050 **Violations—Penalty.**

5.40.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to regulate and license certain types of coin-operated vending machines within the city.

B. Authority is granted to cities and towns by Wyo. Stat. Section 15-1-103(a)(xiii) to regulate and license certain business operations conducted within the city. (2001 In-house code § 13-1)

5.40.020 Business license required—Application—Fee.

A. A person may not maintain or operate, for profit, any coin-operated vending machine for the vending of merchandise, or musical instrument or machine, in which there is uncertainty as to the value or amount of merchandise to be received or music to be rendered, without a business license issued by the city clerk.

B. Persons desiring a license must submit an application, on forms provided by the city clerk, which includes the name and address of the applicant, number and description of machines to be licensed and location where machines will be installed.

C. A nonrefundable annual license fee of five dollars per machine must be submitted with the application with a minimum fee of thirty-five dollars ($35.00) assessed regardless of the number of machines. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 13-2)

5.40.030 Restrictions.

The location of any machine licensed under the provisions of this chapter must not project over or upon any sidewalk or public right-of-way. (2001 In-house code § 13-3)

5.40.040 Exception.

The provisions of this chapter do not apply to washing and drying machines used in laundromats, nor to any machines operating on a nonprofit basis. (2001 In-house code § 13-4)

5.40.050 Violations—Penalty.

Persons violating any provision of this chapter will be punishable as provided by the general penalty provision of the city code. (2001 In-house code § 13-5)

Chapter 5.44

CONTRACTORS

Sections:

5.44.010	**Purpose and authority; general provisions.**
5.44.020	**License required; fees.**
5.44.030	**Contractor licensing board—Membership—Term.**
5.44.040	**Officers—Meetings—Record.**
5.44.050	**Contractor licensing board; powers and duties.**
5.44.060	**Violation—Penalty.**

5.44.010 Purpose and authority; general provisions.

A. The purpose of this chapter is to protect the public health, safety and welfare by regulating and controlling the practice of certain building and professional trades within the city by requiring that only contractors, licensed by the contractor licensing board, and persons actively supervised by licensed contractors may engage in those certain trades.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xiii) to license and regulate activities affiliated with building contractors and certain building and professional trades. This chapter may be referred to as the "Cheyenne Contractor Licensing Ordinance."

C. The chief building official, or designee, is authorized and directed to enforce the provisions of this chapter.

D. The chief building official, or designee, and members of the contractor licensing board, acting in good faith and without malice, are not personally liable for any damage to persons or property as a result of any act or by reason of any act or omission in the discharge of their duties. Any suit brought against the chief building official or board members will be defended by the city until final termination of such proceedings with any judgment being assumed by the city. (Ord. No. 4592, § 1, 11-12-24; Ord. No. 3933, § 1, 10-10-11; 2001 In-house code § 14-1)

Editor's note—Ord. No. 4592, § 1, adopted Nov. 12, 2024, amended § 5.44.010 and in doing so changed the title of said section from "Purpose—Authority—General provisions" to "Purpose and authority; general provisions," as set out herein.

5.44.020 License required; fees.

A. A person may not perform work or service in the construction, erection, addition, alteration, repair, equipping, moving, removal, conversion or demolition of any building or structure within the city unless they have first obtained the applicable contractor and/or building trade license issued through the chief building official as required by the contractor licensing board rules and regulations. The rules and regulations are on file in the office of city clerk.

B. Licensees must provide proof of general liability insurance and, if applicable, worker's compensation coverage in accordance with the board's rules and regulations.

C. Contractor and building trade application and license fees are specified in the contractor licensing board's rules and regulations. Any fee changes must be approved by the governing body.

D. In addition to the licensing requirements imposed under subsection (A) of this section, no person shall perform any work or service as provided below without first obtaining an applicable contractor license issued through the chief building official as required by the contractor licensing board rules and regulations. A license shall be required for the:

1. Maintaining or repair of any portable fire extinguisher;

2. Maintaining or repair of any hose station equipment; and

3. Servicing of any kitchen hood system, including washing, maintaining, inspecting or otherwise returning to service a kitchen hood system. (Ord. No. 4592, § 1, 11-12-24; Ord. No. 3933, § 1, 10-10-11; 2001 In-house code § 14-2)

Editor's note—Ord. No. 4592, § 1, adopted Nov. 12, 2024, amended § 5.44.020 and in doing so changed the title of said section from "License required—Fees" to "License required; fees," as set out herein.

5.44.030 Contractor licensing board—Membership—Term.

The contractor licensing board of the city is established.

A. The mayor, with consent of city council, will appoint nine members to the contractor licensing board who are representative of the construction industry. Members appointed must include at least one of the following licensed contractor classifications: Class A, Class B, Class C, and a design professional representative of the general public.

B. Members will be appointed for a four-year term and may be re-appointed for additional four-year terms. If a vacancy occurs, the board's chairperson, or the chief building official, will notify the mayor who will fill the vacancy for the unexpired term through appointment with city council approval.

1. A member may be removed from the board by the governing body for frequent absences from meetings, malfeasance, or failure to refrain from voting where a conflict of interest exists. (Ord. No. 3933, § 1, 10-10-11; Ord. No. 3863, § 1, 6-22-09; 2001 In-house code § 14-3)

5.44.040 Officers—Meetings—Record.

A. Annual nomination and election of board officers will be held each year at the January meeting with those elected taking office to serve a one-year term, or until a successor takes office, at the next regular meeting. Elections will be conducted with successful candidates receiving a majority vote. Officers are eligible for re-election. Any officer vacancy will be filled by election of the board.

B. The board will meet the second Tuesday of each month. The meeting dates and times may be established or changed by the board chairperson and chief building official. A majority of the voting members of the board constitutes a quorum for the transaction of business. A majority vote of members present is required for the approval of any matter before the board.

C. The chief building official, or designee, will serve as clerk of the board and will keep a record of meeting minutes and, upon request, will furnish a copy to the governing body. (Ord. No. 3933, § 1, 10-10-11; Ord. No. 3863, § 1, 6-22-09; 2001 In-house code § 14-4)

5.44.050 Contractor licensing board; powers and duties.

A. Duties of the contractor licensing board are:

1. To ensure persons engaged in certain building and other specified trades within the city are properly licensed by the board or actively supervised by a licensed contractor or supervisor;

2. To conduct hearings and investigations necessary to enforce the provisions of this chapter.

B. The board has the power to:

1. Adopt rules and regulations to accomplish the responsibilities and duties of this chapter. The chief building official, or designee, will prepare regulations for the board's approval pursuant to the Wyoming Administrative Procedure Act;

2. Determine qualifications of applicants seeking licenses as described in the board's rules and regulations, and approve or deny the issuance of same;

3. Establish standards and approve examinations and examining procedures, and determine what, if any, examinations, and evaluations are required of applicants to determine qualification:

a. Examinations given are to measure an applicant's knowledge of applicable codes, laws and ordinances for the type of license requested,

b. As directed by the board, examinations will be administered as specified in the board's rules and regulations. If the board determines an applicant is qualified to meet licensing requirements, the board will direct the building official to issue the license;

4. Adopt rules for reciprocity in examination and classification; but in all cases to grant reciprocity, for the purposes of certification, to persons determined qualified by authorized agencies of the state;

5. Suspend or revoke licenses issued or other penalties/discipline determined to be appropriate;

6. Conduct hearings in accordance with procedures outlined in the Wyoming Administrative Procedure Act, Wyoming Statute Section 16-3-101 et seq. and the board's rules and regulations. (Ord. No. 4592, § 1, 11-12-24; Ord. No. 3933, § 1, 10-10-11; 2001 In-house code § 14-5)

Editor's note—Ord. No. 4592, § 1, adopted Nov. 12, 2024, amended § 5.44.050 and in doing so changed the title of said section from "Contractor licensing board—Powers and duties" to "Contractor licensing board; powers and duties," as set out herein.

5.44.060 Violation—Penalty.

Contractors violating any provision of this chapter or the board's rules and regulations may have their license suspended or revoked and will be subject to the general penalty set forth in the city code. (2001 In-house code § 14-6)

Chapter 5.48

DETECTIVE, PATROL AND GUARD SERVICE BUSINESSES

Sections:

5.48.010 **Intent—Authority—General provisions.**

5.48.020 **Definitions.**

5.48.030 **Qualifications.**

5.48.040 **License required—Application.**

5.48.050 **Investigation of applicant.**

5.48.060 **Insurance and bond requirements.**

5.48.070 **Form of license issued—Display of license.**

5.48.080 **Term of license—Transferability.**

5.48.090 **Restrictions.**

5.48.100 **Firearms.**

5.48.110 **Unlawful acts.**

5.48.120 **Exempt persons.**

5.48.130 **Reciprocity.**

5.48.140 **License suspension and revocation.**

5.48.150 **Procedures for suspension and revocation—Emergency suspension.**

5.48.010 Intent—Authority—General provisions.

A. The purpose of this chapter is to establish regulations and procedures for the review and licensing of private detective and security guard businesses and employees providing services and related activities within the city.

B. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xiii) the conduct of private detective and security guard businesses and their employees will be governed by this chapter. (2001 In-house code § 36-1)

5.48.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Detective business" means the conducting for hire of an investigation to obtain information with reference to any of the following matters:

1. Private or public crimes;
2. Wrongs to persons or property done or threatened;
3. Habits, conduct, movements, associations, transaction, reputation or character of persons;
4. Credibility of witnesses or other persons;
5. The location or recovery of lost or stolen property;
6. Securing of evidence to be used before investigating committees, boards of award or arbitration or in the trial of civil or criminal cases and proceedings;
7. Causes, origin or responsibility for fires or accidents or injuries to real or personal property, strikes or labor disputes.

"Detective agency" means any agency engaged in the detective business which employs one or more persons as employees, assistants, clerks, bookkeepers, private detectives or operatives in the normal conduct of operations in the business.

"Private detective" means any individual engaging in the private detective business or employed by a private detective business.

"Patrol or guard service business" means the conducting for hire of a business which is engaged in any of the following activities:

1. Protection of persons or property;
2. Prevention of private or public crimes.

"Patrol or guard service agency" means any agency engaged in the patrol or guard service business which employs one or more employees, assistants, clerks, bookkeepers, patrolmen or guards in the business.

"Patrolman or guard" means any individual engaging in the patrolman or guard business or employed by a patrol or guard service business.

"For hire" means any and all compensation paid directly or indirectly or agreed to be paid directly or indirectly by any person to a private

detective, detective patrol, patrol or guard service agency, patrol person or guard. (2001 In-house code § 36-2)

5.48.030 Qualifications.

No person will be granted a license to engage in a detective, patrol or guard service business or will be permitted to be employed by a detective, patrol or guard service business unless such person:

A. Has never been convicted of any felony or misdemeanor involving moral turpitude;

B. Is of good moral character;

C. Is a citizen of the United States, or if not a citizen of the United States, submits proof that he or she is an alien lawfully admitted within the United States;

D. Is at least the age of majority.

E. It will be the responsibility of the licensee to conduct the background check on those in his or her employ. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-3)

5.48.040 License required—Application.

A. No person may engage in nor represent himself or herself as being engaged in the detective, patrol or guard service business, as defined in Section 5.48.020 of this chapter, within the city without having first obtained a business license from the city clerk. Any person intending to engage in, establish or conduct any detective, patrol or guard service business must file a written application on forms provided by the office of city clerk. The application filed must include any supporting documentation required in this section, and payment of a nonrefundable annual license fee of one hundred forty dollars ($140.00).

B. The application must include a recent photograph of the applicant.

C. The application will contain such information deemed necessary to make a fair determination of the qualifications of the applicant, including, but not limited to, the following:

1. Full name, residence address and telephone number of the applicant;

2. Proof of applicant's citizenship;

3. Specific description of the location of the principal place of business of applicant;

4. Length of time applicant has resided in the state of Wyoming immediately preceding the filing of the application;

5. Type of license requested;

6. Arrests, convictions and pending criminal charges of applicant for felonies and misdemeanors involving moral turpitude;

7. Applicant's date of birth.

D. If the applicant is an individual, the application must be signed, filed and verified by such individual.

E. If the applicant is a partnership or joint venture, the application must be signed, filed and verified by each individual composing or intending to compose such partnership or joint venture.

F. If the applicant is a corporation, the application must be signed, filed and verified by the president and secretary thereof, or other authorized officer, and must specify the name of the corporation, date and place of its incorporation, location of its principal place of business, and must be accompanied by a copy of its certificate of incorporation. If the corporation is a foreign corporation, proof of domestication must be furnished.

G. Licenses required by this chapter shall be issued and renewed in accordance with the provisions of Chapter 5.04. (Ord. No. 4268, § 1, 4-8-19; Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; 2001 In-house code § 36-4)

5.48.050 Investigation of applicant.

Within thirty (30) days after receipt of an application for a detective, patrol or guard service business license the chief of police will cause an investigation to be made of the applicant and proposed operation. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-5)

5.48.060 Insurance and bond requirements.

A. Applicants desiring to be engaged in the patrol or guard service business must provide evidence of general liability insurance coverage with

minimum limits of one hundred thousand dollars ($100,000.00) per occurrence and two hundred thousand dollars ($200,000.00) annual aggregate limit.

B. Applicants must provide a security bond, executed by a company authorized to do business in the state of Wyoming wherein the applicant must be named as the principal, with sureties to be approved by the city clerk, in a sum of not less than ten thousand dollars ($10,000.00), and conditioned that the applicant and each of applicant's employees will faithfully observe all laws of Wyoming, the city of Cheyenne and of the United States, and will pay all damages suffered by any person by reason of the violation of any such law by the applicant or the commission of any willful and malicious wrong by any such applicant in the course of conduct of such business.

C. The bond must be maintained in effect concurrently with the license. If the bond lapses, procedures will be instigated so that the license will likewise be suspended.

D. The insurance requirements do not apply to applicants engaged exclusively in the private detective business. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-6)

5.48.070 Form of license issued—Display of license.

A. The license issued will be in a form to be prepared and prescribed by the city clerk and will specify the name of the applicant, the location of the place of business, date on which the license was issued and when it will expire.

B. Upon receipt of the license issued by the city clerk, the licensee will immediately display the license in a conspicuous place in or on the place of business so all persons visiting the business place will readily see the license. (2001 In-house code § 36-7)

5.48.080 Term of license—Transferability.

A. Licenses issued will be effective for one year from the date of issuance in accordance with general licensing provisions of Chapter 5.04. Licenses may be issued at any time during the license year. The full amount of fees prescribed under this chapter must be paid by successful applicants regardless of the date of issuance, and no credit will be allowed in the event an applicant's license for any reason becomes invalid or ineffective prior to the normal expiration date.

B. Licenses are not transferable. (2001 In-house code § 36-8)

5.48.090 Restrictions.

A. No person licensed under this chapter and no employees of licensees may impersonate or hold themselves out as a peace officer of the state; nor will a licensee operate or permit to be operated a motor vehicle with a siren or blinker light; or with any insignia thereon bearing a likeness to insignia used by police officers of the city, state, county or federal government, provided nothing under this chapter will b construed to prohibit the wearing of an appropriate uniform and badge indicating the identity of the person wearing the same as a licensee or employee of a licensee. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-10)

Editor's note—Ord. No. 4268, § 1, adopted April 8, 2019, repealed § 5.48.090 and renumbered §§ 5.48.100—5.48.160 as §§ 5.48.090—5.48.150. Former § 5.48.090 pertained to private detective, patrolman or guard application required—Identification cards and derived from § 36-9 of the 2001 In-house code and Ord. No. 3844, adopted June 8, 2009.

5.48.100 Firearms.

Licensees will have the right to carry firearms only in accordance with Wyo. Stat. Section 6-8-104, as amended. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-11)

Editor's note—See editor's note, § 5.48.090.

5.48.110 Unlawful acts.

It will be unlawful:

A. For any licensee or employee of a licensee to draw or fire a firearm in the performance of his or her duties except when necessary to protect himself or herself from great bodily harm;

B. For any licensee or employee of a licensee to hinder or interfere with any investigation under

the jurisdiction of the Cheyenne police department or any law enforcement agency of the city, county, state or federal government;

C. For any licensee or employee of a licensee to fail to report as soon as is practicable to the Cheyenne police department all violations of city, state or federal laws coming to their attention;

D. For any licensee or employee of a licensee to represent himself to be an officer of the Cheyenne police department or an officer of the city, county, state or federal government;

E. For any licensee or employee of a licensee to fail to conduct himself or herself in a lawful orderly manner at all times. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-12)

Editor's note—See editor's note, § 5.48.090.

5.48.120 Exempt persons.

Provisions of this chapter do not apply to the following persons or groups of persons, who are declared to be exempt from the operation hereof:

A. Collection agencies or persons regularly employed by collection agencies, while they are engaged in their normal duties;

B. Insurance companies licensed to do business within the state of Wyoming, or persons regularly employed by insurance companies, while they are engaged in their normal duties;

C. Insurance adjusting or claims agencies or persons regularly employed by insurance adjusting or claim agencies, while the persons are engaged in their normal duties;

D. Individuals, while doing any of those activities covered herein, when activities are pursued free of compensation, not for hire, and on the individuals personal business;

E. Attorneys-at-law licensed to engage in the practice of their profession within the state of Wyoming; providing, however, that persons employed by attorneys-at-law are not exempt from the operations of this chapter when employed to perform activities covered in this chapter;

F. Law enforcement officers or any persons employed by any state, county, city, town, village, appointed or elected by due authority of law, including officers and employees of the United States government, while engaged in the performance of their official duties, and including district, county, city or state's attorneys or persons in their employ, while engaged in the performance of their normal duties. Law enforcement officers are specifically exempt from the requirements of filing an application as set forth in Section 5.48.090 while working for a detective or patrol or guard service business when not on duty in their official capacity. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-13)

Editor's note—See editor's note, § 5.48.090.

5.48.130 Reciprocity.

Any person engaged in any of the activities defined in this chapter, or employee of the person, which person engaged in any of the activities regulated herein in any other city, town, village or county, state or foreign country and is not licensed by the city, but having professional business within the city, may, upon application, with approval from the chief of police, be granted permission to engage in activities for the purpose of the business only, and for a temporary period of time not to exceed sixty (60) days; provided, however, that such person has associated himself or herself with a person licensed by the city. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-14)

Editor's note—See editor's note, § 5.48.090.

5.48.140 License suspension and revocation.

A. Licenses may be suspended for definite periods of time, or revoked by the mayor or the governing body of the city, and identification cards issued to persons employed as a private detective, patrolman or guard may be suspended or revoked by the chief of police.

B. Grounds for suspension or revocation are, if the licensee or employee of a licensee:

1. Knowingly violates any of the provisions of this chapter;

2. Knowingly makes a false report to his or her client, or other person entitled to receive such information, in respect to any of the matters in which the licensee may be employed;

3. Knowingly and wrongfully divulges any confidential information which he or she may have acquired from or for his or her client to any person other than his or her client or other person authorized to receive such information. If the licensee knowingly permits or instructs any employee to make a false report or knowingly permits or instructs any employee wrongfully to divulge any confidential information acquired from or for his or her client, in the event the employee will actually make a false report or wrongfully divulge confidential information. No suspension or revocation will be made if the divulging of information is required by law;

4. Knowingly and willfully swears falsely in any judicial proceedings, or suborns perjury upon conviction of the licensee;

5. During the period of his or her employment by a client, accepts money or gratuities from any person whose affairs he or she may have been employed to investigate;

6. Knowingly or willfully, falsely states or represents any matters or information contained as a part of an application for license or identification card;

7. Has been convicted of violating any provisions of this chapter, or is convicted of a felony or a misdemeanor involving moral turpitude.

C. In the event that any licensee has done any of the things set forth in subsection (B)(1) through (7) of this section, the mayor or the governing body may suspend or revoke the license. If an employee holding an identification card has done any of the things set forth in subsection (B)(1) through (7) of this section, the chief of police may suspend or revoke the identification card. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-15)

Editor's note—See editor's note, § 5.48.090.

5.48.150 Procedures for suspension and revocation—Emergency suspension.

The procedure for suspension and revocation, including emergency suspension, will be in accordance with general provisions outlined in Chapter 5.04. (Ord. No. 4268, § 1, 4-8-19; 2001 In-house code § 36-16)

Editor's note—See editor's note, § 5.48.090.

Chapter 5.52

MASSAGE ESTABLISHMENTS

Sections:

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5.52.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to protect the general health, safety, welfare and morals of the inhabitants of the city through enactment of licensing and standards for the privilege of carrying on the business, trade or profession of massage therapy and for the operation of the business, trade or profession commonly known as massage parlors, health salons, physical culture studios, clubs or establishments wherein physical culture, massage, hydrotherapy or other physical treatment of the human body is carried on or practiced.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xiii) and (xli) to license and regulate business activities within the city for the health, safety and welfare of its citizens.

C. The city clerk will act to approve or deny an application for a license or permit under the provisions of this chapter within a reasonable period of time. Every license or permit issued will be effective for one year from date of issuance unless sooner suspended or revoked.

D. Investigating officials of the city, including the chief of police and the city/county health director, or their designated representative(s) have the authority to enter the premises of any licensee or permittee from time to time during regular business hours to make reasonable inspections to enforce compliance with fire, building and health regulations and the provisions of this chapter. (Ord. No. 4178, § 1, 5-22-17; 2001 In-house code § 26 ½-1)

5.52.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Distance learning school" means a school or educational institution, as approved by the city/county health director and city clerk, that issues an official diploma or certificate of completion to successful students completing a massage and massage affiliated curriculum consisting of not less than five hundred (500) hours of in-class correspondence, or electronic means of instruction, or a combination thereof, with a minimum of two hundred (200) hours of in-class hands-on practicum under the supervision of staff instructors. The school must provide enrolled students with lesson materials prepared in a sequential and logical order for home study, and each lesson, when completed, must be returned to the school for correction and grading under the supervision of a credentialed staff instructor. Distance learning

schools must be licensed, if required, through the applicable state agency in the state in which the school is located.

1. If a state license is not required, the distance learning school must meet one of the following requirements:

a. The school's massage and massage affiliated curriculum must be reviewed, evaluated and approved by a national or international professional massage therapy organization; or

b. The school must have current accreditation status issued by an accreditation organization recognized by the U.S. Department of Education; or have current accreditation status issued by a national accreditation organization as approved by the city/county health director and city clerk.

"License" means a license issued by the city and city/county health department as required by this chapter to operate or own a massage business establishment.

"Massage" means administration by any person of any method of exerting or applying pressure, friction, moisture, heat or cold to the human body, or the rubbing, stroking, kneading, pounding or tapping of the human body by any physical or mechanical means for any form of consideration. For purposes of this chapter, massage does not mean the practice known as "acupuncture."

"Massage business establishment" means any establishment having a fixed place of business proposing to operate within an allowable city business zone, as approved by the city development office, where any person engages in or carries on or permits others to engage in or carry on any of the activities regulated by this chapter. Any commercial establishment engaged in or carrying on or permitting any type of massage for any form of consideration, and which may involve the employment of, or provisions to allow services by, massage therapists permitted by the city, is deemed a massage establishment.

"Massage therapist" means any person who gives or administers to another person, for any form of consideration, a massage, and who qualifies for a massage therapist's permit pursuant to this chapter. This includes persons calling themselves "massagist," "masseuse" or "masseur."

"Patron" means any person over the age of majority who receives a massage under such circumstances that it is reasonably expected that they will pay money or give any other consideration for massage services.

"Permit" means a permit issued by the city and city/county department as required by this chapter to engage in the activities of a massage therapist.

"School" means a school or educational institution, as approved by the city/county health director and city clerk, that issues an official diploma or certificate of completion to successful students completing a massage and massage affiliated curriculum consisting of not less than five hundred (500) hours of in-class instruction, including in-class hands-on practicum under the supervision of staff instructors. The school must be licensed, if required, through the applicable state agency in the state in which the school is located.

1. If a state license is not required, the school must meet one of the following requirements:

a. The school's massage and massage affiliated curriculum must be reviewed, evaluated and approved by a national or international professional massage therapy organization; or

b. The school must have current accreditation status issued by an accreditation organization recognized by the U.S. Department of Education; or have current accreditation status issued by a national accreditation organization as approved by the city/county health director and city clerk.

"Specified anatomical areas" means the human genital, pubic and anal regions or the perineum of any person, or the vulva or breasts of a female. (Ord. No. 4178, § 1, 5-22-17; Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-2)

5.52.030 License or permit required.

A. Business License Required. No person shall operate a massage business establishment without a valid massage business establishment license for

each place of business issued by the city and a massage establishment health license issued by the city/county health department pursuant to the provisions of this chapter.

B. Permit Required. No person shall practice massage for any form of consideration without a valid massage therapist's permit issued by the city and a massage therapist's health permit issued by the city/county health department pursuant to the provisions of this chapter. (Ord. No. 4178, § 1, 5-22-17; Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-3)

5.52.040 Application for massage business establishment license.

A. Any person desiring to engage in the business, trade, profession, operation or conduct of a massage business establishment must first file an application for a license in the office of the city clerk and pay a nonrefundable annual license fee, which will be one hundred thirty-five dollars ($135.00) per location. The application, once accepted, will be referred to the city police department for investigation of the applicant's character and qualifications. Copies of the application will also be referred to the fire and health departments. The departments may inspect the premises proposed to be operated as a massage business establishment and make written verification to the city clerk concerning compliance with city codes that they administer. Each application must be written on forms provided by the city clerk and contain the following information:

1. Full and true name(s) or any other name(s) used by the applicant (hereinafter all provisions which refer to applicant include an applicant which may be a corporation or partnership).

a. If applicant is a corporation, the names and residence addresses of each officer and director of the corporation and each stockholder owning more than ten (10) percent of the stock of the corporation, and address of the corporation itself, if different from the address of the massage establishment,

b. If applicant is a partnership, the names and residence addresses of each partner, including limited partners, and the address of the partnership itself, if different where the business is to be conducted;

2. Present address and telephone number of each applicant;

3. Location, mailing address and telephone numbers where the business is to be conducted;

4. Two previous addresses immediately prior to the present address of the applicant;

5. Proof that the applicant is at least the age of majority;

6. Applicant's height, weight, color of eyes and hair, and sex;

7. One photograph at least two inches by two inches of each applicant.

a. If applicant is a corporation, one photograph must be taken of all officers and managing agents of the corporation;

b. If applicant is a partnership, one photograph must be taken of each partner, including limited partners;

8. Driver's license, if any, and date of birth of each applicant;

9. Business, occupation or employment of the applicant for three years immediately preceding the date of application;

10. Massage or similar business license history of each applicant; whether such person, in previously operating in this or another city or state, has had a business license or permit revoked or suspended, reason for the action, and the business activity or occupation subsequent to the action;

11. All criminal convictions other than misdemeanor traffic violations, including dates of convictions, nature of the crimes and place convicted;

12. Names and addresses of each massage therapist who will be employed, or who will be providing services through the proposed massage business establishment;

13. Description of any other business to be operated on the same or on adjoining premises owned or operated by the applicant;

14. Authorization for the city, its agents and employees to seek information and conduct an investigation into the truth of the statements set forth in the application and qualifications of the applicant;

15. Such other identification and information necessary to discover the truth of the matters specified as required to be set forth in the application.

B. Upon completion of the above-provided form and the furnishing of all supplemental information, the city clerk shall accept the application for necessary investigations. The holder of a massage business establishment must notify the city clerk (who in turn will notify the appropriate departments) of each change in any of the data required to be furnished by this section within ten (10) days after any change occurs. (Ord. No. 4268, § 2, 4-8-19; Ord. No. 4178, § 1, 5-22-17; Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-4)

5.52.050 Application for massage therapist permit.

A. Initial Application. Initial application for a massage therapist permit must be made to the city clerk in the same manner as provided for a massage business establishment license, accompanied by the annual nonrefundable massage therapist permit fee of one hundred fifteen dollars ($115.00). The application must contain, but may not be limited to, the following information:

1. Applicant name and residence address, including telephone number, and location where massage is to be conducted or practiced;

2. All names, nicknames and aliases by which the applicant has been known, including the applicant's two previous residence addresses immediately prior to his or her present address;

3. Driver's license number, if any, and date of birth;

4. Applicant's weight, height, color of hair and eyes, and sex;

5. Written evidence the applicant is at least the age of majority;

6. Complete statement of all convictions of the applicant for any felony or misdemeanor violation or violation of a local ordinance, except misdemeanor traffic violations;

7. Two front-face portrait photographs taken within thirty (30) days of the date of application and at least two inches by two inches in size. One photograph will be retained by the city clerk and one photograph affixed to the massage therapist permit;

8. Business occupation or employment history of the applicant for three years immediately prior to the date of application, including, but not limited to, whether the applicant in previously operating in this or another city or state under any business or massage license or permit has had such license or permit denied, revoked or suspended, reasons for the action, and the business activities or occupations subsequent to the action;

9. Reserved.

10. Medical certificate signed by a physician, licensed to practice in the state of Wyoming, within fourteen (14) days of the date of the application or as approved by the city clerk and city/county health director. The certificate must state the applicant was examined by the certifying physician;

11. Such other information, identification and physical examination of the person deemed necessary by the police chief in order to discover the truth of the matters required to be set forth in the application;

12. Authorization for the city, its agents and employees to seek information and conduct an investigation into the truth of the statements set forth in the application and qualifications of the applicant;

13. Written declaration by the applicant, under penalty of perjury, that the information contained within the application is true and correct;

14. Proof of high school diploma or recognized equivalent;

15. Name and address of the school or distance learning school attended, dates attended or enrolled, and a copy of the diploma or certificate

of completion awarded the applicant showing the applicant successfully completed the school's massage curriculum;

16. Proof of not less than one million dollars ($1,000,000.00) in individual general liability coverage;

17. Written documentation pertaining to current membership with an established national organization associated with massage therapy, including a copy of the organization's code of ethics;

18. Statement by applicant as to the primary purpose of permit (i.e., out-of-home services, in-home services or combination thereof). If in-home services desired, written approval from zoning, city/county health director and chief of police is required. A suitable floor plan delineating the area to be utilized for the administration of in-home services shall be submitted with the application.

Massage therapists may provide massages at various sites throughout the city and are not limited to the location shown on the permit;

19. Proposed format to be used as a service register pursuant to Section 5.52.080(B).

B. Applications for renewal of a massage therapist permit must be made as set forth in Section 5.52.160 with submittal of updated photos of the applicant pursuant to subsection (A)(7) of this section. Approval of the renewal application by the city/county health director is required. (Ord. No. 4268, § 2, 4-8-19; Ord. No. 4236, § 1, 7-9-18; Ord. No. 4195, § 1, 8-14-17; Ord. No. 4178, § 1, 5-22-17; Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; Ord. 3609 § 1 (part), 2004: 2001 In-house code § 26 ½-5.1)

5.52.060 Issuance of license or permit.

Upon application, with supporting documentation and payment of fee, if required, the city clerk may issue a business license for a massage establishment, or a permit for a massage therapist, to any person the city clerk deems a proper recipient if all requirements for a massage business establishment or massage therapist permit described in this chapter and all approvals from various city/county offices, as required by the city clerk, are met unless:

A. The correct permit or license fee has not been tendered to the city and, in the case of a check or bank draft, honored with payment upon presentation;

B. The operation, as proposed by the applicant, if permitted, would not comply with all applicable laws, including, but not limited to, the city's building, zoning and health regulations;

C. The applicant, if an individual; or any of the stockholders holding more than ten (10) percent of the stock of the corporation, any of the officers and directors, if the applicant is a corporation; or any of the partners, including limited partners, if the applicant is a partnership; or the holder of any lien, of any nature, upon the business and/or the equipment used therein; and the manager or other person principally in charge of the operation of the business, have been convicted of any of the following offenses or convicted of any offense without the state of Wyoming that would have constituted any of the following offenses if committed within the state of Wyoming:

1. An offense involving the use of force and violence upon the person of another that amounts to a felony,

2. An offense involving sexual misconduct,

3. An offense involving narcotics, dangerous drugs or dangerous weapons that amounts to a felony.

The city may issue a license or permit to any person convicted of any of the crimes described in subsections (C)(1), (2) or (3) of this section if it finds that the conviction occurred at least five years prior to the date of the application and the applicant has had no subsequent convictions for crimes mentioned in this section;

D. The applicant has knowingly made any false, misleading or fraudulent statement of fact in the application or in any document required by the city in conjunction therewith;

E. The applicant has had a massage business, massage therapist or other similar permit or li-

cense denied, revoked or suspended by the city or any other state or local agency within five years prior to the date of the application;

F. The applicant, if an individual, or any of the officers and directors, if the applicant is a corporation or any of the partners, including limited partners, if the applicant is a partnership, and the manager or other person principally in charge of the operation of the business, is not over the age of eighteen (18) years. (Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-6)

5.52.070 Posting of license or permit.

A. Massage Business Establishment. Every massage business establishment licensed under this chapter must display the business license in a prominent place upon the business address listed in the application.

B. Every massage therapist, when employed by or working upon the site of a licensed massage business establishment, must post the permit required by this chapter in their work area upon the licensed massage business establishment premises.

C. Every massage therapist must have in their possession the permit required by this chapter whenever providing services as permitted by this chapter. (Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-7)

5.52.080 Register of employees and patrons.

A. The licensee or person designated by the licensee of a massage business establishment will maintain a register of all persons employed or who are providing services as massage therapists and their permit license numbers. The register will be available at the massage establishment to representatives of the city of Cheyenne during regular business hours.

B. A massage therapist permittee will maintain a service register, as approved by the city/county health officer and chief of police. (Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-8)

5.52.090 Massage establishment operating requirements.

No person will engage in, conduct or carry on, or permit others to engage in, conduct or carry on, the operation of a massage business establishment unless each of the following requirements are met:

A. Each person employed or acting as a massage therapist must have a valid permit issued pursuant to the provisions of this chapter. It is unlawful for any owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage establishment to employ or permit any person to act or provide services as a massage therapist who is not in possession of a valid permit.

B. The possession of a valid massage establishment license does not authorize the possessor to perform work for which a massage therapist permit is required.

C. Massage operations shall be carried on, and the premises shall be open, only between the hours of six a.m. and nine p.m.

D. A list of services available and the cost of such services must be posted in an open and conspicuous public place on the premises. The service must be described in readily understandable language. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of the massage business establishment will permit and no massage therapist will offer to perform nor will they perform, any service other than those posted.

E. The massage business establishment license, latest public health inspection form and a copy of the permit of each and every massage therapist employed by or working in the establishment must be displayed in an open and conspicuous public place on the premises.

F. A minimum of one toilet and wash basin must be provided for patrons in every massage establishment; however, if male and female patrons are to be served simultaneously, separate toilet facilities must be provided for male and female patrons. Hot and cold running water under pressure must be provided to all wash basins. Each wash basin will be provided with soap or detergent and sanitary towels placed in permanently installed dispensers. A trash receptacle will be provided in each toilet room.

G. Clean and sanitary towels, sheets and linens will be provided for each patron receiving massage services. No common use of towels or linens will be permitted and reuse is prohibited unless they have been first laundered. Heavy white paper may be substituted for sheets; provided, that such paper is used once for each person, then discarded into a sanitary receptacle.

H. Disinfecting agents and sanitizing equipment sufficient to assure cleanliness and safe conditions must be used for any instruments used in performing any massage.

I. Pads used on massage tables must be covered in a workmanlike manner with durable, washable plastic or other waterproof materials.

J. Each establishment must provide to all patrons clean, sanitary and opaque coverings capable of covering the patron's specified anatomical areas. Coverings will be used for one customer only and will not be reused without first being cleaned.

K. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage establishment will permit a massage to be given unless the patron's specified anatomical areas are covered during the entire massage by the covering referred to in subsection J of this section except as provided in Section 5.52.105 of this chapter.

L. With the exception of bathrooms or dressing rooms not open to public view, no owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of any massage establishment will permit any person in any area of the establishment which is used in common by patrons or which can be viewed by patrons from such an area, unless such person's specified anatomical areas are fully covered.

M. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage business establishment will permit any massage therapist to perform any service or task while in the presence of a patron or to be on the premises of a massage business establishment during its hours of operation unless the massage therapist is fully covered from a point not to exceed four inches above the center of the kneecap to the base of the neck. Such covering must be of an opaque material and maintained in a clean and sanitary condition.

N. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage establishment will permit any person to massage or intentionally touch the specified anatomical areas of another person while performing the services of a massage therapist except as provided in Section 5.52.105 of this chapter. (Ord. 4294, § 1, 3-9-20; Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-9)

5.52.100 Massage therapist operating requirements.

No person will engage in, conduct or carry on the practice of a massage therapist unless each of the following requirements are met:

A. Possession of a valid permit issued pursuant to the provisions of this chapter, a copy of which will be made available upon request;

B. Massage therapy shall be provided only between the hours of six a.m. and nine p.m.;

C. A list of services available and the cost of such services will be available upon request. Services must be described in readily understandable language. No massage therapist will perform or offer to perform any service other than those listed;

D. Clean and sanitary towels, sheets and linens must be provided for each patron receiving massage therapy. No common use of towels or linens will be permitted and reuse is prohibited unless they have first been laundered. Heavy white paper may be substituted for sheets; provided, that such paper is used once for each person, then discarded into a sanitary receptacle;

E. Disinfecting agents and sanitizing equipment sufficient to assure cleanliness and safe conditions thereof must be used for any instruments used in performing massage therapy;

F. Pads used on massage tables must be covered in a workmanlike manner with durable, washable plastic or other waterproof material;

G. Massage therapists must provide to all patrons clean, sanitary and opaque coverings capable of covering the patron's specified anatomical areas. Such coverings shall be used for one customer only and will not be reused without first being cleaned;

H. No massage therapist will give a massage unless the patron's specified anatomical areas are covered during the entire massage by the covering required in subsection G of this section except as provided in Section 5.52.105 of this chapter;

I. No massage therapist will perform any service or task while in the presence of a patron unless the massage therapist is fully covered from a point not to exceed four inches above the center of the kneecap to the base of the neck. Coverings must be of an opaque material and maintained in a clean and sanitary condition;

J. No massage therapist will massage or intentionally touch the specified anatomical areas of another person while performing the services of a massage therapist except as provided in Section 5.52.105 of this chapter. (Ord. 4294, § 1, 3-9-20; Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-10)

5.52.105 Breast massage authorized.

A. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage establishment will permit any person to massage or intentionally touch the breasts of a female person while performing the services of a massage therapist unless:

1. The person holds a valid permit issued pursuant to the provisions of this chapter;

2. The person is trained in breast massage and has provided the city clerk with proof of the name and address of the school attended to be trained in breast massage, dates attended or enrolled, and a copy of the diploma or certificate of completion awarded the applicant showing the applicant successfully completed the school's breast massage curriculum; and

3. The patron signs a written consent form provided by the business and available for inspection by the city clerk, chief of police and city/county health director upon request.

B. No massage therapist will massage or intentionally touch the breasts of a female person unless each of the following requirements are met:

1. The person holds a valid permit issued pursuant to the provisions of this chapter;

2. The person is trained in breast massage and has provided the city clerk with proof of the name and address of the school attended to be trained in breast massage, dates attended or enrolled, and a copy of the diploma or certificate of completion awarded the applicant showing the applicant successfully completed the school's breast massage curriculum; and

3. The patron signs a written consent form provided by the business and available for inspection by the city clerk, chief of police and city/county health director upon request.

C. Failure to comply with these provisions will result in the suspension and/or revocation of a massage establishment license and/or massage therapist permit and may also result in criminal penalties pursuant to Section 5.52.140. (Ord. 4294, § 1, 3-9-20)

5.52.110 Transfer of license or permit.

A. No massage business establishment license is transferable in location except with the approval of the city clerk, chief of police and city/county health director. A request for such change shall be submitted on a new business establishment application form provided by the city clerk and a fee of thirty dollars ($30.00) will be assessed. Upon approval of the transfer of location application, a new license will be issued to be effective for the balance of the existing licensing term.

B. No transfer of ownership for a massage business establishment license will be allowed, except in the case of a jointly held license, one or more partners may drop their interest in the license in favor of one or more remaining partners upon payment of thirty dollars ($30.00) to the city clerk.

C. In the event of the death or incapacity of the licensee or any co-licensee of a massage business establishment, any heir or devisee of a de-

ceased licensee, may continue the business of the massage business establishment for a reasonable period of time not to exceed sixty (60) days to allow for an orderly transfer of the license. (Ord. No. 4178, § 1, 5-22-17; Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-11)

5.52.120 Name and place of business.

A person granted a license pursuant to this chapter cannot operate the massage business establishment under a name not specified in the license, nor can he or she conduct business under any designation or location not specified in the license. (Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-12)

5.52.130 Denial, suspension or revocation of license or permit.

A. Denial. Within ten (10) days of the denial of an application for a massage business establishment license, or massage therapist permit, the applicant may file with the city clerk a written request for a hearing in accordance with Chapter 2.92, Administrative Hearing Procedure.

B. Suspension or Revocation. Any massage business establishment license, or massage therapist permit is subject to suspension or revocation for violation of any provision of this chapter, or for grounds that would warrant the denial of the issuance of such license or permit in the first instance, or for the violation of any law relating to or regulating massage business establishments or massage therapists.

C. The holder of a massage business establishment license or massage therapist permit that is suspended or revoked may file with the city clerk a written request for a hearing in accordance with Chapter 2.92, Administrative Hearing Procedure. (Ord. No. 4385, § 1, 7-12-21; Ord. No. 4178, § 1, 5-22-17; Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-13)

5.52.140 Violation—Penalty.

It is unlawful to violate any of the provisions of this chapter. Any person violating any provisions of this chapter will be guilty of a misdemeanor, punishable pursuant to the general penalty provision of the city code. (Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-14)

5.52.150 Exemptions.

The provisions of this chapter do not apply to the following individuals while engaged in the personal performance of their professional duties:

A. Physicians, surgeons, chiropractors, osteopaths, physical therapists or other health-related individuals who are duly licensed by the state of Wyoming to practice their respective professions;

B. Registered nurses, licensed practical nurses and nurses' aides performing massage services in the course of their usual nursing duties;

C. Barbers and beauticians who are duly licensed under the laws of this state and the city of Cheyenne, except that this exemption applies solely to the massaging of a customer's or client's neck, face, scalp, hair and other limited areas (below the elbows and knees and not involving deep muscle massage therapy techniques) as contained in the instructional curriculum approved by the state of Wyoming licensing board of cosmetology, and as approved by the director of the city/county health department. State licensed barbers and beauticians shall only provide massaging, as described in this subsection, for customers or clients in conjunction with cosmetology-related services and only upon the city licensed barber/beautician business premises;

D. Trainers of any amateur, semiprofessional or professional athlete or athletic team;

E. Hospitals, clinics, nursing and convalescent homes, and other similarly licensed health care facilities;

F. Health clubs or similar recreational leisure time or self-improvement facilities or activities which provide sauna, therapeutic pools, inhalation rooms, steam rooms, exercise equipment or similar facilities which are intended for self use without direct supervision or application. (Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-15)

5.52.160 Renewal procedures.

A. Each licensee or permittee may annually renew such license or permit if renewal application, including any documentation as required by the city clerk and payment of fees pursuant to Sections 5.52.040 and 5.52.050, is submitted to the office of the city clerk prior to expiration of the current license or permit. Renewal application forms will be provided by the city clerk. If such license or permit renewal application is not received prior to expiration of the current license or permit, the provisions of Section 5.04.090 of this title will apply.

B. The city clerk will act to approve or deny an application for renewal of a license or permit under this chapter within a reasonable period of time. (Ord. No. 3844, § 1, 6-8-09; Ord. 3609 § 1 (part), 2004; 2001 In-house code § 26 ½-16)

Chapter 5.56

PAWNBROKERS

Sections:

5.56.010 **Purpose—Authority—General provisions.**

5.56.020 **Definitions.**

5.56.030 **License required.**

5.56.040 **Record of property received required—Content—Preservation of records and notification.**

5.56.050 **Records—Original and copy to correspond—Accurate entries.**

5.56.060 **Records—Property purchased outright.**

5.56.070 **Duty of pawnshop detail to inspect articles—Articles to be kept separate for same.**

5.56.080 **Stolen or illegally obtained goods.**

5.56.090 **Purchases to be held fifteen days.**

5.56.100 **Retention of pawned articles.**

5.56.110 **Rates regulated.**

5.56.120 **Transactions with minors prohibited.**

5.56.130 **Disclosure—Advertising.**

5.56.140 **Limitation on agreements and practices.**

5.56.150 **Prohibited practices.**

5.56.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to regulate the operations of pawnbrokers within the city and provide for a business license as authorized by Wyo. Stat. Sections 15-1-103(a)(xiii) and 5-1-105(a)(xliii), and to regulate pawnbrokers under Wyo. Stat. Section 40-14-359(b).

B. Every pawnbroker must, upon request, during ordinary business hours, submit and exhibit records required by this chapter for the inspection of the chief of police and/or his or her designee in conjunction with any investigation of pawnbroker transactions. The pawnbroker must also, upon request, exhibit for the inspection of any of such officers any goods, personal property, bonds, notes or other securities that may be received. (2001 In-house code § 31-1)

5.56.020 Definitions.

The following words and phrases shall apply in the interpretation and enforcement of this chapter:

"Month" means the period of time from one date in a calendar month to the corresponding date in the following calendar month; if computations are made for a fraction of a month, a day will be one-thirtieth of one month.

"Pawn finance charge" means the sum of all charges, payable directly or indirectly by the customer and imposed directly or indirectly by the pawnbroker as an incident to the pawn transaction.

"Pawn transaction" means the act of lending money on the security of pledged goods or the act of purchasing tangible personal property on condition that it may be redeemed or repurchased by the seller for a fixed period of time.

"Pawnbroker" means a person engaged in the business of making pawn transactions.

"Pawnshop detail" means any officer of the city police department who is assigned to work in connection with pawnshops.

"Pledged goods" means tangible personal property other than choses in action, securities or printed evidences of indebtedness, which property is deposited with or otherwise actually delivered into the possession of a pawnbroker in the course of his or her business in connection with a pawn transaction.

"Redemption period" means the period of time from transaction date to maturity date of a pawn transaction. (2001 In-house code § 31-2)

5.56.030 License required.

A. Any person desiring to conduct business as a pawnbroker within the city must first submit written application, together with a nonrefundable annual license fee of one hundred fifty-five dollars ($155.00) per location, on forms provided by the city clerk. A license must be obtained prior to conducting of business. In addition, unless a person has first obtained a license from the administrator of the Wyoming Uniform Consumer Credit Code, authorizing him or her to engage in the business of making supervised loans pursuant to Wyoming Statute provisions, he or she must not engage in business as a pawnbroker.

B. Any person holding a city pawnbroker business license will not be required to obtain a city secondhand dealer license for the same business.

C. Any applicant for a pawnbroker license must execute to the city a bond in the sum of one thousand dollars ($1,000.00), conditioned that in the conduct of such business the licensee will respect and obey the provisions of this code and other city ordinances applicable thereto and will pay all damages that may accrue to any person by reason of any fraud of misconduct in managing such business.

D. Licenses issued, including renewal licenses, will be in accordance with the provisions of Chapter 5.04. (Ord. No. 3844, § 1, 6-8-09; 2001 In-house code § 31-3)

5.56.040 Record of property received required—Content—Preservation of records and notification.

A. Each pawnbroker will keep at his place of business an accurate detailed record of all personal property, bonds, notes and other securities received or purchased, and mentioning particularly any descriptive or identifying marks that may be on such property, bonds, notes or other securities. Records must also contain the following information: name of individual, residence address, identification provided, date of birth, sex, height, weight, color of hair and eyes, name of pawnbroker, address, loan number, date and dollar amount of transaction, description of article, including brand name, model and serial numbers if applicable. Individuals will be required to sign each record indicating ownership of any property, bonds, notes or other securities involved with the loan. The form of record books or method of keeping the required records must be approved by the chief of police prior to any implementation or changes.

B. All books and records will be kept in accordance with accepted accounting practices and such records must be preserved or made available for a period of four years from the date of transaction, or two years from final entry made thereon, whichever is later.

C. Before noon of each working day each pawnbroker will deliver to the pawnshop detail the original record required in subsection A of this section, which will include all of the business done on the preceding day and from the time of the last report to the day such report is made. The copy of such report will be kept by the pawnbroker for his permanent records. (2001 In-house code § 31-4)

5.56.050 Records—Original and copy to correspond—Accurate entries.

The copy of each record required by Section 5.56.040 shall correspond with the original in every detail. If the same are found not to correspond, the article(s) referred to or described in such conflicting entry shall thereupon be surrendered by the pawnbroker and confiscated for the city by the pawnshop detail.

If, in any case, there is found to be an error or inaccuracy in any part of the description required in Section 5.56.040, the article(s) referred to in such incorrect entry shall be immediately surrendered by the pawnbroker and confiscated for the city by the pawnshop detail. (2001 In-house code § 31-5)

5.56.060 Records—Property purchased outright.

All property, notes, bonds or securities which are bought outright shall be so shown on the

record sheets with all other information required by this chapter. (2001 In-house code § 31-6)

5.56.070 Duty of pawnshop detail to inspect articles—Articles to be kept separate for same.

A. It is the duty of the pawnshop detail, at the time of collecting records, to closely inspect every article received by each pawnbroker, comparing the same with the description thereof on the records and adding to the original record any additional marks of identification that he or she may be able to detect.

B. It is the duty of the pawnbroker to keep apart from all other things in his or her shop and deliver to the pawnshop detail for inspection as above required all personal property, bonds, notes and other securities received since the last previous report and inspection. After such inspection all articles purchased or taken in pawn shall be held in accordance with Sections 5.56.090 through 5.56.110. (2001 In-house code § 31-7)

5.56.080 Stolen or illegally obtained goods.

Any pawnbroker who has accepted, obtained or bought any property, bonds, notes or other securities or goods, either new or secondhand, from any person, not knowing the same to have been stolen or illegally obtained, shall deliver the same into the hands of the lawful owner when such owner shall have made a reasonably accurate and certain identification by means of number or description in the presence of an investigating officer. (2001 In-house code § 31-8)

5.56.090 Purchases to be held fifteen days.

Any licensed pawnbroker who purchases any new or secondhand goods of any individual not engaged in trade shall keep them for inspection for fifteen (15) days before they are sold. (2001 In-house code § 31-9)

5.56.100 Retention of pawned articles.

A. Every article of any kind or description, except vehicles with clear titles, must be held by the pawnbroker for a period of sixty (60) days, during which time the same shall not be shown, either for sale or for inspection, to any person other than a police officer.

B. Vehicles with clear titles must be held for a period of time equal to the time required for maturity of the pawn transaction as prescribed by Wyoming Statutes. (2001 In-house code § 31-10)

5.56.110 Rates regulated.

A. No pawnbroker may contract for, charge or receive an amount as a charge in connection with a pawn transaction other than a pawn finance charge, and except as otherwise provided in subsections B and C of this section, no pawn finance charge shall exceed an amount equal to:

1. Twenty (20) percent per month on that part of the unpaid balance of principal which is two hundred dollars ($200.00) or less;

2. Ten (10) percent per month on that part of the unpaid balances of principal which is more than two hundred dollars ($200.00) but does not exceed four hundred dollars ($400.00);

3. Five percent per month on that part of the unpaid balances of principal which is more than four hundred dollars ($400.00) but does not exceed one thousand dollars ($1,000.00); and

4. One and one-half percent per month on that part of the unpaid balances of principal which exceeds one thousand dollars ($1,000.00).

B. A pawnbroker may contract for and receive a minimum pawn finance charge of not more than five dollars ($5.00) where the amount financed does not exceed seventy-five dollars ($75.00), or not more than seven dollars and fifty cents ($7.50) on amounts financed which exceed seventy-five dollars ($75.00). Minimum charges authorized by this subsection are in lieu of earned pawn finance charges.

C. Except in the case where a minimum charge is contracted for, pursuant to subsection B of this section, not more than one-half of the pawn finance charge for the two-month maturity period may be considered to be earned at the time the transaction is entered into and is not subject to

refund in the event of prepayment. Following expiration of the first month from transaction date, and upon entering of the second month of the transaction, the second month's charge accrues and may be considered to be earned at that time. (2001 In-house code § 31-11)

5.56.120 Transactions with minors prohibited.

No pawnbroker shall transact any such business with any minor. (2001 In-house code § 31-12)

5.56.130 Disclosure—Advertising.

A. Information to be disclosed shall be made pursuant to applicable provisions of Federal Reserve Regulation Z of the Truth in Lending Act and the Wyoming Uniform Consumer Credit Code.

B. A pawnbroker shall not engage in false or misleading advertising concerning the terms or conditions of credit with respect to a pawn transaction. Advertising which complies with the Federal Consumer Credit Protection Act does not violate this subsection. (2001 In-house code § 31-13)

5.56.140 Limitation on agreements and practices.

A. Even though a pawn transaction subject to this chapter creates a debtor-creditor relationship, no pawnbroker shall make any agreement requiring personal liability to a customer in connection with a pawn transaction and no customer has an obligation to redeem pledged goods or make any payment on a pawn transaction. The only recourse of a pawnbroker where the customer has pledged goods is to the pledged goods themselves.

B. A pawnbroker shall not permit a customer to enter into a pawn transaction in which the redemption period is more or less than two months from transaction date. (2001 In-house code § 31-14)

5.56.150 Prohibited practices.

No pawnbroker shall:

A. Divide or separate a pawn transaction into two or more transactions for the purpose or with the effect of obtaining a total pawn finance charge exceeding that authorized by this chapter;

B. Accept a pledge from any person under the age of eighteen (18) years;

C. Accept any waiver, in writing or otherwise, of any right or protection accorded a customer under this chapter;

D. Fail to exercise reasonable care to protect pledged goods from loss or damage;

E. Fail to return pledged goods to a customer upon payment of the full amount due the pawnbroker on the pawn transaction; or

F. Make any charge for insurance in connection with a pawn transaction. (2001 In-house code § 31-15)

Chapter 5.60

SECONDHAND DEALERS

Sections:

5.60.010	Intent—Authority—General provisions.
5.60.020	Secondhand dealer defined.
5.60.030	License required—Application.
5.60.040	Records and transactions—Restrictions.
5.60.050	Exceptions.

5.60.010 Intent—Authority—General provisions.

A. The purpose of this chapter is to establish regulations and procedures for the licensing of secondhand dealers that provide services and related activities within the city.

B. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xliii) the conduct of businesses known as secondhand dealers will be governed by this chapter. (2001 In-house code § 38-1)

5.60.020 Secondhand dealer defined.

"Secondhand dealer" means and includes each person who buys, sells, exchanges or deals in personal property that has been previously used, broken or disfigured. (2001 In-house code § 38-2)

5.60.030 License required—Application.

No person may conduct business as a secondhand dealer in the city without first obtaining a license, except holders of a pawnbroker's license. Licenses will be issued according to the provisions of Chapter 5.04 of this title. The nonrefundable annual license fee will be eighty dollars ($80.00) per location. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006: 2001 In-house code § 38-3)

5.60.040 Records and transactions—Restrictions.

A. Licensees must keep at their place of business an accurate, detailed record of every article purchased which has a serial number. Such a record must include the date of purchase, name of seller, amount paid and a description of the article. The records must be clean and legible and a copy must be maintained at the place of business for inspection.

B. Licensees must, upon request, during ordinary business hours, submit and display the records required to be maintained to the inspection of the chief of police or any police officer of the city, and permit any officer to make copies. Licensees also, upon request, must exhibit for the inspection of officers, any personal property or merchandise that may be received.

C. Any licensee who has accepted, obtained or purchased any new or secondhand personal property or merchandise from any person, not knowing that it has been stolen or illegally obtained, must deliver the property into the hands of the lawful owner when the owner has made a reasonably accurate and certain identification by means of number or description in the presence of the investigating officer.

D. Licensees who purchase personal property or any individual not engaged in trade must keep the same for a minimum of three days before it is sold or exchanged. All coins or jewelry purchased by a licensee must be kept a minimum of seven days before it is sold or exchanged.

E. No licensee will buy or exchange property with a person who is not the age of majority. (2001 In-house code § 38-4)

5.60.050 Exceptions.

Provisions of this chapter do not apply to the following:

A. Merchants who deal in new furniture, dishes or other regular household furnishings and accept such articles sold contemporaneously, which are of similar character to the goods so exchanged;

B. Merchants whose business volume is composed of more than fifty (50) percent of the buying, selling, exchanging or dealing in coins or precious metals;

C. Persons who are already licensed by the city as a pawnbroker;

D. Individuals or organizations who conduct three or less garage or rummage sales a year. (2001 In-house code § 38-5)

Chapter 5.64
SEXUALLY ORIENTED BUSINESSES

Sections:

5.64.010 Purpose—Authority—General provisions.
5.64.020 Definitions.
5.64.030 Classification.
5.64.040 License required.
5.64.050 Issuance of license.
5.64.060 Inspection.
5.64.070 Fees.
5.64.080 Transfer of license.
5.64.090 Location—Conduct of operations—Restrictions.
5.64.100 Zoning amendments.
5.64.110 Additional regulations for escort agencies.
5.64.120 Additional regulations for nude model studios.
5.64.130 Additional regulations for adult theaters and adult motion picture theaters.
5.64.140 Additional regulations for adult motels.
5.64.150 Regulations pertaining to exhibition of sexually explicit films or videos.
5.64.160 Display or distribution of sexually explicit material to minors.
5.64.170 First amendment rights.
5.64.180 Suspension.
5.64.190 Revocation.
5.64.200 Appeal.
5.64.210 Violations—Penalties.

5.64.010 Purpose—Authority—General provisions.

A. The purpose of this chapter of licensing and regulating sexually oriented businesses is to promote the health, safety, morals and general welfare of the citizens of the city, and to establish reasonable and uniform regulations to prevent the concentration of sexually oriented businesses within the city.

B. The provisions of this chapter are pursuant to authority granted cities and towns under the Wyoming Constitution and Wyo. Stat. Section 15-1-101, et seq. All references to state or local law within this chapter shall be interpreted to mean such law as amended if amended after the date of adoption of this chapter (initial chapter effective January 1, 1990). (2001 In-house code § 9-1)

5.64.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Adult arcade" means any place which the public is permitted or invited, where coin-operated or slug-operated, or electronically, electrically, or mechanically controlled still or motion picture machines, projectors, or other image-producing devices are maintained to show images to five or fewer persons per machine at any one time, and where the images so displayed are distinguished or characterized by the depicting or describing of specific sexual activities or specified anatomical areas.

"Adult bookstore" or "adult video store" means a commercial establishment which, as one of its principal business purposes, offers for sale or rental for any form of consideration one or more of the following:

1. Books, magazines, periodicals or other printed matter; or photographs, films, motion pictures, video cassettes or video reproductions, slides, or other visual representations depicting or describing specified sexual activities or specified anatomical areas;

2. A commercial establishment offering for sale or rent books consisting primarily of text shall not be sufficient to classify as an adult bookstore unless the cover or other nontextual pages describe specified sexual activities or specified anatomical areas. The sale or rental of video reproductions which have been rated G, PG, PG-13 or R by the Motion Picture Association of America shall not be sufficient to classify as an adult video store.

"Adult cabaret" means a nightclub, bar, restaurant or similar commercial establishment featuring per-

sons appearing in a state of nudity; live performances characterized by the exposure of specified anatomical areas or specified sexual activities, or films, motion pictures, video cassettes, slides or other photographic reproductions characterized by depicting or describing specified sexual activities or specified anatomical areas.

"Adult motel" means a hotel, motel or similar commercial establishment offering accommodations to the public for any form of consideration; providing patrons with closed-circuit television transmissions, films, motion pictures, video cassettes, slides or other photographic reproductions characterized by depicting or describing specified sexual activities or specified anatomical areas; advertising through signage visible from the public right-of-way the availability of this adult type of photographic reproduction; offering a sleeping room for rent for a period of time less than ten (10) hours, or allowing a tenant or occupant of a sleeping room to sub-rent a room for a period of time less than ten (10) hours.

"Adult motion picture theater" means a commercial establishment where, for any form of consideration, films, motion pictures, video cassettes, slides or similar photographic reproductions (except those rated G, PG, PG-13 or R) are regularly shown which are characterized by depicting or describing specified sexual activities or specified anatomical areas.

"Adult theater" means a theater, concert hall, auditorium or similar commercial establishment which regularly features persons appearing in a state of nudity or live performances characterized by exposing specified anatomical areas or by specified sexual activities.

"Approved zones" means zoning districts designated as CB and CBD in the Cheyenne and Laramie County Zoning Ordinance, 1988, as amended.

"Escort" means a person who, for consideration, agrees or offers to act as a companion, guide or date for another person, or who agrees or offers to privately model lingerie, or privately perform a striptease for another person.

"Escort agency" means a person or business association furnishing, offering to furnish, or advertising to furnish escorts as one of its primary business purposes for a fee, tip, or other consideration.

"Establishment" means and includes the opening or commencement of any sexually oriented business as a new business; conversion of an existing business whether or not a sexually oriented business to a sexually oriented business; addition of any sexually oriented business to any other existing sexually oriented business, or relocation of any sexually oriented business.

"Licensee" means a person in whose name a license to operate a sexually oriented business has been issued, as well as the individual listed as an applicant on the application form for a license.

"Masturbation" means stimulation or excitation of one's genital organs by a male or female, whether or not to orgasm by manual contact or any other means other than sexual intercourse.

"Nude model studio" means any place where a person appearing in a state of nudity or displaying specified anatomical areas is provided to be observed, sketched, drawn, painted, sculptured, photographed or similarly depicted by other persons who pay money or any form of consideration.

"Nudity" or "a state of nudity" means the appearance of a human bare buttock, anus, male genitals, female genitals or female breast; or a state of dress failing to opaquely cover a human buttock, anus, male genitals, female genitals or areola of the female breast.

"Seminude" means a state of dress in which clothing covers no more than the genitals, pubic region and areola of the female breast, as well as portions of the body covered by supporting straps or devices.

"Sexual encounter center" means a business or commercial enterprise which, as one of its primary business purposes, offers for any form of consideration physical contact in the form of wrestling or tumbling between persons of the opposite sex; or activities between male and female persons and/or persons of the same sex when one or more of the persons is in a state of nudity or seminude.

"Sexually oriented business" means an adult arcade, adult bookstore or adult video store, adult cabaret, adult motel, adult motion picture theater, adult

theater, escort agency, nude model studio, or sexual encounter center.

"Specified anatomical areas" means a human bare buttock, anus, male genitals, female genitals, or the areola of the female breast.

"Specified sexual activities" means and includes the fondling or other erotic touching of human genitals, pubic region, buttocks, anus or female breasts; sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation or sodomy; masturbation, actual or simulated, or excretory functions as part of or in connection with any of the activities set forth in this definition.

"Substantial enlargement of a sexually oriented business" means the increase in floor area occupied by the business by more than twenty-five (25) percent in the floor area designated on the initial application for license.

"Transfer of ownership or control of a sexually oriented business" means and includes the sale, lease or sublease of the business; transfer of securities which constitutes a controlling interest in the business, whether by sale, exchange or similar means; or establishment of a trust, gift or other similar legal device which transfers the ownership or control of the business, except for transfer by bequest or other operation of law upon the death of the person possessing the ownership or control. (2001 In-house code § 9-2)

5.64.030 Classification.

Sexually oriented businesses are classified as follows:

A. Adult arcades;

B. Adult bookstores or adult video stores;

C. Adult cabarets;

D. Adult motels;

E. Adult motion picture theaters;

F. Adult theaters;

G. Escort agencies;

H. Nude model studios; and

I. Sexual encounter centers. (2001 In-house code § 9-3)

5.64.040 License required.

A. A person cannot conduct a sexually oriented business without first obtaining a valid business license issued by the city clerk for the particular type (classification) of business.

B. Persons desiring a sexually oriented business license must submit to the city clerk written application, including supporting documentation and appropriate fees, on forms provided by the city clerk. The application must be accompanied by a sketch or diagram showing the configuration of the business premises, including a statement of total floor space occupied by the business. The sketch or diagram need not be professionally prepared, but must be drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six inches.

Applicants who must comply with Section 5.64.140 concerning regulations pertaining to exhibition of sexually explicit films or videos must submit a diagram meeting requirements outlined in that section.

C. A copy of the application will be referred to the Cheyenne police department for investigation of the applicant's character and qualifications. Application information will also be referred to the city/county health department, Cheyenne fire department and chief building official for inspections and approvals of the proposed premises for compliance.

D. A person who wishes to operate a sexually oriented business as an individual must sign the application for a license as applicant. A person who wishes to operate a sexually oriented business other than as an individual must have each individual who has an interest in the business sign the application for a license as applicant.

Each applicant must meet the qualifications of Section 5.64.050, and each applicant will be considered a licensee if a license is granted. (2001 In-house code § 9-4)

5.64.050 Issuance of license.

A. The governing body shall approve the issuance of a license unless it finds one or more of the following to be true:

1. An applicant is under nineteen (19) years of age.

2. An applicant is overdue in payment to the city of taxes, fees, fines or penalties assessed or imposed in relation to a sexually oriented business.

3. An applicant has failed to provide information reasonably necessary for issuance of the license or has falsely answered a question or request for information on the application form.

4. An applicant has been convicted of a violation of a provision of this chapter, other than the offense of operating a sexually oriented business without a license, within two years immediately preceding the application. The fact that a conviction is being appealed has no effect.

5. The premises to be used for the sexually oriented business has not been approved by the city/county health department, Cheyenne fire department and chief building official as being in compliance with applicable laws and ordinances.

6. The business license fee has not been paid.

7. An applicant has been employed in a sexually oriented business in a managerial capacity within the preceding twelve (12) months and has demonstrated that he or she is unable to operate or manage a sexually oriented business in a peaceful and law-abiding manner.

8. An applicant, the proposed establishment or the existing or proposed sexually oriented business does not comply with local, state or federal law.

9. The sexually oriented business has not been certified as complying with the Cheyenne and Laramie County Zoning Ordinance, 1988, as amended.

10. An applicant has been convicted of a crime involving:

a. Any of the following offenses as described in Title 6 of Wyoming Statutes:

i. Prostitution,

ii. Patronizing a prostitute,

iii. Promoting prostitution,

iv. Public indecency,

v. Promoting obscenity,

vi. Bigamy,

vii. Incest,

viii. Sexual assault; or

b. Any of the following offenses as described in Title 14 of Wyoming Statutes:

i. Soliciting to engage in illicit sexual relations,

ii. Immoral or indecent acts with minors;

c. Criminal attempt, conspiracy or solicitation to commit any of the foregoing offenses; or

d. Any of the following city ordinances:

i. Houses of ill fame, disorderly houses, etc.; keeping, maintaining, visiting, etc.;

ii. Solicitation for lewd or immoral practices;

iii. Pandering;

iv. Indecent exposure;

v. Immoral acts.

B. If an applicant has been convicted of a crime described in subsection (A)(10)(a) through (d) of this section, the following provisions apply:

1. The applicant may not receive a license if less than two years have elapsed since the date of conviction or the date of release from confinement imposed for the conviction, whichever is the later date, if the conviction is of a misdemeanor offense;

2. The applicant may not receive a license if less than five years have elapsed since the date of conviction or the date of release from confinement for the conviction, whichever is the later date, if the conviction is of a felony offense; or

3. The applicant may not receive a license if less than five years have elapsed since the date of the last conviction or the date of release from confinement for the last conviction, whichever is the later date, if the convictions are of two or more misdemeanor offenses occurring within any twenty-four (24) month period.

C. The fact that a conviction is being appealed shall have no effect on the disqualification of the applicant.

D. An applicant who has been convicted of an offense listed in subsection (A)(10)(a) through (d) of this section may qualify for a sexually oriented business license only when the time period required by

subsection (B)(1) through (3) of this section has elapsed.

E. The license, if granted, shall state on its face the name of the person or persons to whom it is granted, the expiration date, and the address of the sexually oriented business. The license shall be posted in a conspicuous place at or near the entrance to the sexually oriented business so that it may be easily read at any time. (2001 In-house code § 9-5)

5.64.060 Inspection.

A. An applicant or licensee shall permit representatives of the Cheyenne police department, city/county health department, Cheyenne fire department, and chief building official to inspect the premises of a sexually oriented business to ensure compliance with the law at any time it is occupied or open for business.

B. Failure to permit a lawful inspection of the premises by a representative of the police department at any time it is occupied or open for business is a misdemeanor.

C. The provisions of this section do not apply to areas of an adult motel which are currently being rented by a customer for use as a permanent or temporary habitation. (2001 In-house code § 9-6)

5.64.070 Fees.

A. The nonrefundable fee for a sexually oriented business license is five hundred dollars ($500.00) per year or any part thereof. Each license shall expire one year from the date of issuance and may be renewed only by making application as provided in Section 5.64.040. Application for renewal should be made at least thirty (30) days before the expiration date.

B. If the governing body denies renewal of a license, no license may be issued for one year from the date of denial. If, subsequent to denial, the governing body finds that the basis for denial of the license has been corrected or abated, the applicant may be granted a license if at least ninety (90) days have elapsed since the date denial became final. (2001 In-house code § 9-7)

5.64.080 Transfer of license.

A licensee shall not transfer the license to another nor shall a licensee operate a sexually oriented business under the authority of a license at any place other than the address designated in the application. (2001 In-house code § 9-8)

5.64.090 Location—Conduct of operations—Restrictions.

A. It is unlawful to cause or permit the operation, establishment, substantial enlargement or transfer of ownership or control of a sexually oriented business in any zoning district other than in approved zones.

B. It is unlawful to operate or cause to be operated a sexually oriented business within one thousand (1,000) feet of a church, a public or private elementary or secondary school, a public park or recreation facility, a state-licensed day care center, or any residential zone. Measurement shall be made in a straight line, without regard to intervening structures or streets, from the nearest portion of the building or structure used as a part of the premises where a sexually oriented business is conducted to the nearest property line of the premises of a church or public or private elementary or secondary school, or to the nearest boundary of an affected public park or recreation facility or state-licensed day care center.

C. It is unlawful to cause or permit the operation, establishment, substantial enlargement, or transfer of ownership or control of a sexually oriented business within one thousand (1,000) feet of another sexually oriented business. The distance between any two sexually oriented businesses shall be measured in a straight line, without regard to intervening structures or objects, from the closest exterior wall of the structure in which each business is located.

D. It is unlawful to cause or permit the operation, establishment or maintenance of more than one sexually oriented business in the same building, structure or portion thereof, or the increase of floor area of any sexually oriented business in any building, structure or portion thereof containing another sexually oriented business.

E. A sexually oriented business lawfully operating on the effective date of this chapter in violation

of subsection A, B, C or D of this section shall be deemed a nonconforming use. The use will be permitted to continue for a period not to exceed three years, unless sooner terminated for any reason or voluntarily discontinued for a period of thirty (30) days or more. Such uses shall not be increased, enlarged, extended or altered except that the use may be changed to a conforming use. If two or more sexually oriented businesses are within one thousand (1,000) feet of one another and otherwise in a permissible location, the sexually oriented business which was first established and continually operating at a particular location is the conforming use and the later-established business(es) is nonconforming.

F. A sexually oriented business lawfully operating as a conforming use is not rendered a nonconforming use by the location, subsequent to the grant or renewal of the sexually oriented business license, of a church, public or private elementary or secondary school, public park or recreation facility or state-licensed day care center within one thousand (1,000) feet of the sexually oriented business. This provision applies only to the renewal of a valid license and does not apply when an application for a new license is submitted after a license has expired or has been revoked. (2001 In-house code § 9-9)

5.64.100 Zoning amendments.

The planning office shall prepare any and all amendments to the Cheyenne and Laramie County Zoning Ordinance, 1988 necessary to ensure that the ordinance conforms to the purpose and intent of this chapter, and shall incorporate specifically the requirements of Section 5.64.090 of this chapter into such amendments and shall provide a mechanism whereby verification of zoning compliance shall be certified to the governing body. (2001 In-house code § 9-10)

5.64.110 Additional regulations for escort agencies.

A. An escort agency shall not employ any person under the age of nineteen (19) years.

B. It is unlawful to act as an escort or agree to act as an escort for any person under the age of nineteen (19) years. (2001 In-house code § 9-11)

5.64.120 Additional regulations for nude model studios.

A. A nude model studio shall not employ any person under the age of nineteen (19) years.

B. It is unlawful for any person under the age of nineteen (19) to appear in a state of nudity in or on the premises of a nude model studio. It is a defense to prosecution under this subsection if the person under nineteen (19) years was in a restroom not open to public view or persons of the opposite sex.

C. It is unlawful to appear in a state of nudity or knowingly allow another to appear in a state of nudity in an area of a nude model studio premises which can be viewed from the public right-of-way.

D. A nude model studio shall not place or permit a bed, sofa or mattress in any room on the premises, except that a sofa may be placed in a reception room open to the public. (2001 In-house code § 9-12)

5.64.130 Additional regulations for adult theaters and adult motion picture theaters.

A. It is unlawful to knowingly allow a person under the age of nineteen (19) years to appear in a state of nudity in or on the premises of an adult theater or adult motion picture theater.

B. A person under the age of nineteen (19) years commits an offense if that person knowingly appears in a state of nudity in or on the premises of an adult theater or adult motion picture theater.

C. It is a defense to prosecution under subsections A and B of this section if the person under nineteen (19) years was in a restroom not open to public view or persons of the opposite sex. (2001 In-house code § 9-13)

5.64.140 Additional regulations for adult motels.

A. Evidence that a sleeping room in a hotel, motel or similar commercial establishment has been rented and vacated two or more times in a period of

time less than ten (10) hours creates a rebuttal presumption that the establishment is an "adult motel," as that term is defined in this chapter.

B. It is unlawful for a person in control of a sleeping room in a hotel, motel or similar commercial establishment that does not have a sexually oriented business license to rent or sub-rent a sleeping room to a person and, within ten (10) hours from the time the room is rented, the renter rents or sub-rents the same sleeping room again.

C. For purposes of subsection B of this section, the term "rent" or "sub-rent" means the act of permitting a room to be occupied for any form of consideration. (2001 In-house code § 9-14)

5.64.150 Regulations pertaining to exhibition of sexually explicit films or videos.

A person who operates or causes to be operated a sexually oriented business, other than an adult motel, which has a viewing room of less than one hundred fifty (150) square feet of floor space in which a film, video cassette or other video reproduction depicting specified sexual activities or specified anatomical areas are exhibited shall comply with the following requirements:

A. An application for a sexually oriented business license shall be accompanied by a diagram of the premises specifying the location of one or more manager's stations and the location of all overhead lighting fixtures and designating any portion of the premises in which patrons will not be permitted. A manager's station may not exceed thirty-two (32) square feet of floor area. The diagram shall also designate the place at which the license will be conspicuously posted. A professionally prepared diagram or engineer's or architect's blueprint is not required; however, each diagram should be oriented to the north or to some designated street or object and should be drawn to a designated scale or with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six (6) inches. The city clerk may waive the foregoing diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared.

B. The application shall be sworn to be true and correct by the applicant.

C. No alteration in the configuration or location of a manager's station may be made without the prior approval of the city clerk or his or her designee.

D. The owner and operator of the premises must ensure that at least one employee is on duty and situated in each manager's station at all times that any patron is present inside the premises.

E. The interior of the premises shall be configured so that there is an unobstructed view from a manager's station of every area of the premises to which a patron is permitted access for any purpose, excluding restrooms. Restrooms may not contain video reproduction equipment. If the premises has two or more manager's stations designated, then the interior of the premises shall be configured so that there is an unobstructed view of each area of the premises to which any patron is permitted access for any purpose from at least one of the manager's stations. The view required in this subsection must be direct line of sight from the manager's station.

F. The owner, operator and any agents and employees present in the premises must ensure that the view area specified in subsection E of this section remains unobstructed by any doors, walls, merchandise, display racks or other materials whenever any patron is present in the premises, and ensure that no patron is permitted access to any area not designated for patrons as described in subsection A of this section.

G. The premises shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place where patrons are permitted access at an illumination of not less than one footcandle, measured at the floor level.

H. The owner, operator and any agents and employees present in the premises must ensure that the illumination described above is maintained whenever a patron is present in the premises.

I. It is unlawful for a person having a duty under subsections A through H of this section to knowingly fail to fulfill that duty. (2001 In-house code § 9-15)

5.64.160 Display or distribution of sexually explicit material to minors.

A. In this section:

"Minor" means any unmarried person under the age of nineteen (19) years.

"Harmful to minors" means any description, exhibition, presentation or representation, in whatever form, of nudity, sexual conduct, sexual excitement, or sadomasochistic abuse when the material or performance, taken as a whole, has the following characteristics:

1. The average adult person applying contemporary community standards would find that the material or performance has a predominant tendency to appeal to a prurient interest in sex to minors; and

2. The average adult person applying contemporary community standards would find that the material or performance depicts or describes nudity, sexual conduct, sexual excitement or sadomasochistic abuse in a manner that is patently offensive to prevailing standards in the adult community with respect to what is suitable for minors; and

3. The material or performance lacks serious literary, scientific, educational, artistic or political value for minors.

"Nudity" means the showing of the human male or female genitals, pubic area or buttocks with less than a full opaque covering; the showing of the female breast with less than a full opaque covering of any portion thereof below the top of the nipple; or the depiction of covered male genitals in a discernibly turgid state.

"Sexual conduct" means acts of masturbation, homosexuality, sexual intercourse or physical contact with a person's clothed or unclothed genitals, pubic area, buttocks or, if such person be a female, breast.

"Sexual excitement" means the condition of human male or female genitals when in a state of sexual stimulation or arousal.

"Sadomasochistic abuse" means flagellation or torture by or upon a person clad in undergarments, a mask or bizarre costume, or the condition of being fettered, bound or otherwise physically restrained on the part of one so clothed.

"Material" means any book, magazine, newspaper, pamphlet, poster, print, picture, figure, image, description, motion picture film, record, recording tape or video tape.

"Performance" means any motion picture, film, video tape, played record, phonograph or tape, preview, trailer, play, show, skit, dance or other exhibition performed or presented to or before an audience of one or more, with or without consideration.

"Knowingly" means having general knowledge of, or reason to know, or a belief or ground for belief which warrants further inspection or inquiry of both:

1. The character and content of any material or performance which is reasonably susceptible of examination by the defendant; and

2. The age of the minor; however, an honest mistake shall constitute and excuse from liability hereunder if the defendant made a reasonable bona fide attempt to ascertain the true age of the minor.

"Reasonable bona fide attempt" means an attempt to ascertain the true age of the minor by requiring production of a driver's license, marriage license, birth certificate or other governmental or educational identification card or paper and not relying solely on the oral allegations or apparent age of the minor.

B. Offenses. No person having custody, control or supervision of any commercial establishment shall knowingly:

1. Display material which is harmful to minors in such a way that minors, as a part of the invited general public, will be exposed to view such material; provided, however, a person shall be deemed not to have displayed material harmful to minors if:

a. The assistance of an employee of the business establishment is required for the general public to handle and inspect the item, or

b. The item is kept behind devices commonly known as "blinder racks" so that the lower two-thirds of the item is not exposed to view, or

c. The cover or outside packaging on the item is not visible to members of the general public;

2. Sell or loan for monthly consideration to a minor:

a. Any picture, photograph, drawing, sculpture, motion picture film, videotape, or similar visual representation or image of a person or portion of the human body which depicts nudity, sexual conduct or sexual excitement and which is harmful to minors, or

b. Any book, pamphlet, magazine, printed matter however reproduced, or sound recording which contains any matter enumerated in subsection (B)(1) of this section, or which contains explicit and detailed verbal descriptions or narrative accounts of nudity, sexual excitement or sexual conduct and which, taken as a whole, is harmful to minors;

3. Exhibit for a monetary consideration to a minor or to sell to a minor an admission ticket or pass or admit a minor for monetary consideration to premises whereon there is exhibited a motion picture show or other presentation which, in whole or in part, depicts nudity, sexual conduct, sexual excitement and which is harmful to minors.

C. Defenses. It shall be an affirmative defense to any prosecution under this section that:

1. The material or performance involved was displayed, presented or disseminated to a minor at a recognized and established school, church, museum, medical clinic, hospital, public library, governmental agency, quasigovernmental agency and persons acting in their capacity as employees or agents or such persons or organizations, and which institution displays, presents or disseminates such materials or performance for a bona fide governmental, educational or scientific purpose;

2. The defendant had reasonable cause to believe that the minor involved was nineteen (19) years old or more; and such minor exhibited to the defendant a draft card, driver's license, birth certificate or other official or apparently official document purporting to establish that the minor was nineteen (19) years old or more;

3. The parent or lawful guardian of a minor accompanied the minor and authorized the exhibiting of the material as a part of the minor's education. (2001 In-house code § 9-16)

5.64.170 First amendment rights.

The provisions of this chapter have neither the purpose nor effect of imposing a limitation or restriction on the content of any communicative materials, including sexually oriented materials. Similarly, it is not the intent nor effect of this chapter to restrict or deny access by adults to sexually oriented materials protected by the First Amendment or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended market. (2001 In-house code § 9-17)

5.64.180 Suspension.

The city clerk shall suspend a license for a period not to exceed thirty (30) days if it is determined that a licensee or an employee of a licensee has:

A. Violated the provisions of this chapter;

B. Refused to allow an inspection of the sexually oriented business premises as authorized by this chapter;

C. Demonstrated inability to operate or manage a sexually oriented business in a peaceful and law-abiding manner. (2001 In-house code § 9-18)

5.64.190 Revocation.

A. The city clerk shall revoke a license if a cause of suspension in Section 5.64.180 occurs and the license has been suspended within the preceding twelve (12) months.

B. The city clerk shall revoke a license if it is determined that:

1. A licensee gave false or misleading information in the material submitted during the application process;

2. A licensee or an employee has knowingly allowed possession, use or sale of controlled substances on the premises;

3. A licensee or an employee has knowingly allowed prostitution on the premises;

4. A licensee or an employee has knowingly operated the sexually oriented business during a period of time when the licensee's license was suspended;

5. A licensee has been convicted of an offense listed in Section 5.64.050(A)(10) for which the time

period required in Section 5.64.050(B) has not elapsed;

6. On two or more occasions within a twelve (12) month period, a person or persons committed an offense occurring in or on the licensed premises of a crime listed in Section 5.64.050(A)(10), for which a conviction has been obtained, and the person or persons were employees of the sexually oriented business at the time the offenses were committed;

7. A licensee or an employee has knowingly allowed any act of masturbation as defined in this chapter or sexual intrusion, or sexual contact as those terms are defined by Wyoming Statutes without regard to whether the victim was a willing or unwilling participant in such act.

C. The fact that a conviction is being appealed will have no effect on the revocation of the license.

D. Subsection (B)(7) of this section does not apply to adult motels as a ground for revoking the license unless the licensee or employee knowingly allowed the act of sexual intrusion, copulation, masturbation, or sexual contact to occur in a public place or within public view.

E. If the city clerk revokes a license, the revocation shall continue for one year and the licensee shall not be issued a sexually oriented business license for one year from the date revocation became effective. If, subsequent to revocation, the city clerk finds that the basis for the revocation has been corrected or abated, the applicant may be granted a license if at least ninety (90) days have elapsed since the date the revocation became effective. If the license was revoked under subsection (B)(5) of this section, an applicant may not be granted another license until the appropriate number of years required under Section 5.64.050(B) has elapsed. (2001 In-house code § 9-19)

5.64.200 Appeal.

Prior to suspending or revoking a license, the city clerk shall send to the applicant, or licensee, by certified mail, return receipt requested, written notice of the action and the right to an appeal. The aggrieved party may appeal the decision of the city clerk to the governing body in accordance with appeal procedures as established for other business licenses. The filing of an appeal stays the action of the city clerk in suspending or revoking a license until the governing body issues a final decision. (2001 In-house code § 9-20)

5.64.210 Violations—Penalties.

A. It is unlawful and a misdemeanor for any person to violate any of the provisions of this chapter.

B. Unless otherwise provided herein, a person violating the provisions of this chapter or causing the provisions of this chapter to be violated shall be considered guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars ($750.00), incarceration for not more than six months, or both. Each day a violation continues will be considered a separate offense.

C. It shall be a defense to any prosecution under Section 5.64.040(A) for operating an adult book store or adult video store as defined in Section 5.64.020 without a valid license if the aggregate receipts derived from the sale or rental of items described in Section 5.64.020 constitute fifteen (15) percent or less of the gross receipts of the commercial establishment. (2001 In-house code § 9-21)

Chapter 5.68

BODY ART ESTABLISHMENTS AND OPERATIONS

Sections:

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5.68.135 **License, permit renewal procedures.**

5.68.140 **Rules and regulations.**

5.68.150 **Violations—Penalty.**

5.68.010 Purpose—Authority—General provisions.

A. The general purpose of this chapter is to regulate the application of human body art within the city and to provide for the health, safety, interest and general welfare of the citizens of the city. Included in this chapter is the city's authority to license and permit persons and individuals who engage in the business of a body art establishment and the application of human body art, authorize the Cheyenne-Laramie County board of health to promulgate rules and regulations, and procedures for the application of human body art.

B. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-103, the application of human body art is governed by this chapter.

C. The city clerk is authorized to require supporting documentation with applications for a license and permit issued under this chapter. Prior to issuance of any license, on-site inspections will be conducted on the proposed premises to be utilized for a body art establishment.

1. Inspecting officials of the city, including the health officer or his representative, are authorized to enter licensed, as well as unlicensed, body art establishments during regular business hours to make reasonable inspections to enforce compliance with the regulations and procedures set forth in this chapter. (Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1, 2001: 2001 In-house code § 40 ½-1)

5.68.020 Definitions.

The following definitions will apply in the interpretation and enforcement of this chapter:

"Applicant" means a "person" as defined in this section.

"Body art" means the practice of physical body adornment utilizing, but not limited to, the following techniques: body piercing, tattooing, cosmetic tattooing, branding and scarification. This definition does not include practices that are defined as medical procedures by the Wyoming board of medicine, such as implants under the skin, which cannot be performed in a body art establishment. This definition does not include piercing of the outer perimeter or lobe of the ear using pre-sterilized single use stud and clasp ear piercing systems.

"Body art establishment" means any place or premises, whether public or private, temporary or

permanent in nature or location, where the practice of body art, whether or not for profit, is performed.

"Body art special event" means a convention, trade show, educational show, product demonstration or similar activity involving body art and/or body art establishment activities, whether or not for profit or for private/public attendance, in which the time frame of the special event does not exceed seven consecutive days, or a portion thereof.

"Body artist" means an individual who performs or practices body art or body piercing on another individual.

"Body piercing" means puncturing or penetrating the skin of a patron using sterilized single use needles and the insertion of sterilized jewelry or other adornment in the opening. Puncturing the outer perimeter or lobe of the ear using a sterilized single use stud and clasp ear piercing system is not included in this definition.

"Contaminated waste" means any liquid or semi-liquid blood or other potentially infectious materials; contaminated items that would release blood or other potentially infectious materials in a liquid or semi-liquid state if compressed; items that are caked with dried blood or other potentially infectious materials and are capable of releasing these materials during handling; sharps and any wastes containing blood and other potentially infectious materials, as defined in 29 C.F.R. Part 1910.1030 (latest edition), known as "occupational exposure to bloodborne pathogens."

"Guest body artist" means a body artist who obtains a guest body artist permit issued by the city-county health officer to provide temporary body artist services in conjunction with and pursuant to a licensed body art special event, a licensed body art establishment or a temporary body art establishment. The effective date(s) of any permit issued by the health officer shall coincide with the body art special event business license time frame and will be valid for not more than seven consecutive days, or portion thereof. The health officer shall not issue more than four permits for the same applicant per calendar year.

"Health officer" means the health officer of the city of Cheyenne-Laramie County health department or his or her representative.

"Licensee" means any person owning or operating a body art establishment pursuant to a valid business license issued by the city clerk.

"Licensing authority" means the governing body of the city of Cheyenne through its agent, the city clerk.

"Patron" means any individual receiving body artist services under such circumstances that it is reasonably expected that the individual will pay money or give any other consideration for body artist services.

"Permittee" means a body artist performing body art or body piercing on another individual for or on behalf of a licensee and pursuant to a valid body artist permit issued by the city clerk.

"Person" means an individual, corporation, firm, partnership, limited liability company, or other business entity, or the executor, administrator, trustee, receiver, assignee or personal representative thereof.

"Sterilizer" means an autoclave that is designed and labeled by the manufacturer as a medical instrument sterilizer and is used for the destruction of microorganisms and their spores.

"Tattoo, tattooed, tattooing" means any method of placing designs, letters, scrolls, figures, symbols, or any other marks upon or under the skin with ink or any other substance, resulting in the coloration of the skin by the aid of needles or any other instrument designed to touch or puncture the skin. This definition shall not apply to medical doctor or doctors of veterinary medicine in performance of their professional duties.

"Temporary body art establishment" means any place or premises operating at a fixed or mobile location, where a licensee and permittee provides body art procedures for no more than fourteen (14) days consecutively in conjunction with a single event or activity. (Ord. No. 4349, § 1, 5-22-21; Ord. No. 3983, § 1, 7-8-13; Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-2)

5.68.030 License required—Body art establishment.

A. It is unlawful for any person to operate a body art establishment for profit or for any form of consideration within the city without first obtaining a business license from the city clerk. Licenses will be issued under the provisions of this chapter and Chapters 5.04 and 5.08 of the city code. Upon issuance, licenses must be posted and displayed in a conspicuous place at the licensed premises. Each application must be submitted on forms provided by the city clerk and contain the following information:

1. If filing as an individual, applicant's full name, residential street address, mailing address, telephone number and date of birth.

2. If applicant is filing as a corporation, firm, partnership, limited liability company, or other form of business entity, the names, residence addresses and dates of birth of each officer must be provided.

3. Street address, mailing address and telephone number where business will be conducted.

4. Disclosure concerning whether the applicant has ever had:

a. A business license or permit denied, revoked or suspended, and reason for the action.

b. Any conviction by the applicant, or any officer, stockholder, shareholder or partner if the applicant is a corporation, firm, partnership, limited liability company, or other business entity, for a crime other than a misdemeanor traffic offense.

5. Names and residence addresses of each body artist who will be employed or who will be providing body artist services through the proposed body art establishment.

6. Description of any other business to be operated on the same or adjacent/adjoining premises to the body art establishment.

7. Written blood borne pathogen exposure control plan pursuant to Section 5.68.035 of this chapter.

8. Authorization for the city, its agents and employees to seek any additional information relative to the application, and to conduct an investigation into the truth of the statements set forth in the application and qualifications of the applicant.

B. A body art establishment business license cannot be transferred in location.

C. Licensees must comply with health officer and city code requirements, and must notify the city clerk within ten (10) days of any change in information submitted on an initial or renewal business license application.

D. All licensees shall also be licensed through the city/county health department.

E. The city clerk, police chief and health officer are authorized to request any supporting documentation affiliated with applications filed for a license to assist with the review and recommendation process. (Ord. No. 4349, § 1, 3-22-21; Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-3)

Editor's note—Ord. No. 4349, § 1, adopted March 22, 2021 amended § 5.68.030 and in doing so changed the title of said section from "License and permit required" to "License required—Body art establishment," as set out herein.

5.68.031 Permit required—Body art.

A. It is unlawful for any individual to practice body art on a patron for profit or for any form of consideration within the city without first obtaining a body artist permit from the city clerk. Permits will be issued under the provisions of this chapter and Chapters 5.04 and 5.08 of the city code. Upon issuance, permits must be posted and displayed in a conspicuous place at the licensed body art business establishment premises. Each application must be submitted on forms provided by the city clerk and contain the following information:

1. Applicant's full and true name (and any other name(s) used by the applicant), residential street address, mailing address, telephone number and date of birth.

2. Name and business address of licensed body art establishment where applicant intends to provide body artist services.

3. Written proof of blood borne pathogen training dated not more than one year from the date the application is submitted.

4. Affirmation that the applicant is currently free of any communicable disease.

5. Disclosure concerning whether the applicant has ever had:

a. A business license or permit denied, revoked or suspended, and reason for the action.

b. Any conviction for a crime other than a misdemeanor traffic offense.

6. Authorization for the city, its agents and employees to seek any additional information relative to the application, and to conduct an investigation into the truth of the statements set forth in the application and qualifications of the applicant.

B. A body artist permit cannot be transferred in ownership.

1. Any permittee desiring to change their affiliation from one licensed body art establishment to another must submit written notification to the city clerk within ten (10) days of the change, on forms provided by the city clerk, with payment of a ten dollar ($10.00) fee. A new permit will be issued to be effective for the balance of the existing permit term.

C. Permittees must comply with health officer and city code requirements, and must notify the city clerk within ten (10) days of any change in information submitted on an initial or renewal permit application.

D. All permittees shall also be permitted through the city/county health department.

E. The city clerk, police chief and health officer are authorized to request any supporting documentation affiliated with applications filed for a permit to assist with the review and recommendation process. (Ord. No. 4349, § 1, 3-22-21)

5.68.032 Body art special event license required; license and operational provisions.

A. It is unlawful for any person to conduct activities defined as a body art special event within the city without first obtaining a business license from the city clerk and a health license for the event from the city-county health department. Application for a health license must be submitted to the city-county health department on forms provided by the health officer. Application for a business license must be submitted to the office of city clerk on forms provided by the city clerk, and contain the following information:

1. If filing as an individual, applicant's full name, residential street address, mailing address, telephone number and proof that the applicant is at least the age of majority.

2. If applicant is filing as a corporation, firm, partnership, limited liability company, or other form of legal business entity, proof of authority to conduct business within the state of Wyoming.

3. Purpose for which the license is being requested and specific address and location where the proposed body art special event will be held, date(s) of the event and event hours.

4. The name, address and telephone number of the individual who will be the applicant's communication contact for the special event.

5. The names, addresses and telephone numbers of each body artist, guest body artist and/or other vendors who have been approved by the applicant to participate in or provide body artist services during the special event.

a. Each guest body artist providing body artist services at the special event, whether or not for profit, must obtain a permit from the health officer prior to offering body artist services at the special event. The licensee shall be responsible for allowing only those permitted guest body artists, or those body artists currently holding an active body artist annual permit issued by the city clerk, to provide body artist services at the special event.

b. The licensee shall require that each body artist providing body artist services at the special event conforms with proper identification procedures to ensure individuals receiving body artist services are at least the age of eighteen (18) years and, if applicable, that provisions of Wyo. Stat. Section 14-3-107 are met.

6. If a special event is proposed to be held on city-owned property, proof of general liability coverage must be submitted in an amount determined and approved by the city risk manager. The city must be named as an additional insured as well as a certificate holder on the certificate of coverage document.

B. Application for a body art special event license must be submitted to the city clerk not later than thirty (30) days prior to the proposed special event. Each license issued shall be effective for not more than seven consecutive days, or portion thereof. The city clerk, city-county health officer and chief of police, or designee, may request any supporting information or documentation affiliated with the application for a special event license. The health officer and chief of police reserve the right to deny approval of any application for a body art special event business license based upon the health, safety and welfare of the public.

1. Any applicable provisions of Chapter 5.68 of city code, as determined and required by the health officer, must be met by licensees.

C. Provisions of Section 5.68.050, health and sanitary requirements, of this chapter must be met by licensees and body artists with the following exceptions:

1. The room/area in which body art is performed at a special event may utilize temporary pole and opaque fabric panels to designate work space cubicles. Any flooring which does not meet requirements set forth in Section 5.68.050 must be covered with durable plastic sheeting as approved by the health officer.

2. Only single use items shall be allowed and used by body artists and each body artist shall provide enough sterilized equipment to perform anticipated body art procedures during the special event.

3. Pursuant to approval of the health officer, readily accessible hand sinks must be provided for body artist operations and hand sinks shall be available to serve a maximum of fifteen (15) body artists per hand sink.

D. Following closure of each special event, licensees shall submit legible client registers to the health officer, or a photocopy or electronic copy of the registers, that have been maintained by each body artist and/or guest body artist providing body artist services at the special event. The health officer shall determine and approve the information to be contained in the client register prior to the start of the special event.

E. Applicants must agree in writing to: Authorize the city, its agents and employees to seek any additional information relative to the application and to comply fully with the rules and regulations governing the license requested; verify that information contained in the application is true and correct, and release, indemnify and hold harmless the city, its agents and employees from any and all claims arising as a result of the special event.

F. Body art special event licenses are not renewable. Each special event requires a separate application and approval process. (Ord. No. 4349, § 1, 3-22-21; Ord. No. 4171, § 1, 4-10-17; Ord. No. 3983, § 1, 7-8-13)

5.68.035 Blood borne pathogen universal precautions.

A. All body art establishment applicants must submit a written blood borne pathogen exposure control plan, as approved by the health officer.

B. All body artists must possess and demonstrate knowledge of universal precautions, disinfection and sterilization techniques, procedures for infection and exposure control, and the infectious waste management plan, as specified in the national environmental health association body art model code and guidelines, or as approved by the health officer.

1. A body artist's knowledge of universal precautions may be demonstrated through proof of successful completion of a written exam from a nationally recognized organization, or through a personal interview process conducted by the health officer. Yearly documented proof of blood borne pathogen training must be submitted with each annual permit renewal application.

C. All body artist permittees must receive vaccination against Hepatitis B (HBV) or provide a written statement to the licensee of the body art establishment stating that he or she declines the vaccination. (Ord. No. 4349, § 1, 3-22-21; Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001)

Editor's note—Ord. No. 3871, § 1, adopted October 12, 2009, rename § 5.68.035, from statement of physician—medical requirements for licenses to blood borne pathogen universal precautions as set out herein.

5.68.040 Investigation of applicant and premises.

Copies of the application for each business license and body artist permit, including renewal applications, will be referred to the chief of police and health officer.

A. The chief of police will conduct a background investigation and recommend either approval or disapproval of the application.

B. The health officer will inspect the body art establishment location to determine if it complies with required health and sanitary provisions and will review and recommend either approval or disapproval of the business license application. An inspection and site plan review fee may be required by the health officer. The health officer will review and recommend either approval or disapproval of body artist applications. (Ord. No. 4349, § 1, 3-22-21; Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-4)

5.68.050 Health and sanitary requirements.

Every person who operates a body art establishment and any individual performing body art shall comply with the following requirements:

A. The room in which body art is done shall have an area of not less than one hundred (100) square feet. The walls, floors and ceilings shall have an impervious, smooth, washable surface, and shall be painted or finished in a light color. Carpeting is prohibited in body art area(s) and toilet room(s).

B. A toilet must be located in the body art establishment, and be accessible at all times that the body art establishment is open for business. The lavatories must be supplied with hot and cold running water, soap and single-use towels provided in approved dispensers, and shall be located in all toilet rooms.

C. A separate, readily accessible hand sink, with hot (minimum of one hundred degrees (100°) Fahrenheit) and cold running water, under pressure, equipped with a mixing valve faucet assembly, supplied with liquid soap, and disposable towels must be provided for operations within the body art establishment. One hand sink can serve no more than three body artists.

D. All tables and other equipment must be constructed of easily cleanable material, must be painted or finished in a light color with a smooth, washable finish, and shall be separated from waiting customers or observers by a panel of at least four feet high.

E. The entire premises and equipment must be maintained in a clean, sanitary condition, and in good repair.

F. The body artist must scrub their hands thoroughly with soap and water before performing body art procedures; hands must be dried with individual, single-use towels.

G. Safety razors with a new, single-service blade for each patron, or a straight-edge razor, may be used and shall be thoroughly cleaned and sterilized, as required by the health officer, before use on each patron.

H. The area on which body art will be applied must first be thoroughly scrubbed with an antiseptic soap for a minimum of two minutes, and an approved sterile preparation used. Contaminated waste materials must be deposited in an easily cleanable covered waste container provided in the area where body art is applied.

I. Only petroleum jelly in collapsible metal or plastic tubes, or its equivalent as approved by the health officer, shall be used on the area on which body art will be applied, and it shall be applied with sterile gauze.

J. The use of styptic pencils, alum blocks or other solid styptics to check the flow of blood is prohibited.

K. Single-service or individual containers of dye or ink shall be used for each patron, and the containers shall be discarded immediately after completing work on a patron; and any dye in which the needles were dipped shall not be used on another patron. Excess dye or ink shall be removed from the skin with an individual, sterile sponge or a disposable paper tissue, which shall be used only on one patron and then immediately discarded. After completing work on any patron, the area shall be washed with sterile gauze, saturated with an antiseptic solution approved by the health officer. The area shall be allowed to dry.

L. No body artist may work on any patron under the age of eighteen (18) years (proof of age will be required of all patrons), unless the provisions of Wyo. Stat. Section 14-3-107 have been met.

M. No body artist may work on, around or requiring visible exposure of the genital and nipple areas of any patron under the age of eighteen (18) years.

N. All single use items cannot be used on more than one patron for any reason. After use, all single needles, razors and other sharps must be immediately disposed of in approved sharps containers. All products applied to the skin, including body art stencils, must be single use and disposable. Acetate stencils may be allowed for reuse if sanitation procedures as approved by the health officer are followed. Petroleum jellies, soaps and other products used in the application of stencils must be dispensed and applied on the affected area with sterile gauze or in a manner to prevent contamination of the original container and its contents. The gauze must be used only once and then discarded.

O. Animals will not be allowed in the body art procedure areas, or the instrument cleaning, sterilization or storage areas. Fish aquariums and/or service animals are allowed in waiting rooms and non-procedural areas.

P. Unless approved by the health officer, a licensee shall not allow any body artist to provide services, nor shall any body artist provide body artist services, if the body artist has any open wounds on their arms or face. (Ord. No. 4349, § 1, 3-22-21; Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part) 2001: 2001 In-house code § 40 ½-5)

5.68.060 Storing of instruments.

All clean and ready-to-use needles and instruments must be kept in a closed glass or metal case, or storage cabinet, while not in use. The cabinet must be maintained in a sanitary manner at all times. (Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-6)

5.68.070 Sterilization of instruments.

A. A sterilizer shall be provided for sterilizing reusable needles, similar instruments and body jewelry before use on any patron. Sterilization of equipment shall be accomplished by exposure to live steam for at least thirty (30) minutes at a minimum pressure of fifteen (15) pounds per square inch, temperature of two hundred forty degrees (240°) Fahrenheit. The sterilizer must be provided with a thermometer reading ± degrees accuracy, and an accurate steam pressure gauge. Sterilization indicators shall be used and placed in the densest and largest pack in the sterilizer. No dry heat sterilizers may be used.

B. Each holder of a license to operate a body art establishment must demonstrate that the sterilizer used is capable of attaining sterilization by monthly spore destruction tests. These tests will be verified through an independent laboratory. The license will not be issued or renewed until the health officer receives documentation of the sterilizer's ability to destroy spores. These test records must be retained by the licensee for a period of three years and be made available, upon request, to the health officer. (Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-7)

5.68.080 Use of instruments.

The needles and instruments required to be sterilized must be so used, handled and temporarily placed during the procedure so that they do not

become contaminated. (Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-8)

5.68.090 Reporting of communicable diseases.

All communicable diseases which become known to the licensee or body artist must be immediately reported to the health officer by the licensee or body artist. (Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-9)

5.68.100 Pigments, dyes and jewelry.

All pigments, dyes, colors, jewelry, body art ornaments, etc., used in any body art procedure must be sterile and free from bacteria, virus particles, and noxious agents and substances. (Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-10)

5.68.110 Bandages and surgical dressings.

All bandages and surgical dressings used in connection with the application of body art must be sterile. (Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-11)

5.68.115 Contaminated wastes.

Disposal of contaminated wastes will be specified by the health officer. (Ord. 3457 § 1 (part), 2001)

5.68.120 Records.

Permanent records for each patron must be maintained by the licensee of the body art establishment. Before the body art operation begins, the patron must personally enter on a record form provided for the body art establishment, the date, his or her name, address, age, and his or her signature. Such record shall be maintained in the body art establishment and shall be available for examination by the health officer. Records must be retained by the licensee for a period of not less than two years. If there is a closure of a body art establishment, all such records must be made available to the health officer. (Ord. No. 4349, § 1, 3-22-21; Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-12)

5.68.130 Inspections.

The health officer may conduct periodic inspections of any body art establishment for the purpose of determining whether or not the body art establishment and the body artists performing the body art are in compliance with all applicable health provisions contained within this chapter and other laws. It is unlawful for any person, licensee, including their agents and employees, or permittee of a body art establishment to willfully prevent or restrain the health officer from entering any body art establishment where body art is being performed for the purpose of inspecting the premises after proper identification is presented. (Ord. No. 4349, § 1, 3-22-21; Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-13)

5.68.135 License, permit renewal procedures.

A. In addition to renewal provisions set forth in Section 5.04.090 of city code, the following requirements and provisions apply to renewal applications for licenses and permits issued under this chapter:

1. Any renewal application submitted by a licensee must include a list of all current body artists providing services for or on behalf of the licensee.

2. Any renewal application submitted by a permittee must include documented proof of blood borne pathogen training pursuant to Section 5.68.035 of this chapter.

3. All licensees and permittees must also renew applicable licenses and/or permits issued through the Cheyenne-Laramie County health department.

B. The city clerk will approve or deny an application for renewal based upon the recommendation of the chief of police and/or health officer. (Ord. No. 3871, § 1, 10-12-09)

5.68.140 Rules and regulations.

In order to carry out the intent of this chapter, the Cheyenne-Laramie County board of health may promulgate rules and regulations pertaining to the requirements of sanitation, cleanliness, adequacy of facilities, equipment, operation of a body art establishment, and other relevant matters consistent with this chapter. (Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-14)

5.68.150 Violations—Penalty.

A. Any person who violates the provisions of this chapter and/or Chapter 5.04 of the city code by failing to obtain and maintain a valid and effective license or permit to provide or offer body artist services is guilty of a misdemeanor and will be punished as provided by Section 1.24.010 of the city code. Each day a violation continues is a separate offense.

B. Any licensee or body artist holding a valid license or permit who violates the provisions of this chapter and Chapter 5.04 of the city code is subject to suspension or revocation proceedings against the operating license or permit as outlined in Sections 5.04.100 and 5.04.110. (Ord. No. 4349, § 1, 3-22-21; Ord. No. 3871, § 1, 10-12-09; Ord. 3457 § 1 (part), 2001: 2001 In-house code § 40 ½-15)

Chapter 5.72

PUBLIC TRANSPORTATION*

Sections:

5.72.010	**Purpose—Authority—General provisions.**
5.72.020	**Definitions.**
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5.72.050	**Public transportation driver's permit required.**
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5.72.080	**Operational conditions—Trip sheets—Restrictions.**
5.72.090	**Public transportation identification.**
5.72.100	**Passenger payment.**
5.72.110	**Violations—Penalty.**

5.72.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to regulate individuals and businesses engaged in public transportation services and the drivers of public transportation conveyances within the city. The word "licensee" used in this chapter shall refer to individuals and businesses engaged in public transportation services. The words "permittee" and "driver" shall refer to individuals permitted under this chapter to operate public transportation conveyances.

B. Cities and towns are authorized by Wyo. Stat. Section 15-1-103 (a)(xiii) and (a)(xli) to license and regulate businesses for the public health, safety and welfare of the community.

C. Public transportation business licenses and public transportation driver's permits may be issued by the city clerk pursuant to Section 5.04.020 of the city code. Prior to issuance, every application for a public transportation business license and every application for a public transportation driver's permit must be approved by the chief of police. The chief of police shall have the authority to recommend the approval or disapproval of any application, or any renewal thereof, and may recommend the imposition of reasonable conditions and restrictions upon any license or permit issued pursuant to this chapter. The chief of police shall conduct background and other investigations of applicants, licensees, and permittees as necessary to protect public health, safety and welfare. The chief of police may recommend the disapproval of any initial or renewal application if the application contains incomplete, false, or misleading information. The chief of police may recommend the disapproval of any initial or renewal application if the applicant has, in Wyoming or elsewhere, during the 10-year period prior to the date of the application: (1) suffered the loss of the privilege to drive a motor vehicle; (2) been convicted of driving while under the influence of alcohol; (3) been convicted of any offense relating to controlled substances; (4) been convicted of any crime of violence; or (5) been convicted of theft, burglary, embezzlement, or obtaining money or property under false pretenses. The chief of police may designate one or more officers or employees to assist in the performance of duties and the exercise of powers accorded to the chief of police under this chapter.

D. Each licensee engaged in the business of providing public transportation services under this chapter must obey the motor vehicle and traffic provisions of Title 10 of the city code. Each permittee who operates a public transportation conveyance under this chapter must obey all applica-

***Editor's note—**Ord. No. 3905, § 1, adopted September 13, 2010, repealed the former Chapter 5.72, §§ 5.72.010—5.72.040, and enacted a new Chapter 5.72 as set out herein. The former Chapter 5.72 pertained to public transport and derived from 2001 in-house code §§ 42-1—42-4; Ord. No.3714, 2006 and Ord. No. 3844, adopted June 8, 2009.

ble provisions of the city code, regardless of whether the permittee is paid a salary, wages, or other form of compensation and regardless of whether the permittee is self-employed.

E. See Chapter 10.64 for public carrier stops and stands.

F. Licenses and permits, including renewals thereof, under this chapter will be issued in accordance with the provisions of Chapter 5.04 of the city code, subject to conditions and restrictions imposed pursuant to Section 5.72.010(C) above. Except as provided in Section 5.72.050(E), licenses and permits issued under this chapter shall be effective for a period of one year from the date of issuance. Licenses and permits issued under this chapter may be suspended or revoked pursuant to Chapter 5.04 of the city code and may also be suspended or revoked for any violation of Section 5.72.060.

G. A licensee shall comply with the provisions of this chapter regardless of whether the licensee leases or rents public transportation conveyances to drivers, and regardless of whether the licensee pays a salary, hourly wages, or any other form of compensation to a driver employed or engaged to operate public transportation conveyances.

H. The business license and driver permit provisions of this chapter do not apply to the following: services and operations provided by vehicle rental businesses or agencies; local hotel/motel guest shuttle services; businesses whose sole purpose is to provide shuttle transportation services to and from airports; public transportation services provided by federal, state and local governmental agencies; and public transportation carriers subject to rules and regulations of the United States Department of Transportation.

I. The chief of police, or designee, shall have the authority, during normal business hours, and after having provided written notice at least five calendar days in advance, to enter the business premises of any licensee solely for the purpose of inspecting business records and public transportation conveyances relating to the licensee's compliance with this chapter. (Ord. No. 4268, § 3, 4-8-19; Ord. No. 4171, § 1, 4-10-17; Ord. No. 3905, § 1, 9-13-10)

5.72.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Carriage" means any non-motorized vehicle or device propelled by human power or animal power, whether pulled, drawn, pushed or pedaled, which is used to provide public transportation services in, upon, or over any street, alley and other public right-of-way within the city. "Carriage" includes, without limitation, horse-drawn carriages and pedicabs.

"Current vehicle inspection report" means a report prepared by a qualified mechanic or service technician following a detailed inspection of the tires, wheels, braking, lighting, signaling, suspension, and passenger restraint systems of a public transportation conveyance, other than a carriage. The detailed physical inspection and the inspection report must be completed not more than ten (10) business days prior to the submission of an application for the issuance or renewal of a public transportation business license or no more than ten (10) business days prior to the date that a public transportation conveyance is placed in service.

"Driver" and "permittee" mean an individual hired, employed, or otherwise engaged, with or without compensation, to operate a public transportation conveyance.

"For hire" means to provide public transportation services in exchange for any form of monetary remuneration including, without limitation, a fare, a tip, a contribution, a donation, or the exchange of any thing of value through barter.

"License" means the authority granted by the city clerk to a person to engage in the business of providing public transportation services.

"Licensee" shall refer to an individual or legal entity granted a license under this chapter to engage in the business of providing public transportation services.

"Operating authority" means the authority granted by the Wyoming Department of Transportation for the operation of commercial vehicles to the extent such "operating authority" is required for any public transportation service by Title 31 of the Wyoming Statutes.

"Permit" means the authority granted by the city clerk to a person to act as a driver of a public transportation conveyance.

"Public transportation conveyance" means any taxicab, limousine, carriage and any other device or apparatus used for the purpose of transporting passengers for hire in, upon, or over any street, alley, or other public right-of-way within the city. The phrase "public transportation conveyance" does not include any vehicle driven by an employee or agent of the owner of the vehicle if: (1) the vehicle is being driven for the personal purposes of the owner of the vehicle; (2) the vehicle is not made available to the public for hire; and (3) the driver of the vehicle does not receive compensation for his or her services or the driver receives compensation on other than a per trip or per mile basis.

"Public transportation services" means providing transportation services for hire in, upon or over any street, alley or other public right-of-way within the city, through the use of taxicabs, limousines, horse-drawn carriages, pedicabs, and like conveyances.

"Taximeter" means an electronic, digital, analog, or mechanical instrument approved by the National Institute of Standards and Technology which measures the distance driven and waiting time and which automatically calculates and registers, at a predetermined rate or rates, the fare to be charged for hiring the taxicab or limousine. (Ord. No. 4171, § 1, 4-10-17; Ord. No. 3905, § 1, 9-13-10)

5.72.030 Business license required.

A. No person shall operate a public transportation services business in, upon or over any street, alley or public right-of-way within the city without first obtaining a public transportation business license from the city clerk. Persons desiring to conduct a public transportation business must submit an application, upon a form approved by the city clerk, together with a non-refundable annual license fee of one hundred and fifteen dollars ($115.00).

B. An application for a public transportation business license must contain such information and documentation as may be determined by the city clerk and the chief of police including, but not limited to the following:

1. If the applicant is an individual, the name and business address of the applicant, the mailing address of the applicant, the business telephone number of the applicant, and the applicant's date of birth. If the applicant is a partnership or legal entity, the applicant shall disclose the names and business addresses of the persons who hold any legal or beneficial interest in the applicant, the dates of birth of the persons who hold any legal or beneficial interest in the applicant, the street address of the applicant's principal place of business, the applicant's principal mailing address, and the applicant's business telephone number.

2. Wyoming state sales tax number assigned to the applicant, if applicable.

3. Disclosure of whether the applicant has in the 10-year period prior to application ever had a license, permit or application relating to a public transportation business revoked, suspended or denied, and whether the applicant, including any person who holds any legal or beneficial interest in the applicant, has ever been convicted of a crime other than a misdemeanor traffic offense.

4. Description and number of public transportation conveyances to be utilized in providing public transportation services, including confirmation by the applicant that applicable insurance coverages as required by this chapter will be in effect and maintained at all times that any public transportation conveyance will be in service.

5. Description of any taximeter installed or utilized, and the method to be utilized, to compute the fare to be charged for hiring a public transportation conveyance.

6. Verification that each driver of a public transportation conveyance will drive or operate such conveyance only under that individual's permit issued pursuant to this chapter, that each permitted driver has and will maintain any and all operator's licenses required under Title 31 of the Wyoming Statutes and under rules and regulations of the Wyoming Department of Transportation, that each driver is insurable and that each driver will be maintained as an insured under the licensee's liability insurance coverages.

7. If applicable, a current and valid copy of the Wyoming Department of Transportation operating authority issued for the transportation of passengers for hire.

a. An applicant must comply with this chapter regardless of whether the applicant is exempt from the requirement to obtain operating authority from the Wyoming Department of Transportation.

8. Affirmation that the information contained and submitted with the application form is complete, true and correct. Each applicant shall sign an authorization, in a form prescribed by the chief of police, that shall be sufficient to authorize the chief of police to conduct criminal and other background investigations in the manner provided by Section 5.72.010(C) of the city code. Each application shall be signed by the applicant and the applicant shall verify that the statements contained in the application are true and correct. The chief of police may recommend the denial of any application that contains false, misleading or incomplete information.

9. A current vehicle inspection report for each public transportation conveyance, other than a carriage, to be operated by a licensee or permittee.

10. Such other information or documentation requested by the chief of police or city clerk.

C. The chief of police, in collaboration with the city traffic engineer, shall have the authority to determine carriage routes, carriage service zones, and carriage service hours. The chief of police shall have the right to restrict carriage operations to such routes, zones, and hours of operation. A mechanism to curtail animal waste is required for animal drawn carriages.

D. Upon receipt of an application for a license, the city clerk will forward a copy to the chief of police. The chief of police shall conduct criminal or other background investigations in the manner provided by Section 5.72.010(C) of the city code. (Ord. No. 4268, § 3, 4-8-19; Ord. No. 4236, § 1, 7-9-18; Ord. No. 3905, § 1, 9-13-10)

5.72.040 Proof of insurance—Maintenance—Health and safety requirements.

A. No person shall provide public transportation services without having submitted, with each application for issuance or renewal of a public transportation business license, proof that business automobile liability insurance coverage for owned, non-owned, and hired motorized vehicles shall be in effect during the entire term of the license with minimum limits for bodily injury and property damage in the amount of five hundred thousand dollars ($500,000.00), combined single limit (CSL) each accident per occurrence. No person shall provide public transportation services using a carriage without having submitted proof that commercial general liability insurance coverage will be in effect for the entire term of the license with minimum limits for bodily injury and property damage in the amount of five hundred thousand dollars ($500,000.00), combined single limit (CSL) per occurrence. A certification that business automobile or commercial general liability insurance coverage is in effect as required by this section shall be maintained in each public transportation conveyance. The certificate of commercial general liability insurance coverage shall set forth a requirement that the city of Cheyenne shall receive thirty (30) days notification by the insurance company or producer prior to the cancellation, reduction, suspension or revocation of coverage for a public transportation conveyance. In addition, each licensee shall notify the city clerk of the cancellation, reduction, suspension or revocation of liability insurance coverage for a public transportation conveyance within seventy-two (72) hours after notice of any such action is received by the licensee.

B. Each licensee will be responsible for maintaining public transportation conveyances to insure that said conveyances can be used to safely transport members of the public. With each application for the issuance or renewal of a public transportation business license, the applicant shall submit a current vehicle inspection report for each public transportation conveyance, other than a carriage, to be operated under the auspices of the licensee. A current vehicle inspection report shall also be submitted to the chief of police within five business days after a public transportation conveyance, other than a carriage, is placed in service. The licensee shall be responsible for the costs of inspections and repairs which may be ordered by the chief of police. (Ord. No. 3905, § 1, 9-13-10)

5.72.050 Public transportation driver's permit required.

A. No person shall operate a public transportation conveyance without having a public transportation driver's permit issued pursuant to this chapter. A person shall be eligible to receive a public transportation driver's permit if: He or she is at least eighteen (18) years of age; has a valid driver's license as required by Wyoming state law; and has submitted an application on a form prescribed by the city clerk and the chief of police, together with a non-refundable annual permit fee of twenty-five dollars ($25.00).

B. An application for a public transportation driver's permit must contain the following information, and such other information and supporting documentation as requested by the chief of police:

1. Full name of applicant, applicant's physical residence address, telephone number, date of birth, and verification of eligibility to be employed under federal laws pertaining to immigration.

2. All names, nicknames and aliases by which the applicant has been known.

3. Name of licensee for whom applicant will be driving a public transportation conveyance.

4. Two front-face portrait photographs of the applicant taken within thirty (30) days of the date of application. Each photograph shall be not less than two inches by two inches in size. One photograph shall be retained by the city clerk and one photograph shall be affixed to the public transportation driver's permit issued pursuant to this chapter.

5. A complete disclosure of all arrests, all criminal charges pending against the applicant at the time of application, including charges relating to violations of motor vehicle and traffic laws, all convictions of any felony or misdemeanor offense, including violations of motor vehicle and traffic laws, during the 10-year period prior to the date of application, and, for each such offense, the name and location of the court in which the conviction was rendered, the nature of the offense which resulted in conviction, the date of the conviction, and the sentence imposed. The chief of police may recommend the disapproval of an application for a public transportation driver's permit if the issuance of a permit to the applicant would be contrary to the public interest.

6. A complete disclosure of all instances in which the applicant's privilege to operate a motor vehicle, of any kind, has been revoked or suspended, all instances in which the applicant was denied the issuance or renewal of a driver's license of any kind by any state, all instances in which the applicant has been denied the authority to provide public transportation services in any state, and all instances in which the applicant's authority to provide public transportation services in any state has been revoked or suspended.

7. Affirmation that the information contained and submitted with the application form is complete, true and correct. Each applicant shall sign an authorization, in a form prescribed by the chief of police, that shall be sufficient to authorize the chief of police to conduct criminal and other background investigations in the manner provided by Section 5.72.010(C) of the city code. Each application shall be signed by the applicant and the applicant shall verify that the statements contained in the application are true and correct.

The chief of police may recommend the disapproval of any application that contains false, misleading, or incomplete information.

8. Such other information or documentation requested by the chief of police or city clerk.

C. Upon receipt of an application for a permit, the city clerk will forward a copy to the chief of police. The chief of police shall conduct criminal or other background investigations in the manner provided by Section 5.72.010(C) of the city code. The chief of police may examine any applicant to verify the applicant's knowledge, skills and abilities to safely operate a public transportation conveyance. After completion of the background investigation, the chief of police may recommend the approval or disapproval of the application. The city clerk may then issue a permit which shall have affixed one of the photographs submitted with the application. The permit must be continuously and conspicuously displayed within each public transportation conveyance while being operated by the driver.

D. Any driver or permittee may change his or her affiliation from one public transportation business licensee to another licensee by submitting written notice to the city clerk with payment of a fee of ten dollars ($10.00) and two front-face portrait photographs of the applicant taken within thirty (30) days of the date of written notice. Each photograph shall be not less than two inches by two inches in size. If the written notice is in proper form as determined by the city clerk, a new permit will be issued with one photograph affixed to the permit. The permit shall be effective for the remainder of the term of the existing permit.

E. A driver or permittee may provide public transportation services for more than one licensee pursuant to provisions of subsection E of this section. After review by the chief of police, a separate permit may be issued which will identify the licensee for whom the driver or permittee will be providing public transportation services. Each additional permit issued pursuant to this subsection shall be effective for the remainder of the term of the oldest permit, which remains in effect, issued pursuant to an applicant's initial or renewal application under subsection E of this section. (Ord. No. 4268, § 3, 4-8-19; Ord. No. 4236, § 1, 7-9-18; Ord. No. 4171, § 1, 4-10-17; Ord. No. 3905, § 1, 9-13-10)

5.72.060 Prohibited conduct of permittees while on duty.

A. While on duty, it shall be unlawful for any person holding a public transportation driver's permit to:

1. Provoke any disturbance, confrontation, or act of violence with passengers, members of the public, or other licensees or permittees licensed under the provisions of this chapter.

2. Operate a public transportation conveyance if the number of passengers exceeds the rated seating capacity of the conveyance.

3. Knowingly operate a motor vehicle used as a public transportation conveyance which has a faulty odometer or taximeter or any other mechanical or electrical defect which renders the conveyance unsafe for the transportation of passengers or which would cause the operation of the conveyance to be unlawful under city code.

4. Operate a public transportation conveyance when illness, physical or medical condition or infirmity of body or mind, including being under the influence of prescription or over-the-counter drugs, substantially affects the driver's ability to provide for the safe operation of a public transportation conveyance, or may cause any passenger to be exposed to any contagious illness or disease.

5. Knowingly allow a public transportation conveyance to be used in the commission of any crime.

6. Operate a public transportation conveyance for more than fourteen (14) continuous hours in

any twenty-four (24) hour period, unless there is a rest period of at least six continuous hours in said period.

7. Transport any child in any manner which violates state laws regarding the transportation of children in a motor vehicle.

8. Attempt to divert patronage from any hotel, restaurant, business establishment or any other licensee for consideration in any form.

9. Transport any passenger by any route other than the most direct and expeditious route possible that will carry the passenger safely to his or her destination, unless otherwise directed by the passenger or pursuant to an approved carriage route or service zone.

10. Following payment of the fare, upon request by the passenger, the driver shall provide a receipt for payment. The receipt shall include the following information: the total fare charged to the passenger, the date and time of day that the passenger was delivered to his or her destination, the name, address, and telephone number of the licensee, and the name of the driver or permittee.

11. Operate a public transportation conveyance in any manner which creates an unreasonable risk of harm to other persons, property, or any animal used to power any public transportation conveyance.

12. Commit any act which is defined as a felony under any applicable federal or state law. (Ord. No. 3905, § 1, 9-13-10)

5.72.070 Posting of fares—Insurance—Passenger bill of rights.

A. A schedule of public transportation fares and charges, and information reflecting the licensee's current insurance coverages, including the name of the licensee's insurance carrier, must be prominently and clearly displayed in a conspicuous place within each public transportation conveyance.

B. A copy of the schedule of fares and charges must be submitted to the city clerk and chief of police no later than the first day that the licensee begins public transportation services. A copy of said schedule shall be submitted with each application for renewal of a public transportation services business license. Any changes or revisions to the schedule must be submitted prior to implementation and must include the date the changes or revisions will become effective.

C. Each taximeter must be clearly visible to passengers and must be calibrated in accordance with standards adopted by the National Institute of Standards and Technology.

D. The city clerk and the chief of police shall have the authority, from time to time, to adopt or revise a passenger's bill of rights. Upon adoption, a copy of the passenger's bill of rights shall be displayed in each public transportation conveyance. (Ord. No. 3905, § 1, 9-13-10)

5.72.080 Operational conditions—Trip sheets—Restrictions.

A. Licensees shall notify the chief of police in writing within five (5) business days after any public transportation conveyance is added to or removed from service, excluding those temporarily out of service due to mechanical repairs.

B. Licensees shall notify the city clerk and chief of police in writing within two business days after any driver has separated from the service of the licensee. A driver who is no longer employed by or otherwise engaged by a licensee must surrender his or her permit to the city clerk.

C. Licensees and permittees shall maintain all public transportation conveyances in a clean and sanitary manner, free of debris and litter. Upon the completion of each trip, the driver must inspect the conveyance to determine if any personal property has been left in the conveyance. If the owner of the property is known, the driver shall contact the owner by any reasonable means. If the owner of the property is not known or cannot be contacted, the driver shall deliver the property to the licensee as soon as practicable. The licensee should make a reasonable effort to identify and contact the owner of the property. If the licensee is unable to contact the property owner and if the licensee receives no contact or communication from

the owner for a period of sixty (60) days, the licensee may dispose of the property after consultation with the chief of police.

D. Licensees shall maintain daily passenger transportation trip sheets which may be completed by drivers in paper format, through dispatch records, or through computerized records as long as such records contain the minimum information required. Daily trip sheet records must be maintained by the licensee for a period of not less than two years. Minimum information to be completed and maintained on the daily trip sheet shall include:

1. Date of trip (including month, day, year and day of week);

2. Location and time of each passenger pickup and drop-off;

3. Starting and ending time for each trip;

4. The fare or other charge assessed and the manner in which the fare was paid; and

5. The name of the driver, the permit number, and the driver's hours of duty.

E. License plates, registrations, proof of insurance coverages, and such other tags, stickers, or other documents required by state law and city code shall be displayed or carried in or upon each public transportation conveyance.

F. Licensees will require drivers of carriages propelled by animal power to:

1. Operate the carriage at a speed no faster than a slow trot;

2. Provide for the humane care of the animal, including water, food and rest periods;

3. Maintain tack in good and safe condition;

4. Be the first person into the carriage and the last person to exit the carriage; and

5. Attend to the carriage at all times.

G. Licensees will require drivers of carriages propelled by human power to:

1. Operate the carriage at a safe speed and in a safe manner;

2. Provide adequate food, water, and rest periods for the person or persons propelling any carriage;

3. Attend to the carriage at all times unless the carriage is secured; and

4. Instruct drivers that carriages propelled through human power are subject to city code pertaining to the operation of vehicles.

H. A driver is not required to transport any passenger if the passenger poses an unreasonable risk to the driver's health and safety. (Ord. No. 3905, § 1, 9-13-10)

5.72.090 Public transportation identification.

A. Each licensee providing public transportation services commonly known as taxicab services must display or depict the company's distinct logo on each motor vehicle being utilized as a taxicab, including the licensee's business name and telephone number. Each licensee's company logo must be approved by the chief of police prior to use. No logo shall be approved if the same are so similar to those of another licensee that public confusion is likely.

B. Licensees providing limousine services may implement a logo or markings upon approval of the chief of police.

C. Licensees providing carriage services may implement a logo or markings upon approval of the chief of police. (Ord. No. 3905, § 1, 9-13-10)

5.72.100 Passenger payment.

It shall be unlawful for any person or passenger to refuse to pay for public transportation services which have been lawfully provided to such person or passenger. It shall be unlawful to hire a public transportation conveyance with the intent to defraud the licensee or driver of the value of services provided. It shall be unlawful for any person to provide public transportation services without having obtained a license pursuant to the provisions of this chapter. It shall be unlawful for any person to transport a passenger in a public transportation conveyance without having obtained a permit pursuant to the provisions of this chapter. It shall be unlawful for any person to intentionally or recklessly damage or destroy any public transporta-

tion conveyance or any component thereof. (Ord. No. 3905, § 1, 9-13-10)

5.72.110 Violations—Penalty.

Any violation of Section 5.72.100 and/or other provisions of this chapter shall constitute a misdemeanor, punishable in accordance with the general penalty provision of the city code. (Ord. No. 3905, § 1, 9-13-10)

Chapter 5.76

TEMPORARY OR TRANSIENT MERCHANTS; RESIDENTIAL DOOR-TO-DOOR SOLICITORS*

Sections:

5.76.010	**Intent—Authority—General provisions.**
5.76.020	**Definitions.**
5.76.030	**Temporary or transient merchant—Comprehensive—License required—Application.**
5.76.040	**Residential door-to-door solicitors—License and license identification badge required—Application.**
5.76.050	**Residential door-to-door solicitor restrictions—Prohibited practices.**
5.76.060	**Exemptions.**
5.76.070	**License term.**
5.76.080	**Violations—Penalty.**

5.76.010 Intent—Authority—General provisions.

A. The purpose of this chapter is to establish regulations and procedures for regulating and licensing temporary or transient merchants and residential door-to-door solicitors conducting or soliciting sales and related activities within the city.

B. The city of Cheyenne is authorized by Wyo. Stat. Section 15-1-103(a)(xiii) and Wyo. Stat. Section 33-20-210 to regulate and license the conduct of sales by temporary or transient merchants and residential door-to-door solicitors for the public health, safety and welfare of its citizens.

C. The city clerk may request any supporting documentation in conjunction with applications for a temporary or transient merchant or residential door-to-door solicitors business license, and to review requests for exemption from a license as set forth in this chapter.

1. Prior to issuing a temporary or transient merchant business license, including a comprehensive temporary or transient license, the city clerk may request various city department representatives to review and inspect proposed temporary premises or sales sites for applicants proposing to sell goods, merchandise or services from fixed stands, tables, booths, vehicles or trailers.

2. Prior to issuance of a residential door-to-door solicitors business license, the applicant must provide written acknowledgment that he or she has received, read and understands the provisions of this chapter of city code applicable to door-to-door solicitors; affirm that the requirements of this chapter will be shared with all approved individual door-to-door solicitors, and agree to be held responsible for the actions of approved solicitors affiliated with the applicant to be licensed. (Ord. No. 4064, § 1, 4-13-15)

5.76.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Applicant" means an individual who is at least eighteen (18) years of age. If an applicant is affiliated with a corporation, partnership, limited liability company, organization, association or other lawfully formed entity, the individual must be a designated representative of same.

"Charitable organization" means any association, organization, corporation, partnership, limited liability company, or lawfully formed entity that is:

1. A benevolent, educational, philanthropic, humane, patriotic, religious, social welfare, advocacy, public health, environmental, conservation, or civic organization established for any charitable purpose, and

***Editor's note—**Ord. No. 4064, § 1, adopted April 13, 2015, repealed the former Chapter 5.76, §§ 5.76.010—5.76.080, and enacted a new Chapter 5.76 as set out herein. The former Chapter 5.76 pertained to temporary or transient merchants and derived from the 2001 In-house code §§ 32-1—32-8; Ord. No. 3714, 2006 and Ord. No. 3844, approved June 8, 2009.

2. Tax exempt under applicable provisions of the Internal Revenue Code, as amended, and qualified under federal law to solicit and receive tax deductible contributions from the public for charitable purposes.

"Comprehensive license" means an annual temporary or transient merchant business license issued to a permanent organization or business, or to an applicant in conjunction with a special local temporary event or activity, which allows any number of temporary or transient merchants to sell or offer for sale retail goods, merchandise or services from fixed stands, tables, booths, vehicles or trailers at the location identified on the application, or renewal application, form. A comprehensive license does not include the sale of food items requiring a separate license or permit pursuant to Chapter 8.40 of city code. A comprehensive license pertains to sales activities involving temporary or transient merchants only and not residential door-to-door solicitors.

"Contribution" or "contributions" means and includes the words alms, food, clothing, money, property, financial assistance or other things of value. A contribution, as defined herein, will also include a residential door-to-door solicitor selling or offering to sell any book, card, magazine, membership, merchandise, subscription, ticket or other thing in connection with which an appeal is made for charitable, educational or religious purposes.

"Door-to-door solicitor" or "solicitors" means any individual, as approved in conjunction with a residential door-to-door solicitors business license, attempting to make personal contact with any person at a place of residence within the city, without prior invitation by or appointment with the resident, for the purpose of solicitation or sale of goods, merchandise or services.

"License identification badge" means the identification badge issued by the city clerk to an individual approved to conduct door-to-door solicitation activities in conjunction with a residential door-to-door solicitors business license. Each badge will contain a current photograph of the individual to whom the badge is assigned.

"No soliciting" or "no solicitation" sign means a reasonably visible and legible sign posted upon residential premises that states "no soliciting," "no solicitors," "no trespassing," or words of similar import.

"Permanent place of business" means a recognized, fixed business location within the city at which the business owner, manager or designated agent actively operates a business which is open to the public on a year-round basis with regularly established hours of business. A permanent place of business also includes a location within the city in which a person conducts business as a home occupation and the person provides goods, merchandise or services, or delivers orders for same, to a customer's residence upon the customer's prior request or invitation.

"Religious" means and includes the word "charitable," as herein defined, but will be given its commonly accepted definition.

"Residence," "residential" or "residential premises" means any living unit contained within any building, structure, or manufactured housing unit that is predominantly occupied by any person as a dwelling, together with the lot, or other real property on which the living unit is located.

"Residential door-to-door solicitors business license" means the license issued by the city clerk in connection with a valid application as outlined in this chapter, and applies only to solicitation activities involving personal contact with any person at a place of residence within the city, without prior invitation by or appointment with the resident, for the purpose of solicitation or sale of goods, merchandise or services. A residential door-to-door solicitors business license is only valid for a period of fourteen (14) consecutive days beginning on the date of issuance.

"Sale," "sales," "sell" or "offer for sale" of goods, merchandise or services means any verbal or written agreement involving a solicitation between a residential door-to-door solicitor and an adult individual residing within a residence.

"Solicit" and "solicitation" mean and include any one or more of the following activities:

1. Attempting or offering to sell or taking sales orders, for present or future delivery, of any goods, merchandise or services of any kind, character or description, primarily for personal, family or household purposes;

2. Attempting or offering to sell or taking sales orders, for present or future delivery, of books, magazines, periodicals, newspapers and every other type or kind of publication; or

3. Requesting directly or indirectly contributions on the plea or representation that such contributions will be used for a charitable, educational or religious purpose; where any such offer, taking, attempt or request is personally solicited or a sale of goods or services is consummated in or upon the premises of an actual or prospective customer or donor.

"Temporary or transient merchant" means all persons not having a permanent place of business within the city who are engaged in selling or offering for sale any retail goods, merchandise or services. Numerous temporary or transient merchants may be licensed under a comprehensive license pursuant to an approved application.

"Temporary or transient merchant business license" means a license issued by the city clerk in connection with a valid application as outlined in this chapter, and applies only to those merchants who wish to sell or offer for sale retail goods, merchandise or services from fixed stands, tables, booths, vehicles or trailers at the location identified on the application or renewal application form. A transient business merchant license is only valid for a period of fourteen (14) consecutive days beginning on the date of issuance. (Ord. No. 4064, § 1, 4-13-15)

5.76.030 Temporary or transient merchant—Comprehensive—License required—Application.

A. No person shall conduct business as a temporary or transient merchant within the city unless:

1. The person has obtained a temporary or transient merchant business license from the office of city clerk; or

2. The person is operating as a temporary or transient merchant pursuant to coverage under a comprehensive license; or

3. The person meets one of the exemptions listed in Section 5.76.060 of this chapter.

B. Persons desiring a temporary or transient merchant business license, including an annual comprehensive temporary or transient merchant license, must submit written application on forms provided by the city clerk, together with payment of the licensing fee, to the office of city clerk. Each application shall be signed by the applicant. The licensing fee for a temporary or transient merchant license for a fourteen (14) consecutive day period, or portion thereof, will be one hundred dollars ($100.00); the licensing fee for an annual comprehensive temporary or transient merchant license will be three hundred dollars ($300.00) per year. Such application will include the following information, or any additional information requested by the city clerk or chief of police, or their designee:

1. Applicant's name, home address, telephone number and date of birth and, if applicable, affiliated business or organization name, business physical and mailing address and business telephone number.

2. Whether the applicant, or affiliated business or organization, has ever had a similar type of business license, whether within Wyoming or elsewhere, revoked, suspended or denied.

3. Proposed date(s) of temporary or transient sales; hours of proposed sales; sales address location and zoning classification, as defined by the Cheyenne Unified Development Code (UDC), and description of the item(s) to be sold.

4. If applicable, whether the applicant is authorized by the Wyoming Secretary of State to do business within the state of Wyoming, and whether the applicant has contacted the Wyoming Department of Revenue and Taxation to acquire a state sales tax license.

5. Authorization for the city and its agents and employees to seek information and conduct investigations of the applicant to verify that information contained upon the application is true and correct.

6. Affirmation that the applicant agrees to comply fully with the rules and regulations of the city governing the license requested and that the applicant further declares that the information contained in the application is true and correct.

C. Upon receipt of an application and payment of the required license fee, the city clerk will forward the application to the chief of police, or designee, for an applicant background review and recommendation. The chief of police shall have the authority to recommend approval or denial of any application for a temporary or transient merchant or comprehensive temporary or transient merchant business license for the general health, safety and welfare of the community.

1. The chief of police may recommend the denial of any application that contains false, misleading or incomplete information. The city clerk may require additional inspections and approvals by other city agencies.

D. Every person licensed as a temporary or transient merchant, or comprehensive temporary or transient merchant, must at all times possess and display such license in a conspicuous place to the public while conducting sales pursuant to the license issued. (Ord. No. 4236, § 1, 7-9-18; Ord. No. 4064, § 1, 4-13-15)

5.76.040 Residential door-to-door solicitors—License and license identification badge required—Application.

A. No person shall conduct residential door-to-door soliciting or solicitation activities unless:

1. The person has obtained a residential door-to-door solicitors business license from the office of city clerk; and

2. A license identification badge for each solicitor has been approved and issued; or

3. The person meets one of the exemptions listed in Section 5.76.060 of this chapter.

B. Persons desiring a residential door-to-door solicitors business license must submit a written application on forms provided by the city clerk, together with payment of the business license fee and license identification badge fee, to the office of city clerk. Each application shall be signed by the applicant. The licensing fee for a residential door-to-door solicitors business license for a fourteen (14) day period, or portion thereof, will be one hundred dollars ($100.00). The fee for each license identification badge shall be fifteen dollars ($15.00) for a fourteen (14) day period, or portion thereof, with the effective term of the badge coinciding with the term of the business license. Such application will include the following information, or any additional information requested by the city clerk or chief of police, or their designee:

1. Applicant's name, home address, telephone number and date of birth. If applicable, the affiliated and responsible business or organization name in which the license is being requested to be issued; business physical and mailing address; business telephone number, and the name of the individual, including current contact information, who will be responsible on behalf of the licensee for supervising any individual receiving a license identification badge to conduct activities as a door-to-door solicitor pursuant to the business license. If the license is to be held in the name of a business or organization, the management point of contact person, with current contact information, is required.

2. Identification of each individual the applicant proposes to receive a license identification badge to conduct activities as a door-to-door solicitor on behalf of the licensee as follows:

a. Full legal name, residential address, date of birth, confirmation that the individual is at least eighteen (18) years of age, and two current front-face portrait photographs of the individual which are approximately two inches by two inches in size. One photograph will be retained by the city clerk and one photograph will be affixed to the license identification badge.

3. Whether the applicant, or affiliated business or organization, has ever had a similar type of business license, whether within Wyoming or elsewhere, revoked, suspended or denied.

4. Proposed date(s) and hours of door-to-door solicitation activities; description of the goods, merchandise or services that will be offered for sale or involved in the taking of sales orders by a door-to-door solicitor, and a copy of any advertising materials (i.e. brochures, flyers, etc. describing the goods, merchandise or services that will be offered) and any written contract or agreement that may be entered into with a customer.

5. If applicable, whether the applicant is authorized by the Wyoming Secretary of State to do business within the state of Wyoming, and whether the applicant has contacted the Wyoming Department of Revenue and Taxation to acquire a state sales tax license.

6. Authorization for the city and its agents and employees to seek information and conduct investigations of the applicant to ascertain information contained upon the application is true and correct.

7. Affirmation that the applicant agrees to comply fully with the rules and regulations of the city governing the license requested and that the applicant further declares that the information contained in the application is true and correct.

C. Upon receipt of an application and payment of the required license fee, the city clerk will forward the application to the chief of police, or designee, for an applicant background review and recommendation. The chief of police shall have the authority to recommend approval or denial of any application for a residential door-to-door solicitors business license and any affiliated license identification badge for the general health, safety and welfare of the community. In addition, the chief of police may recommend the denial of any application that:

1. Contains false, misleading or incomplete information.

2. Is related to any past door-to-door solicitors business license or license identification badge issued by the city clerk involving concerns or complaints associated with Section 5.76.050 of this chapter. (Ord. No. 4236, § 1, 7-9-18; Ord. No. 4064, § 1, 4-13-15)

5.76.050 Residential door-to-door solicitor restrictions—Prohibited practices.

A. No solicitor may solicit without wearing or displaying the assigned license identification badge, as issued by the city clerk, to be viewable by the public at all times when conducting door-to-door solicitation. Upon request by the public or any law enforcement officer, proof of a current and valid residential door-to-door solicitors business license and license identification badge shall be made available for inspection. No solicitor shall allow another individual to use his or her assigned badge, and the badge shall not be worn or used for any other purpose by the solicitor at times other than conducting door-to-door solicitation under the business license.

B. No person shall engage in or conduct activities as a door-to-door solicitor upon any residential premises without a prior invitation from the occupant or resident thereof if such premises is posted or signed with a notice prominently displayed upon which is printed "no solicitors" or words of similar import. For the purposes of this subsection, residential premises will be deemed to be posted against solicitation if the notice is exhibited on or near the main entrance to the premises or on or near the main door to any residence located thereon.

C. No residential door-to-door business licensee or solicitor shall initiate solicitation activities for potential customer services affiliated with installation of any equipment involving electrical wiring, plumbing or remodeling any portion of a residential structure, without first contacting the city's building safety department to determine whether a license or permit is required.

D. No person will contact, engage in or conduct activities as a door-to-door solicitor after having been asked by the owner or occupant thereof to leave the premises or residence.

E. No person shall solicit upon any residential premises, other than prior invitation by the occupant or resident of the premises, prior to ten a.m. or after seven p.m., local time, of any day.

F. Not more than two door-to-door solicitors will engage in or conduct activities as a solicitor at the same location and time for the same goods, merchandise or services, or for religious or charitable purposes. When conducting door-to-door solicitor activities, no solicitor will be accompanied by an individual who has not been approved to receive a license identification badge. Each individual in violation of this provision will be deemed to have violated such provision.

G. No solicitor shall, at the time of initial contact with a prospective customer or donor, fail to verbally identify himself or herself and the business or company he or she represents, if applicable, and the purpose of the solicitation.

H. No person engaged in or conducting activities as a door-to-door solicitor will misrepresent the purpose of the solicitation or use any false, deceptive, misleading or untrue information or practices, including any reference to orders placed by or sales entered into by other residents or neighbors, to induce a sale, contribution, or placement of an order, or use any plan or scheme which misrepresents the true purpose of the solicitation.

I. No door-to-door solicitor shall conduct solicitor activities in a disrespectful, discourteous, aggressive, rude, offensive or inappropriate manner, including the use of abusive language. No solicitor shall enter any residence without invitation or block the passage of any resident.

J. No door-to-door solicitor shall finalize any sales or allow a customer to enter into or sign any written agreement pertaining to the purchasing, delivery, including future deliveries from orders taken, of any goods, merchandise or services without first verbally informing the potential customer of any city licenses or permits that may be required as the result of the purchase, and that the customer may have, pursuant to Wyoming law, three days in which to cancel the item(s) or services purchased or ordered.

K. No door-to-door solicitor shall make statements to potential customers or contributors indicating or implying that the residential door-to-door solicitors business license or license identification badge issued by the city clerk constitutes an endorsement by the city of the goods, merchandise or services to be offered. (Ord. No. 4064, § 1, 4-13-15)

5.76.060 Exemptions.

A. The following are exempt from the licensing provisions of this chapter:

1. Any person, as defined in Section 1.04.020 of city code, participating in fairs and bazaars on public property when such fair or bazaar is sponsored or entirely operated by the city;

2. Any person participating in non-profit fundraising activities, including religious, educational and charitable activities, in which the items to be sold or raffled have been hand-crafted or handmade by local residents;

3. Charitable, non-profit and religious organizations and persons representing them; provided, that the proceeds from sales are used only for charitable, non-profit or religious events and purposes;

4. Any fund-raising sales by a recognized school or educational organization, where profits solely benefit student members or a school/organization sponsored event;

5. Distribution of free literature or information which is not affiliated with any form of attempting or offering to sell, or taking orders for present or future delivery, of any goods, merchan-

dise or services, or that meets the definition of "solicit." (Ord. No. 4064, § 1, 4-13-15)

5.76.070 License term.

A. Each initial annual comprehensive temporary or transient merchant business license will be effective for one year from date of issuance with a renewal application processed and license issued as provided in this chapter and Chapter 5.04 of city code. Any change in location for an annual comprehensive license will be pursuant to the requirements of Section 5.04.070 of city code. No change of ownership involving an annual comprehensive license is allowed.

B. Each temporary or transient merchant or residential door-to-door solicitors business license will be effective for fourteen (14) consecutive days, or portion thereof.

C. Each license identification badge issued in affiliation with a residential door-to-door solicitors business license will be effective for the same term as the business license.

D. Temporary or transient merchant and residential door-to-door solicitors business licensees may submit application(s) for additional fourteen (14) consecutive day licenses by fulfilling the application requirements for an initial applicant under the provisions of this chapter. (Ord. No. 4064, § 1, 4-13-15)

5.76.080 Violations—Penalty.

A. Any person who violates any provision of this chapter will be charged with a misdemeanor, punishable pursuant to the general penalty provisions in Chapter 1.24 of city code. Each violation will be deemed a separate offense.

B. Any person holding a valid temporary or transient merchant business license, comprehensive license or residential door-to-door solicitors business license issued under this chapter who violates any provision of this chapter will be subject to suspension or revocation proceedings against the license as outlined within Chapter 5.04 of city code.

C. Upon investigation and following determination that a door-to-door solicitor has violated any portion of Section 5.76.050 outlined in this chapter, the chief of police shall have the authority to revoke the individual's license identification badge and issue a citation.

1. No person charged with violating Section 5.76.050(A) of this chapter shall be convicted if he or she produces in court a valid residential door-to-door solicitors business license and the license identification badge previously issued to him or her that was valid at the time the citation was issued. (Ord. No. 4064, § 1, 4-13-15)

Chapter 5.77

NICOTINE PRODUCT SALES

Sections:

5.77.010 Definitions.

5.77.020 General requirements and prohibitions.

5.77.030 Tobacco product pricing and packaging.

5.77.040 Limits on eligibility for a nicotine products retailer license.

5.77.050 Application procedure.

5.77.060 Issuance of license.

5.77.070 License renewal and expiration.

5.77.080 Licenses nontransferable.

5.77.090 Monitoring of violations—Administrative fees—Hearings.

5.77.100 Violations of Chapter 5.77—Penalties.

5.77.010 Definitions.

The following words and phrases, whenever used in this chapter, shall have the meanings defined in this section unless the context clearly requires otherwise:

"Consumer" means a person who purchases a tobacco product for consumption and not for sale to another.

"Electronic cigarette" means any device that can be used to deliver aerosolized or vaporized nicotine or synthetic nicotine to the person using the device and includes any component, part, and accessory of the device and any vapor material intended to be aerosolized or vaporized during the use of the device. "Electronic cigarette" includes, without limitation, any electronic cigar, electronic cigarillo, electronic pipe, electronic hookah, vapor pen, and any similar product or device. "Electronic cigarette" does not include a battery or battery charger if sold separately from the electronic cigarette and does not include any product regulated as a drug or device by the United States food and drug administration under subchapter V of the Food, Drug and Cosmetic Act.

"Nicotine products" means tobacco products, tobacco paraphernalia, and electronic cigarettes.

"Nicotine products retailer" means a business of any kind at a specific location that sells nicotine products and/or tobacco paraphernalia to a user or consumer.

"Proprietor" means a person with an ownership or managerial interest in a business. An ownership interest shall be deemed to exist when a person has a ten (10) percent or greater interest in the stock, assets, or income of a business other than the sole interest of security for debt. A managerial interest shall be deemed to exist when a person can or does have to share ultimate control over the day-to-day operations of a business.

"Sale" or "sell" means any transfer, exchange, barter, gift, offer for sale, or distribution for a commercial purpose, in any manner or by any means whatsoever.

"Tobacco paraphernalia" means any item designed or marketed for the consumption, use, or preparation of tobacco products.

"Tobacco products" means any substance, containing tobacco leaf or any product derived from tobacco that contains nicotine including, but not limited to, cigarettes, cigars, pipe tobacco, snuff, chewing tobacco, or dipping tobacco.

"Vapor material" means any liquid solution or other material containing nicotine or synthetic nicotine that is depleted as an electronic cigarette is used. "Vapor material" includes liquid solution or other material containing nicotine or synthetic nicotine that is sold with or inside an electronic cigarette.

"Vending machine" means any mechanical, electric, or electronic self-service device which, upon insertion of money, tokens, or any other form of payment, dispenses nicotine products. (Ord. No. 4327, § 3, 10-26-20)

5.77.020 General requirements and prohibitions.

A. Nicotine Products Retailer License Required. It shall be unlawful for any person to act as a nicotine products retailer in the city without first obtaining and maintaining a valid nicotine products retailer's license pursuant to this chapter for each location at which nicotine products will be sold. Selling nicotine products without a valid nicotine products retailer's license constitutes a misdemeanor punishable by the general penalty provisions of the Cheyenne Municipal Code.

B. Lawful Business Operation. In the course of tobacco retailing or in the operation of the business or maintenance of the location for which a license issued, it shall be a violation of this chapter for a licensee, or any of the licensee's agents or employees, to violate any local, state, or federal law applicable to tobacco products, tobacco paraphernalia, or tobacco retailing.

C. Display of License. Each nicotine products retailer license shall be prominently displayed in a publicly visible location at the licensed location.

D. Prohibited Sales or Delivery. No nicotine products retailer may sell, permit the sale, offer for sale, give away, or deliver nicotine products to any person under the age of twenty-one (21) years.

E. Signs Required and Location of Nicotine Products. Any nicotine products retailer or person who sells nicotine products shall post signs informing the public of the age restrictions provided by this chapter at or near every display of nicotine products and/or upon every vending machine which offers nicotine products for sale. Each sign shall be plainly visible and shall contain a statement communicating that the sale of nicotine products to persons under twenty-one (21) years of age is prohibited by law. Any person who owns, operates, or manages a business where nicotine products are offered for sale at retail and at which persons under the age of twenty-one (21) years are allowed admission with or without an adult, shall maintain all nicotine products within the line of sight of a cashier or other employee.

F. Location of Vending Machines. No nicotine products retailer or person may sell or offer nicotine products through a vending machine unless the vending machine is located in:

1. Businesses, factories, offices, or other places not open to the general public;

2. Places to which persons under the age of twenty-one (21) years are not permitted access; or

3. Business premises where alcoholic or malt beverages are sold or dispensed and where entry by persons under the age of twenty-one (21) years is prohibited.

G. On-Site Sales. All sales of nicotine products and tobacco paraphernalia to consumers shall be conducted in-person at the licensed location. It shall be a violation of this chapter for any nicotine products retailer or any of the nicotine products retailer's agents or employees to deliver nicotine products or tobacco paraphernalia or to knowingly or recklessly sell nicotine products or tobacco paraphernalia to any person that intends to deliver the nicotine product or tobacco paraphernalia to a consumer in the city. For purposes of this subsection, "deliver" means the commercial transfer of nicotine products or tobacco paraphernalia to a consumer at a location not licensed pursuant to this chapter. (Ord. No. 4327, § 3, 10-26-20)

5.77.030 Tobacco product pricing and packaging.

A. Packaging and Labeling. No nicotine products retailer shall sell any nicotine product to any consumer unless such product:

(1) Is sold in the original manufacturer's packaging intended for sale to consumers; and

(2) Conforms to all applicable federal labeling requirements. (Ord. No. 4327, § 3, 10-26-20)

5.77.040 Limits on eligibility for a nicotine products retailer license.

A. Mobile Vending. No license may issue to authorize the sale of nicotine products at other than a fixed location including, but not limited to, the sale of nicotine products by persons on foot or from vehicles.

B. A nicotine products retailer operating lawfully on the date the ordinance from which this chapter is derived is adopted that would otherwise be eligible for a nicotine products retailer license for the location for which a license is sought may receive or renew a license for that location so long as all of the following conditions are met:

1. The license is timely obtained and is renewed without lapse or permanent revocation (as opposed to temporary suspension);

2. The nicotine products retailer is not closed for business or otherwise suspends the sale of nicotine products for more than sixty (60) consecutive days;

3. The nicotine products retailer does not substantially change the business premises or business operation. A substantial change to the business operation includes, but is not limited to, the transferring of a location:

a. To a new proprietor(s); or

b. For which a significant purpose is avoiding the effect of violations of this chapter.

4. The nicotine products retailer retains the right to operate under all other applicable laws.

5. If the city clerk determines that a nicotine products retailer has substantially changed their business premises or operation and the nicotine products retailer disputes this determination, the nicotine products retailer bears the burden of proving by a preponderance of evidence that such change(s) do not constitute a substantial change. (Ord. No. 4327, § 3, 10-26-20)

5.77.050 Application procedure.

A. Application for a nicotine products retailer license shall be submitted in the name of each proprietor proposing to conduct retail nicotine sales and shall be signed by each proprietor or an authorized agent thereof.

It is the responsibility of each proprietor to be informed regarding all laws applicable to nicotine product sales, including those laws affecting the issuance of a nicotine products retailer license. No proprietor may rely on the issuance of a license as a determination by the city that the proprietor has complied with all laws applicable to the sale of nicotine products. A license issued contrary to this chapter, contrary to any other law, or on the basis of false or misleading information shall be revoked pursuant to Section 5.77.090 of this chapter.

All applications shall be submitted on a form supplied by the city clerk and shall contain the following information:

1. The name, address, and telephone number of each proprietor of the business seeking a license.

2. The business name, address, and telephone number of the single fixed location for which a license is sought.

3. A single name and mailing address authorized by each proprietor to receive all communications and notices (the "authorized address") required by, authorized by, or convenient to the enforcement of this chapter. If an authorized address is not supplied, each proprietor shall be understood to consent to the provision of notice at the business address specified in subparagraph (2) above.

4. Whether or not any proprietor or any agent of the proprietor has admitted to violating, or has been found to have violated, this chapter and, if so, the dates and locations of all such violations within the previous five years.

5. Such other information as the city clerk deems necessary for the administration or enforcement of this chapter.

B. A licensed nicotine products retailer shall inform the city clerk in writing of any change in the information submitted on an application for a nicotine products retailer license within ten (10) business days of a change. (Ord. No. 4327, § 3, 10-26-20)

5.77.060 Issuance of license.

Upon the receipt of a complete application for a nicotine products retailer license and the license fee required by Section 5.08.300, the city clerk

shall issue a license unless substantial evidence demonstrates that one or more of the following bases for denial exists:

A. The information presented in the application is inaccurate or false. Intentionally supplying inaccurate or false information shall constitute a misdemeanor punishable by the general penalty provisions of the Cheyenne Municipal Code;

B. The application seeks authorization for the sale of nicotine products at a location where the sale of nicotine products is prohibited;

C. The application seeks authorization for the sale of nicotine products for a proprietor to whom this chapter prohibits a license to be issued; and/or

D. The application seeks authorization for the sale of nicotine products that is prohibited pursuant to this chapter, that is unlawful pursuant to the Cheyenne Municipal Code, or that is unlawful pursuant to any other law. (Ord. No. 4327, § 3, 10-26-20)

5.77.070 License renewal and expiration.

A. Renewal of License. A nicotine products retailer license is invalid if the appropriate fee has not been timely paid in full or if the term of the license has expired. The term of a nicotine products retailer license is one year. Each nicotine products retailer shall apply for the renewal of their nicotine products retailer license and submit the license fee no later than thirty (30) days prior to the expiration of the term.

B. Expiration of License. A nicotine products retailer license that is not timely renewed shall expire at the end of its term. To renew a license not timely renewed pursuant to subparagraph A., the proprietor must:

1. Submit the license fee and application renewal form; and

2. Submit a signed affidavit affirming that the proprietor:

a. Has not sold and will not sell any nicotine products after the license expiration date and before the license is renewed; or

b. Has waited thirty (30) days before seeking renewal of the license. (Ord. No. 4327, § 3, 10-26-20)

5.77.080 Licenses nontransferable.

A nicotine products retailer license may not be transferred from one person to another or from one location to another. A new nicotine products retailer license is required whenever a location where nicotine products are sold has a change in proprietor(s). (Ord. No. 4327, § 3, 10-26-20)

5.77.090 Monitoring of violations—Administrative fees—Hearings.

A. Convictions of any violations of this chapter shall be monitored by the chief of police. In addition to any other penalty, sanction, or fee authorized by law, if a license holder, or its employees or agents, is convicted of a violation, the licensee shall, upon written notice issued by the chief of police, pay an administrative fee to the city as a means to assist with municipal costs involving law enforcement and repeat offenders. Based upon the number of convictions imputed to the license holder within each twenty-four (24) month period, the administrative fee will be as follows:

1st conviction	$100.00
2nd conviction	$250.00
3rd conviction	$500.00
4th and any following convictions	$750.00

B. Within thirty (30) days of a licensee's, permittee's, employee, and/or agent's conviction resulting in the licensee or permittee receiving more than four convictions within the twenty-four (24) month period, the chief of police will report the violations to the governing body and city clerk. Upon direction, by resolution of the governing body, the city clerk will provide the licensee, permittee, or their agent with a notice and an opportunity for public hearing. The date of the notice shall precede any hearing by at least ten (10) days. The notice shall be served by personal service or by certified, return receipt requested, and first-class mail.

C. In the event a public hearing is conducted and the governing body concludes there is substantial evidence that a licensee, its employee and/or agent, has routinely failed to correct areas or change their plans of operation where violations have occurred, the governing body may request action be taken to suspend or revoke the license.

D. Appeal of Suspension or Revocation. A decision of the city to suspend or revoke a license is appealable to district court pursuant to the Wyoming Administrative Procedure Act. Any appeal must be filed in writing with the city clerk and clerk of district court within ten (10) days of mailing of the city's decision. If such an appeal is timely made, it shall stay enforcement of the appealed action. An appeal to the district court is not available for a revocation made pursuant to subsection E. below.

E. Revocation of License Wrongly Issued. A nicotine products retailer's license shall be revoked if the city finds, after the licensee is afforded notice and an opportunity to be heard, that one or more of the bases for denial of a license under Section 5.77.050 existed at the time application was made or at any time before the license was issued. The decision shall be the final decision of the city. Such a revocation shall prohibit the applicant from filing a new license application. (Ord. No. 4327, § 3, 10-26-20)

5.77.100 Violations of Chapter 5.77—Penalties.

A. Any nicotine products retailer or individual who violates this chapter is guilty of a misdemeanor punishable by a fine of not more than:

1. Two hundred fifty dollars ($250.00) for a first violation committed within a twenty-four-month period. The court may allow the defendant to perform community service or attend a tobacco or nicotine cessation program and be granted credit against his or her fine and court costs at the rate of ten dollars ($10.00) for each hour of work performed or each hour of tobacco or nicotine cessation program attended;

2. Five hundred dollars ($500.00) for a second violation committed within a twenty-four-month period, regardless of the locations where the violations occurred. The court may allow the defendant to perform community service or attend a tobacco or nicotine cessation program and be granted credit against his or her fine and court costs at the rate of ten dollars ($10.00) for each hour of work performed or each hour of tobacco or nicotine cessation program attended;

3. Seven hundred fifty dollars ($750.00) for a third or subsequent violation committed within a twenty-four-month period, regardless of the locations where the violations occurred. The court may allow the defendant to perform community service or attend a tobacco or nicotine cessation program and be granted credit against his or her fine and court costs at the rate ten dollars ($10.00) for each hour of work performed or each hour of tobacco or nicotine cessation program attended.

B. It is an affirmative defense to a prosecution under this section that, in the case of a sale, the nicotine products retailer or person who sold the nicotine product was presented with, and reasonably relied upon, an identification card which identified the person buying or receiving the nicotine product as being over the age of twenty-one (21) years.

C. No fine for a violation of this section will be imposed for a first offense in a twenty-four-month period if the retailer or person can show that it had:

1. Adopted and enforced a written policy against selling nicotine products to persons under the age of twenty-one (21) years;

2. Informed its employees of the applicable laws regarding the sale of nicotine products to persons under the age of twenty-one (21) years;

3. Required employees to verify the age of nicotine product customers by way of photographic identification or by means of electronic transaction scan device; and

4. Established and imposed disciplinary sanctions for noncompliance.

D. Each day of continued violation under this section constitutes a separate offense. (Ord. No. 4327, § 3, 10-26-20)

Chapter 5.78

TOWING AND WRECKER RECOVERY OPERATIONS

Sections:

5.78.010	**Purpose—Authority—General provisions.**
5.78.020	**Definitions.**
5.78.030	**Business license required.**
5.78.040	**Towing rotation list participation; requirements.**
5.78.050	**Police department towing rotation list procedures—Participant removal from list.**
5.78.060	**Participant violation of towing rotation list requirements and appeal process.**
5.78.070	**Violation—General penalty.**

5.78.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to license, regulate and establish guidelines for businesses providing motor vehicle towing and wrecker recovery operations offered to the public within the city, including towing and wrecker recovery operators and their drivers.

B. Authority is granted cities and towns by Wyo. Stat. § 15-1-103(a)(xiii) and (xli) to license and regulate businesses for the public health, safety and welfare of the community.

C. In addition to business licensing provisions of this chapter, licenses shall be issued in accordance with Chapter 5.04 and Chapter 5.08, Section 5.08.270, of the city code.

D. Licenses may be suspended or revoked in accordance with Chapter 5.04, Sections 5.04.100 and 5.04.110 of the city code.

E. Every towing and wrecker recovery operator providing services under the provisions of this chapter must abide with the motor vehicle and traffic provisions of Title 10 of the city code and applicable local, state, and federal law.

F. Pursuant to Section 5.78.040 of this chapter, every written request by a business license applicant, or a current licensee, requesting participation on the police department's towing and wrecker recovery operations rotation list shall be approved by the chief of police, or his or her designee. The chief of police shall have the authority to remove any licensee from participation on the rotation list pursuant to Section 5.78.050 of this chapter. (Ord. No. 4009, § 1, 12-9-13)

5.78.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Licensee" means any person, as defined in Section 1.04.020 of the city code, granted a license under this chapter to engage in the business of providing motor vehicle towing and wrecker recovery operations to the public within the city.

"Motor vehicle" means a commercial, motor, rental and/or U-Drive-It vehicle, and trailer as defined in Wyo. Stat. Section 31-1-101, and, for purposes of this chapter, includes horse-drawn vehicles.

"Rotation list" means the list compiled and maintained by the police department containing the names of licensees who have been approved by the chief of police, or his or her designee, to be placed on the department's rotation list, and who will be requested by the police department to respond to the scene of accidents, incidents or emergencies involving motor vehicles and the necessity for towing and wrecker recovery operations.

"Storage area" means the area used by a towing and wrecker recovery operation for the storage of any towed motor vehicles. If the storage area is located within city limits, the area must meet city zoning requirements; in all instances the storage area shall have sufficient outdoor and indoor secure storage to be able to accommodate and secure any and all towed motor vehicles.

"Towing and wrecker recovery operations" (hereinafter "towing/recovery operation" or "towing/recovery operator") means the business of, or offering the services of, a motor vehicle wrecker or

towing service, whereby motor vehicles may be towed or otherwise removed from one place and transported to another by the use of a motorized towing vehicle designed for that purpose.

"Towing rotation list participant" or "participant" means any towing/recovery operation that has a current and valid business license and has been approved by the chief of police, or his or her designee, to be on the rotation list.

"Wyoming driver's license" or "driving license" means an appropriate driver's license as required by Wyo. Stat. Section 31-7-109, based on the gross vehicle weight of the towing vehicles being operated, as determined by the chief of police, or his or her designee. (Ord. No. 4009, § 1, 12-9-13)

5.78.030 Business license required.

A. A person shall not conduct, maintain, or operate a towing/recovery operation providing services within the city without a valid and current business license issued by the city clerk.

B. Any person desiring to conduct, maintain, or operate a towing/recovery operation within the city must first obtain a business license by submitting to the city clerk an application, together with a non-refundable annual license fee, on forms provided by the city clerk. An application, or annual renewal application, for conducting business as a towing/recovery operation must contain such information and documentation as may be determined by the city clerk and the chief of police including, but not limited to the following:

1. If the applicant is an individual, the name and business address of the applicant; business mailing address and telephone number, and applicant's date of birth. If the applicant is a partnership or legal entity, the name of business (applicant), principal place of business and business mailing address and telephone number. In addition, the applicant for a partnership or legal entity must provide the names and business or residential addresses of the persons who hold any legal or beneficial interest in the business, and the dates of birth of the persons who hold any legal or beneficial interest in the business.

2. Written proof of current state of Wyoming and United States Department of Transportation authorization to operate a towing/recovery operation business.

3. Written proof that the applicant has current automobile insurance coverages as defined in and meeting the minimum insurance amounts required by Section 3 of Chapter 3 of the Rules and Regulations promulgated by the Wyoming Department of Transportation.

4. Names and written evidence of appropriate driving license for each towing/recovery driver or operator who will be employed, or who will be providing services, on behalf of the towing/recovery operation business. Any person employed as a driver or operator of a towing/recovery operation must possess a valid driving license.

5. Disclosure of whether the applicant has in the ten (10) year period prior to application ever had a license or application relating to operation of a towing/recovery operation revoked, suspended or denied, and whether the applicant, including any person who holds any legal or beneficial interest in the business (applicant), has in the ten (10) year period prior to application been convicted of a crime other than a misdemeanor traffic offense.

6. Affirmation that the information contained in and submitted with the application form is complete, true and correct. Each application must be signed by the applicant. The applicant must also sign an authorization, in a form prescribed by the chief of police, which will be sufficient to authorize the chief of police to conduct a background investigation. The chief of police may impose a reasonable fee to recover costs associated with the investigation.

C. Upon receipt of and payment for an application for a business license, the city clerk will forward a copy to the chief of police for a background investigation of the applicant and a recommendation whether to approve or disapprove the application. The city clerk will also forward a copy of the application as applicable for review and recommendation by various city departments. The chief of police may recommend the denial of

any application that contains false, misleading or incomplete information, or due to any convictions involving any felony offenses, whether within Wyoming or elsewhere, involving, but not limited to, assault, battery and/or larceny and related offenses.

D. Following issuance of a business license, a licensee must notify the city clerk and chief of police of any change in the data required to be furnished under Section 5.78.030 within ten (10) days after any change occurs.

E. All holders of a business license issued under this chapter shall be required, in any instances when a holder has towed or otherwise removed a motor vehicle from one place and transported to another, when such tow or removal (i) was not requested or otherwise initiated by the police department and (ii) was not requested by the owner of the vehicle, or representative of the owner, to notify the police dispatch center, or any other location specified by the police department, of the tow or removal by telephone call within twenty (20) minutes of performing such tow or removal.

F. All holders of a business license issued under this chapter shall be required by the police department to attend any training session(s) as the police department deems to be necessary and appropriate, including but not limited to Traffic Incident Management System (TIMS) training. (Ord. No. 4236, § 1, 7-9-18; Ord. No. 4033, § 1, 7-28-14; Ord. No. 4009, § 1, 12-9-13)

5.78.040 Towing rotation list participation; requirements.

A. No towing/recovery operator shall be included on the rotation list without first having obtained a business license from the city clerk.

B. To be added to or included as a participant on the police department towing rotation list, licensees shall:

1. Possess a vehicle storage area of such size to allow for secure storage of all vehicles towed at the request of the police department. The storage area shall be enclosed by a solid fence or chain link fence at least six feet in height, and lighted in such a manner to maximize safety and security of stored vehicles. Towing/recovery operations must also have an indoor secure facility available to be used at the request of a vehicle owner, the discretion of the towing or wrecker driver, or at the direction of a requesting police officer. Each towing list participant is required to possess its own vehicle storage area meeting the requirements of this paragraph. For the avoidance of doubt, no towing list participant shall share or otherwise utilize in common a vehicle storage area with any other towing/recovery operation.

2. Furnish the city clerk and chief of police with a written request for participation in the towing rotation list. Request may be made upon an applicant's initial business license application or by separate written request if a license has previously been issued. The chief of police, or his or her designee, shall have the authority to approve or deny the request, based upon compliance with city, state and federal law and regulations, within twenty (20) business days after receipt thereof. Notwithstanding the foregoing, the chief of police, or his or her designee, shall approve a request if full compliance with all city, state and federal law and regulations has been demonstrated. Upon approval, the chief of police shall issue the applicant written approval indicating the licensee's approved participation on the rotation list. A copy of the written approval shall be provided to the city clerk, chief of the fire and rescue department and city traffic engineer. The chief of police may suspend or revoke a licensee's participation in the towing rotation list pursuant to Section 5.78.050(B) of this chapter.

3. Provide written affirmation that the licensee will:

a. Maintain the following minimum required towing vehicle equipment in good working condition:

i. Emergency lights;
ii. Remote tail and stop lights;
iii. Fire extinguisher;
iv. Broom, shovel, bucket;
v. Spill absorbing materials;

4. Established and imposed disciplinary sanctions for noncompliance.

D. Each day of continued violation under this section constitutes a separate offense. (Ord. No. 4327, § 3, 10-26-20)

Chapter 5.78

TOWING AND WRECKER RECOVERY OPERATIONS*

Sections:

5.78.010 **Purpose; authority; general provisions.**

5.78.020 **Definitions.**

5.78.030 **Business license required.**

5.78.040 **Towing list participation; requirements; abandoned vehicles.**

5.78.050 **Police department tow rotation list procedures; participant removal from list.**

5.78.060 **Participant violation of tow rotation list requirements and appeal process.**

5.78.070 **Violation; general penalty.**

5.78.010 Purpose; authority; general provisions.

A. The purpose of this chapter is to license, regulate and establish requirements for businesses providing motor vehicle towing and wrecker recovery operations offered to the public within the city, including towing and wrecker recovery operators and their drivers.

B. Authority is granted to cities and towns under Wyo. Stat. Section 15-1-103(a)(xiii) and (xli) to license and regulate businesses and to adopt ordinances for the health, safety and welfare of the community.

C. In addition to the business licensing provisions of this chapter, licenses shall be issued in accordance with Chapter 5.04 and Section 5.08.270, of Chapter 5.08 of the city code.

D. Licenses may be suspended or revoked in accordance with Sections 5.04.100 and 5.04.110 of Chapter 5.04 of the city code.

E. Every towing and wrecker recovery operator providing services under this chapter shall abide by the motor vehicle and traffic provisions of Title 10 of the city code and applicable local, state, and federal law.

F. Subject to the requirements imposed under Section 5.78.040 of this chapter, every business license applicant, or a current licensee, requesting participation on the police department's towing and wrecker recovery operations rotation list shall first be approved by the chief of police, or his or her designee. (Ord. No. 4574, § 1, 6-10-24)

5.78.020 Definitions.

A. As used in this chapter:

1. "Gate fee" means the fee a tow list participant may charge a vehicle owner for access to a vehicle stored in the participant's storage area when access is required outside of normal business hours or on a city holiday;

2. "Licensee" means any person, as defined in Section 1.04.020 of the city code, granted a license to engage in the business of providing motor vehicle towing/recovery operations to the public within the city;

3. "Motor vehicle" means any commercial, motor, rental or U-Drive-It vehicle, and includes horse-drawn vehicles and any trailer as defined by Wyo. Stat. Section 31-1-101(a)(xxiii);

4. "Storage area" means the area used by a towing/recovery operation for the storage of any towed motor vehicles, which areas shall have sufficient outdoor and indoor secure storage to be able to accommodate and secure any and all towed motor vehicles. If the storage area is located within city limits, the area shall meet city zoning requirements;

5. "Towing/recovery operation" or "towing/recovery operator" means the business of, or offering the services of, a motor vehicle wrecker or towing service, whereby motor vehicles may be

*__Editor's note__—Ord. No. 4574, § 1, adopted June 10, 2024, repealed the former Ch. 5.78, §§ 5.78.010—5.78.070, and enacted a new Ch. 5.79 as set out herein. The former Ch. 5.78 pertained to similar subject matter and derived from Ord. No. 4009, § 1, adopted Dec. 9, 2013; Ord. No. 4033, § 1, adopted July 28, 2014; and Ord. No. 4236, § 1, adopted July 9, 2018.

towed or otherwise removed from one place and transported to another by the use of a motorized towing vehicle designed for that purpose;

6. "Tow rotation list" means the towing and wrecker recovery operations list compiled and maintained by the police department identifying those licensees approved by the chief of police or his or her designee, that on a rotating basis will be requested by the department to respond to the scenes of accidents, incidents or emergencies involving motor vehicles and the necessity for towing and wrecker recovery operations;

7. "Tow list participant" or "participant" means any towing/recovery operation that has a current and valid business license and has been approved by the chief of police, or his or her designee, to be on the tow rotation list; and

8. "Driving license" or "driving licensure" means an appropriate driver's license as required by Wyo. Stat. Section 31-7-106(a) based on the gross vehicle weight of the towing vehicles being operated, as determined by the chief of police, or his or her designee. (Ord. No. 4574, § 1, 6-10-24)

5.78.030 Business license required.

A. No person shall conduct, maintain, or operate a towing/recovery operation providing services within the city without a valid and current business license issued by the city clerk.

B. Any person desiring to conduct, maintain, or operate a towing/recovery operation within the city shall first obtain a business license by submitting to the city clerk an application, together with a non-refundable annual license fee, on forms provided by the city clerk. An application, or annual renewal application, for conducting business as a towing/recovery operation shall contain such information and documentation as may be determined by the city clerk and the chief of police including, but not limited to the following:

1. If the applicant is an individual, the name and business address of the applicant, business mailing address and telephone number, and applicant's date of birth. If the applicant is a partnership or legal entity, the name of business applicant, principal place of business and business mailing address and telephone number. In addition, the applicant for a partnership or legal entity shall provide the names, dates of birth and the business or residential addresses of the persons who hold any legal or beneficial interest in the partnership or legal entity;

2. Written proof of current state of Wyoming and United States Department of Transportation authorization to operate a towing/recovery operation business;

3. Written proof that the applicant has current automobile insurance coverages as defined in and meeting the minimum insurance amounts required by Section 3 of Chapter 3 of the rules governing motor carriers promulgated by the Wyoming Department of Transportation;

4. Names and written evidence of appropriate driving licensure for each towing/recovery driver or operator who will be employed, or who will be providing services, on behalf of the towing/recovery operation business. Any person employed as a driver or operator of a towing/recovery operation shall possess a valid driving license;

5. Disclosure of whether the applicant has ever, within the ten-year period prior to the date of application, had a license or application relating to operation of a towing/recovery operation revoked, suspended or denied;

6. Disclosure of all arrests and criminal charges pending against the applicant, any of the applicant's employees or any person who holds any legal or beneficial interest in the applicant business, at the time of application, including for violations of motor vehicle and traffic laws. The application shall also include disclosure of any felony and misdemeanor convictions, including convictions for any violations of motor vehicle and traffic laws during the ten-year period before the date of application. Under this paragraph, the applicant shall disclose for each such offense the name and location of the court in which the conviction was rendered, the nature of the offense which resulted in conviction, the date of the conviction, and the sentence imposed; and

7. Affirmation that the information contained in and submitted with the application is complete, true and correct. Each application shall be signed by the applicant. The applicant shall also sign an authorization, in a form prescribed by the chief of police or his or her designee sufficient to authorize the police department to conduct a background investigation. The department may impose a reasonable fee to recover costs associated with the investigation.

C. Upon receipt of and payment for an application for a business license, the city clerk shall forward a copy of the application to the chief of police for a background investigation of the applicant and a recommendation on whether to approve or deny the application. The city clerk shall also forward a copy of the application for review and recommendation by any other city department as deemed necessary by the city clerk. The chief of police or any city department receiving a copy of an application under this subsection may recommend the denial of any application:

1. That contains false, misleading or incomplete information, or due to any convictions involving any felony offenses, whether within Wyoming or elsewhere, involving, but not limited to, assault, battery and/or larceny and related offenses; or

2. If the issuance of a license to the applicant would be contrary to the public interest.

D. Following issuance of a business license, the licensee shall notify the city clerk and chief of police of any change in the information required to be furnished under this section within ten (10) calendar days after any change occurs.

E. Any licensee under this chapter that has towed or otherwise removed a motor vehicle from real property at the request or upon the direction of the owner, owner representative or leasee of the real property shall notify the emergency dispatch center of the tow or removal by telephone call within twenty (20) minutes of performing such tow or removal.

F. Licensees under this chapter shall attend every training session deemed necessary and appropriate by the police department, including, but not limited to, Traffic Incident Management System (TIMS) training. (Ord. No. 4574, § 1, 6-10-24)

5.78.040 Towing list participation; requirements; abandoned vehicles.

A. No towing/recovery operator shall be included on the tow rotation list without first having obtained a business license from the city clerk.

B. To be included as a participant on the tow rotation list, or to maintain participation on the list, licensees shall:

1. Submit to the chief of police an application or renewal application in a form proscribed by the police department. The chief of police or his or her designee shall within forty-five (45) business days after receipt of an application approve or deny the application based upon compliance with this chapter and applicable city, state and federal laws and regulations. Prior to any application being approved, the towing/recovery operation tow rotation list applicant shall permit the department to inspect the facilities and equipment of the applicant. Subject to the removal and suspension provisions of this chapter, approved applications shall authorize participation on the tow rotation list for one-year terms beginning July 1 and terminating on June 30. The department shall provide to each approved applicant written certification evidencing that the applicant is authorized to participate on the tow rotation list and a copy of the current fee schedule specified under subsection (F) of this section. A copy of the certification shall be provided to the city clerk, chief of the fire department and city traffic engineer;

2. Possess a vehicle storage area of such size to allow for secure storage of all vehicles towed at the request of the police department. The storage area shall be enclosed by a solid fence or chain link fence at least six feet in height, and lighted in such a manner to maximize safety and security of stored vehicles. Towing/recovery operations shall also have an indoor secure facility available to be used at the request of a vehicle owner, in the discretion of the towing or wrecker driver, or at the direction of a

requesting police officer. Each tow list participant shall possess its own vehicle storage area meeting the requirements of this paragraph. No tow list participant may share or otherwise utilize in common a vehicle storage area with any other towing/recovery operation, except that this prohibition shall not apply to a common lot designated by the police department for use by all rotation tow companies where such lot has been designated in response to large community events or other special circumstances;

3. Submit to inspection by the Wyoming highway patrol each vehicle the licensee intends to use for recovery services in response to a tow rotation list service call and provide proof of each inspection to the police department;

4. Display a publicly visible sign with the licensee's name, phone number, address and business hours outside the business facility. Licensees shall also conspicuously post in their office the business' current tow, recovery and storage rates. Licensees shall have staff available to release property or vehicles during normal business hours, Monday through Friday, 8 a.m. to 5 p.m., excepting approved city holidays;

5. Provide written affirmation that the licensee will:

a. Maintain the following minimum required towing vehicle equipment in good working order:

i. Emergency lights visible from all sides;

ii. Remote tail and stop lights;

iii. Fire extinguisher;

iv. Broom, shovel and empty bucket;

v. A minimum of forty (40) pounds or four gallons of spill absorbing materials;

vi. Class 2 or Class 3 American National Standards Institute (ANSI) safety vest;

vii. Spotlight and flashlight;

viii. A minimum of three flares and three safety triangles; and

ix. Webbing, strapping and chains; and

x. Towing vehicle.

b. Ensure that all towing/recovery operators and drivers are properly trained and knowledgeable in the operation of all equipment they operate. Each licensee shall be responsible for background checks on individual drivers/operators;

c. Clean up all debris at a response scene, except for hazardous materials as defined by 49 U.S.C. 5103 and 49 C.F.R. 172.101;

d. Provide the police department with a current telephone number or numbers where the towing/recovery operation may be reached on a seven-day/twenty-four-hour basis;

e. Abide by the fee schedule adopted by the governing body in accordance with subsection (F) of this section for towing service charges related to calls for service;

f. Follow any reasonable request made by a law enforcement officer or emergency responder;

g. Immediately accept payment of any fee owed in accordance with the tow rotation list fee schedule between the weekday business hours of 8:00 a.m. and 5:00 p.m. or during the weekend if payment is offered in any of the forms specified in subparagraph (j) of this paragraph. For the purposes of accepting payment on the weekend, a tow list participant shall immediately accept payment offered either (i) in person, if the participant has weekend business hours, or (ii) telephonically, at the telephone number provided under subparagraph (d) of this paragraph if the participant does not have weekend business hours. This subparagraph shall not be construed to preclude acceptance of payment of any service fee or gate fee made outside of normal weekday business hours, including during approved city holidays;

h. Upon acceptance of payment of a fee owed in an amount authorized under the tow rotation list fee schedule, release the towed vehicle to the vehicle owner, authorized operator, authorized agent of the owner of the vehicle, the lienholder or agent of the lienholder of the vehicle, or the insurance company or agent of the insurance company providing coverage on the motor vehicle, if released to the insurance company by the vehicle owner;

i. Release items of personal property during normal weekday or weekend business hours with-

out charge to the lawful owner of the towed vehicle when authorized by the police department. This requirement shall only apply to personal property items contained within the vehicle towed and not items considered part of the vehicle;

j. Accept cash and at least two major credit cards as form of payment;

k. Not solicit or move wrecked, impounded or disabled vehicles for which another tow list participant has been dispatched by the city; and

l. Immediately notify the police department of any owner, driver or operator that has been charged or convicted of any felony or any misdemeanor that has as an element of the offense the use, attempted use, or threatened use of physical force against the person of another.

C. In addition to the requirements imposed under subsection (B) of this section, each tow rotation list participant shall:

1. Immediately contact the chief of police, or his or her designee, when a participant becomes aware that they will be unavailable for any reason, including, but not limited to, a planned medical treatment or vacation, so that arrangements can be made for coverage for such time period and disruption of operations is avoided. In the event that the tow list participant is unavailable, the participant shall rotate to the bottom of the list;

2. Maintain itemized towing and recovery invoices and billing statements affiliated with response to police department calls for services for at least two years from date of response. The reports required under this paragraph shall include every vehicle owner name, address, telephone number, the fees charged, to whom the vehicle was released and the date of release. The chief of police, or his or her designee, may inspect any participant's reports, records, vehicles, or storage areas for compliance with the provisions of city code and any applicable state and federal laws;

3. Receive clearance by the police department before releasing any vehicle that has been classified as a "police hold." Any invoice for a police hold on a vehicle shall include the name and badge number of each police officer placing the hold and each officer authorizing the release of any hold;

4. Assume full fiscal responsibility for all property and motor vehicles entrusted to them; and

5. Refrain from releasing, within ten (10) hours of time of towing, any vehicle towed or recovered in connection with an incident involving driving under the influence of intoxicating liquor or controlled substances to the individual who was driving said vehicle at the time of the incident.

D. All tow list participants shall adhere to the following requirements regarding calls for service:

1. Tow list participants should respond immediately to calls for service and arrive within thirty (30) minutes of accepting a call for service or within forty-five (45) minutes during inclement weather. If unable to arrive within the specified time, the participant must notify the police department with the estimated time of arrival. Failure to respond within the specified time, or notify the police department of the delay shall be cause for the police department to contact the next scheduled participant;

2. Tow list participants shall not transfer or attempt to transfer a call for service to another participant or use another towing/recovery operator's equipment vehicle to respond to a service call;

3. If a tow list participant fails to answer their telephone when called, or rejects a call for service, it will be considered as a turn on the tow rotation list and the participant shall rotate to the bottom of the list;

4. When telephoning or attempting to telephone a tow list participant the police department shall allow the call to ring not less than eight times or until an automated message system answers before determining that a participant is unavailable. If the call results in receiving a busy signal or automated message system recording, emergency dispatch shall attempt to place the call one additional time. If the tow list participant fails to answer the call, it shall be deemed a rejection and the participant shall rotate to the bottom of the

tow rotation list. Emergency dispatch shall then call the next participant on the tow rotation list; and

5. Tow list participants shall on a monthly basis accept not less than fifty (50) percent of all rotation list service requests made of the participant.

E. Every tow list participant, by virtue of their participation on the tow rotation list, may also elect to be included on a separate list maintained by the police department to be used for the purpose of towing/recovery operators providing towing and wrecker recovery services related to abandoned motor vehicles, which list shall be subject to the following conditions and requirements:

1. The list shall be administered by the police department in the same manner as the tow rotation list but providing services related to abandoned motor vehicles shall not affect the towing/recovery operator's position on the tow rotation list;

2. For any towing/recovery operator that is on the abandoned vehicles rotation list and which refuses to respond to an abandoned vehicle tow, the refusal shall be considered as a turn on the abandoned vehicles rotation list and the participant shall rotate to the bottom of the rotation list;

3. To maintain participation on the abandoned motor vehicle rotation list, the towing/recovery operator shall on a monthly basis accept not less than fifty (50) percent of all abandoned vehicles rotation list service requests made of the of the operator; and

4. Fees assessed for recovering abandoned motor vehicles services shall be governed as provided by Wyo. Stat. Section 31-13-111(g)(ii).

F. The fee assessed for any service provided by a tow list participant in response to a request by the department using the tow rotation list shall not exceed the amounts specified in the fee schedule, which schedule shall be set by resolution adopted by the governing body. During calendar year 2028 and every four years thereafter, the governing body shall review and reevaluate the fee schedule required under this subsection to determine if any changes are appropriate.

G. No tow list participant shall impose any fee in an amount more than the fee schedule required by under subsection (F) of this section except upon a showing of good cause and the:

1. Written approval of the police department prior to tow list participant providing the services giving rise to the excess charges; and

2. Submittal of sufficient documentation by the tow list participant as specified by the police department justifying the additional charges. The documentation required under this paragraph shall be submitted to the police department not more than fifteen (15) calendar days after the date of the services that were provided by the tow list participant. (Ord. No. 4574, § 1, 6-10-24)

5.78.050 Police department tow rotation list procedures; participant removal from list.

A. Police department procedures involving the tow rotation list shall be in accordance with the following:

1. The police department shall maintain a log of all calls or contacts made by the department to participants for response services made in connection with the tow rotation list;

2. Each participant shall only be allowed one place on the tow rotation list, regardless of the number of towing or wrecker vehicles owned;

3. If the party requiring towing or recovery service requests a particular towing/recovery operator, the police department shall call the same. If the requested towing/recovery operator is not available, the next available participant on the tow rotation list shall be called. Special request calls shall not affect the order of the list or result in the "skipping" of any tow list participant. A towing/recovery operator need not be on the tow rotation list to be called in the case of a special request, but shall possess a valid business license issued by the city clerk and abide by the fee schedule specified in Section 5.78.040(C) of this chapter;

4. If the party requiring towing or recovery service has no preference, the police department shall call the next participant on the tow rotation list. If the towing/recovery operator is unavailable or cannot otherwise respond after being contacted pursuant to the provisions of this chapter, the department shall call the next participant on the list; and

5. Should responding police officers or fire fighters determine that an accident or incident has resulted in a life threatening condition, towing/recovery operators may be called out of the tow rotation list order.

B. The chief of police shall have the authority to summarily remove any participant from the tow rotation list, or suspend any participant provided under Section 5.78.060 of this chapter, for any violation of this chapter, applicable provisions of city code, or state or federal law. The chief of police may also remove a participant from the tow rotation list upon receipt and investigation of any written complaint submitted to the chief of police from members of the public. The chief of police, or his or her designee, shall provide written notification to any participant relative to suspension or removal from the list, specify the reasons for the suspension or removal and provide the city clerk with a copy of the notification. (Ord. No. 4574, § 1, 6-10-24)

5.78.060 Participant violation of tow rotation list requirements and appeal process.

A. Upon receipt of a complaint from a member of the public as provided in Section 5.78.050(B) of this chapter or when separately initiated at the direction of the chief of police or his or her designee, the police department shall within ten (10) business days fully and diligently investigate any alleged violation and document the same. The investigation required under this subsection shall require contacting the tow list participant to obtain the participant's version of the facts relative to the alleged violation. After completing the investigation, the investigating officer shall produce a report of the investigation and provide the report to the chief of police, or his or her designee, within ten (10) business days of completion of the investigation.

B. Upon receipt of the report required under subsection (A) of this section, the chief of police or his or her designee shall, within ten (10) business days, notify the tow list participant of the investigation result. If the chief of police determines that the participant has violated any of the requirements imposed under Sections 5.78.040 and 5.78.050 of this chapter, the notice shall inform the participant of the penalty being imposed.

C. Except for summary removals as authorized under section 5.78.050(B) of this chapter, a failure to follow the requirements imposed under Sections 5.78.040 and 5.78.050 of this chapter by a tow list participant shall be subject to the following penalties:

1. First Violation. Immediate suspension from the tow rotation list for a six-month period. If the violation is related to required equipment or facilities, the chief of police may grant the participant thirty (30) calendar days to remedy the violation, in lieu of a six-month suspension;

2. Second Violation. Immediate suspension from tow rotation list for a twelve-month period; or

3. Third Violation. Immediate and permanent removal from the tow rotation list.

D. Any tow list participant who has been penalized in accordance with this section or under section 5.78.050(B) of this chapter may petition for a contested case hearing in accordance with Chapter 2.92 of the city code. The petition must be in writing and include the name and contact information of the petitioner, a short and plain statement of the matters asserted, identification of the challenged action or inaction of the police department and be signed by the petitioner or the petitioner's attorney or representative. Any petition submitted under this subsection must be received by the city clerk within seven calendar days of receipt of the notice required under subsection (B) of this section. Failure to timely petition for a

contested case hearing as required under this subsection shall be deemed a waiver of the participant's right to a hearing.

E. If a tow list participant petitions for a contested case hearing and the petition is received by the city clerk within the time period specified by subsection (D) of this section, the city clerk shall schedule a hearing and notify the participant in writing by certified mail of the date, time and place of the hearing. (Ord. No. 4574, § 1, 6-10-24)

5.78.070 Violation; general penalty.

It is unlawful for any person to violate any of the provisions of this chapter. Any person violating any provision of this chapter is guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars ($750.00), imprisonment for a period not more than six months, or both. (Ord. No. 4574, § 1, 6-10-24)

Chapter 5.80

TREE MAINTENANCE BUSINESSES

Sections:

5.80.010 Purpose—Authority—General provisions.

5.80.020 License required—Application—Fee.

5.80.030 Licensee and employee qualifications.

5.80.040 Insurance—Required.

5.80.050 Licensee responsibility.

5.80.060 License suspension—Revocation.

5.80.070 Violation—Penalty.

5.80.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to regulate, license and monitor activities of tree maintenance businesses, involved in tree trimming and/or removal and tree care activities, operating within the city for the health, safety and welfare of the community's urban forestry system.

B. Authority is granted cities and towns by Wyo. Stat. Sections 15-1-103(a)(xiii) and (xli) to regulate and license certain business activities. General business licensing provisions outlined in Chapter 5.04 apply for license issuance and renewal procedures.

C. Persons licensed pursuant to this chapter must also comply with applicable provisions of Chapter 12.16, Trees and Shrubs, of the city code. (Ord. 3615 § 1 (part), 2004)

5.80.020 License required—Application—Fee.

A. Any person owning or operating a tree maintenance business who desires to provide services within the city must first obtain a business license from the office of the city clerk. Application, together with a nonrefundable annual license fee of ninety dollars ($90.00), must be submitted to the office of the city clerk on forms provided by the city clerk. The application must contain information requested upon the form as well as any required supporting documentation.

B. The city clerk will refer applications to the director of forestry, who will examine the applicant either orally or in writing to determine the applicant's qualifications. The director of forestry will file his or her examination results or professional evaluation of the applicant's qualifications with the city clerk within five days of the examination or evaluation. (Ord. No. 3844, § 1, 6-8-09; Ord. 3714 § 1 (part), 2006; Ord. 3615 § 1 (part), 2004)

5.80.030 Licensee and employee qualifications.

A. Effective April 1, 2006, all new tree maintenance business applicants, and renewal licensees holding a tree maintenance business license must submit proof to the office of the city clerk that the business owner or an active full-time employee holds a current and valid certified arborist or certified tree worker designation from the International Society of Arboriculture.

B. Tree maintenance businesses involved only in applying pesticides and fertilizers externally or internally to trees and shrubs are exempt from the professional certification requirements set forth in subsection A of this section, but must submit proof to the director of forestry that the owner or an active full-time employee of the tree maintenance business holds a current and valid Wyoming commercial applicator certification from the Wyoming department of agriculture. (Ord. 3615 § 1 (part), 2004)

5.80.040 Insurance—Required.

A. Prior to a business license being issued, applicants must file with the office of the city clerk proof of commercial general liability insurance coverage from a carrier authorized to do business within the state of Wyoming.

1. Commercial general liability insurance coverage must be in the minimum amount of one

hundred thousand dollars ($100,000.00) per occurrence with a minimum general aggregate amount of three hundred thousand dollars ($300,000.00). The coverage document must list the city of Cheyenne, office of the city clerk, as a certificate holder and contain a statement indicating that any notice of cancellation issued to the applicant must also be provided in writing to the city clerk within thirty (30) days of effectiveness.

B. If applicable, proof of workers' compensation insurance coverage pursuant to Wyoming law must also be provided. (Ord. 3615 § 1 (part), 2004)

5.80.050 Licensee responsibility.

A. Licensees will be responsible for performing work activities in conformance with all applicable city ordinances, including, but not necessarily limited to, Chapter 12.16, Trees and Shrubs, of the city code, and applicable Wyoming law.

B. The following provisions apply to licensee operations:

1. Safety measures and equipment must be utilized at all times to protect workers and the public;

2. Adherence to notices or orders issued from the director of forestry pertaining to work activities and operations;

3. Maintain current physical and mailing business address information at the office of the director of forestry for use in providing any written or personal notification necessary from the director. (Ord. 3615 § 1 (part), 2004)

5.80.060 License suspension—Revocation.

A. The director of forestry may request that the city attorney investigate and determine whether to instigate proceedings for a license to be suspended or revoked for the following reasons:

1. Violations of city ordinances, including, but not necessarily limited to, the provisions of this chapter and/or Chapters 5.04 and 12.16 of the city code, or Wyoming law;

2. Activities and operations provided under a license demonstrating lack of knowledge or education resulting in unsafe or improper practices affecting employees, the public and/or the intent of the urban forestry program in protecting and preserving the community's trees and shrubs;

3. Allowing an unlicensed business or individual to operate under licensee's business license.

B. In the event proceedings are instigated for a license to be suspended or revoked, the provisions of Sections 5.04.100 and 5.04.110 of the city code will apply. (Ord. 3615 § 1 (part), 2004)

5.80.070 Violation—Penalty.

Any person who violates the provisions of this chapter and Chapters 5.04 and 12.16 of the city code will be deemed guilty of a misdemeanor, punishable as provided by the general penalty provision of the city code. (Ord. 3615 § 1 (part), 2004)

Chapter 5.85

EVENTS AND ACTIVITIES ON CITY-OWNED PROPERTY LOCATED WITHIN THE CITY'S DOWNTOWN BUSINESS AREA

Sections:

5.85.010 **Intent—Authority—General provisions.**

5.85.020 **Definitions.**

5.85.030 **Rental of city-owned property.**

5.85.040 **Policy and procedures to be established by special projects director.**

5.85.050 **Areas—Defined.**

5.85.060 **Compliance with city regulations.**

5.85.010 Intent—Authority—General provisions.

A. The purpose of this chapter is to establish procedures on the use and rental of real property owned by the city of Cheyenne within the downtown business area by individuals, businesses and civic groups.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103(a) to manage, lease, rent and regulate the use of municipal property.

C. The city recognizes that services provided by temporary vendors can enhance the community's vitality and promote tourism in the downtown business area. The city is interested in renting certain areas of city-owned public property, including certain public rights-of-way, for temporary food and retail merchandise sales and entertainment activities. (Ord. 3479 § 1 (part), 2002)

5.85.020 Definitions.

The following definitions apply in the interpretation and enforcement of this chapter:

"City special projects director" means the city employee who will administer and coordinate rental applications and agreements.

"Temporary vendor" means persons who sell food and retail merchandise or offer entertainment to the general public on a temporary or seasonal basis. (Ord. 3479 § 1 (part), 2002)

5.85.030 Rental of city-owned property.

A. The city may rent city-owned public property, including public rights-of-way to temporary vendors, if it is determined that use of the city property will not interfere with the operation of the city's governmental functions and private businesses.

B. On behalf of the city, the special projects director is authorized to enter into rental agreements with temporary vendors. The amount of rent will be based on a fee structure to be developed by the city special projects director and will consider the size, scope, duration and value to the community.

C. The city reserves the right to waive rental fees for non-profit organizations.

D. The city may waive fees for event participants recruited by the city special projects director in order to help insure the success of an event. (Ord. 3479 § 1 (part), 2002)

5.85.040 Policy and procedures to be established by special projects director.

A. The city's special projects director is authorized to develop policies and procedures, including identifying appropriate locations, number of vendors to be approved, rental fees and application procedures.

B. Rental fees will be based on size of the space to be rented and duration of use.

C. The special projects director is authorized to execute rental agreements with vendors. (Ord. 3479 § 1 (part), 2002)

5.85.050 Areas—Defined.

A. The downtown city-owned public property areas affected by this chapter include: all public rights of way in the downtown area within a bound-

ary determined by the city special projects director. (Ord. 3479 § 1 (part), 2002)

5.85.060 Compliance with city regulations.

A. All vendors must obtain all appropriate permits and comply with all city business licensing and health requirements.

B. Failure to comply will result in immediate termination of the vendor's rental agreement.

C. All applications will be reviewed by the chief of police, city clerk and city risk manager.

D. The city reserves the right to reject any application and revoke all rental agreements, without notice, in the interest of public safety. (Ord. 3479 § 1 (part), 2002)

Title 6

ANIMALS*

Chapters:

6.04	**Definitions, Administration and Enforcement**
6.08	**Animal Care and Control Regulations Generally**
6.12	**Rabies Certification**
6.16	**Rabies Control**
6.20	**Impoundment**

***Editor's note—**Ord. No. 4544, § 1, adopted Jan. 22, 2024, repealed the former Tit. 6, §§ 6.04.010—6.04.040, 6.08.010—6.08.200, 6.12.010—6.12.030, 6.16.010—6.16.050, 6.20.010—6.20.050, and enacted a new Tit. 6 as set out herein. The former Tit. 6 pertained to similar subject matter and derived from 2001 In-house code §§ 7-1—7-10, 7-12—7-30; Ord. 3636 § 1, adopted in 2005; Ord. 3675 §§ 1, 2, adopted in 2005; Ord. 3801 §§ 1—4, 6, 7, adopted in 2008; Ord. No. 3834, §§ 1, 3—6, adopted Dec. 8, 2008; Ord. No. 3882, §§ 1, 2, adopted Feb. 8, 2010; Ord. No. 3962, § 1, adopted Oct. 22, 2012; Ord. No. 4044, §§ 1—3, adopted Nov. 10, 2014; Ord. No. 4071, § 1, adopted June 8, 2015; Ord. No. 4126, § 1, adopted April 25, 2016; Ord. No. 4307, §§ 1—3, adopted May 26, 2020; and Ord. No. 4414, § 1, adopted Jan. 24, 2022.

Chapter 6.04

DEFINITIONS, ADMINISTRATION AND ENFORCEMENT

Sections:

6.04.010	**Purpose and authority; enforcement.**
6.04.020	**Definitions.**
6.04.030	**Capture of animals.**
6.04.040	**Violation; penalty.**

6.04.010 Purpose and authority; enforcement.

A. The purpose of this title is to establish regulations and procedures for the control, impoundment and general care of animals and birds within the city.

B. Authority is granted cities and towns by W.S. 15-1-103(a)(xiv) to regulate animals within the city and to provide for the operation of animal control and animal shelter services.

C. The provisions of this title shall be enforced by persons or agencies designated by the governing body. Before entering upon their duties, each animal control officer shall take an oath of office by the mayor or city clerk to empower them to issue citations for violations of this title.

D. Animal control officers and police officers are authorized to enter upon any premises, excluding a dwelling unit, within the city for the purpose of apprehending and impounding any animal or for any other purpose authorized in this title. (Ord. No. 4544, § 1, 1-22-24)

6.04.020 Definitions.

A. As used in this title:

1. "Abandon" means to leave an animal unattended, unsupervised and without support or provision for shelter, food or medical care except that abandon shall not include a community cat as specified under Section 6.08.190;

2. "Altered" means an animal which has been spayed or neutered;

3. "Animal" means a live, vertebrate creature, that is domestic or wild;

4. "Animal control authority" means the animal control officers designated by the city who are responsible for enforcing the provisions of this title;

5. "Animal control officer" means any person designated by the state, county commissioners or the city of Cheyenne who is qualified to perform duties under the laws, regulations or ordinances of the state, county or city;

6. "Animal shelter" means any premises designated by the governing body for the city of Cheyenne, Wyoming, for the purpose of impounding and caring for animals held under the authority of this title or state law;

7. "At large" means an animal that is not under any type of restraint;

8. "Community cat" means any free roaming cat lacking any identifiable evidence of ownership that has access to adequate food, water, and shelter as evidenced by the general body condition of the cat or any cat that may be cared for by one or more residents of the immediate area, either known or unknown. A community cat may or may not be socialized;

9. "Community cat caregiver" means a person who provides care to a cat, including providing food, shelter or medical care. A community cat caregiver shall not be considered the owner, custodian, harborer, possessor or keeper of a community cat.

10. "Dangerous animal" means any animal which constitutes a physical threat to human beings or other animals, or an animal when, unprovoked, bites or attacks a human being. An animal properly trained as a guard, sentry, or police dog shall not be considered a dangerous animal when acting in conformance with the animal's training;

11. "Domestic animal" means an animal that has been selectively bred and genetically adapted over generations to live alongside humans;

12. "Dwelling unit" means a structure consisting of one or more rooms or units designed for or occupied as a unit by one family or by an individual for living purposes;

13. "Eartipping" means the removal of the one-quarter-inch tip of a community cat's left ear, performed while the cat is under anesthesia, to identify the community cat as being altered and lawfully vaccinated for rabies;

14. "Euthanasia" or "euthanize" means the termination of an animal's life in a humane manner by a local veterinarian or other certified professional;

15. "Humane trap" means a device designed to capture or contain an animal without causing injury to the animal;

16. "Inhumane trap" means a device designed to capture or contain an animal which causes injury to the animal because of the device's design or operation;

17. "Tether" means a cord, rope, chain or similar device which restrains an animal and is not more than twenty-five (25) feet in length;

18. "Livestock" means horses, mules and asses, llamas, cattle, bison, swine, sheep, goats, ducks, geese and animals generally used for food or in the production of food or fiber. "Livestock" shall not include rabbits, or live female chickens as authorized under Section 6.08.020 of the city code;

19. "Local veterinarian" means any Wyoming licensed veterinarian practicing within Laramie County;

20. "Owner" means any person keeping or harboring a domestic animal, including the person named on the animal's rabies vaccine certificate or identified as the owner of the animal through the use of an implanted microchip. The parent or guardian of an owner shall be deemed the owner for purposes of this title when the purported owner is under the age of eighteen (18) years. "Owner" shall also include:

a. The occupant of the premises or dwelling unit where the animal is usually kept, if the premises or dwelling unit are other than the premises of the owner shown on the animal's rabies vaccine certificate or the premises of the owner as identified through the use of an implanted microchip; or

b. Any person having control or purporting to have control over an animal that is running at large.

21. "Pet" means any domesticated animal owned, kept, harbored or in the custody of a person living within the city limits of Cheyenne;

22. "Public nuisance" means an animal that:

a. Molests passersby or passing vehicles;

b. Attacks other animals or damages private or public property; or

c. Becomes a source of disease to other animals or humans.

23. "Restraint" means physical control by a responsible person by use of a tether, the tethering of an animal to a stationary object not within range of a public street, sidewalk, alley or common path or the confinement of an animal within a fence or other enclosure which restricts it to a particular premises;

24. "Stray" means an animal that has been abandoned by its owner, has been separated from its owner accidentally or has no current known owner. As used in this title, "stray" shall not include a community cat;

25. "Trap-neuter-return" means the nonlethal process of humanely trapping, altering, vaccinating for rabies, eartipping, and returning a community cat to the cat's original trapping location; and

26. "Vehicle" means any type of conveyance of travel which may be lawfully operated or parked upon any public or private way. (Ord. No. 4544, § 1, 1-22-24)

6.04.030 Capture of animals.

A. Each animal control officer and police officer is authorized to:

1. With the consent of the property owner, place or authorize the use of humane and safe traps in order to capture unrestrained animals on public or private property within the city;

2. Utilize chemicals to capture public nuisance or dangerous animals if all other means fail or are deemed unsafe. No officer may exercise this authority until the officer has been properly trained in the use of chemical capture. Only tranquilizing drugs approved for use on animals by the American Veterinary Medical Association (AVMA) may be utilized;

3. Shoot a public nuisance or dangerous animal when necessary to avoid immediate physical threat or injury to human beings;

4. Capture stray animals and cause them to be confined in an animal shelter. (Ord. No. 4544, § 1, 1-22-24)

6.04.040 Violation; penalty.

Any person who violates or fails to comply with any provision of this title for which no separate penalty is provided is guilty of a misdemeanor and punishable as provided by Section 1.24.010 of the city code. Any subsequent violation shall constitute a second or subsequent violation by the same owner, regardless of whether or not the same animal was involved in the underlying conduct. (Ord. No. 4544, § 1, 1-22-24)

Chapter 6.08

ANIMAL CARE AND CONTROL REGULATIONS GENERALLY

Sections:

6.08.010	**Cruelty to animals.**
6.08.020	**Keeping or slaughtering of certain animals; restrictions within city; exceptions.**
6.08.030	**Animals running at large prohibited.**
6.08.040	**Owning or keeping dangerous animals; penalties.**
6.08.050	**Selling of vertebrates.**
6.08.060	**Keeping of wild animals.**
6.08.070	**Disturbance of the peace.**
6.08.090	**Quantity of animals.**
6.08.100	**Prohibited animals generally.**
6.08.110	**Public nuisance; unlawful.**
6.08.120	**Vehicular accidents with animals.**
6.08.130	**Removal of dead animals required.**
6.08.140	**Animal wastes.**
6.08.150	**Housing or exhibiting animals.**
6.08.170	**Owning or keeping a biting animal prohibited; summary impoundment; penalty.**
6.08.180	**Feeding seagulls, geese and ducks prohibited.**
6.08.190	**Community cat initiative.**
6.08.200	**Keeping of bees.**

6.08.010 Cruelty to animals.

A. No owner shall abandon or fail to provide an animal with sufficient food, water, proper shelter and adequate space, and veterinary care when needed to prevent suffering. Food shall be of sufficient quantity and nutritive value to meet the normal daily requirements for the condition and size of the animal. For the purposes of this subsection, any person who relinquishes an animal to a public or private animal shelter or similar facility without transferring actual custody of the animal to the animal shelter or similar facility shall be deemed to have abandoned the animal in violation of this subsection. This subsection shall not apply to any person returning a community cat to a location within one-half mile of the cat's original location after altering and vaccination.

B. If a shelter with a tether is used as a primary enclosure for a dog kept outdoors, the tether shall be placed or attached to avoid entanglement with the tethers of other dogs or any other object. A tether shall allow for the dog's convenient and safe access to shelter and water and shall be at least three times the length of the dog as measured from the tip of its nose to the base of its tail.

C. No person shall leave any animal in an unattended vehicle without adequate ventilation or in such a manner as to subject the animal to extreme temperatures which may adversely affect the health or welfare of the animal.

D. No person shall carry any animal upon the hood, fender, running board, truck bed or other external part of a vehicle when the vehicle is being operated upon a public road or highway, unless the animal is protected by a carrier or other device sufficient to keep the animal from falling from the vehicle. The use of a tether shall not constitute sufficient protection under this subsection.

E. If any animal control officer or a police officer observes a vehicle parked within the city in which an animal is confined with no visible means of ventilation and the health or safety of the animal is threatened, the officer shall immediately attempt to locate the vehicle owner or person otherwise responsible for the animal. If unable to locate the vehicle owner or the person otherwise responsible for the animal within a reasonable time, the officer may use whatever means reasonably necessary to enter the vehicle to provide ventilation or to remove the animal from the vehicle. No animal control officer or a police officer shall

be liable for any damages resulting from the rescue of an animal when the officer is acting in accordance with this subsection.

F. No person shall cause, promote or permit any dogfight, cockfight, bullfight or other combat between animals nor keep or train any animal with the intent of engaging or using the animal in an exhibition of fighting.

G. No person shall permit, induce or encourage any animal to perform through the use of chemical, mechanical, electrical or manual devices in a manner likely to cause physical injury, suffering or trauma to the animal.

H. Except as otherwise authorized under this title, no person shall intentionally kill, maim, poison, inhumanely trap, or disfigure any animal. In addition, no person shall cause an animal to ingest a foreign object or expose an animal to any poisonous substance with the intent that it will be taken by the animal, except pests or vermin within a dwelling unit.

I. Animal control officers and police officers shall be authorized to cause any animal to be euthanized to avoid an immediate physical threat or injury to a human being. (Ord. No. 4544, § 1, 1-22-24)

6.08.020 Keeping or slaughtering of certain animals; restrictions within city; exceptions.

A. Except as provided by this section or otherwise provided in this title, no person may keep or slaughter within the city any livestock, birds or nonhuman primates.

B. The prohibition against the keeping of livestock, birds and nonhuman primates shall not apply to female chickens as provided under subsection (C) of this section, to goats used for weed and pest control purposes in accordance with subsection (F) of this section, or to properly licensed and permitted rodeos, fairs, circuses, carnivals, parades and other public exhibitions or entertainment events.

C. It shall be unlawful to keep, possess or otherwise maintain live male chickens anywhere in the city of Cheyenne. Notwithstanding, the keeping, possessing or maintaining of live female chickens within the city of Cheyenne shall be permitted in accordance with subsection (D) of this section and subject to the following requirements:

1. The keeping, possession or maintaining of a female chicken shall be permitted under this section only when kept, possessed or otherwise maintained upon an eligible lot. Every female chicken shall be clipped to prevent the chicken from escaping from the eligible lot. It shall be unlawful to possess, keep or maintain chickens in a dwelling unit of any kind;

2. It shall be unlawful to keep, possess or otherwise maintain a combined total of more than six female chickens on any eligible lot within the city;

3. During daylight hours, every female chicken shall have access to a coop as provided by paragraph (4) of this subsection and to a pen surrounding the coop. The pen shall be totally enclosed to prevent escape and to protect the chickens from predators. Female chickens shall be enclosed within the coop each night from sundown to sunrise;

4. Female chickens shall be confined within a covered, predator-resistant coop that has predator-resistant roofing and flooring, which shall be located in the backyard or rear portion of the eligible lot. The coop shall be adequately ventilated and easily accessed and otherwise maintained and shall provide for at least three square feet of space for each female chicken. The coop and pen shall be routinely cleaned and maintained to avoid attracting excessive insects or vermin or otherwise becoming a nuisance. The coop shall further comply with Section 6.08.140 of this chapter, with all applicable provisions of titles 8 and 15 of the city code and with applicable provisions of the Unified Development Code. No coop shall have an enclosed floor space exceeding sixty (60) square feet and no portion of any coop or pen shall exceed a height of seven feet from the ground surface at any point;

5. During daylight hours, female chickens may be permitted to roam outside the pen required under this section and within the backyard or rear portion of the eligible lot. A female chicken may

only roam in a backyard if they are confined within an area enclosed by a solid fence not less than six feet in height, which fence shall comply with applicable requirements of the Unified Development Code;

6. It is unlawful for any female chicken to be at large and any female chicken found at large may be impounded by the animal control authority. Any female chicken not reclaimed within two business days may be euthanized;

7. Female chickens shall be provided with sufficient potable liquid water at all times. Chicken feed shall be stored in secured containers to prevent access by mice, rats and other vermin;

8. No female chicken may be killed within the city by or at the direction of the owner or keeper thereof, except pursuant to a lawful order of the state or county health officer, for the purpose of euthanasia when surrendered to a licensed veterinarian or as otherwise expressly permitted by law; and

9. The carcass of a deceased female chicken shall be disposed of in accordance with Section 6.08.130 of this chapter.

D. In addition to the requirements imposed under subsection (C) of this section, the keeping, possession or maintaining of a female chicken upon an eligible lot shall be subject to the following:

1. All lot owners, including any purchaser under a contract for deed, and all adult residents of the eligible lot, including those residing in any accessory dwelling unit on the same lot, shall consent in writing to keeping female chickens on the eligible lot. Consent under this paragraph shall be effective and may be revoked in the same manner as specified in paragraph (3) of this subsection;

2. No female chicken may be kept on an eligible lot unless all owners and all adult residents of adjacent lots consent in writing. As used in this paragraph, "adjacent lot" means any lot that touches an eligible lot at any point, including corner to corner touching. A lot separated from the eligible lot only by an easement that does not provide for public vehicular, bicycle or pedestrian access, shall be deemed an adjacent lot for the purposes of the consent requirement of this paragraph. In addition, rights-of-way and other public access areas that are adjacent to an eligible lot and that may be lawfully used for public vehicular, bicycle or pedestrian access, including, but not limited to, streets, alleys, sidewalks, greenways, parks, plazas, parking facilities and playgrounds shall not be considered to be adjacent lots, provided however, that no portion of a coop or pen may be located within six feet of an adjacent right-of-way or other public access area; and

3. The consent of an adjacent owner or an adult resident shall be irrevocable for a period of one hundred eighty (180) days from the date consent is given in writing. After the expiration of one hundred eighty (180) days, the consent provided by an adjacent lot owner or adult resident may be revoked by providing written notice of revocation to the record owner(s) of the eligible lot and to any person keeping female chickens on the eligible lot that was the subject of the original consent. Upon receiving written notice of the revocation of consent under this paragraph, the owners and occupants of the eligible lot shall have sixty (60) days to remove all female chickens.

E. This section shall not supersede or affect the validity or enforceability of private lot restrictions, restrictive covenants, homeowners' association agreements or any other agreement or arrangement that may limit or prohibit the keeping of female chickens.

F. This section shall not apply in areas of the city zoned agricultural, to livestock brought into the city for purposes of being shipped out of the city, to animals brought into the city to receive veterinary care, to animals impounded within or on the grounds of any animal shelter facility designated by the city of Cheyenne or to goats that are properly permitted and contracted by the city of Cheyenne for weed and pest control purposes.

G. The city/county health officer may issue an order prohibiting the keeping of any animal which poses a health hazard to the general public pursuant to city ordinances, or state and federal laws pertaining to public health.

H. As used in this section, "eligible lot" means any lot that contains no more than one detached single family residential unit wherein at least one adult person resides who shall be responsible for compliance with the provisions of this chapter. An "eligible lot" also includes an accessory dwelling unit approved under the Unified Development Code. (Ord. No. 4544, § 1, 1-22-24)

6.08.030 Animals running at large prohibited.

A. Except as otherwise provided by this section, the owner of any animal shall keep the animal under restraint at all times and not allow the animal to run at large except on the owner's property. Any person violating this section shall be guilty of a misdemeanor and punishable as follows:

1. For any animal that is altered or less than six months of age the owner shall be punished as follows:

a. First offense: a fine of not less than fifty dollars ($50.00);

b. Second offense within a twelve-month period: a fine of not less than seventy-five dollars ($75.00). In addition, a second offense within a twelve-month period shall result in the mandatory microchipping and identification of the animal at the expense of the owner. The owner of the animal shall bear the burden of proof and cost regarding the animal's microchipping. Within thirty (30) calendar days of redemption, the owner shall provide proof to the municipal court of and microchipping identification through certification by a veterinarian or by the animal control authority; or

c. Third or subsequent offense within a twelve-month period: mandatory appearance in municipal court and a fine of not less than one hundred dollars ($100.00) and not more than seven hundred fifty dollars ($750.00).

2. For any animal that is unaltered or more than six months of age the owner shall be punished as follows:

a. First offense: A fine of not less than seventy-five dollars ($75.00);

b. Second offense within a twelve-month period: A fine of not less than one hundred dollars ($100.00). In addition, a second offense within a twelve-month period shall result in the mandatory altering and microchipping of the animal at the expense of the owner. The owner of the animal shall bear the burden of proof regarding the animal's alteration and microchipping. Within thirty (30) calendar days of redemption, the owner shall provide proof to the municipal court of alteration and microchipping identification through certification by a veterinarian or by the animal control authority; or

c. Third or subsequent offense within a twelve-month period: mandatory appearance in municipal court and a fine of not less than a one hundred dollars ($100.00) and not more than seven hundred fifty dollars ($750.00).

B. Any person who fails to have their animal altered or microchipped as required under subsections (A) or (B) of this section shall be guilty of a misdemeanor punishable by a fine of not less than a one hundred dollars ($100.00) and not more than seven hundred fifty dollars ($750.00).

C. This section shall not apply to any:

1. Police service dog engaged in the line of duty;

2. Trained goose control dog under the direction and control of a city employee or contractor in the performance of official goose control operations;

3. Community cat as defined by Section 6.04.020(A)(8) of this title; or

4. Goats used for weed and pest control purposes in accordance Section 6.08.020(F) of this title.

D. Service animals as defined by the Americans with Disabilities Act shall be controlled by means of a tether. This requirement shall not apply in circumstances where the tether will interfere with the service animal's work or the individual's disability prevents using a tether and the individual is able to maintain control of the animal through voice, signal or other effective controls. (Ord. No. 4544, § 1, 1-22-24)

6.08.040 Owning or keeping dangerous animals; penalties.

A. No person shall own, keep, harbor or allow to be upon any premises occupied by him or her or under his or her charge or control, any dangerous animal without having the animal properly secured and muzzled.

B. Any person who violates this section shall be guilty of a misdemeanor punishable as provided by Section 1.24.010 of the city code. Upon conviction, the municipal court may additionally order any the dangerous animal be euthanized or may ban the animal from the city, and for that purpose, the officer charged with such duty shall have the right to enter upon any premises within the city. (Ord. No. 4544, § 1, 1-22-24)

6.08.050 Selling of vertebrates.

A. No live mammal, reptile or bird younger than six weeks of age may be sold in quantities of less than one dozen to one purchaser.

B. No live mammal, reptile or bird may be given away as a prize for or as an inducement to enter a place of amusement, or used as an incentive to enter into any business agreement whereby the offer was for the purpose of attracting trade or a pecuniary benefit. (Ord. No. 4544, § 1, 1-22-24)

6.08.060 Keeping of wild animals.

No person shall own any wild or exotic animal within the city limits, except that this restriction shall not apply to the keeping of small cagebirds or aquatic, amphibian or nonpoisonous reptilian animals or small rodents such as hamsters, guinea pigs or gerbils kept solely as pets. The prohibitions imposed under this section shall also not apply to any zoological garden, theatrical exhibit, circus, legally incorporated college, university or school. (Ord. No. 4544, § 1, 1-22-24)

6.08.070 Disturbance of the peace.

No owner of any animal within the city shall permit the animal to disturb the peace and quiet of any individual, family or neighborhood by allowing the animal to bark, whine, howl or make any other noise in an excessive, continuous or untimely fashion. Any owner who violates this subsection shall be guilty of a misdemeanor upon a showing that the owner received a written warning from the city for a previous violation of this section at least one time within the preceding twelve (12) months. (Ord. No. 4544, § 1, 1-22-24)

6.08.090 Quantity of animals.

A. No person shall keep more than four dogs or more than four cats in a single dwelling unit. Any person keeping more than four dogs or more than four cats in a single dwelling unit shall be considered to be operating a kennel and the property must meet the applicable zoning requirements.

B. Notwithstanding the prohibitions imposed under subsection (A) of this section, a person may keep more than four dogs or more than four cats of the same litter in a single dwelling unit until the dogs or cats reach the age of four months. (Ord. No. 4544, § 1, 1-22-24)

6.08.100 Prohibited animals generally.

Poisonous or venomous biting or injecting species of amphibian, arachnid or reptile, including snakes, shall not be brought into, kept, maintained, offered for sale or barter, or released within the city. This section shall not prohibit any educational facility, circus or other entertainment organization from keeping an amphibian, arachnid or reptile when the it is securely and humanely confined. (Ord. No. 4544, § 1, 1-22-24)

6.08.110 Public nuisance; unlawful.

No owner of an animal shall allow it to be or become a public nuisance. Owners violating this section shall be subject to the general penalty as provided by Section 1.20.010 of the city code. (Ord. No. 4544, § 1, 1-22-24)

6.08.120 Vehicular accidents with animals.

Any person operating a vehicle who hits a domestic animal with the vehicle shall immediately stop and report the incident to the animal's owner

or, in the event the owner cannot be ascertained and located, to the animal control authority or police department. (Ord. No. 4544, § 1, 1-22-24)

6.08.130 Removal of dead animals required.

If an animal is euthanized and the owner of the animal, or person in charge of the animal, wants to bury the animal within the city, they shall obtain prior approval by the animal control authority. If the owner or person having charge of the animal fails to dispose of the animal within ten (10) hours of the animal's death, the animal control authority or police department shall arrange for removal at the expense of the owner or person having charge of the animal. If the animal's owner or person having charge of the dead animal cannot be found or ascertained, the animal control authority shall arrange for the removal and disposal of the animal. (Ord. No. 4544, § 1, 1-22-24)

6.08.140 Animal wastes.

A. Any person owning, keeping, possessing or harboring an animal shall promptly and in a sanitary manner remove and dispose of any feces left by the animal on any public property or on any private property not owned or lawfully occupied by the person owning, keeping, possessing or harboring the animal.

B. An animal owner is responsible for keeping his or her property free and clear of animal waste to prevent potential harm to the public health, as determined by the city/county health officer, or his or her designee. If a determination is made that an owner has allowed the accumulation of animal waste to threaten the public's health, an animal control officer may cite the owner of the animal for violation of this subsection.

C. This section shall not apply to:

1. Any person utilizing a seeing-eye dog or to any person physically handicapped to such a degree that they are incapable of compliance; or

2. Owners of animals participating in events for which a permit has been issued by the city clerk. (Ord. No. 4544, § 1, 1-22-24)

6.08.150 Housing or exhibiting animals.

Persons keeping or maintaining any livestock, birds or nonhuman primates in accordance with Section 6.08.020 of this chapter shall keep the same under clean and sanitary conditions. Facilities for housing and confinement shall be thoroughly cleaned at least once every twenty-four (24) hours or as otherwise directed by the city/county health officer. It shall be unlawful to permit refuse to remain uncovered or to permit any decaying food or any refuse of any kind to remain in the facility. The collection and disposition of refuse shall be in accordance with city ordinances. (Ord. No. 4544, § 1, 1-22-24)

6.08.170 Owning or keeping a biting animal prohibited; summary impoundment; penalty.

A. Any person who owns, possesses, keeps or exercises control over any animal shall take all reasonable steps to prevent the animal from biting or causing bodily injury to any person or domestic animal. This section shall not apply to bites inflicted by police service dogs in the line of duty, to owners bitten by their own dog, to bites inflicted on trespassers or to bites inflicted as a result of accidental provocation.

B. Any animal that bites, attacks, or causes any bodily injury to a human being or domestic animal may be summarily and immediately impounded for up to ten (10) days. Impoundment shall be at the discretion of the animal control officer or police officer who responded to the incident and who is trained in animal enforcement. The owner shall be liable for paying the costs of impoundment. Any person failing to pay the required impoundment costs shall be guilty of a misdemeanor as provided by subsection (D) of this section. Any owner whose animal is impounded shall be afforded an opportunity for a municipal court hearing within not more than ten (10) days of impoundment upon proper application by the owner to the municipal court. Prior to court determination on the animal's disposition, the animal shall be assessed to determine if it is rabid, dangerous, phys-

ically sound, or may otherwise pose any threat to the public health, safety and welfare. Assessment shall be at the owner's expense.

C. Any owner failing to claim their impounded animal within forty-eight (48) hours of receiving notice in accordance with Section 6.20.020 of this title shall be deemed to have abandoned the animal. Any animal deemed abandoned under this subsection shall become property of the animal shelter and available for adoption to a suitable home or by order of the municipal court, the animal shall be euthanized. Owners of reclaimed animals shall be responsible for paying any applicable reclamation fee charged by the animal shelter.

D. Any person who violates this section shall be issued a must appear citation to municipal court and upon conviction, shall be guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00). (Ord. No. 4544, § 1, 1-22-24)

6.08.180 Feeding seagulls, geese and ducks prohibited.

A. No person may feed, provide or give food or any other edible item to any seagull, goose, or duck, or to any gaggle of geese, or flock of seagulls, or ducks within the city limits.

B. Any person who violates this section shall be guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars ($750.00).

C. In lieu of a citation for a violation of this section, an animal control officer or police officer may issue one (1) written warning to any person who has not previously been convicted of violating this section.

D. No more than one citation alleging a violation of this section may be issued to any one person in any twenty-four (24) hour period. (Ord. No. 4633, § 2, 7-28-25; Ord. No. 4544, § 1, 1-22-24)

6.08.190 Community cat initiative.

A. The city of Cheyenne recognizes the need for innovation in addressing the issues presented by community cats. To that end, it recognizes that trap-neuter-return is the only effective and humane method to manage and reduce the population of community cats. Community cat caregivers, animal welfare organizations, local veterinarians, animal control officers and other city staff shall be authorized to carry out trap-neuter-return. To qualify as a community cat under this section, each cat shall be ear tipped, altered and have received at least one vaccination against rabies. This section shall not apply to pet cats.

B. In accordance with the community cat initiative created by this section, the following actions shall be permitted in Cheyenne in conjunction with trap-neuter-return:

1. Trapping, for the sole purpose of altering, vaccinating for rabies and ear-tipping community cats under the supervision of a licensed veterinarian;

2. After receiving any necessary veterinary care, an ear tipped community cat received by the animal shelter or other certified professional may be returned to the location where the cat was originally trapped; and

3. Community cat caregivers are authorized to reclaim impounded community cats without proof of ownership solely for the purpose of carrying out trap-neuter-return and/or returning ear tipped community cats to their original locations.

C. In caring for any community cats under this section, every community cat caregiver shall provide the cats with the proper quantity of food for the number of cats, and in appropriate food con-

tainers, and discard any food containers on a daily basis. A community cat caregiver may only feed community cats on the caregiver's property or on city, county, state or federal property with the appropriate government entity's written permission.

D. Community cats shall be exempt from any licensing, stray, abandonment and at-large provisions of this title.

E. A person who returns a community cat to its original location while conducting trap-neuter-return or shelter-neuter-return shall not be deemed to have abandoned the cat in violation of Section 6.08.010 of this chapter. (Ord. No. 4544, § 1, 1-22-24)

6.08.200 Keeping of bees.

All bees within the city are declared a nuisance except for apiaries kept in strict compliance with the Wyoming Agriculture Act, W.S. 11-7-130 through 11-7-407, as amended. Any person keeping bees within the city shall provide certification of compliance with the Wyoming Agriculture Act to the city compliance department upon request. If certification is not provided, the city compliance department may declare the presence of bees as a nuisance and require the abatement thereof. (Ord. No. 4544, § 1, 1-22-24)

Chapter 6.12

RABIES CERTIFICATION

Sections:

6.12.020 Annual rabies tag; rabies vaccination certificate; renewal of rabies tags and rabies vaccination certificates.

6.12.030 Record.

6.12.020 Annual rabies tag; rabies vaccination certificate; renewal of rabies tags and rabies vaccination certificates.

A. Rabies Tag.

1. The rabies tag issued by a veterinarian at the time of rabies vaccination shall be valid for one year from the date of vaccination and shall serve as proof of current rabies vaccination. Each pet owner shall obtain a current rabies tag annually, from the date of last vaccination, regardless of whether the most recent vaccination was a one-year or three-year vaccination.

2. The rabies tag shall be displayed on a collar, harness or tether attached to the pet. No person, other than the owner, an animal control officer or animal shelter staff shall remove the collar, harness, tether or rabies tag from a pet. The rabies tag shall only be valid for the animal for which it was issued.

B. Rabies Vaccination Certificate.

1. The rabies vaccination certificate received at the time a pet is vaccinated shall constitute proof of vaccination should the current rabies tag be lost. The rabies vaccination certificate shall allow for the re-issuance of a lost or destroyed tag without re-vaccination and shall constitute proof and viability of three-year vaccinations for the issuance of annual rabies tag.

2. New rabies vaccination certificates shall only be issued when a vaccination is administered or when a rabies vaccination certificate is lost or destroyed, in which case the owner shall have the pet re-vaccinated or return to the original vaccinating veterinarian for a replacement certificate.

C. Renewal of Annual Rabies Tags and Rabies Vaccination Certificates. If a pet's most recent rabies vaccination was a one-year vaccination the pet shall be re-vaccinated in order to obtain the following year's rabies tag and a new rabies vaccination certificate. If a pet's most recent rabies vaccination was a three-year vaccination, the owner shall provide the most recent vaccination certificate indicating that the three-year vaccination was administered and that the vaccination has not less than one (1) year of viability remaining. When a three-year vaccination is renewed without a vaccination, only a new rabies tag shall be issued. To renew a rabies tag for a still viable three-year vaccination, the owner shall either return to the veterinarian who administered the most recent vaccination or employ another veterinarian with whom the owner has established a client/doctor relationship. (Ord. No. 4544, § 1, 1-22-24)

6.12.030 Record.

The animal control authority shall maintain a public record of all pets that have been vaccinated in accordance with this title. (Ord. No. 4544, § 1, 1-22-24)

Chapter 6.16

RABIES CONTROL

Sections:

6.16.010	**Exemptions.**
6.16.020	**Rabies vaccination required.**
6.16.030	**Reporting animal bites; rabies quarantine.**
6.16.040	**Euthanasia and disposal procedures.**
6.16.050	**Quarantine; restrictions.**

6.16.010 Exemptions.

A. Hospitals, clinics and other premises operated by a local veterinarian for animal care and treatment are exempt from the provisions of this title pertaining to rabies control, except where expressly stated otherwise.

B. A letter of exemption from vaccination may be submitted in lieu of certification if a medical reason exists that precludes vaccination of a pet. Qualifying letters shall be in the form of a written statement, signed by a licensed veterinarian, that includes a description of the pet and the medical reason that precludes vaccination. If the medical reason is temporary, the letter shall indicate a time of expiration of the exemption. A pet exempted under this subsection shall be considered unvaccinated for the purposes of Section 6.16.030 of this chapter in the case of an exempted pet's exposure to a suspected or confirmed rabid animal. (Ord. No. 4544, § 1, 1-22-24)

6.16.020 Rabies vaccination required.

A. All pets four months of age or older shall be vaccinated against rabies. All pets vaccinated for the first time in accordance with this section shall receive a booster vaccination one year after the first vaccination. Beginning with, and including, the booster vaccination, all pets shall be vaccinated, at a minimum, once every three years. The pet owner shall have the discretion as to whether to vaccinate for rabies every year or every three years. Notwithstanding, it is recommended that owners, in consultation with their veterinarians, decide upon an individualized vaccination schedule taking into consideration the pet's health, lifestyle and risk of exposure.

B. If any pet does not have a current rabies tag affixed to its collar, harness or tether, there shall be a rebuttable presumption that the pet's owner failed to have their pet vaccinated as required under this section. (Ord. No. 4544, § 1, 1-22-24)

6.16.030 Reporting animal bites; rabies quarantine.

A. Any person who knows that an animal has bitten a human being shall immediately report the incident to the animal control authority or police department, together with the name and address of the person bitten, if known.

B. If an animal is suspected of having rabies or if an animal has bitten a person, the animal shall be confined for a period of not less than ten (10) days by means of a tether or cage at the animal shelter, veterinary hospital or at a location approved by the animal control authority, city/county health officer or their designee, or euthanized with the animal's corpse submitted to an approved laboratory for rabies analysis. Only rabies vaccinated personnel or previously exposed animals, owners or family members shall be permitted to interact with the quarantined animal. Notwithstanding, animal shelter staff shall not be required to be vaccinated when the shelter is otherwise being operated in accordance with best industry practices.

C. No animal held for observation on suspicion of rabies shall be released until the observation period is over. Upon proof of current rabies vaccination, the animal may be released into quarantine at the owner's residence at the discretion of the animal control authority.

D. If an animal has been bitten by another animal suspected of having rabies, the owner of the bitten animal shall report the incident to the animal control authority or the police department.

E. The animal control authority may remove an animal suspected of rabies or of being exposed to rabies from the owner's premises to a veterinary hospital for observation during the standard incubation period established by the State Health Department for the particular species of animal. The owner shall bear the expense of removal, which shall be paid by the owner before the animal's removal. Upon proof of previous vaccination, within the time limits generally accepted in the field of veterinary medicine and upon the approval of the animal control authority, re-vaccination and restraint of the animal shall be sufficient. Notwithstanding, the owner may elect to have the animal euthanized. (Ord. No. 4544, § 1, 1-22-24)

6.16.040 Euthanasia and disposal procedures.

A. The following procedures shall be followed if an animal is found to be rabid or if it cannot be established whether the animal has rabies:

1. If a standard incubation period has not been established by the Wyoming department of health for the particular species of animal being placed under observation, the animal shall be euthanized. If the animal was involved with another animal or human being, a necropsy shall be performed by a certified laboratory to determine rabies contamination;

2. If rabies is ascertained in any animal, the animal shall be euthanized. No person shall euthanize or cause to be euthanized any rabid animal suspected of having been exposed to rabies, or any animal biting a human being, except as provided herein, nor remove the animal from the city limits without written permission from the animal control authority;

3. When rabies is diagnosed in an animal under quarantine, or when an animal dies or is euthanized while under observation for suspected rabies, the animal control authority shall immediately send the head of the animal to the Wyoming state veterinary laboratory for pathological examination. The animal control authority shall also notify the proper public health officer of reports of human contacts and the diagnosis;

4. The carcass of any dead animal exposed to rabies shall, upon demand, be surrendered to the animal control authority; and

5. Upon demand of the animal control authority, an owner shall surrender any animal that has bitten a human being or that is suspected of having been exposed to rabies for supervised quarantine, the expense of which shall be borne by the owner. The animal may be reclaimed by the owner if it is adjudged free of rabies and upon payment of any applicable fees. (Ord. No. 4544, § 1, 1-22-24)

6.16.050 Quarantine; restrictions.

A. If an animal under quarantine or observation is positively diagnosed with rabies, the animal control authority may order a quarantine of all animals located in such geographic area within the city deemed necessary for a period of not more than sixty (60) days. During the quarantine period no animal shall be taken or permitted to be at large on any street or any public place within the quarantined area or taken or shipped from or into the quarantine area without permission of the animal control authority. If additional cases of rabies occur during the quarantine period, the length of the quarantine may be extended as determined by the animal control authority.

B. During the quarantine period and as long afterward as deemed necessary to prevent the spread of rabies, the animal control authority may require that all animals three months of age or older within the quarantine area be vaccinated against rabies. All vaccinated animals shall be kept under restraint for thirty (30) days after vaccination. During the quarantine period, the animal control authority is authorized to provide for a program of mass immunization by the establishment of temporary emergency canine rabies vaccination clinics.

C. No animal that has been impounded by reason of the animal being a stray and unclaimed by an owner may be adopted from the animal shelter during the time that the animal is subject to a rabies quarantine, except by special authorization of the animal control authority.

D. Licensed veterinarians shall have the affirmative duty to report any animal suspected of contracting rabies to the animal control authority. (Ord. No. 4544, § 1, 1-22-24)

Chapter 6.20

IMPOUNDMENT

Sections:

6.20.010	**Designation of animal shelter.**
6.20.020	**Animal impoundment.**
6.20.030	**Release of impounded animals.**
6.20.040	**Disposition of unredeemed animals.**
6.20.050	**Alteration.**

6.20.010 Designation of animal shelter.

By resolution, contract or other agreement, the governing body may designate or operate animal shelter facilities for the holding of animals and may enter into one or more cooperative agreements with other jurisdictions for the operation of animal shelter facilities. All animal shelter facilities designated or operated in accordance with this section shall be exempt from the requirements of this title to the extent that such requirements would otherwise limit the proper use, maintenance or operation of such facilities for animal shelter or control purposes. (Ord. No. 4544, § 1, 1-22-24)

6.20.020 Animal impoundment.

A. Any animal that is at large, maltreated, dangerous or that constitutes a public nuisance may be taken by animal control authorities and impounded in an animal shelter or confined in a humane manner in accordance with the Association of Shelter Veterinarians guidelines for standards of care in animal shelters. Animals that are at large and that are not maltreated, rabid or dangerous and which are wearing current rabies tags or have another reliable means of identifying the animal's purported owner may be returned to the owner upon proof of ownership and payment of any associated fees. Community cats shall not be impounded for only being at large.

B. Impounded animals that are seriously injured or ill and which have no current rabies tag may be euthanized.

C. If an animal is seriously injured or ill and is wearing a current rabies identification tag or another means of identifying the pet's purported owner, the animal control authority shall make a diligent and reasonable effort to locate and inform the owner of the animal. If the owner cannot be located, the animal may, upon recommendation of a veterinarian, be euthanized.

D. Notice of impoundment of an animal wearing a current rabies tag or other identification shall be provided or attempted to be provided to the owner of the animal by the animal control authority within thirty-six (36) hours of impoundment. Notice shall be provided either by telephone or in person at the address noted on the rabies or other associated owner identification documentation. When notice cannot be made to an owner within thirty-six (36) hours of impoundment, or when the animal is unidentified, written notice by the animal control authority shall be posted at the animal shelter within twelve (12) hours of impoundment, which notice shall provide a summary description of the animal held.

E. Any animal for which the owner is not identified and that is not claimed within three calendar days of impoundment shall become the property of the animal shelter. Any animal for which the owner has been identified and which has not been claimed within five calendar days shall become the property of the animal shelter. This section shall not apply to any cat under the age of eight weeks old and in the custody of an animal shelter. Any cat under the age of eight weeks old and in the custody of an animal shelter shall be deemed abandoned and the property of the animal shelter. (Ord. No. 4544, § 1, 1-22-24)

6.20.030 Release of impounded animals.

A. Before an owner may reclaim an impounded animal from an animal shelter, the owner shall pay any fees or other charges imposed by the shelter.

B. Any owner reclaiming an impounded animal for which the owner does not have a current rabies tag shall prior to the animal's release submit proof of current rabies vaccination certificate for

the animal issued by a licensed veterinarian. In lieu of a vaccination certificate, the owner may remit to the animal shelter a deposit of twenty-five dollars ($25.00), which deposit shall be refunded upon the owner submitting acceptable proof, within seventy-two (72) hours of vaccination and license. The owner of the reclaimed animal shall be responsible for the cost of any and all vaccinations. Failure to comply may result in re-impoundment of the animal, forfeiture of the deposit or disposition of the animal in accordance with Section 6.20.040 of this chapter.

C. For the purposes of reclaiming an impounded animal from the animal shelter, ownership of the animal shall be established through application of the policies specified by the shelter, which policies shall take into account whether the purported owner possesses registration records, microchip documentation, adoption or purchase records, veterinarian records or pet insurance records for the impounded animal.

D. The owner of any reclaimed impounded animal may, in addition to any fees imposed by the animal shelter, be subject to penalty as provided by this title or the city code. (Ord. No. 4544, § 1, 1-22-24)

6.20.040 Disposition of unredeemed animals.

If an impounded animal is not claimed or redeemed from the animal shelter in the manner and time provided in this chapter, the animal shall become the property of the animal shelter and available for adoption in a suitable home or humanely euthanized. (Ord. No. 4544, § 1, 1-22-24)

6.20.050 Alteration.

A. Any dog or cat adopted from an animal shelter shall be altered. If a dog or cat is not altered at the time of adoption, the person adopting the dog or cat shall deposit with the animal shelter an amount as specified by the shelter, which amount shall be refunded upon submission of acceptable proof of alteration. To be eligible for the refund, the person adopting the dog or cat shall present the proof of alteration within sixty (60) days from adoption. Except as provided by subsection (B) of this section, any person adopting a dog or cat from the animal shelter who fails to submit proof of alteration as required under this subsection is guilty of a misdemeanor and punishable by a fine of not less than fifty dollars ($50.00).

B. The alteration requirement imposed under subsection (A) of this section shall be waived upon presentation of a certificate from a licensed veterinarian stating the animal is too young for alteration during the prescribed period. The certificate shall state the earliest time the animal may safely be sterilized, at which time the animal shall be altered. The adopter shall present proof of alteration to the adopting agency not more than thirty (30) days after the animal is altered. (Ord. No. 4544, § 1, 1-22-24)

Title 7

RESERVED

Title 8

HEALTH AND SAFETY

Chapters:

8.04	General Provisions
8.08	Alarm Systems
8.12	International Fire Code Adopted
8.16	Fire Protection Generally
8.20	Fireworks
8.24	Flammable and Combustible Liquids
8.28	Reserved
8.29	Reserved
8.32	Gasoline and Oil Dispensing Equipment
8.36	Hazardous and Radioactive Materials Transportation
8.40	Food and Food Service Establishments
8.44	Solid Waste
8.48	Rodent Control
8.52	Handbills
8.56	Noise Control
8.60	Nuisances
8.64	Smoking in Public Places
8.68	Camping on Public Property

Chapter 8.04

GENERAL PROVISIONS

Sections:

8.04.010 Purpose—Authority.

8.04.010 Purpose—Authority.

A. The purpose of this title is to provide for and regulate conditions which affect community health and sanitary environments within the city.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103(a)(v) to adopt ordinances to promote the public health, safety and general welfare of its citizens.

C. The mayor, with the approval of the city council, is authorized to appoint a city health officer. The duties of the city health officer are to perform necessary inspections and enforce the provisions of this code relating to public health and perform all other duties that may be required of him or her by the mayor or city council.

D. The mayor shall require enforcement of all the provisions of this code and other laws pertaining to public health and contagious diseases. (2001 In-house code § 22-1)

Chapter 8.08

ALARM SYSTEMS

Sections:

8.08.010	**Definitions.**
8.08.020	**Permits required.**
8.08.025	**Current permittees.**
8.08.030	**Revocation or denial of permit.**
8.08.040	**Response to alarms—False alarms—Fees.**
8.08.050	**Automatic telephone dialing alarm systems.**
8.08.055	**Alarm companies; installers; users—Alarm cancellations.**
8.08.060	**Government alarm systems—Exemption.**
8.08.070	**Scope of police duty—Immunities preserved.**
8.08.080	**Violation—Penalty.**

8.08.010 Definitions.

The following definitions shall apply in the interpretation and enforcement of electrical alarm devices and false alarms pursuant to the applicable provisions of this chapter:

"Alarm administrator" means the chief of police, or his or her designee, who is authorized to administer, control and review false alarm reduction efforts and enforce the provisions of this chapter.

"Alarm installer" means any individual, partnership or other business entity engaged in the sale or installation of an alarm system.

"Alarm monitoring company" means any individual, partnership or other business entity engaged in monitoring of alarm systems, verification of the activation of an alarm system, or requesting police responses.

"Alarm system" means any assembly of equipment and devices or a single device to signal the presence of a hazard requiring immediate emergency attention and to which the police are expected to respond. Fire alarm systems and alarm systems which monitor temperature, humidity or any other condition not directly related to the detection of an unauthorized intrusion into premises or an attempted robbery at premises are specifically excluded from the provisions of these sections pertaining to electrical alarm devices.

"Automatic dialing device" or an "automatic telephone dialing alarm system" means any system which, upon being activated, automatically transmits by telephone or telephone line to the Cheyenne police department, a recorded message or code signal indicating a need for emergency response or a system which, upon activation, connects to an answering service whose function it is to automatically or electronically transmit to the Cheyenne police department a need for emergency response.

"Cancellation" or "cancelled" means any form of communication, following an alarm dispatch request, between a permittee, or an alarm monitoring company, and the police department by which the police department is notified that there is no existing emergency at the location of the alarm system and that further police response is not required.

"False alarm" means:

1. Activation of the alarm system accidentally by any owner, manager, employee or other person authorized to be on the premises where the alarm is located;

2. Any activation of the alarm system by an animal, bird, reptile or other creature on the premises where the alarm is located;

3. Any intentional activation of the alarm system for purposes of testing or demonstration without first notifying the police department;

4. Any activation of the alarm due to mechanical defect;

5. Any activation of the alarm in response to an illegal act which does not require an immediate and emergency police response, such as a disturbance or shoplifting, and where a telephone to summon police might reasonably be utilized;

6. "False alarm" does not include an act of nature, such as a tornado, extreme wind conditions, or an earthquake, which causes the activation of a burglar alarm signal.

"Permittee" means any individual or business entity which has been issued an alarm system permit pursuant to this chapter.

"Permittee's emergency contacts" means those persons designated by a permittee as an emergency contact pursuant to Section 8.08.020 of this chapter.

"Verification" means an attempt, made in the manner specified herein, to determine whether an alarm signal is a false alarm. Prior to sending an alarm dispatch request to the police department, an alarm monitoring company must place telephone calls to the permittee and to the permittee's emergency contacts until the alarm monitoring company is able to speak personally with the permittee or one of the permittee's emergency contacts. In the event an alarm monitoring company is unable, after speaking personally to the permittee or one of the permittee's emergency contacts, to determine whether an alarm signal is a false alarm, the alarm monitoring company may send an alarm dispatch request to the police department.

"Verify" means an attempt by the permittee or an alarm monitoring company, designated by a permittee for the alarm system location, to determine whether an alarm system signal is a false alarm. An alarm monitoring company must follow the verification procedure as defined in this chapter prior to sending an alarm dispatch request to the police department. (Ord. No. 3978, § 1, 6-10-13; 2001 In-house code § 35-13)

8.08.020 Permits required.

A. Every person who maintains an alarm system, to which the police department is expected to respond, either directly or indirectly, must obtain a valid alarm system permit for the alarm system within thirty (30) days of activation of the system. Applications must be completed and submitted to the office of city clerk together with a permit fee of one hundred dollars ($100.00). Upon issuance of a permit, an adhesive decal will be provided to the permittee which must be placed at the alarm system location in such a manner that the decal may be readily observed by responding police officers.

B. A permit will remain valid for so long as the permittee continues to own or occupy the property at which the alarm system has been installed or activated or until the permit has been revoked pursuant to this chapter. A permit issued pursuant to this chapter may not be assigned or transferred by a permittee. In the event a property at which an alarm system has been installed and activated is not owned or occupied by a permittee, the new owner or occupant must apply for a permit pursuant to the provisions of this chapter.

C. The police chief or his or her designated representative is authorized to issue alarm system permits. Permits shall be issued and valid when the applicant fulfills the following requirements:

1. Application form, with payment of permit fee, is submitted to the office of the city clerk with complete information as indicated on the form, including:

a. Emergency contact persons and their telephone numbers for placement on a list maintained by the police department of all persons who are currently authorized and responsible to enter the alarm system premises and deactivate the alarm;

b. Applicants will be required to provide a minimum of two emergency contact names and telephone numbers on the permit application and to provide the same emergency contact information to the permittee's alarm monitoring company. If the responding police officer cannot confirm that an alarm signal was caused by an attempted intrusion and if there are no signs of forced entry, the alarm signal will be counted as a false alarm.

D. Every permittee must, within five calendar days, notify the police department and the permittee's alarm monitoring company when the permittee's emergency contact information changes, when the alarm system is modified, disconnected or

replaced with a new system, or when there is any change in the status of the permittee's alarm monitoring company.

E. An application for an alarm permit will be processed in a timely manner. An application may be denied if the applicant has not complied with the provisions of this chapter, or if the application contains any false, misleading, fraudulent or false statement of a material fact.

F. Permits issued pursuant to this chapter may not be transferred or assigned.

G. Each permittee is responsible for timely payment of any fines or fees assessed for violation(s) of this chapter. (Ord. No. 3978, § 1, 6-10-13; Ord. 3715 § 1 (part), 2006; 2001 In-house code § 35-14)

8.08.025 Current permittees.

Every alarm system permit which was issued prior to September 1, 2013 and which remains in force and effect may be converted into an alarm system permit issued pursuant to this chapter upon payment of a fee of twenty-five dollars ($25.00) and the filing of an application as specified in Section 8.08.020 of this chapter.
(Ord. No. 3978, § 1, 6-10-13)

8.08.030 Revocation or denial of permit.

A. The chief of police may, after engaging the appropriate procedure provided for in Section 8.08.040 of this chapter, and after giving notice to the permittee, request the revocation of the permit for noncooperation of the permittee or for violations of this chapter.

B. The chief of police, or his or her designee, will provide written notice of the proposed revocation of an alarm system permit to the permittee. The written notice shall be served personally on the permittee or mailed to the permittee, by certified mail, return receipt requested, at the address shown in the alarm system permit application. The written notice shall contain a statement of the reason(s) for proposed revocation of the permit. The permittee shall have ten (10) business days from the date of receipt of the notice to file a written request for a hearing. The written request for hearing must be filed in the office of the city clerk. If no request for hearing is received within said time limit, the permit may be revoked by the chief of police. If the permittee files a timely request for hearing with respect to the proposed revocation of the permit, a hearing will be conducted in the manner specified in Section 8.08.030(C). No permit may be revoked during the pendency of a hearing which is requested pursuant to this section.

C. A panel of three members of the city council, selected by the president of the city council, shall conduct a hearing on the proposed revocation of the alarm system permit. The hearing shall be conducted no more than thirty (30) days after the date that the request for hearing was filed pursuant to Section 8.08.030(B), unless the permittee and the police chief agree in writing to extend the time limit for the hearing. A written notice of hearing shall be provided to the permittee and the chief of police at least ten (10) business days prior to the date of the hearing. At the time and place set for the hearing, the hearing panel established pursuant to this subsection shall give all parties a reasonable opportunity to be heard. The hearing panel may grant or deny the police chief's request for revocation of the alarm system permit through the issuance of a written decision.

1. Upon the revocation of an alarm system permit by the chief of police or the panel designated by the president of the city council, the alarm system location will be placed on a no response list and the police department will not respond to the alarm system location unless criminal activity at the location is verified by video surveillance or by someone on scene.

2. After the revocation of an alarm system permit, the permittee may request the reinstatement of the permit after presenting evidence of measures taken to prevent future false alarms or to correct other violations of this chapter. The police chief will review the information and determine whether to reinstate the permit. If a permit is reinstated, a reinstatement fee of fifty dollars ($50.00) will be required.

D. If an application for an alarm system permit is denied, the application fee shall be refunded to the applicant. An applicant may seek review of the denial of an application for an alarm system permit by filing a request for hearing within ten (10) business days after the denial of the application. A hearing shall thereafter be conducted in accordance with the hearing procedures of this section. (Ord. No. 3978, § 1, 6-10-13; 2001 In-house code § 35-15)

8.08.040 Response to alarms—False alarms—Fees.

A. The police department shall respond to the activation of all alarm systems which terminate directly or indirectly at the police department and for which a valid permit is in effect.

B. It is unlawful for any permit holder to test or demonstrate any alarm system without first notifying the police department.

C. The police department will respond to two false burglary or intruder alarms within a calendar year without imposing an administrative response fee upon the permittee. Upon responding to the second false alarm at an alarm system location, the police chief or alarm administrator will issue a letter informing the permittee of the two responses and requesting that corrective measures be taken. The permittee must respond in writing to the police chief or alarm administrator. The written response must explain the reasons or circumstances for the false alarms and must describe the corrective measures which will be taken to avoid future false alarms. The failure of the permittee to respond in writing may result in the initiation of permit revocation procedures pursuant to Section 8.08.030 of this chapter.

1. Upon a third false alarm response, the permittee may be subject to a fee of one hundred dollars ($100.00).

2. Upon a fourth false alarm response, the permittee may be subject to a fee of two hundred dollars ($200.00).

3. Upon a fifth and subsequent false alarm response, the permittee may be subject to a fee of four hundred dollars ($400.00) and permit revocation procedures may be initiated pursuant to Section 8.08.030 of this chapter.

4. The chief of police may waive the administrative response fee based upon cooperative measures taken by the permittee to reduce the number of false alarms.

D. The police department will respond to panic, duress, and hold-up alarms which indicate the need for an immediate emergency response to the alarm system location. Permittees who have installed and activated these types of alarms are responsible for ensuring they are being used properly and may be subject to the following administrative response fees:

1. Upon a third false alarm response, the permittee may be subject to a fee of one hundred dollars ($100.00).

2. Upon a fourth false alarm response, the permittee may be subject to a fee of two hundred dollars ($200.00).

3. Upon a fifth and subsequent false alarm response, the permittee may be subject to a fee of four hundred dollars ($400.00) and permit revocation procedures may be initiated pursuant to Section 8.08.030 of this chapter.

4. The chief of police may waive the administrative response fee based upon cooperative measures taken by the permittee to reduce the number of false alarms. (Ord. No. 3978, § 1, 6-10-13; Ord. No. 3845, § 1, 6-8-09; Ord. 3715 § 1 (part), 2006; 2001 In-house code § 35-16)

8.08.050 Automatic telephone dialing alarm systems.

A. It is unlawful for any person to sell, offer for sale, install, maintain, lease, operate or assist in the operation of an automatic telephone dialing system over any telephone lines exclusively used by the public to directly request emergency service from the Cheyenne police department.

B. The chief of police, or his or her designee, upon knowledge of an unlawful maintenance of an automatic telephone dialing alarm system will, in writing, order the owner, operator or lessee to

disconnect and cease operation of the system within seventy-two (72) hours of receipt of the order. (2001 In-house code § 35-17)

8.08.055 Alarm companies; installers; users—Alarm cancellations.

A. Each alarm monitoring company responding to the activation of an alarm within the city limits shall, before requesting police dispatch, engage in the verification procedure defined in Section 8.08.010 of this chapter to attempt to contact a person with access to the alarm system location. If the alarm monitoring company cannot verify that the alarm is a false alarm, after engaging in the verification procedure, it may request police dispatch to the alarm system location. The police department will not respond to an alarm dispatch request received from an alarm monitoring company if the alarm monitoring company has not engaged in the verification procedure defined in Section 8.08.010 of this chapter unless criminal activity at the location is verified by video surveillance or by someone on scene.

1. Alarm monitoring companies will not request police dispatch services within seven calendar days after installation of a new alarm system unless criminal activity at the alarm system location is verified by video surveillance or by someone on scene.

2. Hold-up alarms, panic alarms and duress alarms will be handled as high priority calls by the police department. In these instances, the alarm monitoring company is not required to engage in the verification procedure defined in Section 8.08.010 of this chapter prior to requesting police dispatch.

B. Each alarm monitoring company and installer shall notify its customers of the requirement to obtain an alarm permit from the city and permit fee amount prior to finalizing any sales or service agreement for an alarm system.

C. Alarm permittees and users:

1. Each permittee and each person who installs or activates an alarm system is responsible for the proper maintenance and operation of the alarm system in a manner which will prevent false alarms from occurring. Maintenance includes, but is not limited to, inspecting, repairing and replacing sensors and alarm system components to ensure that they are in proper locations and in proper working order.

2. Activation of an alarm system for any reason other than its intended purpose is prohibited.

3. Each permittee or person who installs or activates an alarm system will train emergency contact persons designated by the permittee in the proper use of the alarm system and ensure that such persons have access to the alarm system location.

D. Alarm Police Dispatch Request Cancellations. An alarm dispatch request call may be cancelled by the alarm monitoring company that generated the initial call for service if notification of cancellation is made within three minutes after police officers are dispatched to the alarm system location and before officers arrive on scene.
(Ord. No. 3978, § 1, 6-10-13)

8.08.060 Government alarm systems—Exemption.

This chapter shall not apply to agencies or instrumentalities of the United States, the state of Wyoming, the county of Laramie, the city of Cheyenne or Laramie County School District No. 1.
(Ord. No. 3978, § 1, 6-10-13)

8.08.070 Scope of police duty—Immunities preserved.

The issuance of an alarm permit by the city of Cheyenne does not guarantee that the police department will respond to an alarm system location. The police department will make every effort to respond in accordance with its standard dispatch priorities. Neither the city of Cheyenne, the Cheyenne police department nor any of their officers, employees or agents, may be held liable for any loss, damage or injury which results from the police department's response or non-response to an alarm dispatch request.
(Ord. No. 3978, § 1, 6-10-13)

8.08.080 Violation—Penalty.

Any person violating the provisions of this chapter will be deemed guilty of a misdemeanor, punishable pursuant to the general penalty provision of the city code. (Ord. No. 3978, § 1, 6-10-13; 2001 In-house code § 35-18)

Editor's note—Ord. No. 3978, § 1, adopted June 10, 2013, renumbered § 8.08.060 as § 8.08.080.

Chapter 8.12

INTERNATIONAL FIRE CODE ADOPTED

Sections:

8.12.010	**Purpose—Authority—General provisions.**
8.12.020	**International Fire Code—Adopted.**
8.12.030	**Amendments.**
8.12.040	**Reserved.**

8.12.010 Purpose—Authority—General provisions.

The purpose of this chapter is to adopt the International Fire Code, 2024 Edition, as an enforceable regulation governing the safeguarding of life and property from fire and explosion hazards arising from the storage, handling and use of hazardous substances, materials, and devices, and from conditions hazardous to life or property in the occupancy of buildings and premises. (Ord. No. 4614, § 1, 2-24-25; Ord. No. 4487, § 1, 1-9-23; Ord. No. 4255, § 2, 12-20-18; Ord. No. 4141, § 2, 6-27-16; Ord. No. 4004, § 2, 11-12-13; Ord. No. 3865, § 1, 6-22-09; Ord. 3622 § 2 (part), 2005)

8.12.020 International Fire Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Fire Code, 2024 Edition, as published by the International Code Council, Inc., including Appendices A through N. (Ord. No. 4614, § 1, 2-24-25; Ord. No. 4487, § 1, 1-9-23; Ord. No. 4255, § 2, 12-20-18; Ord. No. 4141, § 2, 6-27-16; Ord. No. 4004, § 2, 11-12-13; Ord. No. 3865, § 1, 6-22-09; Ord. 3622 § 2 (part), 2005)

8.12.030 Amendments.

The International Fire Code adopted in Section 8.12.020 above is amended as follows:

A. Section 101.1. insert: The City of Cheyenne; for [NAME OF JURISDICTION].

B. Section 103.1 insert: Cheyenne Fire Rescue; for [NAME OF DEPARTMENT].

C. Section 113.4 insert: misdemeanor, for [SPECIFY OFFENSE]; insert seven hundred fifty dollars ($750.00) and costs, for [AMOUNT]; and insert period not to exceed one hundred eighty (180) days, for [NUMBER OF DAYS].

D. Section 606.2 is amended by the addition of one exception to read as follows:

5. Commercial facilities that utilize residential stovetops need not provide a Type I or Type II hood, subject to all of the following:

a. The occupancy is not subject to Section 904.15 and does not meet the definition of a "food service establishment" as provided in Section 202 defining the term "Commercial Cooking Appliances";

b. The equipment is used for warming or limited cooking only, no frying is permitted and a permanent sign is posted stating "Warming only - No Cooking Creating Grease Laden Vapors Permitted";

c. A 2A-10BC fire extinguisher is placed in the kitchen; and

d. Approval of the exception is provided, in writing, by the fire code official.

E. Section 1205.2.1.1 is amended to read as follows:

> Pathways to ridge. Not fewer than two 36-inch-wide (914 mm) pathways on separate roof planes, from the lowest roof edge to ridge, shall be provided on all buildings. Not fewer than one pathway shall be provided on the street or driveway side of the roof. For each roof plane with a photovoltaic array, not fewer than one 36-inch-wide (914 mm) pathway from lowest roof edge to ridge shall be provided on the same roof plane as the photovoltaic array, on an adjacent roof plane or straddling the same and adjacent roof planes. If a required roof-edge-to-ridge pathway cannot be laddered allowing clear and unobstructed access to such pathway, addi-

tional clear roof space shall be provided adjacent to and abutting the roof-edge-to-ridge pathway providing a minimum 36-inch-wide by 36-inch-deep step-off area that then provides clear access to the required roof-edge-to-ridge pathway.

Applicability. The pathways to ridge requirements specified in this section shall not apply to: 1) Solar systems in existence or permitted for installation before March 1, 2025; 2) The removal and reinstallation of solar panels for the purpose of repair; or 3) The replacement of existing solar panels or for the repair or replacement of the existing roof covering. Notwithstanding, if the existing structure or solar system is damaged, requiring the design and installation of a new solar system, the new solar system shall meet the pathways to ridge requirements.

F. Section 5504.3.1.1.3 is amended to read as follows:

Location. No above-ground tank or container storing cryogenic fluids shall be located within any diked area containing other hazardous materials. The storage of flammable cryogenic fluids in any above-ground tank or container shall be governed in accordance with Section 8.24.020 of the city code.

G. Section 5608.10 is amended to read as follows:

Disposal. Any shells found during the inspection required in Section 5608.9 shall not be handled until at least fifteen (15) minutes have elapsed from the time the shells were fired. The disposal instructions of the manufacturer as provided by the fireworks supplier shall be followed in disposing of the fireworks in accordance with Section 5604.10.

H. Section 5704.2.9.6.1 is amended to read as follows:

Locations where above-ground tanks and containers are prohibited. The storage of Class I or Class II liquids in any above-ground tank or container shall be governed in accordance with Section 8.24.020 of the city code.

I. Section 5706.2.4.4 is amended to read as follows:

Locations where above-ground tanks and containers are prohibited. The storage of Class I or Class II liquids in any above-ground tank or container shall be governed in accordance with Section 8.24.020.

J. Section 5806.2 is amended to read as follows:

Locations where above-ground tanks are prohibited. The storage of flammable cryogenic fluids in any above-ground tank or container shall be governed in accordance with Section 8.24.020 of the city code.

K. Section 6104.1 is amended to read as follows:

General. The storage and handling of LP-gas, and the installation and maintenance of related equipment, shall comply with NFPA 58 and as provided in this chapter, only with the approval of, and under conditions established by, the fire code official.

L. Section 6104.2 is amended to read as follows:

Maximum capacity within established limits. The storage of liquified petroleum gas in residential areas shall be limited to a water capacity of 125 gallons. (Ord. No. 4614, § 1, 2-24-25; Ord. No. 4487, § 1, 1-9-23; Ord. No. 4255, § 2, 12-20-18; Ord. No. 4141, § 2, 6-27-16; Ord. No. 4004, § 2, 11-12-13; Ord. No. 3865, § 1, 6-22-09; Ord. 3622 § 2 (part), 2005)

8.12.040 Reserved.

Editor's note—Ord. No. 3865, § 1, adopted June 22, 2009, repealed § 8.12.040, which pertained to violations—penalty (see Section 8.12.030(D) and (E)) and derived from Ord. No. 3622, § 2 (part), 2005.

Chapter 8.16

FIRE PROTECTION GENERALLY

Sections:

8.16.010 **Purpose—Authority—General provisions.**

8.16.020 **False alarms prohibited.**

8.16.030 **Reserved.**

8.16.010 Purpose—Authority—General provisions.

A. The purpose of this chapter and Chapters 8.20 through 8.36 is to provide for the health, safety and welfare of the public in areas of fire prevention and protection and allowed by law.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-101(a)(xxiii) to establish and adopt regulations to assist with fire prevention and protection practices within the city. Wyo. Stat. Sections 15-5-101, et seq., creates the city's fire department civil service commission, whose rules and regulations are on file in the office of city clerk. (2001 In-house code § 17-1)

8.16.020 False alarms prohibited.

No person shall send in a false alarm of fire, whether verbal, by telephone or through a fire alarm box, as provided in Wyo. Stat. Section 6-5-210. (2001 In-house code § 17-2)

8.16.030 Reserved.

Editor's note—Ord. No. 4004, § 3, approved November 12, 2013, repealed § 8.16.030, which pertained to written warning required on unvented fuel-burning room heaters and derived from the 2001 In-house code § 17-3)

Chapter 8.20

FIREWORKS

Sections:

8.20.010 Fireworks defined.

8.20.020 Possession, storage, use and sales, generally.

8.20.030 Sale at wholesale or for commercial purposes.

8.20.040 Manufacture.

8.20.050 Public displays—Licensing conditions.

8.20.060 Display and sale to be conducted in safe manner.

8.20.070 Disposition of unused fireworks.

8.20.080 Violations—Penalty.

8.20.010 Fireworks defined.

The following definitions shall apply in the interpretation and enforcement of the following provisions relative to fireworks:

"Fireworks" means, and includes, any article, device or substance prepared for the primary purpose of producing a visual or auditory sensation by combustion, explosion, deflagration or detonation, including, but not limited to, the following articles and devices commonly known and used as fireworks: Toy cannons or toy canes in which explosives are used, blank cartridges, firecrackers, torpedoes, skyrockets, roman candles, daygo bombs, and other devices of like construction; but shall not include: Auto flares, sparklers, toy cap pistols and toy caps each of which does not contain more than twenty-five hundredths of a grain of explosive material. (2001 In-house code § 17-34)

8.20.020 Possession, storage, use and sales, generally.

It is unlawful for any person to possess, store, offer for sale, expose for sale, sell at retail, use, or explode any fireworks within the city limits. (2001 In-house code § 17-35)

8.20.030 Sale at wholesale or for commercial purposes.

Nothing in the provisions of this chapter pertaining to fireworks shall be construed to prohibit any resident wholesaler, dealer or jobber to sell at wholesale fireworks not prohibited by this code; or the sale of any kind of fireworks, provided they are to be shipped directly out of state in accordance with the Interstate Commerce Commission regulations covering the transportation of explosives and other dangerous articles by motor, rail and water; or the use of fireworks by railroads or other transportation agencies for signal purposes or illumination, or the sale or use of blank cartridges for a show or theater, or for signal or ceremonial purposes in athletics or sports or for use by military organizations. (2001 In-house code § 17-36)

8.20.040 Manufacture.

The manufacture of fireworks is prohibited within the city. (2001 In-house code § 17-37)

8.20.050 Public displays—Licensing conditions.

A. Notwithstanding the provisions of Sections 8.20.010 and 8.20.020 of this chapter, a license may be granted for supervised public displays of fireworks by fair associations, amusement parks and other organizations or group of individuals. Licenses may be granted upon application to the city clerk after approval of the police and fire authorities and payment of the license fee in the amount of one hundred fifteen dollars ($115.00) per event or activity.

B. Application for a license must be made in writing at least ten (10) days in advance of the date of the display. Following issuance of a license, the sale, possession, use and distribution of fireworks for the display will be lawful for that purpose only. No license is transferable.

C. An applicant for a license shall file with the city clerk a certificate of commercial general liability insurance in a minimal amount of one million dollars ($1,000,000.00) per occurrence and

two million dollars ($2,000,000.00) aggregate or in an amount as required by the city risk manager or city attorney, indemnifying the public against damages sustained either to a person or persons or to property by reason of the licensed display, and arising from any acts of the licensee, his or her agents, employees or subcontractors. In addition if the display is on property owned by the city of Cheyenne, the certificate of insurance will list the city of Cheyenne as certificate holder and additional insured by endorsement.

D. Every display must be handled by a competent operator licensed or certified as to competency by the state fire marshal and shall be of such composition and character and be located, discharged or fired as in the opinion of the chief of the fire department, after proper inspection, and of the chief of police, that the display will not be hazardous to property or endanger any person. (Ord. No. 4005, § 2, 11-12-13; Ord. No. 3845, § 1, 6-8-09; Ord. 3715 § 1 (part), 2006; 2001 In-house code § 17-38)

8.20.060 Display and sale to be conducted in safe manner.

The sale, possession, use and distribution of fireworks of the types and for the purposes allowed shall be conducted so as to be reasonably safe to persons and property. (2001 In-house code § 17-39)

8.20.070 Disposition of unused fireworks.

Any fireworks that remain unfired after the display is concluded must be immediately disposed of in a safe manner. (2001 In-house code § 17-40)

8.20.080 Violations—Penalty.

The chief of police, or police officers, shall seize, take, remove or cause to be removed at the expense of the owner all stocks of fireworks offered or exposed for sale, stored, used or held in violation of these provisions pertaining to fireworks. (2001 In-house code § 17-41)

Chapter 8.24

FLAMMABLE AND COMBUSTIBLE LIQUIDS

Sections:

8.24.010 **Codes adopted by reference.**

8.24.020 **Above-ground tanks and containers in city limits.**

8.24.030 **Flammable and combustible liquid storage or equipment.**

8.24.040 **Transportation of flammable and combustible liquids.**

8.24.050 **Tight fill equipment.**

8.24.060 **Tank system tightness testing—Requirements.**

8.24.070 **Business licenses—Fees.**

8.24.080 **Discontinuance of use of flammable and combustible liquid tank(s).**

8.24.090 **Installation, servicing or removal of flammable and combustible storage equipment.**

8.24.100 **Storage tank installation—Permits and inspection.**

8.24.110 **Violations—Penalty.**

8.24.010 Codes adopted by reference.

Codes promulgated by the NFPA 1 Chapters 2, 3 and 13, National Fire Protection Association Pamphlet No. 30, National Fire Protection Association Pamphlet No. 385, and National Fire Protection Association Pamphlet No. 329, and their appendices and the latest edition of the International Fire Code as adopted pursuant to Cheyenne City Code, Chapter 8.12, are adopted and made a part of this chapter involving flammable and combustible liquids. (Ord. No. 4005, § 3, 11-12-13; 2001 In-house code § 17-9)

8.24.020 Above-ground tanks and containers in city limits.

A. The following above-ground tanks and containers may only be installed in the city with the written approval of, and subject to the conditions established by, the fire code official:

1. Any above-ground tank with a capacity of more than sixty (60) gallons that stores or is intended to store any Class I or Class II liquid; and

2. Any above-ground containers with a capacity of sixty (60) gallons or less that stores or is intended to store any Class I or Class II liquid.

B. An above-ground tank located in any refinery complex or bulk plant shall be in compliance with the NFPA 30 and the International Fire Code as adopted under Chapter 8.24, Title 8, of the city code. (Ord. No. 4615, § 1, 2-24-25; Ord. No. 4005, § 3, 11-12-13; 2001 In-house code § 17-10)

Editor's note—Ord. No. 4615, § 1, adopted Feb. 24, 2025, amended § 8.24.020 and in doing so changed the title of said section from "Aboveground tanks in city limits" to "Above-ground tanks and containers in city limits," as set out herein.

8.24.030 Flammable and combustible liquid storage or equipment.

No flammable and combustible liquid storage or flammable and combustible liquid equipment shall be allowed under or on any public street, sidewalk, alley or other public property. All storage or equipment installed in this city prior to the effective date of Ordinance No. 2256 are exempt from this requirement. However, existing flammable and combustible liquid storage or flammable and combustible equipment shall meet all other requirements of the city code. (2001 In-house code § 17-11)

8.24.040 Transportation of flammable and combustible liquids.

A. Design of tank vehicles and safety precautions when loading and unloading shall be according to the provisions in National Fire Protection Association Pamphlet No. 385, as adopted in Section 8.24.010.

B. No double bottom trailers will be used in conjunction with a tank truck or tractor semi-

trailer for delivery of flammable and combustible liquids in the city limits. A "double bottom trailer" shall be defined as either a truck or a tractor towing or hauling more than one tank containing flammable or combustible liquids. A tank truck or tractor semitrailer combination shall not exceed seventy-five (75) feet in total length for delivery of flammable and combustible liquids in the city limits. Tank trucks or tractor semitrailers for delivery of flammable and combustible liquids shall not exceed ten thousand (10,000) gallons and shall be compartmented not to exceed three thousand (3,000) gallons.

C. It is unlawful to keep, house or store any tank truck, tractor semitrailer or other vehicle equipped with delivery tanks containing any flammable and combustible liquid in areas other than those designated by the Cheyenne fire department, fire prevention bureau. (2001 In-house code § 17-12)

8.24.050 Tight fill equipment.

All flammable and combustible liquid storage tanks and flammable and combustible liquid trucks or tractors semitrailer combination shall have tight fill equipment for filling or draining flammable and combustible liquid storage tanks. All existing flammable and combustible liquid storage tanks, (except refineries) or vehicles equipped with delivery tanks shall meet the provisions of this section no later than one year from the effective date of city Ordinance No. 2256. (2001 In-house code § 17-13)

8.24.060 Tank system tightness testing—Requirements.

A. As proposed in National Fire Protection Association Pamphlet No. 329, a tank system tightness tester shall be used on any flammable or combustible liquid tank. This test shall be made by a licensed flammable or combustible liquids contractor only.

B. All underground flammable and combustible liquids tank or tanks and product lines installed in the city shall be tested by a tank system tightness tester approved by the fire department, either with the tank at full capacity or with the use of a nitrogen or inert gas system or its equivalent, as required in subsection A of this section. Installations after January 1, 1974 are not subject to subsection A of this section; provided, the fire department, fire prevention bureau, has witnessed tests and has approved installation.

C. The results of all required underground flammable and combustible liquid tank or tanks and product lines tests to be completed by January 1, 1987 shall be posted at the place of business with a copy furnished to the fire department, fire prevention bureau.

D. Every operator of any tank containing flammable or combustible liquids or related equipment shall maintain daily records of flammable and combustible liquids stock, as proposed in the current edition of American Petroleum Institute Recommended Practice No. 1621 entitled "Bulk Liquid Stock Control at Retail Outlets."

E. Every user of any tank containing any flammable combustible liquids or related equipment who notices a loss of product, or is suspicious of a loss, or notices the presence of water in any such tank or tanks, shall adhere to procedures from the National Fire Protection Association Pamphlet No. 329 and the recommended practices of liquid stock control outlined by the current edition of American Petroleum Institute Recommended Practice No. 1621. Any loss of product, or suspicion of a loss, or presence of water shall be reported immediately to the fire prevention bureau of the fire department. (Ord. No. 4005, § 3, 11-12-13; 2001 In-house code § 17-14)

8.24.070 Business licenses—Fees.

A. Gasoline Dealer—Retail. All persons engaged in the business of storing, selling and/or vending any flammable or combustible liquids must first obtain a business license from the city clerk's office as a gasoline dealer, retail. A license may be issued upon application on forms provided by the city clerk and payment of an annual nonrefund-

able fee in the amount of sixty-five dollars ($65.00). A certificate of inspection must be made within five years.

B. Gasoline Dealer—Wholesale. All persons engaged in the business of storing, selling and/or vending wholesale any flammable or combustible liquids must first obtain a business license from the city clerk's office as a gasoline dealer, wholesale. A license may be issued upon application on forms provided by the city clerk and payment of an annual nonrefundable fee in the amount of sixty-five dollars ($65.00) per bulk plant. A certificate of inspection must be made within five years.

C. Flammable and Combustible Liquids, Private (Commercial, Governmental, etc., Dealers Not Listed in Subsections A and B of this Section). All persons engaged in the business of storing, and/or dispensing flammable and combustible liquids must first obtain a business license from the city clerk's office as a flammable liquids user, private. A license may be issued upon application on forms provided by the city clerk and payment of an annual nonrefundable fee in the amount of sixty-five dollars ($65.00). A certificate of inspection must be made within five years.

D. Each license issued under subsections A, B and C of this section will set forth the maximum quantity of flammable and combustible liquid permitted on the premises and the maximum size of containers for such liquids. The license is valid only for the location designated in the license application and is effective for one year from the date of issuance.

E. General licensing provisions set forth in Chapter 5.04 apply to this type of this license.

F. It is the duty of the fire department administrative office to instigate procedures to suspend or revoke a license if any provisions of this chapter concerning flammable and combustible liquids are violated. (Ord. No. 3845, § 1, 6-8-09; 2001 In-house code § 17-15)

8.24.080 Discontinuance of use of flammable and combustible liquid tank(s).

A. Every owner, operator, or user of any tank which has been used for the storage of flammable or combustible liquids shall, upon temporary or permanent discontinuance of the use of any such tank or tanks, immediately notify the fire prevention bureau of the fire department in writing. Every removal and every disposal of any such tank or tanks will be witnessed by an officer from the fire prevention bureau of the fire department. Any such removal or disposal shall be in accordance with the provisions set forth in the standards of the National Fire Protection Association "Flammable and Combustible Liquids Code, Pamphlet No. 30" and the International Fire Code.

B. When Removal or disposal of any tank used for the storage of flammable or combustible liquids is required by the International Fire Code, the removal and disposal must be performed by a licensed flammable and combustible liquids contractor. Except that a qualified contractor, when supervised by a licensed flammable and combustible liquids contractor, may perform the removal of any such tank. When any tank used for the storage of flammable or combustible liquids is removed, all liquids that remain in the tank shall be removed prior to any excavation. (Ord. No. 4005, § 3, 11-12-13; 2001 In-house code § 17-16)

8.24.090 Installation, servicing or removal of flammable and combustible storage equipment.

A. No person shall install engage in the business of installation, servicing or removal of any flammable and combustible liquid equipment for which a license is required by Section 8.24.070, or any pump or other mechanical device connected, or any piping leading to or from flammable and combustible liquid storage equipment, unless a flammable and combustible liquids contractor's license for installing, servicing or removal of any flammable and combustible liquid equipment has been issued. The language "shall engage in the business of installation, servicing or removal of any flammable and combustible liquid equipment" does not mean minor maintenance such as replacement of nozzles, hoses, lights and drive belts normally done by the retail service station dealers or wholesale jobber.

B. Licenses required under this section are governed by the provisions of Chapter 5.44, Contractors. (2001 In-house code § 17-17)

8.24.100 Storage tank installation—Permits and inspection.

A. Any person, persons, firm, association, partnership, or corporation desiring to install any tank or related equipment for the storage of any flammable or combustible liquid as designated in this chapter either above or below ground must obtain a permit from the chief building official and pay the applicable fee as established by city code Section 15.08.030. The fee assessed will be for each storage tank. Application for storage tank permits must be accompanied by accurate plats or drawings showing the lot or tract of land, with the location, size and description of each tank, the layout of fill and vent pipes, the location and size of pump and specifications for the construction of each tank, its connections, fittings, openings, and safety appliances.

B. Installation of flammable and combustible liquid tanks shall include proper location, setting, all connections and piping appliances connected, and the final test of the completed system.

C. No tank or piping shall be buried or otherwise covered up until the tank has been air tested under the provisions in National Fire Protection Association Pamphlet No. 30 and the tank and any related piping and equipment have been inspected and approved by the chief building official and the fire prevention bureau of the fire department.

D. The chief building official or the fire prevention bureau of the fire department will require any flammable and combustible liquid equipment be uncovered, at the owner's expense, if repairs or replacement are necessary or if they have been covered unlawfully. (Ord. No. 4005, § 3, 11-12-13; 2001 In-house code § 17-18)

8.24.110 Violations—Penalty.

A. Any person violating any of the provisions of this chapter pertaining to flammable or combustible liquids, or who has not received a proper license or permit shall be issued a stop work order as directed by the chief building official pursuant to the most recently adopted version of the International Building Code.

B. Any person violating the provisions of this chapter, or causing the provisions of this chapter to be violated, will be guilty of a misdemeanor punishable pursuant to the general penalty provision provided for in Section 1.24.010 of city code. (Ord. No. 4005, § 3, 11-12-13; 2001 In-house code § 17-19)

Chapter 8.28

RESERVED*

*__Editor's note__—Ord. No. 4592, § 2, adopted Nov. 12, 2024, repealed Ch. 8.28, §§ 8.28.010—8.28.070, which pertained to portable fire extinguishers and hose station equipment and derived from 2001 In-house code §§ 17-20—17-26; Ord. 3715 § 1 (part), adopted in 2006; Ord. No. 3845, § 1, adopted June 8, 2009; Ord. No. 4005, § 4, adopted Nov. 12, 2013; and Ord. No. 4171, § 2, adopted April 10, 2017.

Chapter 8.29

RESERVED*

*Editor's note—Ord. No. 4592, § 2, adopted Nov. 12, 2024, repealed Ch. 8.29, §§ 8.29.010—8.29.060, which pertained to hood system cleaning companies and derived from Ord. No. 4364, § 1, 5-24-21.

Chapter 8.32

GASOLINE AND OIL DISPENSING EQUIPMENT

Sections:

8.32.010 **Label of approval.**

8.32.020 **Reserved.**

8.32.030 **Permit required.**

8.32.040 **Compliance.**

8.32.050 **Installation on curbs and sidewalks—Approval of city council required.**

8.32.060 **Installation on curbs and sidewalks—License required.**

8.32.070 **License revocation—Removal of dispensers and refund of fees.**

8.32.010 Label of approval.

All pumps or other mechanical measuring devices used for retailing or dispensing gasoline must bear the underwriters' label of approval. (2001 In-house code § 17-27)

8.32.020 Reserved.

Editor's note—Ord. No. 4005, § 5, approved November 12, 2013, repealed § 8.32.030, which pertained to protection of equipment and derived from the 2001 In-house code § 17-28.

8.32.030 Permit required.

A. No person shall install, operate or maintain within the city any gasoline filling appliance or oil dispenser tank or any similar appliance whatsoever without first obtaining a permit for such installation. Application for permits shall be filed with the city engineer. A permit fee of one dollar ($1.00) will be assessed for the installation of each appliance or dispenser.

B. Any permit issued will specify the location where such appliance or dispenser is to be installed and no deviation from the location can be made without approval by the governing body.

C. On permits issued for installation of gasoline dispensers outside of the property line, a report by the city engineer will be submitted to the city clerk, stating the number of appliances authorized. (2001 In-house code § 17-29)

8.32.040 Compliance.

No permit will be granted unless the proposed location and manner of installation are in compliance with this code, other city ordinances, requirements of the Fire Prevention Code and the standards of the National Fire Protection Association. (2001 In-house code § 17-30)

8.32.050 Installation on curbs and sidewalks—Approval of city council required.

Any person desiring to install any gasoline filling appliance or oil dispenser tank upon any sidewalk or curb or outside of any property line, the city engineer will present the application to the governing body for its approval. (2001 In-house code § 17-31)

8.32.060 Installation on curbs and sidewalks—License required.

No gasoline or oil filling appliance or other similar dispenser will be permitted to be or remain upon any sidewalk or curb or outside of any property line, unless a business license is obtained from the city clerk pursuant to Section 8.24.070. A license will be in addition to the permit required for installation and maintenance per Section 8.32.030. Licenses issued will be in accordance with the provisions of Chapter 5.04. (2001 In-house code § 17-32)

8.32.070 License revocation—Removal of dispensers and refund of fees.

A. In the event that any installation mentioned in Section 8.32.050 shall be found to interfere with the installation of any public utility or shall cause congestion of traffic or shall be undesirable for any other vital reason, the governing body may revoke the license covering such installation and demand the discontinuance of the use of such dispenser in the location named in the license.

B. In the event of such revocation of a license a refund shall be made to such licensee on the basis of seventy-five cents ($0.75) per month for each full month remaining between the date of revocation and the date of expiration of the license. (2001 In-house code § 17-33)

Chapter 8.36

HAZARDOUS AND RADIOACTIVE MATERIALS TRANSPORTATION

Sections:

8.36.010 Legislative intent.

8.36.020 Definitions.

8.36.030 Adoption of federal rules and regulations.

8.36.040 Restrictions.

8.36.050 Exemptions.

8.36.060 Operation of motor vehicles carrying hazardous and/or radioactive materials.

8.36.070 Reporting requirements.

8.36.080 Suspension of motor vehicle operations.

8.36.090 Discharging hazardous and/or radioactive materials.

8.36.100 Authority to inspect and direct disposition of certain motor vehicles.

8.36.110 Violations—Penalty.

8.36.010 Legislative intent.

In order to serve the public health, safety and general welfare, the transportation of hazardous and radioactive materials by motor vehicle within the city is prohibited except for the purpose of making pickups and/or deliveries within the city to the extent permitted by law. (2001 In-house code § 17-42)

8.36.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of the following provisions relative to hazardous and radioactive materials transportation:

"Hazardous materials" means any substance or material which pursuant to Wyoming Statutes Section 1-1-120(c)(ii) is identified as a hazardous material.

"Radioactive materials" means those materials as defined in 49 CFR (Code of Federal Regulations) 173.

"Transporter" means and includes the driver of a motor vehicle and their employer. (2001 In-house code § 17-43)

8.36.030 Adoption of federal rules and regulations.

The following portions of the Code of Federal Regulations are adopted and are in full force and effect within the city.

A. Code of Federal Regulations, Title 49, Parts 106, 107, 110, 171, 172, 173, 177, 178 and 180 (hereafter cited as 49 CFR 106, etc.) of the Department of Transportation Rules and Regulations, as from time to time amended, relating to packaging, marking, labeling, loading, placarding and transportation of hazardous materials, as such materials are defined therein;

B. Code of Federal Regulations, Title 49, Part 397 of the Federal Motor Carrier Safety Regulations (49 CFR 397), as from time to time amended, relating to the safe driving and parking of motor vehicles transporting hazardous to radioactive materials;

C. Code of Federal Regulations, Title 10, Part 71 of the Nuclear Regulatory Commission Regulations (10 CFR 71), as from time to time amended, relating to the packaging and transportation of radioactive materials. (2001 In-house code § 17-44)

8.36.040 Restrictions.

A. Operation Over Most-Direct Route Required—Compliance with Routing and Weight Limitations. Motor vehicles carrying hazardous and/or radioactive materials required to be placarded or marked under 49 CFR 172, as amended, which are making local pickups and/or deliveries must be operated over the safest and most direct route to and from the origination or destination point. Routes will not pass through residential areas unless there is no practical alternative. In all

instances, vehicles must comply with local truck routing and weight limitation restrictions and prohibitions.

B. Application for Exemption. If no practical alternative route exists, a transporter subject to the provisions of subsection C or D of this section may apply for an exemption pursuant to Section 8.36.050(B).

C. Transportation of Placarded or Marked Hazardous Materials. Hazardous materials required to be placarded or marked under 49 CFR 172, as amended, may not be transported by motor vehicle within the city by any person except for the purpose of making pickups and/or deliveries within the city unless such routing is consistent with the requirements set forth in 49 CFR 397.9.

D. Transportation of Radioactive Material. Radioactive materials subject to regulation under 10 CFR 71.5, as amended, may not be transported by motor vehicle within the city by any person except for the purpose of making pickups and/or deliveries within the city unless the routing is consistent with the requirements set forth in 49 CFR 177.825.

E. Transporters to Comply with Chapter. Transporters, when complying with the DOT regulations for repairs, rest and the like, or utilizing relay facilities, who enter the city for reasons other than pickups or deliveries must comply with the provisions of this chapter.

F. Weighing Transporters Making Deliveries to Industrial Facilities. All transporters loading or making deliveries at industrial producing facilities not within the actual city limits may be weighed at the transporter's weighing facility within the city limits.

G. Posting of Signs. Signs shall be posted on all major streets leading into the city at or near the city limits giving notice of the restrictions on the transportation of hazardous and radioactive materials by motor vehicle within the city imposed by subsections A and B of this section. (2001 In-house code § 17-45)

8.36.050 Exemptions.

A. The provisions of this chapter do not apply to farm machinery which may be exempt from registration requirements or agricultural distribution equipment attached to or conveyed by farm machinery, except for the provisions relating to the placarding of loads, spills and operation of motor vehicles as set out in Section 8.36.060, and except when vehicles are used in any commercial business other than agricultural.

B. Where no practical alternative exists to the transporter's preferred route through the city, application for an exemption from the provisions of subsections A, C and D of Section 8.36.040 may be made to the chief of police. The burden of proving that no practical alternative exists is on the applicant. Operating convenience is not a basis for determining there is no practical alternative. Exemptions may be requested on a single trip or annual basis. Applications for exemptions shall be acted on by the chief of police, the fire chief or the city risk manager within fifteen (15) days of receipt. That decision shall be final. Written notice of approval or denial of the application will be given to the applicant. If the application is approved, an exemption document will be issued, stating the name of the transporter, the expiration date of the exemption, the authorized route, the intended cargo and any other relevant information. A copy of the exemption must be carried by the transporter while passing through the city or maintained at the transporter's local business office. Notwithstanding the fact that an exemption has been granted, transporters must comply with the remaining provisions of this chapter, including section 8.36.040(A). In the event of any violation of this chapter by transporters, the exemption may be suspended or revoked by written notice to the transporter.

C. The provisions of this chapter may not apply to public safety officers while engaged in the performance of their duties. (2001 In-house code § 17-46)

8.36.060 Operation of motor vehicles carrying hazardous and/or radioactive materials.

The following requirements apply to motor vehicle transportation of hazardous materials within

the city required to be placarded or marked under 49 CFR 172, as amended, and radioactive materials subject to regulation under 10 CFR 71.5, as amended:

A. Traffic and parking violations by transporters of hazardous and/or radioactive materials will be treated as violations of the rules and regulations adopted by this chapter and are subject to the fine schedule for hazardous and/or radioactive material transportation violations adopted by the Cheyenne municipal court.

B. Transporters of hazardous and/or radioactive materials must operate their motor vehicles at all times with their headlights illuminated; violation of this provision alone shall not be a punishable offense.

C. Transporters of hazardous and/or radioactive materials must not create a hazard to the public by the location or condition of their motor vehicles containing materials. (2001 In-house code § 17-47)

8.36.070 Reporting requirements.

Incidents involving hazardous and/or radioactive materials are required to be reported immediately by the transporters to the fire department by telephone using the 911 number or by any other effective means. The fire chief shall file a standing request with the Office of Hazardous Materials Transportation of the Research and Special Programs Administration, United States Department of Transportation, for routine mailing of a copy of the written report required by 49 CFR 171.16 to the fire department. (2001 In-house code § 17-48)

8.36.080 Suspension of motor vehicle operations.

The mayor or designee may temporarily suspend the operation within the city of some or all motor vehicles carrying hazardous and/or radioactive materials whenever road, weather, traffic or other hazardous circumstances warrant that action. In that event, the city will immediately endeavor to notify the public by one or more of the following means of communication: newspaper, television or radio. Written confirmation of the action will be provided by the city upon request. (2001 In-house code § 17-49)

8.36.090 Discharging hazardous and/or radioactive materials.

Transporters of hazardous and/or radioactive materials shall not intentionally or unintentionally permit or cause to be permitted the discharge of materials into the air or into or upon any street, highway, sanitary sewer, drainage canal or ditch, storm drain or flood control channel, or into or on any waterway or upon the ground, including private property, except when the discharge is expressly permitted by the property owner and is otherwise legal. (2001 In-house code § 17-50)

8.36.100 Authority to inspect and direct disposition of certain motor vehicles.

The peace officers of the police department or the fire prevention officers of the fire department working in conjunction with peace officers are authorized to investigate and enter any motor vehicle and obtain the shipping records when the transportation of hazardous and/or radioactive materials on the streets or highways within the city is deemed to be unsafe or the operation of the vehicle is deemed to be unsafe; and further, to immobilize, impound or otherwise direct the disposition of the motor vehicles when immobilization, impoundment or disposition is appropriate under or required by the provisions of this chapter. (2001 In-house code § 17-51)

8.36.110 Violations—Penalty.

A. Any person who violates any of the provisions of this chapter or controlling rules and regulations, or who fails to comply with any provisions or who violates or fails to comply with any orders shall, severally and for each and every violation, be guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00) or by imprisonment for not more than six months or both. The imposition of a penalty

for any violation will not excuse the violation or permit it to continue. All persons are required to correct or remedy the violations or defects within a reasonable time as determined by the city and, when not otherwise specified, each day that the prohibited conditions are continued or maintained constitutes a separate offense.

B. Any person who discharges hazardous and/or radioactive materials is responsible for all costs associated with that discharge and up to a fifty (50) percent administration/abatement fee. (2001 In-house code § 17-52)

Chapter 8.40

FOOD AND FOOD SERVICE ESTABLISHMENTS

Sections:

8.40.010 Purpose—Authority—General provisions.

8.40.020 Definitions.

8.40.030 Adoption of food safety rule.

8.40.040 Licenses and permits required.

8.40.050 Authority—Inspections required—Deficiencies.

8.40.060 Food service establishments—Business license and food service permit required.

8.40.063 Food service establishments—Sidewalk cafes.

8.40.070 Food stands or pushcarts—Mobile food trucks—Mobile food units—Temporary parade vendors—Business license required—Application.

8.40.080 Food stands, pushcarts, mobile food trucks, and mobile food units—Inspection.

8.40.090 Food stands, pushcarts, mobile food trucks, and mobile food units—Requirements—Approvals.

8.40.100 Responsibility of food stands, pushcarts, mobile food trucks, and mobile food units for vendor-generated refuse.

8.40.110 Food stands, pushcarts, mobile food trucks and mobile food units; operations and restrictions.

8.40.120 Expiration of license—Renewal.

8.40.130 Temporary parade vendor permit—Application—Restrictions.

8.40.140 Complimentary food items—Penalty for noncompliance.

8.40.150—8.40.170 Reserved.

8.40.180 Violations—Penalty.

8.40.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to protect the public health, safety and welfare of the community by licensing and regulating the operations and activities of food services and food handling practices within the city.

B. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-103(a)(v), the licensing and regulating of food services, including food service establishments, food stands, pushcarts, mobile food trucks, mobile food units, and temporary parade vendors are governed by this chapter.

C. The general provisions of Chapter 5.04, including suspension and revocation procedures, apply in the application and issuance of licenses and permits required under this chapter.

D. Minors under the age of eighteen (18) years operating a beverage stand selling lemonade, iced tea or similar beverages on property owned, leased or rented by their parents or legal guardians are exempt from the provisions of this chapter. (Ord. No. 4240, § 1, 7-23-18; Ord. No. 4211, § 1, 11-27-17; 2001 In-house code § 18-1)

8.40.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Complimentary food distribution" means the offer, temporarily, of food or drink items at no cost to the general public.

"Food" means any raw, cooked or processed edible substance, ice, beverage or ingredient used or intended for use or for sale in whole or in part for human consumption.

"Food service establishment" means a restaurant at a permanent location where food is prepared for sale or service to the public and is in-

tended for individual portion service, and includes the site at which individual portions are provided.

"Food stands or pushcarts" means stands or pushcarts providing approved and inspected pre-packaged food items and/or those food items requiring only limited preparation (minimal cooking and seasoning) as approved by the health officer. Specifically, a pushcart shall mean a nonself-propelled vehicle.

"Health officer" means the city of Cheyenne-Laramie County health officer and/or designated representative(s).

"Mobile food unit" means a vehicular food unit utilized solely to provide pre-packaged food in individual serving sizes which have been transported from an inspected and approved permanent food service establishment or food preparation facility which serves as the base of operation for the mobile food unit.

"Mobile food truck" means a motorized, wheeled vehicle or towed, wheeled vehicle designed and equipped to prepare and serve food.

"Temporary parade vendor" means temporary sales of approved and inspected pre-packaged food and/or drink items by walking vendors along a designated parade route, in conjunction with a community event, activity or celebration. Sales must be from containers that are individually carried, or provided on site from small wheeled wagons or containers not larger than two feet wide and four feet long. (Ord. No. 4211, § 1, 11-27-17; Ord. 3816 § 1 (part), 2008; 2001 In-house code § 18-2)

8.40.030 Adoption of food safety rule.

The Wyoming Food Safety Rule, 2006 Edition, as adopted, or any subsequent edition issued, as amended, by the Wyoming Department of Agriculture together with the Department of Health and the Governor's Food Safety Council is adopted and incorporated as part of this chapter as if fully set out. The rule, as adopted with local amendments, shall also be known as the Cheyenne-Laramie County Food Rule. A copy of the rule shall be on file with the office of city clerk and the Cheyenne-Laramie County health department. (Ord. 3816 § 1 (part), 2008: 2001 In-house code § 18-3)

8.40.040 Licenses and permits required.

A. It is unlawful for any person to operate a food service establishment, a food stand, pushcart, mobile food truck, or mobile food unit, or operate as a temporary parade vendor without first obtaining a license or permit from the city clerk. Licenses and permits issued must be posted and displayed in a conspicuous place at the licensed or permitted premises of any food service establishment, food stand, upon the mobile food truck or mobile food unit, or be immediately available upon request at any pushcart, as applicable.

B. Before any license or permit will be issued, an applicant must first have applied for a state of Wyoming Food Service license or permit through the Cheyenne-Laramie County health department, and a sales tax permit through the Wyoming Department of Revenue. A separate application fee, including any applicable annual renewal fee, assessed and collected by the health department, is required prior to issuance of a city license and/or permit. The health officer may also require a site plan, with an accompanying fee, be submitted by the applicant for review and approval. (Ord. No. 4211, § 1, 11-27-17; Ord. 3816 § 1 (part), 2008; 2001 In-house code § 18-4)

8.40.050 Authority—Inspections required—Deficiencies.

The health officer is authorized by the city to issue permits as required. The health officer and other city representatives, as required by the city clerk, will inspect, if deemed necessary, any premises, equipment or products to be used in the offering of food items for consumption to the general public, either through sales or gratuitously. Whenever health and safety deficiencies are noted by the health officer, the officer shall post in a conspicuous place a list of the deficiencies noted during the inspection upon the premises of the food service establishment or upon the food

stand, pushcart, mobile food truck, or mobile food unit, as applicable. The list must remain posted until such time as the deficiencies are remedied. The health officer may charge an inspection fee for the performance of the inspection.

The chief of the fire department or his or her designee will inspect any food service establishment, food stand, pushcart, mobile food truck, and mobile food unit. Before the issuance of any business license pursuant to the provisions of this chapter, the vendor shall obtain proof of successfully completing a fire inspection and furnish said proof to the city clerk as part of the business license application. (Ord. No. 4211, § 1, 11-27-17; Ord. 3816 § 1 (part), 2008: 2001 In-house code § 18-5)

8.40.060 Food service establishments—Business license and food service permit required.

Any person who wishes to operate a food service establishment in the city must first obtain a license from the city clerk and have, or have applied and paid for, a valid food service license or temporary food service permit from the Cheyenne-Laramie County health department. A separate application fee, including any applicable annual renewal fee, assessed and collected by the health department, is required in conjunction with the health department's license or permit. The health officer may also require a site plan, with an accompanying fee, be submitted by the applicant for review and approval. Inspection of premises by the health officer and other city representatives designated by the city clerk is required. The annual nonrefundable city licensing fee for food service establishments will be one hundred fifteen dollars ($115.00) per year. Licenses issued are effective for one year from the date of issuance. (Ord. No. 3845, § 1, 6-8-09; Ord. 3816 § 1 (part), 2008: Ord. 3715 § 1 (part), 2006: 2001 In-house code § 18-6)

8.40.063 Food service establishments—Sidewalk cafes.

A. Any person licensed through the office of city clerk as a food service establishment may request a permit from the city authorizing encroachment upon a portion of the public right-of-way for the purpose of operating a sidewalk cafe as an extension of their regular food services provided under their annual food service establishment business license.

1. The following definition shall apply in the interpretation and enforcement of this section: "Sidewalk cafe" means that portion of the public right-of-way that is kept, used, maintained and held out to the public solely as a place where food and drink are served for consumption to patrons, seated at appropriate dining tables, from the immediately adjoining existing business premises licensed as a food service establishment. A sidewalk cafe is considered an extension of the existing business and all services to support the cafe must be supplied from within the adjoining building. Preparation (cooking) of food within the sidewalk cafe area, commercial advertising, signs or banners, except for the name of the food service establishment on awnings, umbrellas or valances, within the area are prohibited. All refreshments may be dispensed into and served in glassware.

B. Written application for a permit must be submitted to the office of city clerk by the adjoining food service establishment licensee, on forms provided by the city clerk, together with payment of an annual permit fee of ninety dollars ($90.00). Initial permits issued will be effective for the term of the adjoining food service establishment business license. Applications submitted must include the following documentation:

1. Applicant name, business name, telephone number and address of the food service establishment licensee requesting the permit;

2. Proposed days and hours of operation for the sidewalk cafe, number of patrons to be accommodated, and explanation of how the premises will be supervised and maintained by the applicant;

3. Suitable scale drawing or site plan depicting the proposed sidewalk cafe area indicating the following: Not less than four feet of unobstructed passageway for the remaining available sidewalk

for the public's use; description of the type of temporary (moveable) tables, chairs, umbrellas, etc. to be utilized and where they will be located; applicable entry ways and staff service areas, and the portable (moveable) barrier that will be utilized to delineate the permitted use area from the remaining sidewalk area available to the public; location of sidewalk cafe area relative to street and alley intersections, fire hydrants, utility poles, etc. Clear space for ingress/egress to all exits will be maintained at all times. Plan will include a complete description and dimensions for proposed barrier for review and approval by the chief building official. The chief building official will assign an occupancy limit for cafe space. Failure to maintain occupancy limits may result in revocation of cafe permit.

4. If the premises of the adjoining licensed food service establishment are not owned by the applicant, a letter from the property owner indicating their approval of the applicant's request for encroachment of the public right-of-way for purposes of operating a sidewalk cafe permit in conjunction with the existing business. Leased property application will include a current copy of applicant's lease.

5. Proof of general liability insurance in an amount determined by the city risk manager, naming the city of Cheyenne as a certificate holder and an additional insured with respect to the operation of a sidewalk cafe at the proposed location. The applicant must further agree to hold harmless the city of Cheyenne, its officers, agents and employees, for any loss or damage arising out of the use or discontinuance of any use of the approved cafe area.

C. If the adjoining food service establishment licensee is holder of an applicable annual liquor license issued by the city of Cheyenne; the food service establishment meets the definition of restaurant as defined by Wyo. Stat. Section 12-1-101, and approval is received from the chief of police, including waiver of the city's open container restriction, city risk manager and city clerk, the serving for consumption only (not dispensing) of alcoholic liquors and malt beverages may be provided by wait staff to patrons in the cafe area.

1. In addition to proof of general liability insurance, proof of liquor liability coverage, in an amount determined by the city risk manager, must be submitted prior to issuance of the permit. The city must be named as a certificate holder and an additional insured with respect to the service of alcoholic liquors and/or malt beverages within the cafe boundaries.

D. Inspection of premises to be permitted and approval of the application by the health officer and other city representatives designated by the city clerk is required prior to issuance of a permit.

E. The following restrictions are placed upon permittees:

1. Use of the space is temporary in nature and the permittee does not acquire any right, title or interest in such space. The installation or placement of any permanent fixtures or property by the permittee within the cafe area is not allowed. The city may withdraw authorization for use of the public right-of-way at any time and declare the permit void upon thirty (30) days advance written notice to the permittee.

2. The permittee may be required to immediately vacate all or any part of the sidewalk cafe area at the request of the city but specifically for those times that may involve construction or repairs in the vicinity, or for circumstances that might create a hazard for the permittee, their patrons, or the public or their patrons. Such circumstances might involve unusually heavy pedestrian or vehicular traffic in the immediate vicinity, possible inclement weather or other emergency situations, fires and public safety response situations, parades, demonstrations or other events occurring at or near the cafe area.

3. The permittee agrees to maintain the premises in a clean and safe condition, removing all trash and litter in a timely manner, and further agrees to conduct sidewalk cafe activities in an orderly fashion and in such a manner as to protect the public health and safety.

4. If permit authorization for use of the public right-of-way is withdrawn by the city or a renewal permit application is not approved, the permittee will remove any personal property from the permitted area within the time frame requested by the city or the city may, at its discretion, remove said property and seek reimbursement from the permittee for the cost of moving the property. Permittees shall have no recourse against either the city or its officers, agents or employees for any loss or damage occasioned by his or her being required to vacate all or any part of the public right-of-way area.

F. Other sections of this chapter relative to a food service establishment business license are also applicable for a sidewalk cafe permit. In addition to specific requirements contained within this section concerning the sales and service of alcoholic liquors and malt beverages to a sidewalk cafe permitted area, the provisions and regulations of Chapter 5.12 of city code apply. (Ord. No. 4313, § 1, 6-16-20; Ord. No. 4211, § 1, 11-27-17; Ord. No. 3845, § 1, 6-8-09; Ord. 3715 § 1 (part), 2006; Ord. 3529 § 1, 2003)

8.40.070 Food stands or pushcarts—Mobile food trucks—Mobile food units—Temporary parade vendors—Business license required—Application.

A. Any person wishing to conduct business as a food stand, pushcart, mobile food truck, or mobile food unit must submit written application for a license on forms provided by the city clerk, together with payment of the required fee, to the office of the city clerk. Applications submitted must include the following documentation:

1. Proof of application for food service permit filed with the health officer and proof of application for a sales tax permit through the Wyoming Department of Revenue;

2. Written description of the type of food items, whether pre-packaged, requiring limited preparation, or for preparation aboard a mobile food truck, proposed to be sold from the food stand, pushcart, mobile food truck, or mobile food unit. Food item types not included on the list following approval by the health officer and issuance of the license may not be prepared or sold; and

3. Affirmation vendor will obtain written consent of the owner of the property intended to be used as the site for conducting food stand, wagon or pushcart, mobile food truck, or mobile food unit sales, if such vendor intends to set up at a location on privately-owned property.

B. The annual nonrefundable licensing fee will be seventy-five dollars ($75.00) per year, per food stand, pushcart, mobile food truck, or mobile food unit. Upon application and request by nonprofit, charitable or youth organizations, the city clerk may approve a reduced annual fee of twenty-five dollars ($25.00) per year, per stand, pushcart, mobile food truck, or mobile food unit.

C. The fourteen (14) day nonrefundable licensing fee will be fifty dollars ($50.00) per fourteen (14) day period, per food stand, pushcart, mobile food truck, or mobile food unit. Upon application and request by nonprofit, charitable, or youth organizations, the city clerk may approve a reduced, nonrefundable licensing fee of ten dollars ($10.00) per fourteen (14) day period, per food stand, pushcart, mobile food truck, or mobile food unit. (Ord. No. 4211, § 1, 11-27-17; Ord. No. 4171, § 2, 4-10-17; Ord. No. 3845, § 1, 6-8-09; Ord. 3715 § 1 (part), 2006; 2001 In-house code § 18-7)

8.40.080 Food stands, pushcarts, mobile food trucks, and mobile food units—Inspection.

Food stands, pushcarts, mobile food trucks, mobile food units, temporary parade vendors, and complimentary food distribution areas proposed to be used for food preparation, prior to sales or distribution to the general public, must be available for inspection and approval by the health officer and various city representatives, as required by the city clerk. The preparation and sale of food products, including all equipment and items to be utilized in the preparation process, must meet state and local sanitation, health and

safety requirements. (Ord. No. 4211, § 1, 11-27-17; 2001 In-house code § 18-8)

8.40.090 Food stands, pushcarts, mobile food trucks, and mobile food units—Requirements—Approvals.

No person will operate a food stand, pushcart, mobile food truck, or mobile food unit for the sale or distribution of any food items, other than approved and inspected pre-packaged items and/or items requiring only limited preparation (minimal cooking and seasoning) as approved by the health officer, without first obtaining a license or permit issued in accordance with the provisions of this chapter and Chapter 5.04. No license or permit from the city clerk will be required for persons wishing to provide complimentary food distribution to the general public, but inspection and approval by the health officer is mandatory prior to distribution. In all instances, the city's zoning regulations will be enforced. (Ord. No. 4211, § 1, 11-27-17; 2001 In-house code § 18-9)

8.40.100 Responsibility of food stands, pushcarts, mobile food trucks, and mobile food units for vendor-generated refuse.

All persons conducting food sales or providing complimentary distribution of food items shall clean the sidewalk, street, or premises adjacent to and within a twenty-five (25) feet radius of any point of sale or distribution from any food stand, pushcart, mobile food truck, mobile food unit, or complimentary distribution area. Such cleaning shall consist of picking up and disposing of any paper, cardboard, wood, plastic, or other types of containers, wrappers, or any litter resulting from the vendor's operations. Rubbish, refuse and/or liquid waste must be disposed of in a proper manner. The licensee shall provide a suitable container for the placement of such litter by customers. (Ord. No. 4211, § 1, 11-27-17; 2001 In-house code § 18-10)

8.40.110 Food stands, pushcarts, mobile food trucks and mobile food units; operations and restrictions.

A. Food stands and pushcarts may operate:

1. Upon a public sidewalk or public non-right-of-way space with written consent of the immediately adjacent business owner, if any, who may be affected by the proposed sales site, and upon private property, with consent of the private property owner;

2. Within a city-owned recreational park, only after application and approval by the city clerk; and

3. Upon a closed street, only after application and approval by the city clerk and in conjunction with a special community event, activity, or celebration, if the street has been approved for closure by the police chief, risk manager, and traffic engineer.

B. Food stands and pushcarts may not operate:

1. Upon a public sidewalk in such a manner that impedes or interferes with free movement of vehicular, bicycle, or pedestrian traffic or visually obstructs the safe movement of vehicular, bicycle, or pedestrian traffic; or

2. In any on-street parking space in the public right-of-way, unless such street is closed pursuant to application and approval of a special community event, activity, or celebration.

C. Food stands, pushcarts, mobile food trucks, and mobile food units may not operate within:

1. One hundred (100) feet of the primary entrance of a restaurant, measured from the center of the primary entrance(s) of the restaurant by the most direct pedestrian path, without written consent of the restaurant owner(s);

2. Fifteen (15) feet of a fire hydrant;

3. Ten (10) feet of any crosswalk, whether at an intersection of public rights-of-way or at a mid-block crossing;

4. Ten (10) feet of any curb loading signed area;

5. Ten (10) feet of any public transportation stop;

6. Five feet of any handicapped parking place or access ramp; or

7. Any public alley.

D. Food stands, pushcarts, mobile food trucks and mobile food units may not:

1. Operate, store, leave unattended or park such unit upon the public right-of-way after 3:00 a.m. and before 5:00 a.m., except:

a. As otherwise permitted by the city clerk and chief of police; or

b. As necessary for the owner of such vehicle to park within the right-of-way outside his or her residence or principal office during non-operational hours, except for oversized vehicles as provided by Section 8.60.080(B) and Section 10.52.020(D) of the city code.

2. Leave any such unit unattended in the public right-of-way during operations;

3. Sell or distribute directly to any person situated in a motor vehicle if such sale or distribution may impede or interfere with free movement of vehicular, bicycle or pedestrian traffic;

4. Operate in diagonal parking spaces, unless such street is closed pursuant to application and approval of a special community event, activity or celebration; or

5. Operate within or upon any area or lot zoned pursuant to the city's Unified Development Code as AR, RR, LR, MR, HR, NR-1, NR-2, NR-3, or any lot zoned NB, CB, CBD, MUR, MUB, or MUE, that is used as a residential lot, except if operated upon private property strictly in service of a private, special event and not in service of the general public.

E. Mobile food trucks and mobile food units must abide with the stopping, standing and parking requirements as set forth in Title 10 of city code.

F. The interior kitchen length of any mobile food trucks and mobile food units shall be no longer than eighteen and one-half (18.5) feet long if the vendor serves from the public right-of-way onto a public sidewalk. This limitation shall not apply to vendors serving the public from private property.

G. Mobile food trucks or mobile food units may not park upon any public right-of-way for the purpose of selling food in such a manner or under such conditions as to impede or interfere with free movement of vehicular, bicycle or pedestrian traffic or visually obstruct the safe movement of vehicular, bicycle or pedestrian traffic.

H. Mobile food trucks or mobile food units may utilize parking places parallel to the public sidewalk to serve customers thereon consistent with the signed time limitations.

I. The city traffic engineer or their designee is hereby authorized to issue special purpose monthly on-street parking permits allowing mobile food trucks or mobile food units to utilize parking places parallel to the public sidewalk in the service of customers.

1. Such permit will allow the mobile food truck or mobile food unit to remain parked in a single parking place within downtown Cheyenne in excess of the signed two-hour limitation;

2. Applications for special purpose monthly on-street food truck parking permits shall be submitted with the police department parking administration manager;

3. Permits will be issued at a cost to the applicant of sixty dollars ($60.00) per month;

4. Permits may be revoked by the police department parking administration manager for the following reasons:

a. Nonpayment for two billing cycles; or

b. Unlawful use of the permit.

5. For purposes of this section, "downtown" shall mean the rectangular area within and including the following streets: 15th Street to 28th Street and House Avenue to Bent Avenue. (Ord. No. 4601, § 1, 12-9-24; Ord. No. 4295, § 1, 3-9-20; Ord. No. 4211, § 1, 11-27-17; Ord. No. 4171, § 2, 4-10-17; 2001 In-house code § 18-11)

Editor's note—Ord. No. 4601, § 1, adopted Dec. 9, 2024, amended § 8.40.110 and in doing so changed the title of said section from "Food stands, pushcarts, mobile food trucks, and mobile food units—Restrictions—Operation" to "Food stands, pushcarts, mobile food trucks and mobile food units; operations and restrictions," as set out herein.

8.40.120 Expiration of license—Renewal.

A. Food stands, pushcarts, mobile food trucks, and mobile food unit licenses issued under the provisions of this chapter will expire one year from the date of issuance or renewal, except those licenses issued on a temporary basis in conjunction with food sales for special community events, activities or celebrations. Those licenses issued on a temporary basis will be effective for the dates of operation requested and approved in the application form, but not to exceed the temporary license period.

B. Licensees conducting sales upon closed streets pursuant to Section 8.40.110 must arrange for immediate removal of the food stand, pushcart, mobile food truck, or mobile food unit following the special community event, activity or celebration. (Ord. No. 4211, § 1, 11-27-17; 2001 In-house code § 18-12)

8.40.130 Temporary parade vendor permit—Application—Restrictions.

A. The provisions of this chapter applicable to food stands and pushcarts do not apply to any temporary parade vendor wishing to provide sales of approved and inspected pre-packaged food or drink items, as approved by the health officer, in conjunction with special community parade events on public streets.

B. Any person wishing to conduct business as a temporary parade vendor must submit written application for a permit on forms provided by the city clerk, together with payment of the required fee, to the office of city clerk. Applications submitted must include the following information:

1. Listing of all pre-packaged food and/or drink items, as approved by the health officer, proposed to be sold along the parade route during the event. Items not included on the listing will not be allowed for distribution to the public following approval of the list by the health officer and issuance of a permit by the city clerk.

Upon approval of an application and payment of fees, an identification badge issued by the city clerk will serve as the temporary parade vendor permit. The badge must be worn by the permittee at all times when distributing pre-packaged food or drink items for the specific parade event designated in the application;

2. The permit fee for a temporary parade vendor will be two dollars ($2.00) per applicant filing as a minor, as defined by Wyoming Statutes currently in effect, and fifteen dollars ($15.00) for all other applicants. The fee is per permit issued in conjunction with a single community event, activity or celebration.

C. Temporary parade vendor permittees must not impede the flow of vehicular, bicycle, or pedestrian traffic or pose any threat to the health and safety of parade observers or participants, including any live animals.

D. Temporary parade vendor permits expire at the conclusion of the special parade event or events for which the permit was issued. (Ord. No. 4211, § 1, 11-27-17; Ord. No. 3845, § 1, 6-8-09; Ord. 3715 § 1 (part), 2006; 2001 In-house code § 18-13)

8.40.140 Complimentary food items—Penalty for noncompliance.

Persons wishing to provide to the general public complimentary food and drink items which require only limited preparation (minimal cooking and seasoning), as approved by the health officer, must contact the health officer for required inspections and approval of food preparation facilities and food items proposed to be offered.

Failure to acquire necessary approvals and inspections by the health officer prior to complimentary food items being offered to the general public is a misdemeanor offense and may be punishable pursuant to the general penalty provision of city code. (Ord. No. 4211, § 1, 11-27-17; 2001 In-house code § 18-14)

8.40.150—8.40.170 Reserved.

Editor's note—Ord. No. 4211, § 1, adopted November 27, 2017, repealed §§ 8.40.150—8.40.170. Former §§ 8.40.150—8.40.170 pertained to milk and milk products—regulations generally, adoption;

licenses or permits and notice of additional sources of supply and derived from the 2001 In-house code; Ord. No. 3715, adopted in 2006 and Ord. No. 3845, adopted June 8, 2009.

8.40.180 Violations—Penalty.

A. Any person who violates the provisions of this chapter and/or Chapter 5.04, or who fails to obtain a license or permit or required inspections under the provisions of this chapter is guilty of a misdemeanor, punishable as provided by the general penalty provision of city code. The city clerk is authorized to sign and file complaints in the municipal court. Each day a violation continues shall be deemed a separate offense.

B. Any holder of a valid license or permit who violates the provisions of this chapter and Chapter 5.04 is subject to suspension or revocation proceedings against the operating license or permit as outlined in Chapter 5.04.

C. Notwithstanding subsections A and B of this section, a minor operating as a temporary parade vendor without a permit is subject to a fine only, such fine not to exceed the sum of twenty-five dollars ($25.00). (2001 In-house code § 18-18)

Chapter 8.44

SOLID WASTE*

Sections:

8.44.010	**Purpose; authority; general provisions.**
8.44.020	**Definitions.**
8.44.030	**General regulations.**
8.44.040	**Regulations for specific items.**
8.44.050	**Collections regulations.**
8.44.060	**Burning of solid waste.**
8.44.070	**Landfill regulations.**
8.44.080	**Violations—Penalty.**

8.44.010 Purpose; authority; general provisions.

A. The purpose of this chapter is to protect public health, safety, and welfare by regulating the accumulation, storage, transportation and disposal of solid waste or refuse to prevent fire, health or other safety hazards, to eliminate undesirable pests and to promote the aesthetic appearance of the community.

B. Authority is granted cities and towns in W.S. 15-1-103(a)(xxi) and (a)(xli) to adopt ordinances, resolutions and regulations necessary for health, safety and welfare and to "purchase, lease or rent land within or without the corporate limits for the deposit of refuse matter, govern the use of the land and make reasonable rules and requirements for hauling refuse."

C. All solid waste accumulated in the city must be collected, conveyed and disposed of by the city under the supervision of the director of the public works department or his or her designee.

1. The public works director is authorized to promulgate rules pertaining to solid waste collection, conveyance and disposal in accordance with the Wyoming Administrative Procedure Act. The public works director shall present the fee schedule to the city council for approval.

2. Except as provided in Section 8.44.030(G)(7) of this chapter and as further provided in this paragraph, all solid waste accumulated in the city shall be collected, conveyed and disposed of by the city. No person, other than persons duly authorized by the city, may collect, convey over any of the streets or alleys of the city, or dispose of, any solid waste accumulated in the city. The prohibitions imposed under this paragraph shall not apply to any person conveying excess solid waste generated at his or her residence to the Happy Jack landfill or to the transfer station, subject to the fees, limitations and requirements of this chapter.

3. This chapter does not prohibit collectors of solid waste generated or collected outside of the city from hauling such solid waste over city streets, provided that the collectors comply with the provisions of this chapter and with any other applicable law or ordinance.

4. Mandatory recycling is in place for all residential properties including single family homes, apartments, multiplex dwellings, trailer courts or any other property that serves a residential customer. Commercial collection of recyclables is offered, but not yet mandatory.

D. It is presumed that each residence or building in the city produces solid waste. Therefore, each residence or building shall subscribe to and pay for city solid waste services. For buildings in which one or more businesses operate, city solid waste services shall be assessed on a per dumpster and per pickup basis. Each of these buildings shall be assessed a charge based on the number of dumpsters and the number of pickups utilized, regardless of how many businesses are operating within the building.

E. Any property owner may terminate solid waste services if the residence or building is vacant, unused or there have been changes made to the property that detrimentally affect the use or occupancy of the property, by filing a written request with the solid waste division to terminate,

***Editor's note—**Ord. No. 3916, § 1, approved March 28, 2011, repealed the former Chapter 8.44, §§ 8.44.010—8.44.080, and § 2 Ord. No. 3916 enacted a new Chapter 8.44 as set out herein. The former Chapter 8.44 pertained to similar subject matter and derived from Ord. No. 3454, 2002; Ord. No. 3513, 2003 and Ord. No. 3769, 2007.

suspend or change services. An affidavit form is available at the transfer station. This form, when signed and notarized, shall meet the requirements imposed under this subsection. Adjustments will be made upon receipt of a completed form by the solid waste division. The owner shall also notify the solid waste division immediately of any changes to the property after the affidavit is signed. If notification is not made, the solid waste division is authorized, at its discretion, to charge for the entire period back to the change date specified in the original affidavit. Customers bear the burden of ensuring correct billing for services provided. Warranted adjustments for past billing errors shall be limited to no more than sixty (60) days from customer's notification of the error to the solid waste division.

F. Charges for the collection of garbage and refuse shall be paid by the owner or occupant of every premises from which garbage and refuse is collected. Collection charges will be included in water and sewer bills issued by the board of public utilities.

G. Waste generated outside the city shall not be brought into the city for disposal. Waste generated outside the city is prohibited from being placed into any alley, vacant lot, or residential or commercial container within the city, including any container located in a park or other city facility. County residents may use private haulers or dispose of waste at the transfer station. This subsection shall not prohibit collectors of recyclable material generated or collected outside the city from bringing such material into the city and placing it into the blue bin containers or dropping it at the transfer station, subject to the fees, limitations and requirements of this chapter. Recyclable material generated or collected outside the city shall not be placed into residential or commercial recycle containers inside the city and may not be placed outside blue bin containers if those containers are full. (Ord. No. 4553, § 1, 3-11-24; Ord. No. 3995, § 2, 8-26-13; Ord. No. 3916, § 2, 3-28-11)

8.44.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

A. The terms "solid waste" or "refuse" are synonymous and, shall include, but are not limited to:

"Ashes" means residue from the burning of wood, coal, coke, or other combustible materials.

"Bulky waste" means waste that cannot be handled by normal collection, processing, or disposal methods because of its large size.

"Electronic waste" means items with electronic components that contain hazardous waste including computers, monitors, televisions, cellular telephones, stereos, and microwaves.

"Garbage" means putrescible animal and vegetable wastes resulting from the handling, preparation, cooking, and consumption of food.

"Hazardous waste" means waste which requires special handling to avoid illness or injury to persons or damage to property.

"Rubbish" means nonputrescible solid waste (excluding ashes), consisting of both combustible and noncombustible wastes, such as paper, cardboard, tin cans, street cleanings, solid market and industrial wastes, wood, glass, bedding, crockery, and similar materials.

"Single-stream" means recyclables that can be placed together in one bin for the purpose of recycling at the curb. This would include paper, cardboard, and other recycled commodities.

"Yard waste" means grass clippings, rakings, leaves, limbs, trimmings, and other clippings.

B. Reasonable accumulation means one and one-half cubic yards or less per collection for businesses with manual collection. For residences with automated collection or businesses that use designated receptacles (dumpsters or roll-off containers), a reasonable accumulation means material that fits into containers so the lid will close and of reasonable weight and volume that can be emptied with available equipment. (Ord. No. 3916, § 2, 3-28-11)

8.44.030 General regulations.

A. Littering and Improper Disposal.

1. No person shall throw, drop or deposit refuse upon any street, alley, sidewalk yard, or otherwise upon any premises, public or private;

2. No person shall place refuse upon another person's private property;

3. No person shall place accumulations of household, business or construction waste in containers or dumpsters owned or rented by other individuals, businesses or government entities;

4. No person shall place refuse in any street, alley or other public place except in proper containers for collection or upon the express written approval granted by the director of the public works department; and

5. No person shall throw or deposit any solid waste in any stream or other body of water within the city.

B. The owner of any property where waste is generated shall be responsible for the disposal of the waste regardless of whether the owner resides on or otherwise occupies the property.

C. The owner or occupant of any store or other place of business situated within the city shall exercise reasonable diligence at all times to keep their business premises clean of refuse or other waste materials thrown or left on the premises by business customers or any other person, and shall take reasonable measures to prevent the same from blowing to adjoining premises.

D. If a business owner or occupant fails to keep their premises or an adjoining premises clean as required under subsection (C) of this section, the city is authorized to arrange for cleanup of the premises and may bill the owner for the cost of the service. Receptacles of sufficient size and number shall be placed on the premises and be accessible to customers of the business or any other person on the premises, for the disposal of waste.

E. No person shall dispose of refuse on a business property, except refuse generated on the property and only in receptacles located on the property for such purpose.

F. No owner, manager, employee or agent thereof of any store or other place of business shall throw, sweep or push dirt, rubbish or refuse into any street, alley or sidewalk adjacent to the store or business. Each business establishment shall be responsible for keeping the adjacent property and sidewalks of the business free of dirt, rubbish or refuse, and any such dirt, rubbish or refuse shall be taken and deposited with other refuse from the business. The owner or manager of the business shall be held liable for any violation of this subsection.

G. Containers.

1. All solid waste shall be placed in city approved containers. When stored in the right-of-way adjacent to any street or alley, waste shall be kept in city approved metal or plastic containers that are resistant to animals and wind. Plastic or paper bags containing refuse shall not be placed on the street or alley prior to 4:00 p.m. of the day prior to the designated collection day.

2. Businesses with Manual Collection Service. Solid waste containers shall be provided by the city for the premises. Non-approved containers set out with refuse or containing refuse shall be considered part of the refuse and the city may remove the non-approved containers for disposal in its discretion. Paper or other bags may be used as approved by the director of the public works department. Containers or bags shall not exceed a weight of forty (40) pounds when full.

3. Residences or Businesses with Automated Collection Service. The city shall provide customers with sufficient standard collection containers compatible with automated collection equipment. Only containers provided by the city shall be used for automated collection. The city shall be responsible for repair and replacement of containers damaged or worn as a result of normal use. The solid waste division is authorized to require customers to pay for the repair or replacement of any container damaged or destroyed through customer negligence.

4. Every container or receptacle required by this chapter shall be maintained by the customer

in a clean condition. If a customer fails to keep the container or receptacle in a clean condition, the solid waste division is authorized to clean the container or receptacle and charge the customer an appropriate fee.

5. Businesses with manual collection shall be liable for damages caused by any unsecured containers.

6. Businesses shall have a trash containment area, which area should to the maximum extent practicable secure all containers and receptacles and keep all refuse and the containers and receptacles out of the view of the general public.

7. Prior to placement of any waste collection roll-off container within the city limits, a commercial or otherwise private hauler shall provide to the director of the city public works department, or his or her designee, a written report identifying the name of company, the address of company, a primary contact and contact information for the company, and shall provide a description of the roll-off containers, including the color scheme, the number and size. Every container shall be clearly marked with the company's name and business phone number prior to placement. Each commercial or otherwise private hauler shall provide the written report required under this paragraph upon the creation of the business and annually thereafter not later than January 31st of each year. Failure to provide the report may result in a suspension of roll-off container privileges for the period of up to one year. Failure to comply with the container marking requirements imposed under this paragraph may also result in the removal and disposal of any unmarked container.

H. Residents and businesses shall be responsible for controlling all waste until it is picked up by the solid waste division. Receptacles shall be kept closed except during the collection or deposit of garbage, trash or refuse. The contents of all receptacles shall be protected so that wind and animals cannot scatter the contents. All waste placed in containers, except yard waste and single stream recycle material, shall be bagged to prevent the waste from being scattered when the container is emptied or if tipped over. If waste is scattered by wind or by animals, the solid waste division may clean up the waste and charge the resident or business an appropriate fee.

I. Materials placed in recycling containers shall not be deposited in plastic bags and shall be placed loosely in the recycling container. Shredded material or other small paper items may be first deposited in recyclable paper bags before being placed in the recycling container.

J. This section shall not prohibit any person from using a city approved large watertight container for the storage of garbage, which container is designed to be loaded mechanically into roll-off containers. Every container shall be approved by the director of the public works department and be compatible with city collection equipment. Only containers issued by the city shall be used for automated collection.

K. Any unauthorized accumulation of solid waste on any premises shall constitute a nuisance and is hereby prohibited.

L. No agent, officer or employee of the solid waste division shall interfere with, disturb, break, destroy or trespass upon any property except as necessary for the collection and removal of solid waste. No agent, officer or employee of the city shall remove or take any article or refuse for their own use. City collection personnel shall not enter houses or buildings for the collection of solid waste without the prior knowledge and approval of the director of the public works department or his or her designee. No agent, officer or employee of the city shall accept any money, property or other valuable consideration for the performance of solid waste collection services, except such salary and benefits as authorized by city ordinance or personnel policies.

M. Any person who violates this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00). Each day of a continuing violation shall constitute a distinct and separate offense. (Ord. No. 4553, § 1, 3-11-24; Ord. No. 3916, § 2, 3-28-11)

8.44.040 Regulations for specific items.

A. Ashes. All charcoal or ashes from barbecue pits, fireplaces, or other sources must be thoroughly cold or doused with water and dried before being placed in containers. Large amounts of ashes must be placed in an approved container. The customer is responsible for replacement of automated containers damaged as a result of hot ashes or coals.

B. Liquids. Liquid material may not be placed with solid waste for collection nor will it be accepted at the sanitary landfill. Liquids must be disposed of at the solid waste division household hazardous waste facility.

C. Grass Clippings, Rakings and Leaves. Grass clippings, rakings and leaves will be collected by the city when placed in the optional yard waste container. Grass clippings, rakings, and leaves shall not be accepted or picked up with solid waste nor will they be accepted for disposal in the sanitary landfill. City residents may take grass clippings, rakings and leaves to the city's compost facility or transfer station for free disposal.

D. Limbs, Tree Trimmings, and Hedge Clippings. Limbs, tree trimmings, hedge clippings and similar material will be picked up for an appropriate fee if they are cut to a length not to exceed four feet and securely tied in bundles not more than two feet thick before being deposited for collection. Residents who pay for the optional yard waste container receive this service free of charge. Limbs, tree trimmings, and hedge clippings shall not be picked up with solid waste nor will they be accepted for disposal in the sanitary landfill. City residents may take limbs, tree trimmings and hedge clippings to the city's compost facility or transfer station for free disposal.

E. Single Stream Recyclables. Single stream recyclable materials will be collected by the city when placed in city recycling containers. Single residents, apartments, multiplex dwellings, and trailer courts should not place single stream materials with solid waste for pick up.

F. Contagious Disease Waste. The removal of wearing apparel, bedding, or other waste where highly infectious or contagious diseases are present should be performed under the supervision and direction of the city/county health officer. This waste shall not be placed in containers for regular collection.

G. Dangerous or Hazardous Waste.

1. Highly flammable or explosive materials may not be placed in containers for regular collection but shall be disposed of as directed by the public works director at the expense of the owner or possessor thereof.

2. Special waste, such as chemical, radioactive, or other waste which would require extraordinary handling and disposal methods, will not be collected by the city except by methods designated by the city/county health officer.

3. Needles from syringes must be placed in a puncture proof metal or plastic container to keep the needles containerized and reduce risk of injury to collection and landfill personnel.

4. Household hazardous wastes, such as flammable material, pesticides, herbicides, cleaners fluorescent light tubes and compact fluorescent bulbs shall not be placed with household refuse for pickup. These items must be separated from other types of waste and disposed of at the solid waste division household hazardous waste facility. Exception: Small amounts of residential fluorescent light bulbs may be disposed of at the transfer station.

5. Electronic components and equipment, such as computers, monitors, keyboards, televisions, cell phones, and microwaves contain hazardous materials and shall not be placed in collection containers for regular disposal or disposed of in the landfill. These items must be separated from other types of waste and be disposed of at the transfer station.

H. Large, Bulky Accumulations. Large amounts of dirt, lawn rakings, plant waste, residential rubbish, concrete, metal, or bulky objects too large to place in containers must be separated by the owner and may be collected by the city for a fee as a special pickup. Contractors, builders, remodelers, landscapers, nurserymen, or other

tradesmen are responsible for waste resulting from their business activities. They may not use a customer's nor their own residential water bill to dispose of waste at the landfill or transfer station. (Ord. No. 3916, § 2, 3-28-11)

8.44.050 Collections regulations.

A. Points of Collection and Placement of Containers.

1. Solid waste containers must be placed at ground level on the street or alley boundary in a convenient location acceptable to the collectors, but in a location which will not prevent pedestrian, vehicular, or maintenance functions.

2. Solid waste should not be placed at the curb or alley earlier than 4:00 p.m. of the day prior to the day of collection. Empty containers, including automated containers, must be removed from the curb, no later than twelve (12) hours following the day of collection. If solid waste is placed at the curb, or in the right-of-way next to the curb, or alley, prior to 4:00 p.m. of the day prior to the designated collection day, the solid waste division may perform a special pickup of the material and charge the appropriate fee. If containers are left at the curb beyond the time limit, the solid waste division may remove the containers from the curb and charge a fee for this service.

3. Residences and businesses with automated collection: Automated containers must be placed with the arrows on the lid toward the street or alley. Containers must be at least two feet away from other containers, vehicles, trees, mailboxes, or other objects to allow unobstructed pickup. All solid waste (except yard waste and single stream recycle material) must be bagged and placed so that the lid will close. An additional charge may be assessed for material placed outside the container. Containers or bags placed outside the automated container shall not exceed a weight of forty (40) pounds when full.

4. No person may tamper with any refuse container or its contents, or remove the contents of any refuse container, or remove a refuse container from the location where the same has been placed by the owner. This subsection does not apply to city collection personnel, the owner or occupant of the premises where the refuse container is properly located, or to agents or employees of such an owner or occupant.

B. Frequency of Collection and Reasonable Accumulation.

1. Residential. Solid waste accumulated at residences will normally be collected once a week. The city reserves the right to suspend residential collection during weeks that begin with a Monday which is the fifth Monday of the month in order to maintain equipment and train personnel. Notification of suspension of residential collection will be provided via a media release at least two weeks prior to any suspension of service. Collection frequency is also subject to change when affected by conditions beyond control of the city. A fifth week suspension or a change in service necessitated by conditions beyond control of the city will not result in reduction in monthly fees nor negate charges for unreasonable accumulations of waste or waste placed outside of containers.

2. Commercial. Solid waste accumulated by commercial establishments shall be collected at least once a week. The city will collect a reasonable accumulation of solid waste from commercial entities. The city may refuse to collect unreasonable amounts or assess a reasonable charge for the service. The operator of any hotel, restaurant, or other business or institution that produces an excessive quantity of solid waste must remove it in a manner which will not violate any of the provisions of this chapter or other city ordinances. If the owner or occupant of such business or institution fails or neglects to remove the excess, the city shall remove the refuse and assess the owner for the cost of removal. A change in services necessitated by conditions beyond control of the city will not result in reduction in monthly fees nor negate charges for unreasonable accumulations of waste or waste placed outside of containers.

3. Reasonable accumulation means one and one-half cubic yards or less per collection for businesses with manual collection. For residences

with automated collection or businesses that use designated receptacles (dumpsters or roll-off containers), a reasonable accumulation means material that fits into containers so the lid will close and of reasonable weight and volume that can be emptied with available equipment. (Ord. No. 3916, § 2, 3-28-11)

8.44.060 Burning of solid waste.

Burning of solid waste within the city is not permitted. When the waste generated cannot be handled by normal collection and disposal procedures, commercial incineration systems which meet all applicable air quality and emission standards may be operated with approval from the city and all other appropriate agencies. (Ord. No. 3916, § 2, 3-28-11)

8.44.070 Landfill regulations.

A. Municipal solid waste is no longer accepted at the Happy Jack landfill due to limited space. Municipal solid waste is accepted at the transfer station to be transported to an alternate landfill for an appropriate fee.

B. During each three month period (calendar year quarter), city residents, who pay a monthly residential sanitation collection fee or rent/lease a residence in the city, may dump up to two thousand (2,000) pounds of construction/demolition waste from their personal residence in the city landfill at no charge. Residents must provide a current water bill (dated within the last ninety (90) days) from the location where the materials originate. Contractors, builders, remodelers, landscapers, nurserymen, or other tradesmen are responsible for waste resulting from their business activities. They may not use a customer's nor their own residential water bill to dispose of waste at the transfer station or landfill.

C. No person may remove any article or object which has been deposited or dumped at the city landfill without permission of the public works director.

D. To prevent scattering of refuse and litter, all persons transporting refuse or recyclable material to the city landfill, the city transfer station, or to the city compost facility must cover the load with a tarp, wire mesh, or some other means which prevents the material from blowing or falling out of the vehicle. Any person arriving at the city transfer station, landfill, or compost facility without meeting the provisions of this section may be required to pay a fee in addition to any dumping fee which may be charged.

E. Liquids, liquid petroleum products, and unauthorized hazardous materials shall not be dumped at the landfill. Individuals or companies dumping these materials may be charged for costs incurred for removal and cleanup of such material from the landfill. (Ord. No. 3916, § 2, 3-28-11)

8.44.080 Violations—Penalty.

A person violating the provisions of this chapter or causing the provisions of this chapter to be violated, is punishable pursuant to the general penalty provided for in Section 1.24.010 of this code. (Ord. No. 3916, § 2, 3-28-11)

Chapter 8.48

RODENT CONTROL

Sections:

8.48.010 **Definitions.**

8.48.020 **Business buildings to be ratproof and rat-free.**

8.48.030 **Ratproofing—Eradication—Notice from health officer.**

8.48.040 **Inspections by health officer—Notice to abate certain conditions.**

8.48.050 **Building may be ordered closed until condition abated.**

8.48.060 **Condemnation of building when owner fails to abate.**

8.48.070 **Compliance upon construction, repair or remodeling of buildings.**

8.48.080 **Ratproofing of buildings where food stored and handled.**

8.48.090 **Storage of animal feed.**

8.48.100 **Accumulation of lumber, boxes and bottles.**

8.48.010 Definitions.

The following definitions shall apply in the interpretation and enforcement of the following sections pertaining to rodent control:

"Business building" means any structure, public or private, where commercial activities take place; professional services are provided; goods are displayed for sale or stored; or work or labor is performed. This includes hotels, apartment buildings, tenement houses, rooming houses, office buildings, public buildings, stores, theaters, markets, restaurants, grain elevators, abattoirs, warehouses, workshops, factories and all outhouses, sheds, barns and other structures on premises used for business purposes.

"Occupant" means the person who uses or occupies any business building as owner or tenant. In the case of vacant business buildings or vacant portions, the owner, agent or custodian is considered to be the occupant.

"Owner" means the person who is the owner, agent or custodian of a business building. A lessee shall be considered to be the owner when business building agreements hold the lessee responsible for maintenance and repairs.

"Rat eradication" means the elimination or extermination of rats within buildings by any accepted methods, including poisoning, fumigation, trapping, etc.

"Rat harborage" means any condition which provides shelter or protection for rats, in, under or outside any business building.

"Ratproofing" means a form of construction to prevent the entry of rats into business buildings. It consists of installing material, impervious to rat gnawing, on all actual or potential openings in exterior walls, ground or first floors, basements, roofs and foundations that may be entered by rats. (2001 In-house code § 22-2)

8.48.020 Business buildings to be ratproof and rat-free.

All business buildings in the city must be ratproofed, free of rats and maintained in a ratproof and rat-free condition to the satisfaction of the city health officer. Owners of all ratproofed business buildings must maintain the premises in a ratproof condition, including repairing all breaks or leaks in the ratproofing. (2001 In-house code § 22-3)

8.48.030 Ratproofing—Eradication—Notice from health officer.

A. Upon receipt of a written notice from the city health officer, the owner of the business building shall take immediate measures for ratproofing the building. If the work is not completed within the time specified in the written notice, but not less than fifteen (15) days, the owner shall be deemed to have violated this chapter. The city health officer may grant an extension in writing.

B. Whenever the city health officer notifies the occupant of a business building in writing that there is evidence of rat infestation in the building, the occupant must immediately institute rat eradication measures and continuously maintain the measures in a satisfactory manner until the premises are declared by the city health officer to be free of rat infestation. Unless corrective measures are undertaken within five days after receipt of notice, the occupant shall be deemed to have violated this chapter. (2001 In-house code § 22-4)

8.48.040 Inspections by health officer—Notice to abate certain conditions.

The city health officer may make unannounced inspections of the interior and exterior of business buildings to determine compliance. The city health officer shall make periodic inspections of all ratproofed buildings at intervals of not more than forty-five (45) days to investigate potential rat infestation and whether there are breaks or leaks in the ratproofing. When any evidence is found indicating the presence of rats or openings through which rats may enter business buildings, the city health officer shall serve the owners or occupants with notices to abate conditions found. (2001 In-house code § 22-5)

8.48.050 Building may be ordered closed until condition abated.

Whenever, in the opinion of the city health officer, conditions inside or under occupied business buildings provide extensive harborage for rats, the health officer may, after due notification in accordance with Section 8.48.030, close the business buildings until the conditions are abated. Abatement includes ratproofing and harborage removal, including, if necessary, the installation of suitable concrete floors in basements or the replacement of wooden first or ground floors with concrete or other major repairs necessary to facilitate rat eradication. (2001 In-house code § 22-6)

8.48.060 Condemnation of building when owner fails to abate.

If conditions inside or under unoccupied building are not corrected within sixty (60) days after notice, the city health officer may institute condemnation and destruction proceedings. A written extension may be granted by the city health officer. (2001 In-house code § 22-7)

8.48.070 Compliance upon construction, repair or remodeling of buildings.

No person will construct, repair or remodel any building, dwelling or other structure unless the construction, repair, remodeling or installation makes the building or structure ratproof in accordance with the regulations of this chapter. The provisions of this section do not apply to any construction, repairs, remodeling or installation if it does not affect the ratproof conditions of the building or structure. (2001 In-house code § 22-8)

8.48.080 Ratproofing of buildings where food stored and handled.

No person will occupy any new or existing business buildings where foodstuffs are to be stored, kept, handled, sold, held or offered for sale without complying with this chapter. Unless the provisions of this section are followed, no city license or permit to conduct or carry on such business shall be issued. (2001 In-house code § 22-9)

8.48.090 Storage of animal feed.

All food and feed within the city intended for human consumption or for animals allowed within the city under the provisions of Title 6 shall be stored in rat-free and ratproof containers, compartments, rooms or buildings. (2001 In-house code § 22-10)

8.48.100 Accumulation of lumber, boxes and bottles.

No person shall accumulate on any improved or vacant premises or on any open lot or alley any lumber, boxes, barrels, bottles, cans, containers or similar materials unless they are placed on open racks that are elevated not less than eighteen (18) inches above the ground and evenly piled or stacked. (2001 In-house code § 22-11)

Chapter 8.52

HANDBILLS

Sections:

8.52.010 **Purpose—Authority—General provisions.**

8.52.020 **Tacking or fastening posters to trees or buildings.**

8.52.030 **Removal of illegal advertisements and posters.**

8.52.040 **Reserved.**

8.52.050 **Inhabited private premises.**

8.52.060 **Prohibited where properly posted.**

8.52.070 **Unlawful, depositing on uninhabited or vacant premises—Placing on vehicles.**

8.52.080 **Exemptions.**

8.52.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to provide regulations concerning the placement of advertisements or placards on buildings, fences, poles, trees or structures, and distribution of handbills within the city.

B. The provisions of this chapter are pursuant to authority granted cities and towns under Wyo. Stat. Section 15-1-101, et. seq. and Wyo. Stat. Section 22-1-101, et. seq. (State Election Code). (2001 In-house code § 3-1)

8.52.020 Tacking or fastening posters to trees or buildings.

Except as otherwise provided by state law, this code or other ordinances of the city, no placard or advertisement of any kind shall be tacked or in any way fastened to a building, fence, pole, tree or structure of any kind in the city. (2001 In-house code § 3-2)

8.52.030 Removal of illegal advertisements and posters.

In addition to the penalty provided by this code or state law, any person violating this chapter must remove every placard or advertisement which has been posted by or for him, within three days of being requested to do so. (2001 In-house code § 3-3)

8.52.040 Reserved.

Editor's note—Ord. No. 4146, § 1, approved on July 11, 2016, repealed § 8.52.040. Former § 8.52.040 pertained to the distribution of handbills in public places and derived from the 2001 In-house code.

8.52.050 Inhabited private premises.

No person may throw, deposit or distribute any handbill in or upon private premises which are inhabited, except by handing or transmitting any such handbill directly to the owner, occupant or other person present in or upon such private premises willing to accept same; provided, however, that in case of inhabited private premises which are not posted, such person, unless requested by anyone upon such premises not to do so, may place or deposit any such handbill in or upon such premises if the handbill is placed or deposited securely to prevent the handbill from being blown or drifted about such premises or sidewalks, streets or other public places, and except that mailboxes may not be so used when so prohibited by federal postal law or regulation. (2001 In-house code § 3-5)

8.52.060 Prohibited where properly posted.

No person may throw, deposit or distribute any handbill upon any private premises, if requested by the owner, occupant or other person present upon such premises not to do so, or if there is placed on the premises a sign bearing the words: "No Trespassing," "No Soliciting," "No Peddlers or Agents," "No Advertisement," or any similar notice indicating in any manner that the occupant(s) of the premises do not wish to have their right of privacy disturbed, or to have any handbills left upon the premises. (2001 In-house code § 3-6)

8.52.070 Unlawful, depositing on uninhabited or vacant premises—Placing on vehicles.

Throwing or depositing of handbills upon uninhabited or vacant private premises is not allowed, nor shall any person throw or deposit any handbill in or upon any motor vehicle. (2001 In-house code § 3-7)

8.52.080 Exemptions.

The provisions of this chapter do not apply to the distribution of mail by the United States Postal Service, nor to newspapers, except that newspapers must be placed upon private property in such a manner as to prevent it being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property. (2001 In-house code § 3-8)

Chapter 8.56

NOISE CONTROL

Sections:

8.56.010	**Prohibited when excessive; penalty.**
8.56.020	**Exceptions.**
8.56.030	**Violation generally.**
8.56.040	**Measurement.**
8.56.050	**Reserved.**
8.56.060	**Permit for relief from designated levels.**
8.56.070	**Loudspeakers, sound cars, and sound trucks.**
8.56.080	**Use of engine compression brakes prohibited.**

8.56.010 Prohibited when excessive; penalty.

No person shall make or otherwise create excessive or unusually loud noise within the city as heard without measurement or heard and measured as provided by Section 8.56.040 of this chapter, except when made under and in compliance with a permit issued under Section 8.56.060 of this chapter. Any person who violates this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00). (Ord. No. 4553, § 1, 3-11-24; 2001 In-house code § 30-34)

Editor's note—Ord. No. 4553, § 1, adopted March 11, 2024, amended § 8.56.010 and in doing so changed the title of said section from "Prohibited when excessive" to "Prohibited when excessive; penalty," as set out herein.

8.56.020 Exceptions.

The requirements, prohibitions and terms of this chapter shall not apply to any authorized emergency vehicle, when responding to an emergency call or acting in time of emergency, and shall not apply to those activities of a temporary duration, permitted by law and for which a license or permit therefor has been granted by the city, including but not limited to parades and fireworks displays. (2001 In-house code § 30-35)

8.56.030 Violation generally.

It is unlawful for any person to operate any type of vehicle, machine or device or carry on any other activity in such a manner as would be a violation of the provisions of this chapter. (2001 In-house code § 30-36)

8.56.040 Measurement.

For the purpose of determining and classifying any noise as excessive or unusually loud as described to be unlawful and prohibited by this chapter, the following test measurements and requirements may be applied; provided, that a violation of this chapter may occur without the following measurements being made:

A. The noise shall be measured within the city at a distance of at least twenty-five (25) feet from a noise source located within the public right-of-way and if the noise source is located on private property or at least twenty-five (25) feet from the property line of the property on which the noise source is located.

B. The noise shall be measured on a decibel or sound level meter of standard design and quality operated on the "A" weighing scale.

C. A noise measured or registered as provided above from any source other than as provided in this chapter, more than eighty (80) decibels on the "A" weighting scale in intensity is declared to be excessive and unusually loud and is unlawful.

D. A noise measured or registered as provided above from a vehicle on a prescribed truck route at all times or elsewhere within the city during the hours of seven a.m. to six p.m. on Monday through Saturday with a manufacturer's gross weight rating of ten thousand (10,000) pounds and above more than eighty-eight (88) decibels on the "A" weighting scale in intensity is declared to be excessive and unusually loud and is unlawful. (2001 In-house code § 30-37)

8.56.050 Reserved.

Editor's note—Ord. No. 4643, § 3, adopted Sept. 22, 2025, repealed § 8.56.050, which pertained to motor vehicle mufflers and derived from 2001 In-house code § 30-38.

8.56.060 Permit for relief from designated levels.

Application for a permit for relief from noise levels designated in this chapter may be made to the city clerk on forms provided. The permit fee will be fifteen dollars ($15.00) and will be issued pursuant to licensing provisions of Chapter 5.04 and 5.08 of this code. The chief of police may prescribe conditions deemed necessary to minimize adverse effects upon the community or the surrounding neighborhood, as a condition to the issuance of a permit. (Ord. No. 4222, § 1, 4-23-18; Ord. No. 3845, § 1, 6-8-09; Ord. 3715 § 1 (part), 2006; 2001 In-house code § 30-39)

8.56.070 Loudspeakers, sound cars, and sound trucks.

No person shall operate upon any street, alley or public property of the city any loudspeakers, sound cars or sound trucks without first obtaining written permission from the police chief and a permit in accordance with Section 8.56.060. A copy of the written permission shall be kept on file in the office of the city clerk outlining the parameters of the approval. (Ord. No. 4328, § 1, 11-9-20; 2001 In-house code § 30-40)

8.56.080 Use of engine compression brakes prohibited.

No person shall operate or use any vehicle engine compression brake within the corporate limits of the city. (Ord. 3504 § 1, 2002)

Chapter 8.60

NUISANCES

Sections:

8.60.010 Purpose—Authority—General provisions.

8.60.020 Definitions.

8.60.030 Nuisances prohibited.

8.60.035 Care and maintenance of right-of-way adjacent to private properties.

8.60.040 Responsibility for compliance.

8.60.050 Weeds as a nuisance.

8.60.060 Junk and trash as a nuisance.

8.60.070 Appliances with doors and lids intact as a nuisance.

8.60.080 Non-compliant and oversized vehicles as a nuisance.

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8.60.200 Emergency abatement.

8.60.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to regulate and abate nuisances occurring within the city for the purpose and intent of promoting and providing for the health, safety and general welfare of the citizens of the city.

B. Pursuant to authority granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xix) and Wyo. Stat. Section 35-10-408, the regulation and abatement of nuisances occurring within the city is governed by this chapter. (2001 In-house code § 29-1)

8.60.020 Definitions.

A. As used in this chapter:

1. "Abate" or "abatement" means action taken to remove or alleviate a nuisance, including, but not limited to, demolition, removal, repair, boarding or securing of property;

2. "Board of adjustment" means the board created pursuant to Section 2.84.070 of the city code. The board shall hear appeals under Section 8.60.142 of this chapter;

3. "Code enforcement officer" means an employee of the city who enforces the city code;

4. "Notice to abate" means a written notice prepared by the nuisance officer to provide notice of the nuisance and the steps deemed necessary to abate the nuisance;

5. "Nuisance" means any use or nonuse of property that produces to others a material injury, annoyance, inconvenience or discomfort, and which endangers life or health, or gives offense to the senses of persons with normal or average sensibilities, and/or ordinary tastes and habits;

6. "Nuisance officer" means a code enforcement officer, a peace officer under Chapters 2.20 and 2.28 of the city code or a community service

officer under Chapter 2.29 of the city code, within the Cheyenne police department who is authorized to enforce the provisions of this chapter;

7. "Occupant" means any person occupying the property;

8. "Oversized vehicle" shall mean any vehicle or any combination of vehicles which exceeds twenty-five (25) feet in length, nine (9) feet in height or eight feet six inches in width, exclusive of projecting lights and other devices allowed by Wyo. Stat. Title 31, Chapter 5, Article 9. "Oversized vehicle" shall not include any:

a. Vehicle that has been specially adapted or modified to be accessible for people with disabilities; or

b. Tractor unit subject to Section 10.52.020 of the Cheyenne city code;

9. "Owner" means the record owner of the property as indicated in the files of the county clerk and ex officio registrar of deeds for Laramie County, the files of the Laramie County assessor or as demonstrated on a vehicle's registration records;

10. "Property" means any real or personal property within the city that regulated by this chapter and the subject of a notice to abate issued by the nuisance officer; and

11. "Vehicle" means any device, in, upon, or by which a person or property may be transported or drawn upon a public street, alley or highway, including house trailers and transportable homes that are not installed on a permanent foundation and not taxable as real property. (Ord. No. 4601, § 1, 12-9-24; Ord. No. 4413, § 1, 1-24-22; Ord. No. 4153, § 2, 8-8-16; 2001 In-house code § 29-2)

8.60.030 Nuisances prohibited.

It is unlawful for any person to maintain or permit the existence of any nuisance upon any property within the city. (2001 In-house code § 29-3)

8.60.035 Care and maintenance of right-of-way adjacent to private properties.

Owners of private properties are responsible for care and maintenance of right-of-way to their properties. Care and maintenance include mowing, weed control, trees, shrubs, vines, snow removal, removal of refuse and trash, and removal of hazardous conditions. For purposes of this section, adjacent right-of-way includes the area from the adjacent street curb to the owner's property and the area from the traveled portion of the alley to the owner's property. (Ord. No. 4413, § 1, 1-24-22; Ord. 3463 § 1, 2002)

8.60.040 Responsibility for compliance.

It is the responsibility of the owner(s) and/or occupant(s) of property to comply with the provisions of this chapter. (2001 In-house code § 29-4)

8.60.050 Weeds as a nuisance.

A. Six (6) Inches in Height. Except as provided in subsection C of this section, all grasses, weeds, and rank and other troublesome and harmful vegetation growing upon any lot or parcel of land outside the traveled portion of any street or alley in the city that exceed a height of six (6) inches are a nuisance.

B. Noxious Weeds. All noxious weeds within the city are a nuisance. As used in this subsection, "noxious weeds" means any plant species designated by the Wyoming Board of Agriculture and the Wyoming Weed and Pest Council.

C. Subsection A of this section shall not apply to:

1. Native or naturalized vegetation, including but not limited to grasses, flowers, shrubs, or other plant species not classified as noxious weeds, that are:

a. Authorized for a subject lot or parcel of land as part of the site plan approved by the city in accordance with the requirements imposed under Cheyenne Unified Development Code;

b. Located within any lot, parcel or portion thereof formally designated as a natural area in accordance with the Cheyenne Unified Development Code;

c. Located within any residentially or agriculturally zoned lot or parcel having a total area of eight-tenths (0.8) of an acre or greater; or

d. Located on a lot or parcel or portion thereof managed by the city under a sustainable landscape plan intended to promote native species, reduce irrigation and chemical use, mitigate weed growth, and control erosion.

2. Any lot, parcel or portion thereof cultivated and maintained for aesthetic purposes, as determined by the compliance department; or

3. Any portion of the greenway, as identified in the city's greenway development plan, upon the approval by the compliance department. (Ord. No. 4647, § 1, 10-27-25; Ord. No. 4413, § 1, 1-24-22; Ord. 3585 § 1 (part), 2004; 2001 In-house code § 29-5)

8.60.060 Junk and trash as a nuisance.

A. Junk Defined. "Junk" is defined as furniture, appliances, metal products, wood pilings, rubber and plastic products, cardboard or paper pilings, discarded bricks and concrete and other products or materials which are no longer in use for their intended purpose, or any other reasonable purpose, and which are clearly visible from any adjoining lot, street or alley.

B. Trash Defined. "Trash" is defined as dead plants or grass pilings, separated tree limbs, trunks or other vegetation which have no reasonable aesthetic value or other reasonable purpose and which are clearly visible from any adjoining lot, street or alley. "Trash" does not include residential noncommercial composting of trash generated at a residence, provided the composting is conducted in such a manner and at a location that it does not pose a significant health risk or offend persons of ordinary sensibilities.

C. Junk and Trash a Nuisance. All junk and trash within the city is a nuisance. (2001 In-house code § 29-6)

8.60.070 Appliances with doors and lids intact as a nuisance.

Refrigerators, freezers, washers and dryers with doors or lids intact which are stored outside a dwelling are a nuisance and an immediate threat to the health, safety and welfare of children. These nuisances shall be removed immediately from property within the city. Nuisance officers are authorized to remove and dispose of such nuisances, without prior notice, from the property where they are located and to charge the owner(s) and/or occupant(s) of the property involved for the costs as set forth in Section 8.60.160. (2001 In-house code § 29-7)

8.60.080 Non-compliant and oversized vehicles as a nuisance.

A. A vehicle that is found to be in one or more of the following conditions shall be deemed noncompliant and constitute a nuisance:

1. A vehicle with any of its tires (which could under normal operating conditions be in contact with the road) missing or deflated for more than seven calendar days;

2. A vehicle which is totally or partially suspended above the ground by jacks, blocks or other devices for more than seven calendar days, except for a vehicle undergoing active repair;

3. A vehicle which does not display a current license plate, tag or valid temporary permit for more than seven calendar days, except those in possession of licensed dealers for the purpose of sale at the place licensed for the sale; or

4. A vehicle on which any component of the vehicle has been removed or is inoperable so as to render the vehicle inoperable and such vehicle remains in substantially the same condition for more than seven calendar days.

B. In addition to the vehicle nuisance provisions provided under subsection A of this section, no oversized vehicle shall be parked along any public roadway of the city of Cheyenne between Labor Day and Memorial Day. Any oversized vehicle found parked along a public roadway shall constitute a nuisance and may be subject to abatement as provided in this chapter. Notwithstanding this prohibition, an oversized vehicle may be parked along a public roadway:

1. Between Memorial Day and Labor Day, and for not more than the five consecutive calendar days directly preceding Memorial Day and

not more than the five consecutive calendar days directly following Labor Day for the purpose of loading, unloading, winterizing or de-winterizing the vehicle;

2. If the owner of the vehicle possesses a temporary oversized vehicle permit issued in accordance with Section 10.52.020.F of the city code; or

3. If the vehicle operates as a mobile food truck and otherwise complies with the requirements imposed under Title 8, Chapter 8.40, of the city code.

C. Nothing provided in subsection B of this section shall be interpreted to authorize any person to park an oversized vehicle in violation of Section 10.52.030 of the city code. (Ord. No. 4601, § 1, 12-9-24; Ord. No. 4413, § 1, 1-24-22; Ord. No. 4179, § 1, 6-12-17; Ord. 3585 § 1 (part), 2004; 2001 In-house code § 29-8)

Editor's note—Ord. No. 4601, § 1, adopted Dec. 9, 2024, amended § 8.60.080 and in doing so changed the title of said section from "Non-compliant vehicles as a nuisance" to "Non-compliant and oversized vehicles as a nuisance," as set out herein.

8.60.090 Snow, ice or slush as a nuisance.

A. Sidewalks. Snow, ice or slush on a sidewalk is a nuisance, whether the sidewalk is on a vacant lot or a lot containing a building of any kind. For purposes of this subsection, sidewalk includes any space where a sidewalk should or may be constructed. In the event of a dispute as to where a sidewalk should or may be constructed, the chief of police shall make the determination. Owner(s) and/or, if appropriate, the occupant(s) of property abutting a sidewalk shall within a twenty-four (24) hour period, after a snowfall, remove snow, ice or slush from such sidewalks and maintain them free of the same. If any owner(s) and/or, if appropriate, the occupant(s) of the property fails to comply with this subsection, the nuisance officers may, after a reasonable effort to contact the owner and/or occupant either in person or by telephone, have the snow, ice or slush removed and charge the owner(s) and/or, as appropriate, the occupant(s) for the costs thereof as set forth in Section 8.60.160.

B. Piling of Snow, Ice or Slush in Streets. The piling of snow, ice or slush from sidewalks, parking areas and driveways in a manner that creates an unreasonable hindrance or safety hazard to pedestrians or vehicles in the public streets is a nuisance. If any owner(s) and/or, if appropriate, occupant(s) of property violate, or permit the violation of, this subsection, the nuisance officers may, after a reasonable effort to contact the owner and/or occupant either in person or by telephone, abate such nuisance and charge the owner(s) and/or occupant(s) for the costs as set forth in Section 8.60.160. This subsection does not apply to properties with zero foot setbacks in the central business district zone. (Ord. 3585 § 1 (part), 2004; 2001 In-house code § 29-9)

8.60.100 Reserved.

Editor's note—Ord. No. 4413, § 1, adopted Jan. 24, 2022, repealed § 8.60.100, which pertained to bees as a nuisance and derived from 2001 In-house code § 29-10; and Ord. No. 4153, § 3, adopted Aug. 8, 2016.

8.60.110 Reserved.

Editor's note—Ord. No. 4153, § 4, approved on August 8, 2016, repealed § 8.60.110. Former § 8.60.100 pertained to general notice to be published by nuisance officers and derived from the 2001 In-house code.

8.60.120 Abatement authorized.

Subject to the procedures specified in this chapter, nuisance officers are authorized to abate any nuisance existing in the city and to perform all other lawful acts and duties appropriate to the enforcement of this chapter. (Ord. No. 4153, § 5, 8-8-16; 2001 In-house code § 29-12)

8.60.130 Right of entry.

Subject to the procedures specified in this chapter, nuisance officers and the city's agents are authorized to enter upon any property or premises, excluding a dwelling unit, at any reasonable time for the purpose of inspecting properties, abating a nuisance or performing other duties as described in this chapter. (Ord. No. 4153, § 6, 8-8-16; 2001 In-house code § 29-13)

8.60.140 Notice to abate.

A. Service. Except for those nuisances described in Sections 8.60.050, 8.60.070 and 8.60.090 of this chapter, upon making a determination that a nuisance exists, the nuisance officer shall prepare and issue a notice to abate the nuisance. The notice to abate shall be served in the following manner:

1. The notice to abate shall be sent by certified mail, return receipt requested, to the owner of the property subject to the abatement; and

2. The notice to abate shall be posted on the property subject to the abatement. The posting officer shall make a written record of the date, time and place the notice to abate was posted at or upon the property.

B. Date of service. Service of the notice to abate shall be deemed completed upon the expiration of three business days following the date of mailing of the notice to abate by certified mail.

C. Content. The notice to abate shall contain not less than the following information:

1. Citation of applicable provisions of the city code;

2. A statement which clearly and concisely describes the nature of the violation, including the date and time of the inspection of the property;

3. Legal description or street address, as appropriate, of the property or properties subject to the notice to abate;

4. Proper method of abatement to correct the violation;

5. Possible consequences for failure to comply;

6. The compliance date by which the nuisance must be abated. The owner or occupant shall have ten (10) business days from the date of service of the notice to abate:

a. To have the nuisance abated as specified in Section 8.60.141(A) of this chapter;

b. To ask for an extension of time to complete the abatement as specified in Section 8.60.141(B) of this chapter; or

c. To appeal the finding that a nuisance exists as specified in Section 8.60.142 of this chapter.

7. A statement that it is illegal to remove the posted notice to abate from the property until the nuisance has been abated and the nuisance officer has been notified; and

8. The name, title, business telephone number and business e-mail address of the posting or issuing official. (Ord. No. 4601, § 1, 12-9-24; Ord. No. 4153, § 7, 8-8-16; Ord. 3585 § 1 (part), 2004; 2001 In-house code § 29-14)

Editor's note—Ord. No. 4153, § 7, approved August 8, 2016, repealed § 8.60.140 and enacted a new § 8.60.140 as set out herein. Former § 8.60.140 pertained to similar subject matter and derived from Ord. No. 3585, approved in 2004; and the 2001 In-house code)

8.60.141 Abatement by owner or occupant.

A. The owner or occupant of the property subject to the abatement, shall abate the nuisance, and provide proof of abatement to the nuisance officer who issued the notice to abate within ten (10) business days from the date of service of the notice to abate.

B. In the event the owner or occupant of the property subject to the abatement is unable to abate the nuisance within the time specified in the notice to abate, but has undertaken substantial steps toward abatement, the nuisance officer who issued the notice to abate may grant an extension of time to abate the specified nuisance, subject to such conditions as may be specified by that nuisance officer.

1. A request for an extension of time to abate a nuisance must, within ten (10) business days from the date of service of the notice to abate, be either:

a. Filed in writing with the nuisance officer who issued the notice to abate; or

b. Filed electronically pursuant to an e-mail properly addressed to the official business e-mail address of the nuisance officer who issued the notice to abate.

2. The filing of a request for extension of time to abate a nuisance constitutes a waiver of the right to appeal the finding of the nuisance officer that a nuisance exists.

3. An extension of time to abate a nuisance shall be valid only if the extension is granted pursuant to a written notice specifying the new compliance date and the terms and conditions of the extension of time. No extension may be granted for a period in excess of thirty (30) days from the compliance date specified in the original notice to abate. No more than one extension may be granted.

4. The filing of a request for extension of time to abate a nuisance shall not constitute a notice of appeal under Section 8.60.142 of this chapter.

5. In the event an extension of time is not requested, a nuisance is not fully abated on or before the compliance date stated in the written notice of extension, or a notice of appeal is not timely filed in the office of the development department director under Section 8.60.142 of this chapter, the right to contest the nuisance will have been waived and the city shall have the right to enter the property and abate the nuisance found thereon in accordance with Section 8.60.150 of this chapter. (Ord. No. 4153, § 8, 8-8-16)

8.60.142 Appeal process; hearing.

A. The owner of occupant of the property subject to a notice of abatement may, within ten (10) business days from the date of service of the notice of abatement, file a notice of appeal, in

writing, in the office of the city development department director. A notice of appeal may not be filed electronically.

1. In the event a notice of appeal is not filed within the time specified in subsection A., of this section, the owner or occupant shall be deemed to have waived the right to appeal and shall be deemed to have admitted the validity of the notice to abate and the accuracy of all findings stated therein.

2. In the event a notice of appeal is filed within the time specified in subsection A., of this section, the notice of appeal automatically stays the duty to comply with the notice to abate issued pursuant to Section 8.60.140 of this chapter.

B. Upon the filing of a timely notice of appeal, the hearing officer in accordance with the city's administrative hearing process in Chapter 2.92 shall conduct a hearing within forty-five (45) days after the date of filing of the notice of appeal. The hearing officer shall issue a written notice of hearing, in the form provided by the Wyoming Administrative Procedure Act, to the appealing party, not less than ten (10) business days prior to the date of the hearing.

C. The hearing shall be conducted in accordance with the contested case provisions of the Wyoming Administrative Procedure Act. The hearing shall also be subject to state laws applicable to public meetings.

D. Upon review of the evidence submitted at the hearing, the hearing officer shall affirm or reverse the finding that a nuisance exists at the property at issue.

1. In the event the hearing officer affirms the finding that a nuisance exists at or upon the property or properties that are the subject of the appeal, the hearing officer shall enter a written order containing such findings and conclusions as shall be appropriate, setting forth the terms and conditions of abatement, and setting forth a schedule for the abatement of any such nuisance as is determined to exist, with a compliance date not to exceed thirty (30) days from the date of the written order. The written order shall be filed in the office of the development department director and served upon the parties to the appeal by mail.

2. In the event the hearing officer reverses the finding that a nuisance exists at or upon the property or properties that are the subject of appeal, the hearing officer shall enter a written order containing such findings and conclusions as shall be appropriate. The written order shall be filed in the office of the development department director and served upon the parties to the appeal by mail.

E. Any owner or occupant of property aggrieved by a decision of the board of adjustment may seek judicial review in the manner provided by the Wyoming Administrative Procedure Act and the Wyoming Rules of Appellate Procedure. (Ord. No. 4413, § 1, 1-24-22; Ord. No. 4386, § 1, 7-12-21; Ord. No. 4153, § 9, 8-8-16)

Editor's note—Ord. No. 4413, § 1, adopted Jan. 24, 2022, amended § 8.60.142 and in doing so changed the title of said section from "Hearing process" to "Appeal process; hearing," as set out herein.

8.60.150 Abatement by the city.

In the event the nuisance is not abated within the time specified in Sections 8.60.141(A), 8.60.141(B) or 8.60.142(C) of this chapter, the city shall have the right to enter the property and abate the nuisance found thereon or authorize a private contractor or other designated agent to do so. (Ord. No. 4386, § 1, 7-12-21; Ord. No. 4153, § 10, 8-8-16; 2001 In-house code § 29-15)

8.60.160 Costs of abatement; notice of assessment.

A. Upon completion of abatement by the city, the city shall complete a statement of costs. The statement shall include the costs of abatement and any other expenses incurred by the city, plus an administrative fee in the amount of fifty (50) percent of the abatement costs.

B. The city shall send written notice of the city's costs of the abatement to the owner of the property by certified mail, return receipt requested.

C. If abatement for junk, trash, or appliances is completed by the city using the city's sanitation services, the sanitation division is authorized to

bill the costs of any such abatement, plus the administrative fee provided by subsection A. of this section, to the owner of the property that is the subject of the abatement.

D. If the city engages an independent contractor for abatement of grass, weeds, snow, or ice, the compliance department is authorized to bill the costs of the abatement plus the administrative fee provided by subsection A. of this section, to the owner of the property that is the subject of the abatement. (Ord. No. 4386, § 1, 7-12-21; Ord. No. 4153, § 11, 8-8-16)

Editor's note—Ord. No. 4153, § 11, approved August 8, 2016, repealed § 8.60.160 and enacted a new § 8.60.160 as set out herein. Former § 8.60.160 pertained to similar subject matter and derived from Ord. No. 3837, approved December 22, 2008; Ord. 3781, approved in 2007; and the 2001 In-house code)

8.60.170 Nuisance files to be maintained.

The Cheyenne compliance department shall maintain a database record of all nuisance violations, and the nature of the violations as prescribed by state law and city code. (Ord. No. 4386, § 1, 7-12-21; Ord. No. 4153, § 12, 8-8-16)

Editor's note—Ord. No. 4153, § 12, approved August 8, 2016, repealed § 8.60.170 and enacted a new § 8.60.170 as set out herein. Former § 8.60.170 pertained to similar subject matter and derived from Ord. No. 3585, approved in 2004; and the 2001 In-house code)

8.60.180 Collection of costs of abatement; filing of lien.

If an owner or occupant of property to which a statement of costs has been sent fails to pay the costs of abatement within thirty (30) days after notification, the city attorney may file an appropriate lien with the county clerk and ex officio registrar of deeds for Laramie County. The lien shall contain the legal description of the property involved, the amount of the unpaid bill, and a notice that the city claims a lien for its costs of abatement. A lien for abatement costs may be foreclosed in accordance with the laws of the state of Wyoming. In addition, the city may pursue any remedies provided by law including assignment of the claim for costs of abatement to a collection agency. (Ord. No. 4386, § 1, 7-12-21; Ord. No. 4153, § 13, 8-8-16; Ord. 3585 § 1 (part), 2004; 2001 In-house code § 29-18)

8.60.181 Notice to lienholder.

Upon abatement by impoundment of any junk vehicle, as defined in Section 8.60.080, the city shall provide written notification to any lienholder of record, stating the grounds for removal and the name of the garage or place of impoundment of such vehicle. Notice shall not be required if the retail value of the junk vehicle is less than two thousand dollars ($2,000.00), as determined by the nuisance officer, as defined in Section 8.60.020. The city shall forward a copy of the notice to the owner and the person in charge of the garage or place of impoundment.
(Ord. No. 4179, § 2, 6-12-17)

8.60.182 Junk vehicle impoundment; transfer of title to the city.

If the city has abated any junk vehicle by impoundment, and the owner or lienholder of the junk vehicle fails to reclaim such junk vehicle and pay the costs of the abatement within thirty (30) calendar days after the abatement by impoundment, title to the junk vehicle shall vest in the city. If the owner of the junk vehicle fails to reclaim any personal property located inside the junk vehicle during the impoundment period, the city shall dispose of that personal property at the conclusion of the impoundment period. A change in title to the impounded junk vehicle may be obtained by the city according to the authority of this chapter and the procedure established in state statutes to obtain a change in title.
(Ord. No. 4179, § 2, 6-12-17)

8.60.183 Owner may recover proceeds from sale.

At any time within one year after the disposal by sale of a junk vehicle, the former owner of the junk vehicle may recover the proceeds from such sale, less all costs incurred and assessed by the city, by filing a claim with the city treasurer. Upon proper proof of former ownership, the city treasurer shall issue a check in favor of such claimant for such amount, subject to any priority claims and pursuant to applicable state statutes. If no

claim is made by the former owner within one year after the date of sale, such proceeds shall be credited to the general fund of the city treasurer as a recovery and the former owner shall be precluded from any claim to such proceeds.
(Ord. No. 4179, § 2, 6-12-17)

8.60.190 Prosecution as a misdemeanor.

A. In addition to the authority to abate nuisances provided by this chapter, the nuisance officer has the authority to issue citations for violations of this chapter. It is unlawful for any person to violate any provision of this chapter and any violation is punishable pursuant to the general penalty provisions contained in Section 1.24.010 of the city code.

B. A misdemeanor citation shall not be issued unless, a notice to abate pursuant to Section 8.60.140 has been issued to the owner and posted on the property and the nuisance has not been abated within the time specified in the notice, or a failure to abate the nuisance as identified in Sections 8.60.050, 8.60.070 or 8.60.090 where no posting is required prior to abatement. (Ord. No. 4153, § 14, 8-8-16; 2001 In-house code § 29-19)

8.60.200 Emergency abatement.

If a nuisance exists on any property in the city that presents a substantial risk to public health or safety and if the compliance director, or designee, makes a determination that the nuisance must be abated on an emergency basis, the compliance director may authorize the nuisance officer to immediately proceed to abate the nuisance without notice or hearing. The determination of costs shall be subject to the provisions of Section 8.60.160 of this chapter. A notice of emergency abatement shall be served thereafter as soon as is reasonably practicable. The owner or occupant of a property subject to a notice of emergency abatement may, within ten (10) days from the date of service of the notice of emergency abatement, file with the city clerk a written request for a hearing in accordance with Chapter 2.92, Administrative Hearing Procedure. The emergency abatement is not stayed during the pendency of the administrative hearing procedure. (Ord. No. 4386, § 1, 7-12-21; Ord. No. 4153, § 15, 8-8-16)

Chapter 8.64

SMOKING IN PUBLIC PLACES

Sections:

8.64.010	Purpose—Findings.
8.64.020	Definitions.
8.64.030	Application of chapter to city-owned facilities.
8.64.040	Prohibition of smoking in public places.
8.64.050	Prohibition of smoking in places of employment.
8.64.060	Distance to be observed from all entryways where smoking is prohibited.
8.64.070	Declaration of establishment as nonsmoking.
8.64.080	Where smoking is not regulated.
8.64.090	Public education.
8.64.100	Other applicable laws.
8.64.110	Citizen complaints—Procedures.
8.64.120	Posting of signs.
8.64.130	Nonretaliation.
8.64.140	Violations and penalties.
8.64.150	Enforcement.
8.64.160	Liberal construction.

8.64.010 Purpose—Findings.

A. The governing body of the city of Cheyenne does find that:

1. Numerous peer reviewed studies have found that tobacco smoke is a major contributor to indoor air pollution and that breathing secondhand smoke is a cause of disease in healthy nonsmokers, including heart disease, stroke, respiratory disease, and lung cancer. At special risk are children, elderly people, individuals with cardiovascular disease, and individuals with impaired respiratory function, including asthmatics and those with obstructive airway disease.

2. Health hazards induced by breathing secondhand smoke include lung cancer, heart disease, respiratory infection, and decreased respiratory function, including broncho-constriction and broncho-spasm.

3. A significant amount of secondhand smoke exposure occurs in the workplace. Employees who work in smoke-filled businesses suffer a twenty-five (25) to fifty (50) percent higher risk of heart attack and higher rates of death from cardiovascular disease and cancer, as well as increased acute respiratory disease and measurable decrease in lung function.

B. Accordingly, the governing body finds and declares that the purposes of the ordinance codified in this chapter are:

1. To protect the public health and welfare by prohibiting smoking in public places and places of employment; and

2. To guarantee the right of nonsmokers to breathe smoke-free air and to recognize that the need to breathe smoke-free air shall have priority over the desire to smoke. (Ord. 3705 § 2 (part), 2006)

8.64.020 Definitions.

As used in this chapter, the following terms shall have the following meanings, unless the context clearly indicates that a different meaning is intended:

"Business" means any legal entity including, but not limited to, sole proprietorship, partnership, joint venture, corporation or other business entity whether formed for profit-making or nonprofit purposes, including retail establishments where goods or services are sold, as well as professional corporations and other entities where legal, medical, dental, engineering, architectural or other professional services are delivered.

"City-owned youth athletic facilities" includes, but is not limited to, facilities where youth soccer, baseball, skateboarding and any other youth activities occur, whether the facility is enclosed or not.

"Electronic smoking device" means any device that can be used to deliver aerosolized or vaporized nicotine, tobacco, plant, or other product, including hookah and marijuana, whether natural or synthetic to the person inhaling from the device, including, but not limited to, an e-cigarette, e-cigar, e-pipe, vape pen or e-hookah excluding any device designed to deliver prescription medication.

"Employee" means any person who is employed by an employer in consideration for direct or indirect monetary wages or profit, and a person who volunteers his or her services for a nonprofit entity.

"Employer" means a person, business, partnership, association, corporation, trust, nonprofit entity, or a municipal corporation that employs the services of one or more individual persons.

"Enclosed area" means all space between a floor and ceiling that is enclosed on all sides by solid walls or windows, exclusive of doorways, which extend from the floor to the ceiling.

"Fire department" means the city of Cheyenne fire and rescue department.

"Health care facility" means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions including, but not limited to, hospitals, rehabilitation hospitals or other clinics, including weight control clinics, nursing homes, homes for the aging or chronically ill, laboratories, and offices of surgeons, chiropractors, physical therapists, physicians, dentists, and all specialists with these professions. This definition shall include all waiting rooms, hallways, private rooms, semi-private rooms, and wards with health care facilities.

"Outdoor patio" means an outdoor area, open to the air at all times, that is either:

1. Enclosed by a roof or other overhead covering and not more than two walls or other side coverings; or

2. Has no roof or other overhead covering at all regardless of the number of walls or other side coverings.

"Performance hall" means any area or facility that is primarily used for the exhibition of any motion picture, stage, drama, lecture, musical recital or other similar performances including, but not limited to, concert halls and theaters.

"Place of employment" means an area under the control of an employer which is intended for occupancy by employees during the course of employment including, but not limited to, work areas, employee lounges, restrooms, conference rooms, meeting rooms, classrooms, employee cafeterias, waiting areas, offices, stairways, and hallways. A private residence is not a "place of employment" unless it is used as a licensed child care, licensed adult day care, health care or pre-school facility, or any other aforementioned business.

"Private club" means those organizations or entities defined as a "club" in Wyo. Stat. Section 12-1-101(a)(iii), which are not open to the public.

"Public place" means an enclosed area to which the public is invited or in which the public is permitted including, but not limited to, banks, and other financial institutions, publicly funded buildings, public conveyances, recreational facilities, taverns, lounges, bars, educational facilities, health care facilities, laundromats, public transportation facilities, reception areas, restaurants, retail food production and marketing establishments, including grocery stores, supermarkets and stores where food items are sold for on-premises or off-premises consumption, retail service establishments, retail stores, shopping malls, sports arenas, theaters, and waiting rooms. A private residence is not a "public place" unless it is used as a licensed child care, licensed adult day care, health care or pre-school facility.

"Public transportation" means, but is not limited to, any enclosed mode of public transportation, including a train, passenger bus, school bus or other vehicle used to transport pupils, and taxi; or a vehicle that is owned by, or operated by a business and is open to the public, including tour vehicles, passenger buses or vans regularly used to transport customers. Notwithstanding the foregoing, a private vehicle not open to the public or not

used for the transportation of the public during the times of use, including a private passenger vehicle, a private charter or rental of a limousine, bus or van, shall not be considered public transportation.

"Restaurant" means an eating establishment including, but not limited to, coffee shops, cafeterias, and public and private school cafeterias, which gives or offers for sale food to the public, guests, or employees, as well as kitchens and catering facilities in which food is prepared on the premises and served elsewhere. The term "restaurant" shall include any tavern, lounge or bar area within the restaurant.

"Retail sales" means establishments engaged in the sale of goods or merchandise to the general public for personal or household consumption and rendering services incidental to the sale of such goods. A retail sales establishment is usually a place of business and is engaged in activity to attract the general public to make purchases.

"Shopping mall" means an enclosed public walkway or hall area that serves to connect retail sale or professional service establishments.

"Smoke" or "smoking" means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, pipe, or any other lighted or heated tobacco, nicotine, or other product intended for inhalation, including hookah and marijuana, whether natural or synthetic or the placement of smoking instruments containing a lighted tobacco, nicotine, plant or other product in an ashtray or other receptacle and allowing smoke to diffuse into the air. This definition does not include incense. "Smoke" or "smoking" also includes the use of an electronic smoking device.

"Smoking instrument" means any cigar, cigarette, electronic smoking device, pipe, hookah or water pipe, or any other smoking device.

"Sports arena" means sports pavilions, stadiums, gymnasiums, health spas, swimming pools, roller and ice rinks, bowling alleys, and other similar places where members of the general public assemble to engage in physical exercise, participate in athletic competition, or witness sports or other events.

"Tavern, lounge or bar" means any establishment open to the public whose primary source of revenue is from the sale of alcoholic liquor and malt beverages for consumption by guests on the premises and in which the serving of food is only incidental to the consumption of such beverages including, but not limited to, taverns, nightclubs, cocktail lounges, and cabarets.

"Youth" means any person who has not attained eighteen (18) years of age. (Ord. No. 4285, § 1, 8-26-19; Ord. 3705 § 2 (part), 2006)

8.64.030 Application of chapter to city-owned facilities.

All enclosed areas, including buildings and vehicles owned, leased or operated by the city of Cheyenne, shall be subject to the provisions of this chapter. (Ord. 3705 § 2 (part), 2006)

8.64.040 Prohibition of smoking in public places.

A. Smoking shall be prohibited in all enclosed areas of public places within the city including, but not limited to, the following:

1. Galleries, libraries and museums;
2. Areas available to and customarily used by the general public in businesses and for-profit or nonprofit entities patronized by the public including, but not limited to, professional offices, banks, laundromats, hotels and motels;
3. Bingo and/or pull tab gaming premises;
4. Convention facilities;
5. Elevators;
6. Taverns, lounges or bars;
7. Health care facilities;
8. Licensed child care, adult day care and preschool facilities;
9. Lobbies, hallways and other common areas in apartment buildings, condominiums, trailer parks, retirement facilities, nursing homes, and other multiple-unit residential facilities;
10. Performance halls;

11. Election polling places;

12. Private clubs;

13. Restaurants;

14. Restrooms, lobbies, reception areas, hallways, and other common-use areas;

15. Retail stores;

16. Rooms, chambers, places of meeting or public assembly, including school buildings, under the control of an agency, board, commission, committee or governing body of the city of Cheyenne, to the extent the place is subject to the jurisdiction of the city of Cheyenne;

17. Shopping malls;

18. Sports arenas and convention halls, including bowling facilities;

19. Public transportation;

20. City-owned youth athletic facilities. (Ord. 3705 § 2 (part), 2006)

8.64.050 Prohibition of smoking in places of employment.

A. Smoking shall be prohibited in all enclosed areas within places of employment including, but not limited to, common work areas, auditoriums, classrooms, conference and meeting rooms, elevators, hallways, medical facilities, cafeterias, employee lounges, stairs, restrooms, public transportation vehicles and all other enclosed facilities.

B. Employers affected by this chapter shall communicate the provisions of this chapter to all existing employees by the effective date of the ordinance codified in this chapter and to all prospective employees on their application for employment. (Ord. 3705 § 2 (part), 2006)

8.64.060 Distance to be observed from all entryways where smoking is prohibited.

In order to prevent secondhand smoke from entering a public place or place of employment where smoking is prohibited, every person who is smoking shall smoke a distance of at least ten (10) feet from all public entranceways, passageways, operable windows or ventilation systems of any enclosed area where smoking is prohibited. Any person who fails to comply with this provision after an oral request to cease smoking by the owner, operator, manager or other person having control of the smoke-free establishment or enclosed area shall be in violation of the provisions of this chapter. (Ord. 3705 § 2 (part), 2006)

8.64.070 Declaration of establishment as nonsmoking.

Notwithstanding any other provision of this chapter, an owner, operator, manager, or other person in control of an establishment, facility or outdoor area may declare that entire establishment, facility or outdoor area as a nonsmoking place. Smoking shall be prohibited in any place in which a sign conforming to the requirements of Section 8.64.120 of this chapter is posted. (Ord. 3705 § 2 (part), 2006)

8.64.080 Where smoking is not regulated.

A. Notwithstanding any other provision of this chapter to the contrary, the following areas shall be exempt from the provisions of Sections 8.64.040 and 8.64.050 of this chapter:

1. Private residences, except when used as a licensed child care, licensed adult day care, preschool or health care facilities;

2. Hotel and motel rooms that are rented to guests and are designated as smoking rooms;

3. Outdoor places of employment, except those expressly exempt from the provisions of Section 8.64.060 of this chapter;

4. Private offices, provided that the private office is not open to public, the public is not invited, and the office is not intended for occupancy by employees during the course of their employment;

5. Outside Patios. The opening of any sliding or folding windows or doors or other windows or doors from any part of the border to an outdoor patio shall be closed to prevent the migration of smoke into the enclosed area. If sliding or folding windows or doors or other windows or doors do not prevent the migration of smoke into the en-

closed building area, the outdoor patio shall be considered an extension of the enclosed area and subject to the prohibitions of this chapter;

6. Private or business vehicles, except those used for public transportation;

7. "Nicotine products retailers," which means any enclosed indoor workplace conforming with the definitions within Section 5.77.010 dedicated to or predominantly for the retail sale of tobacco and nicotine products, and accessories for such products, in which the sale of other products or services is incidental. To enter or be employed in a nicotine products retailer, persons must be at least twenty-one (21) years of age. (Ord. No. 4327, § 4, 10-26-20; Ord. 3705 § 2 (part), 2006)

8.64.090 Public education.

The city will disseminate public information to explain and clarify the purposes and requirements of this chapter. Information may include the availability of a brochure for affected businesses and individuals. (Ord. 3705 § 2 (part), 2006)

8.64.100 Other applicable laws.

This chapter shall not be interpreted or construed to permit smoking where it is otherwise restricted or prohibited. (Ord. 3705 § 2 (part), 2006)

8.64.110 Citizen complaints—Procedures.

A. Violations of this chapter may be reported to the Cheyenne police department at the time of violation by telephoning non-emergency dispatch. In addition:

1. The Cheyenne police department shall respond to complaints made for violations occurring at the time of the complaint. The Cheyenne police department may issue citations or warning tickets at the discretion of the responding officer.

2. Violators will be provided a copy of any warning ticket or citation issued. (Ord. 3705 § 2 (part), 2006)

8.64.120 Posting of signs.

A. "No Smoking" signs or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) shall be clearly and conspicuously posted in every public place and place of employment where smoking is prohibited by this chapter.

B. The owner, operator, manager or other person having control of an area where smoking is prohibited shall remove all ashtrays or other smoking instruments if their intended use is for smoking in such enclosed area. (Ord. 3705 § 2 (part), 2006)

8.64.130 Nonretaliation.

No person or employer shall discharge, refuse to hire, or in any manner retaliate against an employee, applicant for employment or customer because that employee, applicant, or customer exercises any rights afforded by this chapter or reports or attempts to prosecute a violation of this chapter. (Ord. 3705 § 2 (part), 2006)

8.64.140 Violations and penalties.

A. A person who violates the provisions of this chapter is guilty of a misdemeanor, punishable pursuant to the general provisions of Section 1.24.010 of the city code.

B. A person who owns, manages, operates or otherwise controls a public place or place of employment and who knowingly fails to comply with the provisions of this chapter after receiving oral or written notice from the city shall be guilty of a misdemeanor as set forth in subsection A of this section.

1. In addition to the penalties established by subsections A and B of this section, violation of this chapter by a person who owns, manages, operates, or otherwise controls a public place or place of employment may result in the suspension or revocation of any city permit or license issued to the person for the premises on which the violation occurred, pursuant to the ordinance under which the license is issued. Further, violation of this chapter constitutes a public nuisance.

C. Each separate violation of this chapter shall be considered a separate and distinct violation. (Ord. 3705 § 2 (part), 2006)

8.64.150 Enforcement.

A. Any Cheyenne police department law enforcement officer shall be authorized to enforce the provisions of this chapter.

B. Notice of the provisions of this chapter shall be given to all applicants for city business, food or alcohol-related licenses and permits and distributed through other means, as determined by the city.

C. Any citizen who desires to register a complaint under this chapter may initiate enforcement action under the procedures set forth in Section 8.64.010 of this chapter.

D. Failure of the owner, manager, operator or employee of an establishment to orally inform a person who smokes in an area where smoking is prohibited by the provisions of this chapter shall not constitute a defense. (Ord. 3705 § 2 (part), 2006)

8.64.160 Liberal construction.

This chapter shall be liberally constructed so as to further its purposes. (Ord. 3705 § 2 (part), 2006)

Chapter 8.68

CAMPING ON PUBLIC PROPERTY

Sections:

8.68.010	**Legislative findings and intent.**
8.68.020	**Applicability; definitions.**
8.68.025	**Sleeping on sidewalks, streets, alleys or within doorways prohibited.**
8.68.030	**Camping and campsites on public property prohibited; exception; penalty.**
8.68.035	**Camping allowed with lawful permit; permit administration.**
8.68.040	**Abatement of unlawful campsites; notice requirement; exception.**

8.68.010 Legislative findings and intent.

A. It is found and declared that:

1. The act of camping on public property tends to endanger the health and safety of those engaged in such camping as well as the public at large;

2. Campsites positioned on public property of the city of Cheyenne, including on undeveloped parcels, public rights-of-way, under bridges and on or near sidewalks, also undermine the public's ability to use that property for its intended purpose;

3. Camping on public property also creates unsafe and unsanitary living conditions which pose a threat to the peace, health and safety of the people who are camping and the community;

4. Some individuals have come to increasingly rely on public property for the purpose of camping and the establishment of campsites creates significant hazards for Cheyenne, including damaging water quality through the introduction of trash, human waste and other materials;

5. Many areas in Cheyenne are materially impacted by camping on public property, demonstrated by the presence of trash, discarded items of personal property, discarded shelter elements, and human waste;

6. Additionally, continued trash deposits into the waterways of the city negatively impact the city of Cheyenne's ability to effectively manage surface water runoff because trash can obstruct discharge pipes and otherwise impede the flow of surface water through the city's surface water runoff infrastructure;

7. Moreover, camping on public property not only presents dangers to the health and safety of those people camping but poses a threat to persons and property, including residents and property owners near those areas;

8. During high and extreme fire conditions, public property can face unique fire dangers due to dry brush and other abundant fuel sources, and combined with potential unregulated campfires, stoves and other incendiary camping supplies, such danger is only increased;

9. The enactment of this chapter is necessary to protect the peace, health, and safety of the city and its inhabitants. (Ord. No. 4606, § 2, 12-23-24; Ord. No. 4518, § 1, 7-24-23)

8.68.020 Applicability; definitions.

A. This chapter shall not be construed to modify, limit or supersede any requirement imposed under the Unified Development Code (UDC). To the extent there is a conflict between this chapter and the UDC, the UDC shall govern.

B. As used in this chapter:

1. "Abate" or "abatement" means the removal of all personal property, garbage and other foreign materials together with the reclamation and restoration of a campsite to its natural or lawful purpose;

2. "Campsite" or "camping" means an area where a person temporarily resides or dwells through use of a tent, tarpaulin, lean-to, sleeping bag, bedroll, blanket or any other form of cover or protection from the elements other than clothing;

3. "City" means as defined by Section 1.04.020 of the city code;

4. "Department" means the compliance department of the city of Cheyenne;

5. "Personal property" means any item that readily appears to belong to a person and has apparent value or utility in its present condition. Personal property does not include building materials, metal, makeshift shelters, rigid plastic, garbage, contraband, debris or waste.

6. "Public property" means any street, alley, sidewalk, bike path, greenway, park, parkway or any other structure or area encompassed within the public right-of-way and includes any other grounds, buildings or other facilities owned, leased or managed by the city, regardless of whether the public property is vacant or occupied and actively used for any public purpose;

7. "Reside or dwell" includes, without limitation, conducting such activities as eating, sleeping or the storage of personal possessions; and

8. "Unlawful campsite" means any area of public property as specified by Section 8.68.030(A) of this chapter upon which any person engages in the act of camping. (Ord. No. 4606, § 2, 12-23-24; Ord. No. 4518, § 1, 7-24-23)

8.68.025 Sleeping on sidewalks, streets, alleys or within doorways prohibited.

A. No person shall sleep on any public sidewalk, street or alleyway at any time as a matter of individual and public safety.

B. No person may sleep in any pedestrian or vehicular entrance to public or private property abutting a public sidewalk.

C. Any person who violates this section is guilty of a misdemeanor punishable by a fine of fifty dollars ($50.00). Any person found in violation of this section may also be immediately removed from the premises. Upon conviction for a violation of this section, if a defendant demonstrates that after receiving the citation and before the hearing, they meaningfully engaged with public or private resources or service providers to address the reasons that led them to be in violation, the court shall consider that information when determining the appropriate sentence. (Ord. No. 4606, § 1, 12-23-24)

8.68.030 Camping and campsites on public property prohibited; exception; penalty.

A. It is unlawful for any campsite to be situated on public property of the city. Every unlawful campsite shall be subject to abatement by the department in accordance with Section 8.68.040 of this chapter.

B. No person shall use or otherwise occupy any public property of the city of Cheyenne for camping purposes unless the person holds a valid permit issued in accordance with Section 8.68.035 of this chapter.

C. Any person who violates subsection (B) of this section is guilty of a misdemeanor punishable by a fine of not more than fifty dollars ($50.00). Any person found in violation of subsection (B) of this section may also be immediately removed from the premises. Upon conviction for a violation of subsection (B) of this section, if a defendant demonstrates that after receiving the citation and before the hearing, they meaningfully engaged with public or private resources or service providers to address the reasons that led them to be in violation, the court shall consider that information when determining the appropriate sentence. (Ord. No. 4606, § 1, 12-23-24; Ord. No. 4518, § 1, 7-24-23)

Editor's note—Ord. No. 4606, § 1, adopted Dec. 23, 2024, amended § 8.68.030 and in doing so changed the title of said section from "Unlawful campsites on public property prohibited; public property occupancy restriction; exception; penalty" to "Camping and campsites on public property prohibited; exception; penalty," as set out herein.

8.68.035 Camping allowed with lawful permit; permit administration.

A. Notwithstanding the prohibitions imposed under Section 8.68.030 of this chapter, a person may camp on public property of the city upon the issuance of a camping permit by the city clerk and payment of the associated permit fee as provided by this section. All applications for a camping permit shall be submitted to the city clerk on forms provided by the clerk and shall be submitted not less than ten (10) business days before the date the camping will occur. No permit may be issued

under this section except upon the approval of the clerk and the director of the community recreation and events department.

B. Before the issuance of any camping permit under this section, the director of the community recreation and events department shall:

1. Determine and keep a record of all parcels of public property of the city that are appropriate for camping and for which a camping permit may be issued under this section. In identifying any parcel for camping under this paragraph, the director shall only select those parcels, and the locations in each parcel, that will not overburden the surrounding community in terms of noise, traffic and environmental impact;

2. Prescribe the attendant camping permit fee for camping on a parcel of public property, which fee may vary by parcel of public property, but which shall only be in an amount sufficient to defer the costs and impacts associated with the camping activity; and

3. Prescribe permit conditions, the intent of which shall be provide for the proper maintenance and administration of the parcels upon which camping occurs and to protect public health and safety of the camping participants and the community.

C. Any person camping on a parcel of public property without a permit as provided by this section shall be guilty of a misdemeanor punishable by a fine of not more than fifty dollars ($50.00). Each day a person camps without a permit shall constitute a separate a distinct violation of this section. (Ord. No. 4606, § 1, 12-23-24)

8.68.040 Abatement of unlawful campsites; notice requirement; exception.

A. Any unlawful campsite identified by a law enforcement officer or other Cheyenne city employee is subject to abatement by the department. Upon the identification of an unlawful campsite the law enforcement officer or Cheyenne city employee shall promptly notify the department of the campsite and its location.

B. Upon receiving notice of an unlawful campsite under subsection (A) of this section, the department shall assess the condition of the campsite, prioritizing abatement on campsites that pose the greatest threat to public health and safety. When the department abates any campsite in accordance with this section, the public works department shall coordinate with the department to provide abatement assistance and support when necessary.

C. Except for emergency abatements as authorized under subsection (E) of this section, the department may only abate an unlawful campsite after satisfying the following conditions:

1. Providing all persons present at the unlawful campsite verbal or written notice of the date and time of the scheduled abatement;

2. Posting notice around the area of the unlawful campsite at intervals sufficient to advise any person entering the campsite of the date and time of the scheduled abatement. The department shall not be required to repost any previously posted notice that has been removed or destroyed prior to the scheduled abatement; and

3. The expiration of a forty-eight-hour notice period following the delivery of the notice as required under paragraphs (1) and (2) of this subsection.

D. The notices required under subsection (C) of this section shall include a statement:

1. Advising that both camping on and locating campsites on public property of the city is prohibited and that any person violating this prohibition is subject to criminal prosecution and that any unlawful campsite is subject to abatement by the city; and

2. That all personal property and any other property, contraband, litter or waste remaining at an unlawful campsite after the expiration of the forty-eight-hour notice period shall be considered abandoned and subject to removal and disposal by the city.

E. The required tolling of the forty-eight-hour notice period before an unlawful campsite may be

abated as required by paragraph (C)(3) of this section shall not apply and the campsite may be immediately abated by the department when:

1. There are grounds for law enforcement officials to believe that illegal activities are occurring at an established camping site;

2. The chief of the fire department, or his or her designee, determines abatement is necessary due to an emergency that presents an imminent threat to real property or to the health and safety of any person; or

3. An unlawful campsite is in a watercourse and there is an imminent threat of flooding due to a flash flood warning, flood warning or flood watch issued by the National Weather Service and confirmed by the city engineer.

F. Any personal property collected by the city because of an emergency abatement as authorized under subsection (E) of this section, which property does not constitute evidence of a crime, shall be retained by the city for not less than forty-eight (48) hours during which time it shall be made reasonably available for and released to the person confirming ownership. (Ord. No. 4606, § 2, 12-23-24; Ord. No. 4518, § 1, 7-24-23)

Title 9

PUBLIC PEACE AND WELFARE

Chapters:

9.01	**Definitions**
9.04	**Offenses by or Against Public Officers and Government**
9.08	**Offenses Against Public Peace and Decency**
9.12	**Offenses Against Property**
9.16	**Offenses by or Against Minors**
9.20	**Controlled Substances**
9.24	**Weapons**

Chapter 9.01

DEFINITIONS

Sections:

9.01.010 Definitions.

9.01.010 Definitions.

A. Purpose. The purpose of this title is to set out definitions for misdemeanor offenses within the city. This title does not supersede any Wyoming statute. The city is authorized to prosecute violations of city ordinance and Wyoming statutes, pursuant to Wyo. Stat. § 5-6-101 and Wyo. Stat. § 15-1-103(a)(xli).

B. Definitions. The terms defined in Title 9 Public Peace and Welfare shall be as follows:

1. "Assault" shall be defined and interpreted consistent with Wyo. Stat. § 6-2-501(a).

2. "Batter" or "battery" shall be defined and interpreted consistent with Wyo. Stat. § 6-2-501(b). (Ord. No. 4427, § 1, 4-25-22)

Chapter 9.04

OFFENSES BY OR AGAINST PUBLIC OFFICERS AND GOVERNMENT

Sections:

9.04.010	**Purpose.**
9.04.020	**Interfering with or obstructing officers—Disobeying a lawful order.**
9.04.030	**Making a false report of a crime to police officer.**
9.04.040	**Impersonation of an officer.**
9.04.050	**City jail—Escape—Aiding escape.**
9.04.060	**City jail—Introducing tools or implements.**
9.04.070	**Interference with emergency calls; interference with emergency reporting system.**

9.04.010 Purpose.

The purpose of this title is to set out misdemeanor offenses within the city. This title compliments and does not supersede any Wyoming statutes. The city is authorized to prosecute violations of city ordinances and Wyoming statutes, pursuant to Wyo. Stat. Section 15-1-103 and Wyo. Stat. Section 5-6-101. (2001 In-house code ch. 30 (part))

9.04.020 Interfering with or obstructing officers—Disobeying a lawful order.

A. Interference/Obstruction Prohibited. It is unlawful for any person, in any manner, be it physical or verbal, to interfere with or otherwise obstruct any officer or employee of this city engaged in the performance or discharge of his or her duties.

B. Resisting Arrest Prohibited. It is unlawful for any person to resist arrest by a peace officer, either by struggling, fighting, attempting to flee or refusing to obey commands of the officer or officers making the arrest.

C. Refusing to Obey Lawful Order Prohibited. It is unlawful for any person to disobey a lawful order given by a peace officer in the performance of his or her duties.

D. Giving False Identity Prohibited. It is unlawful for any person to falsely identify themselves to a peace officer who is engaged in the performance of his or her duties.

E. Violence Against Police Horses or Dogs Prohibited. It is unlawful for any person to strike, kick, throw any object at, or perpetrate any act of violence directed at a police horse or police dog under the control of a peace officer who is engaged in the performance of his or her duties.

F. Frightening Police Horses or Dogs Prohibited. It is unlawful for any person to intentionally frighten or startle a police horse or police dog, by any means, including, but not limited to, using any fireworks, horn, bell, whistle or other loud noise or sudden action or unauthorized physical contact with the animal under the control of a peace officer who is engaged in the performance of his or her duties.

G. Closure of Public Areas for Public Safety. If, in the opinion of the chief of police, a threat to the public safety exists, he or she may order the closure of otherwise public areas within the city limits for the limited duration of the threat and in the area immediately adjacent to such threat. Any closure shall be made conspicuous to the public by the placement of barricades or other suitable devices delineating the area. Crossing of such barricades or other devices shall only be by permission of the chief of police or his or her designee, who may limit access to the area as the nature of the public safety hazard demands and may prohibit the transportation of alcoholic beverages into the area if such prohibition would be in the best interest of the public safety. Any violation of this subsection shall be considered disobedience to a lawful order of a peace officer as defined above. (2001 In-house code § 30-1)

9.04.030 Making a false report of a crime to police officer.

It shall be an offense punishable by the general penalty provision of city code for any person to

wilfully make a false report of a crime to the Cheyenne police department or to any sworn officer of the Cheyenne police department. (2001 In-house code § 30-24)

9.04.040 Impersonation of an officer.

It is unlawful for any person to falsely assume or pretend to be any officer or employee of the city or any judicial, executive or law enforcement officer of the state, county or city or to act as such. (2001 In-house code § 30-2)

9.04.050 City jail—Escape—Aiding escape.

A. No person who may be imprisoned or confined in the city jail pursuant to sentence or while awaiting trial, or in any manner lawfully held in jail or who has been permitted to go beyond the confines of the jail as a trustee, shall escape or attempt to escape from jail or depart from the places he has been assigned to work as a trustee.

B. No person shall aid or attempt to aid any person confined in the city jail to escape from such place of confinement. (2001 In-house code § 30-3)

9.04.060 City jail—Introducing tools or implements.

No person shall, without consent of the jailer, take or in any way introduce tools or implements of any kind into the city jail. (2001 In-house code § 30-4)

9.04.070 Interference with emergency calls; interference with emergency reporting system.

A. A person commits a misdemeanor punishable by imprisonment for not more than six months, a fine of not more than seven hundred fifty dollars ($750.00), or both, if he or she knowingly obstructs, prevents, hinders or otherwise interferes with the making or completion of a telephone call to a 911 system or other telephone or radio communication by another person to any emergency response personnel to request protection or other assistance from the emergency response personnel or to report the commission of a crime.

B. A person commits a misdemeanor punishable by imprisonment for not more than six months, a fine of not more than seven hundred fifty dollars ($750.00), or both, if he or she knowingly calls a 911 system for a purpose other than to report a situation that he or she reasonably believes requires prompt service in order to preserve or protect human life, health or property.

C. For purposes of this section "911 system" means a telephone system consisting of network, database, services and equipment, using the single three-digit number 911 for reporting police, fire, medical or other emergency situations and enabling the users of a public telephone system, other technology or wireless telecommunications system to reach a public safety answering point to report emergencies by dialing 911. (Ord. No. 4471, § 1, 11-14-22)

Chapter 9.08

OFFENSES AGAINST PUBLIC PEACE AND DECENCY

Sections:

9.08.010	**Disturbance of the peace and disturbance of property.**
9.08.020	**Harassing, obscene or threatening communications.**
9.08.030	**Gambling—Permitted if authorized by state law.**
9.08.040	**Reserved.**
9.08.050	**Keeping of disorderly houses prohibited—Owners, occupants, landlords and property owners liable.**
9.08.060	**Solicitation for lewd or immoral practices.**
9.08.070	**Pandering.**
9.08.080	**Indecent exposure.**
9.08.090	**Immoral acts.**
9.08.100	**Loitering; penalty.**
9.08.110	**Public intoxication.**
9.08.120	**Malicious harassment based on race, color, religion, ancestry, sex, sexual orientation, gender identity, gender expression, national origin, disability, or political affiliation.**

9.08.010 Disturbance of the peace and disturbance of property.

A. No person shall cause, or be instrumental in causing, any disturbance of the peace in the city. A person or assemblage of persons shall be deemed guilty of disturbance of the peace if they:

1. Discharge any firearm, or explode or set off any squib, firecracker or other thing containing powder or other combustible material or make any other noise intended to disturb the peace of anyone in the area;

2. Operate any vehicle, machinery or other equipment that emits loud noise and thereby disturbs the peace and tranquility of any person;

3. As the owner or possessor of a dog, allow the dog to bark excessively and disturb the peace and tranquility of any person;

4. Cause, provoke or engage in any fight or riotous conduct that endangers the life, limb, health or property of another person;

5. Commit an act in a violent or tumultuous manner toward another person where the other person is placed in danger of his or her life, limb or health;

6. Use profane, obscene, offensive or otherwise provocative language directed toward another person, which language is intended to provoke a breach of the peace. For purposes of this section, "provocative language" shall mean fighting words or those words by which their very utterance tend to incite an immediate breach of the peace;

7. Perform any act or gesture of rude, improper or indecent behavior, directed at another person and intended to provoke a breach of the peace;

8. Incite or attempt to incite a riot. For purposes of this subsection, the term "riot" shall mean a tumultuous disturbance of the peace by persons assembled and acting with common intent to the terror of the people of the city, either in assemblage while executing a lawful enterprise in a violent or turbulent manner or in assemblage while executing an unlawful enterprise in a violent or turbulent manner; or

9. Urinate or defecate in any place that is public in nature or open to the public view.

B. No person shall cause or be instrumental in causing any disturbance of property in the city. Any person or assemblage of persons shall be deemed guilty of disturbance of property if they:

1. Throw any stone or other missile at any person, animal, vehicle, building or other private or public property;

2. Take and carry away the personal goods of another person or public property without consent of the owner or lawful possessor;

3. Enter or remain upon another's property without consent of the owner or possessor; or

4. Commit an act in a violent or tumultuous manner toward another whereby the property of another person or public property is interfered with, damaged, destroyed or placed in danger of being interfered with, damaged or destroyed.

C. Except as otherwise provided by this subsection, any person who violates this section shall be guilty of a misdemeanor punishable as provided by Section 1.24.010 of the city code. Notwithstanding, any person who violates paragraph (A)(2) or (A)(3) of this section shall be guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00). (Ord. No. 4553, § 2, 3-11-24; Ord. No. 4451, § 1, 7-11-22; 2001 In-house code § 30-5)

9.08.020 Harassing, obscene or threatening communications.

A. A person commits a misdemeanor punishable by imprisonment for not more than six months, a fine of not more than seven hundred fifty dollars ($750.00), or both, if he or she by use of a telephone or other electronic device communicates with another person and:

1. Uses obscene, lewd or profane language or suggests a lewd or lascivious act with intent to terrify, intimidate, threaten, harass, annoy or offend; or

2. Attempts to extort money or other thing of value from the person to whom he or she communicated.

B. A person commits a misdemeanor punishable by imprisonment for not more than six months, a fine of not more than seven hundred fifty dollars ($750.00), or both, if:

1. By repeated telephone calls or through repeated electronic communications, he or she disturbs the peace, quiet or privacy of persons where the calls or communications were received; or

2. He or she by use of a telephone or other electronic device communicates with a person and threatens to:

a. Inflict death to the person, to the person's immediate family or to anyone at the school in which the person is a student or employee; or

b. Inflict injury or physical harm to the person, to the person's immediate family or to property of the person.

C. A crime under this section is committed at the place where the calls or other electronic communications either originated or were received.

D. For purposes of this section, "immediate family" means a spouse, parent, sibling, child or other person living in the person's household. (Ord. No. 4470, § 1, 10-24-22; 2001 In-house code § 30-6)

Editor's note—Ord. No. 4470, § 1, adopted Oct. 24, 2022, amended § 9.08.020 and in doing so changed the title of said section from "Annoying, obscene or threatening telephone calls" to "Harassing, obscene or threatening communications," as set out herein.

9.08.030 Gambling—Permitted if authorized by state law.

A. Gambling within the city is permitted only to the extent authorized by Wyoming State Statute (see, e.g., W.S. § 6-7-101; § 6-6-201 through § 6-6-209). Any person violating the provisions of this section, or causing the provisions of this section to be violated, will be guilty of a misdemeanor punishable pursuant to the general penalty provision provided for in section 1.24.010 of city code. (Ord. No. 4205, §§ 3, 4, 10-9-17; Ord. No. 3877, § 2, 12-14-09)

9.08.040 Reserved.

Editor's note—Ord. No. 4205, § 5, adopted October 9, 2017, repealed § 9.08.040. Former § 9.08.040 pertained to violations by owner or occupant of premises where gambling conducted and derived from the 2001 In-house code.

9.08.050 Keeping of disorderly houses prohibited—Owners, occupants, landlords and property owners liable.

A. Definitions. For the purpose of this section, the following definitions apply:

1. "Disorderly house" means any public or private building, structure, place, house or apartment, kept or maintained for the purpose of carrying on, promoting or allowing:

a. Prostitution;

b. Illegal gambling;

c. Fighting;

d. Sale, consumption or disposition of liquor or controlled substances, contrary to law;

e. Breach of peace;

f. Disorderly conduct; or

g. Any other illegal activity.

B. It is unlawful for any person to knowingly keep or allow to be kept a disorderly house.

C. It is unlawful for any owner, occupant, landlord or property manager to knowingly keep or allow the existence of a disorderly house, after the receipt of formal written notice of the same

D. When the police department is notified of the existence of a disorderly house it will give informal notice, orally and in writing, that a disorderly house is being maintained to the owner, occupant, landlord and property manager. The last of which must state that it is the final informal notice.

E. If the disorderly house continues to be maintained or exist, the police department will give written formal notice to the owner, occupant, landlord and property manager, that the condition must be abated. "Formal notice" means notice following an informal notice and conviction of the occupant for the offense charged, that a disorderly house exists and that continuation of the disorderly house will subject the owner, landlord and property manager to criminal penalties.

F. No landlord or property manager will be subjected to criminal prosecution if the landlord or property manager has begun eviction proceedings on the tenants of the disorderly house within fifteen (15) working days after receipt of the final informal notice.

G. No landlord or property manager will be subjected to criminal prosecution if a court of law would not order an eviction of the tenants of the disorderly house. (2001 In-house code § 30-11)

9.08.060 Solicitation for lewd or immoral practices.

No person shall, directly or indirectly, solicit any person within the city for lewd or immoral purposes. (2001 In-house code § 30-12)

9.08.070 Pandering.

It is unlawful for any person to frequent houses of ill fame or of assignation or to associate with persons known or reputed as prostitutes, or to be engaged in or about a house of prostitution, or for any person to knowingly accept, receive, levy or appropriate any money or other valuable thing from the proceeds of earnings of persons engaged in prostitution. (2001 In-house code § 30-13)

9.08.080 Indecent exposure.

No person shall appear publicly or within view of the public in a state of nudity. (Ord. No. 4150, § 1, 7-25-16; 2001 In-house code § 30-14)

9.08.090 Immoral acts.

No person shall exhibit or perform any indecent or immoral act within the city or its police jurisdiction. (2001 In-house code § 30-15)

9.08.100 Loitering; penalty.

A. No person shall loiter in the city. A person is guilty of loitering when he or she:

1. Remains in or about a school not having any reason or relationship involving custody of or responsibility for a student, lacks any other specific, legitimate reason for being there and does not have written permission from anyone authorized to grant the same; or

2. Remains or wanders in or about a building, lot, street, sidewalk or any public or private place without apparent reason and under circumstances which justify suspicion that the person may be engaged in or about to engage in a crime; and

a. Upon inquiry by a peace officer, refuses to identify himself or herself by name and address; or

b. After having given his or her name and address upon inquiry of a peace officer, refuses or fails to give a reasonably credible account of his or her conduct and purpose.

B. Any person who violates subsection (A) of this this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred

fifty dollars ($750.00). (Ord. No. 4553, § 2, 3-11-24; 2001 In-house code § 30-25)

Editor's note—Ord. No. 4553, § 2, adopted March 11, 2024, amended § 9.08.100 and in doing so changed the title of said section from "Loitering" to "Loitering; penalty," as set out herein.

9.08.110 Public intoxication.

No person shall be drunk or in a state of intoxication upon any city street or thoroughfare, in any public place within the city, in any semipublic place within the city where the public has the liberty to enter and exit, or in any vehicle on public or semipublic property within the city. The city police officers shall arrest all persons violating this section committing them to the city jail or other court sanctioned facilities until sober to await arraignment before the police judge as soon as convenient thereafter. (2001 In-house code § 30-7)

9.08.120 Malicious harassment based on race, color, religion, ancestry, sex, sexual orientation, gender identity, gender expression, national origin, disability, or political affiliation.

A. It shall be unlawful and an offense for any person to maliciously and with the specific intent to intimidate or harass another person because of that person's race, color, religion, ancestry, sex, sexual orientation, gender identity, gender expression, national origin, disability, or political affiliation, commit any of the following acts:

1. Assault, batter, assault and batter of another person;

2. Damage, destroy, vandalize, deface, trespass upon, or steal any real or personal property of another person; or

3. Threaten, by word or act, to do any act prohibited by subparagraph 1. or 2. of this subsection if there is reasonable cause to believe that such act will occur.

B. It shall be unlawful and an offense for any person to maliciously and with specific intent to incite or produce, and which is likely to incite or produce, imminent violence, which violence would be directed against another person because of that person's race, color, religion, ancestry, sex, sexual orientation, gender identity, gender expression, national origin, disability, or political affiliation, make or transmit, or cause or allow to be made or transmitted, any telephonic, computerized, or electronic message.

C. It shall be unlawful and an offense for any person to maliciously and with specific intent to incite or produce, and which is likely to incite or produce, imminent violence, which violence would be directed against another person because of that person's race, color, religion, ancestry, sex, sexual orientation, gender identity, gender expression, national origin, disability, or political affiliation, broadcast, publish, or distribute, or cause or allow to be broadcast, published, or distributed, any message or material.

D. Any person violating any provision of subsection A., B. or C. of this section shall be guilty of a misdemeanor on a first offense and, upon conviction, shall be punished pursuant to the general provisions of Section 1.24.010 of the city code, excluding costs, fees, and assessments, or by both such fine and imprisonment. (Ord. No. 4421, § 1, 3-14-22)

Chapter 9.12

OFFENSES AGAINST PROPERTY

Sections:

9.12.010 Malicious mischief.

9.12.020 Motor vehicles on grass, turf, beach and in public parks or grounds prohibited; penalty; exception.

9.12.030 Occupancy of land outside city.

9.12.040 Serial numbers—Removal or defacing—Prohibited.

9.12.050 Falsely obtaining goods or services.

9.12.060 Shoplifting; penalties.

9.12.070 Spitting on floors of public buildings or conveyances.

9.12.080 Electric fences prohibited.

9.12.090 Skateboards and similar devices prohibited.

9.12.010 Malicious mischief.

It is unlawful for any person to wilfully and maliciously damage, deface, injure, remove, carry or take away or otherwise unlawfully assume control of any property whether public or private, real or personal, which is not his or her own. (2001 In-house code § 30-16)

9.12.020 Motor vehicles on grass, turf, beach and in public parks or grounds prohibited; penalty; exception.

It is unlawful for any person to operate or park a motor vehicle upon any grass, turf, beach, or any area in a park or on public grounds not specifically designated for the purpose of such motor vehicle use. The prohibitions imposed under this section shall not apply to authorized city maintenance vehicles or to authorized emergency vehicles in the performance of their applicable duties. Any person who violates this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00). (Ord. No. 4553, § 2, 3-11-24; 2001 In-house code § 30-17)

Editor's note—Ord. No. 4553, § 2, adopted March 11, 2024, amended § 9.12.020 and in doing so changed the title of said section from "Motor vehicles on grass, turf, beach and in public parks or grounds prohibited—Exception" to "Motor vehicles on grass, turf, beach and in public parks or grounds prohibited; penalty; exception," as set out herein.

9.12.030 Occupancy of land outside city.

No person shall occupy any land owned by the city, outside of the city limits, for any purpose whatsoever without first having secured a lease or other official agreement from the governing body to so occupy. (2001 In-house code § 30-18)

9.12.040 Serial numbers—Removal or defacing—Prohibited.

No person, other than the manufacturer or a person acting pursuant to authority from the manufacturer, shall remove, alter, deface or substitute a manufacturer's serial number, distinguishing number or mark on or attached to any machine, apparatus, equipment, device or other thing or to any part thereof, other than a motor vehicle. No person shall sell or offer for sale or pledge any such item, other than a motor vehicle, from which such serial number or distinguishing number or mark has been removed, altered, defaced or substituted; except, that such person may sell the same if, before selling or offering the same for sale or pledge, he or she files with the police department a verified statement showing the source of his or her title, the manufacturer's serial number, distinguishing number or mark, if known, the manner of and reason for such mutilation, change, alteration, concealment or defacement, if known, and the date of acquisition and the person from whom acquired, together with the purchase price therefor.

This section shall not apply to any person offering for sale any such machine or device or any part thereof pursuant to statute or a provision of this code or any other city ordinance or pursuant to a judgment, order, decree, writ or other direction or process of court, nor to the purchaser at such sale or his or her subsequent vendees.

In all actions for the violation of this section, the fact that a manufacturer's serial number or distinguishing mark or number on or attached to any machine, apparatus, equipment, device or thing or any part thereof has been removed, altered, defaced or substituted shall be prima facie evidence that the same was so removed, altered, defaced or substituted intentionally and by a person other than the manufacturer and other than a person acting pursuant to authority from the maker. (2001 In-house code § 30-19)

9.12.050 Falsely obtaining goods or services.

Any person who shall obtain food, gasoline or other items customarily sold by gasoline stations, or lodging from a place of business within the city without either paying for the same or making satisfactory arrangements with the proprietor for paying for the same shall be subject to the general penalty provided in city code. It shall also be unlawful under this section for any person in the city to ride in taxicabs without paying the proper compensation or in any way to utilize the services of others within the city without paying proper compensation for those services. (2001 In-house code § 30-20)

9.12.060 Shoplifting; penalties.

A. No person shall willfully conceal or take possession of any good offered for sale by a wholesaler or retail store or other mercantile establishment without the knowledge or consent of the owner and with intent to convert the good to his or her own use without paying the purchase price. The following acts or deceptive conduct shall constitute prima facie evidence of concealing:

1. Hiding any good upon the person, or in a container, or otherwise removing such merchandise from full view while upon the premises;

2. Removing, changing or altering any price tag affixed to any good;

3. Transferring or moving any good upon the premises to obtain a lower price than the merchandise was offered for sale by the merchant; or

4. Abandoning or disposing of any good in such a manner that the merchant will be deprived of all or part of the value of the good.

B. Any merchant or merchant's employee who has reasonable cause to believe that a person has committed the offense of shoplifting as defined under this section, may detain and interrogate the person suspected of the offense but shall only do so in a reasonable manner and for a reasonable time.

C. Except as otherwise provided by this subsection, a person who violates subsection (A) of this section shall be guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00). Any person convicted of third or subsequent violation under subsection (A) of this section shall be guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00), imprisonment for not more than six months, or both.

D. For purposes of this section, the term "conceal" shall mean any act of deception done willfully or knowingly upon or outside the premises of a wholesale or retail store or other mercantile establishment with the intent to deprive the owner therein of all or part of the value of the merchandise. (Ord. No. 4553, § 2, 3-11-24; 2001 In-house code § 30-21)

Editor's note—Ord. No. 4553, § 2, adopted March 11, 2024, amended § 9.12.060 and in doing so changed the title of said section from "Shoplifting" to "Shoplifting; penalty," as set out herein.

9.12.070 Spitting on floors of public buildings or conveyances.

No person shall spit upon the floor, walls or steps of any school, theater, hall, assembly room, public building or conveyance. (Ord. No. 4133, § 1, 6-13-16; 2001 In-house code § 30-22)

9.12.080 Electric fences prohibited.

No person shall place or permit to be placed or allow to remain a fence containing uninsulated

electric conductors that may be exposed to human contact anywhere within the city except as noted below.

A. Low voltage (twelve (12) volts) may be utilized for goat control and safety for vegetation management in project-specific locations identified and approved by the city of Cheyenne.

1. Electric fencing adjacent to pedestrian areas (i.e., defined pedestrian paths or trails) shall only [be] electrified at night and not during any daylight hours. (Ord. No. 4433, § 1, 5-9-22; 2001 In-house code § 30-26)

9.12.090 Skateboards and similar devices prohibited.

A. Authority. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-101 et seq., Wyo. Stat. Section 31-5-109 and the city's home rule powers, the use of skateboards, roller skates, in-line skates or similar devices in the public right-of-way in the central business district as defined herein, is permitted. The use of such devices is not permitted on private property in the central business district without the written permission of the landowner. In addition, such uses are prohibited on public property unless the property is signed permitting such use.

B. Definitions. As used in this section, the following terms are defined:

"Central business district" means the area bounded by union pacific railroad tracks on the south, 24th Street on the north, Bent Avenue on the west and Evans on the east.

C. Penalties. The penalties for violation of this section shall be as follows:

For a first offense, a fine not to exceed seven hundred fifty dollars ($750.00) and/or six months in jail, as determined by the municipal court. (Ord. 4161 § 1, 11-28-16; Ord. 3587 § 1, 2004)

Chapter 9.16

OFFENSES BY OR AGAINST MINORS

Sections:

9.16.010	**Prohibited acts by juveniles.**
9.16.020	**Referral to counseling prior to filing status complaint.**
9.16.030	**Reserved.**
9.16.040	**Defining delinquent children—Unlawful to contribute to the delinquency of or failing to properly supervise minors.**
9.16.050	**Providing intoxicating liquors to persons under lawful drinking age.**
9.16.060	**Curfew hours for minors.**
9.16.070	**Possession or use by person under twenty-one (21) years of age prohibited.**
9.16.080	**Open house assembly.**
9.16.090	**Reserved.**
9.16.100	**Reserved.**

9.16.010 Prohibited acts by juveniles.

A. It is unlawful for any juvenile under the age of eighteen (18) years:

1. To violate any ordinance of the city;

2. To be habitually truant from school;

3. To run away from home, which is defined as an unreasonable absence from the juvenile's home during which the juvenile's parents, guardians or custodians are unaware of the juvenile's whereabouts, not including an occasional failure to return home on time;

4. To habitually disobey the reasonable and lawful demands of his or her parents, guardians, custodians or other proper authority;

5. To knowingly associate with persons who are harmful to his or her health, safety or welfare;

6. To ride upon any external part of a vehicle or in the open bed of a pickup truck or other vehicle, if the vehicle is being operated upon a public road or highway.

a. It is unlawful for the operator of any vehicle to permit a juvenile to ride upon any external part of a vehicle or in the open bed of a pickup truck or other vehicle, if the vehicle is being operated upon a public road or highway.

b. This subsection does not apply to juveniles riding upon vehicles or operators of any vehicle participating in a parade activity in conjunction with a parade permit issued through the office of city clerk and as approved by the chief of police; or

7. To do any other act which is harmful to the health, safety or welfare of himself or herself or any other person.

B. A violation of any provisions of this section shall be punished as provided in Section 2.44.090 and nothing herein shall be construed as requiring an appearance in juvenile court of any person charged with a traffic offense, as all traffic offenses shall be handled pursuant to provisions of this code relating to municipal court. (Ord. 3671 § 1, 2005; 2001 In-house code § 15-24)

9.16.020 Referral to counseling prior to filing status complaint.

No complaint against a juvenile, under the age of eighteen (18) years, may be filed by the juvenile's parents, guardians or custodians or on their behalf alleging a status offense, defined as a violation of Section 9.16.010(A)(2) through (6) unless the juvenile's parents, guardians or custodians have previously completed counseling along with the juvenile at the direction of youth alternatives, and counseling has failed to remedy the situation which forms the basis for the complaint. A representative of youth alternatives shall inform the juvenile court whether this section has been complied with and whether the parents, guardians or custodians have cooperated fully with and completed counseling as directed. If counseling remedies the situation which forms the basis for the complaint, the com-

plaint may not be filed. If counseling fails to remedy the situation, a complaint may be filed and the case shall proceed according to the other provisions of this chapter and Chapter 2.44 pertaining to juveniles. Failure of the parents, guardians or custodians to cooperate fully with and complete counseling shall deprive the parents, guardians or custodians of the right to file a complaint alleging a status offense. (2001 In-house code § 15-25)

9.16.030 Reserved.

Editor's note—Ord. No. 4125, § 1, approved April 25, 2016, repealed § 9.16.030, which pertained to minors on premises of billiard or pool hall and derived from 2001 In-house code § 30-23.

9.16.040 Defining delinquent children—Unlawful to contribute to the delinquency of or failing to properly supervise minors.

A. Delinquent Child Defined. The words "delinquent child" shall include any child eighteen (18) years or under who violates any law of this state; or any city ordinance; or who is disorderly; or who knowingly visits or enters a house of ill repute; or who drinks intoxicating liquors or visits any place where intoxicating liquors are sold where minors are not permitted; or who is guilty of disorderly conduct about the public streets or vacant lots or is guilty of disorderly conduct in any railroad yards or tracks, rooming house, vehicle, automobile, garage, barn, public area, or in or about any school, moving picture house or place of worship or entertainment.

B. Contributing to the Delinquency of Minors. It is unlawful for any person to be responsible for or by any act to encourage, cause or contribute to the delinquency or to the dependency of any child eighteen (18) years or under.

C. Responsibility of Persons to Supervise Minors. It is unlawful for any person having the care or custody of a child eighteen (18) years or under to fail to properly supervise or care for such child, in that such failure or supervision or care shall cause the child to become a dependent or delinquent child. (2001 In-house code § 30-27)

9.16.050 Providing intoxicating liquors to persons under lawful drinking age.

It is unlawful for any person to purchase for, provide or deliver an alcoholic beverage or intoxicating liquor to any person under the age of twenty-one (21). (2001 In-house code § 30-29)

9.16.060 Curfew hours for minors.

A. Definitions. In this section the following terms are herein defined:

"Curfew hours" means:

1. Eleven p.m. on any Sunday, Monday, Tuesday, Wednesday or Thursday until six a.m. on the following day; and

2. One a.m. until six a.m. on any Friday or Saturday.

"Emergency" means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes, but is not limited to, a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

"Establishment" means any privately owned place of business operated for a profit to which the public is invited, including, but not limited to, any place of amusement or entertainment.

"Guardian" means:

1. A person who, under court order, is the guardian of the person of a minor; or

2. A public or private agency with whom a minor has been placed by a court.

"Minor" means any person under eighteen (18) years of age.

"Operator" means any individual, firm, association, partnership or corporation operating, managing or conducting any establishment. The term includes the members or partners of an association or partnership and the officers of a corporation.

"Parent" means a person who is:

1. A natural parent, adoptive parent or stepparent of another person; or

2. At least eighteen (18) years of age and authorized by a parent or guardian to have the care and custody of a minor.

"Public place" means any place to which the public or a substantial group of the public has access and includes, but is not limited to, streets, highways and the common areas of schools, hospitals, apartment houses, office buildings, transport facilities and shops.

"Remain" means:

1. To linger or stay; or

2. To fail to leave premises when requested to do so by a police officer or the owner, operator or other person in control of the premises.

"Serious bodily injury" means bodily injury that creates a substantial risk of death or that causes death, serious permanent disfigurement, or protracted loss or impairment of the function of any bodily member or organ.

B. Offenses. The following shall be deemed offenses for the purposes of this section:

1. A minor commits an offense if he or she remains in any public place or on the premises of any establishment within the city during curfew hours.

2. A parent or guardian of a minor commits an offense if he or she knowingly permits or by insufficient control allows the minor to remain in any public place or on the premises of any establishment within the city during curfew hours.

3. The owner, operator or any employee of an establishment commits an offense if he or she knowingly allows a minor to remain upon the premises of the establishment during curfew hours.

C. Defenses.

1. It is a defense to prosecution under subsection B of this section that the minor was:

a. Accompanied by the minor's parent or guardian;

b. On an errand at the direction of the minor's parent or guardian, without any detour or stop;

c. In a motor vehicle involved in interstate travel;

d. Engaged in an employment activity, or going to or returning home from an employment activity, without any detour or stop;

e. Involved in an emergency;

f. On the sidewalk abutting the minor's residence or abutting the residence of a next-door neighbor if the neighbor did not complain to the police department about the minor's presence;

g. Attending an official school, religious or other recreational activity supervised by adults and sponsored by the city, a civic organization or another similar entity that takes responsibility for the minor, or going to or returning home from, without any detour or stop, an official school, religious or other recreational activity supervised by adults and sponsored by the city, a civic organization or another similar entity that takes responsibility for the minor;

h. Exercising First Amendment rights protected by the United States Constitution, such as free exercise of religion, freedom of speech and the right of assembly; or

i. Married or had been married or had disabilities of minority removed in accordance with law.

2. It is a defense to prosecution under subsection (B)(3) of this section that the owner, operator or employee of an establishment promptly notified the police department that a minor was present on the premises of the establishment during curfew hours and refused to leave.

D. Enforcement. Before taking any enforcement action under this section, a police officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this section unless the officer reasonably believes that an offense has occurred and that, based on any response and other circumstances, no defense in subsection C of this section is present.

E. Penalties. A person who violates a provision of this section is guilty of a separate offense for each day or part of a day during which the violation is committed, continued or permitted. Each offense, upon conviction, is punishable by a fine

not to exceed seven hundred fifty dollars ($750.00). (2001 In-house code § 30-30)

9.16.070 Possession or use by person under twenty-one (21) years of age prohibited.

A. It is unlawful for any person under the age of twenty-one (21) years to possess or use any nicotine products. A person shall not be arrested for an alleged violation of this subsection but shall be issued a citation as a charging document by a peace officer having probable cause to believe the person violated this subsection. An officer issuing the citation shall deposit one copy of the citation with the court having jurisdiction over the alleged offense. Bond may be posted and forfeited for an offense charged under this subsection in an amount equal to the fine imposed by subsection B. of this section.

B. Any person violating subsection A. of this section is guilty of a misdemeanor punishable by a fine of twenty-five dollars ($25.00).

C. In lieu of the fine specified in subsection B. of this section, the court may allow the defendant to attend a tobacco or nicotine cessation program and be granted credit against the fine and the court costs at the rate of ten dollars ($10.00) for each hour of tobacco or nicotine cessation program attended; and

D. No conviction under this section, whether by guilty plea, adjudication of guilt, or forfeiture of bond shall be reported by the court to any law enforcement agency. Upon payment of the fine imposed by subsection B. of this section, a criminal conviction under this section shall be expunged by operation of law from all records of the court six months after the entry of conviction. For any person whose record of conviction was expunged under this subsection, the conviction is deemed not to have occurred and the individual may reply accordingly under any inquiry in the matter. No expungement under this subsection shall be considered for purposes of any other law providing for expungement. (Ord. No. 4327, § 5, 10-26-20)

Editor's note—Ord. No. 4327, § 5, adopted Oct. 26, 2020, repealed the former § 9.16.070 and enacted a new § 9.16.070 as set out herein. The former § 9.16.070 pertained to sale of tobacco to persons under the age of eighteen years prohibited and derived from 2001 In-house code § 30-31; and Ord. No. 4003, § 1, Oct. 28, 2013.

9.16.080 Open house assembly.

A. Authority. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-101 et seq., and Wyo. Stat. Section 12-4-101, the sale, consumption and related activities of alcoholic liquors and malt beverages will be in compliance with Wyo. Stat. Section 12-1-101 et seq., which is made a part of this section by reference, and the city's home rule powers.

B. Definitions. As used in this section, the following terms are defined:

"Adult" means a person eighteen (18) years of age or older.

"Alcoholic liquor" means any spirituous or fermented fluid, substance or compound, other than malt beverage, intended for beverage purposes which contains at least one-half of one percent of alcohol by volume.

"Control" means any form of regulation or dominion including a possessory right.

"Malt beverage" means any fluid, substance or compound intended for beverage purposes manufactured from malt, wholly or in part, or from any substitute therefor, containing at least one-half of one percent of alcohol by volume.

"Open house assembly" means a social gathering of three or more persons at a residence, other than the owner or those with rights of possession or their immediate family members.

"Residence or premises" means a hotel or motel room, home, yard, apartment, condominium or other dwelling unit, or a hall, meeting room or other place of assembly, whether occupied on a temporary or permanent basis, whether occupied as a dwelling or specifically for social functions, and whether owned, leased, rented or used with or without compensation.

C. Prohibition.

1. No adult having control of any residence or premises shall allow an open house assembly to take place or continue at this residence or premises if:

a. Any person under the age of twenty-one (21) years (other than those allowed by Wyo. Stat.

Section 12-6-101(a)) possesses or consumes any alcoholic beverage, in violation of Wyo. Stat. Section 12-6-101(b).

b. The adult knows or reasonably should know that a person under the age of twenty-one (21) years (other than those allowed by Wyo. Stat. Section 12-6-101(a)) will or does possess or consume any alcoholic beverage in violation of Wyo. Stat. Section 12-6-101(b).

c. The adult fails to take reasonable steps to prevent the possession or consumption of the alcoholic beverage by such persons under the age of twenty-one (21) years (other than those allowed by Wyo. Stat. Section 12-6-101(a)) in violation of Wyo. Stat. Section 12-6-101(b).

D. Presence of Adult. Whenever an adult having control of a residence or premises is present and knowingly allows the commission of the violation in that residence or premises at the time of the violation stated in this section, it shall be prima facie evidence that such person consented to the violation.

E. Penalties. Each violation of this section shall be punished in accordance with the general penalty provisions of city code as determined by the municipal court. Each person cited for a violation of this section shall appear in municipal court. (Ord. No. 4327, § 5, 10-26-20; Ord. No. 3913, § 1, 2-28-11; Ord. 3578 § 1, 2004)

Editor's note—Ord. No. 4327, § 5, adopted Oct. 26, 2020 repealed the former § 9.16.080, which pertained to use of tobacco by person under the age of eighteen years prohibited and derived from 2001 In-house code § 30-320. In addition, the same ordinance renumbered the former § 9.16.100 as § 9.16.080.

9.16.090 Reserved.

Editor's note—Ord. No. 4327, § 5, adopted Oct. 26, 2020, repealed § 9.16.090, which pertained to violations of Sections 9.16.070 and 9.16.080 and penalties and derived from 2001 In-house code § 30-33.

9.16.100 Reserved.

Editor's note—See editor's note at § 9.16.080.

Chapter 9.20

CONTROLLED SUBSTANCES

Sections:

9.20.010 Drug paraphernalia.
9.20.020 Narcotics and drugs.

9.20.010 Drug paraphernalia.

A. Manufacture, Sale or Delivery. It is unlawful for any person to manufacture with intent to deliver, deliver, possess with intent to deliver, sell, or offer for sale, drug paraphernalia which is primarily designed and intended to be used to ingest, inhale or otherwise introduce into the human body a controlled substance in violation of this section.

B. Definition. As used in this section, "drug paraphernalia" means all equipment, products and materials of any kind which are used, or primarily designed and intended for use, in ingesting, inhaling or otherwise introducing into the human body a controlled substance as defined by the Wyoming Controlled Substances Act of 1971, Wyo. Stat. Sections 35-7-1001 to 35-7-1005, as amended, which act is incorporated herein by this reference as if fully set forth herein, in violation of this section. "Drug paraphernalia" includes, but is not limited to:

1. Kits used, intended for use, or designed for use in planting, propagating, cultivating, growing or harvesting of any species of plant which is a controlled substance or from which a controlled substance can be derived;

2. Kits used, intended for use, or designed for use in manufacturing, compounding, converting, producing, processing, or preparing controlled substances;

3. Isomerization devices used, intended for use, or designed for use in increasing the potency of any species of plant which is a controlled substance;

4. Testing equipment used, intended for use, or designed for use in identifying, or in analyzing the strength, effectiveness or purity of controlled substances;

5. Scales and balances used, intended for use, or designed for use in weighing or measuring controlled substances;

6. Diluents and adulterants, such as quinine hydrochloride, mannitol, mannite, dextrose and lactose, used, intended for use, or designed for use in cutting controlled substances;

7. Separation gins and sifters used, intended for use, or designed for use in removing twigs and seeds from, or in otherwise cleaning or refining, marijuana;

8. Blenders, bowls, containers, spoons and mixing devices used, intended for use, or designed for use in compounding substances;

9. Capsules, balloons, envelopes and other containers used, intended for use, or designed for use in packaging small quantities of controlled substances;

10. Containers and other objects used, intended for use, or designed for use in storing or concealing controlled substances;

11. Hypodermic syringes, needles and other objects used, intended for use, or designed for use in parenterally injecting controlled substances into the human body;

12. Objects used, or primarily designed or intended for use, in ingesting, inhaling or otherwise introducing marijuana, cocaine, hashish or hashish oil into the human body, including, but not limited to:

a. Carburator pipes and carburation tubes and devices (cylindrical-shaped devices with holes on each end with or without bowls),

b. Chamber pipes (pipes with a hollow-space chamber which is filled with substance and smoke is inhaled through the substance),

c. Electrical or air-drive pipes (pipes with pump attached to increase air mixture),

d. Bongs (cylindrical devices of varying height and diameter with bowl(s)),

e. Miniature cocaine spoons and cocaine vials (individual or in kit form),

f. Roach clips (objects used or designed for use to hold marijuana cigarettes that have become too small or to short to be held in the hand),

g. Water pipes (pipes equipped with a cavity designed to hold a liquid through which smoke passes before being inhaled via a hollow cylindrical tube),

h. Smoking/carburetion masks (contoured masks usually covering the nose and mouth and affixed in place by an elastic-type strap around the head. The masks will each have a bowl attached either directly or via a hollow cylindrical tube),

i. Ice pipes, chillers, chillums (pipes equipped with a cavity designed to hold a frozen substance which the smoke passes over, around or through prior to being inhaled),

j. Metal, wooden, acrylic, glass, stone, plastic, or ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls.

C. Determination of What Constitutes Paraphernalia. In determining whether an object is drug paraphernalia, a court or other authority should consider, in addition to all other logically relevant factors, the following:

1. Statements by an owner or by anyone in control of the object concerning its use;

2. Prior convictions, if any, of an owner, or of anyone in control of the object, under any state or federal law relating to any controlled substance;

3. The proximity of the object, in time and space, to a direct violation of the Wyoming Controlled Substances Act;

4. The proximity of the object to controlled substances on the object;

5. The existence of any residue of controlled substances on the object;

6. Direct or circumstantial evidence of the intent of an owner, or of anyone in control of the object, to deliver it to persons whom he or she knows, or should reasonably know, intend to use the object to facilitate a violation of the act; the innocence of an owner, or of anyone in control of the object, as to a direct violation of the act shall not prevent a finding that the object is intended for use, or designed for use as drug paraphernalia;

7. Instructions, oral or written, provided with the object concerning its use;

8. Descriptive materials accompanying the object which explain or depict its use;

9. National and local advertising concerning its use;

10. The manner in which the object is displayed for sale;

11. Whether the owner, or anyone in control of the object, is a legitimate supplier of like or related items to the community, such as a licensed distributor or dealer of tobacco products;

12. Direct or circumstantial evidence of the ratio of sales of the object(s) to the total sales of the business enterprise, and the type of instruments, devices, articles, contrivances or items involved in the business;

13. The existence and scope of legitimate uses for the object in the community; and

14. Expert testimony as to the principal use of the instruments, devices, articles, or contrivances claimed to be paraphernalia.

D. Seizure, Forfeiture, and Disposition. Any police officer of the city shall seize, take, remove or cause to be removed at the expense of the owner, all stocks of drug paraphernalia offered or exposed for sale, stored, or held, in violation of this section. Seizure may be upon process issued by the municipal court, or without process if the seizure is incident to an arrest as a search warrant. Property taken as detained under this section is not subject to replevin, but is deemed to be in the custody of and property of the city, subject only to the orders and decrees of the court having jurisdiction over the forfeiture proceedings. Such drug paraphernalia shall be destroyed or otherwise disposed of upon order of any Cheyenne municipal judge, or may be retained for official use, in which case it should become property of the city.

E. Penalty. Any person who violates this section is guilty of a crime and upon conviction may be imprisoned for not more than six months for any one offense or fined not more than seven hundred fifty dollars ($750.00), or both. (2001 In-house code § 30-28)

9.20.020 Narcotics and drugs.

A. It is unlawful for any person, except as provided in subsection B of this section, to pos-

sess, transport, sell, manufacture, compound, furnish, administer, or give away any hypnotic drug including but not limited to the following:

1. Acetyluria derivatives, Lysergic acid, LSD (Lysergic acid diethylamide) and DMT (N-N-dimethyltryptamine) including their salts and derivatives, or any compounds, mixtures or preparations which are chemically identical with such substance;

2. Barbituric acid or its derivatives, chloral, paraldehyde, sulfonmethane derivatives, amphetamine or its optical isomers or their salts, or any compounds, mixtures or preparations that may be used for producing hypnotic effects.

B. The provisions of subsection A of this section shall not apply to a physician, dentist, veterinarian, or other person licensed in this state to prescribe or administer drugs; or to employees of physicians, dentists, veterinarians, or other persons licensed in this state to prescribe or administer drugs, of pharmacies, hospitals, clinics or public health agencies, of manufacturers, compounders, processors, wholesale druggists, common or contract carriers, or to law enforcement officials acting in the scope of their respective employments; or to any person who has obtained such drug upon a valid prescription or from a physician, dentist, veterinarian or other person licensed in this state to prescribe or administer drugs so long as such drugs are held in the original container in which such drug was delivered.

C. It shall further be unlawful for any person, not so authorized by law, to be in possession of, use, sell, barter, give away or in any manner distribute marijuana, cocaine, opium, chloral hydrate or any other narcotic, opiate or drug or derivatives of any of them or any product, the effect of which is to induce sleep or delirium. Any person who shall be the owner, or occupant of any building, place or premises within or upon which, who shall knowingly permit on such premises, any of the products, drugs or derivatives referred to in this section as not authorized by law, shall be deemed guilty of violation of this section. (2001 In-house code § 30-8)

Chapter 9.24

WEAPONS

Sections:

9.24.010	**Definitions.**
9.24.020	**Exceptions.**
9.24.030	**Discharging firearms prohibited.**
9.24.040	**Reserved.**
9.24.050	**Reserved.**
9.24.060	**Possession of firearms—Minors.**
9.24.070	**Sale or possession of firearms with manufacturer's identification mark or serial number removed prohibited.**
9.24.080	**Reserved.**
9.24.090	**Carrying deadly weapons on school property.**
9.24.100	**Sale or lease—License—Required.**
9.24.110	**Sale or lease—License—Application and issuance.**
9.24.120	**Reserved.**
9.24.130	**Reserved.**
9.24.140	**Firearms—Display.**
9.24.150	**Sales to minors.**

9.24.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Air gun" means any type of weapon that expels a projectile by means of compressed air, other gases, or springs, and is commonly referred to as a pellet gun or BB gun, depending upon the type of projectile discharged. The phrase "air gun" does not include firearms, as defined in this section.

"Dealer" means any person engaged in the business of selling firearms at wholesale or retail or of accepting pledges of pistols as security for loans.

"Firearm" means any weapon which will or is designed to expel a projectile by the action of explosive gases. "Firearm" shall not include any fully automatic weapon, any weapon designed to fire a rocket propelled grenade, or any explosive projectile.

"Paintball gun" means any type of device commonly used in the game of paintball that expels a globular, paint-filled capsule by means of compressed air, other gases, or springs. The phrase "paintball gun" does not include firearms, as defined in this section.

"Range" includes the word "gallery" and shall mean any public or private facility at which firearm, air gun, paintball gun, bow, or crossbow training, practice, or both, is conducted under controlled circumstances. Ranges are intended to encourage safe handling of these devices and require that procedures and structures are in place to prevent the projectiles discharged from such devices from causing damage to persons or property, both inside and outside the confines of the range. Appropriate procedures and structures include, but are not limited to, discharging any projectile at a backstop constructed of materials capable of stopping the discharged projectile, such that no projectile may exit an enclosed target area. Any indoor range utilized for discharge of firearms shall be sound proof and utilize an effective bullet trap and negative air pressure mechanism that ensures the air in the shooter's personal breathing zone remains clean at all times.

"Weapon" means, but is not limited to, a firearm, explosive, incendiary material, motorized vehicle, animal, or other device, instrument, material, or substance, which in the manner used or intended to be used, is reasonably capable of producing death or bodily injury. (Ord. No. 4130, § 1, 5-23-16; 2001 In-house code § 30-51)

9.24.020 Exceptions.

This chapter shall not apply to duly appointed officers of the city, county or state or of the United States in the lawful discharge of their duties as such officers, nor to transactions in which delivery

is made of a firearm by mail or other common carrier. (Ord. No. 4634, § 1, 7-28-25; 2001 In-house code § 30-52)

9.24.030 Discharging firearms prohibited.

A. No person shall discharge within the city any firearm, unless such discharge occurs within the confines of an indoor range or in self-defense pursuant to Wyo. Stat. Section 6-2-602.

B. No minor shall wear or carry any air gun, paintball gun, bow, or crossbow in public and not within a range. No minor shall discharge any projectile from an air gun, paintball gun, bow, or crossbow unless under the supervision of an adult. No person shall discharge any projectile from an air gun, paintball gun, bow, or crossbow, unless such discharge occurs within a range utilizing procedures and structures to prevent the discharged projectiles from causing damage to persons or property, both inside and outside the confines of the range.

C. It shall be a violation of the provisions of this chapter for any person to discharge from an air gun, paintball gun, bow, crossbow, or firearm any projectile that escapes the confines of the range in which the projectile was discharged, whether or not the discharged projectile causes damage to persons or property. (Ord. No. 4634, § 1, 7-28-25; Ord. No. 4130, § 1, 5-23-16; 2001 In-house code § 30-53)

9.24.040 Reserved.

Editor's note—Ord. No. 4130, § 1, approved May 23, 2016, repealed § 9.24.040, which pertained to carrying concealed weapons—carrying weapons openly with intent to inflict injury and derived from 2001 In-house code § 30-54.

9.24.050 Reserved.

Editor's note—Ord. No. 4130, § 1, approved May 23, 2016, repealed § 9.24.050, which pertained to possession of blackjacks and switch knives prohibited and derived from 2001 In-house code § 30-55.

9.24.060 Possession of firearms—Minors.

No person under the age of eighteen (18) years shall possess a firearm. This section shall not apply to the issuance of pistols to members of the state militia, ROTC, or the armed forces of the United States for training or active duty or to temporary loans of pistols for instruction under the immediate supervision of a parent or guardian. (2001 In-house code § 30-56)

9.24.070 Sale or possession of firearms with manufacturer's identification mark or serial number removed prohibited.

No person shall receive, possess, sell, lease or otherwise transfer any firearm from which the manufacturer's identification mark or serial number has been removed. (Ord. No. 4634, § 1, 7-28-25; 2001 In-house code § 30-57)

9.24.080 Reserved.

Editor's note—Ord. No. 4130, § 1, approved May 23, 2016, repealed § 9.24.080, which pertained to carrying or use of slingshots prohibited and derived from 2001 In-house code § 30-58.

9.24.090 Carrying deadly weapons on school property.

A. School Bus Defined. For purposes of this section, "school bus" means every motor vehicle that is owned by or leased to or registered to a school district and is used to transport children to or from school in conjunction with school activities and is designed for and capable of carrying twelve (12) or more passengers, but not including buses operated by common carriers in transportation of school children or buses owned by a community college or the University of Wyoming.

B. Deadly Weapon Defined. For purposes of this section, "deadly weapon" means, but is not limited to, a firearm, explosive or incendiary material or any other device, instrument, material or substance which, in the manner it is used or intended to be used, is reasonably capable of producing death or serious bodily injury.

C. Carrying Deadly Weapons Restricted. No person, except a sworn peace officer, shall possess, wear or carry a deadly weapon on a school bus as defined in this section or within the boundaries of

real property owned or used by a school district primarily for the education of any student in any grade from kindergarten through twelfth (12th) grade.

D. Application to Instructors of Courses. This section shall not apply to any person possessing a deadly weapon within the boundaries of real property owned or used by a school district at the specific time designated by the instructor of a course of study in the use of such deadly weapon and which such course is approved by the school district.

E. Application to Concealed Weapons. This section shall not apply to any person lawfully carrying a concealed weapon as authorized pursuant to Wyo. Stat. Sections 6-8-104 and 6-8-105 and any applicable rules lawfully promulgated consistent with Wyoming law. (Ord. No. 4634, § 1, 7-28-25; 2001 In-house code § 30-59)

9.24.100 Sale or lease—License—Required.

No person shall sell any firearm at wholesale or retail or shall lease, pledge or accept any firearm as security for a loan without obtaining a license therefor. (2001 In-house code § 30-65)

9.24.110 Sale or lease—License—Application and issuance.

Application for a firearm dealer's business license shall be made to the city clerk on forms prescribed and furnished by the city clerk. The application shall indicate the business name of the applicant, the business address, the name and home address of the proprietors (if a partnership) or of the president and secretary (if a corporation) and such other pertinent information as may be required by the city clerk. The application shall be accompanied by the license fee of ninety dollars ($90.00) a year per location. The city clerk shall, within ten (10) days of the date of receipt of the application, issue the license required; provided, that the applicant has conformed with regulations required by federal law for a firearm dealer. (Ord. No. 3846, § 1, 6-8-09; Ord. 3716 § 1, 2006: 2001 In-house code § 30-66)

9.24.120 Reserved.

Editor's note—Ord. No. 4634, § 2, adopted July 28, 2025, repealed § 9.24.120, which pertained to records to be kept and derived from 2001 In-house code § 30-68.

9.24.130 Reserved.

Editor's note—Ord. No. 4130, § 1, approved May 23, 2016, repealed § 9.24.130, which pertained to pistols—sale and delivery and derived from 2001 In-house code § 30-69.

9.24.140 Firearms—Display.

No firearms dealer shall display any firearm in any street-facing display window after normal business hours without security provisions to ensure such firearms are secure from theft after the dealer's normal business hours. (Ord. No. 4130, § 1, 5-23-16; 2001 In-house code § 30-70)

9.24.150 Sales to minors.

No dealer shall sell, lease, lend or otherwise transfer a firearm to any minor except as provided in Section 9.24.060. (2001 In-house code § 30-71)

Title 10

VEHICLES AND TRAFFIC

Chapters:

10.04	General Provisions
10.08	State Traffic Laws Adopted
10.12	Administration and Enforcement
10.16	Arrest and Citation Procedure
10.20	Traffic Control Devices
10.24	Rules of the Road Generally
10.28	One-Way Streets and Alleys
10.32	Speed Limits
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10.52	Stopping, Standing and Parking Generally
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Chapter 10.04

GENERAL PROVISIONS

Sections:

10.04.010 Purpose.
10.04.020 Definitions.
10.04.030 Application.
10.04.040 Uniformity of interpretation.
10.04.050 Obedience required.
10.04.060 Obedience to police and fire department officials.
10.04.070 Certain nonmotorized traffic to obey traffic regulations.
10.04.080 Use of coasters, roller skates and similar devices restricted.
10.04.090 Public employees to obey traffic regulations.
10.04.100 Authorized emergency vehicles.
10.04.110 Amnesty program.

10.04.010 Purpose.

The general purpose of this title is to regulate vehicular traffic on city streets to promote and provide for the health, safety, interest and general welfare of the citizens of the city. Vehicular traffic is generally governed by Wyo. Stat. Sections 31-5-101 through 1214, which is expressly incorporated into this title, unless otherwise indicated. Pursuant to authority granted cities and towns by the Wyoming Constitution and Wyo. Stat. Section 15-1-103(a)(xi) the regulation of vehicular traffic in the city is governed by this title and Wyoming statutes. (2001 In-house code ch. 28 (part))

10.04.020 Definitions.

A. Except as otherwise provided, as used in this title:

1. "Alley" means a street or highway intended to provide access to the rear or side of lots or buildings in urban districts and not intended for the purpose of through vehicular traffic;

2. "Bicycle" means every device propelled by human power upon which any person may ride, having two tandem wheels either of which is more than fourteen (14) inches in diameter;

3. "Central business (or traffic) district" means all streets and portions of streets within the geographic area bounded by 15th Street on the south, 20th Street on the north, Reed Avenue on the west and Evans Avenue on the east;

4. "Curb loading zone" means a space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials;

5. "Freight curb loading zone" means a space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight or passenger;

6. "Motor vehicle" or "vehicle" means as defined by Wyo. Stat. Section 31-1-101(a)(xv);

7. "Passenger curb loading zone" means a place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers;

8. "School zones" mean the streets and alleys and immediate intersections adjacent to any property used for school and for school play purposes; and

9. "Traffic division" means the traffic division of the police department of the city or, in the event a traffic division is not established, then the police department of the city. (Ord. No. 4582, § 2, 7-22-24; 2001 In-house code § 28-1)

10.04.030 Application.

The provisions of this title relating to the operation of vehicles refer exclusively to the operation of vehicles upon highways except where a different place is specifically referred to in a given section. (2001 In-house code § 28-3)

10.04.040 Uniformity of interpretation.

This title shall be so interpreted and construed as to effectuate its general purpose to make uniform the law of those local authorities which enact it. (2001 In-house code § 28-4)

10.04.050 Obedience required.

Except as otherwise provided, it is unlawful and a misdemeanor for any person to do any act forbidden or fail to perform any act required in this title. (Ord. No. 4632, § 1, 7-14-25; 2001 In-house code § 28-43)

10.04.060 Obedience to police and fire department officials.

No person shall wilfully fail or refuse to comply with any lawful order or direction of a police officer or fire department official. (2001 In-house code § 28-44)

10.04.070 Certain nonmotorized traffic to obey traffic regulations.

A. Every person propelling any pushcart upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this title and by the rules of the road portion of the state vehicle code, except those provisions which by their very nature can have no application.

B. Every person riding an animal or driving any animal-drawn vehicle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this title, except those provisions of this title which by their very nature can have no application. (2001 In-house code § 28-45)

10.04.080 Use of coasters, roller skates and similar devices restricted.

No person upon roller skates, or riding in or by means of any coaster, toy vehicle, or similar device, shall go upon any roadway except while crossing a street on a crosswalk and when so crossing such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians. (Ord. No. 4145, § 1, 7-11-16; 2001 In-house code § 28-46)

10.04.090 Public employees to obey traffic regulations.

The provisions of this title apply to the drivers of all vehicles owned or operated by the United States, this state, or any county, town, district, or any other political subdivision of the state, subject to such specific exceptions as are set forth in this title or in the State Vehicle Code. (2001 In-house code § 28-47)

10.04.100 Authorized emergency vehicles.

A. The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law or when responding to but not upon returning from a fire alarm, may park or stand, irrespective of the provisions of this title.

B. The driver of an authorized emergency vehicle is not excused from the duty to park or stand with due regard for the safety of all persons, nor protected from the consequences of his or her reckless disregard for the safety of others. (2001 In-house code § 28-48)

10.04.110 Amnesty program.

A. The governing body finds that periodic amnesty programs would do all of the following:

1. Provide relief to individuals who have found themselves in violation of Title 10 of the city code;

2. Provide increased revenue at a time when revenue is scarce by encouraging payment of old fines that have remained unpaid; and

3. Allow the court to resolve older delinquent cases and focus limited resources on collections for more recent cases.

B. The governing body may establish by resolution periodic one-time amnesty programs for fines and bails meeting the eligibility requirements set forth in the resolution. (Ord. No. 4401, § 1, 11-8-21)

Chapter 10.08

STATE TRAFFIC LAWS ADOPTED

Sections:

10.08.010 State law adopted.

10.08.010 State law adopted.

The following sections of state law as in effect on October 1, 2022, but not including any exclusions enumerated are adopted by reference and incorporated as if fully set out in this title. A copy of each provision is on file in the office of city clerk.

A. Wyo. Stat. Sections 31-5-101 through and including 31-5-1402 and Section 31-5-1601, with the exception of Sections 31-5-953 and 31-5-1201, of the Uniform Act Regulating Traffic on Highways.

B. Wyo. Stat. Sections 31-7-101 through and including 31-7-138.

C. Wyo. Stat. Sections 31-4-101 through and including 31-4-104, General Offenses and Penalties.

D. Wyo. Stat. Sections 31-2-201 through and including 31-2-303, The Title and Registration Act.

E. Wyo. Stat. Sections 31-6-102 through and including 31-6-108 of the Implied Consent to Chemical Testing Act.

F. Wyo. Stat. Sections 31-8-105, the prohibited acts and penalties of The Identification Card Act.

G. Wyo. Stat. Sections 31-7-401 through and including 31-7-404, ignition interlock licenses. (Ord. No. 4643, § 2, 9-22-25 ;Ord. No. 4463, § 1, 9-26-22; Ord. No. 3906, § 1, 9-27-10; 2001 In-house code § 28-2)

Chapter 10.12

ADMINISTRATION AND ENFORCEMENT

Sections:

10.12.010 Traffic division established.

10.12.020 Incarceration for certain traffic offenses.

10.12.030 Enforcement generally.

10.12.040 Records of traffic violations.

10.12.050 Traffic division to investigate accidents.

10.12.060 Written report of accident.

10.12.070 When driver unable to report.

10.12.080 Filing traffic accident reports.

10.12.090 Traffic accident studies.

10.12.100 Drivers' files to be maintained.

10.12.110 Annual traffic safety report.

10.12.120 Identifying funeral processions.

10.12.130 City traffic engineer.

10.12.140 Emergency and experimental regulations.

10.12.150 Authority of police and fire department officials.

10.12.160 Authority to impound illegally parked vehicles.

10.12.170 Scofflaw list; immobilization or towing and impoundment.

10.12.180 Restrictions upon use of streets by certain vehicles.

10.12.190 Reserved.

10.12.010 Traffic division established.

There is established in the police department of the city a traffic division under the control of an officer of police appointed by and directly responsible to the chief of police. (2001 In-house code § 28-19)

10.12.020 Incarceration for certain traffic offenses.

The municipal court may not impose a jail sentence for any traffic-related offense except for the following offenses:

A. Reckless driving (city code Section 10.08.010 and Wyo. Stat. Section 31-5-229);

B. Driving or having control of vehicle while under influence of intoxicating liquor or controlled substances (city code Section 10.08.010 and Wyo. Stat. Section 31-5-233);

C. Driving while license cancelled, suspended or revoked (city code Section 10.08.010 and Wyo. Stat. Section 31-7-134);

D. Fleeing or attempting to elude police officers (city code Section 10.08.010 and Wyo. Stat. Section 31-5-225);

E. Duty to stop vehicle where accident involves death or personal injuries (city code Section 10.08.010 and Wyo. Stat. Section 31-5-1101);

F. Failure to maintain liability coverage (city code Section 10.08.010 and Wyo. Stat. Section 31-4-103); and

G. Vehicle mufflers, excessive smoke and unreasonable noise, for a third or subsequent offense within a twelve (12) month period (city code Section 10.24.200).

The municipal court shall advise the defendant that the maximum sentence for any of the offenses listed in subsections (A) through (F) of this section is six months in jail, a fine of seven hundred fifty dollars ($750.00), or both. For an offense listed in subsection (G) of this section, the municipal court shall advise the defendant that the maximum sentence is six months in jail, a fine of five hundred dollars ($500.00), or both. (Ord. No. 4643, § 2, 9-22-25; Ord. No. 4612, § 1, 1-13-25; 2001 In-house code § 28-6)

10.12.030 Enforcement generally.

It is the general duty of the city traffic engineer, under the supervision and direction of the city engineer, to determine the installation and proper timing and maintenance of traffic-control devices, to conduct engineering analyses of traffic acci-

dents and to devise remedial measures, to conduct engineering investigations of traffic conditions, to plan the operation of traffic on the streets and highways of the city, and to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by city ordinances. (Ord. No. 4297, § 1, 3-23-20; 2001 In-house code § 28-30)

10.12.040 Records of traffic violations.

A. The police department or the traffic division shall keep a record of all violations of the

traffic ordinances of the city or of state vehicle laws of which any person has been charged, together with a record of the final disposition of all such alleged offenses. Records maintained will show all types of violations and the total of each. Records will accumulate during at least a five year period and from that time on the record will be maintained complete for at least the most recent five year period.

B. All forms for records of violations and notices of violations must be serially numbered. For each month and year a written record will be kept available to the public showing the disposal of all forms.

C. All these records and reports are public records. (2001 In-house code § 28-21)

10.12.050 Traffic division to investigate accidents.

It is the duty of the traffic division, assisted by other police officers of the department, to investigate traffic accidents and to arrest and assist in the prosecution of persons charged with violations of law which caused or contributed to accidents. (2001 In-house code § 28-22)

10.12.060 Written report of accident.

The driver of a vehicle which is in any manner involved in an accident resulting in bodily injury to or death of any person or total damage to all property to an apparent extent of one thousand dollars ($1,000.00) must report the accident as required in Wyo. Stat. Section 31-5-1105. The provisions of this section are not applicable when the accident has been investigated at the scene by a police officer while the driver was also present. (2001 In-house code § 28-23)

10.12.070 When driver unable to report.

Whenever a driver is physically incapable of making a written report of an accident as required in Section 10.12.060 and such driver is not the owner of the vehicle, the owner of the vehicle involved in the accident shall within ten (10) days after the accident make such report not made by the driver. (2001 In-house code § 28-24)

10.12.080 Filing traffic accident reports.

The traffic division shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed alphabetically by location. Such reports shall be available for the use and information of the city traffic engineer. (2001 In-house code § 28-25)

10.12.090 Traffic accident studies.

Whenever the accidents at any particular location become numerous, the traffic division must cooperate with the city traffic engineer in conducting studies of the accidents and determining remedial measures. (2001 In-house code § 28-26)

10.12.100 Drivers' files to be maintained.

A. The traffic division shall maintain a suitable record of all traffic accidents, warnings, arrests, convictions, and complaints reported for each driver which shall be filed alphabetically under the name of the driver concerned.

B. The division shall study the cases of all such drivers charged with frequent or serious violations of the traffic laws or involved in frequent traffic accidents or any serious accidents and report the information to the State Department of Transportation.

C. Records must be kept for at least five years. (2001 In-house code § 28-27)

10.12.110 Annual traffic safety report.

The traffic division shall annually prepare a traffic report which must be filed with the mayor. Such report shall contain the following information on traffic matters:

A. The number of traffic accidents, number of persons killed, number of persons injured, and other pertinent traffic accident data;

B. The number of traffic accidents investigated and other pertinent data on the safety activities of the police;

C. The plans and recommendations of the di-

vision for future traffic safety activities. (2001 In-house code § 28-28)

10.12.120 Identifying funeral processions.

The traffic division shall designate a type of pennant or other identifying insignia to be displayed upon, or other method to be employed to identify, the vehicles in funeral processions, and comply with Wyo. Stat. Section 31-5-123. (2001 In-house code § 28-29)

10.12.130 City traffic engineer.

It is the general duty of the city traffic engineer, under the supervision and direction of the city engineer, to determine the installation and proper timing and maintenance of traffic-control devices, to conduct engineering analyses of traffic accidents and to devise remedial measures, to conduct engineering investigations of traffic conditions, to plan the operation of traffic on the streets and highways of the city, and to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by city ordinances. (Ord. No. 4297, § 1, 3-23-20; 2001 In-house code § 28-30)

10.12.140 Emergency and experimental regulations.

A. The chief of police, by and with the approval of the city traffic engineer, is authorized to make regulations necessary to make effective the provisions of the traffic ordinances of the city and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. No such temporary or experimental regulation may remain in effect for more than ninety (90) days.

B. The city traffic engineer may test traffic-control devices under actual conditions of traffic. (2001 In-house code § 28-31)

10.12.150 Authority of police and fire department officials.

A. It is the duty of the officers of the police department to enforce all street traffic laws of the city and all state vehicle laws.

B. Officers of the police department are authorized to direct all traffic by voice, hand or signal in conformance with traffic laws; provided, that in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.

C. Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereupon or in the immediate vicinity. (2001 In-house code § 28-42)

10.12.160 Authority to impound illegally parked vehicles.

A. Any vehicle located within the territorial jurisdiction of Cheyenne may be towed and impounded, or caused to be towed and impounded, by the police department subject to the following conditions:

1. If a vehicle has been placed on the scofflaw list or any vehicle of a registered owner whose name has been placed on the scofflaw list, the vehicle may be towed and impounded;

2. If a vehicle is found parked in an unauthorized place or in violation of this code or any other city ordinance, the vehicle may be towed and impounded; and

3. If a vehicle was previously immobilized under Section 10.12.170(C) of the city code and has not been released within two business days, the vehicle shall be towed and impounded.

B. Any vehicle that is towed and impounded by the police department as authorized by this section, or otherwise authorized under city code or laws of this state, shall be taken to a garage designated by the police department, or otherwise designated by the city. The registered owner of any vehicle that is towed and impounded under this section shall pay all reasonable charges for towing and storage of the vehicle in addition to any penalties imposed for violation of this code or any other city ordinance.

C. Whenever the police department tows a vehicle for impoundment as authorized in this sec-

tion, the department shall immediately give or cause to be given notice in writing to the registered owner of the vehicle as indicated on the vehicle's registration records. The notice shall advise the owner of the removal, the reasons for the removal and the place to where the vehicle has been towed and impounded. In the event the vehicle is stored in a public garage, a copy of the notice shall be given to the proprietor of the garage.

D. If the police department tows or impounds a vehicle as authorized under this section and does not know and cannot ascertain the name of the registered owner, or for any other reason is unable to give notice to the registered owner as provided, by this section, and in the event the vehicle is not returned to the owner within a period of three days, then the police department shall immediately send or cause to be sent a written report of the removal by mail to the Wyoming department of transportation. The department shall file written notice with the proprietor of any public garage in which the vehicle may be stored. Notice shall include a complete description of the vehicle, and the place from which it was towed, the date, time and reasons for the removal, and the name of the garage or place where the vehicle is being stored. (Ord. No. 4555, § 1, 3-25-24; Ord. No. 4467, § 1, 10-10-22; Ord. No. 4296, § 1, 3-9-20; 2001 In-house code § 28-72)

10.12.170 Scofflaw list; immobilization or towing and impoundment.

A. Definition. As used in this section, the word "immobilize" or "immobilization" means the use of any device which may be attached or affixed to a vehicle and when so attached or affixed is intended to render the vehicle immovable.

B. Scofflaw List. As frequently as practicable, the police department parking administration manager shall prepare and update the "scofflaw list," which list shall consist of any vehicle, and the registered owner of any vehicle, with three or more unpaid parking citations.

Notice that a vehicle or the registered owner of a vehicle has been placed on the scofflaw list shall be served by parking administration manager on that registered owner by first class mail, which notice shall also include the following:

1. The date and the nature of each unpaid citation, the amount due on each citation and the vehicle for which the department issued the citation;

2. The date for final payment of each unpaid parking citation;

3. That a scofflaw list fee of five dollars ($5.00) shall be imposed to cover administrative costs;

4. The total amount currently due;

5. That the registered owner shall have not less than fifteen (15) days after the date of mailing, to respond to the notice by paying the total amount due; and

6. That if the registered owner fails to respond within fifteen (15) days after the date of mailing and pay all unpaid parking citations, that any vehicle registered to the owner:

a. Shall be subject to immediate immobilization; or

b. May summarily be towed and impounded under Section 10.12.160(A)(1) of this chapter and that the registered owner shall be responsible for the associated costs.

C. The vehicle of any registered owner remaining on the scofflaw list after the date stated in the notice issued as required under paragraph (B)(2) of this section, regardless whether the specific vehicle is on the scofflaw list, is subject to immobilization, or to being towed and impounded, by the police department whenever the vehicle is located upon any public property. If a vehicle is towed and impounded, notice shall be provided in accordance with Section 10.12.160 of this chapter. If a vehicle is immobilized, the department shall leave under the windshield wiper or otherwise attach to the vehicle an immobilization notice advising owner that:

1. The subject vehicle has been immobilized by the city due to the owner's failure to pay amounts due for three or more unpaid parking citations;

2. The release of the vehicle from immobilization may be secured by paying all outstanding

fines and late fees owed relating to all unpaid parking citations, plus any applicable towing, and storage charges and administrative fees;

3. Unless such payment is made within two business days of the date of the immobilization notice, the vehicle shall be summarily towed and impounded;

4. It is unlawful for any person to remove or attempt to remove the immobilization device, to damage the immobilization device, or to move the vehicle with the immobilization device attached, unless authorized by the chief of police or an authorized agent of the city; and

5. The owner may seek an administrative review of the immobilization by submitting a request to the police department parking administration manager within ten (10) days of the release of the immobilization device.

D. Upon payment of all outstanding fines, fees and charges by the registered owner of any vehicle immobilized or impounded in accordance with this section, the police department parking administration manager shall remove the registered owner and any listed vehicle of a registered owner from the scofflaw list and authorize the release of any immobilized or impounded vehicle not later than the next business day.

E. Any vehicle immobilized pursuant to this section that is not released within two business days, not including the day the vehicle was immobilized, shall be towed and impounded in accordance with Section 10.12.160 of this chapter.

F. Alternate Procedure. This section is intended to provide enforcement authority under this code pertaining to parking violations and shall not preclude impoundment of a vehicle as otherwise authorized under Section 10.12.160 of this chapter or any other method of enforcing the parking ordinances.

G. Penalty. Any person who tampers with an immobilization device in an attempt to remove or destroy the device is guilty of a misdemeanor and punishable as provided by Section 1.24.010 of the city code.

H. Post-Deprivation Review. The registered owner of any vehicle immobilized or impounded under this section may seek a post-deprivation review by submitting a written request to the police department parking administration manager within ten (10) days of the immobilization as established by the date of the immobilization notice required under subsection (C) of this section. The registered owner of any vehicle towed and impounded as authorized under this section may seek a post-deprivation review by submitting a written request to the police department parking administration manager within ten (10) days of date of the vehicle being towed. The request shall include an explanation by the owner of why the immobilization or tow was allegedly improper.

I. Upon receiving the request for a post-deprivation review as provided under subsection (H) of this section, the parking administration manager shall review the facts and circumstances that caused the police department to immobilize the vehicle or to tow and impound the vehicle, shall review any relevant documentation, and take into consideration the explanation provided by the owner on why the immobilization or impoundment was allegedly improper and issue his or her decision. Upon review, the parking administration manager may make any determination as necessary and proper to dispose of the case, including the release of the vehicle and the waiver of an applicable fines or fees. (Ord. No. 4555, § 1, 3-25-24)

Editor's note—Ord. No. 4555, § 1, adopted March 25, 2024, repealed the former § 10.12.170 and enacted a new § 10.12.170 as set out herein. The former § 10.12.170 pertained to immobilization and derived from 2001 In-house code § 28-73; Ord. No. 4296, § 1, adopted March 9, 2020; and Ord. No. 4467, § 1, adopted Oct. 10, 2022.

10.12.180 Restrictions upon use of streets by certain vehicles.

A. The city traffic engineer is authorized to determine and designate those heavily traveled streets upon which the use of the roadway by motor-driven cycles, bicycles, horse-drawn vehicles or other nonmotorized traffic shall be prohibited and shall erect appropriate signs giving notice thereof.

B. When signs are so erected giving notice thereof, no person shall disobey the restrictions stated on such signs. (2001 In-house code § 28-333)

10.12.190 Reserved.

Editor's note—Ord. No. 4009, § 4, approved December 9, 2013, repealed § 10.12.190, which pertained to towing firm standards and derived from the 2001 In-house code § 28-336.

Chapter 10.16

ARREST AND CITATION PROCEDURE

Sections:

10.16.010 Schedule of fines which may be accepted by chief of police.

10.16.020 Election to appear at police station or before judge.

10.16.030 Forms and records of traffic citations and arrests.

10.16.040 Procedure of police officers.

10.16.050 Audit of records and reports.

10.16.060 When copy of citation shall be deemed a lawful complaint.

10.16.070 Failure to obey citation.

10.16.080 Citation on illegally parked vehicles.

10.16.090 Failure to comply with traffic citation on parked vehicle.

10.16.100 Presumption in reference to illegal parking.

10.16.110 Issuance of warrant.

10.16.120 Disposition of traffic fines and forfeitures.

10.16.130 Official misconduct.

10.16.140 Reserved.

10.16.150 Parking violation administrative review procedures.

10.16.160 Operator error.

10.16.010 Schedule of fines which may be accepted by chief of police.

The municipal judge shall designate the specified offenses under this title and other traffic ordinances of the city in respect to which payment of fines may be accepted by the chief of police in satisfaction thereof, and shall specify, by suitable schedules, the amount of such fines for first, second and subsequent offenses, provided such fines are within the limits declared by law or ordinance, and shall further specify what number of such offenses shall require appearance before the municipal judge. (2001 In-house code § 28-59)

10.16.020 Election to appear at police station or before judge.

A. Any person charged with an offense for which payment of a fine may be made to the chief of police shall have the option of paying such fine within the time specified in the notice of arrest to the chief of police, upon entering a plea of guilty and upon waiving appearance in court, or may have the option of depositing required lawful bail and upon a plea of not guilty shall be entitled to a trial as authorized by law.

B. The payment of a fine to the chief of police shall be deemed an acknowledgment of conviction of the alleged offense, and the chief of police, upon accepting the prescribed fine, shall issue a receipt to the violator acknowledging payment. (2001 In-house code § 28-60)

10.16.030 Forms and records of traffic citations and arrests.

A. The police department shall provide books to include traffic citation forms for notifying alleged violators to appear and answer to charges of violating traffic laws and ordinances in the municipal court of the city. Books shall include serially numbered sets of citations in quadruplicate, in the form prescribed and approved jointly by the municipal judge and chief of police.

B. The chief of police shall be responsible for the issuance of such books to individual members of the police department. The chief shall require a written receipt for every book so issued and shall maintain a record of every such book and each set of citations contained therein. (2001 In-house code § 28-61)

10.16.040 Procedure of police officers.

Except when authorized or directed under state law to immediately take a person before a magistrate for the violation of any traffic laws, a police officer who halts a person for such violation other than for the purpose of giving him or her a warn-

ing or warning notice and does not take such person into custody under arrest, shall take the name, address, and driver's license number of the person, the registered number of the motor vehicle involved, and such other pertinent information as may be necessary. The officer shall issue him or her in writing on a form provided by the chief of police a traffic citation containing a notice to answer to the charge against him or her in the police court of this city at a time at least five days after such alleged violation to be specified in the citation. The officer, upon receiving the written promise of the alleged violator to answer as specified in the citation, shall release such person from custody. (2001 In-house code § 28-62)

10.16.050 Audit of records and reports.

Every record of traffic citations required in Wyo. Stat. Sections 31-5-1201 through 31-5-1214 will be audited annually by the city's fiscal officer and an annual summary of all traffic violation notices and dispositions will be published in a local daily newspaper of general circulation. (2001 In-house code § 28-63)

10.16.060 When copy of citation shall be deemed a lawful complaint.

If the form of citation provided under Section 10.16.030 includes information and is sworn to as required by state law, the citation when filed with a court having jurisdiction shall be deemed to be a lawful complaint for the purposes of prosecution. (2001 In-house code § 28-64)

10.16.070 Failure to obey citation.

It is unlawful for any person to violate his or her written promise to appear given to an officer upon the issuance of a traffic citation regardless of the disposition of the charge for which the citation was originally issued. (2001 In-house code § 28-65)

10.16.080 Citation on illegally parked vehicles.

A. Whenever any motor vehicle without a driver is found parked, standing or stopped in violation of any of the restrictions imposed by ordinances of this city or by state law, the officer finding the vehicle shall take its registration number, vehicle identification number or any other information displayed on the vehicle which may identify its owner, and shall conspicuously affix to the vehicle a civil traffic citation. Any violation of Section 10.64.020 or under Chapters 10.52, 10.56, 10.60 of the city code or any violation of Wyo. Stat. Section 31-5-512 or Wyo. Stat. Section 31-5-504(a)(iii)(A) as adopted under Section 10.08.010 of the city code shall constitute a civil traffic violation, subject to the fine schedule established under Section 10.60.040 of the city code.

B. The civil traffic citation specified under subsection (A) of this section shall be on a form provided by the police department which citation shall include the following:

1. The date, time and location of the violation;

2. The state license number and/or vehicle identification number (VIN) of the vehicle that is unlawfully parked;

3. Reference to the municipal ordinance or code provision alleged to have been violated; and

4. A notice that:

a. Within fifteen (15) calendar days after the date that the citation is issued, the stated fine for a violation must be paid and received by the city;

b. Any request for administrative review to contest the alleged violation must be received by the police department parking administration manager within fifteen (15) days after the date the citation was issued;

c. Failure to pay or request administrative review within fifteen (15) calendar days after the date that the citation was issued shall result in the entry of a default judgment and assessment of a thirty-dollar ($30.00) late fee; and

d. Payment within two (2) business days after the date the citation is issued will cause the stated fine for the violation to be discounted by ten dollars ($10.00).

C. The citation specified under subsection (A) of this section, or copy thereof, shall constitute prima facie evidence of the parking violation.

D. The city may contract with a private person or entity for the collection of civil judgments in parking cases. Any costs reasonably related to the collection of civil judgments in parking cases shall be levied against the violator. (Ord. No. 4582, § 2, 7-22-24; Ord. No. 4296, § 3, 3-9-20; 2001 In-house code § 28-66)

10.16.090 Failure to comply with traffic citation on parked vehicle.

A. If the fine indicated on the citation has not been paid within fifteen (15) days after the date of the issuance of the citation and the defendant has not requested a hearing, a default judgment shall be entered against the registered owner of the vehicle in the amount of the fine plus a late fee of thirty dollars ($30.00). The date of payment for this section shall be the date that payment is actually received by the police department parking administration manager.

B. The police department parking administration manager shall send a mailed notice of the entry of a default judgment for the parking citation to the registered owner of the vehicle within five business days of the entry of the default judgment. (Ord. No. 4296, § 3, 3-9-20; 2001 In-house code § 28-67)

10.16.100 Presumption in reference to illegal parking.

A. In any proceeding alleging a violation of any law or regulation governing the standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of the law or regulation, together with proof that the defendant named in the complaint was at the time of parking the registered owner of the vehicle, shall constitute in evidence a prima facie presumption that the registered owner of the vehicle was the person who parked or placed the vehicle at the point where, and for the time during which, the violation occurred.

B. The foregoing presumption applies only when the procedure as prescribed in Sections 10.16.140, 10.16.150, 10.16.080 and 10.16.090 has been followed. (Ord. No. 4296, § 3, 3-9-20; 2001 In-house code § 28-68)

10.16.110 Issuance of warrant.

If any person fails to comply with a traffic citation given to him or her or attached to a vehicle or fails to make appearance pursuant to a summons directing an appearance in traffic court, or if any person fails or refuses to deposit bail as required and within the time permitted by ordinance, the chief of police shall secure and issue a warrant for his or her arrest. (2001 In-house code § 28-69)

10.16.120 Disposition of traffic fines and forfeitures.

All fines or forfeitures collected upon conviction or upon the forfeiture of bail of any person charged with a violation of any of the provisions of this title shall be paid into the city treasury. (2001 In-house code § 28-70)

10.16.130 Official misconduct.

Failure, refusal or neglect on the part of any judicial or other officer or employee receiving or having custody of any fine or forfeiture, either before or after a deposit in the city treasury, to comply with the provisions of this section shall constitute misconduct in office and shall be grounds for removal. (2001 In-house code § 28-71)

10.16.140 Reserved.

Editor's note—Ord. No. 4581, § 2, adopted July 22, 2024, repealed § 10.16.140, which pertained to request for hearing in parking cases and derived from Ord. No. 4296, § 3, adopted March 9, 2020.

10.16.150 Parking violation administrative review procedures.

A. Any person liable for a parking citation may request administrative review of the citation by contacting the police department parking administration manager in person, by telephone or mail not more than fifteen (15) days after the date of the issuance of the citation. The request shall specify the citation for which the person seeks

review and provide the reasons for seeking administrative review. Under this section, a request for review made by telephone shall be considered received as of the day it was made if received by a police department employee between the hours of 8:00 a.m. and 5:00 p.m. of any day, except on Saturday, Sunday or a city holiday.

B. Upon receipt of a request for administrative review under subsection (A) of this section, the parking administration manager shall promptly transmit the request to the director of the compliance department or his or her designee. The director shall review the citation and the facts and circumstances surrounding the issuance of the citation and make such written determinations as necessary to appropriately and impartially decide the controversy.

Any person aggrieved by the decision of the director of the compliance department or his or her designee as provided in this subsection may seek judicial review in the manner provided by the Wyoming Administrative Procedure Act and the Wyoming Rules of Appellate Procedure.

C. Any person that fails to request a hearing within fifteen (15) days after the issuance of the citation as required under subsection (A) of this section shall be deemed to have waived their right to administrative review and to have admitted to the allegations contained in the parking citation. After the expiration of the fifteen (15) day appeal period, the parking administration manager shall enter judgment for the city and impose a civil sanction in the amount of the issued citation and any fine increases as provided by Section 10.16.090(A) of this chapter.

(Ord. No. 4581, § 1, 7-22-24)

Editor's note—Ord. No. 4581, § 1, adopted July 22, 2024, repealed the former § 10.16.150 and enacted a new § 10.16.150 as set out herein. The former § 10.16.150 pertained to parking violation hearings and appeal procedures and derived from Ord. No. 4296, § 3, adopted March 9, 2020.

10.16.160 Operator error.

A. No person receiving a civil citation under this section shall be found liable if they produce the following proof of operator error to the police department parking administration manager within fifteen (15) days of the receipt of the citation:

1. Proof of payment for their parking during the time the citation was issued. (Ord. No. 4296, § 3, 3-9-20)

Chapter 10.20

TRAFFIC CONTROL DEVICES

Sections:

10.20.010 Authority to install.
10.20.020 Manual and specifications.
10.20.030 Obedience to devices.
10.20.040 When devices required for enforcement purposes.
10.20.050 Presumption of legality.
10.20.060 Reserved.
10.20.070 Reserved.
10.20.080 Crosswalks and safety zones.
10.20.090 Traffic lanes.

10.20.010 Authority to install.

The city traffic engineer shall place and maintain official traffic control devices when and as required under the traffic ordinances of the city to make effective the provisions of such ordinances, and may place and maintain such additional official traffic control devices as he or she may deem necessary to regulate, warn or guide traffic under the traffic ordinances of the city or the State Vehicle Code. (2001 In-house code § 28-105)

10.20.020 Manual and specifications.

A. All traffic control signs, signals and devices shall conform to the manual and specifications approved by the State Highway Commission. All signs and signals required for a particular purpose shall so far as practicable be uniform as to type and location throughout the city. All traffic control devices erected and not inconsistent with the provisions of state law or this title shall be official traffic control devices.

B. The city shall adopt by resolution a manual of specifications and procedures for setting up traffic control devices in construction and maintenance areas. (2001 In-house code § 28-106)

10.20.030 Obedience to devices.

The driver of any vehicle must obey the instructions of any official traffic control device placed in accordance with the provisions of this title and Wyo. Stat. Section 31-5-402 through 405 unless otherwise directed by a traffic or police officer, subject to the exceptions granted the driver of an authorized emergency vehicle. (2001 In-house code § 28-107)

10.20.040 When devices required for enforcement purposes.

No provision of this title for which official traffic control devices are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official device is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that official traffic control devices are required, the section shall be effective even though no devices are erected or in place. (2001 In-house code § 28-108)

10.20.050 Presumption of legality.

A. Whenever official traffic control devices are placed in position approximately conforming to the requirements of this title, the devices are presumed to have been so placed by the official act or direction of lawful authority, unless the contrary shall be established by competent evidence.

B. Any official traffic control device placed pursuant to the provisions of this title and purporting to conform to the lawful requirements pertaining to such devices shall be presumed to comply with the requirements of this title, unless the contrary will be established by competent evidence. (2001 In-house code § 28-109)

10.20.060 Reserved.

Editor's note—Ord. No. 4145, § 1, approved July 11, 2016, repealed §§ 10.20.060. Former § 10.20.060 pertained to the authority to establish play streets and derived from the 2001 In-house code.

10.20.070 Reserved.

Editor's note—Ord. No. 4145, § 1, approved July 11, 2016, repealed § 10.20.070. Former § 10.20.070 pertained to traffic restrictions on play streets and derived from the 2001 In-house code.

10.20.080 Crosswalks and safety zones.

The city traffic engineer is authorized to:

A. Designate and maintain, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at intersections where in his or her opinion there is particular danger to pedestrians crossing the roadway, and at such other places as he or she may deem necessary;

B. Establish safety zones as he or she may deem necessary for the protection of pedestrians. (2001 In-house code § 28-112)

10.20.090 Traffic lanes.

The city traffic engineer is authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary. (2001 In-house code § 28-113)

Chapter 10.24

RULES OF THE ROAD GENERALLY

Sections:

10.24.010 Driving on closed streets prohibited—Liability for damages.

10.24.020 Careless driving.

10.24.030 Driving under influence of liquor or drugs.

10.24.040 Boarding or alighting from vehicles.

10.24.050 Towing of vehicles.

10.24.060 License plates required on demonstration vehicles.

10.24.070 Unlawful riding.

10.24.080 Stop when traffic obstructed.

10.24.090 Driving through funeral or other procession.

10.24.100 Drivers in a procession.

10.24.110 Funeral processions to be identified.

10.24.120 Permits for parades and processions.

10.24.130 Right-of-way for city maintenance vehicles.

10.24.140 Loss of right-of-way upon failure to comply with title.

10.24.150 School zones.

10.24.160 Windshields and wipers.

10.24.170 Driving while using cellular telephone prohibited—Exceptions.

10.24.180 Nuisance exhibition of motor vehicle exhaust—Prohibited.

10.24.190 Critical traffic control areas; creation and administration; enhanced penalties.

10.24.200 Vehicle mufflers, excessive smoke and unreasonable noise.

10.24.010 Driving on closed streets prohibited—Liability for damages.

No vehicle may be driven over any portion of a street where there is any sign, light or barrier of any kind of indicate that the street is closed to traffic. Any driver violating this section will be liable for all damages incurred, in addition to penalties as may be imposed for the violation of this section. (2001 In-house code § 28-5)

10.24.020 Careless driving.

Every person operating a vehicle within the city shall drive the same in a careful and prudent manner, having regard for the width, grade, curves, corners, traffic and use of these streets and all other attendant circumstances so as not to endanger the life, limb or property of any person. (2001 In-house code § 28-184)

10.24.030 Driving under influence of liquor or drugs.

A. It is unlawful for any person who is under the influence of intoxicating liquor to a degree which renders him or her incapable of safely driving a motor vehicle to drive any motor vehicle within the city.

B. It is unlawful for any person who is under the influence of any controlled substance or the combined influence of alcohol and any controlled substance, to a degree which renders him or her incapable of safely driving a vehicle, to drive any motor vehicle within the city. The fact that any person charged with violation of this subsection is or has been entitled to use the controlled substance under the laws of this state shall not constitute defense against any charge of violating this subsection. (2001 In-house code § 28-185)

10.24.040 Boarding or alighting from vehicles.

No person shall board or alight from any vehicle while such vehicle is in motion.

No person shall enter or get out of any vehicle from the side facing the traveled part of the street or roadway in such a manner as to interfere with the flow of traffic. (2001 In-house code § 28-186)

10.24.050 Towing of vehicles.

No vehicle shall tow more than one other vehicle or trailer. (2001 In-house code § 28-187)

10.24.060 License plates required on demonstration vehicles.

No person shall use any public street or thoroughfare within the city for the purpose of demonstrating the condition or merits of any motor vehicle which is for sale unless such vehicle shall be properly equipped with current dealer or individual license tags issued by the auto license department of the county. (2001 In-house code § 28-188)

10.24.070 Unlawful riding.

No person shall ride on any vehicle upon any portion thereof not designed or intended for the use of passengers. This provision shall not apply to an employee engaged in the necessary discharge of a duty, or to persons riding within truck bodies in space intended for merchandise. (2001 In-house code § 28-189)

10.24.080 Stop when traffic obstructed.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he or she is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed. (2001 In-house code § 28-190)

10.24.090 Driving through funeral or other procession.

No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are conspicuously designated as required in this chapter. This provision shall not apply at intersections where traffic is controlled by traffic-control signals or police officers. (2001 In-house code § 28-191)

10.24.100 Drivers in a procession.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practicable and shall follow the vehicle ahead as close as is practicable and safe. (2001 In-house code § 28-192)

10.24.110 Funeral processions to be identified.

A funeral composed of a procession of vehicles shall be identified as such by the display upon the outside of each vehicle of a pennant or other identifying insignia or by such other method as may be determined and designated by the traffic division. (2001 In-house code § 28-193)

10.24.120 Permits for parades and processions.

No funeral procession or parade containing two hundred (200) or more persons or fifty (50) or more vehicles except the armed forces of the United States, the military forces of this state and the forces of the police and fire departments, shall occupy, march or proceed along any street except in accordance with a permit issued by the chief of police and such other regulations as are set forth herein which may apply. (2001 In-house code § 28-194)

10.24.130 Right-of-way for city maintenance vehicles.

All vehicles of the various city maintenance departments shall have the right-of-way, at all times, over all except authorized emergency vehicles. (2001 In-house code § 28-195)

10.24.140 Loss of right-of-way upon failure to comply with title.

Any driver or operator, while driving in a reckless manner, or to the left of the center of the street on a two-way street, or driving without lights at such time as lights are required or violating any other provision of this title or any other traffic ordinance or laws, shall have no right-of-way whatsoever. (2001 In-house code § 28-196)

10.24.150 School zones.

The designation of "school zones" covers only the days when schools are in session, and covers

the period from eight a.m. to four-thirty p.m. inclusive, unless otherwise posted. Every driver of a motor vehicle shall exercise extreme care in approaching and driving through such areas. (2001 In-house code § 28-197)

10.24.160 Windshields and wipers.

No person shall drive any motor vehicle with any:

A. Sign, poster, ice, snow or other nontransparent material which obstructs the view of the driver upon the front windshield, side windows or rear windows of such vehicle other than a certificate or other paper required to be displayed by law; or

B. Cracked, broken or shattered front windshield, side windows or rear windows which obstruct the view of the driver.

The windshield on each vehicle shall be equipped with a device for cleaning rain, snow or other moisture from the windshield which device shall be maintained in working order and be so constructed as to be controlled or operated by the driver of the vehicle. (2001 In-house code § 28-198)

10.24.170 Driving while using cellular telephone prohibited—Exceptions.

A. Within the city of Cheyenne, no person shall use a cellular telephone, for any purpose, while operating a motor vehicle unless the cellular telephone is specifically designed to allow hands-free operation and is used in a hands-free manner.

B. This section shall not apply to the following persons:

1. A person who is occupying a legally parked motor vehicle; or

2. A person who is specifically contacting an emergency services agency to inform that agency of an emergency.

C. As used in this section, the following term is defined: "Cellular telephone" (also known as hand phone, wireless phone, cell phone, mobile phone, mobile telephone, cellular phone or cell telephone) is a mobile communication device that uses short-wave analog or digital radio transmissions between the device and a transmitter to permit wireless communications to and from the user of the device.

D. Any person who operates a motor vehicle in violation of this section shall be guilty of a misdemeanor. The penalty for a violation of this section shall be a monetary fine not to exceed seven hundred fifty dollars ($750.00) as determined by the municipal court. (Ord. No. 3870, § 1, 9-14-09)

10.24.180 Nuisance exhibition of motor vehicle exhaust—Prohibited.

A. A person shall not engage in a nuisance exhibition of motor vehicle exhaust, which is the knowing release of soot, smoke, or other particulate emissions from a motor vehicle with a gross vehicle weight rating of fourteen thousand (14,000) pounds or less into the air and onto roadways, other motor vehicles, bicyclists, or pedestrians, in a manner that obstructs or obscures another person's view of the roadway, other users of the roadway, or a traffic control device, or otherwise creates a hazard to a driver, bicyclist, or pedestrian. The term "roadway" is used as defined in Wyo. Stat. Section 31-5-102(a).

B. The prohibition set forth in Section 10.24.180 shall not apply to:

1. "Commercial vehicles," as defined in Wyo. Stat. Section 31-1-101(a);

2. "Motor carriers," as defined in Wyo. Stat. Section 31-18-101(a);

3. Motor vehicles engaged in "towing service," as defined in Wyo. Stat. Section 18-2-113(a); and

4. Motor vehicles used for "agricultural operations" purposes, as defined in Wyo. Stat. Section 31-18-801(a).

(Ord. No. 4190, § 1, 7-24-17)

10.24.190 Critical traffic control areas; creation and administration; enhanced penalties.

A. There is created the critical traffic control program, which shall be empowered to designate one or more critical traffic control areas in the city

of Cheyenne as provided in this section. The program shall be administered by the program committee in accordance with this section, which committee shall be composed of the mayor or his or her designee, the city engineer or his or her designee, and the chief of police or his or her designee. The objective of the program shall be to identify areas in the city with unsafe or unlawful traffic speeds or other behaviors and to implement appropriate temporary remedial measures to address those behaviors.

B. A critical traffic control area may only be designated under the program in accordance with subsection (C) of this section and only after the receipt of a critical traffic control program complaint. The complaint shall be signed by not less than five residents of the area that is the subject of the complaint, which residents shall represent different businesses or households affected by the alleged unsafe or unlawful traffic speeds or behaviors. Complaint forms shall be made available to the public by the city engineer. Any complaint submitted under this subsection shall specifically identify the unsafe or unlawful traffic speeds or behaviors that are of concern to the residents.

C. The program committee shall review and evaluate the merits of any traffic control program complaint submitted in accordance with subsection (B) of this section. Should the committee determine the complaint has merit, the city engineer shall order a traffic study for the affected area, the results of which shall be submitted to the committee not less than fourteen (14) days after the date that the study was initiated. If the city engineer ordered a study to evaluate vehicle speeds, the study period shall include not less than two weekdays and not less than one weekend Saturday as data gathering points. In addition, a crash history for not less than the previous five years shall be obtained and a crash data analysis shall be developed and summarized. If the results of the study substantiate the complaint, the program committee may designate the affected area as a critical traffic control area. Nothing in this subsection shall be construed to prohibit the city engineer from commissioning a third-party professional engineer to complete the traffic study required under this subsection.

D. Upon the designation of any critical traffic control area as provided by subsection (B) of this section and subject to the requirements of subsection (F), the program committee may implement appropriate temporary remedial measures to address the unlawful traffic speeds or other behaviors including:

1. Establishing enhanced fines for speeding violations within the designated area, which fines shall be two times the amount of the fine that would be imposed for the same violation in the same or similar area but for the traffic control area designation. If enhanced fines are implemented, proper signage shall also be installed to provide reasonable notice to drivers, which signage shall identify the beginning and end points of the critical traffic control area. An enhanced fine imposed under this paragraph is mandatory and may only be reduced by a municipal court judge as follows:

a. Upon a specific finding that the defendant has no ability to pay the full fine amount and that no reasonable probability exists that the defendant will have an ability to pay the full fine amount;

b. Upon completion of a defensive driving course but only if the defendant has previously maintained a motor vehicle record free of moving violations and the prosecutor first consents; or

c. The defendant is entitled to a fine reduction under W.S. 31-5-1402(e).

2. Installation of additional traffic control devices, including driver feedback radar signs, traffic control signals or traffic calming devices;

3. Increased law enforcement presence for the purpose of strictly enforcing traffic laws, which increased presence may be incentivized through the authorization of overtime to be offered to police officers; and

4. Any other appropriate temporary measures the committee determines may address the unsafe or unlawful traffic behaviors.

E. Any critical traffic control area designated under this section shall be reevaluated by the pro-

gram committee not more than thirty (30) days after the implementation date of any temporary remedial measures to determine if the measures remain appropriate or should be modified or terminated. Record of the program committee's revaluation shall be filed in accordance with subsection (F) of this section. The program committee's failure to meet within the required thirty (30) days shall not affect the validity of the critical traffic control area or the enforcement authority for any enhanced fine implemented under paragraph (D)(1) of this section. If the committee modifies or continues the remedial measures, the area shall again be reevaluated by the program committee not more than thirty (30) days after the implementation date that the measures were most recently modified or continued. Except for enhanced fines under paragraph (D)(1) of this section, any remedial measure otherwise implemented under this section may be made permanent when necessary to maintain the public safety and if made permanent, shall not be subject to the reevaluation requirements imposed by this subsection.

F. Upon the designation of a critical traffic control area and the implementation of any temporary remedial measures under subsections (C) and (D) of this section, or the modification or termination of an existing area under subsection (E), the program committee shall file a record of the action with the city clerk using a standardized form. The form shall specify the remedial measures to be implemented, continued or modified and further state the effective date for the implementation, continuance or modification of applicable remedial measures. If a designation is terminated, the form shall specify the effective date of the termination. Upon receipt of a record of action form under this subsection, the city clerk shall provide a copy to the chief of police or his or her designee for the purposes of enforcement.

G. Nothing in this section shall be construed to limit or otherwise affect the authority granted under Title 10, Chapter 10.68 of the city code or the authority of the city traffic engineer under section 10.12.130 of the city code. (Ord. No. 4619, § 1, 4-28-25; Ord. No. 4579, § 1, 6-24-24)

10.24.200 Vehicle mufflers, excessive smoke and unreasonable noise.

A. Every motor vehicle shall at all times be equipped with a muffler or other effective noise suppressing system in good working order and in constant operation. No person shall use a muffler cut-out, bypass or similar device.

B. The engine and power mechanism of every motor vehicle shall be so equipped and adjusted as to prevent the escape of excessive fumes or smoke.

C. No person shall make, continue to make, or cause any unreasonable noise originating in or from any vehicle. In addition, no person shall knowingly allow any vehicle they own, operate, or control to produce unreasonable noise, or operate any vehicle, regardless of ownership, in a manner or with equipment that produces unreasonable noise.

D. Any peace officer enforcing this section is empowered to make a prima facie determination as to whether a noise is unreasonable based on consideration of one or more of the following factors:

1. The time of day at which the noise occurs;

2. The location where the vehicle is being operated;

3. The presence of pedestrians, bystanders, or other vehicles in the vicinity;

4. The operation of a motor vehicle in a manner that causes unreasonable noise, including but not limited to unnecessary or rapid acceleration or deceleration, abrupt steering or turning, revving the engine, or tire squealing;

5. The operation of a vehicle with equipment improperly installed, removed or otherwise altered so as to produce unreasonable noise. This includes, but is not limited to unlawful, defective or modified exhaust systems, vehicles lacking a functioning muffler or exhaust system, or any other modification to any part of the vehicle that increases noise output;

6. The presence or use of noise amplification equipment, including stereo or audio systems, operated at unreasonably high-volume levels; or

7. Any other relevant factor or condition that would lead a reasonable person to conclude the noise is an unreasonable noise as defined in this section.

E. Any person who violates any provision of this section is guilty of a misdemeanor and shall be subject to the following penalties:

1. For a first offense: A fine of not less than one hundred dollars ($100.00) or more than two hundred dollars ($200.00);

2. For a second offense within a twelve (12) month period: A fine of not less than two hundred fifty dollars ($250.00) or more than three hundred dollars ($300.00); or

3. For a third or subsequent offense within a twelve (12) month period: A fine of not less than four hundred dollars ($400.00) or more than five hundred dollars ($500.00), or by imprisonment for not more than six months, or both. Each person cited for a third or subsequent offense within a twelve (12) month period shall appear in municipal court.

F. This section shall not apply to any person operating loudspeakers, sound cars or sound trucks upon any street, alley or public property of the city, provided they have first obtained written permission from the police chief and a permit in accordance with Sections 8.56.060 and 8.56.070 of the city code.

G. For purposes of this section:

1. "Motor vehicle" means as defined by Wyo. Stat. Section 31-5-102(a)(xxiv);

2. "Unreasonable noise" means any sound, by volume or duration, that is or tends to be injurious to human health or welfare, or which unreasonably interferes with the quiet enjoyment of life or property; and

3. "Vehicle" means as defined by Wyo. Stat. Section 31-5-102(a)(lviii).

H. Not later than October 31, 2026, city staff shall report to the governing body on the impact and the efficacy of this section in addressing the conduct regulated herein. The report shall include the number of citations issued, the location and time of day of the citations, the disposition of prosecutions, and any recommendations for amendment or improvement necessary to enhance enforcement and effectiveness. (Ord. No. 4643, § 1, 9-22-25)

Chapter 10.28

ONE-WAY STREETS AND ALLEYS

Sections:

10.28.010 Authority to designate.

10.28.020 Traffic restricted.

10.28.030 Restrictions during certain periods.

10.28.010 Authority to designate.

Whenever any ordinance of this city designates any one-way street or alley the city traffic engineer shall place and maintain signs giving notice thereof, and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited. (2001 In-house code § 28-156)

10.28.020 Traffic restricted.

Upon those streets and parts of streets and in those alleys described in Schedule B attached to the ordinance codified in this section and made a part hereof, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited.

Schedule B is adopted by reference and is on file in the offices of the city clerk, traffic engineer and police department. (2001 In-house code § 28-157)

10.28.030 Restrictions during certain periods.

The governing body, upon the recommendation of the traffic engineer, is authorized to determine and designate streets, parts of streets or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day and shall place and maintain appropriate markings, signs, barriers or other devices to give notice thereof. The city traffic engineer may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the center line of the roadway. (2001 In-house code § 28-158)

Chapter 10.32

SPEED LIMITS

Sections:

10.32.010 State speed laws applicable.

10.32.020 Increasing state speed limits in certain zones.

10.32.030 Decreasing state speed limits in certain zones.

10.32.040 Regulation of speed by traffic signals.

10.32.050 Speed limit in school zones.

10.32.060 Increased fines for violation of posted speed limits in construction zones.

10.32.010 State speed laws applicable.

The state traffic laws regulating the speed of vehicles apply to all streets within this city, except as this title, as authorized by state law, declares and determines upon the basis of an engineering and traffic investigation that certain speed regulations shall be applicable upon specified streets or in certain areas, in which event it is unlawful for any person to drive a vehicle at a speed in excess of any speed so declared in this title when signs are in place giving notice thereof. (2001 In-house code § 28-125)

10.32.020 Increasing state speed limits in certain zones.

It is determined upon the basis of an engineering and traffic investigation that the speed permitted by state law upon those streets or portions thereof described in Schedule A-1, as amended by and attached to the ordinance codified in this section and made a part hereof, is less than is necessary for safe operation of vehicles thereon by reason of the designation and signposting of such streets as through highways, or by reason of widely spaced intersections, and it is declared that the maximum speed limit upon those streets or portions thereof described in Schedule A-1, as amended, shall be as therein stated, which speeds so declared shall be effective at the time specified therein when signs are erected giving notice thereof.

Such Schedule A-1, as amended is adopted by reference and is on file in the offices of the city clerk, traffic engineer and police department. (Ord. 3620 § 1, 2004: Ord. 3590 § 1, 2004: 2001 In-house code § 28-126)

10.32.030 Decreasing state speed limits in certain zones.

It is determined upon the basis of an engineering and traffic investigation that the speed permitted by state law upon those streets or portions thereof as described in Schedule A-2, as amended by and attached to the ordinance codified in this section and made a part hereof, is greater than is reasonable or safe under the conditions found to exist upon such streets and it is declared that the maximum speed upon those streets or portions thereof described in Schedule A-2, as amended, shall be as therein stated, which speeds so declared shall be effective at the time specified therein.

Such Schedule A-2, as amended, is adopted by reference and is on file in the offices of the city clerk, traffic engineer and police department. (Ord. No. 4121, § 1, 3-14-2016; Ord. No. 4048, § 1, 12-22-14; Ord. 3612 § 1, 2004: 2001 In-house code § 28-127)

10.32.040 Regulation of speed by traffic signals.

The city traffic engineer is authorized to regulate the timing of traffic signals to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable within the district or at intersections and shall erect appropriate signs giving notice thereof. (2001 In-house code § 28-128)

10.32.050 Speed limit in school zones.

No person shall drive a vehicle on any street within a school zone at a speed in excess of twenty (20) miles per hour between the hours of eight a.m. and four-thirty p.m. on any school day. If school is in session at hours other than the above

hours, and signs are appropriately posted, then the twenty (20) mile per hour speed limit shall apply as posted on such signs. (2001 In-house code § 28-129)

10.32.060 Increased fines for violation of posted speed limits in construction zones.

Authority. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-101 et seq., and the city's home rule powers, in order to protect life and property in construction zones, fines for speeding violations in any posted construction zone within the city shall be double the fine imposed in a nonconstruction area. (Ord. 3604 § 1, 2004)

Chapter 10.36

STOP AND YIELD INTERSECTIONS

Sections:

10.36.010 Through streets designated.

10.36.020 Signs required at through streets.

10.36.030 Other intersections where stop or yield required.

10.36.010 Through streets designated.

Those streets and parts of streets described in Schedule C, attached to the ordinance codified in this section and made a part hereof are declared to be through streets for the purpose of this section.

Such Schedule C is adopted by reference and is on file in the offices of the city clerk, traffic engineer and police department. (2001 In-house code § 28-170)

10.36.020 Signs required at through streets.

Whenever any ordinance of this city designates and describes a through street it shall be the duty of the city traffic engineer to place and maintain a stop sign, or on the basis of an engineering and traffic investigation at any intersection a yield sign, on each and every street intersecting such through street unless traffic at any such intersection is controlled at all times by traffic-control signals; provided, however, that at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs shall be erected at the approaches of either of the streets as may be determined by the city traffic engineer upon the basis of an engineering and traffic study. (2001 In-house code § 28-171)

10.36.030 Other intersections where stop or yield required.

The city traffic engineer is authorized to determine and designate intersections where particular hazards exist upon other than through streets and to determine:

A. Whether vehicles shall stop at one or more entrances to any such intersection, in which event he or she shall cause to be erected a stop sign at every such place where a stop is required; or

B. Whether vehicles shall yield the right-of-way to vehicles on a different street at such intersection, in which event he or she shall cause to be erected a yield sign at every place where obedience thereto is required. (2001 In-house code § 28-172)

Chapter 10.40

TURNING MOVEMENTS

Sections:

10.40.010 Authority to place devices altering normal course for turns.

10.40.020 Authority to place restricted turn signs.

10.40.030 Obedience to no-turn signs.

10.40.040 Limitations on turning around.

10.40.050 Right turn on red light.

10.40.010 Authority to place devices altering normal course for turns.

The city traffic engineer is authorized to place official traffic-control devices within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections, and such course to be traveled as so indicated may conform to or be other than as prescribed by law. (2001 In-house code § 28-140)

10.40.020 Authority to place restricted turn signs.

The city traffic engineer is authorized to determine those intersections at which drivers of vehicles shall not make a right turn, left turn or U-turn, and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted. (2001 In-house code § 28-141)

10.40.030 Obedience to no-turn signs.

Whenever authorized signs are erected indicating that no right turn, left turn or U-turn is permitted, no driver of a vehicle shall disobey the directions of such sign. (2001 In-house code § 28-142)

10.40.040 Limitations on turning around.

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district and shall not upon any other street so turn a vehicle unless such movement can be made in safety and without interfering with other traffic. The driver of a vehicle intending to turn to the left within an intersection or into an alley, private road or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard. (2001 In-house code § 28-143)

10.40.050 Right turn on red light.

Except when a sign is in place prohibiting a turn, vehicular traffic stopped, facing a steady red signal in the lane nearest the right hand side of the highway, may after giving the signal required by law indicating a right hand turn, cautiously enter the intersection for the purpose of making a turn to the right, and shall turn so as not to interfere with other traffic nor endanger pedestrians within a crosswalk. (2001 In-house code § 28-144)

Chapter 10.44

WEIGHT LIMITS

Sections:

10.44.010 Commercial motor vehicle defined.

10.44.020 Purpose.

10.44.030 Applicability.

10.44.040 Thru truck restrictions upon vehicles using certain highways.

10.44.050 Truck routes.

10.44.060 Authority to weigh.

10.44.070 Size and weight limits.

10.44.080 Permit application.

10.44.090 Permitted operation on non-truck-route streets.

10.44.100 Operation of tracked vehicles—Prohibited on city streets.

10.44.110 Bypass of port of entry—Prohibited.

10.44.120 Violation—Penalty.

10.44.010 Commercial motor vehicle defined.

Unless the context of this chapter otherwise requires, the term "commercial motor vehicle," when used in this chapter shall be construed to mean any truck, trailer or combination thereof, carrying or constructed to carry cargo other than personnel, for gain or for profit, and having a rated load capacity gross vehicle weight of ten thousand and one (10,001) pounds. (Ord. No. 4333, § 1, 12-14-20; 2001 In-house code § 28-329)

Editor's note—Ord. No. 4333, § 1, adopted Dec. 14, 2020 amended § 10.44.010 and in doing so changed the title of said section from "Commercial motor vehicle defined" to "Commercial motor vehicle defined," as set out herein.

10.44.020 Purpose.

The prevention of unnecessary wear and tear on the streets of the city and the elimination of unnecessary traffic hazards and loss of life and property resulting from such traffic hazards, caused by the unregulated and unrestricted use of the streets of the city by certain types of motor vehicles, and the maintenance of a sound, well-regulated traffic system for the people of the city are declared to be the objectives of this chapter, and the provisions of this chapter are the means to that end. In order to align the purpose and enforcement of this section, any revenue generated to the city from enforcement shall be directed by the city treasurer to road maintenance or construction. (Ord. No. 4333, § 1, 12-14-20; 2001 In-house code § 28-330)

10.44.030 Applicability.

The terms of this chapter shall not be construed to apply to any motor vehicle operating exclusively within the city and carrying cargo from place to place within the limits of the city and its immediate environs. (2001 In-house code § 28-331)

10.44.040 Thru truck restrictions upon vehicles using certain highways.

A. When signs are erected giving notice thereof, no person shall operate a commercial motor vehicle with a gross vehicle weight rating (GVWR) over twenty-six thousand and one (26,001) pounds, at any time upon any of the streets or parts of streets described in Schedule H, attached to the ordinance codified in this section, without a scheduled stop in such locality.

B. The city engineer may place a weight limit on specific bridges based upon an engineering analysis, which will be filed in the city engineer's office. When signs are erected giving notice thereof, no person shall operate a vehicle with a gross vehicle weight (GVW) in excess of the weight limit specified on the signs, at any time upon any bridge or parts of a bridge described in Schedule H, attached to the ordinance codified in this section, without a super load permit issued by the city engineering office.

Schedule H is adopted by reference and is on file in the offices of the city clerk, traffic engineer and police department.

Roads and bridges identified in Schedule H shall be identified by black and white regulatory signs:



(Ord. No. 4333, §§ 1, 2(Exh. A), 12-14-20; 2001 In-house code § 28-332)

Editor's note—Ord. No. 4333, §§ 1, 2(Exh. A), adopted Dec. 14, 2020 amended § 10.44.040 and in doing so changed the name of said section from "Load restrictions upon vehicles using certain highways" to "Thru truck restrictions upon vehicles using certain highways," as set out herein.

10.44.050 Truck routes.

In order to expedite the movement of commercial motor vehicle traffic within and through the city and to eliminate the traffic hazards and obstructions resulting from the unrestricted use of the streets of the city by such vehicles, the streets listed in Schedule I, attached to the ordinance codified in this section and made a part hereof, are established and designated "truck routes," to be used by commercial motor vehicles when passing through the city in the directions indicated.

Schedule I is adopted by reference and is on file in the offices of the city clerk, traffic engineer and police department. (Ord. No. 4333, §§ 1, 3(Exh. B), 12-14-20; 2001 In-house code § 28-335)

10.44.060 Authority to weigh.

The chief of police, or his designee, who has completed commercial vehicle size and weight training by the Wyoming Highway Patrol, shall have the authority to require the driver of any vehicle operating on the streets within the city, which he has reason to believe is overweight, to proceed with the vehicle to an appropriate weight station or stopping place not to exceed five miles from the declared route of travel, for the purposes of determining whether this chapter has been complied with, unless the vehicle has been weighed at a port of entry with the same load.

The chief of police, or designee measuring vehicle weight shall use calibrated scales and be certified in the use of such scales.

Overweight loads of a perishable nature to include hot loads or loads within one mile of its destination will be allowed to proceed to the destination for off-loading after being weighed; violations and permits for perishable or hot loads will be handled following off-loading. (Ord. No. 4333, § 1, 12-14-20)

10.44.070 Size and weight limits.

All vehicles operated within the city shall comply with Wyo. Stat. § 31-18-802. (Ord. No. 4333, § 1, 12-14-20)

10.44.080 Permit application.

A. A person may operate a vehicle with a gross vehicle weight or size in excess of the amounts specified in Section 10.44.070, after receiving a special permit for operation of oversize and overweight loads. The city honors all exceptions to permits as identified in Wyo. Stat. § 31-18-804 and § 31-18-808.

B. Permits issued by the Wyoming Department of Transportation for oversize and overweight loads are honored and accepted within the city if the load is within the approved scope of the permit; the load may be taken onto city streets without a permit from the city except for super loads.

C. A super load with a GVW in excess of one hundred sixty thousand (160,000) pounds and/or length greater than one hundred twenty (120) feet, and/or width greater than fifteen (15) feet, and/or height is greater than sixteen (16) feet shall require a permit from the city engineer's office in addition to any permits required by the Wyoming Department of Transportation.

1. A permit under this section for a GVW exceeding one hundred sixty thousand (160,000) pounds shall not be issued until the permittee has paid all costs incurred by the city in compliance with industry standards to determine routing, struc-

ture, street capability to withstand the load and the cost incurred by sending personnel to accompany the movement of the load.

2. The city engineer's office shall issue the permit within two weeks if the conditions of the permit are met.

3. The city engineer's office shall charge a permit fee of one hundred dollars ($100.00) for super loads.

D. Permit applicants must agree to obey all state laws and ordinances of the city of Cheyenne and shall carry the permit in the vehicle or be able to show the permit in a digital form. (Ord. No. 4333, § 1, 12-14-20)

10.44.090 Permitted operation on non-truck-route streets.

The operation of commercial motor vehicle over and along any city street which is not designated as a truck route, shall be allowed only for the purpose of reaching a point of destination inside the city, provided that:

A. One Destination Point. All commercial motor vehicles having a single destination point in the city shall proceed only over an established truck route and shall deviate only at the intersection with the street upon which such traffic is permitted nearest to the destination point. A deviating commercial motor vehicle shall return to the truck route by the safest and most direct route.

B. Multiple Destination Points. All commercial motor vehicles having multiple destination points shall proceed only over established truck routes and shall deviate only at the intersection with the street upon which such traffic is permitted, nearest to the first destination point. Upon leaving the first destination point, a deviating commercial motor vehicle shall return to the nearest truck route and proceed to other destination points by the safest and most direct route, and only over streets upon which such traffic is permitted. Upon leaving the last destination point, a deviating commercial motor vehicle shall return to the truck route by the safest and most direct route. (Ord. No. 4333, § 1, 12-14-20)

10.44.100 Operation of tracked vehicles—Prohibited on city streets.

No person shall operate any vehicle equipped with continuous tracks, at any time, upon any of the streets or parts of streets within the city of Cheyenne unless it is necessary for construction activities. All vehicles equipped with continuous tracks shall be transported to and from the location of operation. (Ord. No. 4333, § 1, 12-14-20)

10.44.110 Bypass of port of entry—Prohibited.

No commercial vehicle shall bypass any port of entry by using city streets within the city of Cheyenne. (Ord. No. 4333, § 1, 12-14-20)

10.44.120 Violation—Penalty.

It is unlawful for any person to operate or cause to be operated any vehicle within the city in violation of this chapter. Violations of this chapter are punishable in accordance with the general penalty provisions of Chapter 1.24 of the Cheyenne Municipal Code. (Ord. No. 4333, § 1, 12-14-20)

Chapter 10.48

PEDESTRIANS

Sections:

10.48.010 Drivers to exercise due care.

10.48.020 Crossing at right angles.

10.48.030 Prohibited crossing.

10.48.040 Obedience of pedestrians to bridge and railroad signals.

10.48.050 Pedestrians prohibited from darting into the street.

10.48.060 Pedestrians prohibited from impeding traffic.

10.48.010 Drivers to exercise due care.

A. Notwithstanding other provisions of this title, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any obviously confused or incapacitated person upon a roadway.

B. At all pedestrian and school crosswalks within the city indicated by pavement markings and warning and regulatory signs, every driver of a vehicle shall stop and yield the right-of-way to any pedestrian within, entering or attempting to enter the crosswalk at either edge of the roadway. (2001 In-house code § 28-210)

10.48.020 Crossing at right angles.

Except where otherwise indicated by a crosswalk or other official traffic-control device, a pedestrian shall cross a roadway at right angles to the curb or by the shortest route to the opposite curb. (2001 In-house code § 28-211)

10.48.030 Prohibited crossing.

No pedestrian shall cross a roadway other than a crosswalk in the central business district. (2001 In-house code § 28-212)

10.48.040 Obedience of pedestrians to bridge and railroad signals.

No pedestrian shall pass through, around, over, or under any crossing gate or barrier at a railroad grade crossing or bridge while such gate or barrier is closed or is being opened or closed. (2001 In-house code § 28-213)

10.48.050 Pedestrians prohibited from darting into the street.

No pedestrian shall suddenly leave a curb or other place of safety and dart or run into a street or any other area which is normally utilized for vehicular traffic. (2001 In-house code § 28-214)

10.48.060 Pedestrians prohibited from impeding traffic.

Pedestrians shall not enter or remain upon a street or thoroughfare in a manner which impedes the vehicular traffic. (2001 In-house code § 28-215)

Chapter 10.52

STOPPING, STANDING AND PARKING GENERALLY

Sections:

10.52.010 Method of parking.

10.52.020 Prohibited in specified places.

10.52.030 Parking not to obstruct traffic.

10.52.040 Parking in alleys.

10.52.050 Parking for certain purposes prohibited.

10.52.060 Parking adjacent to schools.

10.52.070 Parking prohibited on narrow streets.

10.52.080 Standing or parking on one-way streets.

10.52.090 Standing or parking on one-way roadways.

10.52.100 No stopping, standing or parking near hazardous or congested places.

10.52.110 Storage of vehicles in public space prohibited.

10.52.120 Reserved.

10.52.130 Parking right-of-way.

10.52.140 Unauthorized parking on private property.

10.52.150 Street parking prohibited when streets to be repaired or parade to pass on street.

10.52.160 Reserved.

10.52.170 Application of chapter.

10.52.180 Regulations not exclusive.

10.52.190 Designating and posting of prohibited parking.

10.52.200 Recreational vehicles and trailers; parking permitted in certain places.

10.52.210 Reserved.

10.52.220 Parking time limited.

10.52.230 Downtown construction/maintenance worker parking in an established timed parking zone.

10.52.010 Method of parking.

A. No person shall stand or park a vehicle in the roadway other than parallel with the edge of the roadway, headed in the direction of lawful traffic movement, and with the wheels of the vehicle nearest the curbline on the roadway but within twelve (12) inches of the curb or edge of the roadway, except two- or three-wheeled motor vehicles which may park at an angle to the curb and abutting the curb, provided they do not obstruct traffic movement and except as otherwise provided in this title.

B. Except as provided in subsection (C) of this section, no person shall be permitted to back a motor vehicle into a diagonal parking space within city limits.

C. A person shall be permitted to back a motor vehicle into a diagonal parking space when the space has been designated by the city traffic engineer as an authorized back-in angle parking space. (Ord. No. 4461, § 1, 9-12-22; Ord. No. 4296, § 4, 3-9-20; 2001 In-house code § 28-258)

10.52.020 Prohibited in specified places.

Except when necessary to avoid conflict with other traffic, or in compliance with law or the directions of a police officer or other official traffic-control device, no person shall:

A. Stop, stand or park a vehicle:

1. Which is a tractor unit with ten (10) or more wheels and a fifth wheel, with or without a semi-trailer, upon any street or alley in the city, except when such vehicles are in the process of loading or unloading at the site of origin or delivery of shipments; recreational campers and vans may park for the time limits posted.

2. On the roadway side of any vehicle stopped or parked at the edge or curb of the street, except

that commercial delivery vehicles may double park on any street parallel with the curb, with hazard lights flashing, which has two lanes of traffic moving in the same direction, for the express purpose of, and while actually engaged in, loading or unloading; provided, that no truck so parked shall remain double parked for longer than thirty (30) minutes at any one delivery point; also provided, that on the streets between Pioneer and Warren Avenues, and 16th and 25th Streets, inclusive, where these aforementioned streets have two lanes of traffic moving in the same direction, the double parking shall not be permitted between the hours of 7:30 a.m. to 8:30 a.m. and 11:30 a.m. to 1:30 p.m. and 4:30 p.m. to 5:30 p.m. It shall be a violation of this section to double park at any time if space is available to park directly adjacent to and parallel with the curb when the delivery vehicle stops. All delivery vehicles which have no apparent signs or indications demonstrating the vehicle to be a commercial vehicle must place a sign in a conspicuous place stating that the vehicle is a delivery vehicle and the name of the business for which deliveries are being made;

3. Along or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic; or

4. On any railroad tracks, nor within fifty (50) feet of any railroad crossing at grade.

B. Stand or park a vehicle or trailer, whether occupied or not:

1. Within fifteen (15) feet of a fire hydrant;

2. On a sidewalk or any crosswalk;

3. Unless otherwise posted, stand or park a motor vehicle or trailer, or any part thereof, within thirty (30) feet of any point formed by the intersection of the curb lines extending from any corner of the intersection which is not constructed as a "bump out." For the purposes of this subsection, "curb line" is defined as the line coincident with the face of the street curb adjacent to the roadway. No motor vehicle, recreational vehicle or trailer may be stopped or parked along or adjacent to the curved portion of a "bump out";

4. In front of or within five (5) feet of a public or private driveway, an alley, or a ramp to provide access for persons with physical disabilities. The prohibition provided by this paragraph shall not apply to a driver's personal private driveway;

5. At any place where official signs or yellow painted curbs prohibit standing;

6. On public property between the curbline and property line unless a permit to so park is first granted in writing by the city engineer with the approval of the chief of police. The city engineer is authorized to require construction of parking slabs, curb cuts or other devices to delineate such parking spaces. Upon approval of the permit, the city engineer shall assess a five-dollar ($5.00) fee to the applicant. Once the permit is granted, only operational vehicles, excluding recreational vehicles, shall be allowed to stand or park within the above described property; or

7. Where any part of the vehicle or trailer extends onto or over any public sidewalk or extends onto or over the travel lane of any public street, except that a person may stand or park a vehicle or trailer under this paragraph for a period of not more than eight hours and only during daylight hours.

C. Park a vehicle, whether occupied or not at any place where official signs prohibit parking.

D. In addition to subsections (A) through (C) of this section, no person shall park an oversized vehicle, as defined by Section 8.60.020(A)(8) of the city code, along any public roadway of the city of Cheyenne between Labor Day and Memorial Day. Notwithstanding this prohibition, an oversized vehicle may be parked along a public roadway:

1. Between Memorial Day and Labor Day, and for not more than the five consecutive calendar days directly preceding Memorial Day and not more than the five consecutive calendar days directly following Labor Day for the purpose of loading, unloading, winterizing or de-winterizing the vehicle;

2. If the owner of the vehicle possesses a temporary oversized vehicle permit issued in accordance with subsection (F) of this section; or

3. If the vehicle operates as a mobile food truck and otherwise complies with the requirements imposed under Title 8, Chapter 8.40, of the city code.

E. Nothing provided in subsection (D) of this section shall be interpreted to authorize any person to park an oversized vehicle in violation of Section 10.52.030 of this chapter.

F. The owner of an oversized vehicle may apply to the office of the city clerk for a temporary oversized vehicle permit, which permit shall authorize the permittee to park their vehicle along the public roadway for not more than five consecutive calendar days. Under this subsection, a permit shall only issue upon the approval of the chief of police and payment of a fifteen dollar ($15.00) permit fee. Any permit issued shall be conspicuously posted on the oversized vehicle. The renewal of a permit shall be subject to the same requirements as an initial permit.

G. Any person found guilty of violating any of the provisions of this chapter may be punished in accordance with the applicable provisions of Chapter 10.16 of the city code. (Ord. No. 4601, § 1, 12-9-24; Ord. No. 4296, § 4, 3-9-20; Ord. No. 3957, § 1, 9-24-12; 2001 In-house code § 28-259)

10.52.030 Parking not to obstruct traffic.

No person shall park any vehicle upon a street, other than an alley, in such a manner or under such conditions as to leave available less than ten (10) feet of the width of the roadway, as measured from the centerline, for free movement of vehicular traffic. (Ord. No. 4434, 5-23-22; 2001 In-house code § 28-260)

10.52.040 Parking in alleys.

No person shall park a vehicle within an alley except that commercial delivery vehicles may park for the express purpose of, and actually engaged in, loading or unloading; provided, that no vehicle so parked shall remain parked for longer than thirty (30) minutes or under such conditions as to leave available less than ten (10) feet of the width of the roadway when possible for the free movement of vehicular traffic, and no person shall stop, stand or park a vehicle within an alley in such position as to block the driveway entrance to any abutting property. (2001 In-house code § 28-261)

10.52.050 Parking for certain purposes prohibited.

No person shall park a vehicle upon any roadway for the principal purpose of:

A. Displaying such vehicle for sale;

B. Washing, greasing or repairing such vehicle except repairs necessitated by an emergency. (2001 In-house code § 28-262)

10.52.060 Parking adjacent to schools.

A. The city traffic engineer is authorized to erect signs indicating no parking upon either or both sides of any street adjacent to any school property when such parking would, in his or her opinion, interfere with traffic or create a hazardous situation.

B. When official signs prohibiting parking are erected upon streets as authorized under this chapter, no person shall park a vehicle in any such designated place. (2001 In-house code § 28-263)

10.52.070 Parking prohibited on narrow streets.

A. The city traffic engineer is authorized to erect signs indicating no parking upon any street when the width of the roadway does not exceed twenty (20) feet, or upon one side of a street as indicated by such signs when the width of the roadway does not exceed thirty (30) feet.

B. When official signs prohibiting parking are erected upon narrow streets as authorized herein, no person shall park a vehicle upon any such street in violation of any such sign. (2001 In-house code § 28-264)

10.52.080 Standing or parking on one-way streets.

The city traffic engineer is authorized to erect signs upon the left-hand side of any one-way street to prohibit the standing or parking of vehicles,

and when such signs are in place, no person shall stand or park a vehicle upon such left-hand side in violation of any such sign. (2001 In-house code § 28-265)

10.52.090 Standing or parking on one-way roadways.

In the event a highway includes two or more separate roadways and traffic is restricted to one direction upon any roadway, no person shall stand or park a vehicle upon the left-hand side of such one-way roadway unless signs are erected to permit such standing or parking. (2001 In-house code § 28-266)

10.52.100 No stopping, standing or parking near hazardous or congested places.

A. The city traffic engineer is authorized to determine and designate by proper signs places not exceeding one hundred (100) feet in length in which the stopping, standing or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic.

B. When official signs are erected at hazardous or congested places as authorized herein, no person shall stop, stand or park a vehicle in any such designated place. (2001 In-house code § 28-267)

10.52.110 Storage of vehicles in public space prohibited.

No owner, manager or employee of any garage, salesroom, shop or other place of business shall permit any vehicle, whether the same is stock in trade or left for safekeeping, repair or storage to be or remain in or upon any alley, street or sidewalk or in any space between the street and the property line adjacent to, in front of or beside any premises in the city. (2001 In-house code § 28-268)

10.52.120 Reserved.

Editor's note—Ord. No. 4296, § 4, adopted March 9, 2020, repealed § 10.52.120 which pertained to diagonal parking permits and derived from § 28-269 of the 2001 In-house code.

10.52.130 Parking right-of-way.

Any driver wishing to occupy a parking space in the process of being vacated by another vehicle shall stop in the rear of the space being vacated and then pull up to back in after the parking space is unoccupied. Any vehicle following this procedure shall have the right-of-way over any other vehicle attempting to occupy such parking space. (2001 In-house code § 28-270)

10.52.140 Unauthorized parking on private property.

No operator of a motor vehicle shall permit such vehicle to stand or be parked or be driven upon any private property without the express consent of the owner or lessee of such private property. The police department is authorized to cause any vehicle parked in violation of this section to be removed from such private property at the expense of the registered owner or operator of such vehicle. (2001 In-house code § 28-271)

10.52.150 Street parking prohibited when streets to be repaired or parade to pass on street.

It shall be prohibited for any car to park on any street within the city if such street is to be repaired or if an authorized parade is to pass on that street. Such street shall be marked for a period of at least three hours prior to the time of repair or parade. Such parked vehicles will be towed after being within the marked area for three hours and after city employees have made every reasonable effort to contact the owner or operator of such vehicle. (2001 In-house code § 28-272)

10.52.160 Reserved.

Editor's note—Ord. No. 3588, § 1, approved July 12, 2004, repealed § 10.52.160, which pertained to sacking or covering parking meters and derived from 2001 In-house code § 28-274.

10.52.170 Application of chapter.

The provisions of this chapter prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified or as indi-

cated on official signs except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device. (2001 In-house code § 28-296)

10.52.180 Regulations not exclusive.

The provisions of this chapter imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times. (2001 In-house code § 28-297)

10.52.190 Designating and posting of prohibited parking.

In addition to the general prohibitions stated in this chapter, the city engineer, or his or her designee, is hereby authorized, in accordance with applicable state and federal statutes, rules and regulations, to designate and post prohibitions, limitations, regulations and exceptions thereto, regarding the parking of vehicles, recreational vehicles, and trailers within the city limits of Cheyenne. (Ord. No. 3957, § 3, 9-24-12)

Editor's note—Ord. No. 3957, § 2, approved September 24, 2012, repealed the former § 10.52.190, and § 3 of Ord. No. 3957 enacted a new § 10.52.190 as set out herein. The former § 10.52.190 pertained to parking prohibited at all times and derived from the 2001 In-house code § 28-298.

10.52.200 Recreational vehicles and trailers; parking permitted in certain places.

A. For purposes of this chapter, "recreational vehicle" means any vehicular-type unit that is primarily designed as a temporary living quarters for recreational, camping, or seasonal use; has its own motive power or is mounted on or towed by another vehicle; and is regulated by the National Highway Traffic Safety Administration as a vehicle or vehicle equipment.

B. For the purposes of this chapter, "trailer" means any of the following:

1. Any "semi-trailer" which is designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight or that of its load rests upon or is carried by another vehicle. "Semi-trailer" shall include any camper designed to be carried in or upon a truck or other motor vehicle, and any house trailer, as defined by Wyo. Stat. Section 31-5-102(a)(xv), if so designed or constructed that some part of its weight or that of its load rests upon or is carried by another vehicle.

2. Any "trailer" which is designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that no part of its weight or that of its load rests upon or is carried by another vehicle. "Trailer" shall include any camp trailer, tent trailer, or house trailer, as defined by Wyo. Stat. Section 31-5-102(a)(xv), if so designed or constructed that no part of its weight or that of its load rests upon or is carried by another vehicle.

C. In addition to the limitations specified in this chapter, recreational vehicles and trailers may be parked in the street only if the area in which any such vehicle is parked is immediately and entirely adjacent to real property which is owned by or occupied by the owner of the recreational vehicle or trailer. The authority to park a recreational vehicle or trailer provided under this subsection shall not apply to any recreational vehicle or trailer that constitutes an oversized vehicle as regulated by Section 10.52.020(D) of this chapter and Section 8.60.080(B) of the city code. (Ord. No. 4601, § 1, 12-9-24; Ord. No. 3957, § 4, 9-24-12)

Editor's note—Ord. No. 4601, § 1, adopted Dec. 9, 2024, amended § 10.52.200 and in doing so changed the title of said section from "Recreational vehicle, trailer-defined—Parking permitted in certain places" to "Recreational vehicles and trailers; parking permitted in certain places," as set out herein.

10.52.210 Reserved.

Editor's note—Ord. No. 3957, § 2, approved September 24, 2012, repealed § 10.52.210, which pertained to stopping, standing or parking prohibited during certain hours and derived from the 2001 In-house code § 28-300.

10.52.220 Parking time limited.

When parking time limitation signs are erected in each block giving notice thereof, no person shall park a vehicle for longer than the time specified on posted signs on any day except Sundays and public

holidays, unless otherwise indicated upon any of the streets within the city as designated by the city traffic engineer. Any person who has parked a vehicle in an area where parking is limited by time shall move the vehicle from the spot in which the vehicle was previously parked before the expiration of the time indicated on the posted signs. (Ord. No. 4616, § 1, 3-10-25; Ord. No. 4582, § 2, 7-22-24; 2001 In-house code § 28-301)

10.52.230 Downtown construction/maintenance worker parking in an established timed parking zone.

A. The city traffic engineer or their designee is authorized to issue special purpose monthly on-street parking permits for bona fide downtown construction/maintenance work.

1. Such permit will allow construction/maintenance workers to park in a single parking place in excess of the signed two-hour limitation.

2. Applications for special purpose monthly on-street downtown construction worker parking permits shall be submitted with the police department parking administration manager.

3. Permits will be issued at a cost to the applicant of sixty dollars ($60.00) per vehicle per month.

4. Permits may be revoked by the police department parking administration manager for the following reasons:

a. Nonpayment for two billing cycles; or

b. Unlawful use of the permit.

5. For purposes of this section, "downtown" shall mean the Downtown Development Authority defined district.

6. Specifically exempt from this section is right-of-way construction activities approved by the city of Cheyenne. (Ord. No. 4435, § 1, 5-23-22; Ord. No. 4295, § 2, 3-9-20)

Chapter 10.56

ACCESSIBLE PARKING SPACES*

Sections:

10.56.010 Designated parking space for people with disabilities.

10.56.020 Obstruction of accessible parking spaces.

10.56.030 Requirement of accessible parking.

10.56.040 Accessible parking penalties.

10.56.050 Restriction on accessible residential parking space use.

10.56.060 Reserved.

10.56.070 Permit—Duration.

10.56.080 Permit renewal.

10.56.090 Permit issuance.

10.56.100 Reserved.

10.56.110 Minimum requirement.

10.56.120 Signing.

10.56.130 Restriction on accessible residential parking space use.

10.56.010 Designated parking space for people with disabilities.

No person shall park, load, unload, or stand in any parking space designated for persons with disabilities on public or private property unless that person has disabilities or unless a person with disabilities is a passenger in the vehicle and unless the vehicle has a Wyoming portable-type accessible logo displayed on the dashboard or suspended from the rearview mirror in side the vehicle. The city is authorized to honor accessible parking placards issued by other agencies which have the same or similar qualifications required by the Wyoming Department of Transportation. (Ord. No. 4305, § 1, 5-26-20)

***Editor's note—**Ord. No. 4305, § 1, adopted May 26, 2020, amended Ch. 10.56 in its entirety to read as herein set out. Former Ch. 10.56, §§ 10.56.010—10.56.050, 10.56.070—10.56.090, 10.56.110—10.56.130, pertained to handicapped parking spaces, and derived from 2001 In-house code §§ 28-273, 28-275, 28-276, 28-317.1, 28-350, 28-352—28-354, 28-356—28-358; Ord. No. 3749, § 1, adopted in 2007; Ord. No. 4213, § 1, adopted Dec. 20, 2017; Ord. No. 4269, § 1, adopted April 22, 2019; and Ord. No. 4296, § 5, adopted March 9, 2020.

10.56.020 Obstruction of accessible parking spaces.

At no time shall accessible spaces on public or private property be used for the storage of snow, trash, shopping carts, construction materials, or otherwise obstructed except when provisions have been made for additional, equally accessible, temporary accessible parking spaces at least equal in number to the obstructed spaces. (Ord. No. 4305, § 1, 5-26-20)

10.56.030 Requirement of accessible parking.

A. The number, location, dimensions, and signing of accessible parking spaces shall be in accordance with the current Americans with Disabilities Act standards for accessible design.

B. All fractions in the ratios designated in the current Americans with Disabilities Act standards for accessible design identified in subsection A of this section shall be rounded up.

C. All designated accessible parking spaces shall be marked with a sign mounted on a substantial post or standard permanently fixed to or imbedded into the parking surface with the international symbol of accessibility. (Ord. No. 4305, § 1, 5-26-20)

10.56.040 Accessible parking penalties.

Any person found guilty of violations Sections 10.56.010 and 10.56.020 shall be fined in an amount to be determined by resolution of the governing body. (Ord. No. 4305, § 1, 5-26-20)

10.56.050 Restriction on accessible residential parking space use.

All applications for an accessible residential parking space and all requests for renewal shall be submitted to the parking administration manager on forms provided. (Ord. No. 4305, § 1, 5-26-20)

10.56.060 Reserved.

10.56.070 Permit—Duration.

An accessible residential parking space permit shall be valid only until December 31st of the year of issue.

10.56.080 Permit renewal.

Applications for renewal shall be made during November and December of each year. If a request for renewal has not been received by the parking administration manager by December 31, the city traffic engineer shall immediately proceed to remove the accessible residential parking space signs in question. (Ord. No. 4305, § 1, 5-26-20)

10.56.090 Permit issuance.

All applications for an accessible residential parking space permit and requests for renewal shall be submitted to the Mayor's Council for People with Disabilities for its investigation and recommendation. After due consideration, the Mayor's Council for People with Disabilities shall submit its recommendations for approval or disapproval to the city traffic engineer who shall have the authority to approve or disapprove all applications and all requests for renewal pursuant to the provisions set forth in this chapter. (Ord. No. 4305, § 1, 5-26-20)

10.56.100 Reserved.

10.56.110 Minimum requirement.

No application for an accessible residential parking space shall be approved or issued unless the following requirements are met:

A. The property or premises of the applicant in question is located on a street in the city which qualifies, under appropriate regulations, for accessible residential parking.

B. The applicant has obtained either an accessible parking placard from the Wyoming Department of Transportation or an accessible parking license plate issued by the State of Wyoming. (Ord. No. 4305, § 1, 5-26-20)

10.56.120 Signing.

All signs designating accessible residential parking spaces shall have the words "Applicant Parking Only" printed on them. (Ord. No. 4305, § 1, 5-26-20)

10.56.130 Restriction on accessible residential parking space use.

A. The use of each accessible residential parking space established under the provisions of this chapter shall be restricted solely to the applicant who obtained the space designation.

B. It is unlawful for any person other than the applicant to park in an accessible residential parking space. (Ord. No. 4305, § 1, 5-26-20)

Chapter 10.60

PARKING LIMITATIONS

Sections:

10.60.010 Signed time limitations.
10.60.015 Reserved.
10.60.020 Interference with enforcement.
10.60.030 Notice of violation.
10.60.040 Fine schedule.

10.60.010 Signed time limitations.

Any person who has parked a vehicle in an area where parking is limited by time shall move the vehicle from the spot in which the vehicle was previously parked before the expiration of the time indicated on the posted signs. This requirement applies on any day except Sundays and public holidays or unless otherwise indicated upon any of the streets within the city as designated by the city traffic engineer. (Ord. No. 4616, § 1, 3-10-25; Ord. No. 4582, § 2, 7-22-24; Ord. No. 4296, § 6, 3-9-20; Ord. No. 4213, § 1, 12-20-17; Ord. 3588 § 2 (part), 2004)

10.60.015 Reserved.

Editor's note—Ord. No. 4616, § 2, adopted March 10, 2025, repealed § 10.60.015, which pertained to paid on-street parking districts; establishment; administration and derived from Ord. No. 4582, § 1, adopted July 22, 2024.

10.60.020 Interference with enforcement.

No person shall interfere with officials, who in the performance of their duties, enforce parking regulations as defined by code.

"Interference" is defined as removing or attempting to conceal or defeat, marks, video, digital imaging or other forms of time, place and movement recording or measurement. (Ord. 3588 § 2 (part), 2004)

10.60.030 Notice of violation.

When a vehicle is found to be in violation of this chapter a notice specifying the violation and amount of the fine will be affixed to the vehicle, or sent to the address indicated by current license plate registration records to the registered owner of the vehicle.

The notice of violation will also indicate the manner in which the citation may be contested. (Ord. No. 4296, § 6, 3-9-20; Ord. No. 4213, § 1, 12-20-17; Ord. 3588 § 2 (part), 2004)

10.60.040 Fine schedule.

Any fine to be imposed pursuant to a notice of violation issued under Section 10.60.030 of this chapter, including any applicable administrative fees, shall be specified by resolution of the governing body and shall be made available to the general public in the form of a fine schedule. Administrative fees shall be factored into the total amount of the fine before any late payment penalties are applied in accordance with Section 10.16.090(A) of the city code.

(Ord. No. 4582, § 2, 7-22-24; Ord. No. 4581, § 1, 7-22-24; Ord. No. 4296, § 6, 3-9-20; Ord. No. 4213, § 1, 12-20-17)

Editor's note—Ord. No. 4213, § 1, adopted December 20, 2017, in effect, repealed § 10.60.040 and enacted a new § 10.60.040. Former § 10.60.040 pertained to penalties and derived from Ord. No. 3588 adopted 2004.

Chapter 10.64

LOADING AND UNLOADING

Sections:

10.64.010 City traffic engineer to designate curb loading zones.

10.64.020 Standing in curb loading zone.

10.64.030 City traffic engineer to designate public carrier stops and stands.

10.64.040 Stopping, standing and parking of buses and taxicabs regulated.

10.64.050 Restricted use of bus and taxicab stands.

10.64.060 Permits for loading or unloading at an angle to the curb.

10.64.010 City traffic engineer to designate curb loading zones.

A. The city traffic engineer is authorized to determine the location of passenger and freight curb loading zones and shall place and maintain appropriate signs indicating the same and stating the hours during which the provisions of this section are applicable.

B. The city traffic engineer shall not hereafter designate or sign any curb loading zone upon special request of any person unless such person makes application for a permit for such zone and for two signs to indicate the ends of each such zone. The police department parking administration manager upon issuing a permit and causing such signs to be issued shall collect from the applicant and deposit in the city treasury a service fee of two hundred fifty dollars ($250.00) per year or fraction thereof per space, not to exceed twenty-four (24) feet in length, and for reimbursement of the city for the value thereof in the event of misuse or upon expiration of permit. The police department parking administration manager shall notify, by certified mail, any applicant whose curb loading permit has not been paid in full and/or when reimbursements to the city are required pursuant to this section. If the permit fee or reimbursement has not been paid within thirty (30) days after notification, the police department parking administration manager may revoke the curb loading zone permit and establish a parking place in the curb loading zone. (Ord. No. 4296, § 7, 3-9-20; Ord. No. 4213, § 1, 12-20-17; 2001 In-house code § 28-283)

10.64.020 Standing in curb loading zone.

No person shall stop, stand or park a vehicle for any purpose or length of time other than for the expeditious unloading and delivery or pickup and loading of materials or passengers in any place marked as a curb loading zone during hours when the regulations applicable to such curb loading zone are effective, and then only for a period not to exceed thirty (30) minutes. (2001 In-house code § 28-284)

10.64.030 City traffic engineer to designate public carrier stops and stands.

The city traffic engineer is authorized to establish bus stops, bus stands, taxicab stands and stands for other passenger common-carrier motor vehicles on such public streets in such places and in such number as he or she shall determine to be of the greatest benefit and convenience to the public, and every such stop, bus stand, taxicab stand or other stand shall be designated by appropriate signs. (Ord. No. 4213, § 1, 12-20-17; 2001 In-house code § 28-286)

10.64.040 Stopping, standing and parking of buses and taxicabs regulated.

A. The operator of a bus shall not stand or park such vehicle upon any street at any place other than a bus stand so designated as provided herein.

B. The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand or

passenger loading zone so designated as provided under this section, except in case of an emergency.

C. The operator of a bus shall enter a bus stop, bus stand or passenger loading zone on a public street in such a manner that the bus when stopped to load or unload passenger or baggage shall be in a position with the right front wheel of such vehicle not farther than eighteen (18) inches from the curb and the bus approximately parallel to the curb so as not to unduly impede the movement of other vehicular traffic.

D. This chapter shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers. (Ord. No. 4144, § 1, 7-11-16; 2001 In-house code § 28-287)

10.64.050 Restricted use of bus and taxicab stands.

No person shall stop, stand or park a vehicle other than a bus in a bus stop, or other than a taxicab in a taxicab stand when any such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus or taxicab waiting to enter or about to enter such zone. (2001 In-house code § 28-288)

10.64.060 Permits for loading or unloading at an angle to the curb.

A. The city traffic engineer is authorized to approve special permits to permit the backing of a vehicle to the curb for the purpose of loading or unloading merchandise or materials subject to the terms and conditions of such permit. Such permits may be issued either to the owner or lessee of real property or to the owner of the vehicle and shall grant to such person the privilege as therein stated and authorized herein.

B. It is unlawful for any permittee or other person to violate any of the special terms or conditions of any such permit. (Ord. No. 4213, § 1, 12-20-17; 2001 In-house code § 28-289)

Chapter 10.68

CRITICAL TRAFFIC AND PARKING AREAS

Sections:

10.68.010 Establishment authorized.

10.68.020 Findings required.

10.68.030 Procedures for establishment.

10.68.040 Residential parking permits authority.

10.68.050 Disestablishment or modification.

10.68.060 Existing areas continued.

10.68.070 Signs—Violation prohibited.

10.68.010 Establishment authorized.

The governing body may, after a public hearing thereon, and after recommendation of the city traffic engineer, and after receiving a written application as specified in Section 10.68.030, designate a critical traffic and parking area consisting of certain streets or parts thereof in a compact and contiguous area. The governing body shall also specify special traffic and parking restrictions within each critical traffic and parking area thus established. (2001 In-house code § 28-318)

10.68.020 Findings required.

No critical traffic and parking area may be established until after the governing body shall have made the following findings:

A. That either or both of the following circumstances pertain to the area:

1. The area is detrimentally impacted by the parking of commuter vehicles during the proposed hours of restriction,

2. The area is zoned as a residential district and is adjacent to an area zoned as a business, manufacturing, or governmental district and is detrimentally impacted by the parking of vehicles by patrons of businesses or offices located in the said business, manufacturing, or governmental district;

B. The area does not have sufficient off-street vehicle parking for the use and convenience of the residents thereof in the vicinity of their homes;

C. Vehicle noise, pollution, or congestion will work unacceptable hardships on the residents of the area if present parking is to continue unregulated;

D. The health, safety and welfare of residents of the area and the city as a whole and the attractiveness and livability of specific neighborhoods will be promoted by a system of preferential parking enacted under this chapter. (2001 In-house code § 28-319)

10.68.030 Procedures for establishment.

Upon receipt of written application representing a majority of the dwelling units located within the proposed critical parking and traffic area, the establishment process will be initiated. The request will also indicate the area proposed and the restrictions suggested. The application shall be submitted to the police department parking administration manager, who will then refer the request to the governing body and the city traffic engineer. The city traffic engineer will conduct a traffic and parking survey of the traffic and parking conditions in the area proposed and involve other city departments and independent groups so that the survey addresses the entire concern. The city traffic engineer will then recommend either the granting or the denial of the designation or the designation with modification as to the area or proposed restrictions. (Ord. No. 4295, § 3, 3-9-20; Ord. No. 4213, § 1, 12-20-17; 2001 In-house code § 28-320)

10.68.040 Residential parking permits authority.

The establishment of a critical traffic and parking area shall provide for the issuance of residential parking permits subject to the following requirements:

A. The city traffic engineer shall identify the location and hours and days to be regulated by the residential parking permit procedure.

B. An application for a permit shall be on a form or electronic method prepared by the city traffic engineer or designee and shall contain the name and address of the owner and/or occupant, make, model, and license number of the vehicle(s) and other such information as is reasonably necessary to enforce the provisions of this section. The application will be submitted to the police department parking administration manager.

This application shall be presented with a valid driver's license and such other information as may be necessary to prove residence within the designated critical traffic and parking area. No person shall furnish false information in an application for a vehicle permit. A false application shall be grounds for revocation of the permit and is punishable pursuant to the Cheyenne City Code.

C. A nonrefundable permit application fee of ten dollars ($10.00) shall accompany each application. If a residential critical parking and traffic area is approved, each vehicle within the area may obtain, renew annually, or transfer a permit for a fee of five dollars ($5.00).

D. The permit decal shall be placed on the inside of the lower left corner of the vehicle's windshield.

E. Permits shall be made available on a yearly renewable basis within those areas recommended in the city engineer's report and authorized by the governing body action and issued to the following:

1. Residents;

2. An owner, manager, or their designee of a business located within the designated critical traffic and parking area.

F. Temporary parking permits for bona fide visitors shall be granted to the residents of the critical parking and traffic area. These temporary parking permits for visitors shall be granted in accordance with the intent of these regulations and according to rules promulgated by the city traffic engineer and police department parking administration manager and approved by the governing body, with the exception that no temporary parking permits shall be required for service vehicles or any commuter or nonresidential vehicles parked within a critical traffic and parking area for two hours or less.

G. The provisions of these regulations shall not abrogate privileges granted to handicapped persons as defined by the Cheyenne City Code or the Wyoming State Statutes.

H. Such permit shall allow parking in the designated area during the time specified by the governing body action and posted on signs in the designated critical traffic and parking area. A parking permit shall not guarantee or reserve to the holder a parking space within the designated area. (Ord. No. 4295, § 3, 3-9-20; Ord. No. 4213, § 1, 12-20-17; 2001 In-house code § 28-321)

10.68.050 Disestablishment or modification.

The governing body may disestablish or modify a critical traffic and parking area after conducting a public hearing and finding that the circumstances that originally prompted the establishment of the area no longer pertain. The governing body may modify the special traffic and parking restrictions in an established area if it determines that a change of circumstances warrants such modification. (2001 In-house code § 28-322)

10.68.060 Existing areas continued.

All critical traffic and parking areas established shall continue until disestablished or modified. (2001 In-house code § 28-323)

10.68.070 Signs—Violation prohibited.

A. The city traffic engineer shall place and maintain appropriate signs indicating the parking restrictions in areas designated as critical traffic and parking areas.

B. It is unlawful and a person commits an offense under this chapter if he or she parks a vehicle not having a valid permit as set forth herein in such designated critical parking area. (Ord. No. 4213, § 1, 12-20-17; 2001 In-house code § 28-324)

Chapter 10.72

SNOW EMERGENCY ROUTES

Sections:

10.72.010 Designation of snow emergency.

10.72.020 Effective period of snow emergency.

10.72.030 Designation of snow emergency routes.

10.72.040 Emergency snow route procedures.

10.72.050 Snow route signing.

10.72.010 Designation of snow emergency.

A. A snow emergency shall be declared when the mayor or director of public works finds there is an accumulation of two inches of snow with one of the following conditions:

1. Additional snow actually falling or anticipated as forecasted by the National Weather Service in the next forty-eight (48) hour period;

2. Winds actually blowing or gusting or anticipated to do so by the National Weather Service with a velocity of twenty-five (25) miles per hour or more, in the next forty-eight (48) hour period.

B. If, in the opinion of the mayor and the director of public works, weather conditions will jeopardize public safety, a snow emergency may be declared at any time. (2001 In-house code § 28-341)

10.72.020 Effective period of snow emergency.

A. Provisions of this chapter shall be in effect two hours after a public announcement is made by two or more radio or television stations in the city. If declaration is made between the hours of ten p.m. and seven a.m., procedures shall be in effect at seven a.m.

B. Provisions shall no longer be in effect when the mayor or the director of public works deems such procedures are no longer necessary and makes a public announcement. (2001 In-house code § 28-342)

10.72.030 Designation of snow emergency routes.

Those streets and parts of streets described in Schedule J attached to the ordinance codified in this section, and made a part hereof by reference are declared to be snow emergency routes for the purpose of this chapter. Such Schedule J is adopted by reference and is on file in the offices of the city clerk, traffic engineer and the police department and may be amended from time to time by the governing body by resolution. (2001 In-house code § 28-343)

10.72.040 Emergency snow route procedures.

A. Designated snow routes will be the first streets cleared in any snow storm.

B. When a snow emergency is declared by the director of public works and the mayor the following measures will be taken:

1. Any vehicle in violation of Section 10.52.030 of the city code left unattended for a period of two hours or more may be removed or caused to be removed by a police officer or city employee designated to do so by the mayor. Removal or towing may be done by city forces or in accordance with Section 10.12.190 of the city code. The owner may be subject to the general penalty provision of Section 1.24.010 of the city code, plus responsibility of the cost of removal and storage. No notice of removal to the owner or lienholder will be required, provided the conditions of announcement of Section 10.72.020 have been met.

2. The owner and/or operators of motor vehicles shall have full responsibility to determine existing weather conditions and to comply with emergency snow route procedures. (2001 In-house code § 28-344)

10.72.050 Snow route signing.

Signs shall be erected, as soon as practicable, and maintained along all snow routes indicating the status of these streets. (2001 In-house code § 28-345)

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Chapter 10.76

ABANDONED VEHICLES

Sections:

10.76.010 Definitions.

10.76.020 Prohibited.

10.76.030 Determination.

10.76.040 Removal generally.

10.76.050 Notice of intent to impound.

10.76.060 Notice of removal to department.

10.76.070 Notice to owner or lienholder.

10.76.080 Service of notice.

10.76.090 Limitations on possession—Exception—Expense of removal—Disposition.

10.76.100 Redemption.

10.76.110 Title vests in city.

10.76.120 Sale of vehicle generally.

10.76.130 Sale of vehicle—Certificate of sale—Title—Registration.

10.76.140 City not liable.

10.76.150 Owner may recover proceeds from sale.

10.76.010 Definitions.

The following definitions shall apply in the interpretation and enforcement of the following sections of this chapter pertaining to abandoned vehicles:

"Department" means the State of Wyoming Department of Transportation.

"Highway" means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

"Lienholder" means a person holding a valid security interest in a vehicle.

"Nuisance officer" means the code enforcement officer or one or more peace officers, pursuant to Chapters 2.20 and 2.28 of the city code, or community service officers, pursuant to Chapter 2.29 of the city code, within the Cheyenne police department who are authorized to enforce the provisions of this chapter.

"Owner" means a person, other than a lienholder, who holds the legal title of a vehicle, or in the event is the subject of an agreement for the conditional sale or lease thereof with the right of purchase upon performance of the conditions stated in the agreement and with an immediate right of possession vested in the conditional vendee or lessee, or in the event a mortgagor of a vehicle is entitled to possession, then such conditional vendee or lessee or mortgagor shall be deemed the owner for the purposes of this chapter.

"Police officer" means every officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

"Registration" means the certificate of title or certificates and registration card issued under the laws of the state pertaining to vehicle registration.

"Vehicle" means every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, excepting every vehicle which is designed for agricultural purposes and exclusively used by the owner in the conduct of his or her agricultural operations. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-79)

10.76.020 Prohibited.

A. No person shall abandon a vehicle upon any highway.

B. No person shall abandon a vehicle upon any public or private property without the express consent of the owner or person in lawful possession or control of the property. (2001 In-house code § 28-80)

10.76.030 Determination.

A. For purposes of these sections pertaining to abandoned vehicles, a vehicle shall be presumed to be abandoned if it is:

1. Left unattended on a highway for a period in excess of twenty-four (24) hours after a notice of intent to impound has been placed on the vehicle;

2. In an inoperable condition;

3. Not currently registered; or

4. Left on any public or private property without express consent of the owner or person in lawful possession or control of the property for a period in excess of five days.

B. A vehicle left unattended due to adverse road or weather conditions or acts of God shall not be presumed to be an abandoned vehicle. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-81)

10.76.040 Removal generally.

Any nuisance officer who has reasonable grounds to believe that a vehicle has been abandoned may remove the vehicle, or cause it to be removed, at the expense of the owner, to a designated storage lot established by contractual obligation between the owner of the lot and the city or the Laramie County abandoned motor vehicle lot. Removal of an abandoned vehicle from private property shall be upon the written request, upon a form prescribed by the department, of the owner or person in lawful possession or control of the property. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-82)

10.76.050 Notice of intent to impound.

A notice of intent to impound an abandoned vehicle shall be placed in a prominent position on the vehicle at least twenty-four (24) hours prior to removal. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-83)

10.76.060 Notice of removal to department.

The city or contracted tow company shall immediately send a written report of removal of an abandoned vehicle to the department, which report shall include a description of the vehicle, the date, time and place of removal, the grounds for removal, and place of impoundment of such vehicle in accordance with Wyo. Stat. Section 31-13-104. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-84)

10.76.070 Notice to owner or lienholder.

Upon receipt of a report as provided, the department shall provide written notification to the vehicle owner of record and to lienholders of record, stating the grounds for removal and the name of the place of impoundment of such vehicle in accordance with Wyo. Stat. Section 31-13-104. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-85)

10.76.080 Service of notice.

A. The notice to the owner shall be completed in accordance with Wyo. Stat. Sections 31-13-104 and 31-13-106(a).

B. The notice, if the identity of the vehicle owner of record or lienholders of record, if any, cannot be determined or if the registration contains no address for such owner, shall be completed in accordance with Wyo. Stat. Section 31-13-106(b). (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-86)

10.76.090 Limitations on possession—Exception—Expense of removal—Disposition.

A. No person shall possess four or more abandoned vehicles on their property or on property which is in their lawful possession or control, if any four or more of such vehicles are visible from a highway for more than thirty (30) consecutive days.

B. For purposes of this section, a vehicle shall be presumed to be abandoned if it is in an inoperable condition or is not currently registered.

C. This section shall not apply to:

1. Antique or historic motor vehicles;

2. Vehicles kept in an enclosed garage or storage building;

3. Vehicles used for riprap on rivers, streams or reservoirs, or for erosion control;

4. Persons licensed as storage and disposal facilities; or

5. Vehicles used for educational or instructional purposes.

D. The city may remove, or cause to be removed, any vehicle which has been abandoned under this section, at the expense of the person possessing such vehicle, to a designated storage lot

established by contractual obligation between the owner of the lot and the city or the Laramie County abandoned motor vehicle lot. Vehicles impounded under this section shall be disposed of in the manner provided. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-87)

10.76.100 Redemption.

Any person upon satisfactory proof of ownership or right to possession may redeem an impounded vehicle by paying the charges of towing, storage, notice, all other costs of impoundment, and any penalties imposed for the violations of this code. (2001 In-house code § 28-88)

10.76.110 Title vests in city.

Title to any impounded vehicle not reclaimed by the registered owner or any lienholder within thirty (30) days of the notice provided by Section 10.76.070 shall vest with the city. (2001 In-house code § 28-89)

10.76.120 Sale of vehicle generally.

A. As to impounded vehicles having a retail value of two thousand dollars ($2,000.00) or more, after thirty (30) days have elapsed from the date notice was given, the city or contracted tow company shall sell the vehicle and its contents, if any, at public auction to the highest bidder. Notice of the sale shall be published once in a newspaper of general circulation in the county where the vehicle is to be sold not less than ten (10) days preceding the date of the sale. Notice shall give a full description of the vehicle, together with engine or serial numbers or marks, if any, and the amount of money claimed to be due, and the time and place of the sale. All expenses incidental to the sale and storage of the vehicle shall be paid from the receipts of the sale. After any vehicle has been sold under this section, the former owner or person entitled to possession has no further right, title, claim or interest in or to the vehicle itself, or contents, if any.

B. As to any other impounded vehicles not sold as provided by subsection A of this section, they shall be disposed of pursuant to state law. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-90)

10.76.130 Sale of vehicle—Certificate of sale—Title—Registration.

When any vehicle is sold, the city or contracted tow company, at the time of payment of the purchase price, shall execute a certificate of sale in duplicate. The original certificate of sale shall be delivered to the purchaser and the copy shall be retained by the city or contracted tow company. The certificate of sale shall contain the name and address of the purchaser, the date of sale, the consideration paid, a description of the vehicle and a stipulation that no warranty is made as to the condition or title of the vehicle. The purchaser, upon presentation of the certificate of sale to the county clerk of any one of the counties of the state, and payment of the fees required by law, is entitled to be issued a certificate of title and a registration card for the vehicle. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-91)

10.76.140 City not liable.

If any vehicle is removed from any highway, or public or private property as provided herein, the owner of such vehicle shall not be permitted to institute in any state court a suit in law or equity against any nuisance officer or his or her agents for the recovery of the value of any item in or on the vehicle that may be lost, stolen or damaged resulting therefrom. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-92)

Editor's note—Ord. No. 4412, § 1, adopted Jan. 24, 2022, amended § 10.76.140 and in doing so changed the title of said section from "Police officer not liable" to "City not liable," as set out herein.

10.76.150 Owner may recover proceeds from sale.

At any time within one year after the sale of a vehicle, the former owner of the vehicle may recover the proceeds from such sale, less the expenses incurred by the city or contracted tow company, by filing a claim with the city treasurer if sold by the city, or the contracted tow company if

sold by said company. Upon proper proof of ownership, the city treasurer, if sold by the city, or the contracted tow company, if sold by said company, shall reimburse such claimant for such amount. If no claim is made by the owner within one year after the date of sale, such proceeds may be retained by the tow company if sold by said company, or shall be credited to the general fund of the city treasurer as a recovery and the owner shall be precluded from any claim to such proceeds if sold by the city. (Ord. No. 4412, § 1, 1-24-22; 2001 In-house code § 28-93)

Chapter 10.80

BICYCLES AND MOTOR-ASSISTED SCOOTERS*

Sections:

10.80.010 Effect of regulations.

10.80.020 Definitions.

10.80.030 Traffic ordinances apply to persons riding bicycles, scooters and dockless vehicles.

10.80.040 Obedience to traffic-control devices.

10.80.050 Parking.

10.80.060 Riding on sidewalks.

10.80.070 Driving on bikeway.

10.80.080 Parking on bikeway.

10.80.090—10.80.180 Reserved.

10.80.190 Violations—Penalties.

10.80.010 Effect of regulations.

A. It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this chapter.

B. The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter.

C. These regulations applicable to bicycles and motor-assisted scooters shall apply whenever a bicycle or motor-assisted scooter is operated upon any highway or upon any path set aside for the exclusive use of bicycles subject to those exceptions state herein. (Ord. No. 4378, § 1, 6-28-21; 2001 In-house code § 28-225)

10.80.020 Definitions.

As used in this chapter, the following words and phrases and any variations, thereof, shall have the following meaning:

"Bike way" means any route recommended for bicycle travel which may include public streets, bicycle lanes, or bicycle paths.

"Motor-assisted scooter" means a self-propelled device, not including a pocket bike or mini-motorbike, with:

1. At least two wheels in contact with the ground during operation;

2. A braking system capable of stopping the device under typical operating conditions;

3. A gas or electric motor not exceeding forty (40) cubic centimeters;

4. A deck designed to allow a person to stand or sit while operating the device; and

5. The ability to be propelled by human power alone.

"Park" means to stand or leave standing any vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading of passengers or materials.

"Pedestrian" means any person afoot.

"Police officer" means every officer of the police department of this city or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations. (Ord. No. 4378, § 1, 6-28-21; 2001 In-house code § 28-225.1)

10.80.030 Traffic ordinances apply to persons riding bicycles, scooters and dockless vehicles.

Every person riding a bicycle, motor-assisted scooter or dockless vehicle as defined by Section 10.82.100 of the city code, upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this title, except as to special regulations in this chapter and except as to those provisions of this title which by their nature can have no application. (Ord. No. 4620, § 2, 4-28-25; Ord. No. 4378, § 1, 6-28-21; 2001 In-house code § 28-226)

Editor's note—Ord. No. 4620, § 2, adopted April 28, 2025, amended § 10.80.030 and in doing so changed the title of said section from

***Editor's note**—Ord. No. 4378, § 1, adopted June 28, 2021, amended the title of Ch. 10.80 to read as herein set out. The former Ch. 10.80 title pertained to Bicycles.

"Traffic ordinances apply to persons riding bicycles" to "Traffic ordinances apply to persons riding bicycles, scooters and dockless vehicles," as set out herein.

10.80.040 Obedience to traffic-control devices.

A. Any person operating a bicycle or motor-assisted scooter shall obey the instructions of official traffic-control devices applicable to vehicles, unless otherwise directed by a police officer.

B. Whenever authorized signs are erected indicating that no right turn, left turn or U-turn is permitted, no person operating a bicycle or motor-assisted scooter shall disobey the direction of any such sign, except where such person dismounts from the bicycle or motor-assisted scooter to make any such turn, in which event such person shall obey the regulations applicable to pedestrians. (Ord. No. 4378, § 1, 6-28-21; 2001 In-house code § 28-227)

10.80.050 Parking.

No person shall park a bicycle or motor-assisted scooter upon a street other than upon the roadway against the curb or upon the sidewalk in a rack to support the bicycle or motor-assisted scooter, or against a building or at the curb, in such a manner as to afford the least obstruction to pedestrian traffic. (Ord. No. 4378, § 1, 6-28-21; 2001 In-house code § 28-228)

10.80.060 Riding on sidewalks.

A. No person shall ride a bicycle or motor-assisted scooter upon a sidewalk within the central business district as defined in Section 10.04.020 of the city code.

B. Whenever any person is riding a bicycle or motor-assisted scooter upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give audible signal before overtaking and passing such pedestrian. (Ord. No. 4378, § 1, 6-28-21; 2001 In-house code § 28-229)

10.80.070 Driving on bikeway.

No person shall drive a vehicle other than a bicycle or motor-assisted scooter upon any bikeway except in any emergency or as follows:

A. To enter or leave the street or highway;

B. To prepare for a right turn;

C. To park where parking is permitted;

D. Any vehicle and other equipment owned or operated by any public agency or public utility while necessarily in use for construction, repair work, work upon the surface of a highway, or work of installation, removal, repairing or maintaining official traffic-control devices;

E. Any rubbish or garbage truck while actually engaged in the collection of rubbish or garbage;

F. Any streetsweeper while actually engaged in sweeping a street;

G. Any snow removal equipment while actually engaged in removing snow from a bikeway;

H. Any vehicle owned or operated by the United States Post Office Department while in use for the collection, transportation or delivery of United States mail. (Ord. No. 4378, § 1, 6-28-21; 2001 In-house code § 28-231)

10.80.080 Parking on bikeway.

No person shall park or stand any vehicle upon any bikeway except in an emergency or as follows:

A. Any bus in a designated bus zone;

B. Any vehicle and other equipment owned or operated by any public agency or public utility while necessarily in the use for construction, repair work, work upon the surface of a highway, or work of installation, removal, repairing or maintaining official traffic-control devices;

C. Any rubbish or garbage truck while actually engaged in the collection of rubbish or garbage;

D. Any streetsweeper while actually engaged in sweeping a street;

E. Any snow removal equipment while actually engaged in removing snow from a bikeway;

F. Any vehicle of any regularly licensed physician while actually engaged in making professional call;

G. Where parking is permitted. (2001 In-house code § 28-232)

10.80.090—10.80.180 Reserved.

Editor's note—Ord. No. 4116, § 1, approved February 8, 2016, repealed §§ 10.80.090—10.80.180, which pertained to license required; license application; license fee; license issuance; attachment of plate; inspection; license renewal; transfer of ownership; rental agencies and bicycle dealers, respectively and derived from 2001 In-house code §§ 28-237—28-246 and Ord. No. 3717, 2006.

10.80.190 Violations—Penalties.

It is unlawful for any person to violate any of the provisions of this chapter. Every person convicted of a violation of any provision of this chapter shall be fined in accordance with Section 1.24.010 of the city code. (Ord. No. 4116, § 1, 2-8-2016; 2001 In-house code § 28-230)

Chapter 10.82

MOTOR-ASSISTED SCOOTERS, ELECTRIC BICYCLES, AND BICYCLES EQUIPPED WITH GPS*

Sections:

10.82.010—10.82.080 Reserved.

10.82.090 Findings and purpose.

10.82.100 Definitions.

10.82.110 Dockless vehicles; request for proposal process.

10.82.120 Operator responsibilities; regulations and compliance.

10.82.090 Findings and purpose.

A. Certain companies around the nation provide dockless vehicles that can be ridden by patrons for payment of a fee.

B. The regulation of dockless vehicles is important to promote safe use, limit conflict with other users and to efficiently manage the use of the city's right-of-way and multi-use paths.

C. The city of Cheyenne recognizes the growing interest and demand for alternative transportation options, including dockless vehicles such as electric bicycles and scooters.

D. The city aims to provide safe, reliable and efficient transportation alternatives for its residents and visitors and seeks to implement a structured and transparent process to select a qualified company to provide dockless vehicle services through a request for proposal (RFP) process.
(Ord. No. 4620, § 1, 4-28-25)

10.82.100 Definitions.

A. As used in this chapter:

1. "City" means the city of Cheyenne, Wyoming;

2. "Dockless vehicle" means any bicycle, scooter or other personal transportation device that does not require a fixed docking station for parking;

3. "Operator" means a person selected through the RFP process to provide dockless vehicle services in the city of Cheyenne, which person has a current operating agreement with the city;

4. "Person" includes an individual, partnership, corporation, joint stock company or any other association or entity, public or private; and

5. "Request for proposal" or "RFP" means a competitive process that invites persons engaged in the dockless vehicles business to participate in the city's formal procurement process and submit proposals for providing dockless vehicle services.
(Ord. No. 4620, § 1, 4-28-25)

10.82.110 Dockless vehicles; request for proposal process.

A. When appropriate, the city shall issue an RFP to invite proposals from any person interested in providing dockless vehicle services. The RFP shall outline the requirements, evaluation criteria, scope of services and other conditions for providing the service. Persons responding to the RFP shall submit a comprehensive proposal detailing their ability to meet the requirements set forth in the RFP, which requirements shall include those specified in this subsection. Any person who fails to submit a proposal or who does not follow the requirements of the request for proposal shall not be considered. The requirements of the RFP shall include:

1. Fleet size and vehicle specifications;

2. Operations and maintenance plans, including a description of how the proposed operator will respond in a timely manner:

a. To complaints of improperly parked or abandoned dockless vehicles; and

b. Reported safety or operational concerns of any deployed dockless vehicle;

3. Safety measures and rider education;

4. Data sharing and reporting capabilities;

5. Community engagement strategies;

*__Editor's note__—Ord. No. 4620, §§ 1, 3, adopted April 28, 2025, repealed the former Ch. 10.82, §§ 10.82.010—10.82080, and enacted a new Ch. 10.82 as set out herein. The former Ch. 10.82 pertained to similar subject matter and derived from Ord. No. 4379, § 1, adopted June 28, 2021; and Ord. No. 4572, § 1, adopted May 28, 2024.

6. Compliance with local, state, and federal regulations;

7. Programs for reduced rates; and

8. Any other requirement deemed appropriate by the mayor or his or her designee.

B. RFP proposals shall be evaluated based on criteria established in the RFP, which may include:

1. Experience and qualifications of the prospective operator;

2. Quality and sustainability of the dockless vehicles;

3. Robustness of the operations and maintenance plan;

4. Commitment to safety and rider education;

5. Ability to provide reliable data and reporting;

6. Community engagement and responsiveness;

7. Programs for reduced rates;

8. Potential revenue to the city to be provided by prospective operator; and

9. Any other criteria deemed appropriate by the mayor or his or her designee.

C. The city shall review and evaluate all proposals received in response to the RFP in accordance with the procedures established in the RFP and the city's formal procurement process. The city may select one or more operators based on the proposals received and on the evaluation criteria of the RFP. The city shall enter into an operating agreement with each selected operator, which agreement shall specify the terms and conditions of providing dockless vehicle services. Nothing in this subsection shall be construed to require the city to select any of the RFP submissions.

(Ord. No. 4620, § 1, 4-28-25)

10.82.120 Operator responsibilities; regulations and compliance.

A. Any operator selected through the RFP process shall be responsible for:

1. Complying with all terms and conditions set forth in the operating agreement with the city;

2. Ensuring the safe and efficient operation of dockless vehicles;

3. Regularly maintaining and servicing the dockless vehicles;

4. Providing customer service and addressing any issues or complaints promptly; and

5. Sharing data with the city as required for monitoring and evaluation purposes.

B. The city reserves the right to establish additional regulations governing the operation of dockless vehicles and to enforce compliance with all applicable laws and regulations. Failure to comply with applicable laws and regulations may result in penalties, including, but not limited to, fines, suspension or revocation of the operator's authority to provide dockless vehicle services.

(Ord. No. 4620, § 1, 4-28-25)

Chapter 10.84

RAILROADS

Sections:

10.84.010 Purpose—Authority—General provisions.

10.84.020 Street and sidewalk crossing.

10.84.030 Obstructing street crossings.

10.84.040 Drainage from and to railroad premises.

10.84.050 Failure to comply with chapter.

10.84.010 Purpose—Authority—General provisions.

A. The general purpose of this chapter is to regulate railroad crossings and premises located within the city to promote and provide for the health, safety, interest and general welfare of the citizens of the city.

B. Railroad and public highway crossings are generally governed by Wyo. Stat. Section 37-10-101, et seq., which is adopted and incorporated in this chapter.

C. Pursuant to authority granted cities and towns by the Wyoming Constitution and Wyo. Stat. Section 15-1-103(a)(v), the regulation of railroad crossings and premises, located within the city, is governed by this chapter. (2001 In-house code § 37-1)

10.84.020 Street and sidewalk crossing.

A. Every railroad crossing intersecting a public street within the city must be constructed and maintained pursuant to Wyo. Stat. Section 37-10-101, et seq.

B. A railroad company operating within the city, must construct and maintain proper and safe sidewalk crossings, where railroad tracks intersect any public sidewalk, including the full width of the public sidewalk within the railroad company's right-of-way.

C. A railroad company may be required to construct and maintain gates at any public street crossing where the public health, safety, interest and general welfare of the citizens of the city would be served.

D. A railroad company must erect and maintain railroad crossing signs at each public street crossing, clearly visible from all directions. (2001 In-house code § 37-2)

10.84.030 Obstructing street crossings.

No train may block any public street or sidewalk within the city for a period of time longer than five minutes except for trains or cars in motion or engaged in switching. (2001 In-house code § 37-3)

10.84.040 Drainage from and to railroad premises.

A. Every railroad company must construct and maintain in proper repair all ditches, drains, sewers and culverts in a manner so that there is not standing water on the railroad company's premises or right-of-way.

B. Every railroad company must construct and maintain its tracks and premises in a manner that does not impair the natural drainage of adjacent property. (2001 In-house code § 37-4)

10.84.050 Failure to comply with chapter.

If any railroad company fails to comply with any requirement of this chapter within twenty (20) days after having been notified in writing by the city, the city may perform any work or repairs required, and attach a lien for the work on the property which has been improved. The cost of the work must be paid by the railroad company. (2001 In-house code § 37-5)

Title 11

RESERVED

Title 12

STREETS, SIDEWALKS AND PUBLIC PLACES

Chapters:

12.04	**Streets, Sidewalks and Driveways Generally**
12.08	**Street Names**
12.12	**Excavations**
12.16	**Trees**
12.20	**Cemeteries**
12.24	**Art in Public Places**
12.28	**Reserved**

Chapter 12.04

STREETS, SIDEWALKS AND DRIVEWAYS GENERALLY

Sections:

12.04.010 Obstructions on streets.

12.04.020 Wires extending across streets.

12.04.030 Exceptions to Sections 12.04.010 and 12.04.020.

12.04.040 Duties of property owners relative to sidewalks generally.

12.04.050 Driving upon or across sidewalks.

12.04.060 Damage to sidewalks and curbs.

12.04.070 Concrete work to comply with certain specifications.

12.04.080 Construction and repair—Permits required—Fees—Exception.

12.04.090 Reserved.

12.04.100 City engineer to approve grade and line.

12.04.110 Construction of sidewalks adjacent to curbs.

12.04.120 Repair or replacement of deteriorated curbs, gutters, driveways and sidewalks.

12.04.130 Compliance with plans approved by the city engineer.

12.04.140 Barricades and warning lights.

12.04.150 Permit for breaking curbs for driveways.

12.04.160 Construction of sidewalks on city order—Authority to order.

12.04.170 Construction on city order—Notice requirements.

12.04.180 Governing body may contract for construction.

12.04.190 Contractor to furnish bond—Approval of work.

12.04.200 Property owner adjacent to street corners to install sidewalks.

12.04.210 Special assessments.

12.04.220 Driveways—Access compliance.

12.04.230 Driveways—Permit required.

12.04.240 Mobile storage containers on public right-of-way—Permit required.

12.04.010 Obstructions on streets.

Except as otherwise provided by this code or other city ordinance, no person shall erect, maintain or in any way cause an obstruction of any character in or upon any street, alley or sidewalk within the city. (2001 In-house code § 40-1)

12.04.020 Wires extending across streets.

With the exception of wires required for the operation and service of a public utility, no person may install, erect or extend wires of any kind across any street, alley or public way. (2001 In-house code § 40-2)

12.04.030 Exceptions to Sections 12.04.010 and 12.04.020.

Nothing in Sections 12.04.010 and 12.04.020 shall prohibit the mayor or city council, in their discretion, from giving permission for the erection of temporary signs, banners or necessary obstructions. (2001 In-house code § 40-3)

12.04.040 Duties of property owners relative to sidewalks generally.

A. Maintenance. Every sidewalk must be maintained in a safe condition at all times by the owner of the abutting property.

B. Construction of Sidewalks. All sidewalks must be constructed according to standards adopted by the city engineer.

C. Reconstruct Sidewalk to Conform to Grade Requirements. If any existing sidewalk does not conform with the grade prescribed by the city engineer, the owner of the abutting property must reconstruct the sidewalk at his or her expense. (2001 In-house code § 40-4)

12.04.050 Driving upon or across sidewalks.

No person shall drive or ride a team or any animal or vehicle upon or across any sidewalk in the city; however, nothing in this section shall be construed to prohibit persons from crossing sidewalks to and from adjoining premises where they have lawful rights to enter with animals or vehicles. (2001 In-house code § 40-5)

12.04.060 Damage to sidewalks and curbs.

No person shall damage or tear up any sidewalk, curb or gutter without authority from the city engineer. (2001 In-house code § 40-6)

12.04.070 Concrete work to comply with certain specifications.

No concrete work of any kind may be done on any street or alley within the city, except in strict compliance with specifications on file in the office of the city engineer. Any type of sidewalk other than concrete shall be constructed in accordance with specifications approved by the city engineer. (2001 In-house code § 40-7)

12.04.080 Construction and repair—Permits required—Fees—Exception.

A. No person may construct, remove or repair any sidewalk, curb and gutter, driveway, roadway or street, or perform any other work within the public right-of-way without first obtaining a right-of-way encroachment permit. Right-of-way encroachment permit and plan review fees for work in the public right-of-way shall be based on the valuation of the work and paid in accordance with the schedule of permit fees contained in Section 15.08.030. If the work to be done within the right-of-way is in conjunction with a building permit, a separate right-of-way encroachment permit is required.

B. This section shall not apply to the placement of mobile storage containers under Section 12.04.240 of the city code.

C. Exception. None, unless waived specifically by the city engineer. (Ord. No. 4531, § 2, 12-11-23; Ord. 3770 § 3, 2007: 2001 In-house code § 40-8)

12.04.090 Reserved.

Editor's note—Ord. No. 3770, § 4, approved July 23, 2007, repealed § 12.04.090, which pertained to construction and repair—fees—exception and derived from 2001 In-house code § 40-9.

12.04.100 City engineer to approve grade and line.

After a construction permit required by Section 12.04.080 is issued, the city engineer shall receive in his or her office the proposed grades and line to which the curb and gutter or sidewalk is to be staked by a licensed engineer or surveyor. Upon approval by the city engineer, the curb and gutter or sidewalk grades shall then be staked and built to approved grades and line.

A description of the cuts or fills to the finished grade of the top of the curb or sidewalks must be filed in the office of the city engineer after staking and prior to construction. (2001 In-house code § 40-10)

12.04.110 Construction of sidewalks adjacent to curbs.

In all districts where sidewalks must be laid adjacent to the curb, permits for construction of both curb and gutter and sidewalk must be obtained at the same time. If the curb and gutter is installed, no sidewalk for such property may be constructed or started unless it is done simultaneously with the curb and gutter. (2001 In-house code § 40-11)

12.04.120 Repair or replacement of deteriorated curbs, gutters, driveways and sidewalks.

A. Except as provided in subsection 12.04.120.B., whenever any curb, gutter, driveway or sidewalk is in a state of disrepair due to deteri-

oration, dislocation, obsolescence or other reason, so that, in the opinion of the director of public works or city engineer, it should be replaced, the cost of such replacement shall be borne by the abutting property owner; provided, that this subsection shall not apply to intersection valley gutters. The procedure for notice to the abutting owner to replace such curb, gutter, driveway or sidewalk and the method of assessment to pay the cost thereof shall be the same as is provided for sidewalks in Section 12.04.170.

B. Special Provision for Downtown Development District; Notice. The director of public works or city engineer, after consulting with the City's Americans with Disabilities Act (ADA) Director, shall notify the owner or agent of property located within the downtown development district when the sidewalk abutting the property is in such a state of disrepair and/or noncompliance with current ADA standards that it poses a public safety hazard or an obstruction to pedestrian mobility, respectively. The notice shall be in the manner prescribed by Section 12.04.170 and shall require repair or replacement of the sidewalk by the property owner or payment of the cost thereof. Property owners noticed pursuant to this subsection are not required to reconstruct or repair the abutting curb and gutter. Curb and gutter repairs in the downtown development district may be completed by the city at its expense upon the request of a property owner who has replaced the sidewalk abutting his or her property. Nothing in this subsection shall obligate the city to repair or replace any curb or gutter, and all such repairs are subject to the availability of appropriated funds. For the purposes of this subsection, "downtown development district" means the district designated pursuant to Section 2.76.040.

1. For purposes of this subsection, public safety hazard shall be defined as any sidewalk in which displacements; surfacing issues such as cracks, holes, and surface deterioration; grades and cross slopes; or any other deterioration has made sidewalks inaccessible and/or present substantial accessibility challenges under the ADA.

2. Spot replacement may be considered as an alternative to full replacement in instances where:

a. The public safety hazard would be sufficiently resolved by spot replacement; and

b. The remaining pavement has a life span of five years or more.

3. Repair or replacement of sidewalks, curb, and gutter under this section shall be coordinated with the director of the downtown development authority whenever possible to allow for placement of the history under foot plaques simultaneously.

C. Whenever any curb, gutter, driveway or attached sidewalk repair or replacement is required in conjunction with a construction project of the city, the board of public utilities or any other agency or entity, whether public or private, working in the public right-of-way in question, the cost of the repair or replacement will be borne by the city, the board of public utilities or the respective agency or entity. Repair or replacement of detached sidewalks will not be borne by the city, the board of public utilities or respective agency or entity, unless the city engineer determines that repair or replacement is necessary to the construction project. (Ord. No. 4347, § 1, 3-8-21; 2001 In-house code § 40-12)

12.04.130 Compliance with plans approved by the city engineer.

All sidewalks or curb and gutter must be laid to the grade lines approved by the city engineer. At the intersection of the curb and gutter or sidewalk with any alley or driveway and at street corners, curb, gutters, sidewalks and driveways must be installed in accordance with plans approved by the city engineer in compliance with the city engineer's standards. If any sidewalk or curb and gutter is not laid or constructed in accordance with the provisions of this section, the governing body may direct that it has to be reconstructed at the expense of the owner of the abutting property or the contractor constructing the work. (2001 In-house code § 40-13)

12.04.140 Barricades and warning lights.

If a sidewalk is being repaired or constructed or is in a hazardous or dangerous condition, the contractor or the owner or agent of the abutting property shall erect a barricade to safeguard against accidents with suitable warning lights, which must operate from dusk to daylight. Barricades must be maintained so long as required, but no longer, and may not be interfered with, changed or removed by anyone other than the contractor, owner or agent. (2001 In-house code § 40-14)

12.04.150 Permit for breaking curbs for driveways.

No curbing in the city shall be repeatedly driven over. In all cases where access is required for driveway purposes, it shall be necessary to make application in the office of the city engineer for a permit to break the curb and to pay the permit fee required under Section 12.04.080. (2001 In-house code § 40-15)

12.04.160 Construction of sidewalks on city order—Authority to order.

The governing body may order the construction, reconstruction, or repair of any cement or concrete sidewalk necessary for the use of pedestrians or for the development of the immediate vicinity where a sidewalk is required. (2001 In-house code § 40-16)

12.04.170 Construction on city order—Notice requirements.

A. Notice of sidewalk construction, reconstruction, or repair, under these sections pertaining to construction of sidewalks on city order must be as follows:

1. The director of public works or the city engineer will give written notice, served personally upon the owner or agent of the abutting property.

2. The director of public works or the city engineer shall publish notice once a week for a period of four weeks in a local newspaper of general circulation.

B. The notice shall:

1. Describe fully the termini, course, width and character of the work ordered;

2. Allow a period of thirty (30) days during which parties may construct, reconstruct, or repair the walk abutting their property;

3. State that all work which is not performed at the expiration of thirty (30) days from the date of service or of the first publication of notice shall be performed by the contractor authorized by the governing body. (2001 In-house code § 40-17)

12.04.180 Governing body may contract for construction.

A. The governing body may let, to the lowest responsible bidder, for any period not exceeding one year, a contract for the construction, reconstruction, or repair, in accordance with specifications prepared by the city engineer and approved by the governing body, of all cement and concrete sidewalks which the governing body, director of public works or city engineer may order to be performed during the term of the contract.

B. Special Provision for Downtown Development District. The director of public works or the city engineer are empowered to let contracts for less than seventy-five thousand dollars ($75,000.00) for the repair or replacement of curb and gutter located within the downtown development district on a rotating list of qualified contractors pursuant to a qualification process approved by the governing body and the purchasing manager. The requirements of subsection 2.04.160(D) shall not apply to contracts let pursuant to this process. (Ord. No. 4502, § 1, 5-8-23; Ord. No. 4462, § 1, 9-12-22; Ord. No. 4347, § 1, 3-8-21; 2001 In-house code § 40-18)

12.04.190 Contractor to furnish bond—Approval of work.

Before any contract referred to in Section 12.04.180 is awarded, bids shall be advertised for, as provided by law. The successful bidder shall give a bond in an amount to be determined by the city engineer, for the faithful performance of his or her contract. All work must be done under the

supervision of the city engineer, and shall be approved by the city engineer and the director of public works before final settlement may be authorized by the governing body. (2001 In-house code § 40-19)

12.04.200 Property owner adjacent to street corners to install sidewalks.

The owner of any property adjacent to the street corners shall construct, reconstruct, or repair that portion of the sidewalk extending from the property line to the nearest curb in both directions or such property adjacent to the street corner shall be assessed for the same. (2001 In-house code § 40-20)

12.04.210 Special assessments.

A. Except as otherwise provided in subsection 12.04.120.B., the total charge to be assessed to the owner or agent of property for the construction, reconstruction, or repair of a sidewalk shall include the cost of the sidewalk work, as well as that of any notice, curbing, grading, private crossing and all other necessary expenses.

B. Special Provision for Downtown Development District. The owner or agent of property located within the downtown development district shall be responsible for any repairs ordered to the abutting sidewalk within the downtown development district as outlined in subsection 12.04.120.B. The assessment against the property in front of or beside where the sidewalk work is performed shall be chargeable against the owner of record at the time of such improvements, and the city shall have a lien against such property in the amount owed. The city shall be responsible for the cost of any repairs to the curb and gutter as outlined in subsection 12.04.120.B. (Ord. No. 4347, § 1, 3-8-21; 2001 In-house code § 40-21)

12.04.220 Driveways—Access compliance.

Any access from a public roadway to private property provided, constructed, repaired or altered must be by means of driveways. (2001 In-house code § 40-22)

12.04.230 Driveways—Permit required.

No person may commence work on the construction, alteration, repair or removal of any driveway or the paving of any parking strip on any street, alley or other public place in the city without a written permit from the city engineer. (2001 In-house code § 40-23)

12.04.240 Mobile storage containers on public right-of-way—Permit required.

A. An encroachment permit shall be required for any mobile storage container that will occupy any part of the street or will otherwise be placed on the public right-of-way. No mobile storage container shall occupy any part of the sidewalk located within the public right-of-way.

B. Any person wanting to place a mobile storage container on the right-of-way shall apply to the city engineer for an encroachment permit no later than ten (10) business days prior to the placement of the mobile storage container at a particular location. The permit application shall identify the proposed location of the mobile storage container to be placed on the public right-of-way, the name and contact information for the property owner or tenant who will use the container, the name and contact information of the business through which the mobile storage container will be obtained and any other information specified by the city engineer. The permit shall be displayed on the exterior of the mobile storage container at all times.

C. In addition to the information required to be submitted under subsection (B) of this section, a permit applicant shall submit adequate proof of liability insurance for the placement of the mobile storage container. Liability coverage under the insurance shall be in an amount determined by the city engineer and the insurance shall be maintained during the entirety of the time the mobile storage container is to be placed on the public right-of-way.

D. An initial mobile storage container encroachment permit shall not require the payment of any permit fee but upon approval by the city

engineer of the permit application shall authorize the placement of the mobile storage container for a period of not more than ninety (90) days. An encroachment permit under this section may be renewed not more than two times for any specified location and for no more than a combined total of one hundred eighty (180) days in any consecutive twelve-month period. An encroachment permit under this section may be renewed as follows:

1. A first permit renewal shall require payment of a one hundred fifty dollars ($150.00) permit renewal fee, which upon approval by the city engineer and payment shall authorize the continued placement of the mobile storage container for an additional period of sixty (60) days; and

2. A second permit renewal shall require payment of a seven hundred fifty dollars ($750.00) permit renewal fee, which upon approval by the city engineer and payment shall authorize the continued placement of the mobile storage container for an additional period of thirty (30) days.

E. No mobile storage container that is or will be placed in a residentially zoned area shall be delivered or removed for transport between the hours of 7:00 p.m. and 6:00 a.m.

F. The vertical stacking of two (2) or more mobile storage containers and stacking of any other materials on top of a portable storage container is prohibited.

G. The city engineer, in his or her discretion, may approve, conditionally approve or deny any mobile storage container encroachment permit application. All mobile storage container encroachment permits are revocable at the discretion of the city engineer. If in the judgement of the city engineer, the public interest or convenience will be served by removal or relocation of a mobile storage container from the public right-of-way, the city engineer shall modify, condition or revoke the encroachment permit accordingly. Any permit revoked under this subsection shall entitle the former permit holder to a pro rata refund based on the remaining number of days of the permit but for the revocation by the city engineer.

H. Notwithstanding the one hundred eighty (180) day limitation imposed under subsection (D) of this section and for good cause shown, the city engineer may grant a permittee waiver, authorizing additional time during which the permittee's mobile storage container may be placed on the public right-of-way. Any waiver granted under this subsection shall not exceed sixty (60) days and shall be evidenced through the issuance of a permit waiver which shall be displayed in accordance with subsection (A) of this section.

I. Any person found in violation of this section shall be guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00). Each day of a continuing violation shall constitute a separate offense.

J. As used in this section, "mobile storage container" means a moveable container that is temporarily placed on the public right-of-way adjacent to a property and is used or intended to be used by the property owner or tenant for short-term storage of items, including, but not limited to, clothing, equipment, materials, merchandise or household or office fixtures or furnishings. For the purposes of this section, "mobile storage container" shall not include roll off dumpsters.
(Ord. No. 4531, § 1, 12-11-23)

Chapter 12.08
STREET NAMES

Sections:

12.08.010 Avenues and streets.
12.08.020 City engineer may name and number streets.

12.08.010 Avenues and streets.

With the exception of parkways, boulevards, places and courts, all streets parallel to Central Avenue or lying in a general northerly and southerly direction shall be designated as avenues, and all streets south of Pershing Boulevard, lying in a general easterly and westerly direction and parallel to Nineteenth Street, shall be designated as streets. (2001 In-house code § 40-40)

12.08.020 City engineer may name and number streets.

The city engineer may name and number streets and avenues for all areas which are or may be annexed to the city but which lie outside the boundary of the original plat of the city. The numbering system shall, insofar as possible, conform to the system as outlined in this chapter, with such additional directional designations as may be necessary to eliminate confusion or duplication. (2001 In-house code § 40-41)

Chapter 12.12
EXCAVATIONS

Sections:

12.12.010 Permit required.
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12.12.040 Barricades required.
12.12.050 Barriers required where street is closed.
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12.12.010 Permit required.

No person may make any excavation or dig any ditch in any paved, oil or gravel surfaced street or alley in the city without obtaining a permit from the city engineer. (2001 In-house code § 40-24)

12.12.020 Restoration.

The person responsible for any excavation under these sections of city code pertaining to excavation shall return it to its original condition as promptly as possible. This includes all backfill of material below the paved, oiled or graveled surface. The excavator must comply with street cut and repair standards issued by the city engineer. (2001 In-house code § 40-25)

12.12.030 Standards—Restoration by city—Responsibilities of private contractors.

The city engineer will issue street cut and repair standards for use by all contractors and private individuals. Contractors and private individuals acting as their own contractors, will be responsible for ensuring their operations comply with street cut and repair standards issued by the city engineer. (2001 In-house code § 40-26)

12.12.040 Barricades required.

No city officer or employee or any contractor or other person may make any excavation or dig any hole, drain or ditch in any thoroughfare without providing a suitable barricade, with appropriate warning lights in operation from dusk until daylight. (2001 In-house code § 40-27)

12.12.050 Barriers required where street is closed.

Whenever it becomes necessary for the director of public works to close to traffic any street or alley for the purpose of making repairs or improvements, the director shall erect suitable barriers across the street or alley, with appropriate warning lights in operation from dusk until daylight. (2001 In-house code § 40-28)

12.12.060 Interference with barriers prohibited.

No person may drive upon or into any barricade, repairs or improvements, or remove or cause to be removed any part of a barricade or warning device. (2001 In-house code § 40-29)

12.12.070 Utility crossings on streets and highways.

A. All utility work which takes place within the right-of-way on streets and highways within the city limits must be under the authority of the city engineer. Utilities placed under any surfaced area must be pushed or bored so that the existing pavement is not disturbed. Street cuts will be allowed when it is the only practical method of utility work. When street cuts are allowed, city specifications will be adhered to in backfilling the trench.

B. Prior to issuance of the permit, the city engineer must have on file construction drawings indicating the location and nature of the work. A copy of the construction drawings showing the actual grade and alignment of the utility crossing shall be sent to the city engineer's office within ten (10) days after completion of the work. If any work is to take place within the street, the applicant must submit a traffic control plan to the city traffic engineer for approval prior to commencing work. (2001 In-house code § 40-30)

Chapter 12.16

TREES*

Sections:

12.16.010 Purpose-Authority-General provisions.

12.16.020 City forester-Urban Forestry guidelines.

12.16.030 Definitions.

12.16.040 Responsibility for trees in public right-of-way.

12.16.050 Obstruction of the public right-of-way.

12.16.060 Permit required for planting, pruning or removal of trees in public places—Application—Inspection.

12.16.070 Nuisance and noxious trees.

12.16.080 Infected or infested trees.

12.16.090 Tree protection, damages and cost recovery.

12.16.110 Right of entry.

12.16.111 Interference.

12.16.112 Notice.

12.16.113 Violation—Penalty.

12.16.010 Purpose-Authority-General provisions.

A. The city recognizes the substantial economic, environmental, aesthetic and public health benefits of trees within the community. It is the policy of the city to protect and enhance the community's urban forest. The purpose of this chapter is to promote and protect the public safety and general welfare by providing regulation, and to establish policies regarding the planting, maintaining and removal of trees through recommended horticultural and arboricultural practices, and to establish and enforce professional standards for city business licensees, pursuant to licensing provisions of Chapters 5.04 and 5.80 of the city code, pertaining to operating a tree maintenance business.

B. Authority is granted to cities and towns by Wyo. Stat. Section 15-1-101(a)(xiii) and (xli) to license and regulate business activities within the city for the health, safety and welfare of its citizens.

C. The requirements of this chapter will not be deemed to impose any liability for damages or duty of care and maintenance upon the city or any of its officers, agents or employees. (Ord. No. 4235, § 1, 6-25-18)

12.16.020 City forester-Urban Forestry guidelines.

A. To promote the above purpose, the city shall employ a person known as the city forester who shall have the power to establish and enforce rules, regulations, standards, and specifications for the protection, planting, pruning, treatment, removal or any maintenance of trees located upon the right-of-way of any street, alley, sidewalk or other city owned property in the city and concerning the performance of such work on public or private property within the city by licensees under Chapters 5.04 and 5.80. These guidelines shall be titled "City of Cheyenne Urban Forestry guidelines," shall be in writing, and shall not be effective until signed by the mayor. These guidelines, shall be on file and open for inspection by the public with the forestry division and office of the city clerk.

B. The city forester or designee is authorized to assess basic costs and fees, including an administrative fee to cover expenses related to personnel and equipment relative to enforcement of the provisions of this chapter, and as set out in the urban forestry guidelines. (Ord. No. 4235, § 1, 6-25-18)

12.16.030 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"City forester" shall mean the manager or director of the urban forestry division or designee.

*Editor's note—Ord. No. 4235, §§ 1, 2, adopted June 25, 2018, repealed ch. 12.16, §§ 12.16.010—12.16.090 and enacted a new ch. 12.16 as set out herein. Former ch. 12.16 pertained to similar subject matter and derived from Ord. 3613, adopted in 2004 and Ord. No. 3967, adopted January 28, 2013.

"City property" shall mean and include all real property owned by and leased to the city of Cheyenne, not including the public right-of-way.

"Downtown" means the boundaries of the Cheyenne Downtown Development Authority District as described in Section 2.76.040 of the city code.

"Maintenance" shall mean any and all work performed on trees including, but not limited to, planting, watering, pruning, removing, stump grinding, treating for insects or diseases, protecting and enhancing soils, and preserving and protecting trees during construction.

"Noxious tree" means a tree that is designated a "designated noxious weed" by the Wyoming Weed and Pest Control Act, Wyoming Statute § 11-5-101, et seq.

"Nuisance tree" shall mean a tree with undesirable characteristics as defined in the urban forestry guidelines and declared to be a public nuisance by the city forester or designee.

"Private property" means all land and improvements, including fixtures and appurtenances, located within the property lines of a property.

"Property owner" shall mean any person or entity having a legal or equitable interest in real property and its fixtures and appurtenances, including the interests of a tenant or lessee.

"Public right-of-way" shall mean the entire area between the curb, or street where no curb exists, and the property line of a property and between the centerline of the alley and property line of a property.

"Responsible party" shall mean the property owner or an entity or person who, acting as an agent for or in any other legal capacity on behalf of the owner, has authority over property subject to this chapter or who is responsible for the maintenance or management of said property.

"Tree" or "trees" shall mean any perennial woody plant, usually, but not necessarily, single stem and long-lived with a height greater than overall spread. (Ord. No. 4235, § 1, 6-25-18)

12.16.040 Responsibility for trees in public right-of-way.

A. Public Right-of-Way. The responsible party of property abutting the public right-of-way shall have the duty to maintain trees on the abutting portions of the public right-of-way.

B. Downtown. The city recognizes the significance of its downtown relative to the community's economy, culture and history, and supports trees and landscaping features to enhance the vitality of downtown. The city shall be responsible for the planting, care, maintenance, and removal of trees in the public right-of-way within the designated Downtown Development Authority Special District.

C. Written Agreements. A written agreement may establish responsibility for trees located on public rights-of-way as the responsibility of the city or another entity such as a homeowner's association or special district. This written agreement shall be approved by the city forester and the city attorney's office and filed with the city clerk. (Ord. No. 4235, § 1, 6-25-18)

12.16.050 Obstruction of the public right-of-way.

A. The city is responsible for clearing trees away from traffic signs and traffic control devices to maintain clear visibility.

B. The responsible party for any property located within the city shall:

1. Maintain all trees to provide clearance over streets and alleys of at least fourteen (14) feet and over sidewalks of at least eight (8) feet.

2. Maintain an unobstructed site distance triangle pursuant to the urban forestry guidelines.

3. Remove all stumps in the public right-of-way to at least eight (8) inches below original grade and replace with top soil.

C. When the city forester or designee determines a tree is in such a condition that it endangers the safe public use of streets, alleys, and sidewalks, the city forester shall issue a notice of violation requiring corrective steps in accordance with Section 12.16.112.

D. In the case of an emergency, the city forester or designee may cause the immediate necessary remedial action in accordance with Section 12.16.110 and Section 12.16.112. (Ord. No. 4235, § 1, 6-25-18)

12.16.060 Permit required for planting, pruning or removal of trees in public places—Application—Inspection.

A. It shall be unlawful for any person to plant, cut, trim, prune, remove, destroy or cause to be planted, cut, trimmed, pruned, removed or destroyed any tree within the public right-of-way of any street or sidewalk, or upon other city-owned property within the city without having first obtained a written permit therefor. For purposes of this section, "within the public right-of-way of any street or sidewalk, or upon other city-owned property" shall not include trees located on private property that encroach upon or overhang public property. Owners of properties adjoining alley rights-of-way may cut, trim, prune or remove trees located within such rights-of-way without a permit.

B. Any person desiring to plant, cut, trim, prune, remove or destroy any tree within the public right-of-way of any street or sidewalk, or upon other city-owned property within the city, must first file a written application for a permit at the office of the city forester, if a permit is required under this section. This application is available from the city forester and it must set forth the name and address of the applicant, the name and address of the person doing the work, the kind or species of tree to be planted, cut, trimmed, pruned, removed or destroyed and the location of the same, together with such other information as the city forester shall require.

C. The applicant must, at the time of making the application, agree in writing, in all respects, to hold the city harmless and protect the city and the public at all times in connection with the planting, cutting, trimming, pruning, removal or destruction of any tree to be planted, cut, trimmed, pruned, removed or destroyed under such permit.

D. The city forester shall inspect the location of the tree to be planted, cut, trimmed, pruned, removed or destroyed, and if, in his or her opinion, it is desirable that such tree be planted, cut, trimmed, pruned, removed or destroyed, as the case may be, the city forester shall issue a permit. Such permit shall set forth the name of the person who shall perform the work, the location at which the tree is or shall be located and any conditions or requirements made by the city forester in connection therewith. (Ord. No. 4235, § 1, 6-25-18)

12.16.070 Nuisance and noxious trees.

A. Nuisance trees. The city forester or designee may declare certain trees to be a nuisance tree as described in the urban forestry guidelines.

B. Noxious trees. If the city forester or designee determines a tree is a noxious tree, it shall be controlled pursuant to state law. (Ord. No. 4235, § 1, 6-25-18)

12.16.080 Infected or infested trees.

A. The city forester or designee may inspect any tree or tree part, including logs or branches existing or growing upon any property located within the city. The city forester or designee shall conduct surveys to determine if any destructive or communicable disease or other pestilence exists which may be detrimental to or endanger the good health and well being of trees in the city.

B. Upon discovery of any infected or infested tree, the city forester shall notify the responsible party in writing, subject to Section 12.16.112, of the infected or infested tree and order such responsible party to eradicate, remove, or otherwise control the condition within the time specified in the written notice.

C. Failure to comply with a notice regarding an infected or infested tree will be followed pursuant to Section 12.16.112. (Ord. No. 4235, § 1, 6-25-18)

12.16.090 Tree protection, damages and cost recovery.

A. It shall be unlawful to injure, damage, destroy or remove any tree situated upon city property.

B. No person shall attach any material to a tree on city property.

C. Trees on city property shall be protected during construction projects as outlined in the urban forestry guidelines. (Ord. No. 4235, § 1, 6-25-18)

12.16.110 Right of entry.

A. In order to accomplish the purposes of this chapter, the city forester or designee, or any contractor hired by the city forester, shall have the right to enter public or private property within the city in order to inspect trees and other vegetation upon written notice conspicuously posted upon the affected property and also deposited in the United States mail, addressed to the owner of record at the address on the assessment roll of the Laramie County Assessor. The notice shall set forth a date certain for inspection and entry.

B. Subject to the notice requirements of Section 12.16.112, the city forester or a contractor hired by the city forester is also authorized to go upon any public or private property in the city for the purpose of cutting, trimming, pruning and removing trees that the city forester has determined present a danger to persons using, or property located upon, the public rights-of-way or other city-owned property within the city, or in order to treat or eliminate a destructive or communicable disease or insect infestation.

C. In the case of an emergency or where the city forester has determined an immediate threat to public safety, the city forester shall have the authority to take any action or abatement necessary to eliminate the threat to public safety. (Ord. No. 4235, § 1, 6-25-18)

12.16.111 Interference.

No person shall prevent, delay or interfere with the city in regards to the enforcement of this chapter or activities required in conducting the urban forestry program; provided, however, nothing contained in this chapter shall be construed as an attempt to prohibit any legal or equitable remedy in any court of competent jurisdiction for the protection of property rights by the owner of property within the city. (Ord. No. 4235, § 1, 6-25-18)

12.16.112 Notice.

A. Notice of Violation. The city forester or designee shall give written notice to the responsible party of any property to correct any condition in order to comply with the terms of this chapter. The notice shall describe the property affected and set forth the action to be taken by the responsible party. The notice shall also prescribe a time for compliance. The notice shall be conspicuously posted upon the affected property and also deposited in the United States mail, addressed to the owner of record at the address on the assessment roll of the Laramie County Assessor.

B. Failure to Comply. Should the responsible party of any property refuse or fail to comply with the terms of a notice during the time prescribed, the city or its designee may enter upon the premises and remove, treat or otherwise care for trees and vegetation in order to correct the existing condition. In the event that the city is required to perform any corrective work on the premises, the costs thereof shall be assessed against the responsible party.

C. Abatement and Costs. If the city abates a violation on private property or on the public right-of-way, the city forester or designee will notify the responsible party of the cost of abatement by United States mail addressed to the owner of record at the address on the assessment roll of the Laramie County Assessor. The costs of abatement shall include all direct and indirect costs abatement including, but not limited to, manpower, equipment, expenses and administrative costs incurred by the city. Such costs shall be due and owing from the property owner to the city. Such costs, expenses and fees may be collected in any manner prescribed by law. (Ord. No. 4235, § 1, 6-25-18)

12.16.113 Violation—Penalty.

Any person who violates the provisions of this chapter will be deemed guilty of a misdemeanor,

punishable pursuant to the general penalty provision of the city code. (Ord. No. 4235, § 1, 6-25-18)

Chapter 12.20

CEMETERIES

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12.20.380 Application—Prerequisites to issuance of burial permit.

12.20.390 Burial permit fee.

12.20.400 Contents of burial permit.

12.20.010 Purpose—Authority—General provisions.

A. Purpose of this chapter is to designate city-owned cemeteries, provide for general supervisory authority, and incorporate regulations for administration of activities and operations of city-owned cemeteries located within the city cemetery

complex. City-owned cemeteries located within the complex are designated and are commonly known as: Lakeview cemetery, Beth El cemetery, and International Order of Odd Fellows (IOOF) cemetery, and includes the Serenity Garden, a Columbarium section.

B. Authority is granted cities and towns by Wyo. Stat. Sections 15-1-103, et seq. and Wyo. Stat. Sections 35-8-101, et seq., as amended, to provide for the use, maintenance and regulation of cemetery grounds and activities; sales of burial spaces, and interment requirements.

C. In addition to the provisions of this chapter, any regulations, as approved by the governing body, are made a part of this chapter by reference, the same as though incorporated herein at length. Copies of these regulations are on file in the office of the city clerk. (Ord. 3700 § 1 (part), 2006; 2001 In-house code § 11-1)

12.20.020 Powers and duties generally—City sexton.

The city sexton shall, under the supervision of the city engineer, have charge of all city cemeteries and shall have the following duties:

A. Supervision of all work necessary to properly care for burial spaces and lots in accordance with the arrangements made by purchasers with the city clerk or city treasurer, by payment in advance for such services;

B. Taking proper and necessary care of all trees, shrubbery, etc., planted by or belonging to the city, as well as all paths, driveways, fences, buildings, etc., and keeping cemetery premises in a clean and orderly condition;

C. Honoring all burial permits issued by the city clerk by properly opening and closing graves when and as required;

D. Exercising proper care in safeguarding cemetery property, seeing that the gates of the Beth El section of the city cemetery are kept closed and rendering all other supervision and services necessary;

E. Making complaint against any person who shall violate any provision of this code or other ordinances of the city applicable to cemeteries;

F. Keeping neat and accurate records, preserving all permits issued by the city clerk and submitting to the mayor and city council a quarterly report of all permits honored, itemizing in each case the date of interment, name of deceased, lot or space designation and owner. Such report shall also include any other information or details pertinent to his or her work which may be of interest to the council;

G. Doing all other things necessary or required of him or her by the mayor or city council;

H. Permitting no burials, except in compliance with the provisions of this chapter. (2001 In-house code § 11-2)

12.20.030 Abstract of cemetery lots—Record of interments.

The city clerk shall keep a full and complete abstract of the lots and grave spaces in the city cemeteries, arranged consecutively by number and showing the name of the owner of each lot or burial space, date of purchase, purchase price and indicating when provision has been made for annual or perpetual care. He or she shall also keep an alphabetical record of all persons buried in the city, showing the date and number of the burial permit issued. For each person buried in a city cemetery the record will show the lot or grave space in which interment took place. (2001 In-house code § 11-3)

12.20.040 Reports of interments in other cemeteries required.

The person in charge of any cemetery in the city, other than a city cemetery, shall quarterly report to the city council upon the interments in the cemetery under his or her charge. Such report shall include the lot number, owner of such lot or burial space, name of deceased, number of the burial permit issued by the city clerk and date of interment. (2001 In-house code § 11-4)

12.20.050 City employees' activities restricted.

No employee of the city shall solicit orders for or receive compensation of any kind from the sale of monuments, markers or any other thing to be planted or installed in any city cemetery. (2001 In-house code § 11-5)

12.20.060 Liability for damage.

Persons doing work of any kind in any city cemetery shall be held responsible for any damage done by them to trees, grass or any other property. (2001 In-house code § 11-6)

12.20.070 Work regulations.

Persons erecting monuments or doing work of any kind in any city cemetery shall conform to the following:

A. Before doing work of any kind, it shall be necessary to obtain directions from the sexton, who shall have complete supervision;

B. No person shall disturb the sod on any lot or grave or make or remove any plantings, except in accordance with regulations and with permission of the sexton;

C. All work shall be done as rapidly as possible and any rubbish shall be immediately removed. No rubbish or material of any kind shall be scattered or placed upon any other lot or burial spaces;

D. In the erection of monuments or other structures, any necessary guy posts shall be set on the walks or drives and no ropes or guys shall be attached to other monuments or to trees. In unloading monuments, planks shall be used when necessary for the protection of walks or grass. (2001 In-house code § 11-7)

12.20.080 Trees and shrubs.

The city sexton shall provide approval for the planting of all trees and shrubs in city cemeteries. (2001 In-house code § 11-8)

12.20.090 Ornaments and floral designs on lots restricted.

No person shall place upon any burial space, lot or grave anything other than flowers, wreaths, flags or other temporary decorations and such receptacles as may be needed. All floral designs and pieces will be removed as soon as they become unsightly. The caretaker of the cemetery will not return such floral designs to the owners of the lots, unless previous arrangements have been made. (2001 In-house code § 11-9)

12.20.100 Enclosures around lots prohibited.

Fences, railings, hedges, copings or other enclosures around lots, parts of lots or burial spaces in city cemeteries are prohibited and shall be removed without notice. (2001 In-house code § 11-10)

12.20.110 Advertising prohibited.

No advertising of any kind shall be placed within any city cemetery. (2001 In-house code § 11-11)

12.20.120 City not liable for property damage.

The city shall not be responsible or liable for any damage to graves, monuments, markers, vegetation or other property within the city cemeteries. (2001 In-house code § 11-12)

12.20.130 Monuments and markers.

Monuments and markers in the Beth El section of the cemetery shall comply with the following regulations:

A. Material. Every monument or marker hereafter erected or installed in the Beth El section of the cemetery shall be of granite, bronze, metal or marble of a quality approved by the director of public works.

B. Type and Design. Every monument shall harmonize with the size and location of the lot upon which it is erected. No grave covers shall be installed, except with the approval of the director of public works. Every marker shall be of one piece and no less than four inches thick, twenty (20) inches long and of a design approved by the director of public works.

C. Markers and Flower Containers. All markers and flower containers to be installed in the Beth El section of the cemetery shall be set so that the top of the marker or the top of the flower

container (when not in use) shall be level with the surface of the ground. (2001 In-house code § 11-13)

12.20.140 Lots reserved for veterans' organizations—Monuments or markers on same restricted.

The following numbered lots in Beth El cemetery are set aside and reserved for the use of the various veterans' organizations as follows:

A. Lots one hundred fifty-five (155) to one hundred ninety-six (196), inclusive, in section "F" to the Veterans of Foreign Wars.

B. Lots one hundred ninety-seven (197) to two hundred thirty-four (234), inclusive, in section "F" and lots forty-five (45) to eighty-eight (88), inclusive, in section "G" to the American Legion.

C. Lots ninety-six (96) to one hundred fifty-one (151), inclusive, in section "H"; all of section "O"; lots one to one hundred sixty-five (165), inclusive, in section "P"; lots one to seventy (70), inclusive, in section "EQ"; and lots seventy-one (71) to one hundred forty-five (145), inclusive, in section "WQ" are reserved for veterans of the United States wars generally.

In those areas reserved for veterans only, the United States government monuments or markers or monuments of similar construction and size shall be placed upon the graves. (2001 In-house code § 11-14)

12.20.150 Application for purchase of burial space.

Any person desiring to purchase burial space in a city cemetery shall make application to the city clerk. (2001 In-house code § 11-15)

12.20.160 Purchase price.

The cost of burial space in city-owned cemeteries is as follows:

A.	Baby grave space	$ 225.00
B.	Single adult grave space	600.00
C.	Columbarium cremains niche	1,000.00*

* Includes initial city memorial engraving. (Ord. No. 4422, § 1, 3-14-22; Ord. 3700 § 1 (part), 2006: 2001 In-house code § 11-16)

12.20.170 Ownership, transfer certificates and Columbarium right of inurnment fees.

A. The city treasurer shall collect a fee of twenty dollars ($20.00) for issuance of a certificate of ownership with perpetual care or a transfer of ownership certificate showing purchase of a burial space(s) and shall issue a receipt for the same.

B. The city treasurer shall collect a fee of twenty dollars ($20.00) for issuance of a right of inurnment with perpetual care affiliated with placement of cremains within a Columbarium niche. (Ord. No. 3847, § 1, 6-8-09; Ord. 3700 § 1 (part), 2006: 2001 In-house code § 11-17)

12.20.180 Issuance of certificate of ownership and right of inurnment.

The city clerk, upon payment of the purchase price, and the fee required under Section 12.20.170 of this chapter, shall issue to the applicant a certificate of ownership or right of inurnment signed by the mayor, attested by the city clerk, with the corporate seal of the city attached. (Ord. 3700 § 1 (part), 2006: 2001 In-house code § 11-18)

12.20.190 Number of lots limited.

No person may own more than two eight-grave lots or four four-grave lots or sixteen (16) grave spaces at one time in the city cemeteries. (2001 In-house code § 11-19)

12.20.200 Resale.

No cemetery lot or grave space in any city cemetery shall be sold to anyone for the purpose of resale. (2001 In-house code § 11-20)

12.20.210 Perpetual care required—Fee.

Perpetual care shall be required for all sales of grave spaces in city-owned cemeteries and for each right of inurnment issued for cremains to be placed within the Columbarium. The rate for such per-

petual care shall be four hundred dollars ($400.00) for each grave space, baby or single adult space, or each Columbarium niche. (Ord. No. 3847, § 1, 6-8-09; Ord. 3700 § 1 (part), 2006: 2001 In-house code § 11-21)

12.20.230 Installment payments for burial space and Columbarium inurnments.

Upon deposit of the perpetual care fee, the city clerk may sell a burial space in the city cemeteries or reserve the right of inurnment in the Columbarium on a time payment arrangement as follows:

A. Upon written agreement on forms provided by the city, the purchaser shall have twenty-four (24) months within which to pay the total amount of such charge.

B. No interment or inurnment shall be permitted until the full payment has been made.

C. If such charges are not fully paid for within twenty-four (24) months, the city may otherwise dispose of such burial space or reservation of right of inurnment after tending a refund of payments made by such purchaser, excluding the perpetual care fee. Upon request, such purchaser may have a refund of payments, excluding the perpetual care fee, at any time before the certificate of ownership or right of inurnment is issued. (Ord. 3700 § 1 (part), 2006: 2001 In-house code § 11-23)

12.20.240 Issuance of certificate of care—Report to sexton.

The city clerk shall give to each person making payment for perpetual care or annual care a certificate or receipt showing the type of care, amount paid, date of payment and a description of the lot or burial space for which such care is to be provided. He or she shall also provide the information to the city sexton. (2001 In-house code § 11-24)

12.20.250 Interments generally.

No person shall inter the dead body of a human being within the city, unless such interment is made in a cemetery and in the manner provided by this chapter. (2001 In-house code § 11-25)

12.20.260 Burials in veterans' areas restricted.

No burial shall be made in areas of city cemeteries set aside and reserved for the use of the various veterans' organizations until there is filed with the city clerk a certificate of eligibility executed by the proper organization. Spouses of persons eligible for burial in such areas are also eligible for burial therein. Lots in such areas shall not be sold or reserved in advance of need except for the use of surviving spouses of persons already buried in such areas. Lots in such areas, except for those reserved by surviving spouses, shall be designated in order by the sexton. (2001 In-house code § 11-26)

12.20.270 Interment on Saturdays—Sundays and city-recognized holidays restricted—Waiver.

No person shall arrange for or cause dead bodies to be interred or cremains to be inurned on Sundays or city-recognized holidays in cemeteries within the city cemetery complex. Interments and inurnments may be made on Saturdays until noon upon payment of such additional fee as set out within this chapter. Upon a showing that exigent circumstances exist or that a hardship would result, the mayor is authorized to waive the burial restriction on Saturdays, Sundays and city-recognized holidays. (Ord. 3700 § 1 (part), 2006: 2001 In-house code § 11-27)

12.20.280 Approval of health officers and consent of lot owner required for disinterment.

Before any disinterment shall be made, satisfactory evidence shall be given to the city clerk of the approval of the city/county health officer, as well as the consent of the owners of the lot or burial space. (2001 In-house code § 11-28)

12.20.290 Permit, receipt and death certificate to be deposited with sexton.

The burial permit provided in this chapter and receipt for fees provided for in Sections 12.20.300

through 12.20.320, together with the certificate of the registrar of births and deaths shall be deposited with the sexton of the cemetery in which burial is to be made and shall be authority for the sexton to open and close a grave as described in the permit; provided that, if only disinterment is desired, it shall only be necessary for the applicant to procure from the city treasurer and deposit with the sexton a receipt provided for in Section 12.20.320. (2001 In-house code § 11-29)

12.20.300 Service fees—Opening and closing graves and Columbarium niches.

The city treasurer shall collect and issue a receipt for the payment of the following fees for each opening and closing of a burial space and each placement of cremains within a Columbarium niche:

A.	Adult burial	$ 700.00
	Saturday, Sunday and city holiday additional charge	600.00
B.	Baby burial	225.00
	Saturday, Sunday and city holiday additional charge	225.00
C.	Cremains burial (pre-approved grounds only)	275.00
	Saturday, Sunday and city holiday additional charge	350.00
D.	Columbarium cremains	350.00
	Saturday, Sunday and city holiday additional charge	350.00

(Ord. No. 4422, § 1, 3-14-22; Ord. No. 3847, § 1, 6-8-09; Ord. 3700 § 1 (part), 2006: 2001 In-house code § 11-30)

12.20.310 Reserved.

Editor's note—Ord. No. 4422, § 1, adopted March 14, 2022, repealed § 12.20.310, which pertained to service fees—disinterment and reburial—opening and closing and derived from 2001 In-house code § 11-31; and Ord. 3700 § 1 (part), adopted in 2006.

12.20.320 Disinterment and removal.

Before any grave space, or Columbarium niche, in a city cemetery shall be opened and disinterment, or disinurnment of Columbarium cremains, takes place, the city treasurer shall collect and issue receipt for the payment of the following fees:

A.	Adult disinterment/removal	$1,800.00
B.	Baby disinterment/removal	400.00
C.	Cremains (burial space) disinterment/removal	500.00
D.	Columbarium cremains disinurnment/removal	300.00

(Ord. No. 4422, § 1, 3-14-22; Ord. 3700 § 1 (part), 2006: 2001 In-house code § 11-32)

Editor's note—Ord. No. 4422, § 1, adopted March 14, 2022, amended § 12.20.320 and in doing so changed the title of said section from "Service Fees—Disinterment and removal" to "Disinterment and removal," as set out herein.

12.20.330 Double-depth burials.

No double-depth burials shall be permitted in any cemetery unless specifically provided by this code or other ordinances of the city.

Double-depth burials shall be permitted in Beth El cemetery only in burial spaces not already occupied by a single-depth burial.

A.	Double-depth burial fee (where allowed)	$ 100.00

(Ord. No. 4422, § 1, 3-14-22; 2001 In-house code § 11-33)

12.20.340 Paupers and indigents.

Interment may be made of paupers or indigent persons, who are or may be a charge upon the county, in the section of the city cemeteries described as county reserve or potters field. For such interment, no purchase of burial space shall be necessary and no charge shall be made for such burial. The city clerk, however, shall issue the required permit and present a claim for eighty dollars ($80.00) to the proper county authorities for each interment. (2001 In-house code § 11-34)

12.20.350 Stillborn infants.

Stillborn infants may be buried in a part of the city cemetery designated for that purpose, in which case no charge shall be made for either the burial permit or lot certificate. The applicant shall pay

one hundred forty dollars ($140.00) for the expense of opening and closing the grave, unless the applicant is indigent. (Ord. No. 4422, § 1, 3-14-22; 2001 In-house code § 11-35)

12.20.360 Advance notice of burial of persons dying of contagious diseases.

In the event of the burial of any person whose death is caused by a virulent contagious disease, advance notice shall be given to the city clerk so that suitable time for interment may be arranged and necessary precautions taken to avoid exposure to the public and cemetery employees of such contagion. (2001 In-house code § 11-36)

12.20.370 Burial permits required.

No interment shall be made within the city unless the person making such interment shall have previously obtained a burial permit from the city clerk. (2001 In-house code § 11-37)

12.20.380 Application—Prerequisites to issuance of burial permit.

Application for a burial permit shall be made to the city clerk. Before a permit is issued, the applicant shall pay the required fees and exhibit to the city clerk the county burial permit obtained from the county registrar of births and deaths, and shall show that such applicant is the owner of or has authority to make interment in the lot or grave space for which the permit is requested. (2001 In-house code § 11-38)

12.20.390 Burial permit fee.

The city treasurer shall collect and issue a receipt for a fee of twenty dollars ($20.00) for the issuance of a burial permit. (Ord. No. 3847, § 1, 6-8-09; 2001 In-house code § 11-39)

12.20.400 Contents of burial permit.

The burial permit issued by the city clerk shall be dated, numbered and signed by the city clerk and shall show to whom issued, the cemetery and lot or space in which interment is to be made and the name and age of the deceased. (2001 In-house code § 11-40)

Chapter 12.24

ART IN PUBLIC PLACES

Sections:

12.24.010 Purpose.

12.24.020 Purchase of art to be installed.

12.24.030 Designated account.

12.24.040 Committee created.

12.24.050 Role of the committee.

12.24.010 Purpose.

A. The city recognizes that art is important to the quality of life in the community. This chapter is intended to encourage and enhance artistic expression and appreciation and to add value to the community through the acquisition, exhibition and maintenance of public art.

B. The principal goals of the art in public places programs are:

1. To enrich the public environment for both residents and visitors;

2. To increase public access to works of art and promote understanding and awareness of the visual arts in the public environment;

3. To promote a variety of artistic expression in the community;

4. To contribute to the community's civic pride in its cultural diversity;

5. To support visual art. (2001 In-house code § 34-1)

12.24.020 Purchase of art to be installed.

A. The governing body is authorized to purchase visual works of art to be installed and displayed in any outdoor city-owned area, on the exterior of any city-owned facility, and inside any city-owned facility in areas open to the public.

B. The purchase of art in public places will be approved by the governing body upon the recommendation of the art in public places committee. (2001 In-house code § 34-2)

12.24.030 Designated account.

A. Beginning fiscal year 2001, the city treasurer is authorized annually to create a designated account for the acquisition of art in public places, in the amount not to exceed seventy-five thousand dollars ($75,000.00). The source of funds will be the general fund or an account recommended by the mayor. The appropriation is contingent upon the availability of sufficient revenue. Determination of sufficient available revenue will be made by the mayor, with consent of the governing body.

B. Funds from the designated account may be used for the maintenance of public art work purchased by the city. (2001 In-house code § 34-3)

12.24.040 Committee created.

A. The art in public places committee is created and, pursuant to approval by the governing body, the city may enter into a written contract with a private entity to serve as the committee.

B. The committee will be composed of nine members who are interested in promoting visual arts.

C. Committee members will be appointed by the mayor subject to approval by the governing body. Each member will be appointed for a term of three years, except the initial appointments will be three members for one year, three members for two years and three members for three years.

D. The committee must meet at least quarterly. (Ord. No. 4247, § 1, 11-13-18; 2001 In-house code § 34-4)

12.24.050 Role of the committee.

A. The committee is to fulfill the goals set out in Section 12.24.010 of this code;

B. Recommend the purchase of works of art to the governing body for final approval;

C. Seek matching funds, donations and grants to assist in the operation of the art in public places program. (2001 In-house code § 34-5)

Chapter 12.28

RESERVED*

*Editor's note—Ord. No. 4622, § 1, adopted May 12, 2025, repealed Ch. 12.28, §§ 12.28.010—12.28.050, which pertained to downtown graffiti abatement pilot program and derived from Ord. No. 4259, § 1, adopted Feb. 11, 2019.

Title 13

PUBLIC SERVICES

Chapters:

13.04	**Public Utilities Generally**
13.08	**Water Service System**
13.12	**Sewer System**
13.16	**Reserved**
13.20	**Wastewater Treatment and Disposal**
13.24	**Floodplain and Surface Water Management**
13.28	**Urban Stormwater Quality Management and Discharge Control**
13.32	**Stormwater Runoff Management System**

Chapter 13.04

PUBLIC UTILITIES GENERALLY

Sections:

13.04.010 Definitions.
13.04.020 Compliance.
13.04.030 Damage and trespass.
13.04.040 Termination of service authorized.
13.04.050 Not available to debtors or violators of city ordinance.
13.04.060 Use assumed.
13.04.070 Temporary interruption of service and backflow of sewer system.
13.04.080 Resale.
13.04.090 Connections to service.
13.04.100 Separate connections.
13.04.110 Unlawful use.
13.04.120 Maintenance, repair, and replacement of privately owned water and sewer services.
13.04.130 Meters.
13.04.140 Consumer rates—Charges.
13.04.141 Fee assessment on monthly gross revenues.
13.04.150 Bills—Property owner responsible for payment.
13.04.160 When payment due.
13.04.170 Penalty for nonpayment.
13.04.180 Disconnection for nonpayment.
13.04.190 Voluntary discontinuance of service.

13.04.010 Definitions.

The following definitions shall apply in the interpretation and enforcement of this title:

"Board of public utilities," "board" or "BOPU," means the board of public utilities of the city of Cheyenne, Wyoming, or its duly authorized designee.

"Consumer" means the deeded property owner of record, his or her agent, or the person responsible for the payment of all charges for utility service as defined in Section 13.04.150 of this chapter.

"Natural outlet" means any outlet, including storm sewers and combined sewer outflows, into a watercourse, pond, ditch, lake or other body of surface or groundwater.

"PWW" means the public waterworks owned by the city and any structure, equipment or facilities used for the purpose of treating or conveying raw water or conveying potable water.

"Utility" means water, sanitary sewer and/or any other utility service furnished by the city or others to consumers. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-4)

13.04.020 Compliance.

Utilities furnished under this title shall be provided in compliance with federal, state and local laws, rules and regulations and applicable technical codes. (2001 In-house code § 44-5)

13.04.030 Damage and trespass.

It is unlawful for any person, without authority to do so, to tamper with any city utility infrastructure, or in any way molest, damage or trespass upon equipment or premises belonging to the city connected with any public utility service. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-6)

13.04.040 Termination of service authorized.

The BOPU has the right to disconnect and refuse to connect or reconnect any utility service for any of the following reasons:

A. Failure to meet applicable provisions of law;

B. Violation of rules and regulations pertaining to utility services;

C. Nonpayment of utility bills;

D. Willful or negligent waste of services due to improper maintenance or imperfect pipes, fixtures, appliances or appurtenances or due to any other reason;

E. Molesting, altering, or removing any meter, seal or other equipment controlling, regulating or measuring the supply of any utility service;

F. Theft, diversion or use of utility services without payment; or

G. Vacancy of premises. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-7)

13.04.050 Not available to debtors or violators of city ordinance.

The BOPU may decline or cease to furnish utility service to any persons in violation of any city ordinance or in debt to the city for any reason, except ad valorem taxes and special assessments. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-8)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.04.050 and in doing so changed the title of said section from "Not available to debtors" to "Not available to debtors or violators of city ordinance," as set out herein.

13.04.060 Use assumed.

All premises connected to any utility service shall be assumed to be using the utility service, and the owner or occupant shall be charged for service fees and all consumption so long as the premises remains connected to the utility service. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-9)

13.04.070 Temporary interruption of service and backflow of sewer system.

The BOPU reserves the right to cut off any utility service, without notice, in case of emergencies. When an interruption in service is necessary for the maintenance or improvement of a utility system, affected consumers will be notified as circumstances permit. Neither the BOPU nor the city shall assume or incur any liability for damage or property loss caused by an interruption in service or backflow of the sewer system. If there are multiple connections on a single service, the BOPU and the city shall not assume or incur any liability pursuant to Section 13.04.100 of this chapter. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-10)

13.04.080 Resale.

It is unlawful for any person to resell to others any utility service obtained from the city, except by special arrangement approved by the BOPU. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-11)

13.04.090 Connections to service.

Connections for any utility service shall be made only with the approval and under the supervision of the BOPU. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-12)

13.04.100 Separate connections.

Every building, structure or consumer in the city must have a separate utility service connection except for common ownership agreements approved by the BOPU. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-13)

13.04.110 Unlawful use.

No person, other than persons authorized by the BOPU, shall connect to, turn on, turn off or disconnect any utility service offered by the city, or remove, replace, or repair any equipment connected to such utility. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-14)

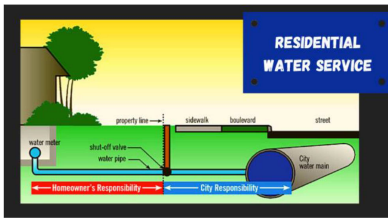
13.04.120 Maintenance, repair, and replacement of privately owned water and sewer services.

Water Service:

Any land requiring service by BOPU shall be served by at least a single, three-quarter inch diameter, privately owned water service connected to the BOPU potable water system. The owner of property supplied with BOPU water shall, at their own expense, keep the privately-owned water service line(s) within their premises in good order and repair and protected from freezing. The owner of any property supplied with BOPU water shall also, at their own expense, keep the water shut-off valve(s) accessible and in good order and repair. The property owner is responsible for the ownership, repair, and maintenance of their privately-owned water service line(s) and shut-off valve(s) beyond the water shut off (curb stop) through the structure(s) or premise(s) being served. Maintenance of the privately-owned water service line(s)

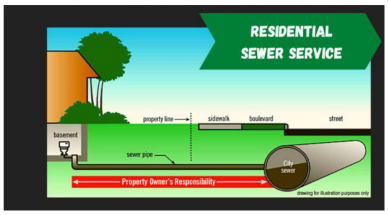
and shut-off valve(s) include, but are not limited to performing underground utility locates, valve exercising, cathodic protection, flushing, cleaning, disinfection, and removal of blockages that impede the design flow. Repair of the privately-owned water service line(s) and shut-off valve(s) includes, but are not limited to, repair or complete replacement of the water shut-off valve(s), point repairs and/or complete replacement of the water service line to restore the design flow.

Properties with service lines identified on the BOPU lead service line inventory as "lead," "galvanized requiring replacement," or "unknown" are encouraged to replace their lines in accordance with the BOPU's "Lead Service Line Replacement" plan. Customer's must notify the BOPU when replacing service lines.



Sewer Service:

Any land requiring service by BOPU shall be served by at least a single, four-inch diameter, privately-owned sewer service connected to the BOPU sanitary sewer system. The property owner shall be responsible for the ownership, maintenance, and repair of their privately-owned sanitary sewer service line(s) from the connection point at the BOPU sanitary sewer main (the Wye) through the structure(s) or premise(s) being served. Maintenance of the privately-owned sanitary sewer service line(s) include, but are not limited to, performing underground utility locates, regularly scheduled cleaning, root removal, grease removal, debris removal, and clearing of blockages that impede the design flow or that could be dislodged and/or discharged into the BOPU sewer main and possibly cause a blockage which could impact other property owners. If BOPU determines that a privately-owned sewer service is impacting the normal operations of the BOPU owned main, the BOPU may direct the property owner to perform the necessary maintenance at their cost. Repair of the privately-owned sanitary sewer service line(s) include, but are not limited to, installation of clean outs, point repairs and/or complete replacement of the sanitary sewer service line to restore the design flow. If the BOPU determines that a property owner has the potential to have a sewer system backup, a backwater valve shall be installed by the property owner at their cost. Sewer system backwater valves for privately owned sewer services shall be installed in accordance with the city's Uniform Plumbing Code.



A reporting property owner(s) or adjacent affected property owner(s) shall not hold the BOPU or city of Cheyenne liable for any damage or clean up resulting from a discovered or reported blockage or backup upon inspection of the sewer lines by BOPU, that the BOPU is not the responsible party or negligent. If the responsible party is a property owner, the affected property owner(s) shall pursue their own legal recourse for damages accrued by the responsible party where blockage or obstruction(s) was found. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-15)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.04.120 and in doing so changed the title of said section from "Maintenance" to "Maintenance, repair, and replacement of privately owned water and sewer services," as set out herein.

13.04.130 Meters.

Meters for measurement of BOPU utility services will be furnished, installed, and maintained by the BOPU and remain BOPU property. Access to the BOPU meter shall be allowed, at all times, for authorized BOPU personnel to examine me-

ters pursuant to Section 13.08.130 of this chapter. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-16)

13.04.140 Consumer rates—Charges.

Rates and charges for the consumption of BOPU utility services, charges and fees for connection, inspections, penalties, shutoff penalties, and meter installations shall be established by the BOPU, approved by the governing body, and filed with the city clerk and business office of the BOPU each year. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-17)

13.04.141 Fee assessment on monthly gross revenues.

Effective July 1, 2021 and continuing thereafter, the BOPU shall collect on behalf of the city a two percent fee on monthly gross revenues of water and sewage services and remit those fees to the city treasurer as a pass through. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4383, § 1, 6-28-21)

13.04.150 Bills—Property owner responsible for payment.

The deeded property owner or owners is responsible for the payment of all charges for utility services provided to the property during his or her ownership. On request of the deeded property owner or owners the BOPU will bill the occupant or tenant for such charges, but if such charges are not paid when due by the occupant or tenant, the owner or owners are responsible for such charges, and they shall be assessed to the property served. The property owner may request third party notification on all billing activity on rental properties. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-18)

13.04.160 When payment due.

Bills for BOPU utility services are due prior to midnight of the twentieth day following the billing date. If the due date falls on a Sunday or a legal holiday observed by the city, then the time for payment is extended to midnight of the following business day. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-19)

13.04.170 Penalty for nonpayment.

Failure to pay utility bills when due will result in the imposition of a late payment penalty established by the BOPU and approved by the governing body. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-20)

13.04.180 Disconnection for nonpayment.

If bills for utility services, fees, fines or penalties are not paid when due and are determined as delinquent, and after affording the deeded property owner of record an opportunity for review, the BOPU shall have the right to disconnect and discontinue all utility services furnished by the city to the consumer. If the consumer fails to request a review within seven days of notice of a delinquent bill and notice of the opportunity for review, and if payment is not made within fifteen (15) days from the date of the notice, the water shall be shut off and a late penalty, established by Section 13.04.170 of this chapter, must be paid in full before water service is resumed to the applicable property. If a review results in the determination of delinquency, and payment is not made within five days of the determination, the water shall be shut off and a late penalty and the outstanding amount due must be paid in full along with a return to compliance with all applicable city codes prior to resumption of service to the applicable property. Notice under this section is deemed received by the consumer within three days of mailing. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-21)

13.04.190 Voluntary discontinuance of service.

A. Consumers wishing to discontinue the use of water or sanitary sewer utility services shall give written notice to the business office of the BOPU.

B. Consumers wishing to discontinue or modify city sanitation services shall give written notice to the city sanitation department.

C. Failure to give the notice required by subsection A or B of this section shall render the consumer liable for payment of all utility service charges until such notice is given. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-22)

Chapter 13.08

WATER SERVICE SYSTEM

Sections:

13.08.010 Enforcement.

13.08.020 Application for water.

13.08.030 Penalty for taking water without making application or permit.

13.08.040 Unlawful activities.

13.08.050 Owners of steam boilers to keep emergency reserve of water.

13.08.060 Installation and maintenance—Generally.

13.08.070 Installation and maintenance—Supervision by BOPU.

13.08.080 Unauthorized alteration of conduit or curb stop prohibited.

13.08.090 Service lines.

13.08.100 Curb stops.

13.08.110 Cross-connections.

13.08.120 Separate meters required.

13.08.130 Meter inspection and testing.

13.08.140 Meter removal and reinstallation.

13.08.150 Tampering with meters or refusal of access to same.

13.08.160 Inside water meter sets.

13.08.170 Approval required for connections outside the city.

13.08.010 Enforcement.

The chief of police, the director, or office manager of the BOPU, their assistants, and the police and fire officers of the city shall take special heed in enforcement of the provisions of this title and may immediately shut off the water to the premises of any persons found violating any provisions. In the event a violator's water is shut off, the water service for such premises shall not be turned on again until the consumer pays a disconnect and a connection penalty established by the BOPU and approved by the governing body, in addition to all other utility charges due. Upon a subsequent violation of this chapter, the offender may be duly prosecuted in municipal court. Each day a violation continues shall be deemed a separate offense. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-25)

13.08.020 Application for water.

No person may knowingly, either directly or indirectly, take water from the PWW without first applying to the BOPU and receiving authorization in accordance with BOPU policy. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-26)

13.08.030 Penalty for taking water without making application or permit.

Persons knowingly taking water from the PWW without BOPU approval shall pay the BOPU for the estimated amount of water taken, plus a penalty established by the BOPU and approved by the governing body. The water shall be shut off from the premises of such persons until all charges and penalties are paid in full. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-27)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.08.030 and in doing so changed the title of said section from "Penalty for taking water without making application" to "Penalty for taking water without making application or permit," as set out herein.

13.08.040 Unlawful activities.

It is unlawful for any person, either alone or acting in concert with others, to:

A. Take water from the PWW or tamper with any and all appurtenance connected with the PWW, or in any way divert water from its course in the regular ditches or pipes supplying water to the city, without BOPU approval;

B. Use, own or possess a key to a curb stop or to any other stop or valve controlling city owned water mains or service pipes, over which the BOPU

has control and maintenance, except a licensed plumber, officer, agent, or employee of the BOPU may use, own, or possess such a key. No such key shall be loaned to any person for any purpose, nor shall any key be in the possession of any individual other than a licensed plumber, officer, agent, or employee of the BOPU;

C. Use water from the PWW or permit water to be drawn, unless the water passes through a meter supplied or approved by the BOPU for specific use, or a construction hydrant use permit has been obtained, except for the extinguishment of fires or if the person using the water is an authorized city or BOPU employee engaged in municipal work;

D. Refuse to permit the BOPU to enter any premises where utility services are being received or are assumed to be in use, at all reasonable times, to install, read, operate, monitor, inspect, repair, or remove any appurtenance used in connection with the supply, metering or monitoring of the utility service;

E. Operate fire hydrants or interfere with the PWW without first obtaining a permit, unless an authorized employee of the city engaged in municipal work;

F. Tap distribution mains or pipes of the water system or operate valves or make connections to the system, unless authorized by the BOPU;

G. Permit water from the PWW to be used for any purpose except upon the person's own premises or for the extinguishment of fires, unless authorized by the BOPU;

H. Permit a physical connection to be installed between a private water supply and the PWW;

I. Wastewater from the PWW, whether metered or not. No leaks in service pipes, connecting pipes or any water fixture are permitted. If leaks are not promptly repaired as directed by the BOPU so as to stop the waste of water, the water shall be shut off until the leak is repaired;

J. Bathe, wash, place or cast refuse or anything whatsoever in any ditch, reservoir or settling basin of the city, or discharge firearms over or near such ditches, reservoirs or settling basins; or

K. Place a sprinkler, hose, or other irrigating device on any premises so that it sprinkles or throws water upon, across or over any sidewalk, street, road, or alley. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-28)

13.08.050 Owners of steam boilers to keep emergency reserve of water.

Owners of steam boilers and/or hot water boilers taking water from the PWW are required to have tanks that contain an ample supply of water for ten (10) hours of boiler operation in case the water is shut off for any purpose. The city, the BOPU, or any employee of either shall not be responsible for any accidents or damages sustained by reason of failure to comply with this section or by reason of the water being shut off. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-29)

13.08.060 Installation and maintenance—Generally.

The water piping system of every new building and of all systems installed in an existing building shall be separate from and independent of any other building. All piping or plumbing installed by the owner shall comply with the requirements of this title and the applied international plumbing code per Cheyenne City Code 15.12. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-30)

13.08.070 Installation and maintenance—Supervision by BOPU.

The BOPU shall supervise and inspect the tapping of mains, insertion of corporation stops, and laying of service pipes to the curb stop to assure compliance with this title, BOPU rules and regulations, and all other requirements for utility service. The city building department inspects the service piping from the curb stop to the structure being served. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-31)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.08.070 and in doing so changed the title of said section from "Installation and maintenance—Supervision by board" to "Installation and maintenance—Supervision by BOPU," as set out herein.

13.08.080 Unauthorized alteration of conduit or curb stop prohibited.

No person may make or cause to be made any alteration or addition whatsoever in or about any conduit or curb stop of the PWW, whether on private property or not, without BOPU permission. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-32)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.08.080 and in doing so changed the title of said section from "Unauthorized alteration of conduit or water cock prohibited" to "Unauthorized alteration of conduit or curb stop prohibited," as set out herein.

13.08.090 Service lines.

All service lines shall meet the design and installation requirements of the BOPU Infrastructure Policy and Design Criteria (IPDC) manual for meter pits and service pipeline. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-33)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.08.090 and in doing so changed the title of said section from "Service pipes" to "Service lines," as set out herein.

13.08.100 Curb stops.

Curb stops shall be inserted in the service pipe in every case and protected by a box with a cast-iron covering having the word "water" or the letter "W" marked thereon. Such box shall be placed inside of the curb on city property within ten (10) feet of the lot line and placed as close to such lot line as is practical and the same must be visible and flush with the pavement, sidewalk, or each building shall be served by a separate service line, tap, and meter (per the BOPU IPDC manual for meter pits and service pipeline). (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-34)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.08.100 and in doing so changed the title of said section from "Stopcocks" to "Curb stops," as set out herein.

13.08.110 Cross-connections.

No cross-connections are permitted which, in the opinion of the BOPU, may contaminate the city water system. The BOPU may turn off water to premises with cross-connections until such cross-connections are removed.

A portion of the following document, as specifically referenced and designated, including any amendments to the portion of the document specified, as incorporated by the Wyoming Department of Environmental Quality, is hereby adopted, and made a part of this section of city code: Wyoming department of environmental quality water quality rules and regulations, Chapter 12, "Design and construction standards for public water supplies," Section 14(i), cross-connections. Said documentation is on file and open for public inspection in the office of city clerk. (Ord. No. 4416, § 1, 2-28-22; Ord. 3532 § 1 (part), 2003: 2001 In-house code § 44-35)

13.08.120 Separate meters required.

Not more than one residence, apartment house, business or other establishment shall be connected to one meter except for common ownership agreements approved by the BOPU or consecutive systems. A consecutive system is defined by 40 CFR Section 141.2 as a public water system that receives some or all of its finished water from one or more wholesale systems. Delivery may be through a direct connection or through the distribution system of one or more consecutive systems. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-36)

13.08.130 Meter inspection and testing.

When deemed advisable or necessary by the BOPU, water meters will be inspected and tested free of charge; provided, that when meter inspection and testing is made on demand of the owner, a charge as established by the BOPU and approved by the governing body may be imposed for each inspection. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-37)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.08.130 and in doing so changed the title of said section from "Inspection and testing" to "Meter inspection and testing," as set out herein.

13.08.140 Meter removal and reinstallation.

The BOPU shall, upon request of a property owner, remove a meter from service. A charge established by the BOPU and approved by the

governing body shall be paid by the owner if the meter is reinstalled. This charge does not apply to properties having separate irrigation meters where the owner pays minimum charges for each billing period; provided, that removal of such meters to protect against damage by freezing shall be left to the discretion of the BOPU. Minimum charges, including the charge for sewer service and garbage removal, will be billed to each property owner on a monthly basis unless the water has been turned off by the BOPU and the meter removed. Unless the new owner or occupant agrees to assume charges from the date of the final reading for a former owner or occupant, the water shall be turned off and the meter removed at the time of the final reading. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-38)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.08.140 and in doing so changed the title of said section from "Removal and reinstallation" to "Meter removal and reinstallation," as set out herein.

13.08.150 Tampering with meters or refusal of access to same.

No person shall in any way tamper with any water meter installed in the city or refuse access to a meter by authorized city or BOPU personnel. Meters shall be accessible for reading during reasonable hours. If, in the opinion of the BOPU, any meter has been tampered with, if access to any meter is denied, or if a reading could not be obtained due to the absence of occupants or for other reasons, the quantity of water delivered during the month for which no reading was obtained will be estimated by the BOPU. If in any succeeding months tampering reoccurs or a reading cannot be obtained, the BOPU may shut off the delivery of water to the premises, in which case the consumer shall be subject to the shutoff penalty pursuant to Section 13.04.140 of this chapter. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-39)

13.08.160 Inside water meter sets.

All inside installation of water meters for three-quarter inch and one-inch meters shall be plumbed for a horizontal meter set. The rough plumbing shall comply with the BOPU standard drawing No. 02665-16B. The meter space shall be preceded by an approved stop valve and pressure-reducing valve. The meter shall be installed within four feet of pipe length from where the service enters the building. Following the meter space shall be an approved double check valve and an expansion tank with a two and one-half-gallon capacity. (Ord. No. 4416, § 1, 2-28-22; Ord. 3532 § 1 (part), 2003)

13.08.170 Approval required for connections outside the city.

No water connection permit will be issued to serve any property located outside the corporate limits of the city, except with specific approval of the BOPU. Connections must be authorized by an outside user agreement approved by the BOPU and a resolution approved by the governing body and are subject to terms, conditions and fees established by the BOPU. (Ord. No. 4416, § 1, 2-28-22)

Chapter 13.12

SEWER SYSTEM

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13.12.010 Board of Public Utilities (BOPU) in charge of system.

The entire sanitary sewer system of the city shall be constructed, managed, operated, maintained, and controlled by the BOPU under the provisions of Wyo. Stat. Sections 15-7-401 through 412 and 15-7-501 through 514. Refer to Section 13.04.120 of this chapter which explains the property owner's sewer service responsibility and maintenance. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-40)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.12.010 and in doing so changed the title of said section from "Board in charge of system" to "Board of Public Utilities (BOPU) in charge of system," as set out herein.

13.12.020 Sewer connection required.

All occupied property in the city that is capable of being served by the sanitary sewer system shall be connected with the system. A written or printed notice to connect with the system shall be given by the city health officer to all owners or occupants of properties which are not connected with the system but which are capable of being connected therewith, and unless the time for connection is extended by the governing body, all connections shall be made within thirty (30) days after the mailing of a notice. Notwithstanding the requirements imposed by this section, an occupied property in the city that is capable of being served by the sanitary sewer system may be granted a connection exception by the governing body. (Ord. No. 4454, § 1, 8-22-22; 2001 In-house code § 44-41)

13.12.030 Deposit of excrement, garbage or objectionable waste prohibited.

No person shall place, deposit, or permit to be placed or deposited in any unsanitary manner, on public or private property within the city or in any area under the city's jurisdiction, any human or animal excrement, garbage, objectionable waste, or pollutants as defined in Section 13.20.030 of this chapter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4049, §§ 1, 2, 12-22-14; 2001 In-house code § 44-42)

13.12.040 Outhouses and cesspools declared nuisances—Abatement of same.

All outhouses, septic tanks, cesspools, and all means of sewage disposal other than the city sewer system are declared to be nuisances endangering the peace, health, and lives of the inhabitants of the city and must be abated. The BOPU shall take such steps as may be necessary to abate such nuisances. Notwithstanding the requirements imposed by this section, an abatement exception may be granted to the property by the governing body upon the governing body determining that the exception will conform with the criteria of subsection 4.1 of city contract #2076 regarding implementation of the findings of the 201 Facilities Plan Final Report. (Ord. No. 4454, § 1, 8-22-22; Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-43)

13.12.050 Discharge of unpolluted waters.

A. No person may discharge or cause to be discharged any unpolluted waters such as stormwater, groundwater, roof runoff, subsurface drainage, or cooling water to sanitary sewers.

B. Storm waters and all other unpolluted drainage must be discharged to sewers specifically designated as storm sewers, or to a natural outlet approved by the BOPU or other regulatory agency.

C. Unpolluted industrial cooling water or process waters may be discharged, upon approval of the BOPU and other regulatory agencies, to a storm sewer or natural outlet. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-44)

13.12.060 Disposal of sewage to storm sewers or natural outlets prohibited.

It is unlawful to discharge to any natural outlet or storm sewer within the jurisdiction of the city any sewage or other polluted waters. (2001 In-house code § 44-45)

13.12.070 Trucked or hauled nonhazardous liquid waste.

The discharge of trucked or hauled nonhazardous liquid waste is prohibited except at designated

discharge points approved by the BOPU. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-46)

13.12.080 Adoption of rules and regulations.

The governing body or BOPU may make rules and regulations consistent with the provisions of these sections pertaining to sanitary sewers and take and direct all steps to carry out the intent and purpose of these sections. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-47)

13.12.090 Building sewers and connections—Standards and specifications.

The size, slope, alignment, and materials used in constructing building sewers, and the methods used in excavating, placing pipe, jointing, testing, and backfilling trenches shall conform to the city building and plumbing codes, and to the BOPU Infrastructure Policy and Design Criteria (IPDC) manual. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-48)

13.12.100 Class of sewer service permits.

There are two classes of sewer service permits. One class is for residential, commercial, minor industrial and institutional service and the other is for large industrial users. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-49)

13.12.110 Application forms for sewer service permits.

The owner of property or his or her agent must apply for a sewer service permit on a form furnished by the BOPU. This form may be combined with forms for other permits required by the BOPU. The permit application must be supplemented by plans, specifications or other information considered pertinent by the BOPU. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-50)

13.12.120 Approval required for connections outside the city.

No sewer connection permit will be issued to serve any property located outside the corporate limits of the city, except with specific approval of the BOPU. Connections must be authorized by an outside user agreement approved by the BOPU and a resolution approved by the governing body and are subject to terms, conditions and fees established by the BOPU. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-51)

13.12.130 Sewer connection requirements.

The connection of the building sewer into the public sewer must conform to building and plumbing codes, this title and other applicable rules and regulations. In the absence of code provisions, the materials and procedures set forth in the appropriate specifications adopted by the BOPU apply. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-52)

13.12.140 Existing building sewers.

Existing building sewers may be used with new buildings only when found on examination and testing by the BOPU to meet the conditions of this title. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-53)

13.12.150 Owner responsible for costs.

Costs and expenses incident to the installation, connection and maintenance of the building sewer services must be borne by the owner pursuant to Section 13.04.120 of this chapter. Owners must indemnify the city and the BOPU from any loss or damage that may directly or indirectly be caused by the installation, operation, and maintenance of building sewers. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44—54)

13.12.160 Excavations.

Excavation for building sewer service installations must be guarded with barricades and lights to protect the public. Permittees must agree to assume responsibility for any public liability or property damage which may result from the work. Streets, sidewalks, parkways, or other public property disturbed in the course of the work must be restored to the design standards and standard specifications currently in effect. Permits for build-

ing sewer services must also be considered as encroachment permits as required in other sections of the city code. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-55)

13.12.170 Maximum tap size and tap connections.

No tap may be cut into an existing sewer main. Maximum tap size shall be four-inch diameter when connecting into the mainline. All new taps shall have a service "Y" installed in the existing or new main. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-56)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.12.170 and in doing so changed the title of said section from "Maximum tap size" to "Maximum tap size and tap connections," as set out herein.

13.12.180 Manhole connections.

Any sewer connection six inches or larger must be made at an existing manhole by means of installation of a manhole. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-57)

13.12.190 Inspection of sewer service connection.

Applicants for sewer service permits must notify the BOPU when the building sewer is ready for inspection and connection to the public sewer. The connection must be made during the presence of and inspected by the BOPU. Connections may not be backfilled until the BOPU has approved the connection. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-58)

13.12.195 Unauthorized and prohibited discharges.

A. No user shall contribute or cause to be contributed, directly or indirectly, to the POTW any pollutant or wastewater which will pass through or cause interference, as defined in Section 13.20.030 of this Chapter, with the operation or performance of the POTW. These general prohibitions and the specific prohibitions in subsection B below apply to all the users of the POTW, whether or not they are subject to pretreatment standards or requirements as defined in Section 13.20.030 of this chapter.

B. Specific Prohibitions. No user shall contribute the following substances to the POTW:

1. Any substances which by reason of their nature or quantity may create a fire or explosion hazard or be injurious to the POTW or to the operation of the POTW, including, but not limited to, waste streams with a closed cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Celsius using the test methods in 40 CFR Section 261.21;

2. Any solid or viscous substances which may cause obstruction to sewer flow or other interference with the operation of the POTW such as, but not limited to, grease, garbage with particles greater than one-half inch in any dimension, or any material which can be disposed of as trash;

3. Any biological, chemical, or enzyme product, used on its own or in conjunction with other substances, that causes the liquefaction or emulsification or the act of liquifying or emulsifying fats, oil or grease;

4. Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause pass through or interference as defined in Section 13.20.030 of this chapter;

5. Any wastewater having a pH less than five or greater than eleven (11), or having any other corrosive property capable of causing damage or hazard to structures, equipment or personnel of the POTW;

6. Any substance which may cause a public nuisance, cause hazard to life or prevent entry into the sewers for maintenance and repair;

7. Heated substances in amounts which will prevent entry into the sewer system of authorized personnel or will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature at the POTW treatment plant exceeds forty (40) degrees Celsius (one hundred four (104) degrees Fahrenheit). A limit may be required in particular situa-

tions where the temperature has caused or has potential to cause pass through of an interceptor, pass through or interference in the POTW;

8. Any pollutant which results in the presence of toxic gases, vapors or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

9. Any trucked or hauled pollutants, except at discharge points designated by the BOPU;

10. Any pollutant, including oxygen demanding pollutants, released in a discharge at a flow rate and/or concentration (including any slug load) which may cause interference to the POTW;

11. Wastewater which imparts color which cannot be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts color to the treatment plant's effluent, thereby violating the BOPU's Wyoming Pollutant Discharge Elimination System (WYPDES) permit;

12. Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

13. Stormwater, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted wastewater, unless specifically authorized by the BOPU;

14. Sludges, screenings, or other residues from the pretreatment of industrial wastes;

15. Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail toxicity test;

16. Detergents, surface-active agents, or other substances that might cause excessive foaming in the POTW;

17. Bulk, expired, outdated, or concentrated prescription and non-prescription drugs, that will cause or contribute to passthrough or interference.

C. No chemicals, or substances, including, but not limited to, paints, solvents, boiler or water treatment chemicals, sludges, chemicals, or wastes shall be stored in proximity to a floor drain or other sewer openings unless secondary containment is provided or there are physical barriers to entry to the wastewater collection system. The storage of any chemicals, materials, substances, or wastes that leak or have potential to leak or discharge into the POTW which may create an explosion hazard or in any way have a deleterious effect to the POTW or constitute a nuisance or a hazard to POTW personnel, the general public, the environment, or the receiving stream shall be prohibited. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4049, §§ 1, 3, 12-22-14)

13.12.200 Reserved.

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, repealed § 13.12.200, which pertained to grease, oil and sand interceptors and derived from 2001 In-house code § 44-59.

13.12.210 Location of grease interceptors.

Within two weeks of notification by the BOPU, owners of buildings or premises where grease interceptors are located shall submit in writing to the BOPU the number and location of every grease interceptor that serves the owner's building or premises. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-60)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.12.210 and in doing so changed the title of said section from "Location of traps and interceptors" to "Location of grease interceptors," as set out herein.

13.12.220 Reserved.

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, repealed § 13.12.220, which pertained to cleaning required—records of cleaning—rules and regulations and derived from 2001 In-house code § 44-61.

13.12.230 Authority to disconnect water service.

A. If the BOPU finds that a grease interceptor, or lack of a grease interceptor, is causing a failure of a private or public sanitary sewer, the BOPU may have the water or sewer service of the offending property terminated, suspended, or disconnected after notice and an opportunity to appeal the proposed action is given to the occupant and offending party. Termination, suspension, or dis-

connection of the water or sewer service will continue until the grease interceptor is functioning or installed in an approved manner.

B. In the event the BOPU finds it necessary to disconnect water service to a building or premises, it must immediately notify the city/county health department. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-62)

13.12.240 Right of entry, inspection, and sampling.

The BOPU shall have the right to enter the premises of any user to determine whether the user is complying with all requirements of the chapter, or order issued hereunder. Users shall allow BOPU access at all times to all parts of the premises for the purpose of inspection, sampling, and including use of digital photography, recording equipment, and the performance of any additional duties. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-63)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.12.240 and in doing so changed the title of said section from "Right of entry" to "Right of entry, inspection, and sampling," as set out herein.

13.12.250 Unsafe grease interceptors.

No person may allow any grease interceptor to become unsafe, unsanitary or a menace to life, health, or property. When an existing grease interceptor system is determined by the BOPU to be damaged, unsafe, unsanitary or a menace to life, health, or property, it must be repaired, reconstructed, or replaced to eliminate or alleviate the unsafe or unsanitary condition. Any repair, reconstruction or replacement of grease interceptors must conform to the Uniform Plumbing Code. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-64)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.12.250 and in doing so changed the title of said section from "Unsafe traps and interceptors" to "Unsafe grease interceptors," as set out herein.

13.12.260 Reserved.

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, repealed § 13.12.260, which pertained to screens and garbage grinders and derived from 2001 In-house code § 44-65.

13.12.270 Governing body may order construction.

The governing body may order the construction of sewers in streets or alleys as necessary. (2001 In-house code § 44-66)

13.12.280 City engineer to file assessment roll.

Upon completion of construction of sewer improvements, the city engineer shall prepare and file with the city clerk a certified assessment roll, which shall cover all costs in connection with the improvement, including all costs of construction, together with the expenses of engineering, inspection, advertising and collection of assessments. (2001 In-house code § 44-67)

13.12.290 Property to be assessed.

Assessments under this title shall be made on all lots or portions of lots to the center of the block, or, if the sewer is constructed in an alley, then on all lots and portions of lots to the nearest street or avenue, on each side, the distance improved or to be improved, according to the area of the lots or portions of lots, without regard to the buildings or improvements located on the lots. (2001 In-house code § 44-68)

13.12.300 Computation of assessment.

Amounts to be assessed against each property shall be determined by dividing all the expenses of the sewer construction among all the property to be benefitted by such construction. The amount assessed shall be in proportion of the number of square feet in each property to the entire number of square feet assessed for the expense of the sewer construction. (2001 In-house code § 44-69)

13.12.310 Hearings on assessment roll—Action on same by governing body.

A. Notice. Upon filing of the certified assessment roll with the city clerk, the governing body shall fix a date for a hearing upon such roll before the governing body and direct the city clerk to give notice. Notice must specify the time and place of hearing on the roll and notify all persons who may

desire to object to make their objections in writing and to file them with the city clerk, at or prior to the date fixed for the hearing. Notice must be published at least two times in the official daily newspaper of the city; provided, that at least fifteen (15) days shall elapse between the date of last publication and the date fixed for such hearing.

B. Objections. Every objection must clearly state the grounds for the objection. Objections not made within the time or manner herein prescribed are conclusively presumed to have been waived.

C. Hearing. At the time and place specified, the governing body will sit as a board of equalization for the purpose of considering the assessment roll and any objections and shall correct, revise, raise, lower or change such roll or any part or set aside the roll and order that assessments be made de novo as the governing body deems equitable.

D. Amended Roll. Whenever any assessment roll is amended so as to raise any assessments or to include omitted property, a new time and place for hearing shall be fixed for amendments to the roll. Notice will be given the same as for the original hearing. Subsequent notice and hearing shall not apply to any property originally entered upon the roll and upon which assessment shall not be raised, unless objections are filed at or prior to the time set for the original hearing upon the roll.

E. Confirmation. The assessment roll, upon approval by the governing body, must be confirmed by resolution or ordinance and certified by the city clerk, who will transmit it to the city treasurer, directing him or her to collect such assessments within thirty (30) days. (2001 In-house code § 44-70)

13.12.320 Compilation of liens—Interest on unpaid assessment or balances.

At the end of the thirty (30) days provided for the city treasurer to collect assessments, or as soon thereafter as is feasible, a lien shall be compiled, signed by the mayor, covering all unpaid assessments or portions thereof. The lien will be filed in the office of the county clerk. Thereafter, all such assessments or unpaid balances thereon shall draw interest at the rate of six percent per annum. Such interest shall be computed at the rate of one and one-half percent quarterly. Notices shall be sent to the property owner each quarter, showing the increased amount due on each such account as new interest is added. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-71)

13.12.330 Applicability of state law.

The provisions of state law governing local improvements govern, so far as applicable, in all details not otherwise provided by this title for the installation of sewers. (2001 In-house code § 44-72)

13.12.340 Connections—Applicability.

Sanitary sewers or sewerage systems, including the portion of the individual building sewer service from the property line to the public sewerage system, to be connected to the city's sanitary sewerage system must strictly conform to this title. The construction of a sewerage facility outside of the corporate limits of the city where such system is to be connected to the city system shall be in strict conformity with the provisions of this title. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-73)

13.12.350 Materials and installation specifications.

Plans and specifications for the construction, alteration, repair and installation of sanitary sewer connections, and the materials to be used, shall be promulgated by the BOPU and filed in the business office. All pipe installed, under normal conditions, for use as a sanitary sewer, up to and including twenty-four (24) inches in diameter, shall be polyvinyl chloride (PVC) pipe meeting the standards and specifications of the BOPU Infrastructure Policy and Design Criteria (IPDC) manual. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-74)

13.12.360 Permits for construction of sewage systems, facilities, connections and appurtenances required.

No work may be commenced on the construction of a proposed sewerage system, sewerage fa-

cility, connection, or appurtenance thereto, until a permit to construct the same has been issued by the BOPU. Such permits shall specify with reasonable certainty the locations and extent of the proposed system for which it is issued, and shall conform with BOPU policy, procedure, and specifications of the BOPU IPDC manual. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-75)

13.12.370 Bond required.

A bond may be required at the discretion of the BOPU. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-76)

13.12.380 Workmanship—Inspection of work.

The permittee is required to submit detailed written specifications covering proposed methods of trenching, laying, and backfilling to the BOPU for approval. Specifications must be based upon good and acceptable engineering standards of construction and shall meet the standards and specifications established by the BOPU. Permittees shall guarantee to the BOPU that the trenching will be properly and safely done. The laying of pipe shall be properly accomplished as to pipe bedding, laying to line, grade, and tightness, backfilling around the pipe and compaction in the backfilling of the trench. Specifications shall properly address all phases of the installation of all appurtenances to sewerage facilities. When instructed by the BOPU, the permittee will not proceed with any phase of construction without a BOPU inspector being notified in advance of construction. All sewer lines must be laid from a manhole or other interception point of an existing sewer in the upgrade direction progressing from the lowest point to the terminus at the highest point. No exceptions to this rule will be allowed. Individual building stub-ins must be laid from the main sewer line toward the individual service in an upgrade direction. Inspections of all sewer lines will be performed by swabbing the sewer lines for cleanliness, lamping for straightness and approved testing for tightness. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-77)

13.12.390 Exceptions to permit, bond and workmanship requirements.

Sewerage facilities constructed by the BOPU are exempt from Sections 13.12.350 through 13.12.380 of this chapter. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-78)

13.12.400 Penalty for violations—Denial or revocation of permit.

Persons who violate or fail to comply with any provision of this title shall, upon conviction, be punished as provided by the general penalty code provision of the city code. Each day any violation exists constitutes a separate offense. The BOPU may deny an application for a permit when the applicant is either in default or in danger of defaulting on an existing permit. The BOPU also is authorized to suspend or revoke existing permits if the permittee fails to comply with this title or instructions from the BOPU. (Ord. No. 4416, § 1, 2-28-22; 2001 In-house code § 44-79)

Chapter 13.16

RESERVED*

*__Editor's note__—Ord. No. 4602, § 2, adopted Dec. 9, 2024, repealed Ch. 13.16, §§ 13.16.010—13.16.030, which pertained to storm sewers and derived from 2001 In-house code §§ 44-80—44-82.

Chapter 13.20

WASTEWATER TREATMENT AND DISPOSAL*

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***Editor's note**—Ord. No. 4002, § 1, approved October 28, 2013, repealed the former Chapter 13.20, §§ 13.20.010—13.20.460, and enacted a new Chapter 13.20 as set out herein. The former Chapter 13.20 pertained to similar subject matter and derived from the 2001 In-house code §§ 45-1—45-46.

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Article 1. General Pretreatment Requirements

13.20.010 Purpose and authority.

The purpose of this chapter is:

A. To establish uniform requirements for direct and indirect industrial users to the wastewater collection and treatment system owned and operated by the city of Cheyenne through its BOPU pursuant to Title 13 of City Code and to comply with applicable state and federal laws, including the Clean Water Act (33 United States Code [U.S.C.] Section 1251 et seq., and the General Pretreatment Regulations (40 CFR Part 403)). The objectives of this chapter are:

1. To prevent the introduction of pollutants into the publicly owned treatment works (POTW) that will interfere with its operation;

2. To prevent the introduction of pollutants into the POTW that will pass through the POTW, inadequately treated, into receiving waters, recycle or reuse systems, or otherwise be incompatible with the POTW;

3. To protect both POTW personnel who may be affected by wastewater and sludge in the course of their employment and the general public;

4. To promote reuse and recycling of industrial wastewater and sludge from the POTW;

5. To provide for fees for the equitable distribution of the cost of operation, maintenance, and improvement of the POTW; and

6. To enable the BOPU to comply with its Wyoming Pollutant Discharge Elimination System Permit (WYPDES) conditions, sludge use and disposal requirements, and any other federal or state laws to which the POTW is subject.

B. The provisions of this chapter shall apply to all industrial users of the POTW; authorizes the issuance of individual wastewater discharge permits; provides for monitoring, compliance, and enforcement activities; establishes administrative review procedures, and requires industrial user reporting. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.020 Administration.

Except as otherwise provided herein, the BOPU shall administer, implement, and enforce the provisions of this chapter. Any powers granted to or duties imposed upon the BOPU may be delegated to a duly authorized BOPU employee. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.030 Definitions.

Unless a provision explicitly states otherwise, the following definitions of terms and phrases, as used in this chapter, shall apply in the interpretation and enforcement of this chapter:

"5-Day Biochemical Oxygen Demand" (BOD) means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five days at twenty (20) degrees centigrade, usually expressed as a concentration (e.g., mg/L).

"Act" or "the Act" means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. Section 1251 et seq.

"Approval authority" means the Region 8 EPA Administrator or his or her duly authorized representative.

"Authorized representative of the industrial user" or "duly authorized representative of the industrial user" means:

1. If the industrial user is a corporation:

a. The president, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

b. The manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary

systems are established or actions taken to gather complete and accurate information for individual wastewater discharge permit [or general permit] requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

2. If the industrial user is a partnership or sole proprietorship:

a. A general partner or proprietor, respectively.

3. If the industrial user is a limited liability company (LLC):

a. The managing member(s) of the LLC.

4. If the industrial user is a federal, state, or local governmental facility:

a. A director or highest official appointed to oversee the operation and performance of the activities of the government facility.

5. The representatives described in subdivisions (1)—(4) above shall designate a duly authorized representative of the authorization in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the BOPU. Information is to be submitted to the BOPU, in writing, within two weeks of request from the BOPU.

6. If an authorization under subdivision (5) of this section is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of subdivision (1)—(5) of this section must be submitted in writing to the BOPU prior to or together with any reports to be signed by an authorized representative.

"Best management practice (BMP)" or "best management practices" (BMPs) means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in 40 CFR Section 403.5(a)(1) and (b), and Section 13.20.050 of this chapter. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage. BMPs shall be considered local limits and pretreatment standards for the purposes of these regulations and Section 307(d) of the Act, as specified at 40 CFR Section 403.5(c)(4).

"BOPU" means the Board of Public Utilities of the city of Cheyenne, Wyoming, or its designated representative.

"Categorical pretreatment standard" or "categorical standard" means any regulation containing pollutant discharge limits promulgated by EPA in accordance with Sections 307(b) and (c) of the Act (33 U.S.C. Section 1317) that apply to a specific category of industrial users and that appear in 40 CFR Chapter I, Subchapter N, Parts 405-471.

"Categorical industrial user" means an industrial user subject to a categorical pretreatment standard or categorical standard.

"Chemical oxygen demand" or "COD" means a measure of the oxygen required to oxidize all compounds, both organic and inorganic, in water.

"City" means the city of Cheyenne, a municipal corporation of the state of Wyoming, and its board of public utilities.

"Daily maximum" means the arithmetic average of all effluent samples for a pollutant collected during a calendar day.

"Daily maximum limit" means the maximum allowable discharge limit of a pollutant during a calendar day. Where daily maximum limits are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where daily maximum limits are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

"Director" means the director of the BOPU, as defined in Wyoming Statutes, who shall have gen-

eral supervision over all activities, property, and employees of the BOPU, or his or her authorized representative.

"Environmental protection agency" or "EPA" means the United States Environmental Protection Agency or, where appropriate, the regional water management division director, the regional administrator, or other duly authorized official of said agency.

"Existing source" means any source of discharge that is not a "new source."

"Flow measurement device" means an instrument or apparatus for measuring the quantity of water or wastewater.

"Grab sample" means a sample that is taken from a waste stream without regard to the flow in the waste stream and over a period of time not to exceed fifteen (15) minutes.

"Indirect discharge" or "discharge" means the introduction of pollutants into the POTW from any nondomestic source, regulated under Section 307 (b), (c) or (d) of the Act including holding tank waste from a non-domestic user discharged into the POTW.

"Industrial pretreatment program" or "IPP" means the part of the BOPU that is the local control authority for the U.S. Environmental Protection Agency (EPA). The program is responsible for enforcing the local and federal regulations that are designed to protect the POTW's infrastructure, reduce pollutant levels discharged by industries and other nondomestic wastewater sources prior to entering the BOPU sewer system, and the environment.

"Industrial user" means a source of indirect discharge or any other industrial or commercial facility or business that has a sewer connection to the POTW, whether the industrial user discharges non-domestic water.

"Instantaneous limit" means the maximum or minimum concentration of a pollutant or pollutant property allowed to be discharged at any time as determined by use of a grab sample or direct measurement.

"Interference" means a discharge that, alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the POTW, its treatment processes or operations or its sludge processes, use or disposal; and therefore, is a cause of a violation of the BOPU's WYPDES permit, as defined below, or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued there under, or any more stringent state or local regulations: Section 405 of the Act; the Solid Waste Disposal Act, including Title II commonly referred to as the Resource Conservation and Recovery Act (RCRA); any state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the Solid Waste Disposal Act; the Clean Air Act; the Toxic Substances Control Act, and the Marine Protection, Research, and Sanctuaries Act.

"Local limit" means specific discharge limits developed and enforced by the BOPU upon industrial users to implement the general and specific discharge prohibitions listed in Section 13.20.050 of this chapter.

"Medical waste" means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes, in amounts that will cause or contribute to pass through or interference.

"Monthly average" means the sum of all daily discharges measured during a calendar month divided by the number of 'daily discharges' measured during that month.

"Monthly average limit" means the highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

"National pretreatment standard," "pretreatment standard" or "standard" means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b)

and (c) of the Act (33 U.S.C. Section 1317) which applies to industrial users. This term includes prohibitive discharge limits established pursuant to Section 13.20.050 of this chapter.

"New source" means:

1. Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Act that will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

a. The building, structure, facility, or installation is constructed at a site at which no other source is located; or

b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

c. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

2. Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of paragraphs (1)(b) or (c) above but otherwise alters, replaces, or adds to existing process or production equipment.

3. Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

a. Begun, or caused to begin, as part of a continuous onsite construction program:

i. Any placement, assembly, or installation of facilities or equipment; or

ii. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

b. Entered into a binding contractual obligation for the purchase of facilities or equipment which is intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this paragraph.

"Noncontact cooling water" means water used for cooling that does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

"North American Industry Classification System Code" or "NAICS Code" means the industrial classification scheme developed by the United States (U.S.) Office of Management and Budget used to classify business establishments for the collection, tabulations, presentation, and analysis of statistical data describing the U.S. economy. Also, see "Standard Industrial Classification Code."

"Operation and maintenance" or "O&M" means all expenditures made during the useful life of the treatment works for materials, labor, administration and other items which are necessary for managing, operating and maintaining the treatment works. The term "operation and maintenance" includes the costs of replacing equipment, accessories, and appurtenance of treatment works.

"Pass through":

1. Means a discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the BOPU's WYPDES Permit as defined below, including an increase in the magnitude or duration of a violation.

2. Means a failure of pretreatment equipment, devices or technology to capture prohibited waste

from an industrial user's discharge, which directly or indirectly causes the discharge of the prohibited waste into the POTW.

"Person" means any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns. This definition includes all federal, state, and local governmental entities.

"pH" means a measure of the acidity or alkalinity of a solution, expressed in standard units.

"Pollutant" means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

"Pretreatment" means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to, or in lieu of, discharging or otherwise introducing such pollutants into the POTW. This reduction or alteration can be obtained by physical, chemical, or biological process changes or by other means except as prohibited by 40 CFR Section 403.6(d), unless authorized by an applicable pretreatment standard. Appropriate pretreatment technology includes control equipment, such as equalization tanks or facilities, for protection against surges or slug loadings that might interfere with or otherwise be incompatible with the POTW. However, where wastewater from a regulated process is mixed in an equalization facility with unregulated wastewater or with wastewater from another regulated process, the effluent from the equalization facility must meet an adjusted pretreatment limit calculated in accordance with 40 CFR Section 403.6(e).

"Pretreatment requirements" means any substantive or procedural requirement related to pretreatment imposed on an industrial user, other than a national pretreatment standard.

"Prohibited discharge standards" or "prohibited discharges" means prohibitions against the discharge of certain pollutants as specified in Section 13.20.050 of this chapter.

"Publicly owned treatment works" or "POTW" means a treatment works, as defined by Section 212 of the Act (33 U.S.C. Section 1292), which is owned by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances, which convey wastewater to or from a treatment plant. The term also means the municipality as defined in section 502(4) of the Act, which has jurisdiction over the indirect discharges to and the discharges from such a treatment works.

"Sector control program" is a program designed to control specific pollutants from industrial users with similar operations, waste generation, or treatment through the implementation of pretreatment standards and requirements, including best management practices. The sector control program requirements may be found in Section 13.20.545 of this chapter.

"Sewer use surcharge" means a monthly charge to industrial users of the POTW based on sewage volume, strength and/or flow.

"Septic tank waste" means any sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

"Sewage" means human excrement and gray water (household showers, dishwashing operations, etc.).

"Significant industrial user" or "SIU" means, except as provided in subdivision (3) and (4) below:

1. An industrial user subject to a categorical pretreatment standard under 40 CFR Section 403.6 and 40 CFR chapter I, subchapter N; or

2. An industrial user that:

a. Discharges an average of twenty-five thousand (25,000) gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blow down wastewater);

b. Contributes a process waste stream which makes up five percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

c. Is designated as such by the BOPU on the basis that it has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, in accordance with 40 CFR Section 403.8(f)(6).

3. The BOPU may determine that an industrial user subject to a categorical pretreatment standard is a non-significant categorical industrial user rather than a significant industrial user on a finding that the industrial user never discharges more than one hundred (100) gallons per day of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blow down wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

a. The industrial user, prior to BOPU's finding, has consistently complied with all applicable categorical pretreatment standards and requirements;

b. The industrial user annually submits the certification statement required in Section 13.20.530.B of this chapter together with any additional information necessary to support the certification statement; and

c. The industrial user never discharges any untreated concentrated wastewater.

4. Upon a finding that an industrial user meeting the criteria in subdivision (2) above has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the BOPU may at any time, on its own initiative or in response to a petition received from an industrial user, and in accordance with procedures in 40 CFR 403.8(f)(6), determine that such industrial user should not be considered a significant industrial user.

"Slug load" or "slug discharge" means any discharge at a flow rate or concentration, which could cause a violation of the prohibited discharge standards in Section 13.20.050 of this chapter. A slug discharge is any discharge of a non-routine, episodic nature, including, but not limited to, an accidental spill or a non-customary batch discharge, which has a reasonable potential to cause interference or pass through, or in any other way violate the POTW's regulations, local limits or permit conditions.

"Standard industrial classification" means a classification pursuant to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget 1972, as amended. Also, see "North American Industry Classification System Code."

"State" means the state of Wyoming.

"Stormwater" means any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snowmelt.

"Toxic pollutant" means any pollutant or combination of pollutants identified as toxic pursuant to Section 307(a) of the Act or other federal statutes or in regulations promulgated by the state under state law.

"Total suspended solids" or "TSS" means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater, or other liquid, and that is removable by laboratory filtering in accordance with procedures approved in 40 CFR Part 136, as amended.

"Water reclamation division manager" means the person designated by the BOPU and reports to the director and who supervises the operation of the POTW, and is charged with certain duties and responsibilities by this chapter. The term also means a duly authorized representative of the manager.

"Wastewater" means liquid and water-carried industrial wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, which are contributed to the POTW.

"Water reclamation facility," "wastewater treatment plant" or "treatment plant" means that portion of the POTW which is designed to provide treatment of municipal sewage and industrial waste.

"Waters of the state" includes:

1. Both surface and groundwater within the boundaries of the state subject to its jurisdiction, including all ponds, lakes, rivers, streams, public ditches, tax ditches, and public drainage systems within the state, other than those designed and used to collect, convey or dispose of sanitary sewage, and any other waters specified by state law; and

2. The floodplain free-flowing waters determined on the basis of one hundred (100) year flood frequency.

"Wyoming Pollutant Discharge Elimination System Permit" or "WYPDES Permit" is a permit issued by the Wyoming Department of Environmental Quality pursuant to the rules adopted as Chapter (2) of the Wyoming Administrative Rules that establish special and general conditions for discharging treatment plant effluent into waters of the state by the POTW. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.040 Abbreviations.

The following abbreviations, when used in this chapter, shall have the designated meanings:

BOD	Biochemical Oxygen Demand
BMP	Best Management Practice
BMR	Baseline Monitoring Report
BOPU	Board of Public Utilities
°C	Degrees Celsius
CFR	Code of Federal Regulations
CIU	Categorical industrial user
COD	Chemical Oxygen Demand
EPA	United States Environmental Protection Agency
°F	Degrees Fahrenheit
gpd	Gallons per day
IPP	Industrial Pretreatment Program
IU	industrial user
mg	Milligrams
mg/L	Milligrams per Liter
NPDES	National Pollutant Discharge Elimination System
NSCIU	Non-Significant Categorical industrial user
O&M	Operations and Maintenance
POTW	Publicly Owned Treatment Works
ppd	Pounds per day
RCRA	Resource Conservation and Recovery Act
SIC	Standard Industrial Classification
SWDA	Solid Waste Disposal Act
SIU	Significant industrial user
SNC	Significant Noncompliance
TSS	Total Suspended Solids
TTO	Total Toxic Organics
ug/L	Micrograms per Liter
U.S.C.	United States Code
WYPDES	Wyoming Pollutant Discharge Elimination System
WRD	Water Reclamation Division

(Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.050 General prohibitions.

A. No industrial user shall contribute or cause to be contributed, directly or indirectly, to the POTW any pollutant or wastewater which will pass through or cause interference with the operation or performance of the POTW. These general prohibitions and the specific prohibitions in subsection B of this section shall apply to all the industrial users of the POTW, whether or not they are subject to pretreatment standards or requirements.

B. Specific Prohibitions. No industrial user shall contribute the following substances to the POTW:

1. Any substances which by reason of their nature or quantity will create a fire or explosion hazard or be injurious to the POTW or to the operation of the POTW, including, but not limited

to, waste streams with a closed cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Celsius using the test methods in 40 CFR Section 261.21;

2. Any solid or viscous substances which will cause obstruction to sewer flow or other interference with the operation of the POTW such as, but not limited to, fats, oils and grease, garbage with particles greater than one-half inch in any dimension, or any material which can be disposed of as trash;

3. Any biological, chemical, or enzyme product, used on its own or in conjunction with other substances, that causes the liquefaction or emulsification or the act of liquifying or emulsifying fats, oil or grease;

4. Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause pass through or interference;

5. Any wastewater having a pH less than five or greater than eleven (11), or having any other corrosive property capable of causing damage or hazard to structures, equipment or personnel of the POTW;

6. Any substance which may cause a public nuisance, cause hazard to life or prevent entry into the sewers for maintenance and repair;

7. Heated substances in amounts which will prevent entry into the sewer system of authorized personnel or will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature at the POTW treatment plant exceeds one hundred four (104) degrees Fahrenheit or forty (40) degrees Celsius. A limit may be required in particular situations where the temperature has caused or has potential to cause pass through of an interceptor, pass through or interference in the POTW;

8. Any pollutant which results in the presence of toxic gases, vapors or fumes within the

POTW in a quantity that may cause acute worker health and safety problems;

9. Any trucked or hauled pollutants, except at discharge points designated by the BOPU;

10. Any pollutant, including oxygen demanding pollutants, released in a discharge at a flow rate and/or concentration (including any slug load) which will cause interference to the POTW;

11. Wastewater which imparts color which cannot be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts color to the treatment plant's effluent, thereby violating the BOPU's WYPDES permit;

12. Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

13. Stormwater, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted wastewater, unless specifically authorized by the BOPU;

14. Sludges, screenings, or other residues from the pretreatment of industrial wastes;

15. Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail toxicity test;

16. Detergents, surface-active agents, or other substances that might cause excessive foaming in the POTW;

17. Bulk, expired, outdated, or concentrated prescription and non-prescription drugs, that may cause or contribute to pass through or interference.

C. No chemicals, or substances, including, but not limited to, paints, solvents, boiler or water treatment chemicals, sludges or wastes shall be stored in proximity to a floor drain or other sewer openings unless secondary containment is provided or there are physical barriers to entry to the wastewater collection system. The storage of any chemicals, materials, substances, or wastes that leak or have potential to leak or discharge into the POTW which may create an explosion hazard or in any way have a deleterious effect to the POTW or constitute a nuisance or a hazard to POTW personnel, the general public, the environment, or

the receiving stream shall be prohibited. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.050 and in doing so changed the title of said section from "General discharge prohibitions" to "General prohibitions," as set out herein.

13.20.060 National categorical pretreatment standards.

A categorical industrial user must comply with applicable categorical pretreatment standards found at 40 CFR Chapter I, Subchapter N, Parts 405-471.

A. Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the BOPU may impose equivalent concentration or mass limits in accordance with subsections E and F of this section.

B. When the limits in a categorical pretreatment standard are expressed only in terms of mass of pollutant per unit of production, the BOPU may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual industrial users.

C. When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the BOPU shall impose an alternate limit in accordance with 40 CFR Section 403.6(e).

D. When a categorical pretreatment standard is expressed only in terms of pollutant concentrations, an industrial user may request that the BOPU convert the limits to equivalent mass limits. The determination to convert concentration limits to mass limits is within the discretion of the industrial pretreatment program. The BOPU may establish equivalent mass limits only if the industrial user meets all the conditions set forth below.

1. To be eligible for equivalent mass limits, the industrial user must:

a. Employ, or demonstrate that it will employ, water conservation methods and technologies that substantially reduce water use during the term of its individual wastewater discharge permit;

b. Currently use control and treatment technologies adequate to achieve compliance with the applicable categorical pretreatment standard, and not have used dilution as a substitute for treatment;

c. Provide sufficient information to establish the facility's actual average daily flow rate for all wastestreams, based on data from a continuous effluent flow monitoring device, as well as the facility's long-term average production rate. Both the actual average daily flow rate and the long-term average production rate must be representative of current operating conditions;

d. Not have daily flow rates, production levels, or pollutant levels that vary so significantly that equivalent mass limits are not appropriate to control the discharge; and

e. Have consistently complied with all applicable categorical pretreatment standards during the period prior to the industrial user's request for equivalent mass limits.

2. An industrial user subject to equivalent mass limits must:

a. Maintain and effectively operate control and treatment technologies adequate to achieve compliance with the equivalent mass limits;

b. Continue to record the facility's flow rates through the use of a continuous effluent flow monitoring device;

c. Continue to record the facility's production rates and notify the industrial pretreatment program whenever production rates are expected to vary by more than twenty (20) percent from its baseline production rates determined in subsection 1.c of this section. Upon notification of a revised production rate, the industrial pretreatment program will reassess the equivalent mass limit and revise the limit as necessary to reflect changed conditions at the facility; and

d. Continue to employ the same or comparable water conservation methods and technologies as those implemented pursuant to subsection 1.a of this section so long as it discharges under an equivalent mass limit.

3. When developing equivalent mass limits, the industrial pretreatment program:

a. Will calculate the equivalent mass limit by multiplying the actual average daily flow rate of the regulated process(es) of the industrial user by the concentration-based daily maximum and

monthly average standard for the applicable categorical pretreatment standard and the appropriate unit conversion factor;

b. Upon notification of a revised production rate, will reassess the equivalent mass limit and recalculate the limit as necessary to reflect changed conditions at the facility; and

c. May retain the same equivalent mass limit in subsequent individual wastewater discharge permit terms if the industrial user's actual average daily flow rate was reduced solely as a result of the implementation of water conservation methods and technologies, and the actual average daily flow rates used in the original calculation of the equivalent mass limit were not based on the use of dilution as a substitute for treatment pursuant to Section 13.20.100 of this chapter. The industrial user must also be in compliance with Section 13.20.380 of this chapter regarding the prohibition of bypass.

E. The BOPU may convert the mass limits of the categorical pretreatment standards of 40 CFR Parts 414, 419, and 455 to concentration limits for purposes of calculating limitations applicable to individual industrial users. The conversion is at the discretion of the BOPU.

F. Once included in its permit, the industrial user must comply with the equivalent limitations developed in this section in lieu of the promulgated categorical standards from which the equivalent limitations were derived.

G. Many categorical pretreatment standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average, or four-day average, limitations. Where such standards are being applied, the same production or flow figure shall be used in calculating both the average and the maximum equivalent limitation.

H. Any industrial user operating under a permit incorporating equivalent mass or concentration limits calculated from a production-based standard shall notify the BOPU within two business days after the industrial user has a reasonable basis to know that the production level will significantly change within the next calendar month. Any industrial user not notifying the BOPU of such anticipated change will be required to meet the mass or concentration limits in its permit that were based on the original estimate of the long-term average production rate. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.070 Local limits.

A. The BOPU is authorized to establish local limits pursuant to 40 CFR Section 403.5(c).

B. It shall be unlawful for any significant industrial user or other designated and permitted industrial user to discharge or cause to be discharged any waste or wastewater to the Crow Creek Water Reclamation Facility or the Dry Creek Water Reclamation Facility that exceeds the following daily maximum limit or pollutant allocations as specified in the individual wastewater discharge permit established in Section 13.20.210 of this chapter and issued by the BOPU.

Dry Creek Water Reclamation Facility		
Pollutant	**Daily Maximum Discharge Limits mg/L**	**Total Maximum Allowable Industrial Load (MAIL) (*) lbs/day**
Arsenic	0.031	0.4348
Cadmium	0.008	0.1172
Chromium	2.43	34.0347
Copper	0.70	9.7646
Lead	0.187	2.6221
Mercury	0.0096	0.1343
Molybdenum	0.065	0.9110
Nickel	0.46	6.4162
Selenium	0.050	0.6962
Silver	0.133	1.8665
Zinc	1.67	23.4355
Biochemical Oxygen Demand (BOD_5), lbs/day	9788	9788
Total Suspended Solid (TSS), lbs/day	10447	10447

Crow Creek Water Reclamation Facility		
Pollutant	**Daily Maximum Discharge Limits mg/L**	**Total Maximum Allowable Industrial Load (MAIL) (*) lbs/day**
Arsenic	0.065	0.4625
Cadmium	0.005	0.0333
Chromium	2.40	17.0625
Copper	0.24	1.7246
Lead	0.162	1.1543
Mercury	0.0023	0.0163
Nickel	0.69	4.9048
Selenium	0.040	0.2876
Silver	0.165	1.1763
Zinc	3.04	21.6497
Biochemical Oxygen Demand (BOD_5), lbs/day	4845	4845
Total Suspended Solid (TSS), lbs/day	3071	3071

(*) The BOPU may allocate the MAIL for a pollutant on a case-by-case basis for the Crow Creek and Dry Creek facilities to significant industrial users or other permitted industrial user discharges. The total allocations included in individual wastewater discharge permits shall not exceed the lbs/day values listed. The BOPU will base its allocation decisions upon available loading and industrial user needs. Allocations are at the sole discretion of the BOPU.

C. Benzene and BTEX. The following limits shall apply to wastewaters that are discharged from:

1. Groundwater cleanup of petroleum or gasoline underground storage tanks or other remediation wastewaters containing these pollutants;

2. Discharges where one or more of these pollutants are present; or

3. Where these pollutants are appropriate surrogates.

It shall be unlawful for any industrial user to discharge or cause to be discharged any waste or wastewater to the POTW that exceeds the following limits:

Pollutant[(1)(3)]	**Daily Maximum Limit (mg/L)**
Benzene	0.050
BTEX[(2)]	0.750

[(1)] All pollutants shown in the table are total.

[(2)] BTEX shall be measured as the sum of Benzene, Ethylbenzene, Toluene and Xylenes.

[(3)] These limits are based upon installation of air stripping technology as described in the EPA document: "Model NPDES Permit for Discharges Resulting from the Cleanup of Gasoline Released from Underground Storage Tanks. June 1989."

D. It shall be unlawful for any industrial user to discharge or cause to be discharged any waste or wastewater to the Crow Creek Water Reclamation Facility or the Dry Creek Water Reclamation Facility that exceeds the following limits.

Pollutant	**Daily Maximum Limit (mg/L)**
Total Petroleum Hydrocarbons	50
Total Fats, Oils and Grease	100

E. The BOPU may establish more stringent pollutant limits, additional site-specific pollutant limits, BMPs, or additional pretreatment requirements, by ordinance or in individual wastewater discharge permits when, in the judgment of the BOPU, such limitations are necessary to implement the provisions of this chapter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.080 Pretreatment facilities.

Industrial users shall provide wastewater treatment as necessary to comply with this chapter and shall achieve compliance with all categorical pretreatment standards, local limits, BMPs, and the prohibitions set out in Section 13.20.050 of this chapter within the time limitations specified by

EPA, the state, or the BOPU, whichever is more stringent. Any facilities necessary for compliance shall be provided, operated, and maintained at the industrial user's expense. Detailed plans describing such facilities and operating procedures shall be submitted to the BOPU for review and shall be acceptable to the BOPU before such facilities are constructed. The review of such plans and operating procedures shall in no way relieve the industrial user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to BOPU under the provisions of this chapter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.090 Additional pretreatment measures.

A. Whenever deemed necessary, the BOPU may require industrial users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage waste streams from industrial waste streams, and such other conditions as may be necessary to protect the POTW and determine the industrial user's compliance with the requirements of this chapter.

B. The BOPU may require any industrial user discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An individual wastewater discharge permit may be issued solely for flow equalization.

C. Industrial users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.100 Dilution.

No industrial user shall ever increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. In addition to taking enforcement actions, the BOPU may impose mass limitations on industrial users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.110 Slug discharge control plan.

A. The BOPU shall evaluate whether each SIU needs a slug discharge control plan or other action to control slug discharges. The BOPU may require any industrial user to develop, submit for approval, and implement such a plan or take such other action that may be necessary to control slug discharges. Facilities necessary to protect the POTW from a slug discharge shall be provided and maintained at the industrial user's expense. A slug discharge control plan, including the facilities and the operating procedures, shall be approved by the BOPU before the construction of the facility or within the timeframes required by the BOPU.

B. A slug discharge control plan shall address, at a minimum, the following:

1. Description of discharge practices, including non-routine batch discharges;

2. Description of stored chemicals;

3. Procedures for immediately notifying the BOPU of any accidental or slug discharge, including any discharge that would violate the specific or general prohibitions of Section 13.20.050, as required by Section 13.20.460, of this chapter; and

4. Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling, and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.110 and in doing so changed the title of said section from "Accidental discharge and slug control plans" to "Slug discharge control plan," as set out herein.

13.20.120 Notification.

A. In the case of any discharge in violation of this chapter or permit conditions, and in the case of any discharge that could cause problems to the POTW, including any slug discharge, as defined in Section 13.20.030 of this chapter, the industrial user shall immediately notify the POTW of the discharge by telephone. The notification shall include:

1. The date, time, location and duration of the discharge;

2. The type of waste, including estimated concentration and accurate volume; and

3. Any corrective actions taken by the industrial user.

B. Within five days following such a discharge, the industrial user shall submit a written report describing the cause of the discharge and the measures that will be taken by the industrial user to prevent similar future discharges.

C. Such notification shall not relieve the industrial user of any expense, loss, damage or other liability resulting from the discharge, nor shall such notification relieve the industrial user of any fines, civil penalties or other liability which may be imposed under this chapter or other applicable state or federal law. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.130 Employee training.

The industrial user shall permanently post a notice visible to all employees advising them to call the BOPU at 307-635-3163 or 307-286-0451 in the event of a slug, accidental, or other unauthorized discharge for which notification is required. Employers shall advise all employees who may cause or be injured by such a discharge of the emergency notification procedure. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.140 Reserved.

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, repealed § 13.20.140, which pertained to records and derived from Ord. No. 4002, § 1, adopted Oct. 28, 2013.

13.20.150 Reserved.

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, repealed § 13.20.150, which pertained to analytical requirements and derived from Ord. No. 4002, § 1, adopted Oct. 28, 2013.

13.20.160 Confidential information.

Information and data on an industrial user obtained from reports, surveys, wastewater discharge permit applications, individual wastewater discharge permits, general permits and monitoring programs, and from the BOPU's inspection and sampling activities, shall be available to the public without restriction, unless the industrial user specifically requests, and is able to demonstrate to the satisfaction of the BOPU, that the release of such information would divulge information, processes, or methods of production entitled to protection as trade secrets under applicable state law. Any such request must be asserted at the time of submission of the information or data. When requested and demonstrated by the industrial user furnishing a report that such information should be held confidential, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available pursuant to a court order or subpoena, immediately upon request to governmental agencies for uses related to the WYPDES program or pretreatment program, and in enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics and other effluent data, as defined at 40 CFR Section 2.302, shall not be recognized as confidential information and shall be available to the public without restriction. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.170 Right of entry, inspection and sampling.

The BOPU shall have the right to enter the premises of any industrial user to determine whether the industrial user is complying with all requirements of this chapter and any individual wastewater discharge permit, general permit, or order issued hereunder. Industrial users shall al-

low the BOPU ready access at all times to all parts of the premises for the purposes of inspection, sampling, records examination and copying, including use of digital photography, recording equipment, and the performance of any additional duties.

A. Where an industrial user has security measures in force which require proper identification and clearance before entry into its premises, the industrial user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the BOPU shall be permitted to enter without delay for the purposes of performing specific responsibilities.

B. The BOPU shall have the right to set up on the industrial user's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the industrial user's operations.

C. The BOPU may require the industrial user to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the industrial user at its own expense. All devices used to measure wastewater flow and quality shall be calibrated per the manufacturer's specifications or once per year, whichever is less.

D. Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the industrial user at the written or verbal request of the BOPU and shall not be replaced. The costs of clearing such access shall be borne by the industrial user.

E. Unreasonable delays in allowing the BOPU access to the industrial user's premises shall be a violation of the provisions of this chapter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.180 Search warrants.

If the BOPU has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this chapter, or that there is a need to protect the overall public health, safety and welfare of the community, the BOPU may seek issuance of a search warrant from the appropriate court in the state of Wyoming. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Article 2. Administration—Wastewater Discharge Permits

13.20.190 Wastewater discharges.

It is unlawful to discharge without a wastewater contribution permit to the POTW any wastewater except as authorized by the BOPU in accordance with the provisions of this chapter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.200 Wastewater analysis.

When requested by the BOPU, an industrial user must submit information on the nature and characteristics of its wastewater within thirty (30) days of the request. The BOPU is authorized to prepare a form for this purpose and may periodically require users to update this information. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.210 Individual wastewater discharge permit and general permit requirement.

A. No significant industrial user (SIU) shall discharge wastewater into the POTW without first obtaining an individual wastewater discharge permit or general permit from the BOPU, except that a SIU who has filed a timely application pursuant to Section 13.20.220 of this chapter may continue to discharge for the time period specified therein.

B. The BOPU may require other industrial users to obtain individual wastewater discharge permits or general permits as necessary to carry out the purposes of this chapter.

C. Any violation of the terms and conditions of an individual wastewater discharge permit or general permit shall be deemed a violation of the provisions of this chapter and subjects the permittee to enforcement remedies outlined in Article 6,

Administrative Enforcement Remedies, of this chapter. Obtaining an individual wastewater discharge permit or general permit does not relieve a permittee of its obligation to comply with all federal and state pretreatment standards or requirements or with any other requirements of federal, state, and local law. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.220 Existing industrial users: Applying for an individual wastewater discharge permit re-issuance.

An industrial user with an expiring individual wastewater discharge permit shall apply for a new permit by submitting a complete wastewater individual wastewater discharge permit application at least ninety (90) days prior to the expiration of the industrial user's existing permit. The industrial user shall file an individual wastewater discharge permit on forms provided by the BOPU containing the information specified in Section 13.20.240 of this chapter. An individual wastewater discharge permit application containing incomplete or inaccurate information will not be processed and will be returned to the industrial user. An industrial user with an existing individual wastewater discharge permit that has filed a complete and timely application may continue to discharge, as approved in writing by the BOPU, through an administrative extension of the existing permit if the delay in permit issuance is not due to any act or failure to act on the industrial user's part. This shall not apply if the duration of the wastewater discharge permit is five years. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.220 and in doing so changed the title of said section from "Individual wastewater discharge and general permitting—Existing connections" to "Existing industrial users: Applying for an individual wastewater discharge permit re-issuance," as set out herein.

13.20.230 Individual wastewater discharge and general permitting—New connections.

Any industrial user required to obtain an individual wastewater discharge permit or general permit who proposes to begin or recommence discharging into the POTW must obtain such permit prior to the beginning or recommencing of such discharge. An application for the individual wastewater discharge permit or general permit, in accordance with Section 13.20.240 of this chapter, must be filed at least ninety (90) days prior to the date upon which any discharge will begin or recommence. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.240 Individual wastewater discharge and general permit application—Contents.

A. All industrial users required to obtain an individual wastewater discharge permit or general permit must submit a permit application. Industrial users that are eligible may request a general permit under Section 13.20.250 of this chapter. The BOPU may require industrial users to submit all or some of the following information as part of the permit application:

1. Identifying information:

a. The name and address of the facility, including the name of the authorized representative and owner.

b. Contact information, description of activities, facilities, and plant production processes on the premises.

2. Environmental permits:

a. A list of any environmental control permits held by or for the facility.

3. Description of operations:

a. Brief description of the nature, average rate of production (including each product produced by type, amount, processes, and rate of production), and standard industrial classifications or North American Industry Classification System Code of the operation(s) carried out by such industrial user. This description should include a schematic process diagram, which indicates points of discharge to the POTW from the regulated processes.

b. Types of wastes generated, and a list of all raw materials and chemicals used or stored at the facility which are, or could accidentally or intentionally be, discharged to the POTW.

c. Number and type of employees, hours of operation, and proposed or actual hours of operation.

d. Type and quantity of raw materials processed (average and maximum per day).

e. Site plans, floor plans, mechanical and plumbing plans, and details to show all sewers, floor drains, and appurtenances by size, location, and elevation, and all points of discharge.

4. Time and duration of discharges.

5. The location for monitoring all wastes covered by the permit.

6. Flow measurement:

a. Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined waste stream formula set out in 40 CFR Section 403.6(e).

7. Measurement of pollutants:

a. The categorical pretreatment standards applicable to each regulated process and any new categorically regulated processes for existing sources.

b. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by the BOPU, of regulated pollutants in the discharge from each regulated process.

c. Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported.

d. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in Section 13.20.490 of this chapter. Where the standard requires compliance with a BMP or pollution prevention alternative, the industrial user shall submit documentation as required by the BOPU or the applicable standards to determine compliance with the standard.

e. Sampling must be performed in accordance with procedures set out in Section 13.20.500 of this chapter.

8. Any requests for a monitoring waiver (or a renewal of an approved monitoring waiver) for a pollutant neither present nor expected to be present in the discharge based on Section 13.20.440.B of this chapter.

9. Any other information as may be deemed necessary by the BOPU to evaluate the permit application.

B. Incomplete or inaccurate applications will not be processed and will be returned to the industrial user for revision. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.250 Wastewater discharge permitting—General permits.

A. At the discretion of the BOPU, the BOPU may use general permits to control SIU discharges to the POTW if the following conditions are met. All facilities to be covered by a general permit must:

1. Involve the same or substantially similar types of operations;

2. Discharge the same types of wastes;

3. Require the same effluent limitations;

4. Require the same or similar monitoring; and

5. In the opinion of the BOPU, are more appropriately controlled under a general permit than under individual wastewater discharge permits.

B. To be covered by the general permit, the SIU must file a written request for coverage that identifies its contact information, production processes, the types of wastes generated, the location for monitoring all wastes covered by the general permit, any requests in accordance with Section 13.20.440.B of this chapter for a monitoring waiver for a pollutant neither present nor expected to be present in the discharge, and any other information the POTW deems appropriate. A monitoring waiver for a pollutant neither present nor expected to be present in the discharge is not effective in the general permit until after the BOPU has provided

written notice to the SIU that such a waiver request has been granted in accordance with Section 13.20.440.B of this chapter.

C. The BOPU will retain a copy of the general permit, documentation to support the POTW's determination that a specific SIU meets the criteria in Section[s] 13.20.250.A.1—5 above and applicable state regulations, and a copy of the industrial user's written request for coverage for three years after the expiration of the general permit.

D. The BOPU may not control an SIU through a general permit where the facility is subject to production-based categorical pretreatment standards or categorical pretreatment standards expressed as mass of pollutant discharged per day or for industrial users whose limits are based on the combined waste stream formula or net/gross calculations described in Sections 13.20.060.C and D of this chapter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.260 Industrial user signatories and certifications.

A. All wastewater discharge permit applications, industrial user reports and certification statements must be signed by an authorized representative of the industrial user and contain the applicable certification statement wording contained in Section 13.20.530 of this chapter.

B. If the authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, a new written authorization satisfying the requirements of this section must be submitted to the BOPU prior to or together with any reports to be signed by an authorized representative.

C. A facility determined to be a non-significant categorical industrial user by the BOPU, pursuant to Section 13.20.030 of this chapter, must annually submit the applicable signed certification statement referenced in subsection B above. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.260 and in doing so changed the title of said section from "Application signatories and certifications" to "Industrial user signatories and certifications," as set out herein.

13.20.270 Individual wastewater discharge permit and general permit decisions.

The BOPU will evaluate the data furnished by the industrial user and may require additional information. Within sixty (60) days of receipt of a complete permit application, the BOPU will determine whether to issue an individual wastewater discharge permit or a general permit. The BOPU may deny any application for an individual wastewater discharge permit or general permit. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.270 and in doing so changed the title of said section from "Individual wastewater discharge and general permit decisions" to "Individual wastewater discharge permit and general permit decisions," as set out herein.

Article 3. Wastewater Contribution Permit Requirements

13.20.280 Individual wastewater discharge permit and general permit—Contents.

An individual wastewater discharge permit or general permit shall include such conditions as are deemed reasonably necessary by the BOPU to prevent pass through or interference, protect the quality of the water body receiving the water reclamation facility's (WRF) effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

A. Individual wastewater discharge permits and general permits must contain:

1. A statement that indicates the wastewater discharge permit issuance date, expiration date and effective date;

2. A statement that the wastewater discharge permit is nontransferable without prior notification to the BOPU in accordance with Section 13.20.340 of this chapter, and provisions for fur-

nishing the new owner or authorized representative with a copy of the existing individual wastewater discharge permit;

3. Effluent limits, including BMPs, based on applicable pretreatment standards;

4. Self-monitoring, sampling, reporting, notification, and record-keeping requirements. These requirements shall include an identification of pollutants (or BMP) to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law.

5. The process for seeking a waiver from monitoring for a pollutant neither present nor expected to be present in the discharge in accordance with Section 13.20.440.B of this chapter.

6. A statement of applicable enforcement actions, including, but not limited to, civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federals, state, or local law.

7. Requirements to control slug discharge, if determined by the BOPU to be necessary.

8. Any grant of the monitoring waiver by the BOPU pursuant to Section 13.20.440.B of this chapter must be included as a condition in the industrial user's permit or other control mechanism.

B. Individual wastewater discharge permits or general permits may contain, but need not be limited to, the following conditions:

1. Limits on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization;

2. Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works;

3. Requirements for the development and implementation of slug discharge control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or non-routine discharges;

4. Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;

5. The unit charge or schedule of industrial user charges and fees for the management of the wastewater discharged to the POTW;

6. Requirements for installation and maintenance of inspection and sampling facilities and equipment, including flow measurement devices;

7. A statement that compliance with the individual wastewater discharge permit or general permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards and requirements, including those which become effective during the term of the individual wastewater discharge permit; and

8. Other conditions as deemed appropriate by the BOPU to ensure compliance with federal and state laws, statutes, and local regulations and ordinances. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.280 and in doing so changed the title of said section from "Individual wastewater discharge and general permit—Contents" to "Individual wastewater discharge permit and general permit—Contents," as set out herein.

13.20.290 Individual wastewater discharge permit and general permit—Duration.

An individual wastewater discharge permit or general permit shall be issued for a specified time period, not to exceed five years from the effective date of the permit. An individual wastewater discharge permit or general permit may be issued for a period less than five years, at the discretion of the BOPU. Each individual wastewater discharge permit or general permit will indicate a specific date upon which it will expire. The industrial user shall apply for permit reissuance at least ninety (90) days prior to the expiration of the industrial user's existing permit. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.290 and in doing so changed the title of said section from

"Individual wastewater discharge and general permit—Duration" to "Individual wastewater discharge permit and general permit—Duration," as set out herein.

13.20.300 Permit modifications.

A. The BOPU may modify an individual wastewater discharge permit or general permit for good cause, including, but not limited to, the following reasons:

1. To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

2. To address significant alterations or additions to the industrial user's operation, processes, or wastewater volume or character since the time of the individual wastewater discharge permit issuance;

3. A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

4. Information indicating that the permitted discharge poses a threat to the POTW, personnel, biosolids use or the receiving waters;

5. Violation of any terms or conditions of the individual wastewater discharge permit;

6. Misrepresentations or failure to fully disclose all relevant facts in the individual wastewater discharge permit application or in any required reporting;

7. Revision of or a grant of variance from categorical pretreatment standards pursuant to 40 CFR Section 403.13;

8. To correct typographical or other errors in the individual wastewater discharge permit; or

9. To reflect a transfer of the facility ownership or operation to a new owner or operator where requested in accordance with Section 13.20.340 of this chapter.

10. Upon request of the permittee, provided such request does not create a violation of any existing applicable requirements, standards, laws, or rules and regulations. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.310 Permit appeals.

A. The BOPU shall provide interested persons with notice of initial decisions regarding permit issuance and conditions. Interested persons may petition the BOPU to appeal the terms of the permit within ten (10) days of the notice. The following rules shall apply to appeals under this section:

1. Failure to submit a timely petition for review is a waiver of the right to appeal.

2. The appealing party must indicate which permit provisions are objected to, the reasons for objection and any alternative permit conditions sought.

3. Conditions of the permit shall not be stayed pending appeal. After considering the petition and arguments, if the BOPU determines that the appeal merits relief, the permit shall be amended as required.

4. The BOPU's decision not to consider an appeal is final action for purposes of judicial review.

5. Aggrieved parties seeking judicial review of the final BOPU action must do so in accordance with the Wyoming Administrative Procedure Act. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.320 Continuation of expired permits.

A. An expired permit, issued for less than five years will continue to be effective and enforceable until a permit is reissued if:

1. The industrial user submitted a complete permit application at least ninety (90) days prior to the expiration date of the existing permit; and

2. The failure to reissue a permit prior to expiration of the previous permit was not due to any act or omission attributable to the industrial user. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.330 Special agreements.

Nothing in this chapter shall be construed as preventing a special agreement between the POTW and an industrial user whereby wastewater of un-

usual strength or character is accepted to the POTW. No discharges violating pretreatment standards are allowed by special agreements. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.340 Individual wastewater discharge permit and general permit—Transfer.

A. Individual wastewater discharge permits or general permits may be transferred to a new owner or operator only if the permittee gives at least ninety (90) days advance notice to the BOPU and the BOPU approves the individual wastewater discharge permit or general permit transfer. The notice to the BOPU must include a written certification by the new owner or operator which:

1. States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;

2. Identifies the specific date on which the transfer is to occur; and

3. Acknowledges full responsibility for complying with the existing individual wastewater discharge permit.

B. Failure to provide advance notice of a transfer renders the individual wastewater discharge permit or general permit void as of the date of facility transfer. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.340 and in doing so changed the title of said section from "Individual wastewater discharge and general permit—Transfer" to "Individual wastewater discharge permit and general permit—Transfer," as set out herein.

13.20.350 Individual wastewater discharge permit and general permit—Revocation.

A. The BOPU may revoke an individual wastewater discharge permit or general permit for good cause, including, but not limited to, the following reasons:

1. Failure to notify the BOPU of significant changes to the wastewater prior to the changed discharge;

2. Failure to provide prior notification to the BOPU of changed conditions pursuant to Section 13.20.450 of this chapter;

3. Misrepresentation or failure to fully disclose all relevant facts in the individual wastewater discharge permit application;

4. Falsifying self-monitoring reports and certification statements;

5. Tampering with monitoring equipment;

6. Refusing to allow the BOPU or its duly authorized representative timely access to the facility premises and records;

7. Failure to meet effluent limitations;

8. Failure to pay fines and/or penalties;

9. Failure to pay sewer charges;

10. Failure to meet compliance schedules;

11. Failure to complete an industrial user survey or the individual wastewater discharge permit application;

12. Failure to provide advance notice of the transfer of business ownership of a permitted facility; or

13. Violation of any pretreatment standard or requirement, or any terms of the individual wastewater discharge permit or this chapter.

B. Individual wastewater discharge permits or general permits shall be voidable upon cessation of operations or transfer of business ownership. All individual wastewater discharge permits or general permits issued to an industrial user are void upon the issuance of a new individual wastewater discharge permit or general permit to that industrial user. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.360 Reserved.

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, repealed § 13.20.360, which pertained to individual wastewater discharge permit and general permit—reissuance and derived from Ord. No. 4002, § 1, adopted Oct. 28, 2013.

13.20.370 Monitoring.

A. Industrial users shall provide and maintain in a safe and proper condition, at their own ex-

pense, facilities to allow the BOPU, EPA or the state to inspect, sample or measure flows from wastewater subject to this chapter.

B. There shall be ample room in or near facilities to allow accurate sampling and preparation of samples for analysis.

C. If locating such facilities on an industrial user's property is impractical, the industrial user may apply to the BOPU for a right-of-way or for permission to construct on public property. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.380 Bypass.

A. Bypass not Violating Applicable Pretreatment Standards or Requirements.

1. An industrial user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if the bypass is necessary for essential maintenance to assure efficient operation. These bypasses are not subject to subsections B and C of this section.

B. Notice.

1. If an industrial user knows in advance of the need for a bypass, it shall submit prior notice to the BOPU, if possible at least ten (10) days before the date of the bypass.

2. An industrial user shall give written and verbal notification to the BOPU of an unanticipated bypass that exceeds applicable pretreatment standards or requirements within twenty-four (24) hours of becoming aware of the bypass. A written report shall also be provided within five days of becoming aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact times and dates, and if the bypass has not been corrected, the time it is expected to continue; and steps taken or planned to reduce, eliminate and prevent recurrence of the bypass. The BOPU may waive the written report on a case-by-case basis if the verbal report has been received within twenty-four (24) hours.

C. Prohibition of Bypass.

1. Bypass is prohibited and the BOPU may take enforcement action against an industrial user for a bypass, unless:

a. Bypass was unavoidable to prevent loss of life, personal injury or severe property damage;

b. There are no feasible alternatives to bypass, such as use of auxiliary treatment facilities, retention of wastes or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent bypass which occurred during normal periods of equipment downtime or preventative maintenance; and

c. The industrial user submitted notices as required by subsection B of this section.

2. The BOPU may approve an anticipated bypass, after considering its adverse effects, if the BOPU determines that it will meet the three conditions listed in subsection C.1 of this section. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.390 Upset provisions.

A. Definition.

1. For the purposes of this section, "upset" means an exceptional incident in which there is unintentional and temporary noncompliance with pretreatment standards because of factors beyond the reasonable control of the industrial user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

B. Effect of an Upset.

1. An upset shall constitute an affirmative defense to an action brought for noncompliance with pretreatment standards if the requirements of subsection C of this section are met.

C. Conditions Necessary for a Demonstration of Upset.

1. An industrial user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence, that:

a. An upset occurred and the industrial user can identify the cause(s) of the upset;

b. The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable industrial user O&M procedures; and

c. The industrial user has submitted the following information to the BOPU within twenty-four (24) hours of becoming aware of the upset (if this information is provided verbally, a written submission must be provided within five days):

i. A description of the discharge and cause of noncompliance;

ii. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and

iii. Steps being taken and/or planned to reduce, eliminate and prevent recurrence of the noncompliance.

D. Burden of Proof.

1. In an enforcement proceeding the industrial user seeking to establish the occurrence of an upset shall have the burden of proof to prove that the conditions from subsection C.1.c above have been met.

E. Reviewability of Agency Consideration of Claims of Upset.

1. In the usual exercise of prosecutorial discretion, agency enforcement personnel should review any claims that non-compliance was caused by an upset. No determinations made in the course of the review constitute final agency action subject to judicial review. Industrial users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action as defined in the BOPU enforcement response plan brought for noncompliance with categorical pretreatment standards.

F. User Responsibility in Case of Upset.

1. The industrial user shall control production of all discharges to the extent necessary to maintain compliance with pretreatment standards upon reduction, loss or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost or fails. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.400 Regulation of wastewater received from other jurisdictions.

A. If another agency, government, municipality, or industrial user located within another municipality, contributes wastewater to the POTW, the BOPU shall enter into an interagency, intergovernmental, or intermunicipal agreement with the contributing agency, government, or municipality.

B. Prior to entering into an agreement required by subsection A above, the BOPU shall request the following information from the contributing municipality:

1. A description of the quality and volume of wastewater discharged to the POTW by the contributing agency, government, or municipality;

2. An inventory of all industrial users located within the contributing agency, government, or municipality that are discharging to the POTW; and

3. Such other information as the BOPU may deem necessary.

C. An interagency, intergovernmental, or intermunicipal agreement, as required by subsection A above, shall contain the following conditions:

1. A requirement for the contributing agency, government, or municipality to adopt a sewer use ordinance which is at least as stringent as the provisions of this chapter, as amended, and local limits, including required baseline monitoring reports (BMRs) which are at least as stringent as those set out in Section 13.20.070 of this chapter.

The requirement shall specify that such ordinance and limits must be revised as necessary to reflect changes made to this chapter or local limits;

2. A requirement for the contributing agency, government, or municipality to submit a revised industrial user inventory on at least an annual basis;

3. A provision specifying which pretreatment implementation activities, including individual wastewater discharge permit or general permit issuance, inspection and sampling, and enforcement, will be conducted by the contributing agency, government, or municipality; which of these activities will be conducted by the BOPU; and which of these activities will be conducted jointly by the contributing agency, government, or municipality and the BOPU;

4. A requirement for the contributing agency, government, or municipality to provide the BOPU with access to all information that the contributing agency, government, or municipality obtains as part of its pretreatment activities;

5. Limits on the nature, quality, and volume of the contributing agency's, government's, or municipality's wastewater at the point where it discharges to the POTW;

6. Requirements for monitoring the contributing agency's, government's, or municipality's discharge;

7. A provision ensuring the BOPU access to the facilities of industrial users located within the contributing agency's, government's, or municipality's jurisdictional boundaries for the purpose of inspection, sampling, and any other duties deemed necessary by the BOPU; and

8. A provision specifying remedies available for breach of the terms of the interagency, intergovernmental or intermunicipal agreement. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Article 4. Reporting

13.20.410 Baseline monitoring report.

A. Within either one hundred eighty (180) days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR Section 403.6(a)(4), whichever is later, existing categorical industrial users currently discharging to or scheduled to discharge to the POTW shall submit to the BOPU a report which contains the information listed in subsection B below. At least ninety (90) days prior to commencement of their discharge, new sources, and sources that become categorical industrial users subsequent to the promulgation of an applicable categorical Standard, shall submit to the BOPU a report which contains the information listed in subsection B below. A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

B. Industrial users described above shall submit the information set forth below:

1. All information required in Section 13.20.240 subsections A.1.a, A.2, A.3.a, and A.6 of this chapter.

2. Measurement of Pollutants.

a. The industrial user shall provide the information required in Section 13.20.240 subsections A.7.a—d of this chapter.

b. The industrial user shall take a minimum of one representative sample to compile that data necessary to comply with the requirements of this section.

c. Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment the industrial user should measure the flows and concentrations necessary to allow use of the combined waste stream formula in 40 CFR Section 403.6(e) to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR Section 403.6(e) this adjusted limit along with supporting data shall be submitted to the BOPU;

d. Sampling and analysis shall be performed in accordance with Section 13.20.500 of this chapter;

e. The BOPU may allow the submission of a baseline monitoring report (BMR) which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures;

f. The BMR shall indicate the time, date and place of sampling and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

3. Compliance Certification.

a. A statement, reviewed and certified by the authorized representative of the industrial user as defined in Section 13.20.030 of this chapter indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required to meet the pretreatment standards and requirements.

4. Compliance Schedule.

a. If additional pretreatment and/or O&M will be required to meet the pretreatment standards, the shortest schedule by which the industrial user will provide such additional pretreatment and/or O&M must be provided. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in Section 13.20.420 of this chapter.

5. Signature and Report Certification.

a. All BMRs must be certified in accordance with Section 13.20.530.A of this chapter and signed by an authorized representative of the industrial user as defined in Section 13.20.030 of this chapter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.410 and in doing so changed the title of said section from "Baseline monitoring report (categorical dischargers only)" to "Baseline monitoring report," as set out herein.

13.20.420 Compliance schedule progress report.

A. The following conditions shall apply to the compliance schedule required by Section 13.20.410.B.4 of this chapter:

1. The compliance schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable pretreatment standards (such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation);

2. No increment referred to above shall exceed nine months unless extended by the BOPU;

3. The industrial user shall submit a progress report to the BOPU no later than fourteen (14) days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the industrial user to return to the established schedule; and

4. In no event shall more than nine months elapse between such progress reports to the BOPU. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.430 Reports on compliance with categorical pretreatment standard deadline.

Within ninety (90) days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any industrial user subject to such pretreatment standards and requirements shall submit to the BOPU a report containing the information described in Sections 13.20.240.A.6 and 7 and 13.20.410.B.2 of this chapter. For industrial users subject to equivalent mass or concentration limits established in accordance

with the procedures in Section 13.20.060 of this chapter, this report shall contain a reasonable measure of the industrial user's long-term production rate. For all other industrial users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the industrial user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with Section 13.20.530.A of this chapter. All sampling will be done in conformance with Section 13.20.500 of this chapter. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.440 Periodic compliance report.

A. Except as specified in subsection C of this section, all significant industrial users (SIU) must, at a frequency determined by the BOPU, submit no less than twice per year (June and December or on dates specified by the BOPU) reports indicating the nature, concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with a BMP or pollution prevention alternative, the industrial user must submit documentation required by the BOPU or the pretreatment standard necessary to determine the compliance status of the industrial user.

B. The BOPU may authorize an industrial user subject to a categorical pretreatment standard to forego sampling of a pollutant regulated by a categorical pretreatment standard if the industrial user has demonstrated through sampling and other technical factors that the pollutant is neither present nor expected to be present in the discharge, or is present only at background levels from intake water and without any increase in the pollutant due to activities of the industrial user. This authorization is subject to the following conditions:

1. The waiver may be authorized where a pollutant is determined to be present solely due to sanitary wastewater discharged from the facility provided that the sanitary wastewater is not regulated by an applicable categorical standard and otherwise includes no process wastewater.

2. The monitoring waiver is valid only for the duration of the effective period of the individual wastewater discharge permit, but in no case longer than five years. The industrial user must submit a new request for the waiver before the waiver can be granted for each subsequent individual wastewater discharge permit or general permit. See Section 13.20.240 of this chapter.

3. In making a demonstration that a pollutant is not present, the industrial user must provide data from at least one sampling of the facility's process wastewater prior to any treatment present at the facility that is representative of all wastewater from all processes.

4. The request for a monitoring waiver must be signed by an authorized representative as defined in Section 13.20.030 of this chapter and include the certification statement in Section 13.20.530 of this chapter.

5. Non-detectable sample results may be used only as a demonstration that a pollutant is not present if the EPA approved method from 40 CFR Part 136 with the lowest minimum detection level for that pollutant was used in the analysis.

6. Any grant of the monitoring waiver by the BOPU must be included as a condition in the industrial user's permit. The reasons supporting the waiver and any information submitted by the industrial user in its request for the waiver must be maintained by the BOPU for three years after expiration of the waiver.

7. Upon approval of the monitoring waiver and revision of the industrial user's permit by the BOPU, the industrial user must certify on each report with the statement in Section 13.20.530.C of this chapter that there has been no increase in the pollutant in its waste stream due to activities of the industrial user.

8. In the event that a waived pollutant is found to be present or is expected to be present because of changes that occur in the industrial user's operations, the industrial user must immediately com-

ply with the monitoring requirements of Section 13.20.440.A of this chapter, or other more frequent monitoring requirements imposed by the BOPU, and notify the BOPU.

9. This provision does not supersede certification processes and requirements established in categorical pretreatment standards, except as otherwise specified in the categorical pretreatment standard.

C. The BOPU may reduce the requirement for periodic compliance reports to a requirement to report no less frequently than once a year, unless required more frequently in the pretreatment standard or by the EPA, where the industrial user's total categorical wastewater flow does not exceed any of the following:

1. For industrial users discharging to the Crow Creek WRF, six hundred fifty (650) gallons per day as measured by a continuous effluent flow monitoring device unless the industrial user discharges in batches;

2. For industrial users discharging to the Dry Creek WRF, one thousand fifty (1050) gallons per day as measured by a continuous effluent flow monitoring device unless the industrial user discharges in batches;

3. 0.01 percent of the maximum allowable headworks loading of the design dry-weather organic treatment capacity of the POTW; and

4. 0.01 percent of the maximum allowable headworks loading for any pollutant regulated by the applicable categorical pretreatment standard for which approved local limits were developed in accordance with Section 13.20.070 of this chapter.

Reduced reporting is not available to industrial users that have in the last two years been in significant noncompliance, as defined in Section 13.20.550 of this chapter. In addition, reduced reporting is not available to an industrial user with daily flow rates, production levels, or pollutant levels that vary so significantly that, in the opinion of the BOPU, decreasing the reporting requirement for this industrial user would result in data that are not representative of conditions occurring during the reporting period.

D. All periodic compliance reports must be signed and certified in accordance with Section 13.20.530.A of this chapter.

E. All wastewater samples must be representative of the industrial user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of an industrial user to keep its monitoring facility in good working order shall not be grounds for the industrial user to claim that sample results are unrepresentative of its discharge.

F. If an industrial user subject to the reporting requirement in this section monitors any regulated pollutant at the appropriate sampling location more frequently than required by the BOPU, using the procedures prescribed in Section 13.20.500 of this chapter, the results of this monitoring shall be included in the report. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.450 Reports of changed conditions.

A. Each industrial user must notify the BOPU of any significant changes to the industrial user's operations or system which might alter the nature, quality, or volume of its wastewater at least ninety (90) days before the change.

1. The BOPU may require the industrial user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of an individual wastewater discharge permit application under Section 13.20.240 of this chapter.

2. The BOPU may issue an individual wastewater discharge permit or general permit under Section 13.20.360 of this chapter or modify an existing individual wastewater discharge permit under Section 13.20.300 of this chapter in response to changed conditions or anticipated changed conditions. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.460 Reports of potential problems.

A. In the case of any discharge, including, but not limited to, accidental discharges, discharges of

a nonroutine, episodic nature, a noncustomary batch discharge, a slug discharge or slug load, that might cause potential problems for the POTW, the industrial user shall immediately telephone and notify the BOPU of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the industrial user.

B. Within five days following such discharge, the industrial user shall, unless waived by the BOPU, submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the industrial user to prevent similar future occurrences. Such notification shall not relieve the industrial user of any expense, loss, damage, or other liability which might be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the industrial user of any fines, penalties, or other liability which may be imposed pursuant to the provisions of this chapter.

C. A notice shall be permanently posted on the industrial user's bulletin board or other prominent place advising employees who to call in the event of a discharge described in subsection A above. Employers shall ensure that all employees, who could cause such a discharge to occur, are advised of the emergency notification procedure.

D. Significant industrial users are required to notify the BOPU immediately of any changes at its facility affecting the potential for a slug discharge. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.470 Notice of violation—Repeat sampling and reporting.

If sampling performed by an industrial user indicates a violation, the industrial user must notify the BOPU within twenty-four (24) hours of becoming aware of the violation. The industrial user shall also repeat the sampling and analysis within five days and submit the results of the repeat analysis to the BOPU within thirty (30) days after becoming aware of the violation. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.480 Notification of the discharge of hazardous waste.

A. Any industrial user who commences the discharge of hazardous waste shall notify the POTW, the EPA regional waste management division director, and state hazardous waste authorities, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the industrial user discharges more than one hundred (100) kilograms of such waste per calendar month to the POTW, the notification also shall contain the following information to the extent such information is known and readily available to the industrial user:

1. An identification of the hazardous constituents contained in the wastes;

2. An estimation of the mass and concentration of such constituents in the waste stream discharged during that calendar month; and

3. An estimation of the mass of constituents in the waste stream expected to be discharged during the following twelve (12) months.

All notifications must take place no later than one hundred and eighty (180) days after the discharge commences. Any notification under this section need be submitted only once for each hazardous waste discharged. However, notifications of changed conditions must be submitted under Section 13.20.450 of this chapter. The notification requirement in this section does not apply to pollutants already reported by industrial users subject to categorical pretreatment standards under the self-monitoring requirements of Sections 13.20.410, 13.20.430 and 13.20.440 of this chapter.

B. Dischargers are exempt from the requirements of subsection A above during a calendar

month in which they discharge no more than fifteen (15) kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR Section 261.30(d) and 261.33(e). Discharge of more than fifteen (15) kilograms of nonacute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 CFR Section 261.30(d) and 261.33(e) requires a one-time notification. Subsequent months during which the industrial user discharges more than such quantities of any hazardous waste do not require additional notification.

C. In the case of any new regulations under Section 3001 of Resource Conservation and Recovery Act (RCRA) identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the industrial user must notify the BOPU, the EPA regional waste management waste division director, and state hazardous waste authorities of the discharge of such substance within ninety (90) days of the effective date of such regulations.

D. In the case of any notification made under this section, the industrial user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

E. This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this chapter, a permit issued thereunder, or any applicable federal or state law. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.490 Analytical requirements.

All pollutant analyses, including sampling techniques, to be submitted as part of an individual wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the 40 CFR Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the BOPU or other parties approved by EPA. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.500 Sample collection.

A. Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report, based on data that is representative of conditions occurring during the reporting period.

1. Except as indicated in subsections A.2 and A.3 below, the industrial user must collect wastewater samples using twenty-four (24) hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the BOPU. Where time-proportional composite sampling or grab sampling is authorized by the BOPU, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a twenty-four (24) hour period may be composited prior to the analysis as follows: For cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the BOPU, as appropriate. In addition, grab samples may be required to show compliance with instantaneous limits.

2. Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

3. For sampling required in support of baseline monitoring reports required in Sections 13.20.410 of this chapter, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the BOPU may authorize a lower minimum. For the reports required by Section 13.20.440 of this chapter, the industrial user is required to collect the number of grab samples necessary to assess and assure compliance by with applicable pretreatment standards and requirements. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.510 Date of receipt of reports.

Written reports will be deemed to have been submitted on the date postmarked. For reports which are not mailed, postage prepaid, into a mail facility serviced by the United States Postal Service, the date of receipt of the report shall govern. (Ord. No. 4002, § 1, 10-28-13)

13.20.520 Record keeping.

Industrial users subject to the reporting requirements of this chapter shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this chapter, any additional records of information obtained pursuant to monitoring activities undertaken by the industrial user independent of such requirements, and documentation associated with BMPs established under Section 13.20.070 of this chapter. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. Industrial users subject to the reporting requirements of sector control established in Section 13.20.545 of this chapter shall retain, and make available for inspection and copying, all records pertaining to the sector control reporting requirements. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the industrial user or the BOPU, or where the industrial user has been specifically notified of a longer retention period by the BOPU. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.530 Certification statements.

A. Certification of Permit Applications, Industrial User Reports and Initial Monitoring Waiver.

The following certification statement is required to be signed and submitted by industrial users submitting permit applications in accordance with Section 13.20.260 of this chapter; industrial users submitting baseline monitoring reports under Section 13.20.410.B.5 of this chapter; industrial users submitting reports on compliance with the categorical pretreatment standard deadlines under Section 13.20.430 of this chapter; industrial users submitting periodic compliance reports required by Section 13.20.440.A—D of this chapter, and industrial users submitting an initial request to forego sampling of a pollutant on the basis of Section 13.20.440.B of this chapter. The following certification statement must be signed by an authorized representative as defined in Section 13.20.030 of this chapter:

> "I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

B. Certification by Non-Significant Categorical Industrial Users.

An industrial user determined to be a non-significant categorical industrial user by the BOPU pursuant to Sections 13.20.030 and 13.20.260.C of this chapter must annually submit the following certification statement signed in accordance with the signatory requirements in Section 13.20.260 of this chapter. This certification must accompany an alternative report required by BOPU:

"Based on my inquiry of the person or persons directly responsible for managing compliance with the categorical pretreatment standards under 40 CFR ____, I certify that, to the best of my knowledge and belief that during the period from _____ ____, to _____, ____ [month, days, year]:

(a) The facility described as _____ [facility name] met the definition of a non-significant categorical industrial user as described in 40 CFR Section 403.3(v)(2);

(b) The facility complied with all applicable pretreatment standards and requirements during this reporting period; and

(c) The facility never discharged more than one hundred (100) gallons of total categorical wastewater on any given day during this reporting period. This compliance certification is based upon the following information:"

C. Certification of Pollutants Not Present.

Industrial users that have an approved monitoring waiver based on Section 13.20.440.B of this chapter, must certify on each report with the following statement that there has been no increase in the pollutant in its waste stream due to activities of the industrial user.

"Based on my inquiry of the person or persons directly responsible for managing compliance with the pretreatment standard for 40 CFR _____ [specify applicable National Pretreatment Standard part(s)], I certify that, to the best of my knowledge and belief, there has been no increase in the level of _____ [list pollutant(s)] in the wastewaters due to the activities at the facility since filing of the last periodic report under Section 13.20.440.B."

D. Laboratory Analytical Certification.

Laboratories used to perform analytical testing for industrial users must certify reports with the following statement regarding their accordance with Section 13.20.490 of this chapter in performing analysis of all samples contained in the report.

"I certify that these analyses and resulting report(s) were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly analyze all samples and accurately report the results. I certify that all analyses were performed in accordance with methods approved for wastewater under the latest revision to 40 CFR Part 136 and its amendments or, if the 40 CFR Part 136 does not contain analytical techniques for a pollutant, the method meets the requirements of Cheyenne City Code 13.20.490. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for analyzing the wastewater samples and generating the report(s), the analyses, report, and information submitted is, to the best of my knowledge and belief, true, accurate, and complete." (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.540 Reports from unpermitted industrial users.

All industrial users not required to obtain an individual wastewater discharge permit or general permit shall provide appropriate reports to the BOPU as the BOPU may require. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.540 and in doing so changed the title of said section from "Reports from unpermitted users" to "Reports from unpermitted industrial users," as set out herein.

13.20.545 Sector control program.

A. General Requirements.

1. Authority.

a. The BOPU may establish specific sector control programs for industrial users to control specific pollutants as necessary to meet the objectives of this chapter. Pollutants subject to these sector control programs shall generally be controlled using best management practices (BMPs).

b. The BOPU may implement these sector control programs through an individual wastewater discharge permit, by letter, an authorization to discharge, or other control mechanisms or by directly enforcing this chapter. All industrial users that are covered by these sector control programs shall comply with this section, whether specifically notified by the BOPU to do so.

2. Notification to the BOPU by the Industrial User and Management Review. The BOPU shall review new construction and existing facilities undergoing any physical change triggering a building permit, change in ownership, change in operations, or other change that could change the nature, properties, or volume of wastewater discharge, to ensure that current Sector Control Program requirements are incorporated and implemented. It is the responsibility of the industrial user to inform the BOPU regarding a change in any of the conditions specified in this paragraph.

3. Inspections.

a. The BOPU may conduct inspections of any facility with or without notice for determining applicability and/or compliance with these sector control programs pursuant to Section 13.20.170 of this chapter, Right of Entry.

b. If any inspection reveals non-compliance with any provision of a sector control program requirement, corrective action shall be required.

4. Closure. The BOPU may require closure of plumbing, treatment devices, storage components, containments, or other such physical structures that are no longer required for their intended purpose if they present a health or safety risk, or create a risk of contamination, damage, or impairment to the POTW. Closure may include the removal of equipment, the filling in and/or cementing, capping, plugging, etc.

5. Enforcement and Compliance.

a. These sector control program requirements form a part of this chapter and the BOPU may take enforcement consistent with Articles 6 through 8 of this chapter.

b. Any extraordinary costs incurred by the BOPU due to interference, damage, pass through, or maintenance necessary in the treatment and/or collection system may be billed to the industrial user by the BOPU. The direct costs of all labor, equipment and materials incurred in rectifying the interference or damage, including reasonable attorney's fees, may be billed directly to the owner or the industrial user by the BOPU, and such costs may become part of the total charges due and owing to the BOPU and may constitute a lien on the owner or industrial user until paid in full.

6. The industrial user shall notify the BOPU in writing naming their authorized representative and the duly authorized representative of the industrial user as defined under Section 13.20.030, Definitions, of this chapter. Notification shall be made to the BOPU upon startup, when authorizations change, and within two weeks when required by the BOPU.

B. Best Management Practices for Fats, Oil and Grease (FOG) Facilities.

1. Definitions.

"Fats, oil and grease" or "FOG" means non-petroleum organic polar compounds derived from animal or plant sources such as fats, non-hydrocarbons, fatty acids, soaps, waxes, and oils that contain multiple carbon chain triglyceride molecules. These substances are detectable and measurable using the approved method for Hexane Extractable Materials in the analytical procedures established in 40 CFR Part 136.

"Grease interceptor" means any gravity grease interceptor, hydromechanical grease interceptor or other mechanism, device, or process, which attaches to, or is applied to, wastewater plumbing fixtures and lines, the purpose of which is to trap

or collect FOG prior to it being discharged into the sewer system. Grease interceptors may also include any other proven physical method to reduce FOG subject to approval of the BOPU.

"Gravity grease interceptor" or "GGI" means a multi-compartmental plumbing apparatus or appliance, constructed in differing sizes, connected to a sanitary drainage system to intercept FOG from a wastewater discharge and is identified by liquid volume, thirty-minute retention time, baffle(s), a minimum of two compartments, and gravity separation.

"Hydromechanical grease interceptor" or "HMGI" means a plumbing apparatus or appliance typically installed inside an FSE in a sanitary drainage system to intercept FOG from the wastewater discharge, and is identified by flow rate, separation and retention efficiency. The design incorporates air entrainment, hydromechanical separation, interior baffling, and/or barriers in combination or separately, and one of the following:

Type A: External flow control, with air intake (vent), directly connected;

Type B: External flow control, without air intake (vent), directly connected;

Type C: Without external flow control, directly connected; or

Type D: Without external flow control, indirectly connected.

2. Applicability. These best management practices (BMPs) establish requirements for any facility the BOPU determines has the potential to discharge floatable or settleable material. The requirements established in these BMPs shall apply to facilities where preparation, manufacturing, processing of food or washing/sanitizing of dishes or equipment occurs. Food service establishments shall include, but are not limited to, restaurants, cafes, fast food outlets, pizza outlets, ice cream parlors, delicatessens, sandwich shops, coffee shops, schools, nursing homes and other facilities that prepare, service or otherwise make foodstuff available for consumption. Trucks containing mobile kitchens shall discharge their grease containing wastewater to a discharge point that has a grease interceptor installed such as a commissary or as otherwise required by the BOPU. These facilities shall install and maintain a gravity grease interceptor (GGI), unless a variance to install a hydromechanical grease interceptor (HMGI) is applied for by the food service establishment (FSE) and approved by BOPU prior to installation, within ninety (90) days of being notified of such requirement or as specified by the BOPU.

3. No industrial user covered by subsection B.2, above, shall discharge or cause to be discharged or pass through any wastewater containing free or floating oil and grease, or any discharge containing animal fat or grease by-product. Methods to determine pass through of fats, oils, and grease can include visual observation, mathematical calculations, or laboratory analysis with results in excess of one hundred (100) milligrams per liter. Unless otherwise approved by the BOPU personnel, a food service establishment shall install and properly operate and maintain a grease interceptor approved by the BOPU, implement all required BMPs and not violate a general or specific prohibitions, as specified in Section 13.20.050 of this chapter.

4. A grease interceptor that was legally and properly installed at an industrial user's facility prior to the effective date of the ordinance adopting these sector control programs shall be acceptable as an alternative if such device is effective in removing floatable and settleable material and is designed and installed in such a manner that it can be inspected and properly maintained. If the BOPU determines at any time that such grease interceptor is incapable of adequately retaining the floatable and settleable material or if it was installed in such a manner that it cannot be inspected and properly maintained, the industrial user shall install a grease interceptor that complies with all city and BOPU building and plumbing codes within ninety (90) days after being notified of such requirement or as specified by the BOPU.

5. Location of Grease Interceptors. Within two weeks of notification by the BOPU, industrial users with buildings or premises where grease interceptors are located shall submit in writing to the BOPU the number and location of every grease interceptor that serves the industrial user's building or premises.

6. Unsafe or Damaged Grease Interceptor Systems. No industrial user shall allow any grease interceptor system or its parts to become unsafe, damaged, unsanitary or a menace to life, health, or property. When an existing grease interceptor system, or its parts, is observed by the BOPU to be potentially unsafe, damaged, unsanitary or a menace to life, health or property, the industrial user shall take all necessary steps to return the grease interceptor system or its parts to full operable condition immediately. The BOPU may require the industrial user to have the grease interceptor system inspected by a licensed plumber to determine the state of the grease interceptor system, and submit a report signed by the licensed plumber. Any repair, reconstruction, or replacement of grease interceptor systems must conform to the Uniform Plumbing Code.

7. Variance.

a. A variance from the requirements of Section 13.20.545 may be granted by the BOPU. The facility has the burden of proof of demonstrating through data and other information why a variance should be granted. In no case shall a variance result in violation of any pretreatment standard or requirement specified in this chapter and applicable to the discharge. The granting of any variance shall be at the sole discretion of the BOPU and may be revoked at its discretion.

b. The BOPU may allow the installation of an HMGI or continue to allow the use of an HMGI in lieu of installing a GGI, where the HMGI is shown to be effective. If an HMGI is not shown to be effective, the BOPU may require the industrial user to install a new or additional grease interceptor of appropriate grease capacity and flowrate.

8. General Control Requirements.

a. A grease interceptor shall be required for the proper handling of liquid wastes which may be harmful to, or cause obstruction in the POTW or cause or contribute to pass through or interference.

b. It shall be the responsibility of the industrial user and/or owner of the property to contact the city and obtain the necessary permits for the installation of a grease interceptor or any modifications to the facility's plumbing. Written approval from the city and BOPU shall be obtained prior to installation of the interceptor. The time of review and approval of such permits shall in no way relieve the industrial user from the responsibility of producing a discharge acceptable to the BOPU under the provisions of this chapter.

c. The design and sizing of grease interceptors shall be in accordance with applicable city building codes, BOPU specifications or the building codes that are in effect for the industrial user if located in another jurisdiction. The GGI shall be sized at a minimum of one thousand (1,000) gallons, and not to exceed three thousand (3,000) gallons, unless otherwise approved and granted a variance by the BOPU pursuant to subparagraph 7 above, in writing prior to installation. The grease interceptor shall be sized, installed, maintained, and operated to accomplish the intended purpose of intercepting pollutants from the industrial user's wastewater and preventing the discharge of such pollutants to the POTW, including pollutants that result in toxic, noxious, or malodorous conditions that create a public nuisance or unsafe working conditions, which endanger life or the environment.

d. Waste discharged from fixtures, equipment, and drain lines which may contain fats, oils, and grease, including, but not limited to, scullery sinks, pot and pan sinks, dishwashing machines, soup kettles, and floor drains located in areas where grease containing equipment may exist, shall be discharged through grease interceptors. Drains from toilets, restroom sinks, and showers shall not be connected to the grease interceptor and shall connect to the sanitary sewer downstream from any grease interceptors.

e. Upon application for sanitary sewer service, or application for a building permit or business license, every food service establishment, as defined in Paragraph B.2 of this section, shall coordinate with the BOPU so that a properly sized and functioning grease interceptor will be installed at the industrial user's expense or is currently in existence.

f. An inspection manhole downstream or a four-inch cleanout downstream of the grease interceptor that allows for proper inspection, sampling, and flow measurement of the waste within the industrial user's service line is required. All manholes/cleanouts must be constructed to accommodate H-20 traffic loading and to meet the requirements of the most recent city adopted International Building Code 15.08 and Plumbing Code 15.12 and BOPU's Infrastructure Policy and Design Criteria (IPDC) Manual.

g. All sinks which are connected to a grease interceptor shall be equipped with a fixed or removable mesh or screen which shall catch garbage and food debris and prevent it from entering the GGI or HMGI. Food grinders are prohibited.

h. Any biological, chemical or enzyme product, used on its own or in conjunction with other substances, that causes the liquefaction or emulsification or the act of liquifying or emulsifying fats, oils or grease are prohibited from introduction into the grease interceptor or the POTW.

i. The industrial user shall ensure that grease interceptors are easily accessible for inspection, cleaning, and removal of FOG.

j. An employee training program may be required by the BOPU on FOG waste management.

k. The industrial user shall maintain grease interceptors at their expense and keep the grease interceptors in efficient operating condition at all times by the regular removal of accumulated FOG.

l. The industrial user may be required to pay the costs incurred by the BOPU or other jurisdiction for accelerated sewer line cleaning on the sewer line providing service between the facility and the POTW, costs to the BOPU for treating the excess strength waste and any costs for sampling and analysis.

m. Each industrial user that is required to use and maintain a grease interceptor, at their expense, shall keep a record of every time the grease interceptor is pumped, cleaned, or repaired. All methods of record keeping shall be approved by the BOPU. Methods may include: manifests for grease disposal, grease interceptor self-cleaning logs, and reporting software programs. This record shall include, unless otherwise approved by the BOPU, at a minimum, the establishment name, address, phone number, the date and time of pumping and cleaning, the name of the company that is performing the pumping and cleaning of the grease interceptor, the amount of waste removed, certification statements provided in this subparagraph, below, for both the establishment and the company performing the cleaning and hauling of the grease interceptor, the printed name and signature of the responsible party for both the generator (establishment) and the transporter (company cleaning grease interceptor and hauling the waste). These records shall be submitted to the BOPU within two weeks of the grease interceptor cleaning, or as specified by the BOPU. All records for grease interceptor cleaning or repairs shall be kept on the premises for at least three years and be available to the BOPU upon request. The removed contents from any grease interceptor shall be handled by a person licensed to haul such waste and shall be disposed of in accordance with federal, state, and local regulations. A grease interceptor located inside the facility may be cleaned by the establishment's employees upon approval by the BOPU provided BMPs are followed, a log approved by the BOPU is kept and submitted to the BOPU within two weeks of each cleaning or as specified by the BOPU, and the waste is disposed of in accordance with federal, state, and local regulations.

Certification Statement for Establishment:

> "I acknowledge that, as the generator of grease interceptor waste, I am responsible for following the requirements of Chapters 13.12 and 13.20, of the Cheyenne City Code and that

failure to do so may result in fines and penalties. To the best of my knowledge, the grease interceptor cleaning service has been properly performed."

Certification Statement for Company performing Cleaning and Hauling:

"I certify that I have cleaned the above grease interceptor in accordance with Chapters 13.12 and 13.20 of the Cheyenne City Code. To the best of my knowledge, the waste being transported and disposed of contains no hazardous material."

9. Required Maintenance.

a. Grease interceptors shall be maintained by regularly scheduled cleaning so that they will properly operate as intended to efficiently intercept the fats, oil and grease from the facility's wastewater and prevent the discharge of said materials into the POTW. A grease interceptor shall be serviced at a minimum of every ninety (90) days, or at an increased frequency specified by the BOPU, when pass through of FOG is indicated through visual observation, mathematical calculations or laboratory analysis with results in excess of one hundred (100) milligrams per liter, or whenever the combined thickness of the FOG and settled solids are greater than twenty-five (25) percent of the liquid capacity of the GGI or if toxic, noxious, or malodorous conditions create a public nuisance or unsafe working conditions which endanger health. A variance for decreased cleaning frequency may be requested by the facility. If, after review through methods of visual observation and/or mathematical calculations, the BOPU finds that the grease interceptor will accommodate a longer period of FOG treatment, a variance is typically granted.

b. The BOPU may require more frequent cleaning than that prescribed in subparagraph (a), above. A variance from these frequencies may be obtained if the industrial user can demonstrate through analytical data or by inspection by the BOPU that less frequent cleaning is sufficient as stated in subparagraph 9.a, above.

c. Mechanical maintenance of grease interceptors shall be done in a workman-like manner only by a business/professional normally engaged in the servicing of such plumbing fixtures. Grease interceptors located inside the facility, with approval from the BOPU, may be cleaned by the food service employees, provided the BMPs are followed, and a log approved by the BOPU is kept and submitted to the BOPU within two weeks of cleaning.

d. In the event a grease interceptor is not properly maintained by the industrial user, owner, lessee, or other authorized representative of the facility, the BOPU may authorize such maintenance work be performed on behalf of the industrial user. The costs of such maintenance shall be billed directly to the industrial user and/or owner and shall become part of the charges due and owed to the BOPU.

e. Biological, chemical or enzyme treatment shall not be a substitute for the servicing of a grease interceptor. Use of enzymes or other chemical or biological treatment or product that liquifies, emulsifies, or acts to liquify or emulsify FOG is prohibited.

f. Each grease interceptor pump-out shall be documented and include the information in subsection B.8.m of this section. This information shall be kept by the industrial user on site for at least three years. A copy of this information shall be submitted to the BOPU within two weeks of the service date.

g. The industrial user must assure that all waste is properly disposed of in accordance with federal, state, and local regulations. A statement certifying proper disposal by the hauler included on the waste manifest, trip ticket, or self-cleaning log for each cleaning is required.

10. Grease Interceptor Cleaning/Maintenance BMPs.

a. All persons engaged in the cleaning/maintenance of grease interceptors shall adopt the following BMPs, as applicable to the specific grease interceptor at their facility.

i. All captured waste in the grease interceptor shall be removed.

ii. Sides of the grease interceptor shall be scraped or washed down with water and the scrapings or material washed down from the walls shall be removed.

iii. Inlet and outlet pipes shall be cleaned of grease buildup.

iv. Lids, seals and covers shall be replaced to prevent persons from accidentally falling into the interceptor.

v. Equipment used to clean grease traps shall be clean prior to entering facility. vi. Lids shall be removed, and seals inspected for damage or leakage.

vii. Every chamber shall be rinsed with water (hot water recommended) and all water, grease, and sludge removed.

viii. Any material removed from the grease interceptor shall not be introduced into any sanitary sewer or storm sewer.

ix. Any material accidentally spilled on the floor during cleaning, transporting of equipment or removing grease shall be cleaned up prior to departure from the site.

b. If a grease interceptor is found to be inoperable, damaged or in such condition that it is unsafe or is failing to capture grease introduced into the interceptor, all steps necessary shall be taken to return the interceptor to fully operable condition immediately.

C. Sand Interceptor and Oil Water Separator Requirements.

1. These best management practices (BMPs) establish requirements for any facility that has the potential to discharge petroleum oil, mineral oil, cutting oils, non-food grease and solids. All facilities subject to these BMPs shall comply with the requirements which include both the requirement for installation and proper operation and maintenance of a separator or interceptor and other reporting requirements.

2. This sector control program covers separators and interceptors used for car washes, garages, repair shops, gasoline stations and/or for any other operation which involves vehicle or equipment servicing. Sand interceptors and oil water separators are not intended as a disposal site for motor oil and petroleum products. They are only intended for the capture of minor spills and drips of petroleum products which occur in the day-to-day operation.

3. A sand interceptor or oil water separator that was legally and properly installed at an industrial user's facility prior to the effective date of this sector control program shall be acceptable as an alternative if such device is effective in removing floatable and settleable material and is designed and installed is such a manner that it can be inspected and properly maintained. If the BOPU determines at any time that such sand interceptor or oil water separator is incapable of adequately retaining the floatable and settleable material or if it was installed in such a manner that it cannot be inspected and properly maintained, the industrial user shall install a sand interceptor or oil water separator that complies with all Federal, State, and Local regulations within ninety (90) days, or as specified by the BOPU, after being notified of such requirement.

4. Implementation. These sand interceptor and oil water separator requirements may be implemented by letter, order, or permit.

5. General Control Requirements.

a. A sand interceptor or oil water separator shall be required for the proper handling of liquid wastes which may be harmful to, or cause obstruction in the POTW or cause or contribute to pass through or interference.

b. It shall be the responsibility of the industrial user, owner of the property, or an authorized representative of the industrial user to contact the city and BOPU for applicable requirements. In addition to the current city adopted International Plumbing Code 15.12, a separator shall include a two-compartment separator as detailed in the BOPU IPDC Manual. The industrial user is responsible for obtaining a plan review by the city and BOPU. Written approval from the city and BOPU shall be obtained prior to installation of the separator and shall meet all applicable city adopted International Building Code 15.08. The

review of such plans and operating procedures shall in no way relieve the industrial user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the BOPU under the provisions of this chapter.

c. An inspection manhole downstream or a four-inch cleanout downstream of the separator or interceptor that allows for proper inspection, sampling, and flow measurement of the waste within the industrial user's service line is required. All manholes/cleanouts shall be constructed to accommodate H-20 traffic loading and to meet the requirements of the most recent city adopted International Building Code 15.08, Plumbing Code 15.12 and BOPU's Infrastructure Policy and Design Criteria (IPDC) Manual.

d. Upon application for sanitary sewer service, or application for a building permit or business license, all facilities that have the potential to discharge petroleum oil, mineral oil, cutting oils, nonfood grease, and solids, shall coordinate with the BOPU so that a properly sized and functioning sand interceptor or oil-water separator will be installed at the industrial user's expense or is currently in existence.

e. Toilets, urinals, and similar fixtures shall not be plumbed through a sand interceptor or oil water separator. Such fixtures shall be plumbed directly into the building sewer and waste system.

f. Separators or interceptors in all facilities used for cleaning vehicles, equipment or machine parts shall be constructed to prevent the entrance of storm or surface runoff water or the intrusion of groundwater into the POTW.

g. The industrial user shall ensure the sand interceptor or oil water separator is easily accessible for inspection, cleaning, and removal of sand, oils, and other accumulated wastes.

h. The industrial user shall always maintain separators or interceptors at their own expense and keep in efficient operating condition by the regular removal of waste materials.

i. Required Maintenance.

i. Sand interceptors or oil water separators shall be maintained by regularly scheduled cleaning so that they will properly operate as intended to efficiently intercept the collected waste from the industrial user's wastewater and prevent the discharge of said materials into the BOPU's wastewater collection system. A sand interceptor or oil water separator may be placed on an accelerated cleaning frequency if determined by the BOPU that it is necessary to avoid pass through of pollutants into the POTW. The industrial user should check the separator or interceptor for the accumulation of pollutants or solids, at a minimum, once per quarter to avoid exceeding the capacity of the separator.

ii. The BOPU may require more frequent cleaning. A variance from this requirement may be obtained, if approved by the BOPU, when the industrial user can demonstrate with analytical data, or through inspection by the BOPU, that less frequent cleaning is sufficient.

iii. Maintenance of sand interceptor or oil water separator shall be done in a workman-like manner only by a business/professional normally engaged in the servicing of such plumbing fixtures. Removal and hauling of any collected waste from separators or interceptors not performed by the industrial user's employees shall be performed by a waste hauler licensed by the Cheyenne/Laramie County Environmental Health Department. Liquid or solid waste removed from sand interceptor or oil water separator shall not be introduced back into the sanitary or storm sewer systems of the city of Cheyenne.

iv. In the event a separator or interceptor is not properly maintained by the industrial user, owner, or lessee, the BOPU may authorize such maintenance work be performed on behalf of the facility. The costs of such maintenance shall be billed directly to the customer and shall become part of the charges due and owed to the BOPU.

v. The industrial user must take reasonable steps to assure that all waste is properly disposed of in accordance with federal, state, and local regulations (i.e., through a statement certifying proper disposal by the hauler included on the waste manifest or trip ticket for each load).

vi. Each industrial user that is required to use and maintain a sand interceptor or oil water separator shall keep a record of every time the sand interceptor or oil water separator is pumped, cleaned, or repaired. This record shall include the date, the name of the company that pumped or cleaned the sand interceptor or oil water separator, site of disposal, and the amount of waste that was removed. Such records shall be reported to the BOPU at least once per year or as required and kept onsite for at least three years. The removed contents from any sand interceptor or oil water separator shall be handled by an employee of the industrial user or a person licensed to haul such waste and shall be disposed of in accordance with federal, state, and local regulations. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22)

13.20.550 Publication of industrial users in significant noncompliance.

A. The BOPU shall publish, at a minimum annually, in a newspaper of general circulation that provides meaningful public notice within the jurisdictions served by the POTW, a list of the industrial users which, at any time during the previous twelve (12) months, were in significant noncompliance with applicable pretreatment standards and requirements. The term "significant noncompliance" shall be applicable to all significant industrial users (or any other industrial user that violates subsections A.3, A.4 or A.8 below) and shall mean:

1. Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all the measurements taken for the same pollutant parameter taken during a six month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits as defined in Section 13.20.030 of this chapter;

2. Technical review criteria (TRC) violations, defined here as those in which thirty-three (33) percent or more of wastewater measurements taken for each pollutant parameter during a six (6) month period equals or exceeds the product of the numeric pretreatment standard or Requirement including instantaneous limits, as defined by Section 13.20.030, 13.20.060, and 13.20.070 of this chapter multiplied by the applicable criteria (1.4 for BOD, TSS, fats, oils and grease, and 1.2 for all other pollutants except pH);

3. Any other violation of a pretreatment standard or requirement as defined by Section 13.20.030 of this chapter (daily maximum, long-term average, instantaneous limit, or narrative standard) that the BOPU determines has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of POTW personnel or the general public;

4. Any discharge of a pollutant that has caused imminent endangerment to the public or to the environment, or has resulted in the BOPU's exercise of its emergency authority to halt or prevent such a discharge;

5. Failure to meet, within ninety (90) days of the scheduled date, a compliance schedule milestone contained in an individual wastewater discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance;

6. Failure to provide within forty-five (45) days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

7. Failure to accurately report noncompliance; or

8. Any other violation(s), which may include a violation of BMPs, which the BOPU determines will adversely affect the operation or implementation of the local pretreatment program. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.550 and in doing so changed the title of said section from "Publication of users in significant noncompliance" to "Publication of industrial users in significant noncompliance," as set out herein.

Article 5. Wastewater Fees

13.20.560 Industrial user's fees.

It is declared necessary for the protection of the public health, safety, and welfare, and necessary

for the effectiveness of the BOPU, to collect fees from anyone who contributes wastewater to the POTW. The proceeds of these charges shall be used for the operation, maintenance, and other related costs of the wastewater treatment systems as determined by the BOPU. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.560 and in doing so changed the title of said section from "User's fees" to "Industrial user's fees," as set out herein.

13.20.570 Reserved.

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, repealed § 13.20.570, which pertained to definitions and derived from Ord. No. 4002, § 1, adopted Oct. 28, 2013.

13.20.580 Fees.

A. The POTW may adopt charges and fees which may include:

1. Fees for reimbursement of costs of setting up and operating the POTW's pretreatment program;

2. Fees for monitoring, inspection and surveillance procedures including the cost of reviewing monitoring reports submitted by the industrial user;

3. Fees for reviewing accidental discharge procedures and construction;

4. Fees for permit applications including the cost of processing such applications;

5. Fees for filing appeals;

6. Other fees as the POTW may deem necessary to carry out the requirements contained herein; and;

7. Fees for industrial users and commercial users contributing wastewater with strength in excess of concentrations established in Section 13.20.590 of this chapter.

B. These fees relate solely to the matters covered by this chapter and are separate from all other fees chargeable by the POTW. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.590 Sewer use surcharge.

A. Rate Determination.

1. Sewer use surcharges may be determined for industrial users and commercial users contributing wastewater with strength in excess of normal domestic concentrations established by a method adopted and approved by the BOPU based on applicable waste strength and volume. Rates shall be established by a current schedule of charges adopted by the BOPU and approved by the governing body of the city of Cheyenne. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.600 Billing.

A. Sewer Use Surcharges.

1. Sewer use surcharges shall be billed monthly and shall be based on the BOPU's approved rates. The sewer use surcharges shall be submitted with each industrial user's monthly sewer bill. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.610 Payment.

Each industrial user shall pay for the services provided by the BOPU based on its use of the wastewater treatment system and in accordance with the industrial user's sewer usage determination. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.620 Charges adopted.

Industrial user fees shall be established by a current schedule of charges adopted by the BOPU and approved by the governing body of the city of Cheyenne. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.630 Review.

The BOPU will review its schedule of industrial user fees and surcharges annually and make revisions as necessary to ensure adequate revenues to pay the costs of the wastewater treatment system, including, but not limited to, operation and maintenance costs, interest and principal payments, construction costs, and costs to enlarge, replace and repair the system. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.640 Pollutants.

Any industrial user discharging any pollutants which cause an increase in the cost of managing the effluent or sludge from the treatment works, or any industrial user discharging any substance which singly or by interaction with other substances causes increases in the costs of operation and maintenance of the wastewater treatment system, shall, at the discretion of the BOPU, pay for such increased costs. The strength and characteristics of effluents shall be monitored by the responsible industrial user's personnel and such industrial users shall be assessed a surcharge according to rates as determined by the BOPU and approved by the governing body of the city of Cheyenne. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.650 All industrial users.

Industrial user charge rates shall apply to all industrial users of the BOPU's treatment works, regardless of the location of the discharge unless specifically exempted by the BOPU. City and BOPU facilities are exempt. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.650 and in doing so changed the title of said section from "All users" to "All industrial users," as set out herein.

Article 6. Enforcement—Administrative Remedies

13.20.655 Orders.

The BOPU may serve upon an industrial user an order (written direction or verbal statement) requiring specific actions be taken to verify compliance or return to compliance. Orders may contain a required timeline for actions to be completed by the industrial user. Orders may appear within a letter, inspection forms, inspection reports, notice of violations, consent orders, administrative compliance orders, or any other type of enforcement action listed in this chapter. Nothing in this section shall limit the authority of the BOPU to take any action, including emergency actions or any other enforcement action, without first issuing an order. (Ord. No. 4416, § 1, 2-28-22)

13.20.660 Notification of violation.

When the BOPU finds that an industrial user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the BOPU may serve upon that industrial user a written notice of violation. The notice of violation may require that within a timeline specified by the BOPU of such notice, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the industrial user to the BOPU. Submission of such a plan in no way relieves the industrial user of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the BOPU to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.670 Consent orders.

The BOPU may enter into consent orders, assurances of compliance, or other similar documents establishing an agreement with any industrial user responsible for noncompliance. Such documents shall include specific action to be taken by the industrial user to correct the noncompliance within a time period specified by the document. Such documents shall have the same force and effect as the administrative compliance orders and cease and desist orders issued pursuant to Sections 13.20.690 and 13.20.700 of this chapter and shall be judicially enforceable. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.680 Show cause hearing.

The BOPU may order an industrial user which has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, to appear before the BOPU and show cause why the

proposed enforcement action should not be taken. Written notice shall be served on the industrial user specifying the time and place for the meeting, the proposed enforcement action, the reasons for such action, and a request that the industrial user show cause why the proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested) at least thirty (30) days prior to the hearing. Such notice may be served on any authorized representative of the industrial user as defined in Section 13.20.030 of this chapter and required by Section 13.20.260.A of this chapter. A show cause hearing shall not be a bar against, or prerequisite for, taking any other action against the industrial user. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.690 Compliance order.

When the BOPU finds that an industrial user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the BOPU may issue an administrative compliance order to the industrial user responsible for the discharge directing that the industrial user come into compliance within a specified time. If the industrial user does not come into compliance within the time provided, water and/or sewer service may be reduced, discontinued, or terminated until adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Administrative compliance orders also may contain other requirements to address the noncompliance, including, but not limited to, additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the sewer. An administrative compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does an administrative compliance order relieve the industrial user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the industrial user. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.700 Cease and desist orders.

A. When the BOPU determines that an industrial user continues to violate, any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, or that part of the pretreatment process is currently missing or failing as determined by the BOPU or by a business/professional normally engaged in the servicing of this type of equipment, the BOPU may issue an order to the industrial user directing it to cease and desist all such violations and directing the industrial user to:

1. Immediately comply with all requirements; and

2. Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge. Issuance of a cease and desist order shall not be a bar against, or a prerequisite for, taking any other action against the industrial user. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.710 Administrative fines.

A. When the BOPU finds that an industrial user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, the BOPU may fine such industrial user in an amount not to exceed ten thousand dollars ($10,000.00). Such fines may be assessed on a per-violation, per-day basis. In the case of monthly or other long-term average discharge limits, fines may be assessed for each day during the period of violation.

B. The POTW shall have all collection remedies available to collect other service charges and

any other remedy provided by law. Unpaid charges, fines and penalties shall constitute a lien against the industrial user's property.

C. Industrial users desiring to dispute such fines must file a written request for the BOPU to reconsider the fine along with full payment of the fine amount within ten (10) days of being notified of the fine. The BOPU shall convene a hearing on the matter. In the event the industrial user's appeal is successful, the payment together with any interest accrued at the prevailing rate shall be reimbursed to the industrial user. In the event the appeal is unsuccessful, the BOPU may add the costs of preparing administrative enforcement actions, such as notices and orders, to the fine.

D. Issuance of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the industrial user. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.720 Emergency suspensions.

A. The BOPU may immediately suspend an industrial user's discharge whenever such suspension is necessary to stop an actual or threatened discharge, which reasonably appears to present, or cause an imminent or substantial endangerment to the health or welfare of persons. The BOPU may also immediately suspend an industrial user's discharge, after notice and opportunity to respond, that threatens to interfere with the operation of the POTW, or which presents, or may present, an endangerment to the environment.

1. Any industrial user notified of a suspension of its discharge shall immediately stop or eliminate its discharge. In the event of an industrial user's failure to immediately comply voluntarily with the suspension order, the BOPU may take such steps as deemed necessary, including immediate severance of the water and/or sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any individuals. The BOPU may allow the industrial user to recommence its discharge when the industrial user has demonstrated to the satisfaction of the BOPU that the period of endangerment has passed, unless the termination proceedings in Section 13.20.730 of this chapter are initiated against the industrial user.

2. An industrial user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement, describing the causes of the harmful contribution and the measures taken to prevent any future occurrence, to the BOPU prior to the date of any show cause or termination hearing under Section 13.20.680 or 13.20.730 of this chapter.

B. Nothing in this section shall be interpreted as requiring a hearing prior to any emergency suspension under this section. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.730 Termination, suspension, or disconnection of water and/or sewer services.

A. In addition to the provisions in Section 13.20.350 of this chapter, any industrial user who refuses access to the industrial user's premises for the purpose of inspection, monitoring, or sampling or who repeatedly violates any of the conditions specified in this subsection is subject to termination, suspension, or disconnection of water or sewer services:

1. Violation of individual wastewater discharge permit or general permit conditions;

2. Failure to accurately report the wastewater constituents and characteristics of its discharge;

3. Failure to report significant changes in operations or wastewater volume, constituents, and characteristics prior to discharge;

4. Failure to comply with the requirements of Chapter 13.20.545, Sector Control Program; or

5. Violation or continued violation of any part of this Chapter 13.20, Wastewater Treatment and Disposal.

B. Authority to Terminate, Suspend, or Disconnect Water or Sewer Service.

1. If the BOPU finds that a grease interceptor, or lack of a grease interceptor, is causing interference of the POTW or a private sanitary sewer, the

BOPU may have the water and/or sewer service of the offending property terminated, suspended, or disconnected after notice, pursuant to this chapter, and an opportunity to request a hearing regarding the proposed action is given to the industrial user. After a hearing has been conducted, the industrial user, facility owner, or landowner shall bear the cost for additional hearings for continuing infractions that are the basis of the hearing already held if compliance with requirements of this chapter is not maintained for twelve (12) consecutive months. Nonpayment for the hearing within the required timeframe may result in disconnection of water service pursuant to Cheyenne City Code 13.04.180. Termination, suspension, or disconnection of the water and/or sewer service may continue for a length of time determined to be appropriate by the BOPU as an enforcement action and/or administrative remedy regardless of whether the industrial user has achieved compliance.

2. If the BOPU finds that an industrial user continues to violate any part of Chapter 13.20, the BOPU may terminate, suspend, or disconnect water and/or sewer service of the industrial user pursuant to Section 13.20.740 of this chapter. Termination, suspension, or disconnection may continue for a length of time determined to be appropriate by the BOPU as an enforcement action and/or administrative remedy, and/or until all fines, fees, and applicable invoices have been paid, required actions have been met, and an action plan submitted by the industrial user describing prevention of further violations has been approved by the BOPU.

3. In the event the BOPU finds it necessary to terminate, suspend, or disconnect water and/or sewer service to an industrial user's building or premises, it shall immediately notify the city/county health department.

C. Exercise of the authority by the BOPU provided under this section shall not be a bar to, or a prerequisite for, taking any other action against the industrial user. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.730 and in doing so changed the title of said section from "Termination of discharge" to "Termination, suspension, or disconnection of water and/or sewer services," as set out herein.

13.20.740 Procedure for suspending or revoking permits or terminating, suspending, or disconnecting water and/or sewer service.

A. The BOPU may terminate, suspend, or disconnect water and/or sewer services or revoke an industrial user's permit, when such industrial user violates federal or state laws or regulations relating to wastewater discharge, any provision of this chapter, or any permit or order issued hereunder. Suspensions or revocations of permits, and terminations, suspensions, or disconnections of water and/or sewer service, shall be made according to the following procedure:

1. The industrial user, facility owner, or landowner shall be notified by the BOPU by certified mail, hand delivery, or process server at least seven days prior to suspending or revoking a permit, or terminating, suspending, or disconnecting water and/or sewer service. Such notice shall set forth with particularity the reasons such action is contemplated.

2. Upon receipt of notice, the industrial user, facility owner, or landowner may request a hearing before the BOPU. Such request shall be in writing and received by the BOPU within seven days of receipt of the notice. Failure of the industrial user, facility owner, or landowner to request a hearing within seven days shall result in a waiver of the right to a hearing.

3. If a hearing is requested, the BOPU shall set a hearing time, date, and location. The BOPU shall notify the requesting party in writing by certified mail, hand delivery, or process server of the time, date, and location of the hearing. After a hearing has been conducted, the industrial user, facility owner, or landowner shall bear the cost for additional hearings for continuing infractions that

are the basis of the hearing already held if compliance with requirements of this chapter is not maintained for twelve (12) consecutive months. Nonpayment for the hearing within the required timeframe may result in disconnection of water service pursuant to Section 13.04.180 of the Cheyenne City Code.

4. Hearings shall be conducted in accordance with the Wyoming Administrative Procedure Act.

5. If the BOPU has reason to believe that an industrial user is threatening the health, safety and welfare of the public, environment, or the operation of the POTW, the BOPU may immediately and without notice issue an order, either verbal or written, suspending or revoking a permit, or terminating, suspending, or disconnecting water and/or sewer service as an emergency response. Notice of the order, either verbal or written, shall be served on the industrial user, setting forth with particularity the grounds relied upon for the action taken. The industrial user may, upon receipt of notice, request a hearing before the BOPU and the hearing shall be conducted within two city business days. Emergency termination, suspension, or disconnection of water and/or sewer services may commence regardless of whether an industrial user has requested a hearing. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, amended § 13.20.740 and in doing so changed the title of said section from "Procedure for suspending or revoking permits, or suspending or terminating sewer service" to "Procedure for suspending or revoking permits or terminating, suspending, or disconnecting water and/or sewer service," as set out herein.

Article 7. Enforcement—Judicial Remedies

13.20.750 Injunctive relief.

When the BOPU finds that an industrial user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, the BOPU may petition the appropriate court in the state of Wyoming for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the individual wastewater discharge permit, order, or other requirement imposed by this chapter on activities of the industrial user. The BOPU may also seek such other legal or equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against an industrial user. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.760 Civil penalties.

A. An industrial user who has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement shall be liable to the BOPU for a maximum civil penalty of ten thousand dollars ($10,000.00) per violation, per day. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

B. The BOPU may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the BOPU.

C. In determining the amount of civil liability, the court shall take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the industrial user's violation, corrective actions by the industrial user, the compliance history of the industrial user, and any other factor as justice requires.

D. Filing a suit for civil penalties shall not be a bar against, or a prerequisite for, taking any other action against an industrial user. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.770 Criminal prosecution.

A. An industrial user who willfully or negligently violates any provision of this chapter, an

individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars ($750.00) per violation, per day, or imprisonment for not more than six months, or both.

B. An industrial user who knowingly makes any false statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, pursuant to this chapter, individual wastewater discharge permit, general permit or order issued hereunder, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this chapter shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars ($750.00) per violation, per day, or imprisonment for not more than six months, or both.

C. An industrial user who willfully or negligently introduces any substance into the POTW which causes personal injury or property damage shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars ($750.00) per violation, per day, or imprisonment for not more than six months, or both. This penalty shall be in addition to any other cause of action for personal injury or property damage available under other applicable law. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.780 Remedies—Nonexclusive.

The remedies provided for in this chapter are not exclusive. The BOPU may take any, all, or any combination of these actions against a noncompliant industrial user. Enforcement of pretreatment violations will generally be in accordance with the BOPU water reclamation division's enforcement response plan. However, the BOPU may take other action against any industrial user when the circumstances warrant. Further, the BOPU is empowered to take multiple enforcement actions against any noncompliant industrial user. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Article 8. Enforcement—Supplemental Actions

13.20.790 Reserved.

Editor's note—Ord. No. 4416, § 1, adopted Feb. 28, 2022, repealed § 13.20.790, which pertained to penalties for late reports and derived from Ord. No. 4002, § 1, adopted Oct. 28, 2013.

13.20.800 Liability insurance.

The BOPU may decline to issue or reissue an individual wastewater discharge permit or general permit to any industrial user who has failed to comply with any provision of this chapter, a previous individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, unless the industrial user first submits proof that it has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.810 Payment of outstanding fees and penalties.

The BOPU may decline to issue or reissue an individual wastewater discharge permit or general permit to any industrial user who has failed to pay any outstanding fees, fines or penalties incurred as a result of any provision of this chapter, a previous individual wastewater discharge permit, general permit or order issued hereunder. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.820 Water supply severance.

Whenever an industrial user has violated or continues to violate any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, water service to the industrial user may be severed. Service will recommence, at the industrial user's expense, only after the industrial user has satisfactorily demonstrated its ability to comply and has paid all

invoices, fines, and fees. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Article 9. Affirmative Defenses to Discharge Violations

13.20.830 Prohibited discharge standards.

A. An industrial user shall have an affirmative defense to an enforcement action brought against it for noncompliance with the general prohibitions in Section 13.20.050 A of this chapter or the specific prohibitions in Section 13.20.050 B of this chapter if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either:

1. A local limit exists for each pollutant discharged and the industrial user was in compliance with each limit directly prior to, and during, the pass through or interference; or

2. No local limit exists, but the discharge did not change substantially in nature or constituents from the industrial user's prior discharge when the BOPU was regularly in compliance with its WYPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements. (Ord. No. 4528, § 1, 10-23-23; Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

Article 10. Miscellaneous provisions

13.20.840 Pretreatment charges and fees—BOPU fee schedule.

A. The BOPU may adopt reasonable fees for reimbursement of costs of setting up and operating the BOPU pretreatment program, which may include:

1. Fees for individual wastewater discharge permit applications including the cost of processing such applications;

2. Fees for monitoring, inspection, and surveillance procedures including the cost of collection and analyzing an industrial user's discharge, and reviewing monitoring reports and certification statements submitted by industrial users;

3. Fees for reviewing and responding to accidental discharge procedures and construction;

4. Fees for filing appeals;

5. Fees to recover administrative and legal costs (not included in Section 13.20.840.A.2) of this chapter associated with the enforcement activity taken by the BOPU to address industrial user's noncompliance; and

6. Other fees as the BOPU may deem necessary to carry out the requirements contained herein. These fees relate solely to the matters covered by this chapter and are separate from all other fees, fines, and penalties chargeable by the BOPU. (Ord. No. 4416, § 1, 2-28-22; Ord. No. 4002, § 1, 10-28-13)

13.20.850 Severability.

Sections, paragraphs, sentences, clauses and phrases contained in this chapter are severable. If any phrase, clause, sentence, paragraph or section of the ordinance from which this chapter is derived, including amendments thereto, is declared to be unconstitutional or otherwise invalid, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections. (Ord. No. 4002, § 1, 10-28-13)

Chapter 13.24

FLOODPLAIN AND SURFACE WATER MANAGEMENT

Sections:

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13.24.120 Permit procedures.

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13.24.140 Flood hazard reduction—General standards.

13.24.150 Flood hazard reduction; specific standards.

13.24.160 Standards for subdivision proposals.

13.24.170 Standards for areas of shallow flooding (AO/AH zones).

13.24.180 Floodways.

13.24.190 Compliance—Penalty.

13.24.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to provide for flood damage prevention measures, pursuant to floodplain management regulations issued by the Federal Emergency Management Agency (FEMA), and local surface water management to promote the public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas by provisions designed to:

1. Protect human life and health;

2. Minimize expenditure of public money for costly flood control projects;

3. Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the public;

4. Minimize prolonged business interruptions;

5. Minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges located in floodplains;

6. Help maintain a stable tax base by providing for the sound use and development of flood-prone areas in such a manner as to minimize future flood blight areas; and

7. Insure that potential buyers are notified that property is in a flood area.

B. Authority is granted cities and towns by Wyo. Stat. Section 15-1-103 (xli) to adopt regulations designed to promote the public health, safety and general welfare of its citizenry. (Ord. 3739 § 1 (part), 2007)

13.24.020 Findings of fact.

A. The governing body finds that:

1. Flood hazard areas of the city are subject to periodic inundation which has resulted in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety and general welfare.

2. Flood losses are created by the cumulative effect of obstructions in floodplains which cause an increase in flood heights and velocities, and by the occupancy of flood hazard areas by uses vulnerable to floods and hazardous to other lands

because they are inadequately elevated, floodproofed or otherwise protected from flood damage.

3. The provisions of this chapter are necessary in order to effectively comply with minimum standards for coverage under the National Flood Insurance Program. (Ord. 3739 § 1 (part), 2007)

13.24.030 Reducing flood losses—Methods.

A. In order to accomplish its purposes, this chapter uses the following methods:

1. Restrict or prohibit uses that are dangerous to health, safety or property in times of flood, or cause excessive increases in flood heights or velocities;

2. Require that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

3. Control the alteration of natural floodplains, stream channels, and natural protective barriers, which are involved in the accommodation of floodwaters;

4. Control filling, grading, dredging and other development which may increase flood damage;

5. Prevent or regulate the construction of flood barriers which will unnaturally divert floodwaters or which may increase flood hazards to other lands. (Ord. 3739 § 1 (part), 2007)

13.24.040 Definitions.

Unless specifically defined below, the words or phrases used in this chapter pertaining to flood damage prevention shall be interpreted to give them the meaning they have in common usage and to provide for its most reasonable application:

"Alluvial fan flooding" means flooding occurring on the surface of an alluvial fan or similar landform which originates at the apex and is characterized by high-velocity flows; active processes of erosion, sediment transport, and deposition; and unpredictable flow paths.

"Apex" means a point on an alluvial fan or similar landform below which the flow path of the major stream that formed the fan becomes unpredictable and alluvial fan flooding can occur.

"Area of shallow flooding" means a designated AO, AH, or VO zone on a community's Flood Insurance Rate Map (FIRM) with a one percent chance or greater annual chance of flooding to an average depth of one to three feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

"Area of special flood hazard" means the land in the floodplain within a community subject to a one percent or greater chance of flooding in any given year. The area may be designated as Zone A on the Flood Hazard Boundary Map (FHBM). After detailed ratemaking has been completed in preparation for publication of the FIRM, Zone A usually is refined into Zones A, AE, AH, AO, A1-99, VO, V1-30, VE or V.

"Base flood" means the flood having a one percent chance of being equaled or exceeded in any given year.

"Basement" means any area of the building having its floor sub-grade (below ground level) on all sides.

"Critical feature" means an integral and readily identifiable part of a flood protection system, without which the flood protection provided by the entire system would be compromised.

"Development" means any man-made change in improved and unimproved real estate, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials.

"Elevated building" means a nonbasement building:

1. Built, in the case of a building in Zones A1-30, AE, A, A99, AO, AH, B, C, X, and D, to have the top of the elevated floor, or in the case of a building in Zones V1-30, VE, or V, to have the bottom of the lowest horizontal structure member of the elevated floor elevated above the ground level by means of pilings, columns (posts and piers), or shear walls parallel to the floor of the water; and

2. Adequately anchored so as not to impair the structural integrity of the building during a flood of up to the magnitude of the base flood. In the case of Zones A1-30, AE, A, A99, AO, AH, B, C, X, and D, "elevated building" also includes a building elevated by means of fill or solid foundation perimeter walls with openings sufficient to facilitate the unimpeded movement of floodwaters. In the case of Zones V1-30, VE, or V, "elevated building" also includes a building otherwise meeting the definition of "elevated building," even though the lower area is enclosed by means of breakaway walls if the breakaway walls met the standards of Section 60.3(e)(5) of the National Flood Insurance Program regulations.

"Existing construction" means for the purposes of determining rates, structures for which the "start of construction" commenced before the effective date of the FIRM or before January 1, 1975, for FIRMs effective before that date. "Existing construction" may also be referred to as "existing structures."

"Existing manufactured home park or subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

"Expansion to an existing manufactured home park or subdivision" means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

"Flood Insurance Rate Map (FIRM)" means an official map of a community, on which the Federal Emergency Management Agency has delineated both the areas of special flood hazards and the risk premium zones applicable to the community.

"Flood insurance study" means the official report provided by the Federal Emergency Management Agency. The report contains flood profiles, water surface elevation of the base flood, as well as the Flood Boundary-Floodway Map (FBFM).

"Flood or flooding" means a general and temporary condition of partial or complete inundation of normally dry land areas from:

1. The overflow of inland or tidal waters.

2. The unusual and rapid accumulation or runoff of surface waters from any source.

"Flood proofing" means any combination of structural and nonstructural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

"Flood protection system" means those physical structural works for which funds have been authorized, appropriated, and expended and which have been constructed specifically to modify flooding in order to reduce the extent of the areas within a community subject to a "special flood hazard" and the extent of the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized flood modifying works are those constructed in conformance with sound engineering standards.

"Floodplain management" means the operation of an overall program of corrective and preventive measures for reducing flood damage including, but not limited to, emergency preparedness plans, flood control works and floodplain management regulations.

"Floodplain management regulations" means zoning ordinances, subdivision regulations, building codes, health regulations, special purpose ordinances (such as a floodplain ordinance, grading ordinance and erosion control ordinance) and other applications of police power. The term describes such state or local regulations, in any combination thereof, which provide standards for the purpose of flood damage prevention and reduction.

"Floodplain or flood-prone area" means any land area susceptible to being inundated by water from any source (see definition of "Flood").

"Floodway (regulatory floodway)" means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

"Functionally dependent use" means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

"Highest adjacent grade" means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

"Historic structure" means any structure that is:

1. Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

2. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

3. Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of Interior; or

4. Individually listed on a local inventory or historic places in communities with historic preservation programs that have been certified either:

a. By an approved state program as determined by the Secretary of the Interior, or

b. Directly by the Secretary of the Interior in states without approved programs.

"Levee" means a man-made structure, usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control, or divert the flow of water so as to provide protection from temporary flooding.

"Levee system" means a flood protection system which consists of a levee, or levees, and associated structures, such as closure and drainage devices, which are constructed and operated in accordance with sound engineering practices.

"Lowest floor" means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, usable solely for parking or vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor; provided that such enclosure is not built so as to render the structure in violation of the applicable nonelevation design requirement of Section 60.3 of the National Flood Insurance Program regulations.

"Manufactured home" means a structure transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. The term "manufactured home" does not include a "recreational vehicle."

"Manufactured home park or subdivision" means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

"Mean sea level" means, for purposes of the National Flood Insurance Program, the National Geodetic Vertical Datum (NGVD) of 1929 or other datum, to which base flood elevations shown on a community's Flood Insurance Rate Map are referenced.

"New construction" means, for the purpose of determining insurance rates, structures for which the "start of construction" commenced on or after the effective date of an initial FIRM or after December 31, 1974, whichever is later, and includes any subsequent improvements to such structures. For floodplain management purposes, "new construction" means structures for which the "start

of construction" commenced on or after the effective date of a floodplain management regulation adopted by a community and includes any subsequent improvements to such structures.

"New manufactured home park or subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

"Recreational vehicle" means a vehicle which is:

1. Built on a single chassis;

2. Four hundred (400) square feet or less when measured at the largest horizontal projections;

3. Designed to be self-propelled or permanently towable by a light duty truck; and

4. Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

"Start of construction" (for other than new construction or substantial improvements under the Coastal Barrier Resources Act (Pub. L. 97-348)), includes substantial improvement and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement was within one hundred eighty (180) days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the "actual start of construction" means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

"Structure" means a walled and roofed building, including a gas or liquid storage tank that is principally above ground, as well as a manufactured home.

"Substantial damage" means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed fifty (50) percent of the market value of the structure before the damage occurred.

"Substantial improvement" means any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds fifty (50) percent of the market value of the structure before "start of construction" of the improvement. This includes structures which have incurred "substantial damage," regardless of the actual repair work performed. The term does not, however, include either:

1. Any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary conditions; or

2. Any alteration of a "historic structure," provided that the alteration will not preclude the structure's continued designation as a "historic structure."

"Variance" means a grant of relief to a person from the requirements of this chapter when specific enforcement would result in unnecessary hardship. A variance permits construction or development in a manner otherwise prohibited by this chapter (for full requirements, see Section 60.6 of the National Flood Insurance Program regulations).

"Violation" means the failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in Section 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4), or (e)(5) of the National Flood Insurance Program regulations is presumed to be in violation until such time as that documentation is provided.

"Water surface elevation" means the height, in relation to the National Geodetic Vertical Datum (NGVD) of 1929 (or other datum, where specified), of floods of various magnitudes and frequencies in the floodplains of coastal or riverine areas. (Ord. 3739 § 1 (part), 2007)

13.24.050 Lands affected.

The provisions of this chapter shall apply to all areas of special flood hazard within the jurisdiction of the city. (Ord. 3739 § 1 (part), 2007)

13.24.060 Basis for establishing areas of special flood hazard.

The areas of special flood hazard identified by the Federal Emergency Management Agency in a scientific and engineering report entitled, "The Flood Insurance Study for Laramie County Wyoming, and Incorporated Areas," dated January 17, 2007, with accompanying Flood Insurance Rate Maps and Flood Boundary-Floodway Maps (FIRM and FBFM) and any revisions thereto are adopted by reference and declared to be a part of this chapter. (Ord. 3739 § 1 (part), 2007)

13.24.070 Development permit required.

A development permit shall be required to ensure conformance with the provisions of this chapter. Permit procedures are contained in Section 13.24.120 of this chapter. (Ord. 3739 § 1 (part), 2007)

13.24.080 Abrogation and greater restrictions.

The provisions of this chapter are not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where the provisions of this chapter and another ordinance, easement, covenant, or deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail. (Ord. 3739 § 1 (part), 2007)

13.24.090 Interpretation.

A. In the interpretation and application of this chapter, all provisions shall be:

1. Considered as minimum requirements;

2. Liberally construed in favor of the governing body; and

3. Deemed neither to limit nor repeal any other powers granted under state statutes. (Ord. 3739 § 1 (part), 2007)

13.24.100 Warning and disclaimer of liability.

The degree of flood protection required by this chapter is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. On rare occasions greater floods can and will occur and flood heights may be increased by man-made or natural causes. The provisions of this chapter do not imply that land outside the areas of special flood hazards or uses permitted within such areas will be free from flooding or flood damages. This chapter shall not create liability on the part of the community or any official or employee thereof for any flood damages that result from reliance on this chapter or any administrative decision lawfully made. (Ord. 3739 § 1 (part), 2007)

13.24.110 Floodplain administrator—Designation, duties and responsibilities.

A. The city engineer is designated as the floodplain administrator to administer and implement the provisions of this chapter and other appropriate sections of 44 CFR (National Flood Insurance Program Regulations) pertaining to floodplain management.

B. Duties and responsibilities of the floodplain administrator shall include, but not be limited to, the following:

1. Maintain and hold open for public inspection all records pertaining to the provisions of this chapter.

2. Review permit applications to determine whether proposed building sites, including the placement of manufactured homes, are in compliance with minimum standards of NFIP for floodplain construction. Require developers to provide elevation certifications demonstrating that each lowest floor elevation is at least one foot above base flood elevation.

3. Review, approve or deny all applications for development permits required by this chapter.

4. Review permits for proposed developments. Require the developers to assure that all required permits are obtained from those federal, state or local governmental agencies (including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. 1334) from which prior approval is required.

5. Where interpretation is needed as to the exact location of the boundaries of the areas of special flood hazards (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), the floodplain administrator shall make the necessary interpretation.

6. Notify, in riverine situations, adjacent communities and the Wyoming Homeland Security Office, State Floodplain Manager, prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Emergency Management Agency.

7. Assure that the flood-carrying capacity within the altered or relocated portion of any watercourse is maintained.

8. When base flood elevation data has not been provided in accordance with Section 13.24.060 of this chapter, the floodplain administrator shall obtain, review and reasonably utilize any base flood elevation data and floodway data available from a federal, state or other source, in order to administer the provisions of Sections 13.24.140 through 13.24.180 of this chapter.

9. When a regulatory floodway has not been designated, the floodplain administrator must require that no new construction, substantial improvements, or other development (including fill) shall be permitted within Zones A1-30 and AE on the community's FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one foot at any point within the community.

10. Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Program regulations, a community may approve certain development in Zones A1-30, AE, AH, on the community's FIRM which increases the water surface elevation of the base flood by more than one foot, provided that the community first applies for a conditional FIRM revision through FEMA (Conditional Letter of Map Revision). (Ord. 3739 § 1 (part), 2007)

13.24.120 Permit procedures.

A. Application for a development permit shall be presented to the floodplain administrator on forms furnished by him or her and may include, but not be limited to, plans in duplicate drawn to scale showing the location, dimensions, and elevation of proposed landscape alterations, existing and proposed structures, including the placement of manufactured homes, and the location of the foregoing in relation to areas of special flood hazard. Additionally, the following information is required:

1. An elevation certificate delineating elevation (in relation to mean sea level), of the lowest floor (including basement) of all new and substantially improved structures;

2. Elevation in relation to mean sea level to which any nonresidential structure shall be floodproofed;

3. A certificate from a registered professional engineer or architect that the nonresidential flood-proofed structure shall meet the flood-proofing criteria of Section 13.24.150(A)(2) of this chapter;

4. Description of the extent to which any watercourse or natural drainage will be altered or relocated as a result of proposed development;

5. Maintain a record of all such information in accordance with Section 13.24.110(B)(1) of this chapter.

B. Approval or denial of a development permit by the floodplain administrator shall be based on all of the provisions of this chapter and the following relevant factors:

1. The danger to life and property due to flooding or erosion damage;

2. The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

3. The danger that materials may be swept onto other lands to the injury of others;

4. The compatibility of the proposed use with existing and anticipated development;

5. The safety of access to the property in times of flood for ordinary and emergency vehicles;

6. The costs of providing governmental services during and after flood conditions including maintenance and repair of streets and bridges, and public utilities and facilities such as sewer, gas, electrical and water systems;

7. The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site;

8. The necessity to the facility of a waterfront location, where applicable;

9. The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use;

10. The relationship of the proposed use to the comprehensive plan for that area. (Ord. 3739 § 1 (part), 2007)

13.24.130 Variance procedures.

A. The city engineer's office or an appeal board as established by the community shall hear and render judgment on requests for variances from the requirements of this chapter. In order to hear and render judgment on requests for variance, a floodplain and surface water management review board is created. The board will consist of three members, who are not employees of the city, who are qualified by experience and training to deal with matters pertaining to floodplain and surface water management.

1. Board members shall be appointed by the mayor, with consent of city council. Appointments will be for a term of three years, except that a member appointed to fill a vacancy shall be appointed for the unexpired term of the vacancy.

2. The board is authorized to adopt rules of procedure pursuant to Wyo. Stat. Section 16-3-101 et seq. for conducting its business, and will render all decisions and findings in writing to the appellant with a duplicate copy to the city engineer and building official.

3. The city engineer shall be an ex officio member of the board, without vote, and shall serve as clerk to the board.

B. The board shall hear and render judgment on an appeal only when it is alleged there is an error in any requirement, decision, or determination made by the floodplain administrator in the enforcement or administration of the provisions of this chapter. The board shall have no authority to waive requirements of this chapter except as specifically provided for in deciding on applications for variances.

C. Any person or persons aggrieved by the decision of the board may appeal such decision pursuant to the provisions of Wyo. Stat. Section 16-3-114.

D. The floodplain administrator shall maintain a record of all actions involving an appeal and shall report variances to the Federal Emergency Management Agency upon request.

E. Variances may be issued for the reconstruction, rehabilitation or restoration of structures listed on the National Register of Historic Places

or the State Inventory of Historic Places, without regard to the procedures set forth in the remaining sections of this chapter.

F. Variances may be issued for new construction and substantial improvements to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing the relevant factors in Section 13.24.120(A)(2) of this chapter have been fully considered. As the lot size increases beyond the one-half acre, the technical justification required for issuing the variance increases.

G. Upon consideration of the factors noted above and the intent of this chapter, the board may attach such conditions to the granting of variances as it deems necessary to further the purpose and objectives set out in this chapter.

H. Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

I. Variances may be issued for the repair or rehabilitation of historic structures upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.

J. Prerequisites for granting variances:

1. Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

2. Variances shall only be issued upon:

a. Showing a good and sufficient cause;

b. A determination that failure to grant the variance would result in exceptional hardship to the applicant; and

c. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

3. Any applicant to whom a variance is granted shall be given written notice that the structure will be permitted to be built with the lowest floor elevation below the base flood elevation, and that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation.

K. Variances may be issued by a community for new construction and substantial improvements and for other development necessary for the conduct of a functionally dependent use provided that:

1. The criteria outlined in Section 13.24.130(A) through (J) of this chapter are met; and

2. The structure or other development is protected by methods that minimize flood damages during the base flood and create no additional threats to public safety. (Ord. 3739 § 1 (part), 2007)

13.24.140 Flood hazard reduction—General standards.

A. In all areas of special flood hazards the following provisions are required for all new construction and substantial improvements:

1. All new construction or substantial improvements shall be designed (or modified) and adequately anchored to prevent flotation, collapse or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy;

2. All new construction or substantial improvements shall be constructed by methods and practices that minimize flood damage;

3. All new construction or substantial improvements shall be constructed with materials resistant to flood damage;

4. All new construction or substantial improvements shall be constructed with electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding;

5. All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the system;

6. New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into the system and discharge from the systems into floodwaters; and

7. On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding. (Ord. 3739 § 1 (part), 2007)

13.24.150 Flood hazard reduction; specific standards.

A. In all areas of special flood hazards where base flood elevation data has been provided as set forth in Sections 13.24.060, 13.24.110(B)(8) or 13.24.160(C) of this chapter, the following provisions are required:

1. Residential Construction. New construction and substantial improvement of any residential structure shall have the lowest floor (including basement), elevated one foot above the base flood elevation. A registered professional engineer, architect or land surveyor shall submit a certification to the floodplain administrator that the standard of this subsection as proposed in Section 13.24.130(A)(1) of this chapter is satisfied.

2. Nonresidential Construction. New construction and substantial improvements of any commercial, industrial or other nonresidential structure shall have the lowest floor (including basement) elevated one foot above the base flood level or together with attendant utility and sanitary facilities, be designed so that below the base flood level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer or architect shall develop and/or review structural design, specifications, and plans for the construction, and shall certify that the design and methods of construction are in accordance with accepted standards of practice as outlined in this subsection. A record of such certification which includes the specific elevation (in relation to mean sea level) to which such structures are floodproofed shall be maintained by the floodplain administrator.

3. Enclosures. New construction and substantial improvements, with fully enclosed areas below the lowest floor that are usable solely for parking of vehicles, building access or storage in an area other than a basement and which are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or meet or exceed the following minimum criteria:

a. A minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding shall be provided;

b. The bottom of all openings shall be no higher than one foot above grade; and

c. Openings may be equipped with screens, louvers, valves, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

4. Manufactured Homes.

a. All manufactured homes to be placed within Zone A on a community's FHBM or FIRM shall be installed using methods and practices which minimize flood damage. For the purposes of this requirement, manufactured homes must be elevated and anchored to resist flotation, collapse or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces.

b. Manufactured homes that are placed or substantially improved within Zones A1-30, AH, and AE on the community's FIRM on sites: (i) outside of a manufactured home park or subdivision, (ii) in a new manufactured home park or subdivision, (iii) in an expansion to an existing manufactured home park or subdivision, or (iv) in an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as a result of a flood, shall be elevated on a permanent foundation such that the lowest floor

of the manufactured home is elevated one foot above the base flood elevation and be securely anchored to an adequately anchored foundation system to resist flotation, collapse and lateral movement.

c. Manufactured homes placed or substantially improved on sites in an existing manufactured home park or subdivision with Zones A1-30, AH and AE on the community's FIRM that are not subject to the provisions of this section (this subsection, Manufactured Homes) shall be elevated so that:

i. The lowest floor of the manufactured home is one foot above the base flood elevation; or

ii. The manufactured home chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than thirty-six (36) inches in height above grade and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

5. Recreational Vehicles. Unless otherwise prohibited as an oversized vehicle under Section 8.60.080(B) or Section 10.52.020(D) of the city code, require that recreational vehicles placed on sites within Zones A1-30, AH, and AE on the community's FIRM shall either:

a. Be on the site for fewer than one hundred eighty (180) consecutive days;

b. Be fully licensed and ready for highway use; or

c. Meet the permit requirements of Section 13.24.120(A)(1) of this chapter, and the elevation and anchoring requirements for "manufactured homes" of this section (this subsection, Manufactured Homes). A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities and security devices and has no permanently attached additions. (Ord. No. 4601, § 1, 12-9-24; Ord. 3739 § 1 (part), 2007)

Editor's note—Ord. No. 4601, § 1, adopted Dec. 9, 2024, amended § 13.24.150 and in doing so changed the title of said section from "Flood hazard reduction—Specific standards" to "Flood hazard reduction; specific standards," as set out herein.

13.24.160 Standards for subdivision proposals.

A. All subdivision proposals including the placement of manufactured home parks and subdivisions shall be consistent with Sections 13.24.010 through 13.24.030 of this chapter.

B. All proposals for the development of subdivisions including the placement of manufactured home parks and subdivisions shall meet development permit requirements of Sections 13.24.070, 13.24.120, and 13.24.140 through 13.24.180 of this chapter.

C. Base flood elevation data shall be generated for subdivision proposals and other proposed development including the placement of manufactured home parks and subdivisions, which are greater than fifty (50) lots or five acres, whichever is lesser, if not otherwise provided pursuant to Section 13.24.060 or 13.24.110(B)(8) of this chapter.

D. All subdivision proposals including the placement of manufactured home parks and subdivisions shall have adequate drainage provided to reduce exposure to flood hazards.

E. All subdivision proposals including the placement of manufactured home parks and subdivisions shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize or eliminate flood damage. (Ord. 3739 § 1 (part), 2007)

13.24.170 Standards for areas of shallow flooding (AO/AH zones).

A. Located within the areas of special flood hazard established in Section 13.24.060 of this chapter, are areas designated as shallow flooding. These areas have special flood hazards associated with base flood depths of one to three feet where a clearly defined channel does not exist and where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow; therefore, the following provisions apply:

1. All new construction and substantial improvements of residential structures have the lowest floor (including basement) elevated above the

highest adjacent grade at least as high as the depth number specified in feet on the community's FIRM (at least two feet if no depth number is specified).

2. All new construction and substantial improvements of nonresidential structures:

a. Have the lowest floor (including basement) elevated above the highest adjacent grade at least as high as the depth number specified in feet on the community's FIRM (at least two feet if no depth number is specified), or

b. Together with attendant utility and sanitary facilities be designed so that below the base flood level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads of effects of buoyancy.

3. A registered professional engineer or architect shall submit a certification to the floodplain administrator that the standards of Section 13.24.120(A)(1) of this chapter are satisfied.

4. Require within Zones AH or AO adequate drainage paths around structures on slopes, to guide floodwaters around and away from proposed structures. (Ord. 3739 § 1 (part), 2007)

13.24.180 Floodways.

A. Floodways, located within areas of special flood hazard established in Section 13.24.060 of this chapter, are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of floodwaters which carry debris, potential projectiles and erosion potential, the following provisions shall apply:

1. Encroachments are prohibited, including fill, new construction, substantial improvements and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.

2. If the provisions of subsection (A)(1) above are satisfied, all new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of this chapter.

3. Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Regulations, a community may permit encroachments within the adopted regulatory floodway that would result in an increase in base flood elevations, provided that the community first applies for a conditional FIRM and floodway revision through FEMA. (Ord. 3739 § 1 (part), 2007)

13.24.190 Compliance—Penalty.

A. No structure or land shall hereafter be constructed, located, extended, converted, altered or have its use changed without full compliance with the terms of this chapter and other applicable regulations.

B. Violation of the provisions of this chapter by failure to comply with any of its requirements (including violations of conditions and safeguards established in connection with conditions) shall constitute a misdemeanor. Any person who violates the provisions of this chapter or fails to comply with any of its requirements shall, upon conviction thereof, be fined not more than seven hundred fifty dollars ($750.00) or imprisoned for not more than six months, or both, for each violation, and in addition shall pay all costs and expenses involved in the case. Nothing herein contained shall prevent the city from taking such other lawful action as is necessary to prevent or remedy any violation. (Ord. 3739 § 1 (part), 2007)

Chapter 13.28

URBAN STORMWATER QUALITY MANAGEMENT AND DISCHARGE CONTROL

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13.28.010 Title.

This chapter shall be known as the "Urban Stormwater Quality management and Discharge Control Ordinance" of the city of Cheyenne and may be so cited. (Ord. No. 4446, § 1, 6-13-22)

13.28.020 Purpose and intent.

The purpose and intent of this chapter is to ensure the health, safety, and general welfare of citizens, protect and enhance the water quality of watercourses and water bodies in a manner pursuant to and consistent with the Federal Clean Water Act (33 U.S.C. § 1251 et seq.) by reducing pollutants in stormwater discharges to the maximum extent practicable and by prohibiting non-stormwater discharges to the municipal separate storm sewer system (MS4) and to establish legal authority to carry out all inspection, surveillance and monitoring procedures necessary to ensure compliance. (Ord. No. 4446, § 1, 6-13-22)

13.28.030 Applicability.

This chapter shall apply to all water entering the storm drain system generated on any developed and undeveloped lands unless explicitly exempted by an authorized enforcement agency. (Ord. No. 4446, § 1, 6-13-22)

13.28.040 Definitions.

The terms used in this chapter shall have the following meanings:

A. "Best management practices" (BMPs) means schedules of activities, prohibitions of practices,

general good housekeeping practices, pollution prevention and education practices, maintenance procedures, and other management practices to prevent or reduce the discharge of pollutants directly or indirectly to the municipal stormwater conveyance system and/or waters of the state. BMPs include, but are not limited to: treatment requirements; treatment facilities to remove pollutants from stormwater; operating and maintenance procedures; facility management practices to control runoff, spillage or leaks of non-stormwater, waste disposal, and drainage from materials storage; erosion and sediment control practices; and the prohibition of specific activities, practices, and procedures and such other provisions as the city determines appropriate for the control of pollutants.

B. "City" means the city of Cheyenne, Wyoming.

C. "City engineer" means the city engineer of the city of Cheyenne or his or her appointed designee.

D. "Clean Water Act" means the Federal Water Pollution Control Act (33 U.S.C. § 1251 et seq.), and any subsequent amendments thereto.

E. "Construction activity" means clearing and grubbing, grading, demolition, construction or excavation projects which result in land disturbance of one or more (not necessarily contiguous) surface acres. Construction activity also includes the disturbance of less than one acre of total land when that disturbance is part of a larger common plan of development or the sale is part of a larger common plan that will ultimately disturb one acre or more.

F. "Hazardous materials" means any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

G. "Illegal discharge" means any direct or indirect non-stormwater discharge to the storm drain system, except as exempted in Section 13.28.090 of this chapter.

H. "Illicit connections" means:

1. Any drain or conveyance, whether on the surface or subsurface, which allows an illegal discharge to enter the storm drain system, including, but not limited to, any conveyances which allow certain non-stormwater discharge including sewage, process wastewater, and wash water to enter the storm drain system and any connections to the storm drain system from sinks, regardless of whether said connection had been previously allowed, permitted, or approved by a government agency; or

2. Any drain or conveyance connected from a commercial or industrial land use to the storm drain system which has not been documented in plans, maps, or equivalent records and approved by the city.

I. "Non-stormwater discharge" means any discharge to the storm sewer system that is not composed entirely of stormwater.

J. "One acre" includes any land disturbance of less than one acre of total land when that disturbance is part of a larger common plan of development or the sale is part of a larger common plan that will ultimately disturb one acre or more.

K. "Person" means any individual person, developer, contractor, partnership, corporation, association, estate, trust, or two or more individuals having a joint or common interest in property.

L. "Pollutant" means any substance or hazardous material that causes or contributes to pollution. Pollutants may include, but are not limited to: paints, varnishes, and solvents; oil and other automotive fluids; nonhazardous liquid, solid wastes and yard wastes; refuse, rubbish, garbage, litter, or other discarded or abandoned objects, articles, and accumulations, so that same may cause or contribute to pollution; floatables; pesticides, herbicides, and fertilizers; hazardous substances and wastes; sewage, fecal coliform and pathogens; dissolved and particulate metals; animal wastes;

wastes and residues that result from constructing a building or structure (including, but not limited to, sediments, slurries, and concrete rinsates); and noxious or offensive matter of any kind.

M. "Pollution" means the human-made or human-induced alteration of the quality of waters by a pollutant or waste to a degree which affects, or has the potential to affect, either the waters for beneficial uses, the facilities which serve these beneficial uses, or results in a violation of water quality standards of the state.

N. "Premises" means any building, lot, parcel of land, or portion of land whether improved or unimproved including adjacent sidewalks and parking strips.

O. "Storm drain system" means any publicly or privately owned facilities by which stormwater is collected and/or conveyed, including, but not limited to, any roads with drainage systems, municipal streets, gutters, curbs, inlets, piped storm drains, pumping facilities, retention and detention basins, natural and human-made or altered drainage channels, reservoirs, and other drainage structures which are within the city.

P. "Stormwater" means any stormwater runoff, snowmelt runoff, and surface runoff and drainage.

Q. "Stormwater pollution prevention plan" is a document which describes the best management practices and activities to be implemented by a person or business to identify sources of pollution or contamination at a site and the actions to eliminate or reduce pollutant discharges to stormwater, stormwater conveyance systems, and/or receiving waters to the maximum extent practicable.

R. "Surface waters of the state" means all permanent and intermittent defined drainages and lakes, reservoirs, and wetlands which are not manmade retention ponds used for the treatment of municipal, agricultural or industrial waste; and all other bodies of surface water, either public or private, which are wholly or partially within the boundaries of the state. Surface waters include all natural waterways and definite channels and depressions in the earth that may carry water, even though such waterways may only carry water during rains and storms and may not carry stormwater at and during all times and seasons.

S. "Wyoming Pollutant Discharge Elimination System Permit (WYPDES)" means general, group, and individual stormwater discharge permits that regulate facilities located within the state of Wyoming which are, or may, discharge stormwater associated with construction activities. The WYPDES permit issued by the Wyoming Department of Environmental Quality authorizes discharge to surface waters of the state of Wyoming upon compliance with the requirements of the Wyoming Department of Environmental Quality.

T. "Wyoming Water Quality Standards" means the Wyoming Department of Environmental Quality published water quality rules and regulations (Chapter 1) as they may be amended from time to time. (Ord. No. 4446, § 1, 6-13-22)

13.28.050 Responsibility for administration.

The city engineer shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the city engineer may be delegated by the city engineer to persons or entities acting in the beneficial interest of or in the employ of the city. (Ord. No. 4446, § 1, 6-13-22)

13.28.060 Severability.

If any provision, clause, sentence, or paragraph of this chapter or the application thereof to any person, establishment, or circumstances shall be held invalid, such invalidity shall not affect the other provisions or application of this chapter. (Ord. No. 4446, § 1, 6-13-22)

13.28.070 Regulatory consistency.

This chapter shall be construed to assure consistency with the requirements of the Clean Water Act and acts amendatory thereof or supplementary thereto, or any applicable implementing regulations under the Wyoming Pollutant Discharge Elimination System (WYPDES) General Permit to discharge stormwater from Municipal Separate

Storm Sewer Systems (MS4s). (Ord. No. 4446, § 1, 6-13-22)

13.28.080 Ultimate responsibility of discharger.

The standards set forth herein and promulgated pursuant to this chapter are minimum standards; therefore this chapter does not intend nor imply that compliance by any person will ensure that there will be no contamination, pollution, nor unauthorized discharge of pollutants into surface waters of the state caused by said person. This chapter shall not create liability on the part of the city of Cheyenne, or any agent or employee thereof, for any damages that result from any discharger's reliance on this chapter or any administrative decision lawfully made thereunder. (Ord. No. 4446, § 1, 6-13-22)

13.28.090 Ultimate responsibility of discharger.

No person shall discharge or cause to be discharged into the municipal storm drain system or watercourses any materials, including, but not limited to, pollutants or waters containing any pollutants that cause or contribute to a violation of Wyoming Water Quality Standards, other than stormwater.

The commencement, conduct or continuance of any illegal discharge to the storm drain system is prohibited except as described as follows:

A. Discharges from the following activities will not be considered a source of pollutants to the storm drain system and to surface waters of the state when properly managed to ensure that no potential pollutants are present, and therefore they shall not be considered illegal discharges unless determined to cause a violation of the provisions of the Clean Water Act, the Wyoming Water Quality Standards, or this chapter: potable water line flushing; unpolluted pumped groundwater and other discharges from potable water sources; landscape irrigation and lawn watering; diverted stream flows; rising groundwater; groundwater infiltration to the storm drain system; unpolluted foundation and footing drains; unpolluted water from crawl space pumps; air conditioning condensation; unpolluted non-industrial roof drains; springs; individual residential car washing; flows from riparian habitats and wetlands; unpolluted street wash waters; and flows from fire fighting.

B. The prohibition shall not apply to any non-stormwater discharge permitted under a WYPDES permit, waiver, or waste discharge order issued to the discharger and administered by the state of Wyoming under the authority of the Federal Environmental Protection Agency, provided that the discharger is in full compliance with all requirements of the permit, waiver, or order and other applicable laws and regulations, and provided that written approval has been granted by the city of Cheyenne for any discharge to the storm drain system.

C. With written concurrence from the Wyoming Department of Environmental Quality, the city of Cheyenne may exempt in writing other non-stormwater discharges which are not a source of pollutants to the storm drain system, nor surface waters of the state. (Ord. No. 4446, § 1, 6-13-22)

13.28.100 Prohibition of illicit connections.

A. The construction, use, maintenance or continued existence of illicit connections to the storm drain system is prohibited.

B. This prohibition expressly includes, without limitation, illicit connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection.

C. A person is considered to be in violation of the chapter if the person connects a line conveying sewage to the storm sewer system or allows such a connection to continue. (Ord. No. 4446, § 1, 6-13-22)

13.28.110 Waste disposal prohibitions.

No person shall throw, deposit, leave, dump, maintain, keep, or permit to be thrown, deposited, left, or maintained, or otherwise expose any chem-

ical, fuel, animal waste, septic waste, refuse, rubbish, garbage, litter, or other discarded or abandoned objects, articles, and accumulations, in or upon any public driveway, parking area, street, alley, sidewalk, component of the storm drain system, or surface waters of the state, so that the same may cause or contribute to pollution. Wastes deposited in proper waste receptacles for the purposes of collection are exempted from this prohibition. Any spills, discharge, or residues shall be removed as soon as possible and disposed of properly. (Ord. No. 4446, § 1, 6-13-22)

13.28.120 Discharges in violation of industrial or construction activity WYPDES stormwater discharge permit.

Any person subject to an industrial or construction activity WYPDES stormwater discharge permit shall comply with all provisions of such permit. Proof of compliance with said permit may be required in a form acceptable to the city engineer prior to or as a condition of a subdivision map, site plan, building permit, or development or improvement plan; upon inspection of the facility; during any enforcement proceeding or action; or for any other reasonable cause. (Ord. No. 4446, § 1, 6-13-22)

13.28.130 Requirement to prevent, control, and reduce stormwater pollutants.

A. Authorization to Adopt and Impose Best Management Practices. Where best management practices requirements are promulgated by the city or any federal, state of Wyoming, or regional agency for any activity, operation, or facility which would otherwise cause the discharge of pollutants to the storm drain system or surface waters of the state, every person undertaking such activity or operation, or owning or operating such facility shall comply with such requirements.

B. New Development and Redevelopment. The city may adopt requirements identifying appropriate best management practices to control the volume, rate, and potential pollutant load, such as sediment loading, of stormwater runoff from new development and redevelopment projects as may be appropriate to minimize the generation, transport and discharge of pollutants. The city shall incorporate such requirements in any land use agreement, entitlement, construction or building-related permit to be issued relative to such development or redevelopment. The owner and developer shall comply with the terms, provisions, and conditions of such land use agreements or entitlements and building permits as required in this chapter.

C. Responsibility to Implement Best Management Practices. Notwithstanding the presence or absence of requirements promulgated pursuant to Section 13.28.120, subsections (A) and (B), any person engaged in activities or operations, or owning facilities or property which will or may result in pollutants entering stormwater, the storm drain system, or surface waters of the state shall implement best management practices to the extent they are technologically achievable to prevent and reduce such pollutants. The owner or operator of a commercial or industrial establishment shall provide reasonable protection from accidental discharge of prohibited materials or other wastes into the municipal storm drain system or watercourses. Facilities to prevent accidental discharge of prohibited materials or other wastes shall be provided and maintained at the owner or operator's expense.

Best management practices required by the city can be obtained from the city engineer's office by requesting the BMP list. Best management practices for urban stormwater quality management and discharge control may include, but are not limited to, one or more of the following listed practices:

1. Vegetated buffers.
2. Vegetated swales.
3. Catch basin inserts.
4. Catch basin filter covers.
5. Infiltration trenches.
6. Oil skimmers.
7. Pollutant separators.
8. In-line filters; silt fencing.

9. Wind erosion control. (Ord. No. 4446, § 1, 6-13-22)

13.28.140 Requirement to eliminate illegal discharges.

Notwithstanding the requirements of Section 13.28.190 herein, the city engineer may require by written notice that a person responsible for an illegal discharge immediately, or by a specified date, discontinue the discharge and, if necessary, take measures to eliminate the source of the discharge to prevent the occurrence of future illegal discharges. For failure of the respondent to comply with the city engineer's requirement to eliminate an illegal discharge, a fine may be assessed by the city up to a maximum amount of ten thousand dollars ($10,000.00) as allowed under this city ordinance. (Ord. No. 4446, § 1, 6-13-22)

13.28.150 Requirement to eliminate or secure approval for illicit connections.

A. The city engineer may require by written notice that a person responsible for an illicit connection to the storm drain system comply with the requirements of this chapter to eliminate or secure approval for the connection by a specified date, regardless of whether or not the connection or discharges to it had been established or approved prior to the effective date of this chapter. Failure of the respondent to comply with the city engineer's requirements by the specified date in the written notice may result in a fine being assessed by the city up to a maximum amount of ten thousand dollars ($10,000.00) as allowed under this city ordinance.

B. If, subsequent to eliminating a connection found to be in violation of this chapter, the responsible person can demonstrate that an illegal discharge will no longer occur, said person may request city approval to reconnect. The reconnection or reinstallation of the connection shall be at the responsible person's expense. (Ord. No. 4446, § 1, 6-13-22)

13.28.160 Watercourse protection.

Every person owning property through which a watercourse passes or abuts, or such person's lessee, shall keep and maintain that part of the watercourse free of trash, debris, and other obstacles that would pollute or contaminate the flow of water through the watercourse. In addition, the owner or lessee shall maintain existing privately owned structures within, abutting, or adjacent to a watercourse, so that such structures will not become a hazard to the use, function, or physical integrity of the watercourse. The owner or lessee shall not remove healthy bank vegetation beyond that actually necessary for maintenance, nor remove said vegetation in such a manner as to increase the vulnerability of the watercourse to erosion. The property owner shall be responsible for maintaining and stabilizing that portion of the watercourse that is within or abutting their property lines in order to protect against erosion and degradation of the watercourse originating or contributed from their property. (Ord. No. 4446, § 1, 6-13-22)

13.28.170 Requirement to remediate.

Whenever the city engineer finds that a discharge of pollutants is taking place or has occurred which will result in or has resulted in pollution of stormwater, the storm drain system, or surface waters of the state, the city engineer may require, by written notice to the owner of the property and/or the responsible person, that the pollution be remediated and the affected property restored within a specified time pursuant to the provisions of Sections 13.28.210 through 13.28.230 below. Failure of the respondent to comply with the city engineer's requirements by the specified date in the written notice may result in a fine being assessed by the city up to a maximum amount of ten thousand dollars ($10,000.00) as allowed under this city ordinance. (Ord. No. 4446, § 1, 6-13-22)

13.28.180 Requirement to monitor and analyze.

The city engineer may require, by written notice of requirement, that any person engaged in any activity and/or owning or operating any facility which may cause or contribute to stormwater pol-

lution, illegal discharges, and/or non-stormwater discharges to the storm drain system or surface waters of the state, to undertake, at said person's expense, such monitoring and analyses and furnish such reports to the city of Cheyenne as deemed necessary to determine compliance with this chapter. Failure of the respondent to comply with the city engineer's requirements may result in city staff or a contractor designated by the city engineer undertaking the monitoring and analyses at said person's expense including a fine being assessed by the city up to a maximum amount of ten thousand dollars ($10,000.00) as allowed under this city ordinance. (Ord. No. 4446, § 1, 6-13-22)

13.28.190 Notification of spills.

Notwithstanding other requirements of law, as soon as any person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of any known or suspected release of materials which are resulting or may result in illegal discharges or pollutants discharging into stormwater, the storm drain system, or surface waters of the state from said facility, said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of a hazardous material, said person shall immediately notify emergency response officials (dial 911) of the occurrence via emergency dispatch services. In the event of a release of nonhazardous materials, said person shall notify emergency response officials (dial 911) within two hours of the discovery of the discharge. If the discharge of prohibited materials emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence. (Ord. No. 4446, § 1, 6-13-22)

13.28.200 Authority to inspect.

The city engineer, or his designee, may make periodic inspections for the purpose of seeing that this chapter is complied with, and it is unlawful for any owner or occupant of any business building or premises to refuse such inspection, provided that the same are made at reasonable times. (Ord. No. 4446, § 1, 6-13-22)

13.28.210 Authority to sample, establish sampling devices, and test.

During any inspection as provided herein, the city engineer, or his designee, may take any samples and perform any testing deemed necessary to aid in the pursuit of the inquiry or to record site activities. (Ord. No. 4446, § 1, 6-13-22)

13.28.220 Notice of violation.

Whenever the city engineer, or his designee, finds that a person has violated a prohibition or failed to meet a requirement of this chapter, the city engineer, or his designee, may order compliance by written notice of violation to the responsible property owner and the occupant thereof. Such notice may require without limitation:

A. The performance of monitoring, analyses, and reporting;

B. The elimination of illicit connections or discharges;

C. That violating discharges, practices, or operations shall cease and desist;

D. The abatement or remediation of stormwater pollution or contamination hazards and the restoration of any affected property;

E. Payment of a fine to cover administrative and remediation costs up to a maximum of ten thousand dollars ($10,000.00); and

F. The implementation or maintenance of source control or treatment BMPs.

Whenever it shall come to the attention of the city that any of the provisions of this chapter are being violated, the city engineer, or his designee, shall serve upon the owner and the occupant of such business building or premises, a notice in writing pointing out the specific violation and requiring such person or persons to comply with the appropriate provision or provisions of this chapter. Such notice shall fix a time limit for compliance therewith and shall notify the recipient of

their due process rights as established herein. Failure of the respondent to comply with the city engineer's requirements by the specified date in the written notice may result in a fine being assessed by the city up to a maximum amount of ten thousand dollars ($10,000.00) as allowed under this city ordinance.

If abatement of a violation and/or restoration of affected property is required, the notice shall set forth a deadline within which such remediation or restoration must be completed. Said notice shall further advise that, should the violator fail to remediate or restore within the established deadline, the work will be done by the city, or a contractor designated by the city engineer and the expense thereof shall be charged to the violator. (Ord. No. 4446, § 1, 6-13-22)

13.28.230 Abatement by city.

If the violation has not been corrected pursuant to the requirements set forth in the notice of violation, or in the order of the hearing examiner, if applicable, then the city or a contractor designated by the city engineer may enter upon the subject private property and is authorized to take any and all measures necessary to abate the violation and/or restore the property. It shall be unlawful for any person, owner, agent or person in possession of any premises to refuse to allow the city or designated contractor to enter upon the premises for the purposes set forth above. (Ord. No. 4446, § 1, 6-13-22)

13.28.240 Appeals.

Within ten (10) days of receiving written notice pursuant to Section 13.28.210, an affected owner or occupant may appeal the decision of the city engineer and request a hearing by filing written notice of the appeal with the city attorney's office. Such notice of appeal shall contain the owner or occupant's name, address, contact information and the nature and reason for their appeal. Upon receipt of said appeal request, the city attorney's office shall request that the municipal court schedule a hearing in front of a municipal court judge in his or her capacity as an administrative hearing examiner to determine what remediation, if any, must be accomplished, and a deadline for said remediation as well as for reimbursement to the city of any costs incurred by the city, if applicable. Said hearing shall be conducted under the Wyoming Administrative Procedure Act. The municipal court shall notify the city engineer's office, the city attorney's office, and the owner and occupant of the property of the date, time and location of said hearing and any matters incident thereto. Said hearing shall be electronically recorded by the municipal court and the municipal court shall be responsible for maintaining any files and records related to said hearing.

If the hearing examiner upholds the decision of the city engineer or otherwise requires repair, abatement, or remediation of a violation of this chapter, then the owner or occupant of the property affected shall complete such remediation or abatement within the time period set by the hearing examiner. If such action is not completed within the designated timeframe, the city may, without further notice or proceedings, enter upon the premises and effect such repairs, remediation, or abatement and may assess and charge any and all costs related thereto to the property owner, the occupant thereof, and/or the effected real property as a lien thereon, collectable as provided by the law and any such unpaid costs shall constitute a lien against the subject property. (Ord. No. 4446, § 1, 6-13-22)

13.28.250 Emergency abatement.

The city engineer is authorized to require immediate abatement of any violation of this chapter that constitutes an immediate threat to the health, safety or well being of the public. If any such violation is not abated immediately as directed by the city engineer, the city of Cheyenne is authorized to enter onto private property and to take any and all measures required to remediate the violation. Any expense related to such remediation undertaken by the city of Cheyenne shall be fully reimbursed by the property owner and/or

responsible party. Any relief obtained under this section shall not prevent the city from seeking other and further relief authorized by law. (Ord. No. 4446, § 1, 6-13-22)

13.28.260 Violations.

It shall be unlawful for any person to violate any provision or fail to comply with any of the requirements of this chapter. A violation of or failure to comply with any of the requirements of this chapter shall constitute a misdemeanor and shall be punished as set forth in Section 1.24.010 of city code. (Ord. No. 4446, § 1, 6-13-22)

13.28.270 Violations deemed a public nuisance.

In addition to the enforcement processes and penalties hereinbefore provided, any condition caused or permitted to exist in violation of any of the provisions of this chapter is a threat to public health, safety, and welfare, and is declared and deemed a nuisance, and may be summarily abated or restored by the city at the violator's expense, and/or a civil action to abate, enjoin, or otherwise compel the cessation of such nuisance may be taken by the city. (Ord. No. 4446, § 1, 6-13-22)

13.28.280 Acts potentially resulting in a violation of the Federal Clean Water Act.

Any person who violates any provision of this chapter or any provision of any requirement issued pursuant to this chapter may also be in violation of the Clean Water Act and may be subject to the sanctions of those acts including civil and criminal penalties. Any enforcement action authorized under this chapter shall also include written notice to the violator of such potential liability. (Ord. No. 4446, § 1, 6-13-22)

Chapter 13.32

STORMWATER RUNOFF MANAGEMENT SYSTEM

Sections:

13.32.010 Authority; purpose; general provisions; severability.

13.32.020 Definitions.

13.32.030 Office for stormwater runoff management created; equipment and facilities; duties and authority.

13.32.050 Imposition of user fee for diversion and management of stormwater runoff; exception.

13.32.060 Stormwater runoff management system account; created.

13.32.070 Appeals.

13.32.080 Penalties for nonpayment; trespass and damages.

13.32.090 Flood insurance; governmental immunity.

13.32.010 Authority; purpose; general provisions; severability.

A. This chapter is promulgated in accordance with Wyo. Stat. Section 15-1-103(a)(xxx), (xli) and Wyo. Stat. Section 15-7-101(a)(iii), the purpose of which is to protect the public health, safety and welfare:

1. From the damage of stormwater runoff and floods by requiring that owners of developed property in the city pay for a share of the cost of the drainage facilities necessary to manage stormwaters and floods affecting the city; and

2. By efficiently controlling stormwater runoff, facilitating mobility and access to homes and businesses throughout the community during precipitation events and by complementing and supporting related city programs and objectives.

B. This chapter shall not be construed to affect or otherwise alter any of the authorities, duties or obligations established under federal or state law or the city code and is intended to compliment other legal authority in the safe and efficient management of stormwater runoff in the city. To the extent any other provision of the city code conflicts with the provisions of this chapter, those provisions are superseded by this chapter to the extent of the conflict.

C. No action shall be undertaken by the city that would interfere with the historical, appropriated or beneficial use of any Wyoming water right.

D. As provided in this chapter, the office of stormwater management shall develop, implement, operate and adequately and equitably fund the acquisition, construction, operation and maintenance of the stormwater runoff management system under this chapter, and under Chapter 13.28 of the city code and ensure compliance under the Clean Water Act, 33 U.S.C. § 1251 et seq. in consultation with the city engineer.

E. If any provision of this chapter or its application to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the chapter which can be given effect without the invalid provision or application, and to this end the provisions of any such chapter are severable. (Ord. No. 4602, § 1, 12-9-24)

13.32.020 Definitions.

A. As used in this chapter:

1. "Manager" means the person responsible for the management of the office for stormwater runoff management and of the city's stormwater runoff management system;

2. "City" means as defined by Section 1.04.020(A) of the city code;

3. "Developed property" means any parcel of land that has been modified by the action of any person to reduce the land's natural ability to absorb and hold rainfall. These modifications include, but are not limited to, clearing, grading, cementing, filling or compacting the natural ground, or erecting or constructing buildings, parking lots, driveways, patios, decks, walkways and athletic courts.

4. "Drainage facilities" means all structures and equipment and all uses of land that are made in conjunction with or that are related or incidental to the construction, installation or use of the structures and equipment necessary for the city to contain and control stormwater runoff including, but not limited to, conduits, channels, bridges, pipes and detention ponds;

5. "Governing body" means as defined by Section 1.04.020(A) of the city code;

6. "Hard surface" means any area of a developed property that prevents or delays stormwater runoff from entering the soil or that causes stormwater runoff to flow faster than it would under natural conditions;

7. "Office" means the office of stormwater management within the department as designated by the mayor as provided by Section 13.25.030(A) of this chapter;

8. "Person" means any individual, partnership, corporation, joint stock company or any other association or entity, public or private;

9. "Property owner" means any person whose name appears upon the official written instrument that demonstrates the person as a legal owner of a developed property;

10. "Stormwater runoff" means water that is derived from rainfall, snowmelt or any other form of precipitation or source that flows over land or any hard surface. As used in this chapter, "stormwater runoff" shall also include surface water runoff; and

11. "Stormwater runoff management system" means the drainage facilities owned or operated by the city that are designed or used for collecting or transporting stormwater runoff, including, but not limited to, municipal streets, roads with drainage systems, storm drains, catch basins, ditches, human-made channels and storm drains, but which does not include any combined sewer or part of a publicly owned treatment works. For the purposes of this chapter, "stormwater runoff management system" shall include the storm drain system as defined by Section 13.28.040(O) of the city code. (Ord. No. 4602, § 1, 12-9-24)

13.32.030 Office for stormwater runoff management created; equipment and facilities; duties and authority.

A. There is created the office of stormwater management which shall operate under the city department designated by the mayor. The office shall be provided with such personnel, equipment and other resources as may be necessary for the performance of its duties as prescribed by this chapter.

B. The office shall be responsible for supervising and administering the stormwater runoff management system, which responsibilities shall include:

1. The planning, design and oversight of the drainage facilities of the city, including the construction of improvements and betterments to the stormwater runoff management system and coordinating with other city departments as necessary;

2. Programming for routine maintenance and minor improvements to the stormwater runoff management system;

3. The review and approval of any new development permits within the city to ensure compliance with stormwater runoff management system requirements;

4. Evaluation of any water quality concerns for discharges to the stormwater runoff management system in accordance with Chapter 13.28 of the city code; and

5. In consultation with the director of the department designated under subsection (A) of this section, the performance of all appropriate management system functions including the hiring of staff, the selection of special consultants, entering into contracts for services and construction of drainage facilities, and administering any purchase, lease, sale or other transaction for the proper management of the stormwater runoff management system. This paragraph shall not apply to any staff or employees of the department of public works or any other department as provided by subsection (C) of this section.

C. The office is authorized to coordinate with the department of public works for conducting

routine maintenance and minor improvements to the stormwater runoff management system and with other city departments to meet the obligations imposed by this chapter. (Ord. No. 4602, § 1, 12-9-24)

13.32.050 Imposition of user fee for diversion and management of stormwater runoff; exception.

A. Unless otherwise prohibited by law and except as provided by subsection (E) of this section, there shall be a monthly fee imposed on each and every developed property within the city to be paid by the property owner thereof for the use of and discharge to the city's stormwater runoff management system.

B. The fee imposed under this section shall be established by ordinance of the governing body, which fee shall be subject to the following requirements:

1. The fee shall be imposed on the property owner of each developed property regardless of characteristics or ownership of the property, except the fee shall not be imposed on the city for any city public right-of-way property or city owned property; and

2. The fee to be imposed on the owner of each developed property shall be uniform in nature and based on the hard surface of each particular parcel of land.

C. The fee imposed under subsection (B) of this section shall be included in the utility bill issued by the board of public utilities under Section 13.04.150 of the city code. In the event a developed property does not receive city utility services, a new account shall be created for the property owner who shall be billed separately by the board of public utilities for the stormwater runoff management fee. Upon request of the property owner, the board of public utilities shall bill the occupant or tenant for the fee, but if the fee is not paid when due by the occupant or tenant, the owner shall be responsible for payment. A property owner may request third party notification on all billing activity on rental or leased properties.

D. The manager shall analyze the operating and maintenance expenses and capital improvement needs of the stormwater runoff management system on an annual basis and recommend to the governing body any changes to the stormwater runoff management fee amount. The manager may contract with a third-party consultant for determining the appropriate fee amount subject to the requirements imposed by subsection (B) of this section.

E. A property owner shall not be required to pay the user fee imposed under this section if, independent from the city, the owner operates a regulated municipal separate storm sewer system (MS4), which system does not discharge into, use or otherwise rely upon the stormwater runoff management system. (Ord. No. 4602, § 1, 12-9-24)

13.32.060 Stormwater runoff management system account; created.

A. The stormwater runoff management system account is created. The account shall consist of all revenues from the user fees imposed in accordance with this chapter, any monies directed to the account by the governing body and all monies collected from any federal grants and other contributions, grants, gifts, bequests and donations to the account. The city treasurer shall credit annually to the account interest on funds in the account and is authorized and directed to receive and credit to the account any grant, donation or bequest that is made to the city for the support of the stormwater runoff management system. Funds in the account shall not revert to any other city account or the general fund and may not be transferred for any other purpose. Accounting and reporting procedures shall be consistent with state law and annually reported to the governing body by the manager or the director of the department designated under Section 13.32.030(A) of this chapter.

B. Funds in the stormwater runoff management system account shall only be used to pay for the costs associated with the operation or administration the stormwater runoff management system and upon appropriation by the governing

body, including any expenses incurred by the office and any other department of the city related to the operation or administration of the system. Any expense incurred under Chapter 13.28 of city code to ensure compliance under the Clean Water Act, 33 U.S.C. § 1251 et seq., may also be paid using funds in the account. (Ord. No. 4602, § 1, 12-9-24)

13.32.070 Appeals.

A. Any property owner who believes that the stormwater user fee assessed against their developed property was assigned or computed incorrectly may object in writing to the manager for a review of the user fee. Upon receipt of an objection, the manager, or his or her designee, shall promptly respond to the property owner on whether the fee was imposed appropriately. For the purposes of this section, a challenge may only be brought for the following reasons:

1. An alleged error regarding the square footage of the hard surface attributed to the owner's parcel of developed property;

2. An alleged mathematical error in calculating the stormwater user fee amount; or

3. The identification of the parcel owner invoiced was allegedly made in error.

B. Any credit that may be authorized after the review process under this section shall only be effective against billings after the date of credit authorization. (Ord. No. 4602, § 1, 12-9-24)

13.32.080 Penalties for nonpayment; trespass and damages.

A. It is unlawful for any person, without authority to do so, to tamper with any part, portion or component of the stormwater runoff management system, or to in any way molest, damage or trespass upon equipment or premises belonging to the city connected with the stormwater runoff management system.

B. Any property owner failing to pay the user fee required by this chapter as part of the monthly utility bill issued by the board of public utilities shall be subject to any of the penalties authorized under Section 13.04.180 of the city code.

C. The penalties authorized under this subsection are supplemental in nature and intended to be in addition to any other remedy as provided by law. (Ord. No. 4602, § 1, 12-9-24)

13.32.090 Flood insurance; governmental immunity.

This chapter shall not be construed to imply that property liable for the fee established in this chapter will always be free from stormwater runoff flooding or flood damage. Floods from stormwater runoff may occasionally occur which exceed the capacity of drainage facilities constructed and maintained by funds made available under this chapter. The city is immune from liability in accordance with the Wyoming Governmental Claims Act and this chapter does not purport to reduce the need or the necessity for any person in obtaining flood insurance. (Ord. No. 4602, § 1, 12-9-24)

Title 14

RESERVED

Title 15

BUILDINGS AND CONSTRUCTION

Chapters:

15.04	**General Provisions**
15.08	**International Building Code Adopted**
15.09	**International Existing Building Code Adopted**
15.10	**International Residential Code Adopted**
15.12	**International Plumbing Code Adopted**
15.16	**International Mechanical Code Adopted**
15.20	**National Electrical Code Adopted—Appendix K, International Building Code—Administrative Provisions Adopted**
15.22	**International Fuel Gas Code Adopted**
15.24	**Dangerous Building Code**
15.26	**International Energy Conservation Code Adopted**
15.36	**Prefabricated Buildings**
15.44	**Moving Buildings**
15.48	**Demolition of Buildings**
15.50	**Historic Design Guideline**
15.52	**Solar Access Permit System**
15.56	**House Numbers**

Chapter 15.04

GENERAL PROVISIONS

Sections:

15.04.010 Purpose—Authority—General provisions.

15.04.020 Building code board of appeals.

15.04.030 Severability.

15.04.010 Purpose—Authority—General provisions.

A. The purpose of this title is to establish regulations and procedures for reviewing, licensing and administering building construction operations; contractor and trades, and related activities within the city.

B. Pursuant to authority granted cities and towns by Wyo. Stat. Section 15-1-103(a)(xxiv-xxvii), building activities within the city will be required to comply with the provisions of this title and specific technical codes, standards and guidelines which have been adopted by the governing body, as amended, as set forth within this title and made a part of in their entirety.

C. Pursuant to the authority described in Chapter 2.36 of this code, the city's chief building official is authorized and directed to interpret and enforce the applicable provisions of this title. (Ord. No. 3864, § 2, 6-22-09; 2001 In-house code § 10-1)

15.04.020 Building code board of appeals.

A. In order to hear and decide appeals of orders, decisions or determinations made by the chief building official relative to the application and interpretation of the codes adopted by this title, there is created a building code board of appeals, consisting of nine members, qualified by experience and training to pass upon matters pertaining to building, mechanical, plumbing, and electrical systems, and who are not employees of the city. Not more than three of the board members may be appointed to represent the public at large without regard to specific experience and training. The city clerk, or authorized designee, shall act as clerk to the board. Members of the board will be appointed by the mayor with the consent of the governing body and shall hold office at the pleasure of the governing body. Appointments will be for a three year term, except that a member appointed to fill a vacancy will be appointed for the unexpired term of the vacancy. The board will adopt rules of procedure for conducting its business and will render all decisions and findings in writing to the appellant with a duplicate copy to the chief building official.

B. The board has no authority relative to interpretation of the administrative provisions of the codes adopted by this title nor will the board be empowered to waive requirements of such codes. (Ord. No. 3934, § 1, 10-10-11; Ord. No. 3864, § 2, 6-22-09; 2001 In-house code § 10-34)

15.04.030 Severability.

Sections, paragraphs, sentences, clauses and phrases contained in this title are severable. If any phrase, clause, sentence, paragraph or section is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections. (Ord. No. 3864, § 2, 6-22-09)

Chapter 15.08

INTERNATIONAL BUILDING CODE ADOPTED

Sections:

15.08.010 International Building Code—Adopted.

15.08.020 Amendments.

15.08.030 Building permit fees.

15.08.031 Building permit fees—Exceptions for incentivization program.

15.08.040 Fee refunds.

15.08.010 International Building Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Building Code, 2024 Edition, as published by the International Code Council, Inc., including Appendices A, G, H, I, J, and K. (Ord. No. 4613, § 1, 2-24-25; Ord. No. 4485, § 1, 1-9-23; Ord. No. 4254, § 2, 12-20-18; Ord. No. 4140, § 2, 6-27-16; Ord. No. 3998, § 2, 9-9-13; Ord. No. 3864, § 3, 6-22-09; Ord. 3621 § 2 (part), 2005)

15.08.020 Amendments.

The International Building Code adopted in Section 15.08.010 above is amended as follows:

A. Section 101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].

B. Section 105.5 is deleted and re-created to read as follows:

> Every permit issued shall expire and become invalid one year after the date of issuance. The chief building official is authorized to grant one 180-day renewal permit, for a nonexpired permit, subject to written request by the permit holder. If approved, a renewal permit is subject to an additional permit fee based upon fifteen percent (15%) of the original permit valuation.
>
> Exception: Large projects, as approved by the chief building official, which cannot logically be completed within twelve (12) months and/or where a contractual completion date is in excess of twelve (12) months.

C. Section 105.2, work exempt from permit, subsections 1. and 2. under the heading "building" are amended to read as follows:

1. One-story detached accessory structures used as tool and storage sheds, playhouses, and similar uses, provided the floor area is not greater than 200 square feet.
2. Fences not over 6 feet high.

> Remaining sections under the heading "building" contained within Section 105.2 remain unchanged.

D. Section 107.1 is amended by the addition of a second paragraph to read as follows:

> Drainage plans shall be submitted for all building permit applications for all new commercial construction. Drainage plans shall be prepared by a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.). Drainage plans shall indicate, with drainage arrows, the drainage patterns for the site. Drainage away from the structure shall be in conformance with this code. Site grading and drainage shall conform to the approved grading or drainage plan for the subdivision where the site is located. All drainage easements on the lot shall be shown on the drainage plan. All FEMA-regulated floodplain or city-delineated special flood hazard area boundaries shall also be shown on the drainage plan. No variation from the approved grading or drainage plan for the subdivision where

the site is located will be granted an exception, except by written authorization from the city engineer or his designated representative.

E. Section 109.2 is amended by the addition of a final sentence to read as follows:

Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

F. Section 109.2.1 is created to read as follows:

Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.

This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the deviating from plans requiring the approval of the building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

G. Section 109.4 is amended by the addition of a final sentence to read as follows:

Said fee is an investigation fee and shall be in an amount equal to the permit fee.

H. Section 109.6 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

I. Section 111.2 is amended to read as follows:

1. Delete the first paragraph and re-create it to read as follows:

Certificate Issued. After the chief building official inspects the building or structure and finds no violations of the provisions of this code or other laws that are enforced by the department of building safety and has received proof of compliance with the development office site plan of record and has received certification from a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.) that the approved drainage plan conforms with this code and the approved grading or drainage plan of the subdivision where the site is located, with his or her original seal and signature affixed, the chief building official shall issue a certificate of occupancy that contains the following: (Remainder of Section 111.2 unchanged).

J. Section 113 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

K. Section 114.4 is amended by the addition of a final sentence to read as follows:

Penalties shall be as specified in Section 1.24.010 of the Cheyenne City Code.

L. Chapter 13, Energy Efficiency, is amended to read as follows:

1301.1.1 Criteria. Buildings shall be designed and constructed in accordance with

the International Energy Conservation Code, 2018 Edition, as adopted in City Code Chapter 15.26.

M. Section 1512.2.1.1 is amended by deleting Exception Number 3 and recreating Exception Number 3 to read as follows:

3. Where the existing roof has one or more applications of asphalt shingles as the City of Cheyenne is considered to be in an area subject to moderate hail exposure.

N. Section 1608.2, Ground snow loads, is amended by the addition of a final sentence to read as follows:

The ground snow load for the City of Cheyenne shall be thirty (30) pounds per square foot.

O. Section 1609.4, Exposure category, is amended by adding a first sentence to read as follows:

The exposure category for the City of Cheyenne is Exposure C.

P. Section 1612.3. Insert: The Laramie County, Wyoming and Incorporated Areas of the City of Cheyenne; for [NAME OF JURISDICTION] and January 17, 2007 for [DATE OF ISSUANCE].

Q. Appendix J, Grading, is amended as follows:

Section J103.1 is deleted and re-created to read as follows:

Permits required. Except as exempted in Section J103.2, no grading shall be performed without first having obtained a permit from the city engineer's office. A grading permit does not include the construction of retaining walls or other structures.

The following sections are hereby created to read as follows:

Section J103.1.1 Grading Fees. Fees shall be assessed in accordance with the provisions of this section.

Section J103.1.2 Plan Review Fees. When a plan or other data are required to be submitted, a plan review fee shall be paid at the time of submitting plans and specifications for review. Said plan review fee shall be as set forth in Table J103.1. Separate plan review fees shall apply to retaining walls or major drainage structures as required elsewhere in this code. For excavation and fill on the same site, the fee shall be based on the volume of excavation or fill, whichever is greater.

Section J103.1.3 Grading Permit Fees. A fee for each grading permit shall be paid as set forth in Table J103.1. Separate permits and fees shall apply to retaining walls or major drainage structures as required elsewhere in this code. There shall be no separate charge for standard terrace drains and similar facilities.

Table J103.1 — Grading Fees

Grading Plan Review Fees

50 cubic yards (38.2 m^3) or less	**No fee**
51 to 100 cubic yards (40 m^3 to 76.5 m^3)	$23.50
101 to 1,000 cubic yards (77.2 m^3 to 764.6 m^3)	$37.00
1,000 to 10,000 cubic yards (765.3 m^3 to 7645.5 m^3)	$49.25

50 cubic yards (38.2 m^3) or less	**No fee**
10,000 to 100,000 cubic yards (7646.3 m^3 to 76455 m^3)	$49.25 for the first 10,000 cubic yards (7645.5 m^3), plus $24.50 for each additional 10,000 yards (7645.5 m^3) or fraction thereof.
100,001 to 200,000 cubic yards (76456 m^3 to 152911 m^3)	$269.75 for the first 100,000 cubic yards (76455 m^3), plus $13.25 for each additional 10,000 cubic yards (7645.5 m^3) or fraction thereof.
200,001 cubic yards (152912 m^3) or more	$402.25 for the first 200,000 cubic yards (152911 m^3), plus $7.25 for each additional 10,000 cubic yards (7645.5 m^3) or fraction thereof.
Other fees:	
Additional plan review required by changes, additions or revisions to approved plans	$50.50 per hour* (minimum charge — one-half hour)

* Or the total hourly cost to the jurisdiction, whichever is the greatest. This cost shall include supervision, overhead, equipment, hourly wages and fringe benefits of the employees involved.

Grading Permit Fees[1]

50 cubic yards (38.2 m^3) or less	$23.50
51 to 100 cubic yards (40 m^3 to 76.5 m^3)	$37.00
101 to 1,000 cubic yards (77.2 m^3 to 764.6 m^3)	$37.00 for the first 100 cubic yards (76.5 m^3) plus $17.50 for each additional 100 cubic yards (76.5 m^3) or fraction thereof.
1,000 to 10,000 cubic yards (765.3 m^3 to 7645.5 m^3)	$194.50 for the first 1,000 cubic yards (764.6 m^3), plus $15.40 for each additional 1,000 cubic yards (764.6 m^3) or fraction thereof.
10,000 to 100,000 cubic yards (7646.3 m^3 to 76455 m^3)	$325.00 for the first 10,000 cubic yards (7645.5 m^3), plus $66.00 for each additional 10,000 cubic yards (7645.5 m^3) or fraction thereof.
100,001 cubic yards (76456 m^3) or more	$919.00 for the first 100,000 cubic yards (76455 m^3), plus $36.50 for each additional 10,000 cubic yards (7645.5 m^3) or fraction thereof.
Other inspections and fees:	
1. Inspections outside of normal business hours	$50.50 per hour[2] (minimum charge — two hours)
2. Reinspection fees assessed under provisions of Section 108.2.1	$50.50 per hour[2]
3. Inspections for which no fee is specifically indicated	$50.50 per hour[2] (minimum charge — one-half hour)

[1] The fee for a grading permit authorizing additional work to that under a valid permit shall be the difference between the fee paid for the original permit and the fee shown for the entire project.

[2] Or the total hourly cost to the jurisdiction, whichever is the greatest. This cost shall include supervision, overhead, equipment, hourly wages

and fringe benefits to the employees involved. (Ord. No. 4613, § 1, 2-24-25; Ord. No. 4485, § 1, 1-9-23; Ord. No. 4254, § 2, 12-20-18; Ord. No. 4140, § 2, 6-27-16; Ord. No. 3998, § 2, 9-9-13; Ord. No. 3864, § 3, 6-22-09; Ord. 3681 § 1, 2005; Ord. 3621 § 2 (part), 2005)

15.08.030 Building permit fees.

Schedule of Permit Fees. The permit fee schedule referenced in Section R108.2 of the International Residential Code, Section 109.2 of the International Plumbing Code, Section 109.2 of the International Fuel Gas Code, Section 109.2 of the International Mechanical Code, Section 108.2 of the International Existing Building Code, Section 104.1 of the International Property Maintenance Code (also referred to as the city of Cheyenne Dangerous Building Code), and the International Energy Conservation Code, Section C104/R104, shall be implemented as follows:

On the first day of January 30, 2023, the following building permit fee schedule shall become effective.

City of Cheyenne
Building and Construction Permit Fees
January 30, 2023

Total Valuation	**Fee**
$1.00 to $500.00	$23.50
$501.00 to $2,000.00	$23.50 for the first $500.00 plus $3.05 for each additional $100.00, or fraction thereof, to and including $2,000.00.
$2,001.00 to $25,000.00	$69.25 for the first $2,000.00 plus $14.00 for each additional $1,000.00, or fraction thereof, to and including $25,000.00.
$25,001.00 to $50,000.00	$391.75 for the first $25,000.00 plus $10.10 for each additional $1,000.00, or fraction thereof, to and including $50,000.00.
$50,001.00 to $100,000.00	$643.75 for the first $50,000.00 plus $7.00 for each additional $1,000.00, or fraction thereof, to and including $100,000.00.
$100,001.00 to $500,000.00	$993.75 for the first $100,000.00 plus $5.60 for each additional $1,000.00, or fraction thereof, to and including $500,000.00.
$500,001.00 to $1,000,000.00	$3,233.75 for the first $500,000.00 plus $4.75 for each additional $1,000.00, or fraction thereof, to and including $1,000,000.00.
$1,000,001.00 and up	$5,608.75 for the first $1,000,000.00 plus $3.65 for each additional $1,000.00, or fraction thereof.
Other Inspections and Fees:	

Total Valuation	Fee
Plan Review. When submittal documents are required, a plan review fee shall be paid at the time of submitting the documents for plan review. Said plan review fee shall be 65 percent of the associated permit fee as shown in this table. The plan review fees specified in this section are separate fees from the permit fees and are in addition to the permit fees.	65% x permit fee
Inspections outside of normal business hours (minimum charge — 2 hours)	$85.00 per hour
Reinspection fees	$250.00
Inspections for which no fee is specifically indicated (minimum charge — ½ hour)	$85.00 per hour
Additional plan review required by changes, additions or revisions to plans (minimum charge — ½ hour)	$85.00 per hour
For use of outside consultants for plan checking and inspections, or both	Actual costs plus 2% of actual costs for administrative and overhead costs.

The following miscellaneous fees shall be charged by the building department:

A. Master Plan Review.

1. Residential. In the event an applicant wishes to construct more than one structure from essentially the same plan, the applicant may request that the plan be identified as a master plan. In order to do so, the applicant shall pay a full plan review fee for a complete code review of the plan, and the applicant shall pay a master plan fee of two hundred fifty dollars ($250.00). Subsequent reviews of the same master plan will be paid at a flat rate of one hundred fifty dollars ($150.00).

2. Commercial. The master plan option may, upon approval of the chief building official, apply to commercial projects only if the building plans are exactly the same. The master plan fee for a commercial project will be a full plan review fee, for a complete code review of the plan and the applicant shall pay a master plan fee of two hundred fifty dollars ($250.00). Subsequent reviews of the same master plan will be paid at a flat rate of twenty-five (25) percent of the original plan review fee.

3. All master plans shall expire and become null and void on the effective date of the adoption of a new edition of the codes.

B. Modular and Mobilehome Set. The fee for a block and tied only support system shall be one hundred fifty dollars ($150.00).

C. Temporary Certificate of Occupancy.

1. One- and Two-Family Dwellings. The temporary certificate of occupancy issuance fee for residential structures shall be three hundred dollars ($300.00) and refundable on a sliding time scale. Three hundred dollars ($300.00) is refunded if work is completed by thirty (30) days or less; two hundred dollars ($200.00) is refunded if work is completed between thirty-one (31) and sixty (60) days; one hundred dollars ($100.00) refunded if work is completed between sixty-one (61) and ninety (90) days. After ninety (90) days no fees will be refunded. The owner, or authorized agent, shall obtain a final certificate of occupancy prior to the expiration of ninety (90) days from date of the original temporary certificate of occupancy. The building official shall seek legal remedies for fail-

ure to obtain the required certificate of occupancy after ninety (90) days, as per Section 1.24.010 of city code.

2. Commercial Structures. The temporary certificate of occupancy issuance fee for commercial structures shall be one thousand two hundred and fifty dollars ($1,250.00) and refundable on a sliding time scale. One thousand two hundred and fifty dollars ($1,250.00) is refunded if work is completed by thirty (30) days or less; one thousand dollars ($1,000.00) is refunded if work is completed between thirty-one (31) and sixty (60) days; five hundred dollars ($500.00) is refunded if work is completed between sixty-one (61) and ninety (90) days. After ninety (90) days no fees are refunded. The owner, or authorized agent, shall obtain a final certificate of occupancy prior to the expiration of ninety (90) days from date of the original temporary certificate of occupancy. The building official shall seek legal remedies for failure to obtain the required certificate of occupancy after ninety (90) days, as per Section 1.24.010 of city code.

Exception: Phased projects may be issued a temporary certificate of occupancy/completion for portions of the project until a final temporary certificate of occupancy/completion is issued at which time the entire project will become subject to the provisions of subsection (C)(2) of this section.

3. Penalty. The penalty for failure to convert a temporary certificate of occupancy/completion to a final certificate of occupancy/completion shall be as set forth in Section 1.24.010 of this code.

D. Contractor Lists. The fee to provide a list of licensed contractors and/or qualified supervisors/masters shall be as follows:

Class A Contractor	$10.00
Class B Contractor	$10.00
Plumbing Contractor	$10.00
Electrical Contractor	$10.00
Mechanical Contractor	$10.00
Refrigeration Contractor	$10.00
Class A Qualified supervisor	$10.00
Class B Qualified supervisor	$10.00
Plumbing Master	$10.00
Electrical Master	$10.00
Mechanical Master	$10.00
Refrigeration Master	$10.00
All other Class C licenses	$5.00 for each classification
Class D licenses	$5.00 for each classification
Class D licenses, complete listing of contractor licenses	$35.00
Class D licenses, complete listing of qualified supervisor licenses	$35.00
For a complete listing of all licensed contractors	$100.00
For a complete listing of all licensed qualified supervisor/master	$100.00

E. The fee to copy a contractor licensing board meeting, or board of appeals hearing shall be ten dollars ($10.00) for each meeting recording.

F. The minimum fee for a change of use permit, where no work is being done, shall be two hundred fifty dollars ($250.00). No building undergoing a change of use shall be used or occupied until the building has been inspected, approved and a certificate of occupancy/completion has been obtained. (Ord. No. 4485, § 1, 1-9-23; Ord. No. 4254, § 2, 12-20-18; Ord. No. 4140, § 2, 6-27-16; Ord. No. 3998, § 2, 9-9-13; Ord. No. 3864, § 3, 6-22-09; Ord. 3770 §§ 1, 2, 2007: Ord. 3509 § 1, 2002)

15.08.031 Building permit fees—Exceptions for incentivization program.

A. Programs that reduce the total amount of project fees paid have been found to successfully incentivize property development. The city of Cheyenne governing body desires to encourage and incentivize quality projects of the following varieties:

1. Infill and the redevelopment and reuse of existing buildings and property within the downtown core;

2. Residential development that contributes to attainable housing available to the workforce; and

3. The rehabilitation of historic structures in ways which maintain historic integrity.

B. The "city of Cheyenne Development Incentivization Program" is hereby established. To be eligible for the program, an applicant must satisfy the following conditions:

1. Upon a form to be provided, complete and submit an application to the city planning and development department;

2. A building permit application must be received by the city building office prior to June 30, 2030; and

3. Meet the specific requirements of at least one of the following incentivization categories:

a. Be located within the boundaries of the core development incentivization program project area identified in Exhibit A (map) attached to Ordinance No. 4241, on file with the office of the city clerk and also available through the planning and development department;

b. Provide housing that is income-restricted to eighty (80) percent of area median income (AMI) as defined by the U.S. department of housing and urban development (HUD). The income restriction required under this subparagraph shall be for a period of not less than fifteen (15) years; or

c. Be a contributing historic structure in a historic district and submit a building permit application which only proposes changes consistent with maintaining historic integrity.

C. The city shall reimburse the building permit fees as specified under Section 15.08.030 of this chapter, as provided under this subsection. Building permits issued the previous fiscal year shall not be eligible for reimbursements under this subsection if received more than seven days after the close of the fiscal year. No reimbursement of a building permit fee shall be issued before the completion of the attendant project. Building permit fees shall be reimbursed as follows:

1. Up to five thousand dollars ($5,000.00) per program project located within the boundaries of the core development incentivization program project area as provided by subparagraph (B)(3)(a) of this section;

2. Up to five thousand dollars ($5,000.00) per program project that creates affordable single-family housing in accordance with subparagraph (B)(3)(b) of this section;

3. Up to ten thousand dollars ($10,000.00) per program project that creates affordable multi-family housing in accordance with subparagraph (B)(3)(b) of this section; or

4. Up to five thousand dollars ($5,000.00) per program project that rehabilitates a historic structure in accordance with subparagraph (B)(3)(c) of this section.

D. Planning and development department staff shall provide reports on prior fiscal year program activity to the governing body not less than annually. The reports shall contain:

1. The total number of projects utilizing the program;

2. The total amount of fees waived; and

3. The total valuation of projects incentivized by the program.

E. The total amount of building permit fees reimbursed under this section shall be capped for each fiscal year in accordance with the limitations imposed under this section and as determined by the director of the planning and development department. Reimbursements shall be limited as follows:

1. Not more than two hundred thousand dollars ($200,000.00) for the entire program;

2. Not more than one hundred thousand dollars ($100,000.00) for downtown core projects;

3. Not more than one hundred fifty thousand dollars ($150,000.00) for affordable housing projects; and

4. Not more than thirty-five thousand dollars ($35,000.00) for historic rehabilitation projects.

F. A decision from the director of the planning and development department, or their designee, on any matters of interpretation in this section shall be final.

G. This section is repealed effective July 1, 2030. (Ord. No. 4525, § 1, 9-28-23; Ord. No. 4405, § 1, 11-22-21; Ord. No. 4241, § 1, 7-23-18)

15.08.040 Fee refunds.

A. The building official may authorize refunding of any building permit fee which was erroneously paid or collected.

B. The building official may authorize refunding of not more than eighty (80) percent of the permit fee paid when no work has been done under a permit issued in accordance with this code.

C. The building official may authorize refunding of not more than eighty (80) percent of the plan review fee paid when an application for a permit for which a plan review fee has been paid is withdrawn or canceled before any plan reviewing is done.

D. The building official shall not authorize refunding of any fee paid except on written application filed by the original permittee not later than one hundred eighty (180) days after the date of fee payment. (Ord. 3510 § 1, 2002)

Chapter 15.09

INTERNATIONAL EXISTING BUILDING CODE

Sections:

15.09.010 International Existing Building Code—Adopted.

15.09.020 Amendments.

15.09.010 International Existing Building Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Existing Building Code, 2024 Edition, as published by the International Code Council, Inc. (Ord. No. 4613, § 2, 2-24-25; Ord. No. 4485, § 2, 1-9-23; Ord. No. 4254, § 3, 12-20-18; Ord. No. 4140, § 3, 6-27-16; Ord. No. 3998, § 3, 9-9-13)

15.09.020 Amendments.

The International Existing Building Code adopted in Section 15.09.010 above is amended as follows:

A. Section 101.1 insert: The City of Cheyenne; for [NAME OF JURISDICTION].

B. Section 105.5 is deleted and re-created to read as follows:

> Every permit issued shall expire and become invalid one year after the date of issuance. The chief building official is authorized to grant one 180 day renewal permit, for a non-expired permit, subject to written request by the permit holder. If approved, a renewal permit is subject to an additional permit fee based upon fifteen percent (15%) of the original permit valuation.
>
> Exception: For large projects, the expiration date of the permit may be extended, upon approval by the chief building official, if the project cannot logically be completed within the twelve (12) months and/or where a contractual completion date is in excess of twelve (12) months.

C. Section 106.2.6 is amended by the addition of a second paragraph to read as follows:

> Drainage plans shall be submitted for all building permit applications for all new and existing structures on the site. Drainage plans shall be prepared by a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.). Drainage plans shall indicate, with drainage arrows, the drainage patterns for the site. Drainage away from the structure shall be in conformance with this code. Site grading and drainage shall conform to the approved grading or drainage plan for the subdivision where the site is located. All drainage easements on the lot shall be shown on the drainage plan. All FEMA-regulated floodplain or city-delineated special flood hazard area boundaries shall also be shown on the drainage plan. No variation from the approved grading or drainage plan for the subdivision where the site is located will be granted an exception, except by written authorization from the city engineer or his designated representative.

D. Section 108.2 is amended by the addition of a final sentence to read as follows:

> Section 108.2. Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

E. Section 108.2.1 is created to read as follows:

> Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called for is not complete or when corrections called for are not made.
>
> This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the require-

ments of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the chief building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

F. Section 108.4 is deleted and re-created to read as follows:

Work commencing before permit issuance. Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to an investigation fee. The investigation fee shall be in an amount equal to the permit fee.

G. Section 108.6 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

H. Section 110.2 is amended to read as follows:

1. Delete the first paragraph and re-create it to read as follows:

After the chief building official inspects the building or structure and finds no violations of the provisions of this code or other laws that are enforced by the department of building safety and has received certification from a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.) that the approved plot plan conforms with this code and the approved grading or drainage plan of the subdivision where the site is located, with his or her original seal and signature affixed, the chief building official shall issue a certificate of occupancy which shall contain the following: (Remainder of section unchanged).

I. Section 112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

J. Section 113.4 is amended by the addition of a final sentence to read as follows:

Penalties shall be as specified in Section 1.24.010 of the Cheyenne City Code.

(Ord. No. 4254, § 3, 12-20-18; Ord. No. 4140, § 3, 6-27-16; Ord. No. 3998, § 3, 9-9-13)

Chapter 15.10

INTERNATIONAL RESIDENTIAL CODE ADOPTED

Sections:

15.10.010 International Residential Code—Adopted.

15.10.020 Amendments.

15.10.010 International Residential Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy of which is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Residential Code, 2024 Edition, as published by the International Code Council, Inc., including Appendices BA, BB, CD and BF. (Ord. No. 4613, § 3, 2-24-25; Ord. No. 4485, § 3, 1-9-23; Ord. No. 4254, § 4, 12-20-18; Ord. No. 4140, § 4, 6-27-16; Ord. No. 3998, § 4, 9-9-13; Ord. No. 3864, § 4, 6-22-09; Ord. 3621 § 3 (part), 2005)

15.10.020 Amendments.

The International Residential Code adopted in Section 15.10.010 above is amended as follows:

A. Section R101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].

B. Section R105.2, Work exempt from permit, Subsection 2. under the heading "Building" is amended to read as follows:

2. Fences not over 6 feet high.

C. Section R105.5 is deleted and re-created to read as follows:

> Every permit issued shall expire and become invalid one year after the date of issuance. The chief building official is authorized to grant one 180-day renewal permit, for a non-expired permit, subject to written request by the permit holder. If approved, a renewal permit is subject to an additional permit fee based upon fifteen percent (15%) of the original permit valuation.

D. Section R106.2 is amended by the addition of a second paragraph to read as follows:

> Drainage plans shall be submitted for all building permit applications for all new residential construction. Drainage plans shall be prepared by a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.). Drainage plans shall indicate, with drainage arrows, the drainage patterns for the site. Drainage away from the structure shall be in conformance with this code. Site grading and drainage shall conform to the approved grading or drainage plan for the subdivision where the site is located. All drainage easements on the lot shall be shown on the drainage plan. All FEMA-regulated floodplain or city-delineated special flood hazard area boundaries shall also be shown on the drainage plan. No variation from the approved grading or drainage plan for the subdivision where the site is located will be granted an exception, except by written authorization from the city engineer or his designated representative.

E. Section R108.2. Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

F. Section R108.2.1 is created to read as follows:

> Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.
>
> This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as con-

trolling the practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

G. Section R108.5 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

H. Section R108.6 is amended to read as follows:

Work commencing before permit issuance. Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to an investigation fee. The investigation fee shall be in an amount equal to the permit fee.

I. Section R110.3 is amended to read as follows:

1. Delete the first paragraph and re-create to read as follows:

After the chief building official inspects the building or structure and finds no violations of the provisions of this code or other laws that are enforced by the Department of Building Safety and has received certification from a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.) that the approved plot plan conforms with this code and the approved grading or drainage plan of the subdivision where the site is located, with his or her original seal and signature affixed, the chief building official shall issue a certificate of occupancy which shall contain the following: (Remainder of section unchanged).

J. Section R112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

K. Section R113.4 is amended by the adoption of a final sentence to read as follows:

Penalties shall be as specified in Section 1.24.010 of the Cheyenne City Code.

L. Section R301.2 and Table R301.2(1) Climatic and Geographic Design Criteria, is amended to read as follows:

GROUND SNOW LOAD: 30# psf; WIND SPEED: 115 (Vult) mph; TOPOGRAPHIC EFFECTS: NO; SPECIAL WIND REGION: NO; WIND-BORNE DEBRIS ZONE: NO; SEISMIC DESIGN CATEGORY: B; WEATHERING: Severe; FROST LINE DEPTH: 36 inches (for footings and foundations); TERMITE: Slight to Moderate; WINTER DESIGN TEMP: -1 degree Fahrenheit; ICE BARRIER UNDER LAYMENT REQUIRED: YES; FLOOD HAZARDS: FIRM effective date, September 30, 1977;

Map effective date: January 17, 2007; panel numbers and dates of the currently effective FIRMS:

56021C1083F	01/17/2007
56021C1079F	01/17/2007
56021C1078F	01/17/2007
56021C1111F	01/17/2007
56021C1091F	01/17/2007
56021C1087F	01/17/2007
56021C1086F	01/17/2007
56021C1118F	01/17/2007
56021C1114F	01/17/2007
56021C1113F	01/17/2007
56021C1089F	01/17/2007
56021C1376F	01/17/2007
56021C1352F	01/17/2007
56021C1351F	01/17/2007
56021C1335F	01/17/2007
56021C1353F	01/17/2007
56021C1092F_ REV_04_14_11	04/14/2011
56021C1113F_ REV_04_14_11	04/14/2011
56021C1094F_ REV_04_14_11	04/14/2011
56021C1093F_ REV_04_14_11	04/14/2011
56021C1093F_ REV_09_27_12	09/27/2012
56021C1089F_ REV_09_27_12	09/27/2012
56021C1356F_ REV_09_27_12	09/27/2012
56021C1352F_ REV_09_27_12	09/27/2012;

AIR FREEZING INDEX: 2,000; MEAN ANNUAL TEMP: 45 degrees Fahrenheit.

M. Section R302.13 is amended by creating exception 6 for the fire protection of floors for dwellings where future work in the basement is planned by homeowner as follows:

6. Floor assemblies to accommodate mechanical, plumbing or electrical work for future basement finishes by the homeowner.

N. Section R325.3 is deleted in its entirety.

O. Section R317.5 is deleted in its entirety.

P. Section R318.1 is amended by deleting exception Number 1.

Q. Section R309 is created to read as follows:

R309 The provisions contained in this section shall not be mandatory but shall be optional at the discretion of the owner or contractor of the structure. In the event the owner or contractor wishes to provide an automatic fire sprinkler system, it shall comply with this section.

Other provisions contained in Section R309 remain unchanged.

R. Section R908.4 is amended by deleting item Number 3 and re-creating item Number 3 to read as follows:

3. Where the existing roof has one or more applications of asphalt shingles as the City of Cheyenne is considered to be in an area subject to moderate hail exposure.

S. Part IV Energy Conservation, Chapter 11 Energy Efficiency is deleted and re-created to read as follows:

CHAPTER 11
ENERGY EFFICIENCY

Energy efficiency shall be as prescribed by the 2018 Edition of the International Energy Conservation Code as adopted in City Code Chapter 15.26.

T. Section G2406.2, Exceptions 3 and 4, are deleted in their entirety and re-created to read as follows:

Unvented fuel burning equipment shall not be installed, used, maintained, or permitted to exist in any building.

U. Section G2413.7 is deleted and re-created to read as follows:

> Maximum gas delivery pressure: The maximum gas delivery pressure for one and two family dwellings shall be six (6) inches water column.

V. Sections G2417.4.1 and G2417.2 are deleted and re-created to read as follows:

> The test pressure to be used shall be not less than 10 PSI for a 15-minute duration.

W. Section P2503.5.1. The first sentence is amended to read as follows:

> P2503.1 Rough Plumbing. DWV systems shall be tested on completion of the rough piping installation by water or by air with no evidence of leakage.

X. Section P2603.5.1. Insert 36 inches for [NUMBER] in both locations.

Y. Section P3008 is deleted in its entirety.

Z. Section P3103.1. Change 6 inches to 12 inches in both locations.

AA. Delete all the electrical chapters from the International Residential Code to include chapters: 34, 35, 36, 37, 38, 39 and 40. All electrical work shall comply with the currently adopted NFPA 70 (National Electrical Code).

BB. Section BA101.3, Zoning, is created to read as follows:

> All manufactured housing units placed within the city shall comply with the provisions of Section 5.8.2.h of the Cheyenne Unified Development Code. (Ord. No. 4613, § 3, 2-24-25; Ord. No. 4485, § 3, 1-9-23; Ord. No. 4254, § 4, 12-20-18; Ord. No. 4140, § 4, 6-27-16; Ord. No. 3998, § 4, 9-9-13; Ord. No. 3864, § 4, 6-22-09; Ord. 3681 § 2, 2005; Ord. 3621 § 3 (part), 2005)

Chapter 15.12

INTERNATIONAL PLUMBING CODE ADOPTED

Sections:

15.12.010 International Plumbing Code—Adopted.

15.12.020 Amendments.

15.12.010 International Plumbing Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Plumbing Code, 2024 Edition, as published by the International Code Council, Inc., including Appendices B, C, D, AND E. (Ord. No. 4613, § 4, 2-24-25; Ord. No. 4485, § 4, 1-9-23; Ord. No. 4254, § 5, 12-20-18; Ord. No. 4140, § 5, 6-27-16; Ord. No. 3998, § 5, 9-9-13; Ord. No. 3864, § 5, 6-22-09; Ord. 3621 § 4 (part), 2005)

15.12.020 Amendments.

The International Plumbing Code adopted in Section 15.12.010 above is amended as follows:

A. Section 101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].

B. Section 108.2. Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

C. Section 108.6 is deleted and re-created to read as follows:

> Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

D. Section 111.4.3.1 is created to read as follows:

> Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.
>
> This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.
>
> Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the building official.
>
> To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.
>
> In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

E. Section 108.4 is deleted and re-created to read as follows:

> Any person who shall violate a provision of this code or who shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair plumbing work in violation of the approved construction documents, directive of the code official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

F. Section 115.4 The last sentence is amended to read as follows:

> Any person who shall continue any work after having been served with a stop work

order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by law.

G. Section 112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

H. Section 114.4 is deleted and recreated to read as follows:

[A] 114.4 Violation penalties. Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair plumbing work in violation of the approved construction documents or directive of the code official, or of a permit or certificate issued under the provisions of this code, shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

I. Section 305.4 is amended by changing the number 12 inches to 36 inches.

J. Section 312.3 is amended by deleting the first sentence of the section.

K. Section 714 is deleted in its entirety.

L. Section 903.1.1 Insert 12 for [NUMBER].

M. Section 1003.3 is amended by the addition of a final sentence to read as follows:

Grease interceptors and separators shall also comply with the Cheyenne Board of Public Utilities rules and regulations. (Ord. No. 4613, § 4, 2-24-25; Ord. No. 4485, § 4, 1-9-23; Ord. No. 4254, § 5, 12-20-18; Ord. No. 4140, § 5, 6-27-16; Ord. No. 3998, § 5, 9-9-13; Ord. No. 3864, § 5, 6-22-09; Ord. 3621 § 4 (part), 2005)

Chapter 15.16

INTERNATIONAL MECHANICAL CODE ADOPTED

Sections:

15.16.010 International Mechanical Code—Adopted.

15.16.020 Amendments.

15.16.010 International Mechanical Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Mechanical Code, 2024 Edition, as published by the International Code Council, Inc., including Appendix A. (Ord. No. 4613, § 5, 2-24-25; Ord. No. 4485, § 5, 1-9-23; Ord. No. 4254, § 6, 12-20-18; Ord. No. 4140, § 6, 6-27-16; Ord. No. 3998, § 6, 9-9-13; Ord. No. 3864, § 6, 6-22-09; Ord. 3621 § 5 (part), 2005)

15.16.020 Amendments.

The International Mechanical Code adopted in Section 15.16.010 above is amended as follows:

A. Section 101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].

B. Section 108.2. Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

C. Section 108.6 is deleted and re-created to read as follows:

> Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

D. Section 111.3.3.1 is created to read as follows:

> Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.
>
> This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.
>
> Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the building official.
>
> To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.
>
> In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

E. Section 108.4 is deleted and re-created to read as follows:

> Any person who shall violate a provision of this code or who shall fail to comply with any of the requirements thereof or who shall erect, install, alter, or repair mechanical work in violation of the approved construction documents, directive of the code official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

F. Section 115.4 The last sentence is amended to read as follows:

> Any person who shall continue any work after having been served with a stop work

order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by law.

G. Section 112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the Board of Appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

H. Section 303.3 is amended by the addition of number 6, under "prohibited locations," to read as follows:

Unvented fuel burning equipment shall not be installed, used, maintained, or permitted to exist in any building.

I. Section 506.3.6 is amended by changing the words gypsum wallboard to cement board.

J. Section 507.1.2 is amended by the addition of one exception to read as follows:

Exception: Commercial facilities that utilize residential stovetops need not provide a Type I or Type II hood, subject to all of the following:

1. The equipment is used for warming or limited cooking only, no frying is permitted and a permanent sign is posted stating "No Cooking Creating Grease Laden Vapors Permitted.";

2. A 2A-10BC fire extinguisher is placed in the kitchen; and

3. Approval of the exception is provided, in writing, by the city fire code official.

K. The exception #1 to Section 507.2.6 is amended as follows:

Exception: Clearance shall not be required from 1/2-inch or thicker cementitious wallboard attached to noncombustible structures provided that a smooth, cleanable, nonabsorbent and noncombustible material is installed between the hood and the cementitious wallboard over an area extending not less than 18 inches in all directions from the hood. (Ord. No. 4613, § 5, 2-24-25; Ord. No. 4485, § 5, 1-9-23; Ord. No. 4254, § 6, 12-20-18; Ord. No. 4140, § 6, 6-27-16; Ord. No. 3998, § 6, 9-9-13; Ord. No. 3864, § 6, 6-22-09; Ord. 3621 § 5 (part), 2005)

Chapter 15.20

NATIONAL ELECTRICAL CODE ADOPTED—APPENDIX K, INTERNATIONAL BUILDING CODE—ADMINISTRATIVE PROVISIONS ADOPTED*

Sections:

15.20.010 National Electrical Code—Adopted.

15.20.020 Amendments.

15.20.030 Appendix K, International Building Code, 2021 Edition, Administrative Provisions—Adopted.

15.20.040 Reserved.

15.20.010 National Electrical Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

National Electrical Code, 2023 Edition, as published by the National Fire Protection Association, Inc. (Ord. No. 4509, § 1, 7-10-23; Ord. No. 4228, § 2, 5-14-18; Ord. No. 4068, § 1, 5-11-15; Ord. No. 3998, § 7, 9-9-13; Ord. No. 3864, § 7, 6-22-09; Ord. 3510 § 2 (part), 2002: 2001 In-house code § 10-6(a))

15.20.020 Amendments.

The National Electrical Code adopted in Section 15.20.010 of this chapter is amended as follows:

A. Article 230.70(A)(1) is amended by the addition of a second sentence to read as follows:

> Service disconnecting means must be located immediately behind metering equipment or directly adjacent to metering equipment. (Ord. No. 4509, § 1, 7-10-23; Ord. No. 4228, § 2, 5-14-18; Ord. 3510 § 2 (part), 2002: 2001 In-house code § 10-6(b), (c))

15.20.030 Appendix K, International Building Code, 2021 Edition, Administrative Provisions—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

Appendix K, International Building Code, 2021 Edition—Administrative Provisions, as published by the International Code Council, Inc. (Ord. No. 4509, § 1, 7-10-23; Ord. No. 4068, § 1, 5-11-15; Ord. No. 3864, § 7, 6-22-09; Ord. 3621 § 6 (part), 2005)

Editor's note—Ord. No. 4509, § 1, adopted July 10, 2023, amended § 15.20.030 and in doing so changed the title of said section from "Appendix K, International Building Code, 2012 Edition, Administrative Provisions—Adopted" to "Appendix K, International Building Code, 2021 Edition, Administrative Provisions—Adopted," as set out herein.

15.20.040 Reserved.

Editor's note—Ord. No. 4509, § 1, adopted July 10, 2023, repealed § 15.20.040, which pertained to amendments and derived from Ord. 3621 § 6 (part), adopted in 2005; Ord. No. 3864, § 2, adopted June 22, 2009; Ord. No. 4068, § 1, adopted May 11, 2015; and Ord. No. 4228, § 2, adopted May 14, 2018.

*Editor's note—Ord. No. 4068, § 1, adopted May 11, 2015, renamed Chapter 15.20 from National Electrical Code Adopted—ICC Electrical Code—Administrative Provisions Adopted as National Electrical Code Adopted—Appendix K, International Building Code—Administrative Provisions Adopted.

Chapter 15.22

INTERNATIONAL FUEL GAS CODE ADOPTED

Sections:

15.22.010 International Fuel Gas Code—Adopted.

15.22.020 Amendments.

15.22.010 International Fuel Gas Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Fuel Gas Code, 2024 Edition, as published by the International Code Council, Inc., including Appendices A, B and C. (Ord. No. 4613, § 6, 2-24-25; Ord. No. 4485, § 6, 1-9-23; Ord. No. 4254, § 7, 12-20-18; Ord. No. 4140, § 7, 6-27-16; Ord. No. 3998, § 8, 9-9-13; Ord. No. 3864, § 8, 6-22-09; Ord. 3621 § 7 (part), 2005)

15.22.020 Amendments.

The International Fuel Gas Code adopted in Section 15.22.010 above is amended as follows:

A. Section 101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].

B. Section 108.2 Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

C. Section 108.6 is deleted and re-created to read as follows:

> Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

D. Section 111.3.3.1 is created to read as follows:

> Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.
>
> This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.
>
> Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the building official.
>
> To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.
>
> In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

E. Section 108.4 is deleted and re-created to read as follows:

> Any person who shall violate a provision of this code or who shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair work in violation of the approved construction documents, directive of the code official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

F. Section 114.4. The last sentence is amended to read as follows:

> Any person who shall continue any work after having been served with a stop work order, except such work as that person is

directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by law.

G. Section 112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

H. Section 303.3, Exceptions 3 and 4, are deleted in their entirety and re-created to read as follows:

Unvented fuel burning equipment shall not be installed, used, maintained, or permitted to exist in any building.

I. Section 402.7 is deleted and re-created to read as follows:

Maximum Delivery Pressure. The maximum natural gas delivery pressure shall be six inches water column. If, in the design of large commercial buildings, elevated pressure is needed, the applicant shall provide written approval from the supplying utility company to the chief building official for approval. No change in the gas delivery pressure shall be permitted without prior approval from both the utility company and the chief building official.

J. Section 406.4.1 is amended by amending the first sentence to read as follows:

The test pressure to be used shall be not less than 10 PSI for a 15-minute duration. Welded pipe shall be minimum 60 PSI for a 30-minute duration. (Ord. No. 4613, § 6, 2-24-25; Ord. No. 4485, § 6, 1-9-23; Ord. No. 3998, § 8, 9-9-13; Ord. No. 3864, § 8, 6-22-09; Ord. 3621 § 7 (part), 2005)

Chapter 15.24

DANGEROUS BUILDING CODE*

Sections:

15.24.010 International Property Maintenance Code—Adopted.

15.24.020 Amendments.

15.24.010 International Property Maintenance Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

Chapters 1 and 2 of the International Property Maintenance Code, 2024 Edition, as published by the International Code Council, Inc. (Ord. No. 4613, § 7, 2-24-25; Ord. No. 4485, § 7, 1-9-23; Ord. No. 4254, § 8, 12-20-18; Ord. No. 4140, § 8, 6-27-16; Ord. No. 3998, § 9, 9-9-13; Ord. No. 3864, § 9, 6-22-09)

15.24.020 Amendments.

The code adopted in Section 15.24.010 above is amended as follows:

A. Section 101.1 is deleted and re-created to read as follows:

> Title. These regulations shall be known as the city of Cheyenne Dangerous Building Code, hereinafter referred to as "this code."

B. Section 104.1 is deleted and re-created to read as follows:

> Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

C. Section 106 is deleted and re-created to read as follows:

> Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

D. With the exception of the amendments set forth above in subsections A, B, and C, chapters adopted from the 2018 International Property Maintenance Code include Chapters 1, 2, 3, 4, 5, 6, 7 and 8. (Ord. No. 4613, § 7, 2-24-25; Ord. No. 4485, § 7, 1-9-23; Ord. No. 4254, § 8, 12-20-18; Ord. No. 3864, § 9, 6-22-09)

***Editor's note**—Ord. No. 3864, § 9, adopted June 22, 2009, repealed the former Chapter 15.24 §§ 15.24.010 and 15.24.020, and enacted a new Chapter 15.24 as set out herein. The former Chapter 15.24 pertained to the International Property Maintenance Code and derived from Ord. 3621 § 8 (part), 2005.

Chapter 15.26

INTERNATIONAL ENERGY CONSERVATION CODE ADOPTED*

Sections:

15.26.010 International Energy Conservation Code—Adopted.

15.26.020 Amendments.

15.26.010 International Energy Conservation Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Energy Conservation Code, 2018 Edition, as published by the International Code Council, Inc.; (Ord. No. 4485, § 8, 1-9-23; Ord. No. 4254, § 9, 12-20-18; Ord. No. 4140, § 9, 6-27-16; Ord. No. 3998, § 10, 9-9-13; Ord. No. 3864, § 10, 6-22-09)

15.26.020 Amendments.

The International Energy Conservation Code adopted in Section 15.26.010 above is amended as follows:

A. Section 101.1 insert: The City of Cheyenne; for [NAME OF JURISDICTION].

B. Reserved.

C. Section C105.3/R105.3 is amended by the addition of the following wording:

> C105.3/R105.3 Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.
>
> This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.
>
> Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the chief building official.
>
> To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.
>
> In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

D. Section 104.2 fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

E. Section 104.3 is amended by the addition of a final sentence to read as follows:

> Said fee is an investigation fee and shall be in an amount equal to the permit fee.

F. Section 104.5 is deleted and re-created to read as follows:

> Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

G. Section C109.4/R109.4 is amended to read as follows:

> C108.4/R108.4 Failure to Comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed

***Editor's note**—Ord. No. 3864, § 10, adopted June 22, 2009, repealed the former Chapter 15.26, §§ 15.26.010—15.26.020, and enacted a new Chapter 15.26 as set out herein. The former Chapter 15.26 pertained to the International Existing Building Code and derived from Ord. 3621 § 9 (part), 2005.

to perform to remove a violation or unsafe condition, shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

H. Section C109/R109 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

I. Section R402.4.1.2 is amended to read as follows:

R402.4.1.2 Testing. The building or dwelling unit shall be tested and verified as having an air leakage rate of not exceeding 5 air changes per hour in Climate Zones 1 and 2, and 4 air changes per hour in Climate Zones 3 through 8. Testing shall be conducted in accordance with RESNET/ICC 380, ASTM E779 or ASTM E1827 and reported at a pressure of 0.2 inch w.g. (50 Pascals). Where required by the code official, testing shall be conducted by an approved third party. A written report of the results of the test shall be signed by the party conducting the test and provided to the code official. Testing shall be performed at any time after creation of all penetrations of the building thermal envelope.

Exception: When testing individual dwelling units, an air leakage rate not exceeding 0.30 cubic feet per minute per square foot [0.008 m3/(s × m2)] of the dwelling unit enclosure area, tested in accordance with ANSI/RESNET/ICC 380, ASTM E779 or ASTM E1827 and reported at a pressure of 0.2 inch w.g. (50 Pa), shall be an accepted alternative permitted in all climate zones for:

1. Attached single and multiple-family building dwelling units; and

2. Buildings or dwelling units that are 1,500 square feet (139.4 m2) or smaller.

The remainder of Section 402.4.1.2 is unchanged.

J. Table R402.1.2 is amended to read as follows:

1. Table R402.1.2

Insulation and Fenestration Requirements by Component [a]

Climate Zone	Fenestration U-Factor[b]	Skylight[b] U-Factor	Glazed Fenestration SHGC[b]	Ceiling R-Value	Wood-frame Wall R-Value	Mass Wall R-Value[g]	Floor R-Value	Basement[c] Wall R-Value	Slab[d] R-Value & Depth	Crawlspace[c] Wall R-Value
6	0.35	0.60	NR	49	20 or 13+5[f]	15/19	30[e]	15/19	10, 4 ft	10/13

[a.] R-values are minimums. U-factors and SHGC are maximums. R-19 batts compressed into a nominal 2 × 6 framing cavity such that the R-value is reduced by R-1 or more shall be marked with the compressed batt R-value in addition to the full thickness R-value.

[b.] The fenestration U-factor column excludes skylights. The SHGC column applies to all glazed fenestration.

[c.] "15/19" means R-15 continuous insulated sheathing on the interior or exterior of the home or R-19 cavity insulation at the interior of the basement wall. "15/19" shall be permitted to be met with R-13 cavity insulation on the interior of the basement wall plus R-5 continuous insulated sheathing on the interior or exterior of the home. "10/13" means R-10 continuous insulated sheathing on the interior or exterior of the home or R-13 cavity insulation at the interior of the basement wall.

[d.] R-5 shall be added to the required slab edge R-values for heated slabs. Insulation depth shall be the depth of the footing or 2 feet, whichever is less in Zones 1 through 3 for heated slabs.

[e.] Or insulation sufficient to fill the framing cavity, R-19 minimum.

[f.] "13+5" means R-13 cavity insulation plus R-5 insulated sheathing. If structural sheathing covers 25 percent or less of the exterior, insulating sheathing is not required where structural sheathing is used. If structural sheathing covers more than 25 percent of exterior, structural sheathing shall be supplemented with insulated sheathing of at least R-2.

[g.] The second R-value applies when more than half the insulation is on the interior of the mass wall.

K. Table R402.1.4 is amended to read as follows:

Table R402.1.4
Equivalent U-Factors[a]

Climate Zone	Fenestration U-Factor	Skylight U-Factor	Ceiling U-Factor	Frame Wall U-Factor	Mass Wall U-Factor[b]	Floor U-Factor	Basement Wall U-Factor	Crawlspace Wall U-Factor[c]
6	0.35	0.60	0.026	0.057	0.060	0.033	0.050	0.065

[a.] Nonfenestration U-factors shall be obtained from measurement, calculation or an approved source.

[b.] When more than half the insulation is on the interior, the mass wall U-factors shall be a maximum of 0.17 in Zone 1, 0.14 in Zone 2, 0.12 in Zone 3, 0.10 in Zone 4, except Marine, and the same as the frame wall U-factor in Marine Zone 4 and Zones 5 through 8.

[c.] Basement wall U-factor of 0.360 in warm-humid locations as defined by Figure R301.1 and Table R301.1.

L. Table R402.4.1.1 is amended to read as follows:

Table R402.4.1.1
Air Barrier and Insulation Inspection Component Criteria

Component	Criteria
Air barrier and thermal barrier	Exterior thermal envelope insulation for framed walls is installed in substantial contact and continuous alignment with building envelope air barrier. Breaks or joints in the air barrier and filled or repaired. Air-permeable insulation is not used as a sealing material. Air-permeable insulation is inside of an air barrier.
Ceiling/attic	Air barrier in any dropped ceiling/soffit is substantially aligned with insulation and any gaps are sealed. Attic access (except unvented attic), knee wall door, or drop-down stair is sealed.
Walls	Corners and headers are insulated. Junction of foundation and sill plate is sealed.
Windows and doors	Space between window/door jambs and framing is sealed.

Component	Criteria
Rim joists	Rim joists are insulated and include an air barrier.
Floors (including above-garage and cantilevered floors)	Insulation is installed to maintain permanent contact with underside of subfloor decking. Air barrier is installed at any exposed edge of insulation.
Crawl space walls	Insulation is permanently attached to walls. Exposed earth in unvented crawl spaces is covered with Class I vapor retarder with overlapping joints taped.
Shafts, penetrations	Duct shafts, utility penetrations, knee walls and flue shafts opening to exterior or unconditioned space are sealed.
Narrow cavities	Batts in narrow cavities are cut to fit, or narrow cavities are filled by sprayed/blown insulation.
Garage separation	Air sealing is provided between the garage and conditioned spaces.
Recessed lighting	Recessed light fixtures are airtight, IC rated, and sealed to drywall. Exception — fixtures in conditioned space.
Plumbing and wiring	Insulation is placed between outside and pipes. Batt insulation is cut to fit around wiring and plumbing, or sprayed/blown insulation extends behind piping and wiring.
Shower/tub on exterior wall	Showers and tubs on exterior walls have insulation and an air barrier separating them from the exterior wall.
Electrical/phone box on exterior walls	Air barrier extends behind boxes or air sealed-type boxes are installed.
Common wall	Air barrier is installed in common wall between dwelling units.
HVAC register boots	HVAC register boots that penetrate building envelope are sealed to subfloor or drywall.
Fireplace	Fireplace walls include an air barrier.

M. Section R402.4.4 is deleted.

N. Section R403.3.3 is deleted.

O. Section R403.3.4 is deleted.

P. Section R403.3.5 is amended to read as follows:

R403.3.5 Building Cavities (Mandatory). Building Framing Cavities Shall Not Be Used As Ducts.

Q. Section R403.5 is deleted.

R. Table R406.4 is amended to read as follows:

Table R406.4
Maximum Energy Rating Index

Climate Zone	Energy Rating Index
6	65

S. Section C408.2 is amended by adding exception #3 and #4 as follows, the remaining section is unchanged.

3. Systems in new buildings not exceeding fifteen thousand (15,000) square feet gross floor area.

4. Alterations to an existing building.

T. Section C403.4.1.4 is amended by adding exception #2 as follows, the remaining section is unchanged.

2. In buildings without direct-digital controls (DDC), vestibule heaters may be controlled by a stand-alone thermostat configured to limit heating to a temperature of not greater than 55°F. (Ord. No. 4613, § 8, 2-24-25; Ord. No. 4485, § 8, 1-9-23; Ord. No. 4254, § 9, 12-20-18; Ord. No. 4140, § 9, 6-27-16; Ord. No. 3998, § 10, 9-9-13; Ord. No. 3864, § 10, 6-22-09)

Chapter 15.36
PREFABRICATED BUILDINGS

Sections:

15.36.010 General.
15.36.020 Permit required.
15.36.030 Definition.
15.36.040 Testing, inspection, certification.
15.36.050 Inspections—Certificate of occupancy—Required.

15.36.010 General.

A. Purpose. The purpose of this chapter is to regulate materials and establish methods of safe construction where any structure or portion thereof is wholly or partially prefabricated.

B. Scope. Unless otherwise specifically stated in this chapter, all prefabricated construction and all materials used therein shall conform to all applicable requirements of the International Codes. (Ord. 3621 § 10 (part), 2005)

15.36.020 Permit required.

Prior to construction of any prefabricated building or component, the applicant shall first obtain a building permit and pay the required fees as required by the International Codes. The following information and supporting documentation will be required:

A. Proof that a properly permitted foundation, in the case of a building or structure, has been installed, inspected and approved by the building official;

B. Compliance with applicable laws, ordinances, rules and regulations, which may include a site plan and approved zoning designation. (Ord. 3621 § 10 (part), 2005)

15.36.030 Definition.

The following definition shall apply in the interpretation and enforcement of this chapter:

"Prefabricated assembly" means a structural unit, the integral parts of which have been built up or assembled prior to incorporation in the building. (Ord. 3621 § 10 (part), 2005)

15.36.040 Testing, inspection, certification.

Testing, inspection and certification of all prefabricated construction or prefabricated items, to include residential, shall be in accordance with the applicable provisions of Chapter 17 of the International Building Code (IBC), as determined by the building official. (Ord. 3621 § 10 (part), 2005)

15.36.050 Inspections—Certificate of occupancy—Required.

Inspections of prefabricated items shall comply with the provisions of the International Codes.

Prior to use or occupancy of a prefabricated structure, the owner shall obtain a final inspection and certificate of occupancy from the building official.

For purposes of this chapter, the term "prefabricated building" means any off-site premanufactured structure that is designed and constructed in accordance with the International Codes, as amended, as set forth in this title. (Ord. 3621 § 10 (part), 2005)

Chapter 15.44
MOVING BUILDINGS

Sections:

15.44.010 Moving of buildings—Permit required.
15.44.020 Restrictions.
15.44.030 Permit revocation.

15.44.010 Moving of buildings—Permit required.

Any person desiring to move any building or structure into or within the city shall first make written application for a permit on forms provided by the building official. The following information and supporting documentation will be required:

A. Building type, size, current location, destination location, moving route, written assurance by the applicant to comply with provisions of this code and other applicable city ordinances, and proof of adequate machinery, appliances and equipment for completion of the move;

B. Applicable approvals from various agencies as required by the building official;

C. Proof of comprehensive general liability insurance in minimum amounts of fifty thousand dollars ($50,000.00), one hundred thousand dollars ($100,000.00) and ten thousand dollars ($10,000.00);

D. A cash performance bond, deposited with the building official, in an amount to be determined by the building official but not less than five hundred dollars ($500.00) nor more than two thousand five hundred dollars ($2,500.00) to ensure the permittee's compliance with requirements of this title and to provide for completion of the entire moving project, including clean-up of vacated premises within established timeframes;

E. A personal and property damage bond approved by the building official, in the amount of one thousand dollars ($1,000.00), to ensure protection to persons and property against damage by the moving operation;

F. A permit fee of one hundred dollars ($100.00) must be paid to the building official prior to issuance of the permit. If a building or structure is to be moved as two or more units, a separate permit and fee applies to each unit. (2001 In-house code § 10-10(a))

15.44.020 Restrictions.

A. While a building is in transit, it cannot be occupied by any person. The building must be moved as expeditiously as possible with no deviation from the designated route unless approved by the building official.

B. The building official may require special street protection measures associated with the moving of any building or structure.

C. If any damage occurs to streets, curbs, drainage structures and all other public property as the result of a building being moved, the permittee shall reimburse the city for any damage. Issuance of a permit does not relieve a permittee from liability for damages.

D. All buildings or structures moved into or within the city must comply with International Codes pertaining to buildings and structures, and no building or structure shall be occupied unless a certificate of occupancy has been issued by the building official. (Ord. 3621 § 12, 2005; 2001 In-house code § 10-10(b))

15.44.030 Permit revocation.

Following issuance, a permit may be revoked by the building official if a permittee fails to comply with the provisions of this chapter. (2001 In-house code § 10-10(c))

Chapter 15.48
DEMOLITION OF BUILDINGS

Sections:

15.48.010 Permit required.
15.48.020 Exception.
15.48.030 Restriction.

15.48.010 Permit required.

Any person desiring to demolish any shed, garage, house or structure of similar or greater size shall first make written application for a permit on forms provided by the building official. The following information and supporting documentation will be required:

A. Building type, size, location, written assurance of adequate machinery, appliances and equipment for completion of the demolition;

B. Proof of comprehensive general liability insurance in minimum amounts of fifty thousand dollars ($50,000.00), one hundred thousand dollars ($100,000.00) and ten thousand dollars ($10,000.00);

C. A cash performance bond, deposited with the building official, in an amount to be determined by the building official but not less than five hundred dollars ($500.00) nor more than two thousand five hundred dollars ($2,500.00) to ensure the permittee's compliance with requirements of this title and to provide for the completion of demolition, including clean-up of vacated premises within established timeframes;

D. A permit fee must be paid in cash to the building official prior to issuance of a permit. Fees assessed are based upon the valuation of the demolition work and computed in accordance with building permit fee schedules, specified in Table No. 3-A, Uniform Building Code. The permit fee does not include any fees that may be assessed by the city's sanitation department for collection and/or depositing of demolished materials and debris at the city landfill or transfer station. (2001 In-house code § 10-11(a))

15.48.020 Exception.

The building official may waive the written assurance requirement of Section 15.48.010(A), (C) and (D) in circumstances where the building to be demolished is a single-story, single-family dwelling, or a structure accessory thereto, and the demolition does not represent a hazard to the general public, and if the demolition is undertaken by the owner of the property upon which the structure is situated. (2001 In-house code § 10-11(b))

15.48.030 Restriction.

Within sixty (60) days of demolition, a new structure must be commenced at the demolished site or the property owner must backfill, level and clear the area of all building remains and other debris within ten (10) days after the noted sixty (60) days. (2001 In-house code § 10-11(c))

Chapter 15.50

HISTORIC DESIGN GUIDELINE

Sections:

15.50.010 Purpose—Authority—General provisions.

15.50.020 Definitions.

15.50.030 Protective area—Defined.

15.50.040 Design Guideline.

15.50.050 Certificate of appropriateness required.

15.50.060 Demolition.

15.50.070 Appeal.

15.50.080 Violation—Penalty.

15.50.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to establish and enforce an historic design guideline to protect the historic integrity and sense of place surrounding a specified area of the original city of Cheyenne to be known as the historic governors' mansion protective area, as more fully described in Section 15.50.030 of this chapter, and also referred to in this chapter as the "protective area."

B. Pursuant to the authority granted cities and towns by Wyo. Stat. Section 15-1-601 et seq., and in conjunction with the authority provided the city's historic preservation board contained in Chapter 2.64 of the Cheyenne City Code, building and related activities within the protective area will be required to comply with the provisions of this chapter.

C. This chapter, creating an historic design guideline, places certain architectural requirements and restrictions on any proposed new construction, extensive alterations, or significant improvements anticipated within the protective area. (Ord. 3601 § 1 (part), 2004)

15.50.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter.

"Alteration" means any change to the exterior of a building that modifies its structural appearance. This shall not be construed to include routine maintenance, simple repairs, painting, cleaning, or the replacement or repair of existing features using similar or like materials (i.e., windows, doors, siding or roof). Items of concern include historic porches, fascia, and building details such as cornices, pediments, and other exterior historic design.

"Applicant" means a legally recognized property owner or designated representative with the authority to apply for a building permit as required by Title 15 of the Cheyenne City Code.

"Certificate of appropriateness" means a form issued by the preservation board which indicates its approval of an applicant's proposed alteration, improvement or new construction. The certificate, along with a raised certificate seal placed on the approved architectural drawing, rendering or formal plan submitted by the applicant, will be required by the city before approving any building permit.

"Currently" means existing or in place at the time this chapter was initially created.

"Design guideline" means the general term given to the requirements of Section 15.50.040 in this chapter and specifically means the architectural appearance of any structure and its associated landscape.

"Historic character" means having special historical, architectural, archeological, cultural, esthetic, or related value to the community.

"Historic district" means an area designated as conveying a sense of time and place due to the historic and architectural merits of the area, inclusive of landscape features.

"Improvements" means any manmade structure, building, feature or landscape added to an existing property.

"Preservation Board" means those duly appointed members of the Cheyenne historic preservation board, as set out in Chapter 2.64, Historic

Preservation Board, of the Cheyenne City Code. (Ord. No. 4325, § 1, 9-28-20; Ord. 3601 § 1 (part), 2004)

15.50.030 Protective area—Defined.

A. The historic governors' mansion protective area is authorized and defined as follows: that portion of the original city of Cheyenne as surveyed and laid out by General Grenville M. Dodge in 1867 to 1868, and legally defined as all of Block 235; Lots 1, 2, 7 and 8 of Block 234; Lots 1, 2, 7 and 8 of Block 263; and Lots 1, 2, 3, 4, 5 and 6 of Block 262, original city.

1. With the exception of four existing structures within Block 263, all of the designated protective area also lies within the Rainsford National Historic District which is listed on the United States Department of the Interior, National Parks Services' National Register of Historic Places. (Ord. 3601 § 1 (part), 2004)

15.50.040 Design Guideline.

A. Due to the historic character of the designated protective area, any significant exterior alteration or improvement, as defined in Section 15.50.020 of this chapter, to all currently existing structures and all proposed new construction must be designed to harmonize with the neighborhood architecture of the period of Cheyenne's history from 1890 to 1930. Any new construction shall be compatible with the massing, scale, size and architectural features to protect the historic integrity of the surrounding area.

B. Should any existing structure be moved, torn down or destroyed by fire or some other natural cause, any replacement structure must comply with the above-described historic guideline.

C. All currently existing vacant lots within the protective area that have any new construction must comply with the above-described historic guidelines. (Ord. 3601 § 1 (part), 2004)

15.50.050 Certificate of appropriateness required.

A. Prior to submission of an application for any building permit, as required by Title 15 of Cheyenne City Code, for new construction, significant alteration or improvements for any property located within the designated protective area, the property owner or designated representative (applicant) will obtain a certificate of appropriateness from the preservation board.

B. Prior to commencing any significant alteration to an existing property located within the designated protective area for which a building permit is not required and yet the alteration will drastically change the architectural appearance of the property, the property owner or designated representative must also obtain a certificate of appropriateness from the preservation board.

C. An applicant must submit to the planning and development department an architectural drawing, rendering, or formal plan of a type that would be suitable for applying for a building permit. The submission must contain supporting documentation that demonstrates compatibility with the neighborhood providing an explanation of the intent and extent of the work to be performed. Within twenty-one (21) days of receipt of a complete application, the planning and development department shall schedule a public hearing before the preservation board to review the proposal in accordance with the Preservation Board's Rules and Regulations, Chapter VI, Public Hearings. After close of the public hearing, the preservation board shall review the application for compliance with the design guideline criteria set forth in Section 15.50.040 and shall either approve, approve with conditions, deny, or postpone action on the application.

D. In addition to the written information required, applicants may also provide oral comments or other information considered relevant to the preservation board's decision at the scheduled public hearing. The preservation board has the authority to seek or request further information pertaining to the applicant's request.

E. If a building permit is required, the preservation board's approval or disapproval of a request will be provided to the city, within five working days of the review. Approval will result in

issuance of a certificate of appropriateness signed by the preservation board chair. Denial of a request will result in a letter issued by the preservation board to the applicant stating the reasons for disapproval and any recommended changes to the proposed design which would facilitate approval.

1. The city will not issue any permit required without approval by the preservation board.

F. In instances where additional information is required by the preservation board in order for it to render its approval or disapproval, the preservation board may continue its review process up to twenty (20) working days; however, unless previously agreed to by the applicant in writing, no more than thirty (30) days may pass between written receipt of an applicant's request and the preservation board's decision.

G. Should an applicant's request be denied by the preservation board, the property owner or designated representative has the right of appeal as specified in Section 15.50.070 of this chapter. (Ord. No. 4325, § 1, 9-28-20; Ord. 3601 § 1 (part), 2004)

15.50.060 Demolition.

The requirements and procedures for demolition of existing historic structures are addressed under Title 15, Chapter 15.48, and Title 2, Chapter 2.64, Section 2.64.090, of the Cheyenne City Code. All structures within the protective area are included as falling within the demolition requirement. For the purposes of this section addressing the historic design guideline, demolition includes not only the main structure but all associated detached structures such as historic sheds, gazebos, garages, etc. (Ord. 3601 § 1 (part), 2004)

15.50.070 Appeal.

A. A property owner or designated representative (applicant) whose request for a certificate of appropriateness is not approved by the preservation board may appeal to the board of adjustment within fifteen (15) days of the date of notification in accordance with the board of adjustment's rules and regulations. The notice of appeal must be filed in the planning and development department and copies of the notice must be served on the preservation board.

B. The written request for appeal must address the applicant's concerns and reasons why he or she feels the design meets the stated requirements. The board of adjustment will convene a contested case hearing in accordance with the Wyoming Administrative Procedures Act, Wyo. Stat. Section 16-3-101 et seq. The hearing will address all issues as presented by the applicant and planning and development department. The decision of the board of adjustment constitutes final agency action on the permit application. A finding in favor of the applicant will cause the issuance of a certificate of appropriateness.

C. Following issuance of the board of adjustment's decision, an applicant may seek further remedy through the judicial system pursuant to Wyo. Stat. Section 16-3-114. (Ord. No. 4325, § 1, 9-28-20; Ord. 3601 § 1 (part), 2004)

15.50.080 Violation—Penalty.

Failure to obtain a certificate of appropriateness or required building permit prior to demolition, alteration, improvement or new construction of any structure within the protective area will be deemed a violation of the Cheyenne City Code, punishable pursuant to the general penalty provision set forth in Chapter 1.24 of the Cheyenne City Code. (Ord. 3601 § 1 (part), 2004)

Chapter 15.52

SOLAR ACCESS PERMIT SYSTEM

Sections:

15.52.010 **Purpose—Authority—General provisions.**

15.52.020 **Definitions.**

15.52.030 **Permit required.**

15.52.040 **Permit application—Fees.**

15.52.050 **Application review.**

15.52.060 **Notification of issuance or denial—Appeal.**

15.52.070 **Issuance of permit—Recordation.**

15.52.080 **Restrictions on solar rights.**

15.52.090 **Prior existing uses.**

15.52.100 **Variances.**

15.52.110 **Enforcement.**

15.52.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to protect the health, safety and general welfare of residents of the city by encouraging the use of solar energy systems. The intent of this chapter is to provide a means of protection for the use of solar collectors without causing undue hardships on the rights of adjacent property owners.

B. Authority is granted cities and towns by Wyo. Stat. Sections 34-22-101 through 106 to regulate and permit solar energy systems.

C. The city engineer's office is responsible for the administration of the regulations contained within this chapter. (2001 In-house code § 39-1)

15.52.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Potentially affected owner" means the owner of record or contract purchaser of record of any real property which is, or may become, burdened by a solar right established by this chapter.

"Solar collector" means one of the following which is capable of collecting, storing or transmitting at least twenty-five thousand (25,000) BTU's on a clear winter solstice day:

1. A wall, celestory window or skylight designed to transmit solar energy into a structure for heating purposes;

2. A greenhouse attached to another structure and designed to provide part or all of the heating load for the structure to which it is attached;

3. A trombe wall, drum wall or other wall or roof structural element designed to collect and transmit solar energy into a structure;

4. A photovoltaic collector designed to convert solar energy into electric energy;

5. A plate-type collector designed to use solar energy to heat air, water or other fluids for use in hot water or space heating or for other applications;

6. A massive structural element designed to collect solar energy and transmit it to internal spaces for heating; or

7. Other devices or combination of devices that rely upon sunshine as an energy source.

"Solar right" means a property right to an unobstructed line-of-sight path from a solar collector to the sun which permits radiation from the sun to impinge directly on the solar collector. The extent of the solar right shall be described by the illumination provided by the path of the sun on the winter solstice day which is put to a beneficial use or otherwise limited by city ordinance or state law.

"Winter solstice day" The solstice on or about December 21st which marks the beginning of winter in the northern hemisphere and is the time when the sun reaches its southernmost point. (2001 In-house code § 39-2)

15.52.030 Permit required.

A. A solar access permit must be issued before a solar right may be established under this chapter.

B. A solar access permit shall be granted for any proposed or existing solar collector which complies with the requirements of this chapter, other city ordinances and state law.

C. Solar rights shall vest on the date the solar access permit is issued which date will also be the priority date of the solar right. The solar collector must be put to beneficial use within two years of that time, except additional time may be granted by the city engineer for good cause shown. The city engineer must certify the right and its beneficial use within two years of its vesting and if beneficial use has not been established, he or she will revoke the permit and record the revocation with the Laramie County clerk. (2001 In-house code § 39-3)

15.52.040 Permit application—Fees.

A. Any person desiring to obtain a solar right must first make application to the city engineer for a solar access permit. A permit application for a solar right will consist of the following materials:

1. The original and two copies of a completed solar access permit application on forms provided by the city engineer;

2. A review fee of thirty-five dollars ($35.00) made payable to the city of Cheyenne;

3. The names and mailing addresses of all potentially affected owners;

4. The original and two copies of a site plan drawn to a scale showing at least the following detail:

a. Title block containing owner's name, street address of the site and use of the structure(s),

b. North arrow, scale and date of preparation of the plan,

c. Names of all adjacent streets,

d. Dimensions of property,

e. Legal description of the parcel of property to be benefitted by the solar access permit,

f. Dimensions, heights and location of all fences, walls and other structures on the site and on the real property of all potentially affected owners,

g. Location, height and type (common name) of all trees, bushes and shrubs on the site, and on the real property of all potentially affected owners,

h. Legal description of the parcels of real property belonging to potentially affected owners which would be burdened by the solar access permit,

i. Design, construction and orientation of solar collector,

j. For existing solar collectors, the first date the solar collector was beneficially used,

k. Such topographical information and engineering calculations as may be necessary in the city engineer's discretion to document the solar right,

l. Degree line from base of collector, as measured above the horizon,

m. Signature block for city engineer's approval.

B. Any person desiring to obtain a solar right will, in addition to making application to the city engineer for a solar access permit, publish, at his or her own expense, a copy of the notice of the application in a newspaper of general circulation in the city once a week for three consecutive weeks, and furnish proof of said publication to the city engineer.

The notice shall state that a named applicant has applied for a solar access permit; the street address of the proposed solar collector; the type of solar collector to be constructed; the date, not sooner than ten (10) days after the last date of publication, which a person or persons may file written comments with the city engineer with respect to the issuance of the solar access permit. (2001 In-house code § 39-4)

15.52.050 Application review.

Upon filing of a permit application, the city engineer or his or her designated representative will review the application and site plan and any comments received thereon, inspect the site of the proposed or existing solar collector, and will cause the applicant to make any necessary corrections and additions to the permit application and site plan. The city engineer will also ensure that a copy of the application has been published in accordance with the provisions of Section 15.52.040(B). (2001 In-house code § 39-5)

15.52.060 Notification of issuance or denial—Appeal.

A. After a decision to issue or deny the solar access permit by the city engineer, the city engineer's office will notify the applicant and all potentially affected property owners by letter advising them of the decision as well as their right to appeal.

B. The decision of the city engineer may be appealed to the board of adjustment by any person or agency affected by any such decision. Any such appeal must conform with the appeal provisions of the United Development Code as well as all other procedural rules of the board. An appeal must be taken within thirty (30) days from the date of the action by filing a written notice of appeal with the board. The notice of appeal must specify the grounds for the appeal and contain a list of all potentially affected property owners. A copy of the notice of appeal shall also be filed with the city engineer's office and that office shall transmit to the board of adjustment all original documents, or true copies thereof, constituting the record upon which the action appealed from was taken. (Ord. No. 4335, § 1, 12-14-20; 2001 In-house code § 39-6)

15.52.070 Issuance of permit—Recordation.

A. If no appeal is taken, the city engineer's office will issue a solar access permit to the applicant after thirty (30) days have elapsed from the date of the written notification of the city engineer's decision to issue the permit.

B. All solar access permits issued must include a legal description of the real property benefitted by the solar access permit.

C. All solar access permits issued must also include a list of all potentially affected owners and a legal description of the parcels of real property owned by the potentially affected owners which are burdened by the solar access permit.

D. The recipient of a solar access permit must record the permit with a copy of the site plan submitted with the permit holder's application, which has been approved by the city engineer, in the Laramie County clerk's office within thirty (30) days after the issuance of the solar access permit. The permit holder must submit to the city engineer's office a copy of the recorded permit showing the county clerk's recording date, book and page. Failure to record the permit within thirty (30) days of its issuance will invalidate the permit and any solar right created by this chapter will be deemed abandoned. (2001 In-house code § 39-7)

15.52.080 Restrictions on solar rights.

A. Solar collectors must be located on the solar user's property so as not to unreasonably or unnecessarily restrict the uses of neighboring property.

B. No solar right attaches to a solar collector or a portion of a solar collector, which would be shaded by a hypothetical nonlight transmitting, ten-foot high wall located on the property line on a winter solstice day.

C. The solar right to radiation of the sun before nine a.m. or after three p.m. Mountain Standard Time is de minimus and may be infringed without compensation to the owner of the solar collector.

D. A solar right which is not applied to a beneficial use for a period of five years or more will be deemed abandoned and without priority.

E. The priority of new construction with regard to interference in solar rights will vest as of the date of application for a building permit. (2001 In-house code § 39-8)

15.52.090 Prior existing uses.

A. Structures or vegetation which existed prior to the time of installation of a solar energy collection system or the effective date of this chapter (January 10, 1984) are not subject to the requirements of this chapter.

B. Structures or vegetation which have been damaged by fire or a natural disaster may be restored to their original condition, if the work is commenced within one year of the fire or natural disaster; in addition, normal and routine maintenance of structures may be performed. (2001 In-house code § 39-9)

15.52.100 Variances.

Any person desiring to erect any structure, or increase the height of any structure, or permit the growth of any tree or other vegetation, or otherwise use his or her property, not in conformance with this chapter, may apply for a variance from the board of adjustment in accordance with the variance procedures of the Unified Development Code. A variance will not be approved by the board unless it finds the literal enforcement or application of those regulations would result in unnecessary hardship. (Ord. No. 4335, § 2, 12-14-20; 2001 In-house code § 39-10)

15.52.110 Enforcement.

Once a solar collector conforming to the regulations of this chapter has been constructed, the permit has been issued by the city engineer's office, and recorded in the county clerk's office, a solar property right shall be deemed to have been established pursuant to Wyoming Statutes, Sections 34-22-101 through 34-22-106. Violation of the permitted and recorded solar right is a violation of applicable civil law. The city will not intervene in disputes over the use of solar energy. (2001 In-house code § 39-11)

Chapter 15.56
HOUSE NUMBERS

Sections:

15.56.010 Required—Compliance.
15.56.020 Amount of frontage per number.
15.56.030 Named streets and avenues—Intersecting diagonal streets.
15.56.040 Numbered streets—West of Central Avenue.
15.56.050 Numbered streets—East of Central Avenue.
15.56.060 Diagonal streets intersecting numbered streets.
15.56.070 Notice to comply—Penalties.
15.56.080 Building owners and contractors required to post address numbers—Direction signage.
15.56.090 Trailer court owners—Requirement.

15.56.010 Required—Compliance.

Every dwelling and business house in the city must be numbered in the manner prescribed by the following sections concerning house numbers. No person may erect or maintain any house number which does not conform with these provisions concerning house numbers. (2001 In-house code § 40-31)

15.56.020 Amount of frontage per number.

Each house number shall cover not less than twenty-two (22) feet fronting on the street, avenue or court to which it applies. (2001 In-house code § 40-32)

15.56.030 Named streets and avenues—Intersecting diagonal streets.

On the streets or avenues having names, all buildings are numbered as follows:

A. The odd numbers on the east side and the even numbers on the west side.

B. From the southern limit of the city northward to First Street, the house numbers shall run consecutively from one to twenty-three (23), both inclusive; from First Street to Second Street, the numbers shall run consecutively from one hundred (100) to one hundred twenty-three (123), both inclusive; from Second Street to Third Street the numbers shall run consecutively from two hundred (200) to two hundred twenty-three (223), both inclusive; and continue in like manner to the northern limits of the city.

C. House numbers on Ames Court, Dey and Cribbon Avenues, between Twenty-ninth Street and Dodge Court, shall run consecutively from twenty-nine hundred (2900) to twenty-nine hundred twenty-three (2923), both inclusive; house numbers on Ames Court, Dey and Cribbon Avenues, between Dodge Court and Talbot Court, shall run consecutively from twenty-nine hundred twenty three (2923) to twenty-nine hundred forty-seven (2947), both inclusive; house numbers on Ames Court, Dey and Cribbon Avenues, between Talbot Court and Richardson Court, shall run consecutively from thirty hundred (3000) to thirty hundred twenty-three (3023), both inclusive; house numbers on Ames Court, Dey and Cribbon Avenues, between Richardson Court and Cosgriff Court, shall run consecutively from thirty hundred twenty-four (3024) to thirty hundred forty-seven (3047), both inclusive; house numbers on Ames Court, Dey, Cribbon and McComb Avenues, and Hynds Boulevard, between Cosgriff Court and Thirty-first Street, shall run consecutively from thirty hundred forty-eight (3048) to thirty hundred seventy-one (3071), both inclusive.

With the exceptions stated in this section, digits designating the hundreds of any house number on the streets or avenues having names shall correspond to the number of the street next south of such house number. On diagonal streets, courts or avenues which intersect numbered streets at an angle of less than forty-five (45) degrees the houses will take their numbers from the named streets or avenues. (2001 In-house code § 40-33)

15.56.040 Numbered streets—West of Central Avenue.

The numbered streets shall be divided into east and west by Central Avenue. Between Central Avenue and Capitol Avenue the house numbers shall run westward consecutively from one hundred (100) to one hundred twenty-three (123), both inclusive, with the odd numbers on the south side and the even numbers on the north side; between Capitol Avenue and Carey Avenue the numbers shall run westward consecutively from two hundred (200) to two hundred twenty-three (223), both inclusive, and continue in like manner to the westerly limits of the city. The digits designating the hundreds of any house number shall correspond to the number of the square it may be west of Central Avenue. (2001 In-house code § 40-34)

15.56.050 Numbered streets—East of Central Avenue.

Between Central Avenue and Warren Avenue the house numbers shall run eastward consecutively from one hundred (100) to one hundred twenty-three (123), both inclusive; between Warren Avenue and House Avenue the house numbers shall run eastward consecutively from two hundred (200) to two hundred twenty-three (223), both inclusive, and continue in like manner to the easterly limits of the city. The digits designating the hundreds of any house number shall correspond to the number of the square it may be east of Central Avenue. (2001 In-house code § 40-35)

15.56.060 Diagonal streets intersecting numbered streets.

On diagonal streets or courts which intersect numbered streets at an angle of more than forty-five (45) degrees, the houses on such diagonal street or court shall take their numbers from the streets having numbers. (2001 In-house code § 40-36)

15.56.070 Notice to comply—Penalties.

A. The city engineer's office shall notify the owner or agent of any building or premises which are not numbered in compliance with the portions of this chapter to affix or inscribe the proper numbers, in plain and legible figures, on the front of the building, unit or premises. Notice shall be served personally on the owner or agent, or by leaving it at the residence, premises or place of business of the owner or agent or, in case the owner or agent cannot be found, notice shall be served on the occupant of the building or premises. The owner, agent or occupant shall comply with such notice within ten (10) days from the date thereof.

B. Any person who fails or refuses to comply with the portions of this chapter is guilty of violation of this chapter. Violations shall be punished by a fine of not less than five dollars ($5.00), and not more than twenty-five dollars ($25.00) for each offense. Each day such violation continues constitutes a separate offense. (2001 In-house code § 40-37)

15.56.080 Building owners and contractors required to post address numbers—Direction signage.

The owner or lessee of every residential and business building within the city shall be required to post in plain and legible figures on the front of each building the address number, as prescribed by the city engineer's office, by which each building may be easily identified. The owner or lessee of every multifamily housing unit or hotel shall post the unit identification, or, in the case of individually addressed units, the address number at the main entrance to each unit. Owners of multifamily housing buildings and hotels shall provide direction signs to interior units at conspicuous locations in hallways. The signs must be placed to provide continuous directions from the main entrance to any unit in the building. The city engineer's office shall also require building contractors to place address numbers, unit identification and direction signs, as mentioned above, on residential and business buildings which are being constructed. Exception: direction signs shall not be required for interior units where all units on each floor are on a single hallway, without intersections, branches or loops, and where all units are identified with consecutive numbers or letters. (2001 In-house code § 40-38)

15.56.090 Trailer court owners—Requirement.

The owner or operator of every trailer (mobile-home) court is required to post in plain and legible figures on the front of each lot in the trailer (mobile-home) court a number by which each trailer lot may be easily identified. Lot numbers must be approved by the city engineer's office. (2001 In-house code § 40-39)

Title 16

SUBDIVISIONS
(RESERVED)

Title 17

RESERVED*

*__Editor's note__—Ord. No. 3943, (Cheyenne Unified Development Code) approved January 23 2012, repealed Title 17, Chs. 17.04—17.148, Zoning in its entirety. See the Ordinance List and Code Comparative Table for the history of this title.

STATUTORY REFERENCES
FOR
WYOMING CITIES AND TOWNS

The statutory references listed below refer the code user to state statutes applicable to Wyoming cities and towns. They are current though the 2020 budget session and 2020 special session.

General Provisions

Municipal corporations generally

WS Title 15

Incorporation

WS 15-1-201 et seq.

Annexation

WS 15-1-401 et seq.

General powers of governing bodies

WS 15-1-103

Ordinance passage and style

WS 15-1-110, 15-1-114 through 15-119

Ordinance codification

WS 15-1-103(a)(xxxviii)

Adoption by reference procedure and effect

WS 15-1-119

Power to enforce ordinances by imposing penalty

WS 15-1-103(a)(xli)

Eminent domain

WS 15-1-103(a)(xxxv)

Administration and Personnel

Incorporated towns generally

WS ch. 15-2

First class cities generally

WS ch. 15-3

Municipal election provisions

WS ch. 15-11

Town officers

WS 15-2-102, 15-2-103

First class city officers

WS 15-3-201 et seq.

Alternative commission government

WS 15-4-101 et seq.

Alternative city manager government

WS 15-4-201 et seq.

Mayoral powers generally

WS 15-1-108

Meetings of governing bodies

WS 15-1-105 and 15-1-106

Public meetings

WS 16-4-401 et seq.

Municipal courts

WS ch. 5-6

Fire and police departments

WS ch. 15-5, 15-1-103(a)(xxxiv), and 15-1-103(a)(xxiii)

Municipal health department

WS 35-1-301 et seq.

Planning and zoning commissions

WS 15-1-501 et seq. and 15-1-604

Boards of adjustment

WS 15-1-605 et seq.

Wyoming Homeland Security Act

WS 19-13-101 et seq.

Revenue and Finance

Powers generally

WS 15-1-103(a)(vii—x)

Uniform Municipal Fiscal Procedures Act

WS 16-4-101 et seq.

Local sales tax

WS 39-15-201 et seq.

Town finances and claims

WS 15-2-201 et seq.

Funding and refunding bonds

WS ch. 15-8

Claims against cities and towns

WS 15-1-125

First class city financial statements

WS 15-3-306

Commission government finances

WS 15-4-109

City manager government finances

WS 15-4-302, 15-4-303

Appropriations for advertisement of resources

WS 15-1-111

Public and local improvements

WS chs. 15-6 and 15-7

Contracts for public improvement

WS 15-1-113

Business Licenses, Taxes and Regulations

Regulations generally

WS 15-1-103(a)(xiii) and (xv)

Alcoholic beverages local licenses

WS 12-4-101 et seq.

Exhibitions and circuses

WS 33-6-104

Junk and secondhand dealers

WS 15-1-103(a)(xliii) and 33-18-101 et seq.

Pawnbrokers

WS 15-1-103(a)(xliii)

Saloons and shooting galleries

WS 15-1-103(a)(xv)

Shooting ranges

WS ch. 16-11

Animals

Regulations generally

WS 15-1-103(a)(xiv)

Health and Safety

Nuisances generally

WS 15-1-103(a)(xix)

Health regulations

WS 15-1-103(a)(xxix)

Garbage and refuse disposal

WS 15-1-103(a)(xxi) and 35-10-101 et seq.

Weed and pest control

WS 11-5-115

Power to regulate combustibles and explosive material

WS 15-1-103(a)(xxviii)

Food safety system

WS 35-7-123 et seq.

Public Peace, Morals and Welfare

Regulations generally

WS 15-1-103(a)(xvi)—(xviii) and (xli)

Crimes and offenses

WS title 6

Vehicles and Traffic

Motor vehicles

WS title 31

Local traffic regulations

WS 15-1-119, 31-5-108—31-5-110

Off-street parking

WS 15-1-801

Snowmobiles

WS 31-5-801

Off-road recreational vehicles

WS 31-5-1601

Abandoned vehicles

WS 15-1-103(a)(xliv)

Streets, Sidewalks, and Public Places

Streets, alleys and sidewalks

WS 15-1-103(a)(xi)

Public parks

WS 15-1-103(a)(xi), (xii), (xxii) and WS 15-7-301 et seq.

Eminent domain

WS 15-1-103(a)(xxxv)

Local and public improvements

WS chs. 15-6 and 15-7

Public Services

Public utilities board

WS 15-7-401 et seq.

Sewerage systems

WS 15-1-103(a)(xxx) and (xlvi) and 15-7-501 et seq.

Water service system

WS 15-1-103(a)(xxx) and 15-7-601 et seq.

Utility franchises

WS 15-1-103(a)(xxxiii)

Emergency telephone service

WS 16-9-101 et seq.

Libraries

WS 15-1-103(a)(xxxii)

Off-street parking facilities

WS 15-1-801

Buildings and Construction

Construction regulations generally

WS 15-1-103(a)(xxiv) and (xxvi)

Adoption of national codes

WS 15-1-119

Fire limits

WS 15-1-103(a)(xxvii)

Numbering of buildings

WS 15-1-103(a)(xxxvi)

Industrial development projects

WS 15-1-701 et seq.

Subdivisions

Regulations generally

WS 15-1-415 and 15-1-510 et seq.

Zoning

Local regulations

WS 15-1-601 et seq.

Zoning board of adjustment

WS 15-1-605 through 15-1-609

1975 PRIOR CODE CROSS-REFERENCE TABLE

The legislative history information was derived from the Code of Ordinances, comprising the general ordinances of the city of Cheyenne published by Municipal Code Corporation, 1975.

Charter Ordinances
Budget

Prior Code §	Ordinance History	Herein
		Not codified
1		Not codified
2		Not codified
3		Not codified
4		Not codified
5		Not codified
6		Not codified
7		Not codified
8		Not codified

Code of Ordinances

Prior Code §	Ordinance History	Herein
1-1	Code 1963, § 1-1	1-1
1-2	Code 1963, § 1-2; Ord. No. 3093, § 1, 1-22-90	1-2
1-3	Code 1963, § 1-3	1-3
1-4	Code 1963, § 1-4	1-4
1-5	Code 1963, § 1-7	Not codified
1-6	Code 1963, § 1-11	2-5
1-7	Code 1963, § 1-6	1-8
1-8	Code 1963, § 1-5	1-9
2-1	Code 1963, § 1-9; Ord. No. 3232, § 1, 7-11-94	2-1
2-2	Code 1963, § 1-10; Ord. No. 3232, § 1, 7-11-94	2-2
2-2.1	Ord. No. 3232, § 1, 7-11-94	2-1
2-3	Code 1963, § 2-1	2-3
2-4	Code 1963, § 2-2	2-4
2-5	Ord. No. 1976, § 1, 11-11-74	Not codified

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Prior Code §	Ordinance History	Herein
2-15	Code 1963, § 2-143	2-5
2-16	Code 1963, § 2-144	2-5
2-17	Code 1963, § 2-145	2-6
2-18	Code 1963, § 2-146	2-5
2-19	Code 1963, § 2-147	2-6
2-20	Ord. No. 2660, § 1, 9-27-82; Ord. No. 3249, § 1, 1-19-95	2-8
2-25	Ord. No. 1732, 12-27-71; Ord. No. 3277, § 1, 2-27-96; Ord. No. 3368, § 1, 2-8-99; Ord. No. 3436, § 1, 6-11-01	2-10
2-26	Ord. No. 1733, 12-27-71	2-11
2-27	Code 1963, § 2-6	Not codified
2-28	Ord. No. 1734, 12-27-71	2-18
2-29	Ord. No. 1735, 12-27-71; Ord. No. 3109, § 1, 4-23-90	2-12
2-30	Ord. No. 1735, 12-27-71; Ord. No. 3226, § 1, 5-23-94	2-9
2-31	Code 1963, § 2-9	2-13
2-32	Code 1963, § 2-10	2-14
2-33	Code 1963, § 2-11; Ord. No. 2826, § 1, 9-10-84	2-15
2-34	Ord. No. 1736, 12-27-71	2-16
2-35	Ord. No. 1736, 12-27-71	2-17
2-36	Ord. No. 3110, § 1, 4-23-90; Ord. No. 3240, § 1, 10-24-94; Ord No. 3428, § 1, 3-26-01	2-18
2-47	Code 1963, § 2-36; Ord. No. 2473, § 1, 9-8-80	2-19
2-48	Ord. No. 1737, 12-27-71; Ord. No. 2350, § 1, 9-10-79; Ord. No. 2372, § 1, 11-13-79; Ord. No. 3266, § 1, 10-9-95	2-20
2-49	Ord. No. 1737, 12-27-71	2-20
2-50	Ord. No. 1737, 12-27-71	Not codified
2-51	Ord. No. 1737, 12-27-71	2-21
2-52	Ord. No. 1738, 12-27-71	2-22
2-53	Ord. No. 1738, 12-27-71	2-22
2-54	Ord. No. 1739, 12-27-71	2-23
2-55	Ord. No. 1793, 12-27-71	2-22, 2-23
2-56	Ord. No. 1740, 12-27-71	2-19
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2-63		1-2
2-64		1-2

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Prior Code §	Ordinance History	Herein
2-65		1-2
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2-67		Not codified
2-68		1-2
2-79	Ord. No. 1749, 2-14-72; Ord. No. 3196, § 1, 6-28-93; Ord. No. 3360, § 1, 11-9-98	2-24
2-80	Ord. No. 1750, 2-14-72	2-24
2-81	Ord. No. 1750, 2-14-72	2-24
2-82	Ord. No. 1750, 2-14-72	2-24
2-83	Code 1963, § 2-43	2-25
2-84	Code 1963, § 2-44	Not codified
2-85	Code 1963, § 2-46	2-27
2-86	Code 1963, § 2-47	2-28
2-87	Code 1963, § 2-49	2-29
2-88	Code 1963, § 2-52	2-30
2-89	Code 1963, § 2-53	Not codified
2-90	Ord. No. 3276, § 1, 2-26-96	2-31
2-91	Ord. No. 3097, § 2, 3-12-90	2-32
2-96	Code 1963, § 2-69	2-26
2-97	Code 1963, § 2-73	2-26
2-98	Code 1963, § 2-71	2-26
2-109	Ord. No. 2948, § 1, 5-27-86	2-67
2-110	Ord. No. 2948, § 1, 5-27-86	2-66, 2-67
2-111	Ord. No. 2948, § 1, 5-27-86	2-69
2-112	Ord. No. 2948, § 1, 5-27-86	2-69
2-113	Ord. No. 2948, § 1, 5-27-86	2-69
2-114	Ord. No. 2948, § 1, 5-27-86	2-69
2-115	Ord. No. 2948, § 1, 5-27-86	2-70
2-116	Ord. No. 2948, § 1, 5-27-86	2-69
2-117	Ord. No. 2948, § 1, 5-27-86	2-70
2-118	Ord. No. 2948, § 1, 5-27-86; Ord. No. 3300, § 1, 5-27-97	2-67
2-119	Ord. No. 2948, § 1, 5-27-86	2-68
2-131	Ord. No. 2407, § 1, 2-11-80; Ord. No. 2426, § 1, 4-14-80	2-34

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Prior Code §	Ordinance History	Herein
2-132	Ord. No. 2407, § 2, 2-11-80; Ord. No. 2426, § 2, 4-14-80	2-35
2-133	Ord. No. 2407, § 3, 2-11-80; Ord. No. 2426, § 3, 4-14-80; Ord. No. 3217, § 1, 1-10-94	2-35
2-134	Ord. No. 2407, § 4, 2-11-80; Ord. No. 2426, § 4, 4-14-80	2-36
2-135	Ord. No. 2407, § 5, 2-11-80; Ord. No. 2426, § 5, 4-14-80	2-38
2-136	Ord. No. 2407, § 6, 2-11-80; Ord. No. 2426, § 6, 4-14-80	Not codified
2-137	Ord. No. 2407, §7, 2-11-80; Ord. No. 2426, § 7, 4-14-80	2-38
2-138	Ord. No. 2407, § 8, 2-11-80; Ord. No. 2426, § 8, 4-14-80; Ord. No. 2667, § 1, 10-12-82	Not codified
2-139	Ord. No. 2407, § 9, 2-11-80; Ord. No. 2426, § 9, 4-14-80	2-35, 2-37
2-140	Ord. No. 2407, § 10, 2-11-80; Ord. No. 2426, § 10, 4-14-80	2-39
2-141	Ord. No. 2407, § 11, 2-11-80; Ord. No. 2426, § 11, 4-14-80; Ord. No. 2667, § 2, 10-12-82; Ord. No. 3362, § 1, 12-14-98	2-40
2-142	Ord. No. 2407, § 12, 2-11-80; Ord. No. 2426, § 12, 4-14-80	Not codified
2-143	Ord. No. 2667, § 3(14), 10-12-82	2-41
2-160	Ord. No. 2804, § 1, 7-9-84	2-44, 2-46
2-161	Ord. No. 2804, § 2, 7-9-84; Ord. No. 3122, § 1, 10-8-90	2-45, 2-46
2-162	Ord. No. 2804, § 3, 7-9-84	2-47
2-163	Ord. No. 2804, § 4, 7-9-84	2-48
2-164	Ord. No. 2804, § 5, 7-9-84	2-48
2-165	Ord. No. 3122, § 2, 10-8-90	2-49
2-166	Ord. No. 2804, § 6, 7-9-84	2-50
2-167	Ord. No. 2804, § 7, 7-9-84	2-51
2-168	Ord. No. 2804, § 8, 7-9-84	2-52
2-180	Ord. No. 2909, § 1, 11-25-85	2-56
2-181	Ord. No. 2909, § 1, 11-25-85	2-57
2-182	Ord. No. 2909, § 1, 11-25-85	2-55, 2-58, 2-59
2-183	Ord. No. 2909, § 1, 11-25-85; Ord. No. 3333, § 1, 2-9-98	2-60
2-184	Ord. No. 2909, § 1, 11-25-85; Ord. No. 3233, § 1, 7-11-94; Ord. No. 3272, § 1, 11-27-95	2-61
2-185	Ord. No. 2909, § 1, 11-25-85	2-62
2-186	Ord. No. 3233, § 1, 7-11-94; Ord. No. 3333, § 2, 2-9-98	2-63
3-1	Code 1963, § 3-5	3-2
3-2	Code 1963, § 3-6	3-3

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3-3	Code 1963, § 3-7	Not codified
3-14	Ord. No. 3338, §§ 1, 2, 4-13-98	3-4
3-15	Code 1963, § 3-3; Ord. No. 3338, § 3, 4-13-98	3-5
3-16	Ord. No. 3338, § 3, 4-13-98	3-6
3-17	Code 1963, § 3-3; Ord. No. 3338, § 3, 4-13-98	3-7
3-18	Code 1963, § 3-3; Ord. No. 3338, § 3, 4-13-98	3-7
3-19	Ord. No. 3338, § 3, 4-13-98	3-8
4-1	Ord. No. 3285, § 2, 6-24-96	4-1
4-2	Ord. No. 3285, § 2, 6-24-96; Ord. No. 3440, § 1, 6-25-01	4-2
4-3	Ord. No. 3285, § 2, 6-24-96; Ord. No. 3308, § 1, 6-9-97	4-3
4-4	Ord. No. 3285, § 2, 6-24-96	4-4
4-5	Ord. No. 3285, § 2, 6-24-96	4-5
4-6	Ord. No. 3285, § 2, 6-24-96; Ord. No. 3298, § 1, 5-12-97	4-6
4-7	Ord. No. 3285, § 2, 6-24-96	4-7
4-8	Ord. No. 3285, § 2, 6-24-96	4-8
4-9	Ord. No. 3285, § 2, 6-24-96	4-9
4-10	Ord. No. 3285, § 2, 6-24-96	4-10
4-11	Ord. No. 3285, § 2, 6-24-96	4-11
5-1	Ord. No. 3087, § 1, 11-27-89	5-1
5-2	Ord. No. 3087, § 1, 11-27-89	5-1
5-3	Ord. No. 3087, § 1, 11-27-89; Ord. No. 3120, § 1, 7-23-90	5-2
5-4	Ord. No. 3087, § 1, 11-27-89	5-3
5-5	Ord. No. 3087, § 1, 11-27-89	5-3
5-6	Ord. No. 3087, § 1, 11-27-89	5-4
5-7	Ord. No. 3087, § 1, 11-27-89; Ord. No. 3212, § 1, 11-22-93	5-4
5-8	Ord. No. 3087, § 1, 11-27-89	5-9
5-9	Ord. No. 3087, § 1, 11-27-89; Ord. No. 3212, § 1, 11-22-93	5-1, 5-4
5-10	Ord. No. 3087, § 1, 11-27-89; Ord. No. 3212, § 1, 11-22-93	5-4
5-11	Ord. No. 3087, § 1, 11-27-89	5-5
5-12	Ord. No. 3087, § 1, 11-27-89	5-5
5-13	Ord. No. 3087, § 1, 11-27-89	5-6
5-14	Ord. No. 3087, § 1, 11-27-89	5-7
5-15	Ord. No. 3087, § 1, 11-27-89	5-1

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5-16	Ord. No. 3087, § 1, 11-27-89	5-4, 5-8
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5-18	Ord. No. 3087, § 1, 11-27-89	5-5
5-19	Ord. No. 3087, § 1, 11-27-89	5-10
5-20	Ord. No. 3087, § 1, 11-27-89	5-11
5-21	Ord. No. 3087, § 1, 11-27-89; Ord. No. 3212, § 1, 11-22-93	5-4
5-22	Ord. No. 3087, § 1, 11-27-89	Not codified
6-1	Code 1963, § 31-25	6-3
6-12	Code 1963, § 6-7	6-4
6-13	Code 1963, § 6-8	6-4
6-14	Code 1963, § 6-9	6-5
6-15	Ord. No. 3198, § 1, 7-12-93	6-6
6-26	Ord. No. 2656, §1(6-28), 9-13-82; Ord. No. 2984, § 1, 5-11-87; Ord. No. 3198, § 1, 7-12-93	6-2
6-27	Ord. No. 2656, § 1(6-20), 9-13-82; Ord. No. 3198, § 1, 7-12-93; Ord. No. 3364, § 1, 12-21-98	6-1, 6-7
6-28	Ord. No. 2656, § 1(6-21), 9-13-82; Ord. No. 3364, § 2, 12-21-98	6-3, 6-8
6-29	Ord. No. 2656, § 1(6-22), 9-13-82; Ord. No. 3364, § 3, 12-21-98	6-9
6-30	Ord. No. 2656, § 1(6-23), 9-13-82	6-10
6-31	Ord. No. 2984, § 2, 5-11-87; Ord. No. 3364, § 4, 12-21-98	6-11
6-32	Ord. No. 2656, § 1(6-25), 9-13-82	6-12
6-33	Ord. No. 2656, § 1(6-26), 9-13-82	6-13
6-34	Ord. No. 2656, § 1(6-27), 9-13-82	Not codified
6-51	Ord. No. 2700, § 1, 6-13-83	6-2
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7-2	Ord. No. 2382, 12-26-79; Ord. No. 2861, § 2, 3-11-85	7-1
7-3	Ord. No. 2382, 12-96-79	7-1

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7-5	Ord. No. 2382, 12-26-79; Ord. No. 2861, § 4, 3-11-85	7-4
7-6	Ord. No. 2382, 12-26-79	7-4
7-7	Ord. No. 2382, 12-26-79; Ord. No. 2848, § 1, 11-13-84; Ord. No. 2989, 5-26-87; Ord. No. 3259, § 1, 6-12-95; Ord. No. 3396, § 1, 1-24-2000; Ord. No. 3430, § 1, 4-25-01	7-5
7-8	Ord. No. 2382, 12-26-79; Ord. No. 3390, § 1, 11-22-99	7-6
7-9	Ord. No. 2382, 12-26-79	7-7
7-10	Ord. No. 2382, 12-26-79	7-8
7-11	Ord. No. 2382, 12-26-79; Ord. No. 2848, § 2, 11-13-84	7-9
7-12	Ord. No. 2382, 12-26-79	7-10
7-13	Ord. No. 2382, 12-26-79; Ord. No. 2848, § 3, 11-13-84; Ord. No. 3390, § 1, 11-22-99	7-11
7-14	Ord. No. 2382, 12-26-79	7-12
7-15	Ord. No. 2989, 5-26-87	7-13
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7-23	Ord. No. 2848, § 4, 11-13-84	7-15
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7-33	Ord. No. 2382, 12-26-79	7-16
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7-35	Ord. No. 2382, 12-26-79; Ord. 2848, § 5, 11-13-84; Ord. No. 2861, § 5, 3-11-85; Ord. No. 3049, § 1, 12-12-88	7-18, 7-19
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7-39	Ord. No. 2382, 12-26-79	7-20
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7-57	Ord. No. 2382, 12-26-79; Ord. No. 2861, § 8, 3-11-85; Ord. No. 2989, §1, 5-26-87	7-22
7-58	Ord. No. 2382, 12-26-79; Ord. No. 2861, § 9, 3-11-85	7-22
7-59	Ord. No. 2382, 12-26-79; Ord. No. 2861, § 10, 3-11-85	7-22
7-60	Ord. No. 2382, 12-26-79; Ord. No. 2607, § 1, 1-11-82; Ord. No. 2861, 3-11-85; Ord. No. 3287, § 1, 8-12-96; Ord. No. 3390, § 1, 11-22-99	7-23
7-61	Ord. No. 2382, 12-26-79; Ord. No. 2848, § 6, 11-13-84; Ord. No. 2861, § 12, 3-11-85	7-24
7-62	Ord. No. 2382, 12-26-79; Ord. No. 2989, § 1, 5-26-87	7-25
7-67	Ord. No. 2382, 12-26-79	7-26
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9-24	Ord. No. 3078, § 1, 9-25-89	Not codified
10-1	Ord. No. 2663, § 2, 10-12-82; Ord. No. 3137, § 1(a), 4-22-92	Not codified
10-2	Ord. No. 2663, § 2, 10-12-82	Not codified
10-3	Ord. No. 2663, § 2, 10-12-82	Not codified
10-4	Ord. No. 3073, § 2, 8-28-89	Not codified
10-10	Ord. No. 3078, § 2, 8-28-89; Ord. No. 3163, § 2, 7-27-92; Ord. No. 3255, § 1, 4-24-95; Ord. No. 3365, § 1, 1-11-99	10-2
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10-21	Ord. No. 3073, § 2, 8-28-89; Ord. No. 3163, § 2, 7-27-92; Ord. No. 3255, § 1, 4-24-95; Ord. No. 3365, § 1, 1-11-99	10-5
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15-4	Code 1963, § 18-12	Not codified
15-5	Code 1963, § 18-12.1	30-3
15-6	Ord. No. 2027, § 1, 8-11-75	15-2
15-7	Ord. No. 2026, § 1, 8-11-75; Ord. No. 2647, § 1, 7-12-82	Not codified
15-16	Code 1963, § 18-22	15-1
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15-21	Code 1963, § 18-21	15-2
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38-3	Ord. No. 2096, § 1, 10-12-76	38-4
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38-13	Code 1963, § 32-2	38-3, 38-5
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40-4	Code 1963, § 40-4; Ord. No. 3184, § 2, 5-24-93	40-3
40-5	Code 1963, § 40-5	40-4
40-6	Code 1963, § 40-6	40-5
40-7	Code 1963, § 40-7	40-6
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40-21	Code 1963, § 40-16; Ord. No. 2100, § 1, 10-25-76; Ord. No. 2182, 8-8-77; Ord. No. 2764, §§ 1, 2, 11-28-83; Ord. No. 3318, §§ 1, 2, 6-9-97	40-9
40-22	Code 1963, § 40-17; Ord. No. 2100, § 1, 10-25-76	40-10
40-23	Code 1963, § 40-18	40-11
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40-35	Code 1963, § 40-29	40-18
40-36	Code 1963, § 40-30	40-19
40-37	Code 1963, § 40-31	40-20
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40-68	Code 1963, § 40-42; Ord. No. 2391, § 1, 1-29-80	40-25
40-69	Ord. No. 2391, § 2, 1-29-80	40-26
40-70	Code 1963, § 40-44	40-27
40-71	Code 1963, § 40-45	40-28
40-72	Code 1963, § 40-46	40-29
40-73	Ord. No. 2176, § 1, 7-11-77	40-30
40-83	Code 1963, § 40-47	40-31
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41-2	Code 1963, § 2-3.2	Not codified
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41-14	Code 1963, § 36A-18	Not codified
41-15	Code 1963, § 36A-3	Not codified
41-16	Code 1963, § 36A-4	Not codified
41-17	Code 1963, § 36A-5	Not codified
41-18	Code 1963, § 36A-6	Not codified
41-19	Code 1963, § 36A-7	Not codified
41-20	Code 1963, § 36A-8	Not codified
41-21	Code 1963, § 36A-9	Not codified
41-22	Code 1963, § 36A-10	Not codified
41-23	Code 1963, § 36A-11	Not codified
41-24	Code 1963, § 36A-12	Not codified
41-25	Code 1963, § 36A-13	Not codified
41-26	Code 1963, § 36A-14	Not codified
41-27	Code 1963, § 36A-15	Not codified
41-28	Code 1963, § 36A-16	Not codified
41-29	Code 1963, § 36A-17	Not codified
41-30	Code 1963, § 36A-19	Not codified
41-31	Code 1963, § 36A-20	Not codified
41-42	Ord. No. 2957, § 1, (2-176), 7-28-86; Ord. No. 3118, § 1, (2-175), 7-9-90	Not codified
41-43	Ord. No. 2957, § 1, (2-176), 7-28-86; Ord. No. 3118, § 1, (2-176), 7-9-90	Not codified
41-44	Ord. No. 2957, § 1, (2-177), 7-28-86; Ord. No. 3118, § 1, (2-177), 7-9-90	Not codified
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42-6	Ord. No. 3205, § 2, 9-13-93	Not codified
43-1	Ord. No. 2204, § 1, 1-23-78	43-1
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43-20	Ord. No. 2204, § 1, 1-23-78	43-3
43-21	Ord. No. 2204, § 1, 1-23-78	43-3
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43-31	Ord. No. 1883, § 2, 7-23-73; Ord. No. 2204, § 1, 1-23-78	43-8
43-32	Ord. No. 1883, § 2, 7-23-73; Ord. No. 2204, § 1, 1-23-78	43-8
43-33	Ord. No. 1883, § 2, 7-23-73	43-8
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45-48	Ord. No. 3141, § 2, 6-10-91	Not codified
45-49	Ord. No. 3141, § 2, 6-10-91	Not codified
45-50	Ord. No. 3141, § 2, 6-10-91	Not codified
46-1	Ord. No. 3189, § 1, 6-14-93	46-1
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2001 IN-HOUSE CODE CROSS-REFERENCE TABLE

This table provides users with the legislative history and the current disposition of the sections in the Cheyenne City Code. Thus, 2001 in-house code Section 1-1 appears in this code as Section 1.04.010.

The legislative history information was derived from the city's In-House Recodification Project completed October 1, 2001 under the authority of the city attorney's staff and the city clerk.

Prior Code §	Ordinance History	Herein
1-1	Code 1975, § 1-1	1.04.010
1-2	Code 1975, §§ 1-2, 2-62—2-66, 2-68	1.04.020—1.04.050
1-3	Code 1975, § 1-3	1.04.060
1-4	Code 1975, § 1-4	1.04.070
1-5		1.04.080
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1-7		1.04.100
1-8	Code 1975, § 1-7	1.04.110
1-9	Code 1975, § 1-8	1.04.120
1-10	Code 1975, § 15-1	1.24.010
2-1	Code 1975, §§ 2-1, 2-2.1	1.08.010
2-2	Code 1975, § 2-2	1.08.020
2-3	Code 1975, § 2-3	3.04.010
2-4	Code 1975, § 2-4	1.04.130
2-5	Code 1975, §§ 1-6, 2-15, 2-16, 2-18	2.04.010
2-6	Code 1975, §§ 2-17, 2-19	2.04.020
2-7		2.04.030
2-8	Code 1975, § 2-20	2.04.040
2-9	Code 1975, § 2-30(a), (b)	2.04.050
2-10	Code 1975, § 2-25	2.04.060
2-11	Code 1975, § 2-26	2.04.070
2-12	Code 1975, § 2-29	2.04.080
2-13	Code 1975, § 2-31	2.04.090
2-14	Code 1975, § 2-32	2.04.100
2-15	Code 1975, § 2-33	2.04.110
2-16	Code 1975, § 2-34	2.04.120
2-17	Code 1975, § 2-35	2.04.130
2-18	Code 1975, §§ 2-28, 2-36	2.04.140
2-19	Code 1975, §§ 2-47, 2-56	2.04.150
2-20	Code 1975, §§ 2-48, 2-49	2.04.160
2-21	Code 1975, § 2-51	2.04.170

Prior Code §	Ordinance History	Herein
2-22	Code 1975, §§ 2-52, 2-53, 2-55	2.04.180
2-23	Code 1975, §§ 2-54, 2-55	2.04.190
2-24	Code 1975, §§ 2-79—2-82	2.08.010
2-25	Code 1975, § 2-83	2.08.020
2-26	Code 1975, §§ 2-96—2-98	2.08.030
2-27	Code 1975, § 2-85	2.16.010
2-28	Code 1975, § 2-86	2.12.010
2-29	Code 1975, § 2-87	2.08.040
2-30	Code 1975, § 2-88	2.08.050
2-31	Code 1975, § 2-90	2.92.010
2-32	Code 1975, § 2-91	2.92.020
2-33		2.84.070
2-34	Code 1975, § 2-131	2.60.010
2-35	Code 1975, §§ 2-132, 2-133, 2-139	2.60.020
2-36	Code 1975, § 2-134	2.60.030
2-37	Code 1975, § 2-139	2.60.040
2-38	Code 1975, §§ 2-135, 2-138	2.60.050
2-39	Code 1975, § 2-140	2.60.060
2-40	Code 1975, § 2-141	2.60.070
2-41	Code 1975, § 2-143	2.60.080
2-42		2.84.060
2-43		2.84.080
2-44	Code 1975, § 2-160	2.76.010
2-45	Code 1975, § 2-161	2.76.020
2-46	Code 1975, § 2-161	2.76.030
2-47	Code 1975, § 2-162; Ord. 3214, 11-22-93	2.76.040
2-48	Code 1975, §§ 2-163, 2-164	2.76.050
2-49	Code 1975, § 2-165	2.76.060
2-50	Code 1975, § 2-166	2.76.070
2-51	Code 1975, § 2-167	2.76.080
2-52	Code 1975, § 2-168	2.76.090
2-53		Repealed by 3637
2-54		2.84.040
2-55	Code 1975, § 2-182	2.64.010
2-56	Code 1975, § 2-180	2.64.020
2-57	Code 1975, § 2-181	2.64.030
2-58	Code 1975, § 2-182	2.64.040
2-59	Code 1975, § 2-182	2.64.050
2-60	Code 1975, § 2-183	2.64.060
2-61	Code 1975, § 2-184	2.64.070
2-62	Code 1975, § 2-185	2.64.080
2-63	Code 1975, § 2-184	2.64.090

Prior Code §	Ordinance History	Herein
2-64		2.72.010
2-65		2.84.090
2-66	Code 1975, § 2-110	2.52.010
2-67	Code 1975, §§ 2-109, 2-110, 2-118	2.52.020
2-68	Code 1975, § 2-119	2.52.030
2-69	Code 1975, §§ 2-110—2-114, 2-116	2.52.040
2-70	Code 1975, §§ 2-115, 2-117	2.52.050
2-71		2.84.010
2-72		2.84.020
2-73		2.24.020
2-74		2.68.010
2-75		2.84.030
3-1		8.52.010
3-2	Code 1975, § 3-1	8.52.020
3-3	Code 1975, § 3-2	8.52.030
3-4	Code 1975, § 3-14	8.52.040
3-5	Code 1975, § 3-15	8.52.050
3-6	Code 1975, § 3-16	8.52.060
3-7	Code 1975, §§ 3-17, 3-18	8.52.070
3-8	Code 1975, § 3-19	8.52.080
4-1	Code 1975, § 4-1	5.12.010
4-2	Code 1975, § 4-2	5.12.020
4-3	Code 1975, § 4-3	5.12.030
4-4	Code 1975, § 4-4	5.12.040
4-5	Code 1975, § 4-5	5.12.050
4-6	Code 1975, § 4-6	5.12.060
4-7	Code 1975, § 4-7	5.12.070
4-8	Code 1975, § 4-8	5.12.080
4-9	Code 1975, § 4-9	Repealed by Ord. 3592
4-10	Code 1975, § 4-10	5.12.100
4-11	Code 1975, § 4-11	5.12.110
5-1	Code 1975, §§ 5-1, 5-2, 5-9(b), 5-15	5.32.010
5-2	Code 1975, § 5-3	5.32.020
5-3	Code 1975, §§ 5-4, 5-5	5.32.030
5-4	Code 1975, §§ 5-6, 5-7, 5-9, 5-10, 5-16(c), 5-21	5.32.040
5-5	Code 1975, §§ 5-11, 5-12, 5-18	5.32.050
5-6	Code 1975, § 5-13	5.32.060
5-7	Code 1975, § 5-14	5.32.070
5-8	Code 1975, § 5-16	5.32.080
5-9	Code 1975, §§ 5-8, 5-17	5.32.090
5-10	Code 1975, § 5-19	5.32.110
5-11	Code 1975, § 5-20	5.32.100

Prior Code §	Ordinance History	Herein
6-1	Code 1975, §§ 6-27, 6-55	5.36.010
6-2	Code 1975, §§ 6-26, 6-51	5.36.020
6-3	Code 1975, §§ 6-1, 6-12, 6-13	5.36.030
6-4	Code 1975, §§ 6-12, 6-13	5.36.040
6-5	Code 1975, §§ 26-32(b)(1)—(3), 6-14	5.36.050
6-6	Code 1975, § 6-15	5.36.060
6-7	Code 1975, § 6-27	5.36.070
6-8	Code 1975, § 6-28	5.36.080
6-9	Code 1975, § 6-29	5.36.090
6-10	Code 1975, § 6-30	5.36.100
6-11	Code 1975, § 6-31	5.36.110
6-12	Code 1975, § 6-32	5.36.120
6-13	Code 1975, § 6-33	5.36.130
6-14	Code 1975, §§ 6-52, 6-54	5.36.140
6-15	Code 1975, §§ 6-55, 6-56	5.36.150
6-16	Code 1975, § 6-53	5.36.160
6-17	Code 1975, § 6-57	5.36.170
7-1	Code 1975, §§ 7-2, 7-3	6.04.010
7-2	Code 1975, § 7-1	6.04.020
7-3	Code 1975, § 7-4	6.04.030
7-4	Code 1975, §§ 7-5, 7-6	6.08.010
7-5	Code 1975, § 7-7	6.08.020
7-6	Code 1975, § 7-8	6.08.030
7-7	Code 1975, § 7-9	6.08.040
7-8	Code 1975, § 7-10	6.08.050
7-9	Code 1975, § 7-11	6.08.060
7-10	Code 1975, § 7-12	6.08.070
7-11	Code 1975, § 7-13	Repealed by 3801
7-12	Code 1975, § 7-14	6.08.090
7-13	Code 1975, § 7-15	6.08.100
7-14	Code 1975, § 7-16	6.08.110
7-15	Code 1975, §§ 7-21—7-25	6.12.010—6.12.030
7-16	Code 1975, § 7-33	6.16.010
7-17	Code 1975, § 7-34	6.16.020
7-18	Code 1975, § 7-35	6.16.030
7-19	Code 1975, §§ 7-35(e), 7-36, 7-37, 7-41, 7-43, 7-44	6.16.040
7-20	Code 1975, §§ 7-38—7-40, 7-42, 7-45	6.16.050
7-21	Code 1975, § 7-56	6.20.010
7-22	Code 1975, §§ 7-56—7-59	6.20.020
7-23	Code 1975, § 7-60	6.20.030
7-24	Code 1975, § 7-61	6.20.040

Prior Code §	Ordinance History	Herein
7-25	Code 1975, § 7-62	6.20.050
7-26	Code 1975, § 7-67	6.08.120
7-27	Code 1975, § 7-68	6.08.130
7-28	Code 1975, § 7-69	6.08.140
7-29	Code 1975, § 7-70	6.08.150
7-30	Code 1975, § 7-75	6.04.040
8-1		5.16.010
8-2	Code 1975, § 8-1	5.16.020
8-3	Code 1975, §§ 8-3, 8-16—8-18, 26-33	5.16.030
8-4	Code 1975, § 8-4	5.16.040
8-5	Code 1975, §§ 8-2, 8-4	5.16.050
8-6		5.16.060
9-1	Code 1975, §§ 9-1, 9-22	5.64.010
9-2	Code 1975, § 9-2	5.64.020
9-3	Code 1975, § 9-3	5.64.030
9-4	Code 1975, § 9-4	5.64.040
9-5	Code 1975, § 9-5	5.64.050
9-6	Code 1975, § 9-7	5.64.060
9-7	Code 1975, §§ 9-6, 9-8	5.64.070
9-8	Code 1975, § 9-12	5.64.080
9-9	Code 1975, § 9-13	5.64.090
9-10	Code 1975, § 9-14	5.64.100
9-11	Code 1975, § 9-15	5.64.110
9-12	Code 1975, § 9-16	5.64.120
9-13	Code 1975, § 9-17	5.64.130
9-14	Code 1975, § 9-18	5.64.140
9-15	Code 1975, § 9-19	5.64.150
9-16	Code 1975, § 9-20	5.64.160
9-17	Code 1975, § 9-1	5.64.170
9-18	Code 1975, § 9-9	5.64.180
9-19	Code 1975, § 9-10	5.64.190
9-20	Code 1975, § 9-11	5.64.200
9-21	Code 1975, § 9-21	5.64.210
10-1	Code 1975, §§ 10-60—10-64	2.36.010, 15.04.010
10-2	Code 1975, §§ 10-10, 10-11	Repealed by 3621
10-3	Code 1975, § 10-12	Not codified
10-4	Code 1975, §§ 10-15, 10-16	Repealed by 3621
10-5	Code 1975, §§ 10-20, 10-21	Repealed by 3621
10-6	Code 1975, §§ 10-25—10-27	15.20.010, 15.20.020
10-7	Code 1975, § 10-40	Not codified

Prior Code §	Ordinance History	Herein
10-8	Code 1975, § 10-45, 10-46	Not codified
10-9	Code 1975, § 10-49	Not codified
10-10	Code 1975, §§ 10-75—10-83	15.44.010—15.44.030
10-11	Code 1975, §§ 10-90—10-94	15.48.010—15.48.030
10-12	Code 1975, §§ 10-100—10-107	Repealed by 3621
10-13		Repealed by 3621
10-14	Code 1975, §§ 10-139, 10-142, 10-143	Repealed by 3621
10-15	Code 1975, § 10-140	Repealed by 3621
10-16	Code 1975, § 10-141	Repealed by 3621
10-17	Code 1975, § 10-144	Repealed by 3621
10-18	Code 1975, § 10-145	Repealed by 3621
10-19	Code 1975, § 10-146	Repealed by 3621
10-20	Code 1975, § 10-147	Repealed by 3621
10-21	Code 1975, §§ 10-148, 10-149	Repealed by 3621
10-22	Code 1975, § 10-150	Repealed by 3621
10-23	Code 1975, § 10-151	Repealed by 3621
10-24	Code 1975, § 10-152	Repealed by 3621
10-25	Code 1975, § 10-153	Repealed by 3621
10-26	Code 1975, § 10-154	Repealed by 3621
10-27	Code 1975, § 10-155	Repealed by 3621
10-28	Code 1975, § 10-156	Repealed by 3621
10-29	Code 1975, § 10-157	Repealed by 3621
10-30	Code 1975, § 10-158	Repealed by 3621
10-31	Code 1975, § 10-159	Repealed by 3621
10-32	Code 1975, § 10-166	Repealed by 3621
10-33		Repealed by 3621
10-34	Code 1975, § 10-55	15.04.020
11-1	Code 1975, § 11-1	12.20.010
11-2	Code 1975, § 11-2	12.20.020
11-3	Code 1975, § 11-3	12.20.030
11-4	Code 1975, § 11-4	12.20.040
11-5	Code 1975, § 11-5	12.20.050
11-6	Code 1975, § 11-6	12.20.060
11-7	Code 1975, § 11-7	12.20.070
11-8	Code 1975, § 11-8	12.20.080
11-9	Code 1975, § 11-9	12.20.090

Prior Code §	Ordinance History	Herein
11-10	Code 1975, § 11-10	12.20.100
11-11	Code 1975, § 11-11	12.20.110
11-12	Code 1975, § 11-12	12.20.120
11-13	Code 1975, § 11-13	12.20.130
11-14	Code 1975, § 11-14	12.20.140
11-15	Code 1975, § 11-25	12.20.150
11-16	Code 1975, § 11-26	12.20.160
11-17	Code 1975, § 11-27	12.20.170
11-18	Code 1975, § 11-28	12.20.180
11-19	Code 1975, § 11-29	12.20.190
11-20	Code 1975, § 11-30	12.20.200
11-21	Code 1975, § 11-31	12.20.210
11-22	Code 1975, § 11-32	Repealed by 3700
11-23	Code 1975, § 11-33	12.20.230
11-24	Code 1975, § 11-34	12.20.240
11-25	Code 1975, § 11-45	12.20.250
11-26	Code 1975, § 11-46	12.20.260
11-27	Code 1975, § 11-47	12.20.270
11-28	Code 1975, § 11-48	12.20.280
11-29	Code 1975, § 11-49	12.20.290
11-30	Code 1975, § 11-50	12.20.300
11-31	Code 1975, § 11-51	12.20.310
11-32	Code 1975, § 11-52	12.20.320
11-33	Code 1975, § 11-54	12.20.330
11-34	Code 1975, § 11-55	12.20.340
11-35	Code 1975, § 11-56	12.20.350
11-36	Code 1975, § 11-57	12.20.360
11-37	Code 1975, § 11-63	12.20.370
11-38	Code 1975, § 11-64	12.20.380
11-39	Code 1975, § 11-65	12.20.390
11-40	Code 1975, § 11-66	12.20.400
13-1		5.40.010
13-2	Code 1975, §§ 13-1, 13-16, 13-17, 26-32(c)	5.40.020
13-3	Code 1975, § 13-2	5.40.030
13-4		5.40.040
13-5	Code 1975, § 13-3	5.40.050
14-1	Code 1975, §§ 14-1, 14-2(a), 14-5, 14-6	5.44.010
14-2	Code 1975, §§ 14-2(b), 14-3, 14-20	5.44.020
14-3	Code 1975, §§ 14-8, 14-10	5.44.030
14-4	Code 1975, §§ 14-9, 14-11	5.44.040
14-5	Code 1975, §§ 14-7, 14-16	5.44.050
14-6	Code 1975, § 14-4	5.44.060
15-1	Code 1975, §§ 15-16, 15-17	2.40.010

Prior Code §	Ordinance History	Herein
15-2	Code 1975, §§ 15-6, 15-18, 15-19, 15-21	2.40.020
15-3	Code 1975, § 15-1	2.40.030
15-4	Code 1975, § 15-2	2.40.040
15-5	Code 1975, §§ 15-22, 15-23	2.40.050
15-6	Code 1975, § 15-24	2.40.060
15-7	Code 1975, § 15-32	2.40.070
15-8	Code 1975, § 15-33	2.40.080
15-9	Code 1975, § 15-34	2.40.090
15-10	Code 1975, §§ 15-45, 15-46	2.44.010
15-11	Code 1975, §§ 15-47, 15-48	2.44.020
15-12	Code 1975, §§ 15-49, 15-50	2.44.030
15-13	Code 1975, § 15-51	2.44.040
15-14	Code 1975, § 15-52	2.44.050
15-15	Code 1975, § 15-53	2.44.060
15-16	Code 1975, § 15-53.1	2.44.070
15-17	Code 1975, § 15-54	2.44.080
15-18	Code 1975, § 15-55	2.44.090
15-19	Code 1975, § 15-56	2.44.100
15-20	Code 1975, § 15-57	2.44.110
15-21	Code 1975, § 15-58	2.44.120
15-22	Code 1975, § 15-59	2.44.130
15-23	Code 1975, § 15-60	2.44.140
15-24	Code 1975, § 15-61	9.16.010
15-25	Code 1975, § 15-61.1	9.16.020
15-26	Code 1975, § 15-62	2.44.150
15-27	Code 1975, §§ 15-68, 15-69	2.48.010
15-28	Code 1975, § 15-70	2.48.020
16-1	Code 1975, §§ 16-1, 16-2, 16-4	Repealed by 3739
16-2	Code 1975, § 16-3	Repealed by 3739
16-3	Code 1975, § 16-6	Repealed by 3739
16-4	Code 1975, § 16-7	Repealed by 3739
16-5	Code 1975, § 16-11	Repealed by 3739
16-6	Code 1975, § 16-16	Repealed by 3739
16-7	Code 1975, § 16-5	Repealed by 3739
17-1		8.16.010
17-2	Code 1975, § 17-1	8.16.020
17-3	Code 1975, § 17-2	8.16.030
17-4	Code 1975, § 17-12	2.32.010
17-5	Code 1975, §§ 17-13—17-15	2.32.020
17-6	Code 1975, § 17-16	2.32.030
17-7	Code 1975, § 17-17	2.32.040

Prior Code §	Ordinance History	Herein
17-8	Code 1975, §§ 17-28, 17-29	Repealed by 3622
17-9	Code 1975, § 17-39	8.24.010
17-10	Code 1975, § 17-40	8.24.020
17-11	Code 1975, § 17-41	8.24.030
17-12	Code 1975, § 17-42	8.24.040
17-13	Code 1975, § 17-43	8.24.050
17-14	Code 1975, § 17-44	8.24.060
17-15	Code 1975, §§ 17-45—17-48	8.24.070
17-16	Code 1975, § 17-49	8.24.080
17-17	Code 1975, § 17-50	8.24.090
17-18	Code 1975, § 17-52	8.24.100
17-19	Code 1975, § 17-53	8.24.110
17-20	Code 1975, § 17-55	8.28.010
17-21	Code 1975, §§ 17-56, 17-61, 26-37.1	8.28.020
17-22	Code 1975, § 17-57	8.28.030
17-23	Code 1975, § 17-58	8.28.040
17-24	Code 1975, § 17-59	8.28.050
17-25	Code 1975, § 17-60	8.28.060
17-26	Code 1975, § 17-62	8.28.070
17-27	Code 1975, § 17-69	8.32.010
17-28	Code 1975, § 17-70	8.32.020
17-29	Code 1975, §§ 17-75, 17-76, 17-79—17-81	8.32.030
17-30	Code 1975, § 17-77	8.32.040
17-31	Code 1975, § 17-78	8.32.050
17-32	Code 1975, § 17-87	8.32.060
17-33	Code 1975, § 17-89	8.32.070
17-34	Code 1975, § 17-90	8.20.010
17-35	Code 1975, § 17-91	8.20.020
17-36	Code 1975, § 17-92	8.20.030
17-37	Code 1975, § 17-93	8.20.040
17-38	Code 1975, §§ 17-94, 17-95, 17-97	8.20.050
17-39	Code 1975, § 17-96	8.20.060
17-40	Code 1975, § 17-98	8.20.070
17-41	Code 1975, § 17-99	8.20.080
17-42	Code 1975, § 17-100	8.36.010
17-43	Code 1975, § 17-101	8.36.020
17-44	Code 1975, § 17-102	8.36.030
17-45	Code 1975, § 17-103	8.36.040
17-46	Code 1975, § 17-104	8.36.050
17-47	Code 1975, § 17-105	8.36.060
17-48	Code 1975, § 17-106	8.36.070
17-49	Code 1975, § 17-107	8.36.080

Prior Code §	Ordinance History	Herein
17-50	Code 1975, § 17-108	8.36.090
17-51	Code 1975, § 17-109	8.36.100
17-52	Code 1975, §17-110	8.36.110
18-1	Code 1975, § 18-3	8.40.010
18-2	Code 1975, § 18-1	8.40.020
18-3	Code 1975, § 18-2	8.40.030
18-4	Code 1975, § 18-3	8.40.040
18-5	Code 1975, § 18-8	8.40.050
18-6	Code 1975, §§ 18-9, 26-38(b)	8.40.060
18-7	Code 1975, §§ 18-19, 26-38(c)	8.40.070
18-8	Code 1975, § 18-14	8.40.080
18-9	Code 1975, § 18-18	8.40.090
18-10	Code 1975, § 18-13	8.40.100
18-11	Code 1975, § 18-20	8.40.110
18-12	Code 1975, §§ 18-21, 26-16	8.40.120
18-13	Code 1975, §§ 18-22, 18-23, 26-38(c)	8.40.130
18-14	Code 1975, § 18-24	8.40.140
18-15	Code 1975, § 18-28	8.40.150
18-16	Code 1975, §§ 18-29, 18-30, 26-16, 26-38(a)	8.40.160
18-17	Code 1975, § 18-31	8.40.170
18-18	Code 1975, § 18-4	8.40.180
20-1	Code 1975, § 26-1	5.20.010
20-2	Code 1975, § 20-1	5.20.020
20-3	Code 1975, §§ 20-15, 26-40	5.20.030
20-4	Code 1975, § 20-17	5.20.040
21-1	Code 1975, §§ 21-18—21-23	8.44.010
21-2	Code 1975, §§ 21-1, 21-37	8.44.020
21-3	Code 1975, §§ 21-17, 21-24—21-32	8.44.030
21-4	Code 1975, §§ 21-33—21-40	8.44.040
21-5	Code 1975, §§ 21-21, 21-42—21-44	8.44.050
21-6	Code 1975, §§ 21-46—21-48	8.44.060
21-7	Code 1975, §§ 21-3, 21-4, 21-6	8.44.070
21-8	Code 1975, §§ 21-2, 21-5, 21-45	8.44.080
21-9		8.44.090
22-1	Code 1975, §§ 22-21, 22-2	8.04.010
22-2	Code 1975, § 22-13	8.48.010
22-3	Code 1975, §§ 22-14, 22-15	8.48.020
22-4	Code 1975, §§ 22-16, 22-17	8.48.030
22-5	Code 1975, § 22-18	8.48.040
22-6	Code 1975, § 22-19	8.48.050
22-7	Code 1975, § 22-20	8.48.060

Prior Code §	Ordinance History	Herein
22-8	Code 1975, § 22-21	8.48.070
22-9	Code 1975, § 22-22	8.48.080
22-10	Code 1975, § 22-23	8.48.090
22-11	Code 1975, § 22-24	8.48.100
22-12	Code 1975, § 22-30	Repealed by 3705
22-13	Code 1975, § 22-31	Repealed by 3705
22-14	Code 1975, § 22-33	Repealed by 3705
22-15	Code 1975, § 22-34	Repealed by 3705
22-16	Code 1975, § 22-35	Repealed by 3705
22-17	Code 1975, § 22-36	Repealed by 3705
24-1	Code 1975, §§ 24-16, 24-22	2.72.010
24-2	Code 1975, §§ 24-17—24-19	2.72.020
24-3	Code 1975, § 24-20	2.72.030
24-4	Code 1975, § 24-21	2.72.010
25-1	Code 1975, §§ 25-5, 25-6	5.24.010
25-2	Code 1975, § 25-1	5.24.020
25-3	Code 1975, §§ 25-17, 25-18	5.24.030
25-4	Code 1975, § 25-2	5.24.040
25-5	Code 1975, § 25-3	5.24.050
25-6	Code 1975, § 25-4	5.24.060
26-1	Code 1975, §§ 26-1, 26-71	5.04.010
26-2	Code 1975, §§ 26-2, 26-9	5.04.020
26-3	Code 1975, §§ 26-3—26-8, 26-10, 26-14	5.04.040
26-4	Code 1975, § 26-11	5.04.050
26-5	Code 1975, § 26-12	5.04.060
26-6	Code 1975, § 26-13	5.04.070
26-7	Code 1975, § 26-15	5.04.080
26-8	Code 1975, § 16-16	5.04.090
26-9	Code 1975, § 26-72	5.04.100
26-10	Code 1975, § 26-73	5.04.110
26-11	Code 1975, § 26-17	5.04.120
26-12		5.04.030
26-13	Code 1975, §§ 26-32(a)—(c)	5.08.010
26-14	Code 1975, § 26-33	5.08.020
26-15	Code 1975, §§ 26-34, 26-35	5.08.030
26-16	Code 1975, § 26-35.1	5.08.040
26-17	Code 1975, Ch. 5	5.08.050
26-18	Code 1975, § 26-36	5.08.060
26-19	Code 1975, § 26-36.1	5.08.070
26-20	Code 1975, § 26-37.1	5.08.080
26-21	Code 1975, § 26-38	5.08.090
26-22	Code 1975, § 26-37	5.08.100

Prior Code §	Ordinance History	Herein
26-23	Code 1975, § 26-40	5.08.110
26-24	Code 1975, § 26-41	5.08.120
26-25	Code 1975, Ch. 4	5.08.130
26-26	Code 1975, § 26-43	5.08.140
26-27	Code 1975, § 26-44	5.08.150
26-28	Code 1975, §§ 6-3, 26-44.1, 30-39	5.08.160
26-29	Code 1975, § 26-44.2	5.08.170
26-30	Code 1975, § 26-45	5.08.180
26-31	Code 1975, § 26-46	5.08.190
26-32	Code 1975, § 26-51	5.08.200
26-33	Code 1975, § 26-47	5.08.210
26-34	Code 1975, § 26-48	5.08.220
26-35	Code 1975, Ch. 9	5.08.230
26-36	Code 1975, § 26-49	5.08.240
26-37	Code 1975, § 26-50	5.08.250
26-38	Code 1975, § 26-52.1	5.08.260
26-39	Code 1975, § 26-52	5.08.270
26-40	Code 1975, § 26-53	5.08.280
26-41	Code 1975, § 26-54	5.08.290
26½-1	Code 1975, §§ 26½-1, 26½-7, 26½-13, 26½-18	5.52.010
26½-2	Code 1975, § 26½-2	5.52.020
26½-3	Code 1975, § 26½-3	5.52.030
26½-4	Code 1975, §§ 26½-4, 26-43(a)	5.52.040
26½-5	Code 1975, §§ 26½-5, 26-43(b)	Repealed by 3609
26½-5.1	Code 1975, §§ 26½-5.1, 26-43(c)	5.52.050
26½-6	Code 1975, § 26½-6	5.52.060
26½-7	Code 1975, § 26½-8	5.52.070
26½-8	Code 1975, § 26½-9	5.52.080
26½-9	Code 1975, § 26½-10	5.52.090
26½-10	Code 1975, § 26½-10.1	5.52.100
26½-11	Code 1975, § 26½-11, 26-43(a)	5.52.110
26½-12	Code 1975, § 26½-12	5.52.120
26½-13	Code 1975, § 26½-14	5.52.130
26½-14	Code 1975, § 26½-15	5.52.140
26½-15	Code 1975, § 26½-17	5.52.150
26½-16	Code 1975, § 26½-18	5.52.160
28-1	Code 1975, § 28-1	10.04.020
28-2	Code 1975, § 28-2	10.04.010
28-3	Code 1975, § 28-3	10.04.030
28-4	Code 1975, § 28-4	10.04.040
28-5	Code 1975, § 28-8	10.24.010
28-6	Code 1975, § 28-9	10.12.020

Prior Code §	Ordinance History	Herein
28-19	Code 1975, § 28-19	10.12.010
28-20	Code 1975, § 28-20	10.12.030
28-21	Code 1975, § 28-21	10.12.040
28-22	Code 1975, § 28-22	10.12.050
28-23	Code 1975, § 28-23	10.12.060
28-24	Code 1975, § 28-24	10.12.070
28-25	Code 1975, § 28-25	10.12.080
28-26	Code 1975, § 28-26	10.12.090
28-27	Code 1975, § 28-27	10.12.100
28-28	Code 1975, § 28-28	10.12.110
28-29	Code 1975, § 28-29	10.12.120
28-30	Code 1975, § 28-30	10.12.130
28-31	Code 1975, § 28-31	10.12.140
28-42	Code 1975, § 28-42	10.12.150
28-43	Code 1975, § 28-43	10.04.050
28-44	Code 1975, § 28-44	10.04.060
28-45	Code 1975, § 28-45	10.04.070
28-46	Code 1975, § 28-46	10.04.080
28-47	Code 1975, § 28-47	10.04.090
28-48	Code 1975, § 28-48	10.04.100
28-59	Code 1975, § 28-59	10.16.010
28-60	Code 1975, § 28-60	10.16.020
28-61	Code 1975, § 28-61	10.16.030
28-62	Code 1975, § 28-62	10.16.040
28-63	Code 1975, § 28-63	10.16.050
28-64	Code 1975, § 28-64	10.16.060
28-65	Code 1975, § 28-65	10.16.070
28-66	Code 1975, § 28-66	10.16.080
28-67	Code 1975, § 28-67	10.16.090
28-68	Code 1975, § 28-68	10.16.100
28-69	Code 1975, § 28-69	10.16.110
28-70	Code 1975, § 28-70	10.16.120
28-71	Code 1975, § 28-71	10.16.130
28-72	Code 1975, § 28-72	10.12.160
28-73	Code 1975, § 28-73	10.12.170
28-79	Code 1975, § 28-79	10.76.010
28-80	Code 1975, § 28-80	10.76.020
28-81	Code 1975, § 28-81	10.76.030
28-82	Code 1975, § 28-82	10.76.040
28-83	Code 1975, § 28-83	10.76.050
28-84	Code 1975, § 28-84	10.76.060
28-85	Code 1975, § 28-85	10.76.070

Prior Code §	Ordinance History	Herein
28-86	Code 1975, § 28-86	10.76.080
28-87	Code 1975, § 28-87	10.76.090
28-88	Code 1975, § 28-88	10.76.100
28-89	Code 1975, § 28-89	10.76.110
28-90	Code 1975, § 28-90	10.76.120
28-91	Code 1975, § 28-91	10.76.130
28-92	Code 1975, § 28-92	10.76.140
28-93	Code 1975, § 28-93	10.76.150
28-105	Code 1975, § 28-105	10.20.010
28-106	Code 1975, § 28-106	10.20.020
28-107	Code 1975, § 28-107	10.20.030
28-108	Code 1975, § 28-108	10.20.040
28-109	Code 1975, § 28-109	10.20.050
28-110	Code 1975, § 28-110	10.20.060
28-111	Code 1975, § 28-111	10.20.070
28-112	Code 1975, § 28-112	10.20.080
28-113	Code 1975, § 28-113	10.20.090
28-125	Code 1975, § 28-125	10.32.010
28-126	Code 1975, § 28-126; Ord. 1844, § 29-32, 3-12-73	10.32.020
28-127	Code 1975, § 28-127; Ord. 1844, § 29-33, 3-12-73	10.32.030
28-128	Code 1975, § 28-128	10.32.040
28-129	Code 1975, § 28-129; Ord. 1844, § 29-41, 3-12-73	10.32.050
28-140	Code 1975, § 28-140	10.40.010
28-141	Code 1975, § 28-141	10.40.020
28-142	Code 1975, § 28-142	10.40.030
28-143	Code 1975, § 28-143	10.40.040
28-144	Code 1975, § 28-144	10.40.050
28-156	Code 1975, § 28-156	10.28.010
28-157	Code 1975, § 28-157; Ord. 1844, § 29-41, 3-12-73	10.28.020
28-158	Code 1975, § 28-158	10.28.030
28-170	Code 1975, § 28-170	10.36.010
28-171	Code 1975, § 28-171	10.36.020
28-172	Code 1975, § 28-172	10.36.030
28-184	Code 1975, § 28-184	10.24.020
28-185	Code 1975, § 28-185	10.24.030
28-186	Code 1975, § 28-186	10.24.040
28-187	Code 1975, § 28-187	10.24.050
28-188	Code 1975, § 28-188	10.24.060
28-189	Code 1975, § 28-189	10.24.070
28-190	Code 1975, § 28-190	10.24.080
28-191	Code 1975, § 28-191	10.24.090
28-192	Code 1975, § 28-192	10.24.100

Prior Code §	Ordinance History	Herein
28-193	Code 1975, § 28-193	10.24.110
28-194	Code 1975, § 28-194	10.24.120
28-195	Code 1975, § 28-196	10.24.130
28-196	Code 1975, § 28-197	10.24.140
28-197	Code 1975, § 28-198	10.24.150
28-198	Code 1975, § 28-199	10.24.160
28-210	Code 1975, § 28-210	10.48.010
28-211	Code 1975, § 28-211	10.48.020
28-212	Code 1975, § 28-212	10.48.030
28-213	Code 1975, § 28-213	10.48.040
28-214	Code 1975, § 28-214	10.48.050
28-215	Code 1975, § 28-215	10.48.060
28-225	Code 1975, § 28-225	10.80.010
28-225.1	Code 1975, § 28-225.1	10.80.020
28-226	Code 1975, § 28-226	10.80.030
28-227	Code 1975, § 28-227	10.80.040
28-228	Code 1975, § 28-228	10.80.050
28-229	Code 1975, § 28-229	10.80.060
28-230	Code 1975, § 28-230	10.80.190
28-231	Code 1975, § 28-231	10.80.070
28-232	Code 1975, § 28-232	10.80.080
28-237	Code 1975, § 28-237	10.80.090
28-238	Code 1975, § 28-238	10.80.100
28-239	Code 1975, § 28-239	10.80.110
28-240	Code 1975, § 28-240	10.80.120
28-241	Code 1975, § 28-241	10.80.130
28-242	Code 1975, § 28-242	10.80.140
28-243	Code 1975, § 28-243	10.80.150
28-244	Code 1975, § 28-244	10.80.160
28-245	Code 1975, § 28-245	10.80.170
28-246	Code 1975, § 28-246	10.80.180
28-258	Code 1975, § 28-258	10.52.010
28-259	Code 1975, § 28-259	10.52.020
28-260	Code 1975, § 28-260	10.52.030
28-261	Code 1975, § 28-261	10.52.040
28-262	Code 1975, § 28-262	10.52.050
28-263	Code 1975, § 28-263	10.52.060
28-264	Code 1975, § 28-264	10.52.070
28-265	Code 1975, § 28-265	10.52.080
28-266	Code 1975, § 28-266	10.52.090
28-267	Code 1975, § 28-267	10.52.100
28-268	Code 1975, § 28-268	10.52.110

Prior Code §	Ordinance History	Herein
28-269	Code 1975, § 28-269	10.52.120
28-270	Code 1975, § 28-270	10.52.130
28-271	Code 1975, § 28-271	10.52.140
28-272	Code 1975, § 28-272	10.52.150
28-273	Code 1975, § 28-273	10.56.010
28-274	Code 1975, § 28-274	Repealed by Ord. 3588
28-275	Code 1975, § 28-275	10.56.020
28-276	Code 1975, § 28-276	10.56.030
28-283	Code 1975, § 28-283	10.64.010
28-284	Code 1975, § 28-284	10.64.020
28-286	Code 1975, § 28-286	10.64.030
28-287	Code 1975, § 28-287	10.64.040
28-288	Code 1975, § 28-288	10.64.050
28-289	Code 1975, § 28-289	10.64.060
28-296	Code 1975, § 28-296	10.52.170
28-297	Code 1975, § 28-297	10.52.180
28-298	Code 1975, § 28-298; Ord. 1844, § 29-103, 3-12-73	10.52.190
28-299	Code 1975, § 28-299; Ord. 1844,§ 29-104, 3-12-73	10.52.200
28-300	Code 1975, § 28-300; Ord. 1844, § 29-105, 3-12-73	10.52.210
28-301	Code 1975, § 28-301	10.52.220
28-302	Code 1975, § 28-302	10.52.230
28-309	Code 1975, § 28-309	Repealed by Ord. 3588
28-310	Code 1975, § 28-310	Repealed by Ord. 3588
28-311	Code 1975, § 28-311	Repealed by Ord. 3588
28-312	Code 1975, § 28-312	Repealed by Ord. 3588
28-313	Code 1975, § 28-313	Repealed by Ord. 3588
28-314	Code 1975, § 28-314	Repealed by Ord. 3588
28-315	Code 1975, § 28-315	Repealed by Ord. 3588
28-316	Code 1975, § 28-316	Repealed by Ord. 3588
28-317	Code 1975, § 28-317	Repealed by Ord. 3588
28-317.1	Code 1975, § 28-317.1	10.56.040
28-318	Code 1975, § 28-318	10.68.010
28-319	Code 1975, § 28-319	10.68.020
28-320	Code 1975, § 28-320	10.68.030
28-321	Code 1975, § 28-321	10.68.040
28-322	Code 1975, § 28-322	10.68.050
28-323	Code 1975, § 28-323	10.68.060
28-324	Code 1975, § 28-324	10.68.070
28-329	Code 1975, § 28-329	10.44.010
28-330	Code 1975, § 28-330	10.44.020
28-331	Code 1975, § 28-331	10.44.030
28-332	Code 1975, § 28-332	10.44.040

Prior Code §	Ordinance History	Herein
28-333	Code 1975, § 28-333	10.12.180
28-335	Ord. 1844, § 29-114, 3-12-73	10.44.050
28-336	Code 1975, § 28-336	10.12.190
28-341	Code 1975, § 28-341	10.72.010
28-342	Code 1975, § 28-342	10.72.020
28-343	Code 1975, § 28-343	10.72.030
28-344	Code 1975, § 28-344	10.72.040
28-345	Code 1975, § 28-345	10.72.050
28-350	Code 1975, § 28-350	10.56.050
28-351	Code 1975, § 28-351	10.56.060
28-352	Code 1975, § 28-352	10.56.070
28-353	Code 1975, § 28-353	10.56.080
28-354	Code 1975, § 28-354	10.56.090
28-355	Code 1975, § 28-355	10.56.100
28-356	Code 1975, § 28-356	10.56.110
28-357	Code 1975, § 28-357	10.56.120
28-358	Code 1975, § 28-358	10.56.130
28-365	Code 1975, § 28-365	Repealed by 3750
28-366	Code 1975, § 28-366	Repealed by 3750
28-367	Code 1975, § 28-367	Repealed by 3750
28-368	Code 1975, § 28-368	Repealed by 3750
29-1		8.60.010
29-2	Code 1975, § 29-2	8.60.020
29-3	Code 1975, § 29-1	8.60.030
29-4	Code 1975, § 29-3	8.60.040
29-5	Code 1975, § 29-4	8.60.050
29-6	Code 1975, § 29-5	8.60.060
29-7	Code 1975, § 29-5.1	8.60.070
29-8	Code 1975, § 29-6	8.60.080
29-9	Code 1975, § 29-6.1	8.60.090
29-10	Code 1975, § 29-6.2	8.60.100
29-11	Code 1975, § 29-7	8.60.110
29-12	Code 1975, § 29-15	8.60.120
29-13	Code 1975, § 29-16	8.60.130
29-14	Code 1975, § 29-17	8.60.140
29-15	Code 1975, § 29-19	8.60.150
29-16	Code 1975, § 29-20	8.60.160
29-17	Code 1975, § 29-20.1	8.60.170
29-18	Code 1975, § 29-21	8.60.180
29-19	Code 1975, § 29-22	8.60.190
30-1	Code 1975, § 30-1	9.04.020
30-2	Code 1975, § 30-2	9.04.040

Prior Code §	Ordinance History	Herein
30-3	Code 1975, § 30-3	9.04.050
30-4	Code 1975, § 30-4	9.04.060
30-5	Code 1975, § 30-5	9.08.010
30-6	Code 1975, § 30-6	9.08.020
30-7	Code 1975, § 30-7	9.08.110
30-8	Code 1975, § 30-8	9.20.020
30-9	Code 1975, § 30-9	9.08.030
30-10	Code 1975, § 30-10	9.08.040
30-11	Code 1975, § 30-11	9.08.050
30-12	Code 1975, § 30-12	9.08.060
30-13	Code 1975, § 30-13	9.08.070
30-14	Code 1975, § 30-14	9.08.080
30-15	Code 1975, § 30-15	9.08.090
30-16	Code 1975, § 30-16	9.12.010
30-17	Code 1975, § 30-17	9.12.020
30-18	Code 1975, § 30-18	9.12.030
30-19	Code 1975, § 30-19	9.12.040
30-20	Code 1975, § 30-20	9.12.050
30-21	Code 1975, § 30-21	9.12.060
30-22	Code 1975, § 30-22	9.12.070
30-23	Code 1975, § 30-23	9.16.030
30-24	Code 1975, § 30-24	9.04.030
30-25	Code 1975, § 30-25	9.08.100
30-26	Code 1975, § 30-26	9.12.080
30-27	Code 1975, § 30-27	9.16.040
30-28	Code 1975, § 30-28	9.20.010
30-29	Code 1975, § 30-29	9.16.050
30-30	Code 1975, § 30-30	9.16.060
30-31	Code 1975, § 30-31	9.16.070
30-32	Ord. 3417, § 1, 11-13-00	9.16.080
30-33	Code 1975, § 30-33	9.16.090
30-34	Code 1975, § 30-34	8.56.010
30-35	Code 1975, § 30-35	8.56.020
30-36	Code 1975, § 30-36	8.56.030
30-37	Code 1975, § 30-37	8.56.040
30-38	Code 1975, § 30-38	8.56.050
30-39	Code 1975, §§ 26-28, 30-39	8.56.060
30-40	Code 1975, § 30-40	8.56.070
30-51	Code 1975, § 30-51	9.24.010
30-52	Code 1975, § 30-52	9.24.020
30-53	Code 1975, § 30-53	9.24.030
30-54	Code 1975, § 30-54	9.24.040

Prior Code §	Ordinance History	Herein
30-55	Code 1975, § 30-55	9.24.050
30-56	Code 1975, § 30-57	9.24.060
30-57	Code 1975, § 30-58	9.24.070
30-58	Code 1975, § 30-59	9.24.080
30-59	Code 1975, § 30-60	9.24.090
30-65	Code 1975, § 30-65	9.24.100
30-66	Code 1975, § 30-66	9.24.110
30-68	Code 1975, § 30-68	9.24.120
30-69	Code 1975, § 30-69	9.24.130
30-70	Code 1975, § 30-70	9.24.140
30-71	Code 1975, § 30-72	9.24.150
31-1	Code 1975, § 31-7	5.56.010
31-2	Code 1975, § 31-1	5.56.020
31-3	Code 1975, §§ 26-45, 31-23, 31-24, 31-26	5.56.030
31-4	Code 1975, §§ 31-2, 31-3	5.56.040
31-5	Code 1975, § 31-4	5.56.050
31-6	Code 1975, § 31-5	5.56.060
31-7	Code 1975, § 31-6	5.56.070
31-8	Code 1975, § 31-8	5.56.080
31-9	Code 1975, § 31-9	5.56.090
31-10	Code 1975, § 31-10	5.56.100
31-11	Code 1975, § 31-11	5.56.110
31-12	Code 1975, § 31-12	5.56.120
31-13	Code 1975, § 31-13	5.56.130
31-14	Code 1975, § 31-14	5.56.140
31-15	Code 1975, § 31-15	5.56.150
32-1		5.76.010
32-2	Code 1975, § 32-1	5.76.020
32-3	Code 1975, §§ 32-3—32-5	5.76.030
32-4	Code 1975, § 32-6	5.76.040
32-5	Code 1975, §§ 32-20—32-22	5.76.050
32-6		5.76.060
32-7	Code 1975, § 26-16	5.76.070
32-8	Code 1975, § 32-23	5.76.080
33-1		2.56.010
33-2	Code 1975, § 33-16	2.56.020
33-3	Code 1975, §§ 33-17, 33-18	2.56.030
33-4	Code 1975, § 33-19	2.56.040
33-5	Code 1975, § 33-20	2.56.050
33-6	Code 1975, § 33-21	2.56.060
33-7	Code 1975, § 33-22	2.56.070
33-8	Code 1975, § 33-23	2.56.080

Prior Code §	Ordinance History	Herein
33-9	Code 1975, § 33-24	2.56.090
33-10	Code 1975, § 33-25	2.56.100
33-11	Code 1975, § 33-26	2.56.110
33-12	Code 1975, § 33-27	2.56.120
33-13	Code 1975, § 33-28	2.56.130
33-14	Code 1975, § 33-29	2.56.140
33-15	Code 1975, §§ 33-36—33-39	1.20.010
33-16	Code 1975, § 33-54	Repealed by 3723
33-17	Code 1975, § 33-55	Repealed by 3723
33-18	Code 1975, § 33-56	Repealed by 3723
33-19	Code 1975, § 33-57	Repealed by 3723
33-20	Code 1975, § 33-58	Repealed by 3723
33-21	Code 1975, § 33-59	Repealed by 3723
33-22	Code 1975, § 33-60	Repealed by 3723
33-23	Code 1975, § 33-61	Repealed by 3723
33-24	Code 1975, § 33-62	Repealed by 3723
33-25	Code 1975, § 33-71	1.12.010
33-26	Code 1975, § 33-72	1.12.020
33-27	Code 1975, § 33-73	1.12.030
33-28	Code 1975, § 33-74	1.12.040
34-1	Code 1975, § 34-1	12.24.010
34-2	Code 1975, § 34-2	12.24.020
34-3	Code 1975, § 34-3	12.24.030
34-4	Code 1975, § 34-4	12.24.040
34-5	Code 1975, § 34-5	12.24.050
35-1	Code 1975, §§ 35-17, 35-18	2.20.010
35-2	Code 1975, § 35-16	2.20.020
35-3	Code 1975, § 35-17	2.20.030
35-4	Code 1975, § 35-21	2.20.040
35-5	Code 1975, § 35-20	2.20.050
35-6	Code 1975, § 35-22	2.20.060
35-7	Code 1975, § 35-21	2.20.070
35-8	Code 1975, §§ 35-32—35-36	2.24.010
35-9	Code 1975, § 35-51	2.88.010
35-10	Code 1975, § 35-52	2.88.020
35-11	Code 1975, §§ 35-53, 35-54	2.88.030
35-12	Code 1975, § 35-55	2.88.040
35-13	Code 1975, §§ 35-27(b), 35-28(c), 35-29(c)	8.08.010
35-14	Code 1975, § 35-27(a), (c), (f), (g)	8.08.020
35-15	Code 1975, § 35-27(h)—(k)	8.08.030
35-16	Code 1975, §§ 35-27(e), 35-28(a)—(c)	8.08.040
35-17	Code 1975, § 35-29(a), (b)	8.08.050

Prior Code §	Ordinance History	Herein
35-18		8.08.060
35-19	Code 1975, § 35-61	2.28.010
35-20	Code 1975, § 35-62	2.28.020
35-21	Code 1975, § 35-63	2.28.030
35-22	Code 1975, § 35-64	2.28.040
35-23	Code 1975, § 35-65	2.28.050
35-24	Code 1975, § 35-66	2.28.060
35-25	Code 1975, § 35-67	2.28.070
35-26	Code 1975, § 35-68	2.28.080
35-27	Code 1975, § 35-69	2.28.090
35-28	Code 1975, § 35-70	2.28.100
35-29	Code 1975, § 35-71	2.28.110
35-30	Code 1975, § 35-72	2.28.120
35-31	Code 1975, §§ 35-61, 35-73	2.28.130
35-32	Code 1975, § 35-74	2.28.140
35-33	Code 1975, § 35-75	2.28.150
35-34	Code 1975, § 35-76	2.28.160
35-35	Code 1975, §§ 35-24—35-26	2.20.080 → 2.88.010
36-1 (35-51)		5.48.010
36-2	Code 1975, § 36-1	5.48.020
36-3	Code 1975, § 36-4	5.48.030
36-4	Code 1975, §§ 26-46, 36-3, 36-5, 36-7	5.48.040
36-5	Code 1975, § 36-6	5.48.050
36-6	Code 1975, § 36-8	5.48.060
36-7	Code 1975, §§ 36-9, 36-11	5.48.070
36-8	Code 1975, §§ 36-7, 36-10	5.48.080
36-9	Code 1975, §§ 36-12, 36-13	5.48.090
36-10	Code 1975, § 36-14	5.48.100
36-11	Code 1975, § 36-15	5.48.110
36-12	Code 1975, § 36-16	5.48.120
36-13		5.48.130
36-14	Code 1975, § 36-17	5.48.140
36-15	Code 1975, § 36-18	5.48.150
36-16	Code 1975, § 36-19	5.48.160
37-1		10.84.010
37-2	Code 1975, §§ 37-1—37-3	10.84.020
37-3	Code 1975, § 37-4	10.84.030
37-4	Code 1975, §§ 37-5, 37-6	10.84.040
37-5	Code 1975, §§ 37-7, 37-8	10.84.050
38-1		5.60.010
38-2	Code 1975, § 38-1	5.60.020
38-3	Code 1975, §§ 38-13, 38-14	5.60.030

Prior Code §	Ordinance History	Herein
38-4	Code 1975, §§ 38-3—38-5	5.60.040
38-5	Code 1975, §§ 38-2, 38-13	5.60.050
39-1	Code 1975, §§ 39-1—39-3, 39-5(a)	15.52.010
39-2	Code 1975, § 39-4	15.52.020
39-3	Code 1975, § 39-6	15.52.030
39-4	Code 1975, § 39-8	15.52.040
39-5	Code 1975, § 39-9	15.52.050
39-6	Code 1975, §§ 39-10, 39-11	15.52.060
39-7	Code 1975, §§ 39-10(b), (c), 39-12(a), 39-13	15.52.070
39-8	Code 1975, § 39-7	15.52.080
39-9	Code 1975, § 39-14	15.52.090
39-10	Code 1975, § 39-15	15.52.100
39-11	Code 1975, § 39-5(b)	15.52.110
40-1	Code 1975, § 40-1	12.04.010
40-2	Code 1975, § 40-2	12.04.020
40-3	Code 1975, § 40-4	12.04.030
40-4	Code 1975, § 40-5	12.04.040
40-5	Code 1975, § 40-6	12.04.050
40-6	Code 1975, § 40-7	12.04.060
40-7	Code 1975, § 40-9	12.04.070
40-8	Code 1975, § 40-20	12.04.080
40-9	Code 1975, § 40-21	12.04.090
40-10	Code 1975, § 40-22	12.04.100
40-11	Code 1975, § 40-23	12.04.110
40-12	Code 1975, § 40-24	12.04.120
40-13	Code 1975, § 40-25	12.04.130
40-14	Code 1975, § 40-26	12.04.140
40-15	Code 1975, § 40-27	12.04.150
40-16	Code 1975, § 40-33	12.04.160
40-17	Code 1975, § 40-34	12.04.170
40-18	Code 1975, § 40-35	12.04.180
40-19	Code 1975, § 40-36	12.04.190
40-20	Code 1975, § 40-37	12.04.200
40-21	Code 1975, § 40-38	12.04.210
40-22	Code 1975, § 40-44	12.04.220
40-23	Code 1975, § 40-45	12.04.230
40-24	Code 1975, § 40-67	12.12.010
40-25	Code 1975, § 40-68	12.12.020
40-26	Code 1975, § 40-69	12.12.030
40-27	Code 1975, § 40-70	12.12.040
40-28	Code 1975, § 40-71	12.12.050
40-29	Code 1975, § 40-72	12.12.060

Prior Code §	Ordinance History	Herein
40-30	Code 1975, § 40-73	12.12.070
40-31	Code 1975, § 40-83	15.56.010
40-32	Code 1975, § 40-84	15.56.020
40-33	Code 1975, § 40-85	15.56.030
40-34	Code 1975, § 40-86	15.56.040
40-35	Code 1975, § 40-87	15.56.050
40-36	Code 1975, § 40-88	15.56.060
40-37	Code 1975, § 40-89	15.56.070
40-38	Code 1975, § 40-90	15.56.080
40-39	Code 1975, § 40-91	15.56.090
40-40	Code 1975, § 40-100	12.08.010
40-41	Code 1975, § 40-101	12.08.020
40½-1		5.68.010
40½-2	Code 1975, § 40½-1	5.68.020
40½-3	Code 1975, §§ 26-50, 40½-2	5.68.030
40½-4	Code 1975, § 40½-3	5.68.040
40½-5	Code 1975, § 40½-4	5.68.050
40½-6	Code 1975, § 40½-5	5.68.060
40½-7	Code 1975, § 40½-6	5.68.070
40½-8	Code 1975, § 40½-7	5.68.080
40½-9	Code 1975, § 40½-8	5.68.090
40½-10	Code 1975, § 40½-9	5.68.100
40½-11	Code 1975, § 40½-10	5.68.110
40½-12	Code 1975, § 40½-11	5.68.120
40½-13	Code 1975, § 40½-12	5.68.130
40½-14	Code 1975, § 40½-13	5.68.140
40½-15	Code 1975, § 40½-14	5.68.150
41-1	Ord. 2957, § 1 (2-176), 7-28-86; Ord. 3118, § 1 (2-175), 7-9-90	3.08.010
41-2	Ord. 2957, § 1 (2-176), 7-28-86; Ord. 3118, § 1 (2-176), 7-9-90	3.08.020
41-3	Ord. 2957, § 1 (2-177), 7-28-86; Ord. 3118, § 1 (2-177), 7-9-90	3.08.030
42-1	Code 1975, § 42-4	5.72.010
42-2	Code 1975, §§ 26-51, 42-1, 42-3, 42-4	5.72.020
42-3	Code 1975, § 42-2	5.72.030
42-4	Code 1975, § 42-5	5.72.040
43-1	Code 1975, §§ 43-1, 43-16, 43-17	Repealed by 3613
43-2	Code 1975, § 43-19	Repealed by 3613
43-3	Code 1975, §§ 43-20, 43-21	Repealed by 3613
43-4	Code 1975, § 43-22	Repealed by 3613
43-5	Code 1975, § 43-23	Repealed by 3613
43-6	Code 1975, § 43-24	Repealed by 3613
43-7	Code 1975, § 43-25	Repealed by 3613
43-8	Code 1975, §§ 43-31—43-33	Repealed by 3615

Prior Code §	Ordinance History	Herein
43-9	Code 1975, § 26-54, 43-39	Repealed by 3615
43-10	Code 1975, § 43-40	Repealed by 3615
44-1	Code 1975, § 44-20	2.68.010
44-2	Code 1975, § 44-21	2.68.020
44-3	Code 1975, § 44-22	2.68.030
44-4	Code 1975, § 44-1	13.04.010
44-5	Code 1975, § 44-2	13.04.020
44-6	Code 1975, § 44-3	13.04.030
44-7	Code 1975, § 44-4	13.04.040
44-8	Code 1975, § 44-5	13.04.050
44-9	Code 1975, § 44-6	13.04.060
44-10	Code 1975, § 44-7	13.04.070
44-11	Code 1975, § 44-8	13.04.080
44-12	Code 1975, § 44-9	13.04.090
44-13	Code 1975, § 44-10	13.04.100
44-14	Code 1975, § 44-11	13.04.110
44-15	Code 1975, § 44-12	13.04.120
44-16	Code 1975, § 44-13	13.04.130
44-17	Code 1975, § 44-14	13.04.140
44-18	Code 1975, § 44-15	13.04.150
44-19	Code 1975, § 44-16	13.04.160
44-20	Code 1975, § 44-17	13.04.170
44-21	Code 1975, § 44-18	13.04.180
44-22	Code 1975, § 44-19	13.04.190
44-23	Code 1975, § 44-23	2.68.040
44-24	Code 1975, § 44-24	2.68.050
44-25	Code 1975, § 44-25	13.08.010
44-26	Code 1975, § 44-26	13.08.020
44-27	Code 1975, § 44-27	13.08.030
44-28	Code 1975, § 44-28	13.08.040
44-29	Code 1975, § 44-29	13.08.050
44-30	Code 1975, § 44-30	13.08.060
44-31	Code 1975, § 44-31	13.08.070
44-32	Code 1975, § 44-32	13.08.080
44-33	Code 1975, § 44-33	13.08.090
44-34	Code 1975, § 44-34	13.08.100
44-35	Code 1975, § 44-35	13.08.110
44-36	Code 1975, § 44-36	13.08.120
44-37	Code 1975, § 44-37	13.08.130
44-38	Code 1975, § 44-38	13.08.140
44-39	Code 1975, § 44-39	13.08.150
44-40	Code 1975, § 44-40	13.12.010

Prior Code §	Ordinance History	Herein
44-41	Code 1975, § 44-41	13.12.020
44-42	Code 1975, § 44-42	13.12.030
44-43	Code 1975, § 44-43	13.12.040
44-44	Code 1975, § 44-44	13.12.050
44-45	Code 1975, § 44-45	13.12.060
44-46	Code 1975, § 44-46	13.12.070
44-47	Code 1975, § 44-47	13.12.080
44-48	Code 1975, § 44-48	13.12.090
44-49	Code 1975, § 44-49	13.12.100
44-50	Code 1975, § 44-50	13.12.110
44-51	Code 1975, § 44-51	13.12.120
44-52	Code 1975, § 44-52	13.12.130
44-53	Code 1975, § 44-53	13.12.140
44-54	Code 1975, § 44-54	13.12.150
44-55	Code 1975, § 44-55	13.12.160
44-56	Code 1975, § 44-56	13.12.170
44-57	Code 1975, § 44-57	13.12.180
44-58	Code 1975, § 44-58	13.12.190
44-59	Code 1975, § 44-59	13.12.200
44-60	Code 1975, § 44-60	13.12.210
44-61	Code 1975, § 44-61	13.12.220
44-62	Code 1975, § 44-62	13.12.230
44-63	Code 1975, § 44-63	13.12.240
44-64	Code 1975, § 44-64	13.12.250
44-65	Code 1975, § 44-65	13.12.260
44-66	Code 1975, § 44-66	13.12.270
44-67	Code 1975, § 44-67	13.12.280
44-68	Code 1975, § 44-68	13.12.290
44-69	Code 1975, § 44-69	13.12.300
44-70	Code 1975, § 44-70	13.12.310
44-71	Code 1975, § 44-71	13.12.320
44-72	Code 1975, § 44-72	13.12.330
44-73	Code 1975, § 44-73	13.12.340
44-74	Code 1975, § 44-74	13.12.350
44-75	Code 1975, § 44-75	13.12.360
44-76	Code 1975, § 44-76	13.12.370
44-77	Code 1975, § 44-77	13.12.380
44-78	Code 1975, § 44-78	13.12.390
44-79	Code 1975, § 44-79	13.12.400
44-80	Code 1975, § 44-80	13.16.010
44-81	Code 1975, § 44-81	13.16.020
44-82	Code 1975, § 44-82	13.16.030

Prior Code §	Ordinance History	Herein
45-1	Code 1975, §§ 45-1, 45-2	13.20.010
45-2	Code 1975, § 45-4	13.20.020
45-3	Code 1975, § 45-3	13.20.030
45-4	Code 1975, § 45-5	13.20.040
45-5	Code 1975, § 45-6	13.20.050
45-6	Code 1975, § 45-7	13.20.060
45-7	Code 1975, § 45-8	13.20.070
45-8	Code 1975, § 45-9	13.20.080
45-9	Code 1975, § 45-10	13.20.090
45-10	Code 1975, § 45-11	13.20.100
45-11	Code 1975, § 45-12	13.20.110
45-12	Code 1975, § 45-13	13.20.120
45-13	Code 1975, § 45-14	13.20.130
45-14	Code 1975, § 45-15	13.20.140
45-15	Code 1975, § 45-16	13.20.150
45-16	Code 1975, § 45-17	13.20.160
45-17	Code 1975, § 45-18	13.20.170
45-18	Code 1975, § 45-19	13.20.180
45-19	Code 1975, § 45-20	13.20.190
45-20	Code 1975, § 45-21	13.20.200
45-21	Code 1975, § 45-22	13.20.210
45-22	Code 1975, § 45-23	13.20.220
45-23	Code 1975, § 45-24	13.20.230
45-24	Code 1975, § 45-25	13.20.240
45-25	Code 1975, § 45-26	13.20.250
45-26	Code 1975, § 45-27	13.20.260
45-27	Code 1975, § 45-28	13.20.270
45-28	Code 1975, § 45-29	13.20.280
45-29	Code 1975, § 45-30	13.20.290
45-30	Code 1975, § 45-31	13.20.300
45-31	Code 1975, § 45-32	13.20.310
45-32	Code 1975, § 45-36	13.20.320
45-33	Code 1975, § 45-33	13.20.330
45-34	Code 1975, § 45-35	13.20.340
45-35	Code 1975, § 45-34	13.20.350
45-36	Code 1975, § 45-37	13.20.360
45-37	Code 1975, § 45-38	13.20.370
45-38	Code 1975, § 45-39	13.20.380
45-39	Code 1975, § 45-42	13.20.390
45-40	Code 1975, § 45-40	13.20.400
45-41	Code 1975, § 45-41	13.20.410
45-42	Code 1975, § 45-43	13.20.420

Prior Code §	Ordinance History	Herein
45-43	Code 1975, § 45-44	13.20.430
45-44	Code 1975, § 45-45	13.20.440
45-45	Code 1975, § 45-46	13.20.450
45-46	Code 1975, § 45-47	13.20.460
46-1	Code 1975, §§ 46-1, 46-3	5.28.010
46-2	Code 1975, §§ 46-2, 46-10(a)	5.28.020
46-3	Code 1975, § 46-4	5.28.030
46-4	Code 1975, § 46-10	5.28.040
46-5	Code 1975, § 26-35.11, 46-11	5.28.050
46-6	Code 1975, § 46-5	5.28.060

Appendix A—Zoning

Prior Code §	Ordinance History	Herein
10.000	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3389, § 1, 10-11-99	17.04.010
11.000	Ord. No. 3047, § 3, 11-28-88	17.04.020
20.000	Ord. No. 3047, § 3, 11-28-88	17.04.030
20.010	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3128, § 1, 1-14-91; Ord. No. 3138, § 1, 6-24-91; Ord. No. 3175, § 1, 12-14-92; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3252, § 4, 2-13-95; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.04.040
30.000	Ord. No. 3047, § 3, 11-28-88	17.08.010
30.001	Ord. No. 3047, § 3, 11-28-88	17.08.020
30.010	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3389, § 1, 10-11-99	17.08.030
30.020	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3145, § 1, 11-12-91; Ord. No. 3389, § 1, 10-11-99	17.08.040
30.025	Ord. No. 3047, § 3, 11-28-88	17.08.050
30.026	Ord. No. 3047, § 3, 11-28-88	17.08.060
30.030	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3138, § 1, 6-4-91; Ord. No. 3145, § 1, 11-21-91; Ord. No. 3252, § 4, 2-13-95; Ord. No. 3389, § 1, 10-11-99	17.08.070
31.000	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3252, § 4, 2-13-95; Ord. No. 3389, § 1, 10-11-99	17.08.080
32.000	Ord. No. 3047, § 3, 11-28-88	17.08.090
40.000	Ord. No. 3047, § 3, 11-28-88	17.12.010
40.010	Ord. No. 3047, § 3, 11-28-88	17.12.020
40.011	Ord. No. 3047, § 3, 11-28-88	17.12.020
40.012	Ord. No. 3047, § 3, 11-28-88	17.12.020
40.013	Ord. No. 3047, § 3, 11-28-88	17.12.020
40.020	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3389, § 1, 10-11-99	17.12.030
40.030	Ord. No. 3047, § 3, 11-28-88	17.12.040
40.040	Ord. No. 3047, § 3, 11-28-88	17.12.050
40.050	Ord. No. 3047, § 3, 11-28-88	17.12.060

Prior Code §	Ordinance History	Herein
40.051	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.16.060
40.100	Ord. No. 3047, § 3, 11-28-88	17.16.010
40.110	Ord. No. 3047, § 3, 11-28-88	17.16.020
40.111		17.16.020
40.112	Ord. No. 3047, § 3, 11-28-88	17.16.020
40.113	Ord. No. 3047, § 3, 11-28-88	17.16.020
40.120	Ord. No. 3047, § 3, 11-28-88	17.16.030
40.130	Ord. No. 3047, § 3, 11-28-88	17.16.040
40.140	Ord. No. 3047, § 3, 11-28-88	17.16.050
40.150	Ord. No. 3047, § 3, 11-28-88	17.16.060
40.151	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.16.060
40.200	Ord. No. 3047, § 3, 11-28-88	17.20.010
40.210	Ord. No. 3047, § 3, 11-28-88	17.20.020
40.211	Ord. No. 3047, § 3, 11-28-88	17.20.020
40.212	Ord. No. 3047, § 3, 11-28-88	17.20.020
40.213	Ord. No. 3047, § 3, 11-28-88	17.20.020
40.220	Ord. No. 3047, § 3, 11-28-88	17.20.030
40.230	Ord. No. 3047, § 3, 11-28-88	17.20.040
40.240	Ord. No. 3047, § 3, 11-28-88	17.20.050
40.250	Ord. No. 3047, § 3, 11-28-88	17.20.060
40.251	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.20.060
40.300	Ord. No. 3047, § 3, 11-28-88	17.24.010
40.310	Ord. No. 3047, § 3, 11-28-88	17.24.020
40.311	Ord. No. 3047, § 3, 11-28-88	17.24.020
40.312	Ord. No. 3047, § 3, 11-28-88	17.24.020
40.313	Ord. No. 3047, § 3, 11-28-88	17.24.020
40.320	Ord. No. 3047, § 3, 11-28-88	17.24.030
40.330	Ord. No. 3047, § 3, 11-28-88	17.24.040
40.340	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3252, § 1, 2-13-95; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.24.050
40.400	Ord. No. 3047, § 3, 11-28-88	17.28.010
40.410	Ord. No. 3047, § 3, 11-28-88	17.28.020

Prior Code §	Ordinance History	Herein
40.411	Ord. No. 3047, § 3, 11-28-88	17.28.020
40.412	Ord. No. 3047, § 3, 11-28-88	17.28.020
40.413	Ord. No. 3047, § 3, 11-28-88	17.28.020
40.420	Ord. No. 3047, § 3, 11-28-88	17.28.030
40.430	Ord. No. 3047, § 3, 11-28-88	17.28.040
40.440	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3252, § 2, 2-13-95; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.28.050
40.500	Ord. No. 3047, § 3, 11-28-88	17.32.010
40.510	Ord. No. 3047, § 3, 11-28-88	17.32.020
40.511	Ord. No. 3047, § 3, 11-28-88	17.32.020
40.512	Ord. No. 3047, § 3, 11-28-88	17.32.020
40.513	Ord. No. 3047, § 3, 11-28-88	17.32.020
40.520	Ord. No. 3047, § 3, 11-28-88	17.32.030
40.530	Ord. No. 3047, § 3, 11-28-88	17.32.040
40.540	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3252, § 3, 2-13-95; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.32.050
41.100	Ord. No. 3047, § 3, 11-28-88	17.36.010
41.110	Ord. No. 3047, § 3, 11-28-88	17.36.020
41.111	Ord. No. 3047, § 3, 11-28-88	17.36.020
41.112	Ord. No. 3047, § 3, 11-28-88	17.36.020
41.113	Ord. No. 3047, § 3, 11-28-88	17.36.020
41.120	Ord. No. 3047, § 3, 11-28-88	17.36.030
41.130	Ord. No. 3047, § 3, 11-28-88	17.36.040
41.140	Ord. No. 3047, § 3, 11-28-88	17.36.050
41.150	Ord. No. 3047, § 3, 11-28-88	17.36.060
41.160	Ord. No. 3047, § 3, 11-28-88	17.36.070
41.171	Ord. No. 3047, § 3, 11-28-88	17.36.080
41.172	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.36.080
41.200	Ord. No. 3047, § 3, 11-28-88	17.40.010
41.210	Ord. No. 3047, § 3, 11-28-88	17.40.020
41.211	Ord. No. 3047, § 3, 11-28-88	17.40.020
41.212	Ord. No. 3047, § 3, 11-28-88	17.40.020
41.213	Ord. No. 3047, § 3, 11-28-88	17.40.020
41.220	Ord. No. 3047, § 3, 11-28-88	17.40.030

Prior Code §	Ordinance History	Herein
41.230	Ord. No. 3047, § 3, 11-28-88	17.40.040
41.240	Ord. No. 3047, § 3, 11-28-88	17.40.050
41.250	Ord. No. 3047, § 3, 11-28-88	17.40.060
41.261	Ord. No. 3047, § 3, 11-28-88	17.40.070
41.262	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.40.070
41.300	Ord. No. 3047, § 3, 11-28-88	17.44.010
41.310	Ord. No. 3047, § 3, 11-28-88	17.44.020
41.311	Ord. No. 3047, § 3, 11-28-88	17.44.020
41.312	Ord. No. 3047, § 3, 11-28-88	17.44.020
41.313	Ord. No. 3047, § 3, 11-28-88	17.44.020
41.320	Ord. No. 3047, § 3, 11-28-88	17.44.030
41.330	Ord. No. 3047, § 3, 11-28-88	17.44.040
41.340	Ord. No. 3047, § 3, 11-28-88	17.44.050
41.350	Ord. No. 3047, § 3, 11-28-88	17.44.060
41.360	Ord. No. 3047, § 3, 11-28-88	17.44.070
41.371	Ord. No. 3047, § 3, 11-28-88	17.44.080
41.372	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.44.080
41.400	Ord. No. 3047, § 3, 11-28-88	17.48.010
41.410	Ord. No. 3047, § 3, 11-28-88	17.48.020
41.411	Ord. No. 3047, § 3, 11-28-88	17.48.020
41.412	Ord. No. 3047, § 3, 11-28-88	17.48.020
41.413	Ord. No. 3047, § 3, 11-28-88	17.48.020
41.420	Ord. No. 3047, § 3, 11-28-88	17.48.030
41.430	Ord. No. 3047, § 3, 11-28-88	17.48.040
41.440	Ord. No. 3047, § 3, 11-28-88	17.48.050
41.450	Ord. No. 3047, § 3, 11-28-88	17.48.060
41.461	Ord. No. 3047, § 3, 11-28-88	17.48.070
41.462	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.48.070
41.500	Ord. No. 3047, § 3, 11-28-88	17.52.010
41.510	Ord. No. 3047, § 3, 11-28-88	17.52.020
41.511	Ord. No. 3047, § 3, 11-28-88	17.52.020
41.512	Ord. No. 3047, § 3, 11-28-88	17.52.020

Prior Code §	Ordinance History	Herein
41.513	Ord. No. 3047, § 3, 11-28-88	17.52.020
41.520	Ord. No. 3047, § 3, 11-28-88	17.52.030
41.530	Ord. No. 3047, § 3, 11-28-88	17.52.040
41.540	Ord. No. 3047, § 3, 11-28-88	17.52.050
41.550	Ord. No. 3047, § 3, 11-28-88	17.52.060
41.560	Ord. No. 3047, § 3, 11-28-88	17.52.070
41.571	Ord. No. 3047, § 3, 11-28-88	17.52.080
41.572	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.52.080
41.600	Ord. No. 3047, § 3, 11-28-88	17.56.010
41.610	Ord. No. 3047, § 3, 11-28-88	17.56.020
41.611	Ord. No. 3047, § 3, 11-28-88	17.56.020
41.612	Ord. No. 3047, §3, 11-28-88	17.56.020
41.613	Ord. No. 3047, § 3, 11-28-88	17.56.020
41.620	Ord. No. 3047, § 3, 11-28-88	17.56.030
41.630	Ord. No. 3047, § 3, 11-28-88	17.56.040
41.640	Ord. No. 3047, § 3, 11-28-88	17.56.050
41.650	Ord. No. 3047, § 3, 11-28-88	17.56.060
41.661	Ord. No. 3047, § 3, 11-28-88	17.56.070
41.662	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.56.070
42.100	Ord. No. 3047, § 3, 11-28-88	17.60.010
42.110	Ord. No. 3047, § 3, 11-28-88	17.60.020
42.111	Ord. No. 3047, § 3, 11-28-88	17.60.020
42.112	Ord. No. 3047, § 3, 11-28-88	17.60.020
42.113	Ord. No. 3047, § 3, 11-28-88	17.60.020
42.120	Ord. No. 3047, § 3, 11-28-88	17.60.030
42.130	Ord. No. 3047, § 3, 11-28-88	17.60.040
42.140	Ord. No. 3047, § 3, 11-28-88	17.60.050
42.150	Ord. No. 3047, § 3, 11-28-88	17.60.060
42.160	Ord. No. 3047, § 3, 11-28-88*	17.60.070
42.170	Ord. No. 3047, § 3, 11-28-88*	17.60.080
42.171	Ord. No. 3047, § 3, 11-28-88	17.60.090

Prior Code §	Ordinance History	Herein
42.172	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.60.090
42.200	Ord. No. 3047, § 3, 11-28-88	17.64.010
42.210	Ord. No. 3047, § 3, 11-28-88	17.64.020
42.211	Ord. No. 3047, § 3, 11-28-88	17.64.020
42.212	Ord. No. 3047, § 3, 11-28-88	17.64.020
42.213	Ord. No. 3047, § 3, 11-28-88	17.64.020
42.220	Ord. No. 3047, § 3, 11-28-88	17.64.030
42.230	Ord. No. 3047, § 3, 11-28-88	17.64.040
42.240	Ord. No. 3047, § 3, 11-28-88	17.64.050
42.250	Ord. No. 3047, § 3, 11-28-88	17.64.060
42.260	Ord. No. 3047, § 3, 11-28-88	17.64.070
42.261	Ord. No. 3047, § 3, 11-28-88	17.64.080
42.262	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99; Ord. No. 3407, § 1, 6-26-00	17.64.080
42.300	Ord. No. 3047, § 3, 11-28-88	17.68.010
42.310	Ord. No. 3047, § 3, 11-28-88	17.68.020
42.311	Ord. No. 3047, § 3, 11-28-88	17.68.020
42.312	Ord. No. 3047, § 3, 11-28-88	17.68.020
42.313	Ord. No. 3047, § 3, 11-28-88	17.68.020
42.320	Ord. No. 3047, § 3, 11-28-88	17.68.030
42.330	Ord. No. 3047, § 3, 11-28-88	17.68.040
42.340	Ord. No. 3047, § 3, 11-28-88	17.68.050
42.350	Ord. No. 3047, § 3, 11-28-88	17.68.060
42.360	Ord. No. 3047, § 3, 11-28-88	17.68.070
42.361	Ord. No. 3047, § 3, 11-28-88	17.68.080
42.362	Ord. No. 3047, § 3, 11-28-88	17.68.080
42.363	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.68.080
43.100	Ord. No. 3047, § 3, 11-28-88	17.72.010
43.100	Ord. No. 3047, § 3, 11-28-88 Note: The Code contained two §§43.100.	17.72.020

Prior Code §	Ordinance History	Herein
43.111	Ord. No. 3047, § 3, 11-28-88	17.72.020
43.112	Ord. No. 3047, § 3, 11-28-88	17.72.020
43.113	Ord. No. 3047, § 3, 11-28-88	17.72.020
43.120	Ord. No. 3047, § 3, 11-28-88	17.72.030
43.130	Ord. No. 3047, § 3, 11-28-88	17.72.040
43.140	Ord. No. 3047, § 3, 11-28-88	17.72.050
43.150	Ord. No. 3047, § 3, 11-28-88	17.72.060
43.160	Ord. No. 3047, § 3, 11-28-88	17.72.070
43.161	Ord. No. 3047, § 3, 11-28-88	17.72.080
43.162	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3343, § 1, 5-11-98; Ord. No. 3389, § 1, 10-11-99; Ord. No. 3407, § 1, 6-26-00	17.72.080
43.200	Ord. No. 3047, § 3, 11-28-88	17.76.010
43.210	Ord. No. 3047, § 3, 11-28-88	17.76.020
43.211	Ord. No. 3047, § 3, 11-28-88	17.76.020
43.212	Ord. No. 3047, § 3, 11-28-88	17.76.020
43.213	Ord. No. 3047, § 3, 11-28-88	17.76.020
43.220	Ord. No. 3047, § 3, 11-28-88	17.76.030
43.230	Ord. No. 3047, § 3, 11-28-88	17.76.040
43.240	Ord. No. 3047, § 3, 11-28-88	17.76.050
43.250	Ord. No. 3047, § 3, 11-28-88	17.76.060
43.260	Ord. No. 3047, § 3, 11-28-88	17.76.070
43.261	Ord. No. 3047, § 3, 11-28-88	17.76.080
43.262	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.76.080
44.000	Ord. No. 3047, § 3, 11-28-88	17.80.010
44.005	Ord. No. 3047, § 3, 11-28-88	17.80.020
44.010	Ord. No. 3047, § 3, 11-28-88	17.80.030
44.011	Ord. No. 3047, § 3, 11-28-88	17.80.030
44.012	Ord. No. 3047, § 3, 11-28-88	17.80.030
44.013	Ord. No. 3047, § 3, 11-28-88	17.80.030
44.020	Ord. No. 3047, § 3, 11-28-88	17.80.040
44.030	Ord. No. 3047, § 3, 11-28-88	17.80.050
44.040	Ord. No. 3047, § 3, 11-28-88	17.80.060
44.050	Ord. No. 3047, § 3, 11-28-88	17.80.070

Prior Code §	Ordinance History	Herein
44.060	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3367, § 1, 1-25-99; Ord. No. 3389, § 1, 10-11-99	17.80.080
45.000	Ord. No. 3047, § 3, 11-28-88	17.84.010
45.010	Ord. No. 3047, § 3, 11-28-88	17.84.020
45.011	Ord. No. 3047, § 3, 11-28-88	17.84.020
45.012	Ord. No. 3047, § 3, 11-28-88	17.84.020
45.013	Ord. No. 3047, § 3, 11-28-88	17.84.020
45.020	Ord. No. 3047, § 3, 11-28-88	17.84.030
45.030	Ord. No. 3047, § 3, 11-28-88	17.84.040
45.040	Ord. No. 3047, § 3, 11-28-88	17.84.050
45.050	Ord. No. 3047, § 3, 11-28-88	17.84.060
45.060	Ord. No. 3047, § 3, 11-28-88	17.84.070
45.061	Ord. No. 3047, § 3, 11-28-88	17.84.080
45.062	Ord. No. 3047, § 3, 11-28-88	17.84.080
45.063	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.84.080
45.100	Ord. No. 3047, § 3, 11-28-88	17.88.010
45.110	Ord. No. 3047, § 3, 11-28-88	17.88.020
45.111	Ord. No. 3047, § 3, 11-28-88	17.88.020
45.112	Ord. No. 3047, § 3, 11-28-88	17.88.020
45.113	Ord. No. 3047, § 3, 11-28-88	17.88.020
45.120	Ord. No. 3047, § 3, 11-28-88	17.88.030
45.130	Ord. No. 3047, § 3, 11-28-88	17.88.040
45.140	Ord. No. 3047, § 3, 11-28-88	17.88.050
45.150	Ord. No. 3047, § 3, 11-28-88	17.88.060
45.160	Ord. No. 3047, § 3, 11-28-88	17.88.070
45.161	Ord. No. 3047, § 3, 11-28-88	17.88.080
45.162	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.88.080
46.000	Ord. No. 3047, § 3, 11-28-88	17.92.010
46.005	Ord. No. 3047, § 3, 11-28-88	17.92.020
46.010	Ord. No. 3047, § 3, 11-28-88	17.92.030
46.020	Ord. No. 3047, § 3, 11-28-88	17.92.040
46.030	Ord. No. 3047, § 3, 11-28-88	17.92.050
46.040	Ord. No. 3047, § 3, 11-28-88	17.92.060

Prior Code §	Ordinance History	Herein
46.050	Ord. No. 3047, § 3, 11-28-88	17.92.070
46.051	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3389, § 1, 10-11-99	17.92.080
47.000	Ord. No. 3047, § 3, 11-28-88	17.96.010
47.005	Ord. No. 3047, § 3, 11-28-88	17.96.020
47.010	Ord. No. 3047, § 3, 11-28-88	17.96.030
47.011	Ord. No. 3047, § 3, 11-28-88	17.96.030
47.012	Ord. No. 3047, § 3, 11-28-88	17.96.030
47.013	Ord. No. 3047, § 3, 11-28-88	17.96.030
47.020	Ord. No. 3047, § 3, 11-28-88	17.96.040
47.030	Ord. No. 3047, § 3, 11-28-88	17.96.050
47.040	Ord. No. 3047, § 3, 11-28-88	17.96.060
47.050	Ord. No. 3047, § 3, 11-28-88	17.96.070
47.060	Ord. No. 3047, § 3, 11-28-88	17.96.080
47.061	Ord. No. 3047, § 3, 11-28-88	17.96.090
47.062	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3278, § 1, 4-8-96	17.96.090
47.100	Ord. No. 3047, § 3, 11-28-88	17.100.010
49.000	Ord. No. 3047, § 3, 11-28-88	17.104.010
49.020	Ord. No. 3047, § 3, 11-28-88	17.104.020
49.030	Ord. No. 3047, § 3, 11-28-88	17.104.030
49.040	Ord. No. 3047, § 3, 11-28-88	17.104.040
49.050	Ord. No. 3047, § 3, 11-28-88	17.104.050
49.060	Ord. No. 3047, § 3, 11-28-88	17.104.060
49.070	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3389, § 1, 10-11-99	17.104.070
49.100	Ord. No. 3047, § 3, 11-28-88	17.108.010
49.110	Ord. No. 3047, § 3, 11-28-88	17.108.020
49.120	Ord. No. 3047, § 3, 11-28-88	17.108.030
49.200	Ord. No. 3047, § 3, 11-28-88	17.112.010
49.210	Ord. No. 3047, § 3, 11-28-88	17.112.020
49.215	Ord. No. 3047, § 3, 11-28-88	17.112.030
49.220	Ord. No. 3047, § 3, 11-28-88	17.112.040
49.230	Ord. No. 3047, § 3, 11-28-88	17.112.050
49.240	Ord. No. 3047, § 3, 11-28-88	17.112.060
49.245	Ord. No. 3047, § 3, 11-28-88	17.112.070
49.250	Ord. No. 3047, § 3, 11-28-88	17.112.080

Prior Code §	Ordinance History	Herein
49.260	Ord. No. 3047, § 3, 11-28-88	17.112.090
49.270	Ord. No. 3047, § 3, 11-28-88	17.112.100
50.000	Ord. No. 3047, § 3, 11-28-88	17.116.010
50.010	Ord. No. 3047, § 3, 11-28-88	17.116.010
50.020	Ord. No. 3047, § 3, 11-28-88	17.116.010
50.030	Ord. No. 3047, § 3, 11-28-88	17.116.010
50.035	Ord. No. 3047, § 3, 11-28-88	17.116.010
50.040	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3389, § 1, 10-11-99; Ord. No. 3407, § 1, 6-26-00	17.116.010
51.000	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3252, § 4, 2-13-95; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3389, § 1, 10-11-99	17.116.020
51.010		17.116.020
52.000	Ord. No. 3047, § 3, 11-28-88	17.116.030
52.010	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3389, § 1, 10-11-99	17.116.030
54.010	Ord. No. 3047, § 3, 11-28-88	17.116.040
54.015	Ord. No. 3047, § 3, 11-28-88	17.116.040
54.020	Ord. No. 3047, § 3, 11-28-88	17.116.040
54.025	Ord. No. 3047, § 3, 11-28-88	17.116.040
54.030	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3389, § 1, 10-11-99	17.116.040
55.010	Ord. No. 3047, § 3, 11-28-88	17.116.050
55.015	Ord. No. 3047, § 3, 11-28-88	17.116.060
55.016	Ord. No. 3047, § 3, 11-28-88	17.120.010—17.120.090
55.020	Ord. No. 3047, § 3, 11-28-88	17.116.070
55.030	Ord. No. 3047, § 3, 11-28-88	17.116.080
55.031	Ord. No. 3047, § 3, 11-28-88	17.116.090
55.040	Ord. No. 3047, § 3, 11-28-88	17.116.100
55.050	Ord. No. 3047, § 3, 11-28-88	17.116.110
55.060	Ord. No. 3047, § 3, 11-28-88	17.116.120
55.070	Ord. No. 3047, § 3, 11-28-88	17.116.130
55.075	Ord. No. 3047, § 3, 11-28-88	17.116.140
55.080	Ord. No. 3047, § 3, 11-28-88	17.116.150
55.090	Ord. No. 3047, § 3, 11-28-88	17.116.160

Prior Code §	Ordinance History	Herein
55.100	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3252, § 4, 2-13-95; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3296, § 1, 4-14-97; Ord. No. 3389, § 1, 10-11-99; Ord. No. 3407, § 1, 6-26-00	17.116.170
56.000	Ord. No. 3047, § 3, 11-28-88	17.140.010
56.010	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3145, § 1, 11-12-91; Ord. No. 3183, § 1, 5-10-93	17.140.020
56.020	Ord. No. 3047, § 3, 11-28-88	17.140.030
56.030	Ord. No. 3047, § 3, 11-28-88	17.140.040
56.040	Ord. No. 3047, § 3, 11-28-88	17.140.050
56.050	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3138, § 2, 6-24-91; Ord. No. 3145, § 1, 11-12-91; Ord. No. 3389, § 1, 10-11-99	17.140.060
57.000	Ord. No. 3047, § 3, 11-28-88	17.124.010
57.010	Ord. No. 3047, § 3, 11-28-88	17.124.020
57.012	Ord. No. 3047, § 3, 11-28-88	17.124.030
57.020	Ord. No. 3047, § 3, 11-28-88	17.124.040
57.021	Ord. No. 3047, § 3, 11-28-88	17.124.040
57.022	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3389, § 1, 10-11-99	17.124.040
57.100		17.116.180
57.110	Ord. No. 3047, § 3, 11-28-88	17.116.180
57.120	Ord. No. 3047, § 3, 11-28-88	17.116.180
57.130	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3389, § 1, 10-11-99	17.116.180
58.000	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3091, § 1, 1-22-90; Ord. No. 3103, § 1, 3-26-90; Ord. No. 3128, § 1, 1-14-91; Ord. No. 3389, § 1, 10-11-99	Repealed by 3746
58.010	Ord. No. 3047, § 3, 11-28-88	Repealed by 3746
58.011	Ord. No. 3047, § 3, 11-28-88	Repealed by 3746
58.012	Ord. No. 3047, § 3, 11-28-88	Repealed by 3746
58.013	Ord. No. 3047, § 3, 11-28-88	Repealed by 3746
58.014	Ord. No. 3047, § 3, 11-28-88	Repealed by 3746

Prior Code §	Ordinance History	Herein
58.015	Ord. No. 3047, § 3, 11-28-88	Repealed by 3746
58.016	Ord. No. 3047, § 3, 11-28-88	Repealed by 3746
58.017	Ord. No. 3047, § 3, 11-28-88	Repealed by 3746

Prior Code §	Ordinance History	Herein
58.500	Ord. No. 3047, § 3, 11-28-88	17.128.010
58.501	Ord. No. 3047, § 3, 11-28-88	17.128.020
58.502	Ord. No. 3047, § 3, 11-28-88	17.128.030
58.503	Ord. No. 3047, § 3, 11-28-88	17.128.040
58.504	Ord. No. 3047, § 3, 11-28-88	17.128.050
58.505	Ord. No. 3047, § 3, 11-28-88	17.128.060
58.506	Ord. No. 3047, § 3, 11-28-88	17.128.070
58.507	Ord. No. 3047, § 3, 11-28-88	17.128.080
58.508	Ord. No. 3047, § 3, 11-28-88	17.128.090
58.509	Ord. No. 3047, § 3, 11-28-88	17.128.100
58.510	Ord. No. 3047, § 3, 11-28-88	17.128.110
58.511	Ord. No. 3047, § 3, 11-28-88	17.128.120
58.512	Ord. No. 3047, § 3, 11-28-88	17.128.130
58.513	Ord. No. 3047, § 3, 11-28-88	17.128.140
58.514	Ord. No. 3047, § 3, 11-28-88	17.128.150
58.515	Ord. No. 3047, § 3, 11-28-88	17.128.160
58.516	Ord. No. 3047, § 3, 11-28-88	17.128.170
58.517	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3175, § 2, 12-14-92; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3184, § 1, 5-24-93; Ord. No. 3236, § 1, 9-12-94; Ord. No. 3252, § 4, 2-13-95; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3389, § 1, 10-11-99; Ord. No. 3407, § 1, 6-26-00	17.128.180
59.000	Ord. No. 3047, § 3, 11-28-88	17.144.010
59.010	Ord. No. 3047, § 3, 11-28-88	17.144.020
59.020	Ord. No. 3047, § 3, 11-28-88	17.144.030
59.030	Ord. No. 3047, § 3, 11-28-88	17.144.040
59.040	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3128, § 1, 1-14-91	17.144.050
60.000	Ord. No. 3047, § 3, 11-28-88	17.132.010
60.005	Ord. No. 3047, § 3, 11-28-88	17.132.020
60.010	Ord. No. 3047, § 3, 11-28-88	17.132.030
60.011	Ord. No. 3047, § 3, 11-28-88	17.132.040
60.012	Ord. No. 3047, § 3, 11-28-88	17.132.050
60.013	Ord. No. 3047, § 3, 11-28-88	17.132.060
60.014	Ord. No. 3047, § 3, 11-28-88	17.132.070
60.015	Ord. No. 3047, § 3, 11-28-88	17.132.080
60.016	Ord. No. 3047, § 3, 11-28-88	17.132.090
60.017	Ord. No. 3047, § 3, 11-28-88	17.132.100
60.020	Ord. No. 3047, § 3, 11-28-88	17.132.110

Prior Code §	Ordinance History	Herein
60.022	Ord. No. 3047, § 3, 11-28-88	17.132.120
60.023	Ord. No. 3047, § 3, 11-28-88	17.132.130
60.026	Ord. No. 3047, § 3, 11-28-88	17.132.140
60.027	Ord. No. 3047, § 3, 11-28-88	17.132.150
60.028	Ord. No. 3047, § 3, 11-28-88	17.132.160
60.050	Ord. No. 3047, § 3, 11-28-88	17.132.170
60.051	Ord. No. 3047, § 3, 11-28-88	17.132.170
60.052	Ord. No. 3047, § 3, 11-28-88	17.132.170
60.080	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3278, § 1, 4-8-96; Ord. No. 3389, § 1, 10-11-99	17.132.180
70.000	Ord. No. 3047, § 3, 11-28-88	17.148.010
70.010	Ord. No. 3047, § 3, 11-28-88	17.148.010
70.020	Ord. No. 3047, § 3, 11-28-88	17.148.010
70.030	Ord. No. 3047, § 3, 11-28-88	17.148.010
73.000	Ord. No. 3047, § 3, 11-28-88	17.148.020
73.100	Ord. No. 3047, § 3, 11-28-88	17.148.020
73.120	Ord. No. 3047, § 3, 11-28-88	17.148.020
73.200	Ord. No. 3047, § 3, 11-28-88	17.148.020
73.300	Ord. No. 3047, § 3, 11-28-88	17.148.020
73.330	Ord. No. 3047, § 3, 11-28-88	17.148.020
73.400	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3128, § 1, 1-14-91; Ord. No. 3138, § 2, 6-24-91; Ord. No. 3145, § 1, 11-12-91; Ord. No. 3175, § 1, 12-14-92; Ord. No. 3183, § 1, 5-10-93; Ord. No. 3252, § 4, 2-13-95; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3389, § 1, 10-11-99	17.148.020
74.000	Ord. No. 3047, § 3, 11-28-88	17.148.030
74.010	Ord. No. 3047, § 3, 11-28-88	17.148.030
74.020	Ord. No. 3047, § 3, 11-28-88	17.148.030
74.030	Ord. No. 3047, § 3, 11-28-88	17.148.030
74.040	Ord. No. 3047, § 3, 11-28-88	17.148.030
74.050	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3145, § 1, 11-12-91; Ord. No. 3271, § 1, 11-27-95; Ord. No. 3389, § 1, 10-11-99; Ord. No. 3407, § 1, 6-26-00	17.148.030
75.010	Ord. No. 3047, § 3, 11-28-88	17.148.040
75.020	Ord. No. 3047, § 3, 11-28-88	17.148.040

Prior Code §	Ordinance History	Herein
75.021	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3128, § 1, 1-14-91; Ord. No. 3145, § 1, 11-12-91	17.148.040
80.010	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3145, § 1, 11-12-91	17.148.050
80.020	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3128, § 1, 1-14-91	17.148.050
81.010	Ord. No. 3047, § 3, 11-28-88	17.148.060
81.020	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3389, § 1, 10-11-99	17.148.060
82.010	Ord. No. 3047, § 3, 11-28-88	17.148.070
82.020	Ord. No. 3047, § 3, 11-28-88; Ord. No. 3183, § 1, 5-10-93	17.148.080
82.030	Ord. No. 3047, § 3, 11-28-88	17.148.090
82.040	Ord. No. 3047, § 3, 11-28-88	17.148.100
82.050	Ord. No. 3047, § 3, 11-28-88	17.148.110

As of Supplement No. 19, this table will no longer be updated.

ORDINANCE LIST

Beginning with Supplement No. 19, this table will be replaced with the "Code Comparative Table and Disposition List."

Ordinance Number	
3441	Annexation (Special)
3442	Annexation (Special)
3443	Rezone (Special)
3444	Vacation (Special)
3445	Amends zoning code § 58.508, zoning (17.128)
3446	Amends zoning code §§ 20.010(34), 40.011(b), 40.012(a), 40.013(d), 40.111(b), 40.112(g), 40.211(f), 40.212(c), 40.311(b), 40.312(b), 40.313(c), 40.411(a), 40.412(a), 40.413(d), 40.511(c), 40.512(a), 40.513(f), 41.100(a), 41.112(b), 41.211(a), 41.212(a), 41.311(a), 41.312(a), 41.411(a), 41.412(a), 41.413(f), 41.511(b), 41.512(a), 41.513(f), 41.611(b), 41.612(d), 41.613(b), 45.011(c), 45.013(e), 51.000(a)—(f), 51.010, zoning (17.04, 17.12, 17.16, 17.20, 17.24, 17.28, 17.32, 17.36, 17.40, 17.44, 17.48, 17.52, 17.56, 17.84, 17.116)
3447	Annexation (Special)
3448	Rezone (Special)
3449	Bond issuance (Special)
3450	Annexation (Special)
3451	Special election submittal (Special)
3452	Extends franchise agreement with Qwest Communications (Special)
3453	Amends Ord. 3409, Sanitation Department Fee Schedule (Not Codified)
3454	Repeals and replaces Ch. 21 [Ch. 8.44], (8.44)
3455	Revises sanitation fee schedule (Not Codified)
3456	Amends Ord. 3438, defining terms and conditions of employment for non-uniformed employees (Special)
3457	Amends Ch. 40 1/2 [Ch. 5.68], tattoo establishments (5.68)
3458	Annexation (Special)
3459	Rezones (Special)
3460	Amends § 26-50 [5.08.250], body art establishment license fees (5.08)
3461	Amends § 2-25 [2.04.060], meetings of city council (2.04)
3462	Amends § 2-30 [2.04.050], standing committee (2.04)
3463	Adds § 29-31 [8.60.035], care and maintenance of right-of-way properties (8.60)
3464	Annexation (Special)
3465	Redefines ward boundaries (Special)
3466	Annexation (Special)
3467	Annexation (Special)
3468	Annexation (Special)
3469	Amends § 2-79 [Adds § 2.08.010], city council appointment (2.08)
3470	Amends § 4-6 [5.12.060], sales and consumption restrictions (5.12)
3471	Annexation (Special)
3472	Annexation (Special)
3473	Annexation (Special)
3474	Amends § 35-51 [2.88.010], sale of unclaimed articles (2.88)

Ordinance Number	
3475	(Not Codified)
3476	Amends §§ 20.010, 43.113(c), 50.000, 55.060(d), 58.013, 58.014, 58.015, 58.016 and 74.050 [17.04.040, 17.72.020(c), 17.116.010, 17.116.120(d), 17.136.050, 17.136.060, 17.136.070, 17.136.080 and 17.148.030], zoning (17.04, 17.72, 17.116, 17.148)
3477	Amends § 52.00 [17.116.030], zoning (17.116)
3478	Annexation (Special)
3479	Adds Ch. 34 1/2 [Ch. 5.85], events and activities on city-owned properties (5.85)
3480	Amends sanitation fee schedule (Not Codified)
3481	Adds § 40.450 [17.28.060]; amends §§ 40.313, 40.320, 40.330, 40.340, 40.413, 40.420, 40.430 and 40.440 [17.24.020, 17.24.030, 17.24.040, 17.24.050, 17.28.020, 17.28.040, 17.28.060]; repeals §§ 40.500, 40.510, 40.511, 40.512, 40.513, 40.520, 40.530 and 40.540 [17.32.010, 17.32.020, 17.32.030, 17.32.040 and 17.32.050], zoning (17.24, 17.28)
3482	Amends Street and Site Planning and Design Manual (Special)
3483	Amends subdivision/development regulations (Not Codified)
3484	Changes land use designation for certain property (Special)
3485	Changes land use designation for certain property (Special)
3486	Appropriation of funds (Special)
3487	Defines terms and conditions for sworn police officers (Not Codified)
3488	Defines terms and conditions for non-uniformed employees (Special)
3489	Amends §§ 4-2 and 4-3 [5.12.020 and 5.12.030], issuance of satellite winery permits (5.12)
3490	Changes land use designation for certain property (Special)
3491	Changes land use designation for certain property (Special)
3492	Changes land use designation for certain property (Special)
3493	Changes land use designation for certain property (Special)
3494	Annexation (Special)
3495	Annexation (Special)
3496	Annexation (Special)
3497	Annexation (Special)
3498	Amends §§ 20.010, 60.000, 60.026, 60.050, and 60.051 [17.04.040, 17.132.010, 17.132.140 and 17.132.170]; adds § 60.030 [17.132.165]; repeals §§ 60.052 and 60.080 [17.132.170 and 17.132.180], zoning (17.04, 17.132)
3499	Annexation (Special)
3500	Annexation (Special)
3501	Re-designates land use designation for certain property (Special)
3502	Re-designates land use designation for certain property (Special)
3503	Re-designates land use designation for certain property (Special)
3504	Adds § 30-41 [8.56.070], engine compression brake use prohibited (8.56)
3505	Re-designates land use designation for certain property (Special)
3506	Annexation (Special)
3507	Annexation (Special)
3508	Annexation (Special)
3509	Adds § 10-5 [15.08.030], building permit fees (15.08)

Ordinance Number	
3510	Adds §§ 10-6, 10-12, 10-13, 10-17, 10-18, 10-27, 10-28, 10-40 and 10-41 [15.08.050, 15.10.010, 15.10.020, 15.20.015, 15.20.030, 15.22.010, 15.22.020, 15.38.010 and 15.38.020]; amends §§ 10-10, 10-11, 10-14, 10-15, 10-16, 10-20, 10-21, 10-25, 10-26 [15.08.010, 15.08.050, 15.12.020, 15.16.010, 15.16.020, 15.20.010 and 15.20.020], zoning (15.08, 15.20, 15.38)
3511	Rezones (Special)
3512	Sanitation fees (Special)
3513	Amends Ch. 8.44, solid waste (8.44)
3514	Adds Ch. 1.01, code adoption (1.01)
3515	Mayor Compensation (Special)
3516	Rezones (Special)
3517	Rezones (Special)
3518	Vacation (Special)
3519	Rezone (Special)
3520	Rezone (Special)
3521	Annexation (Special)
3522	Rezone (Special)
3523	Budget appropriation (Special)
3524	Sanitation fees (Special)
3525	Adds Ch. 2.29, police community service officers
3526	Police officer employment terms (Special)
3527	Non-uniform employee terms (Special)
3528	Amends major street plan map (Special)
3529	Adds § 8.40.063, sidewalk cafes (8.40)
3530	Amends police officer employment terms (Special)
3531	Amends non-uniformed employee terms (Special)
3532	Amends Ch. 13.08, cross-connections; adds § 13.08.160, inside water meter sets (13.08)
3533	Annexation (Special)
3534	Rezone (Special)
3535	Annexation (Special)
3536	Annexation (Special)
3537	Vacation (Special)
3538	Annexation (Special)
3539	Rezone (Special)
3540	Annexation (Special)
3541	Annexation (Special)
3542	Annexation (Special)
3543	Annexation (Special)
3544	Annexation (Special)
3545	Annexation (Special)
3546	Annexation (Special)
3547	Annexation (Special)
3548	Annexation (Special)
3549	Annexation (Special)
3550	Annexation (Special)
3551	Annexation (Special)
3552	Annexation (Special)
3553	Annexation (Special)
3554	Adds Ch. 5.13, keg registration program (5.13)
3555	Rezone (Special)
3556	Rezone (Special)
3557	Rezone (Special)
3558	Rezone (Special)
3559	Annexation (Special)
3560	Adds § 2.40.035, traffic school (2.40)
3561	Rezone (Special)

Ordinance Number	
3562	Repeals and replaces Ch. 2.52, personnel commission (2.52)
3563	Amends § 2.04.040, city council vacancies (2.04)
3564	Annexation (Special)
3565	Rezone (Special)
3566	Annexation (Special)
3567	Annexation (Special)
3568	Annexation (Special)
3569	Annexation (Special)
3570	Annexation (Special)
3571	Annexation (Special)
3572	Annexation (Special)
3573	Annexation (Special)
3574	Revises water rates (Not Codified)
3575	Rezone (Special)
3576	Amends § 5.12.060, alcoholic beverages (5.12)
3577	FY 2005 budget appropriation (Special)
3578	Adds § 9.16.100, open house assembly (9.16)
3579	Annexation (Special)
3580	Rezone (Special)
3581	Amends sanitation fees (Special)
3582	Amends police officer employment terms (Special)
3583	Amends non-uniformed employee terms (Special)
3584	Rezone (Special)
3585	Amends §§ 8.60.050, 8.60.080, 8.60.090, 8.60.140, 8.60.170 and 8.60.180, nuisances (8.60)
3586	Surface water drainage utility (Special)
3587	Adds § 9.12.090, offenses against property (9.12)
3588	Repeals and replaces Ch. 10.60; repeals § 10.52.160, parking limitations, stopping, standing and parking generally (10.60)
3589	Annexation (Special)
3590	Amends § 10.32.020, speed limits (10.32)
3591	Adds Ch. 17.14, zoning (17.14)
3592	Repeals and replaces § 5.12.090, alcoholic beverages (5.12)
3593	Annexation (Special)
3594	Annexation (Special)
3595	Annexation (Special)
3596	Rezone (Special)
3597	Modifies certain provisions of adopted PUD (Zoning) (Special)
3598	Adds Ch. 17.105, restricted use control area overlay district (17.105)
3599	Adds Ch. 17.106, transit facility restricted use control area overlay district (17.106)
3600	Amends various sections of city-county subdivision/development regulations (Special)
3601	Adds Ch. 15.50, historic design guideline (15.50)
3602	Annexation (Special)
3603	Amends Article IV-Community facility fees of city-county subdivision/development regulations (Special)
3604	Adds § 10.32.060, speed limits (10.32)
3605	Rezone (Special)
3606	Annexation (Special)
3607	Annexation (Special)
3608	Rezone (Special)

Ordinance Number	
3609	Amends §§ 5.52.020—5.52.040; amends and renumbers §§ 5.52.060—5.52.100, 5.52.120, 5.52.140 and 5.52.160 to be §§ 5.52.050—5.52.090, 5.52.110, 5.52.130 and 5.52.150; renumbers §§ 5.52.110, 5.52.130, 5.52.150 and 5.52.170 to be §§ 5.52.100, 5.52.120, 5.52.140 and 5.52.160; repeals § 5.52.050, massage establishments (5.52)
3610	Amends §§ 5.04.030 and 5.08.140, business licenses and regulations (5.04, 5.08)
3611	Annexation (Special)
3612	Amends § 10.32.030, speed limits (10.32)
3613	Repeals and replaces Ch. 12.16, trees and shrubs (12.16)
3614	Amends §§ 5.04.030 and 5.08.290, business licenses (5.04, 5.08)
3615	Repeals and replaces Ch. 5.80, tree maintenance businesses (5.80)
3616	Annexation (Special)
3617	Amends §§ 17.36.020, 17.40.020, 17.44.020, 17.48.020, 17.52.020 and 17.56.020, zoning (17.36, 17.40, 17.44, 17.48, 17.52, 17.56)
3618	Rezone (Special)
3619	Annexation (Special)
3620	Amends § 10.32.020, speed limits (10.32)
3621	Adds Ch. 15.26; amends § 15.44.020; repeals and replaces §§ 15.08.010, 15.08.020, 15.20.030, 15.20.040 and Chs. 15.10, 15.12, 15.16, 15.22, 15.24, 15.36; repeals Ch. 15.40, buildings and construction (15.08, 15.10, 15.12, 15.16, 15.20, 15.22, 15.24, 15.26, 15.36, 15.44)
3622	Repeals and replaces Ch. 8.12, International Fire Code adopted (8.12)
3623	Rezone (Special)
3624	Rezone (Special)
3625	Rezone (Special)
3626	Rezone (Special)
3627	Rezone (Special)
3628	Adds § 2.04.142, mayor and city council (2.04)
3629	Adds § 2.04.145, mayor and city council (2.04)
3630	Vacation (Special)
3631	Annexation (Special)
3632	Annexation (Special)
3633	Annexation (Special)
3634	Annexation (Special)
3635	Annexation (Special)
3636	Adds § 6.08.160, animal care and control regulations (6.08)
3637	Repeals and replaces § 2.84.050, miscellaneous boards and commission (2.84)
3638	Annexation (Special)
3639	Amends sanitation fees (Special)
3640	Rezone (Special)
3641	Annexation (Special)
3642	Rezone (Special)
3643	Annexation (Special)
3644	Annexation (Special)
3645	Annexation (Special)
3646	Annexation (Special)
3647	Rezone (Special)
3648	Rezone (Special)
3649	Amends § 5.12.040, alcoholic beverages (5.12)

Ordinance Number	
3650	Amends various sections of city-county subdivision/development regulations 2000 (Special)
3651	Amends § 5.12.020, alcoholic beverages (5.12)
3652	Rezone (Special)
3653	Vacation (Special)
3654	FY 2006 budget appropriation (Special)
3655	Annexation (Special)
3656	Amends police officer employment terms (Special)
3657	Amends non-uniformed employee terms (Special)
3658	Rezone (Special)
3659	Annexation (Special)
3660	Annexation (Special)
3661	Annexation (Special)
3662	Annexation (Special)
3663	Annexation (Special)
3664	Rezone (Special)
3665	Annexation (Special)
3666	Authorizes special DDA district election (Special)
3667	Annexation (Special)
3668	Annexation (Special)
3669	Amends § 2.29.010, community service officers (2.29)
3670	Rezone (Special)
3671	Amends § 9.16.010, offenses by or against minors (9.16)
3672	Annexation (Special)
3673	Annexation (Special)
3674	Annexation (Special)
3675	Adds § 6.08.170; amends § 6.08.040, animal care and control regulations (6.08)
3676	Annexation (Special)
3677	Rezone (Special)
3678	Annexation (Special)
3679	Rezone (Special)
3680	Amends § 2.88.010, unclaimed property disposition (2.88)
3681	Amends §§ 15.08.020 and 15.10.020, buildings and construction (15.08, 15.10)
3682	Annexation (Special)
3683	Annexation (Special)
3684	Annexation (Special)
3685	Annexation (Special)
3686	Rezone (Special)
3687	Rezone (Special)
3688	Amends §§ 17.04.040, 17.08.010, 17.08.020, 17.48.040, 17.116.010, 17.116.020, 17.116.050, 17.116.060, 17.136.010, 17.136.070, 17.136.090, 17.148.010 and 17.148.030, zoning (17.04, 17.08, 17.48, 17.116, 17.148)
3689	Annexation (Special)
3690	Rezone (Special)
3691	Amends § 2.44.020, juvenile court (2.44)
3692	Rezone (Special)
3693	Annexation (Special)
3694	Rezone (Special)
3695	Annexation (Special)
3696	Rezone (Special)
3697	Annexation (Special)
3698	Rezone (Special)
3699	Amends sanitation fees (Special)
3700	Amends §§ 12.20.010, 12.20.160—12.20.180, 12.20.210, 12.20.230, 12.20.270, 12.20.300—12.20.320; repeals § 12.20.220, cemeteries (12.20)
3701	Amends §§ 5.12.020—5.12.040 and 5.12.070, alcoholic beverages (5.12)

Ordinance Number	
3702	Rezone (Special)
3703	Amends police officer employment terms (Special)
3704	Amends non-uniformed employee terms (Special)
3705	Repeals and replaces Ch. 8.64, smoking in public places (8.64)
3706	Amends § 2.04.142, mayor and city council (2.04)
3707	FY 2007 budget appropriation (Special)
3708	Revises water rates (Special)
3709	Revises BOPU miscellaneous fees (Special)
3710	Annexation (Special)
3711	Annexation (Special)
3712	Annexation (Special)
3713	Annexation (Special)
3714	Amends §§ 5.04.060, 5.04.070, 5.08.010, 5.08.030, 5.08.150—5.08.170, 5.08.210, 5.08.240, 5.08.250, 5.08.270, 5.08.280, 5.16.030, 5.20.030, 5.24.030, 5.28.050, 5.32.040, 5.40.020, 5.48.040, 5.52.040, 5.52.050, 5.52.110, 5.60.030, 5.72.020, 5.76.030 and 5.80.020, business licenses and regulations (5.04, 5.08, 5.16, 5.20, 5.24, 5.28, 5.32, 5.40, 5.48, 5.52, 5.60, 5.72, 5.76, 5.80)
3715	Amends §§ 8.08.020, 8.08.040, 8.20.050, 8.28.020, 8.40.060, 8.40.063, 8.40.070, 8.40.130, 8.40.160 and 8.56.060, health and safety (8.08, 8.20, 8.28, 8.40, 8.56)
3716	Amends § 9.24.110, weapons (9.24)
3717	Amends § 10.80.110, bicycles (10.80)
3718	Rezone (Special)
3719	Rezone (Special)
3720	Repeals and replaces road, street and site planning design standards (Not codified)
3721	Annexation (Special)
3722	Annexation (Special)
3723	Repeals and replaces Ch. 1.16, annexation and infrastructure improvements (1.16)
3724	Rezone (Special)
3725	Annexation (Special)
3726	Rezone (Special)
3727	Annexation (Special)
3728	Rezone (Special)
3729	Rezone (Special)
3730	Amends §§ 17.84.080, 17.124.040 and 17.128.090; renames title of Chs. 17.14 and 17.20, zoning (17.14, 17.20, 17.84, 17.124, 17.128)
3731	Annexation (Special)
3732	Rezone (Special)
3733	Rezone (Special)
3734	Annexation (Special)
3735	Annexation (Special)
3736	Mayor compensation (Special)
3737	Rezone (Special)
3738	Rezone (Special)
3739	Repeals and replaces Ch. 13.24, floodplain and surface water management (13.24)
3740	Rezone (Special)
3741	Rezone (Special)
3742	Rezone (Special)
3743	Rezone (Special)
3744	Annexation (Special)
3745	Rezone (Special)
3746	Repeals and replaces Ch. 17.136, zoning (17.136)

Ordinance Number	
3747	Amends §§ 17.04.040, 17.36.070, 17.40.060, 17.44.070, 17.48.060, 17.52.070, 17.56.060, 17.60.060, 17.64.060, 17.72.060, 17.76.060, 17.84.060, 17.88.050 and 17.96.060, zoning (17.04, 17.36, 17.40, 17.44, 17.48, 17.52, 17.56, 17.60, 17.64, 17.72, 17.76, 17.84, 17.88, 17.96)
3748	Rezone (Special)
3749	Amends § 10.56.090, handicapped parking spaces (10.56)
3750	Repeals Ch. 2.80, handicapped parking space committee (Repealer)
3751	Annexation (Special)
3752	Rezone (Special)
3753	Rezone (Special)
3754	Adds Ch. 17.118, large commercial development standards (17.118)
3755	Amends § 2.04.060, mayor and city council (2.04)
3756	Annexation (Special)
3757	Annexation (Special)
3758	Rezone (Special)
3759	Vacation (Special)
3760	Revises water rates (Special)
3761	Amends sanitation fee schedule (Special)
3762	Amends sworn police officers' employment terms (Special)
3763	Amends non-uniformed employees' employment terms (Special)
3764	FY 2008 budget appropriation (Special)
3765	Annexation (Special)
3766	Annexation (Special)
3767	Rezone (Special)
3768	Rezone (Special)
3769	Amends § 8.44.030, solid waste (8.44)
3770	Amends §§ 12.04.080 and 15.08.030; repeals § 12.04.090, streets, sidewalks and driveways generally, international building code adopted (12.04, 15.08)
3771	Annexation (Special)
3772	Rezone (Special)
3773	Rezone (Special)
3774	IDRB Bonds, St. Mary's School Project (Special)
3775	Rezone (Special)
3776	Amends § 2.76.020, downtown development authority (2.76)
3777	Rezone (Special)
3778	Amends road, street and site planning design standards (Special)
3779	Annexation (Special)
3780	Annexation (Special)
3781	Amends § 8.60.160, nuisances (8.60)
3782	Refunding Revenue Water Bonds, Series 2007 (Special)
3783	Amends Ord. 2832, zoning (Special)
3784	Amends sections (community facility fees) of subdivision regulations (Special)
3785	Amends § 5.12.060, alcoholic beverages (5.12)
3786	Adds § 17.116.025; amends § 17.116.020, zoning (17.116)
3787	Annexation (Special)
3788	Amends Ch. 2.56, planning commission (2.56)
3789	Rezone (Special)
3790	Rezone (Special)
3791	Annexation (Special)
3792	Annexation (Special)

Ordinance Number	
3793	Annexation (Special)
3794	Annexation (Special)
3795	Rezone (Special)
3796	Rezone (Special)
3797	Amends § 2.29.020, community service officers (2.29)
3798	Amends Ord. 3726, rezone (Special)
3799	Amends Ords. 3679 and 3748, rezone (Special)
3800	Rezone (Special)
3801	Amends §§ 6.04.020, 6.04.030, 6.08.030, 6.08.040, 6.08.170 and 6.20.020; repeals § 6.08.080, animals (6.04, 6.08, 6.20)
3802	Amends §§ 17.04.040, 17.60.090, 17.64.080, 17.68.080, 17.72.080, 17.76.080, 17.84.080, 17.88.080 and 17.128.100, zoning (17.04, 17.60, 17.64, 17.68, 17.72, 17.76, 17.84, 17.88, 17.128)
3803	Alley vacation (Special)
3804	Alley vacation (Special)
3805	Alley vacation (Special)
3806	Amends § 40.035, Article IV community facility fees, subdivision development regulations (Special)
3807	Amends sanitation fee schedules (Special)
3808	FY 2009 budget appropriation (Special)
3809	Revises septic waste dump and liquid commercial waste rates (BOPU) (Special)
3810	Revises administrative fees, service charges, penalties (BOPU) (Special)
3811	Revises tap, system development, pump station and other related fees (BOPU) (Special)
3812	Revises sewer rates (BOPU) (Special)
3813	Revises sewer rates (BOPU) (Special)
3814	Amends nonuniformed employee terms (Special)
3815	Amends police officer employment terms (Special)
3816	Amends §§ 8.40.020—8.40.060, food and food service establishments (8.40)
3817	Annexation (Special)
3818	Amends § 2.04.160, mayor and city council (2.04)
3819	Annexation (Special)
3820	Annexation (Special)
3821	Annexation (Special)
3822	Annexation (Special)
3823	Rezone (Special)
3824	Rezone (Special)
3825	Rezone (Special)
3826	Alley vacation (Special)
3827	Annexation (Special)
3828	Annexation (Special)

Beginning with Supplement No. 19, this table will be replaced with the "Code Comparative Table and Disposition List."

CODE COMPARATIVE TABLE AND DISPOSITION LIST

This is a numerical listing of the ordinances of Cheyenne, Wyoming beginning with Supplement No. 19, included in this Code.

Ordinance Number	Date	Description	Section	Section this Code
3829	10-13-2008	Vacation		Omit
3830	10-27-2008	Mayor and city council	1	2.04.142(B), (C)
3831	11-10-2008	Mayor and city council	1	2.04.040(E) 2.04.160(A) 2.04.170
3832	11-24-2008	Rezone		Omit
3833	11-24-2008	Zoning	2	17.60.020(B)
			3	17.64.020(B)
			4	17.84.020(B)
			5	17.88.020(B)
			6	17.72.020(C)
3834	12-08-2008	Animals	1	6.04.020
			2	6.12 (Ch.)
			3	6.12.010
			4	6.12.020
			5	6.12.030
			6	6.16.020
3835	12-08-2008	Amends Ord. 3733, rezone		Omit
3836	12-08-2008	Rezone		Omit
3837	12-22-2008	Nuisances	1 Added	8.60.160(D)
3838	01-12-2009	Rezone		Omit
3839	01-12-2009	Zoning	1 Added	17.107.010—17.107.030
3840	01-12-2009	Annexation		Omit
3841	02-09-2009	Rezone		Omit
3842	02-23-2009	Rezone		Omit
3843	05-11-2009	Annexation		Omit

Ordinance Number	Date	Description	Section	Section this Code
3844	06-08-2009	Business licenses and regulations	1	5.04.040(B), 5.04.060(B), 5.04.070(B), 5.04.090(A), (C), 5.08.010 (A), (D), 5.08.030, 5.08.150, 5.08.160, 5.08.170, 5.08.210(A), 5.08.240, 5.08.250(B), (C) 5.08.270, 5.08.280, 5.12.030(A), 5.16.030(A), 5.20.030, 5.24.030, 5.28.050(C), 5.32.040(A), 5.40.020(C), 5.48.040(A), 5.48.090(B), 5.52.040(A), 5.52.050(A), 5.52.110(A), (B), 5.52.160(A), 5.56.030(A), 5.60.030, 5.72.020(A), (B), 5.76.030(C), 5.80.020(A)

Ordinance Number	Date	Description	Section	Section this Code
3845	06-08-2009	Health and safety	1	8.08.040(C), 8.20.050(A), 8.24.070(A)—(C) 8.28.020, 8.40.060, 8.40.063(B), 8.40.070(B), (C) 8.40.130(B)(2), 8.40.160, 8.56.060(A)
3846	06-08-2009	Weapons	1	9.24.110
3847	06-08-2009	Cemeteries	1	12.20.170, 12.20.210, 12.20.300, 12.20.390
3848	06-08-2009	Annexation		Omit
3849	06-08-2009	Annexation		Omit
3850	06-08-2009	Amends Ordinance #3799, rezone		Omit
3851	06-08-2009	Amends Sanitation fee		Omit
3852	06-08-2009	Revises BOPU administrative fees, service charges and penalties		Omit
3853	06-08-2009	Revises water rates		Omit
3854	06-08-2009	Revises septic waste dump rates and liquid commercial waste rates		Omit
3855	06-08-2009	Revises tap fees, system development fees, pumpstation fees and other related fees		Omit
3856	06-08-2009	Revises sewer rates		Omit
3857	06-16-2009	FY2010 budget appropriation		Omit
3858	06-22-2009	Zoning	2	17.04.040
			3	17.28.090(G)
3859	06-22-2009	Zoning	1	17.04.040, 17.128.010
3860	06-22-2009	Amends non-uniformed employees' employment terms		Omit
3861	06-22-2009	Amends sworn police officers' employment terms		Omit
3862	06-22-2009	Building safety department	1	2.36.010,
			Added	2.36.020

Ordinance Number	Date	Description	Section	Section this Code
3863	06-22-2009	Contractors	1	5.44.030(B), 5.44.040(B)
3864	06-22-2009	Buildings and construction	2 Added	15.04.010(C)
				15.04.020(A)
			Added	15.04.030
			3	15.08.010—15.08.030,
			4	15.10.010, 15.10.020
			5	15.12.010, 15.12.020
			6	15.16.010, 15.16.020
			7	15.20.010, 15.20.030, 15.20.040
			8	15.22.010, 15.22.020
			9 Rpld	15.24.010, 15.24.020
			Added	15.24.010, 15.24.020
			10 Rpld	15.26.010, 15.26.020
			Added	15.26.010, 15.26.020
3865	06-22-2009	International Fire Code	1	8.12.010—8.12.030
			Rpld	8.12.040
3866	07-13-2009	Rezone		Omit
3867	07-27-2009	Annexation		Omit
3868	08-10-2009	Rezone		Omit
3869	09-14-2009	Special DDA district election		Omit
3870	09-14-2009	Rules of the road	1 Added	10.24.170

Ordinance Number	Date	Description	Section	Section this Code
3871	10-12-2009	Body art establishments and operations	1	5.68.010—5.68.050, 5.68.070, 5.68.090, 5.68.100, 5.68.120
			Added	5.68.135
				5.68.140
				5.68.150
3872	10-12-2009	Business licenses and regulations	1	5.04.030, 5.08.250
3873	10-12-2009	Handicapped parking spaces	1 Rpld	10.56.060, 10.56.100
3874	10-12-2009	Rezone		Omit
3875	10-12-2009	Rezone		Omit
3876	11-09-2009	Rezone		Omit
3877	12-14-2009	Offenses against public peace and decency	1 Rpld	9.08.030
			2 Added	9.08.030
3878	12-14-2009	Rezone		Omit
3879	12-14-2009	Amends sanitation fee schedule		Omit
3880	01-25-2010	Amends non-uniformed employees' employment terms		Omit
3881	01-25-2010	Amends sworn officers' employment terms		Omit
3882	02-08-2010	Animals	1	6.08.020
			2	6.20.010
3883	02-08-2010	Rezone		Omit
3884	03-08-2010	Abandoned residential structures	1 Added	8.68.010—8.68.120
3885	03-22-2010	Annexation		Omit
3886	04-12-2010	Rezone		Omit
3887	04-12-2010	Amends sanitation fee schedule		Omit
3888	04-12-2010	Alcoholic beverages	1	5.12.060(C)
3889	04-26-2010	Annexation		Omit
3890	05-10-2010	Rezone		Omit
3891	05-24-2010	Rezone		Omit
3892	06-14-2010	Fiscal year 2011 budget appropriation		Omit

Ordinance Number	Date	Description	Section	Section this Code
3893	06-14-2010	Revises water rates (BOPU)		Omit
3894	06-14-2010	Revises sewer rates (BOPU)		Omit
3895	06-14-2010	Revises tap, system development and pump station fees; other related fees (BOPU)		Omit
3896	06-14-2010	Revises septic waste dump rates and commercial waste rates (BOPU)		Omit
3897	06-28-2010	Amends non-uniformed employee terms and conditions of employment		Omit
3898	06-28-2010	Amends uniformed police officer terms and conditions of employe-ment		Omit
3899	06-28-2010	Amends sanitation fee schedules		Omit
3900	06-28-2010	Vacates alley, parcels, ROW in Civitan Park/Civitan Place		Omit
3901	07-26-2010	Annexation		Omit
3902	08-09-2010	Rezone		Omit
3903	08-09-2010	Rezone		Omit
3904	08-09-2010	Rezone		Omit
3905	09-13-2010	Public transportation	1 Rpld	5.72.010—5.72.040
			Added	5.72.010—5.72.110
3906	09-27-2010	State traffic laws adopted	1 Added	10.08.010(H)
3907	09-27-2010	Adopts water rates for users of sys-tem for mineral exploration purposes		Omit
3908	10-11-2010	Rezone		Omit
3909	11-22-2010	Annexation		Omit
3910	12-13-2010	Rezone		Omit
3911	12-13-2010	Rezone		Omit
3912	01-24-2011	Mayor and city council	1	2.04.060
3913	02-28-2011	Offenses by or against minors	1	9.16.100
3914	03-14-2011	Amends compensation schedule for members of city council		Omit
3915	03-28-2011	Alcoholic beverages	1	5.12.060
3916	03-28-2011	Solid waste	1 Rpld	8.44.010—8.44.080
			2 Added	8.44.010—8.44.080

Ordinance Number	Date	Description	Section	Section this Code
3917	03-28-2011	Circuses, carnivals and amusement rides	1 Rnmd	Ch. 5.36
			2, 3	5.36.010, 5.36.020
			4 Rpld	5.36.040
			5—12	5.36.050—5.36.120
			13 Rpld	5.36.130
			14	5.36.140
3918	03-28-2011	Submits ballot question to qualified property owners with DDA district		Omit
3919	04-11-2011	Amends Ord. No. 3891, zoning conditions		Omit
3920	05-09-2011	Rezone		Omit
3921	06-13-2011	Annexation		Omit
3922	06-13-2011	Amends major street plan		Omit
3923	06-20-2011	Fiscal year 2012 budget appropriation		Omit
3924	06-27-2011	Amends sanitation fee schedules		Omit
3925	06-27-2011	Amends non-uniformed employee terms and conditions of employment		Omit
3926	06-27-2011	Amends uniformed police officer terms and conditions of employment		Omit
3927	07-11-2011	Rezone		Omit
3928	07-11-2011	Rezone		Omit
3929	07-11-2011	Zoning	1 Added	17.116.155
3930	08-08-2011	Rezone		Omit
3931	10-10-2011	Rezone		Omit
3932	10-10-2011	Rezone		Omit
3933	10-10-2011	Contractors	1	5.44.010—5.44.050
3934	10-10-2011	Building code board of appeals	1	15.04.020
3935	10-24-2011	Annexation		Omit
3936	11-14-2011	Zoning	1 Rpld	17.80.080
			Added	17.80.080
3937	12-12-2011	Annexation		Omit
3938	12-12-2011	Amends existing PUD ordinance, Cole Shopping Center		Omit

Ordinance Number	Date	Description	Section	Section this Code
3939	12-12-2011	Rezone		Omit
3940	12-12-2011	Rezone		Omit
3941	01-09-2012	Annexation		Omit
3942	01-09-2012	Amusements, business license fees for movie theaters	1	5.08.010
3943	01-23-2012	Repeals Ordinance No. 3408, as amended, which adopted the "Cheyenne-Laramie County Subdivision / Development Regulations 2000," and repeals Ordinance No. 3720, as amended, which adopted the "2006 road, street, and site planning design standards," and repeals Title 17, Zoning	1 Rpld	Chs. 17.04—17.148
3944	03-12-2012	Rezone		Omit
3945	04-09-2012	Rezone		Omit
3946	04-09-2012	Rezone		Omit
3947	05-29-2012	Amends sanitation fee schedule		Omit
3948	06-11-2012	Revises BOPU water/sewer rates; tap system development and administrative fees; service charges/penalties, and septic and commercial dump rates		Omit
3949	06-11-2012	Rezone		Omit
3950	06-19-2012	FY2013 budget appropriation		Omit
3951	06-25-2012	Amends nonuniformed employees terms and conditions of employment		Omit
3952	06-25-2012	Amends uniformed police officer terms and conditions of employment		Omit
3953	07-09-2012	Rezone		Omit
3954	07-09-2012	Rezone		Omit
3955	07-09-2012	Annexation		Omit
3956	08-13-2012	Rezone		Omit
3957	09-24-2012	Stopping, standing and parking generally	1	10.52.020
			2 Rpld	10.52.190—10.52.210, 10.52.230
			3 Added	10.52.190
			4 Added	10.52.200

Ordinance Number	Date	Description	Section	Section this Code
3958	10-08-2012	Vacates portion of right-of-way		Omit
3959	10-08-2012	Rezone		Omit
3960	10-08-2012	Rezone		Omit
3961	10-08-2012	Rezone		Omit
3962	10-22-2012	Animal care and control regulations	1 Added	6.08.180
3963	12-20-2012	Rezone		Omit
3964	01-14-2013	Rezone		Omit
3965	01-14-2013	Grants franchise to High West Energy, Inc.		Omit
3966	01-14-2013	Grants franchise to Cheyenne Light, Fuel and Power, Inc.		Omit
3967	01-28-2013	Trees and shrubs	1	12.16.020
3968	02-11-2013	Rezone		Omit
3969	02-11-2013	Rezone		Omit
3970	02-11-2013	Rezone		Omit
3971	04-08-2013	Rezone		Omit
3972	05-13-2013	Rezone		Omit
3973	05-13-2013	Rezone		Omit
3974	05-13-2013	Vacation		Omit
3975	06-10-2013	BOPU water/sewer rates; tap system development and administrative fees; service charges/penalties, and septic and commercial waste dump rates		Omit
3976	06-10-2013	FY2014 budget appropriation		Omit
3977	06-10-2013	Rezone		Omit
3978	06-10-2013	Alarm systems	1	8.08.010, 8.08.020
			Added	8.08.025
				8.08.030, 8.08.040
			Added	8.08.055, 8.08.060, 8.08.070
			Rnbd	8.08.060
			as	8.08.080
3979	06-10-2013	Grants franchise to Cheyenne Light, Fuel and Power (natural gas)		Omit
3980	06-24-2013	Amends nonuniformed employees terms and conditions of employment		Omit

Ordinance Number	Date	Description	Section	Section this Code
3981	06-24-2013	Amends uniformed employees terms and conditions of employment		Omit
3982	06-24-2013	Amends sanitation fee schedule		Omit
3983	07-08-2013	Body Art Establishments and Operations	1	5.68.020
			Added	5.68.022
3984	07-08-2013	Business license fees	1 Added	5.08.250(E)
3985	07-08-2013	Rezone		Omit
3986	07-08-2013	Rezone		Omit
3987	07-22-2013	Rezone		Omit
3988	07-22-2013	Amends Unified Development Code; high priority quick fixes (from annual 2013 review)		Omit
3989	08-12-2013	Rezone		Omit
3990	08-12-2013	Rezone		Omit
3991	08-12-2013	Vacation		Omit
3992	08-12-2013	Vacation		Omit
3993	08-12-2013	Rezone		Omit
3994	08-26-2013	Annexation		Omit
3995	08-26-2013	Solid waste	2	8.44.010(D)
3996	09-09-2013	Rezone		Omit
3997	09-09-2013	Rezone		Omit
3998	09-09-2013	Buildings and construction	2	15.08.010—15.08.030
			3 Added	15.09.010, 15.09.020
			4	15.10.010, 15.10.020
			5	15.12.010, 15.12.020
			6	15.16.010, 15.16.020
			7	15.20.010
			8	15.22.010, 15.22.020
			9	15.24.010
			10	15.26.010, 15.26.020
3999	09-23-2013	Annexation		Omit

Ordinance Number	Date	Description	Section	Section this Code
4000	10-14-2013	Amends Unified Development Code—Animal care—hospital/clinic; kennel		Omit
4001	10-28-2013	Amends Unified Development Code—Annexations		Omit
4002	10-28-2013	Wastewater treatment and disposal	1 Rpld	13.20.010—13.20.460
			Added	13.20.010—13.20.850
4003	10-28-2013	Sale of tobacco to persons under age of 18 prohibited	1	9.16.070(A)
4004	11-12-2013	International Fire Code	2	8.12.010—8.12.030
			3	8.16.030
4005	11-12-2013	Fire protection and regulations	2	8.20.050
			3	8.24.010, 8.24.020, 8.24.060, 8.24.080, 8.24.100, 8.24.110
			4	8.28.020, 8.28.030, 8.24.050, 8.28.060
			5 Rpld	8.32.020
4006	11-12-2013	Fire department personnel and International Fire Code board of appeals	1	2.32.020(A), 2.84.050
4007	12-09-2013	Rezone		Omit
4008	12-09-2013	Rezone		Omit
4009	12-09-2013	Towing and wrecker recovery operations	1 Added	5.78.010—5.78.070
			2	5.04.030
			3	5.08.270
			4 Rpld	10.12.190
4010	12-09-2013	Annexation		Omit
4011	12-09-2013	Annexation		Omit
4012	12-23-2013	2013 refunding revenue note and portion Series 2007 water bonds (board of public utilities)		Omit
4013	12-23-2013	Sanitation fee schedule		

Ordinance Number	Date	Description	Section	Section this Code
4014	01-13-2014	Rezone		Omit
4015	01-13-2014	Rezone		Omit
4016	01-13-2014	Rezone		Omit
4017	02-10-2014	Amends Unified Development Code, exemptions from sign permit requirements		Omit
4018	02-10-2014	Rezone		Omit
4019	02-10-2014	Vacation		Omit
4020	02-24-2014	Amends Unified Development Code, increases maximum administrative adjustment		Omit
4021	02-24-2014	Amends Unified Development Code, urban loft		Omit
4022	03-10-2014	Rezone		Omit
4023	03-10-2014	Rezone		Omit
4024	05-12-2014	Amends Unified Development Code, alternative compliance for reduced residential minimum front setback		Omit
4025	06-09-2014	Revises BOPU water/sewer rates, tap and system development fees; administrative fees; service charges/penalties, and septic and commercial waste dump rates		Omit
4026	06-09-2014	Downtown development authority	1	2.76.020(A)
4027	06-09-2014	FY2015 Budget appropriation		Omit
4028	06-23-2014	Amends Unified Development Code, animal care-hospital/clinic in CBD district		Omit
4029	06-23-2014	Amends non-uniformed employees terms and conditions of employment		Omit
4030	06-23-2014	Amends sworn officers, police department, terms and conditions of employment		Omit
4031	07-28-2014	Annexation		Omit
4032	07-28-2014	Rezone		Omit
4033	07-28-2014	Towing and wrecker recovery operations	1	5.78.030 (B)(5)
4034	07-28-2014	Amends Unified Development Code, automatic irrigation option for LI and HI zones		Omit

Ordinance Number	Date	Description	Section	Section this Code
4035	07-28-2014	Circuses, carnivals and amusement rides	1	5.36.070
			2	5.36.080(A)
			3	5.36.090
			4	5.36.110(A)
			5	5.36.120 (A)(3)
4036	08-11-2014	Rezone		Omit
4037	08-11-2014	Annexation		Omit
4038	08-11-2014	Annexation		Omit
4039	08-25-2014	Amends Unified Development Code, tree point values		Omit
4040	09-08-2014	Rezone		Omit
4041	09-08-2014	Annexation		Omit
4042	10-13-2014	Vacation		Omit
4043	10-13-2014	Rezone		Omit
4044	11-10-2014	Animals	1	6.04.020
			2 Added	6.08.190
			3	6.20.020
4045	11-24-2014	Annexation		Omit
4046	11-24-2014	Rezone		Omit
4047	12-08-2014	Rezone		Omit
4048	12-22-2014	Speed limits	1	10.32.030
4049	12-22-2014	Sewer system	1, 2	13.12.030
			1, 3	13.12.195
4050	01-12-2015	Annexation		Omit
4051	01-12-2015	Rezone		Omit
4052	01-12-2015	Rezone		Omit
4053	01-12-2015	Annexation		Omit
4054	01-12-2015	Rezone		Omit
4055	02-23-2015	Annexation		Omit
4056	02-23-2015	Rezone		Omit
4057	02-23-2015	Rezone		Omit
4058	03-09-2015	Annexation		Omit
4059	03-09-2015	Rezone		Omit
4060	03-09-2015	Annexation		Omit
4061	03-09-2015	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4062	03-09-2015	Annexation		Omit
4063	03-09-2015	Rezone		Omit
4064	04-13-2015	Temporary or transient merchants; residential door-to-door solicitors	1 Rpld	5.76.010—5.76.080
				5.76.010—5.76.080
4065	04-13-2015	Annexation		Omit
4066	05-11-2015	Annexation, amends Ord. 4045		Omit
4067	05-11-2015	Rezone, amends Ord. 4046		Omit
4068	05-11-2015	National Electrical Code adopted—Appendix K, International Building Code—Administrative provisions adopted	1	15.20.010, 15.20.030, 15.20.040
4069	05-26-2015	Amends Unified Development Code, qualifying area for notification mailings		Omit
4070	06-08-2015	Amends solid waste fee schedule		Omit
4071	06-08-2015	Animal care	1	6.08.030
4072	06-08-2015	FY2016 Budget appropriation		Omit
4073	06-08-2015	Revises water/sewer rates; tap and system development fees; administrative fees; service charges; penalties, and septic and commercial waste dump rates		Omit
4074	06-08-2015	Annexation, amends Ord. 4065		Omit
4075	06-08-2015	Rezone		Omit
4076	06-08-2015	Rezone		Omit
4077	06-22-2015	Amends non-uniformed employees terms and conditions of employment		Omit
4078	06-22-2015	Amends sworn officers, police department, terms and conditions of employment		Omit
4079	06-22-2015	Authorizes refunding revenue bonds/St. Mary's School Project, Series 2015		Omit
4080	07-13-2015	Alcoholic beverages	1	5.12.060(C)
4081	07-27-2015	Annexation		Omit
4082	08-10-2015	Rezone		Omit
4083	08-10-2015	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4084	08-10-2015	Amends Unified Development Code; design regulations billboards		Omit
4085	08-24-2015	Amends Unified Development Code; conditional use approval, applicability		Omit
4086	08-24-2015	Amends Ord. No. 4020, removal of sunset clause affiliated with administrative adjustment (Unified Development Code)		Omit
4087	08-24-2015	Repeals and re-enacts drainage impact studies; repeals Appendix H (Unified Development Code)		Omit
4088	09-14-2015	City officers and employees generally	1	2.08.010
4089	09-14-2015	Submits ballot question to qualified electors at special referendum election on Charter Ord. No. 1		Omit
4090	09-14-2015	Submits ballot question to qualified electors at DDA special Mill Levy election		Omit
4091	09-14-2015	Rezone		Omit
4092	09-14-2015	Rezone		Omit
4093	09-14-2015	Rezone		Omit
4094	09-14-2015	Rezone		Omit
4095	09-14-2015	Annexation		Omit
4096	09-14-2015	Rezone		Omit
4097	09-14-2015	Annexation		Omit
4098	09-14-2015	Rezone		Omit
4099	09-28-2015	De-annexation (previously known as 4204 Charles Annexation)		Omit
4100	10-12-2015	Rezone		Omit
4101	11-09-2015	Annexation		Omit
4102	11-09-2015	Rezone		Omit
4103	11-23-2015	Amends major street plan official map		Omit
4104	12-14-2015	Annexation		Omit
4105	12-14-2015	Vacation of alley		Omit
4106	12-14-2015	Rezone		Omit
4107	12-14-2015	Rezone		Omit
4108	12-14-2015	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4109	12-28-2015	Amends Unified Development Code; increasing maximum total lot coverage for some residential lot types		Omit
4110	12-28-2015	Amends Unified Development Code; accessory dwelling units		Omit
4111	12-28-2015	Historic preservation board	1	2.64.030
			Rpld	2.64.090
			Added	2.64.090
4112	01-11-2016	Rezone		Omit
4113	01-11-2016	Annexation		Omit
4114	01-11-2016	Annexation		Omit
4115	01-11-2016	Rezone		Omit
4116	02-08-2016	Bicycles	1 Rpld	10.80.090—10.80.180
4117	02-08-2016	Annexation		Omit
4118	02-08-2016	Rezone		Omit
4119	02-08-2016	Rezone		Omit
4120	02-22-2016	Traffic school—Administrative fee	1	2.40.035(B)
4121	03-14-2016	Speed limits	1	10.32.030
4122	04-11-2016	Rezone		Omit
4123	04-11-2016	Rezone		Omit
4124	04-11-2016	Rezone		Omit
4125	04-25-2016	Minors on premises of billiard or pool hall	1 Rpld	9.16.030
4126	04-25-2016	Keeping or slaughtering of certain animals	1	6.08.020
4127	05-09-2016	Annexation		Omit
4128	05-09-2016	Rezone		Omit
4129	05-23-2016	Amends solid waste fee schedule		Omit
4130	05-23-2016	Weapons	1	9.24.010, 9.24.030
			Rpld	9.24.040, 9.24.050, 9.24.080, 9.24.130
				9.24.140

Ordinance Number	Date	Description	Section	Section this Code
4131	06-13-2016	Revises water/sewer rates; tap and system development fees; administrative fees; service charges; penalties, and septic and commercial waste dump rates		Omit
4132	06-13-2016	FY2017 Budget appropriation		Omit
4133	06-13-2016	Spitting on floors of public buildings or conveyances	1	9.12.070
4134	06-13-2016	Rezone		Omit
4135	06-13-2016	Rezone		Omit
4136	06-27-2016	Annexation		Omit
4137	06-27-2016	Rezone		Omit
4138	06-27-2016	Amends non-uniformed employees terms and conditions of employment		Omit
4139	06-27-2016	Amends sworn officers, police department, terms and conditions of employment		Omit
4140	06-27-2016	Buildings and construction	2	15.08.010—15.08.030
			3	15.09.010, 15.09.020
			4	15.10.010, 15.10.020
			5	15.12.010, 15.12.020
			6	15.16.010, 15.16.020
			7	15.22.010
			8	15.24.010
			9	15.26.010, 15.16.020
4141	06-27-2016	International Fire Code	2	8.12.010—8.12.030
4142	06-27-2016	International Fire Code board of appeals; International Building Code board of appeals	1	2.84.050
			2	2.84.060
4143	07-11-2016	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4144	07-11-2016	Amends section 10.64.040, stopping, standing and parking of buses and taxicabs regulated	1	10.64.040
4145	07-11-2016	Repeals various sections of chapter 10.20, traffic control devices	1	10.04.080
			Rpld	10.20.060, 10.20.070
4146	07-11-2016	Amends section 8.52.040, distribution of handbills in public places	1 Rpld	8.52.040
4147	07-11-2016	Annexation		Omit
4148	07-11-2016	Rezone		Omit
4149	07-11-2016	Rezone		Omit
4150	07-25-2016	Amends section 9.08.080, indecent exposure	1	9.08.080
4151	08-08-2016	Rezone		Omit
4152	08-08-2016	Rezone		Omit
4153	08-08-2016	Amends, repeals and recreates various sections in chapter 8.60, nuisances	2	8.60.020
			3	8.60.100
			4 Rpld	8.60.110
			5—7	8.60.120—8.60.140
			8, 9 Added	8.60.141, 8.60.142
			10—14	8.60.150—8.60.190
			15 Added	8.60.200
4154	10-10-2016	Creates pump house/RUCAO district		Omit
4155	10-10-2016	Rezone		Omit
4156	10-10-2016	Rezone		Omit
4157	10-10-2016	Annexation		Omit
4158	10-10-2016	Rezone		Omit
4159	10-24-2016	Amending Ord. No. 4147, Annexation		Omit
4160	11-14-2016	Rezone		Omit
4161	11-28-2016	Amending § 9.12.090, Skateboards	1	9.12.090
4162	1-09-2017	Amends sworn officers, police department, terms and conditions of employment		Omit
4163	1-09-2017	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4164	2-13-2017	Amends UDC, subdivision plat waiver process		Omit
4165	2-13-2017	Annexation		Omit
4166	2-13-2017	Rezone		Omit
4167	2-27-2017	Amends major street plan official map		Omit
4168	2-27-2017	Amends § 5.36.030, Public addresses, entertainment and advertising on streets	1	5.36.030
4169	3-13-2017	Amends UDC, consolidate into LR, MR and HR zone districts		Omit
4170	4-10-2017	Creating civic center commons project oversight team; procedures		Omit
4171	4-10-2017	Amending various chapters and sections contained in Title 5, Business licenses and regulations, and Title 8, Health and Safety	1	5.04.020
				5.04.040.C.
				5.12.010.C.
				5.12.020.A.
				5.12.030.A.
				5.12.040.B.
				5.12.060.C.
				5.12.070.C., D.
				5.28.030.C.
				5.36.020
				5.68.032.B.
				5.72.010.C.
				5.72.020
				5.72.050.D.
			2	8.28.020
				8.40.070.B.
				8.40.110.A., B.
4172	4-10-2017	Rezone		Omit
4173	4-10-2017	Rezone		Omit
4174	5-08-2017	Rezone		Omit
4175	5-08-2017	Annexation		Omit

Ordinance Number	Date	Description	Section	Section this Code
4176	5-08-2017	Rezone		Omit
4177	5-08-2017	Amending § 2.29.010, Purpose—Authority—General Provisions, Community Service officers	1	2.29.010
4178	5-22-2017	Amending various sections of chapter 5.52, Massage establishments	1	5.52.010.D.
				5.52.020, 5.52.030
				5.52.040.A.
				5.52.050
				5.52.110.A.
				5.52.130.B., C.
4179	6-12-2017	Amending § 8.60.080 and creating §§ 8.60.181—8.60.183, junk vehicles	1	8.60.080
			2 Added	8.60.181—8.60.183
4180	6-12-2017	Revises water/sewer rates; tap and system development fees, administrative fees; service charges, penalties and septic and commercial waste dump rates		Omit
4181	6-12-2017	Amends § 2.2.7, UDC, clarifies land uses subject to special use approval		Omit
4182	6-12-2017	Amending § 2.08.010, Appointment and term—removal—vacancy, Mayoral appointments	1	2.08.010.A.
4183	6-12-2017	FY 2018 budget appropriation		Omit
4184	6-26-2017	Amends non-uniformed employees terms and conditions for employment		Omit
4185	6-26-2017	Amends sworn officers, police department, terms and conditions of employment		Omit
4186	6-26-2017	Repealing and reenacting chapter 5.12, Alcoholic liquor and malt beverages	1 Rpld	5.12.010—5.12.180
			Added	5.12.010—5.12.180
4187	7-10-2017	Rezone		Omit
4188	7-10-2017	Rezone		Omit
4189	7-10-2017	Amends solid waste fee schedule		Omit

Ordinance Number	Date	Description	Section	Section this Code
4190	7-24-2017	Creates section 10.24.180, Nuisance exhibition motor exhaust-prohibited	1 Added	10.24.180
4191	8-14-2017	Annexation		Omit
4192	8-14-2017	Rezone		Omit
4193	8-14-2017	Rezone		Omit
4194	8-14-2017	Rezone		Omit
4195	8-14-2017	Amends section 5.52.050, Massage establishments; therapist licensing requirements	1	5.52.050
4196	8-28-2017	Annexation		Omit
4197	8-28-2017	Rezone		Omit
4198	9-11-2017	Rezone		Omit
4199	9-11-2017	Amends UDC, utility stations		Omit
4200	9-11-2017	Amends UDC, home occupations as a permitted use		Omit
4201	9-11-2017	Annexation		Omit
4202	9-11-2017	Rezone		Omit
4203	9-25-2017	Amends UDC, definition of "through lot"		Omit
4204	10-09-2017	Rezone		Omit
4205	10-09-2017	Repeals ch. 5.32 and section 5.08.050, Bingo and pull tabs; amends sections 5.04.030, types of businesses, activities and events and sections 9.08.030, repeals; 9.08.040, Offenses against public peace and decency	1 Rpld	5.32.010—5.32.110
			2	5.04.030
			Rpld	5.08.050
			3, 4	9.08.030
			5	9.08.040
4206	10-09-2017	Amends sections ch. 5.12, Alcoholic liquor and malt beverages	1	5.12.010, 5.12.020
				5.12.110
				5.12.140
				5.12.160
4207	11-13-2017	Rezone		Omit
4208	11-13-2017	Rezone		Omit
4209	11-13-2017	Vacates alley		Omit
4210	11-13-2017	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4211	11-27-2017	Amends sections of ch. 8.40, Food and food service establishments	1	8.40.010, 8.40.020
				8.40.040—8.40.140
			Rpld	8.40.150—8.40.170
4212	12-11-2017	Amends sections 1.12.010 and 1.12.020, Datum plane	1	1.12.010, 1.12.020
4213	12-20-2017	Amends sections of ch. 10.56, ch. 10.60, ch. 10.64 and ch. 10.68, Vehicles and Traffic	1	10.56.030—10.56.050
				10.56.080, 10.56.090
				10.56.120
				10.60.010
				10.60.030, 10.60.040
				10.64.010
				10.64.030
				10.64.060
				10.68.030, 10.68.040
				10.68.070
4214	01-08-2018	Amends UDC, Industrial Use		Omit
4215	02-12-2018	Annexation		Omit
4216	02-12-2018	Annexation		Omit
4217	02-12-2018	Rezone		Omit
4218	02-12-2018	Vacates alley		Omit
4219	02-12-2018	Vacates alley		Omit
4220	02-12-2018	Amends UDC, Group housing		Omit
4221	03-26-2018	Amends sections of Chapter 1.16, Annexation & infrastructure improvements	1	1.16.050
4222	04-23-2018	Amends section 8.56.060, permit for relief from noise levels	1	8.56.060
4223	05-14-2018	Annexation		Omit
4224	05-14-2018	Rezone		Omit
4225	05-14-2018	Annexation		Omit
4226	05-14-2018	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4227	05-14-2018	Rezone		Omit
4228	05-14-2018	Amends Title 15, Buildings and Construction, relating to NEC, 2017 Edition	2	15.20.010, 15.20.020
				15.20.040
4229	05-29-2018	Amends Solid Waste Fee Schedule		Omit
4230	06-11-2018	Revises water/sewer rates; tap and system development fees; administrative fees; service charges; penalties and septic and commercial waste dump rates		Omit
4231	06-11-2018	Appropriating moneys for FY 2019 budget		Omit
4232	06-11-2018	Rezone		Omit
4233	06-25-2018	Amends non-uniformed employees terms and conditions of employment		Omit
4234	06-25-2018	Amends sworn officers, police department, terms and condition of employment		Omit
4235	06-25-2018	Repealing Chapter 12.16, Trees & Shrubs and creating a new Chapter 12.16, Trees	1 Rpld	12.16.010-12.16.090
			2 Added	12.16.010—12.16.113
4236	07-09-2018	Amends various chapters/sections of Title 5, Business Licenses and Regulations; notarization of signatures	1	5.52.050.A.14
				5.72.030.B.8
				5.72.050.B.8
				5.76.030.B, 5.76.040
				5.78.030
4237	07-09-2018	Amends Section 5.12.140, Persons under the age of 21 years		5.12.140
4238	07-09-2018	Rezone		Omit
4239	07-09-2018	Rezone		Omit
4240	07-23-2018	Amends Section 8.40.010, exempting beverage stands operated by minors from licensing provisions (lemonade, iced tea, etc.)	1	8.40.010.D

Ordinance Number	Date	Description	Section	Section this Code
4241	07-23-2018	Creates Section 15.08.031, Building permit fee exceptions for Incentivization Program	Added	15.08.031
4242	09-24-2018	Amends Sections 5.12.020 and 5.12.030; special malt beverage (annual) permits	1	5.12.020, 5.12.030
4243	09-24-2018	Annexation		Omit
4244	09-24-2018	Rezone		Omit
4245	09-24-2018	Amends UDC, size of semi-attached dwelling (duplex) lots in MR zone		Omit
4246	10-08-2018	Vacating right-of-way		Omit
4247	11-13-2018	Amends Chapter 12.24, Art in Public Places	1	12.24.040.A
4248	11-13-2018	Annexation		Omit
4249	11-26-2018	Rezone		Omit
4250	12-10-2018	Rezone		Omit
4251	12-10-2018	Rezone		Omit
4252	12-10-2018	Amends Chapter 2.32, Fire Dept., International Fire Code Board of Appeals	1	2.32.20
				2.84.050
4253	12-10-2018	Creates Section 1.08.030, Official Song—Recognition & Use (Cheyenne Anthem ©)	1 Added	1.08.030
4254	12-20-2018	Amends Title 15, International Building Code, 2018 Edition	2	15.08.010 —15.08.030
			3	15.09.010, 15.09.020
			4	15.10.010, 15.10.020
			5	15.12.010, 15.12.020
			6	15.16.010, 15.16.020
			7	15.22.010
			8	15.24.010, 15.24.020
			9	15.26.010, 15.26.020

Ordinance Number	Date	Description	Section	Section this Code
4255	12-20-2018	Amends Chapter 8.12, International Fire Code, 2018 Edition	2	8.12.010—8.12.030
4256	01-14-2019	Rezone		Omit
4257	01-14-2019	Rezone		Omit
4258	01-14-2019	Amends UDC, removes maximum parking limitation		Omit
4259	02-11-2019	Creating Chapter 12.28, Downtown Graffiti Abatement Pilot Program	1 Added	12.28.010—12.28.050
4260	02-11-2019	Delegating review authority authorized by W.S. 34-12-103(b) to Director of Planning & Development		Omit
4261	03-11-2019	Annexation		Omit
4262	03-11-2019	Rezone		Omit
4263	03-11-2019	Rezone		Omit
4264	04-08-2019	Annexation		Omit
4265	04-08-2019	Rezone		Omit
4266	04-08-2019	Annexation		Omit
4267	04-08-2019	Rezone		Omit
4268	04-08-2019	Amends Chapter 5.48, Detective Patrol Guard Service Businesses, 5.52, Massage Establishments and 5.72, Public Transportation	1	5.48.030—5.48.060
			Rpld	5.48.090
			Rnbd	5.48.100—5.48.160
			as	5.48.090—5.48.150
			2	5.52.040.7
				5.52.050
			3	5.72.010
				5.72.030
				5.72.050
4269	04-22-2019	Amends Chapter 10.56, Handicapped Parking Spaces	1	10.56.050
				10.56.080
4270	05-28-2019	Amends Solid Waste Fee Schedule		Omit
4271	05-28-2019	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4272	06-10-2019	Revises water/sewer rates; tap and system development fees; administrative fees; service charges; penalties and septic and commercial waste dump rates		Omit
4273	06-10-2019	Appropriating moneys for FY 2020 budget		Omit
4274	06-10-2019	Rezone		Omit
4275	06-24-2019	Amends non-uniformed employees terms and conditions of employment		Omit
4276	06-24-2019	Amends sworn officers, police department, terms and conditions of employment		Omit
4277	06-24-2019	Amends various sections of Chapter 5.12, Alcoholic Liquor & Malt Beverages	1	5.12.010.C
				5.12.020, 5.12.030
			2	5.12.040, 5.12.050
			Added	5.12.055
4278	07-08-2019	Amends UDC, replaces Section 5.8.1		Omit
4279	07-22-2019	Amends Section 2.04.160(D) Readings-Committee reports—Amendments	1	2.04.160(D)
4280	08-12-2019	Amends UDC, modify allowances for Electronic Message Center		Omit
4281	08-12-2019	Amends Ord. No. 2975, 3297, rezone		Omit
4282	08-12-2019	Vacates portions of alley and right-of-way		Omit
4283	08-12-2019	Amends UDC, clarifies definitions for entertainment & recreation and creates new entertainment & recreation—Other land uses		Omit
4284	08-12-2019	Annexation		Omit
4285	08-26-2019	Amends Chapter 8.64, Smoking in Public Places	1	8.64.020
4286	09-09-2019	Amends Sweetgrass PUD		Omit
4287	09-09-2019	Submits ballot questions to qualified electors at DDA special mill levy election		Omit
4288	10-14-2019	Rezone		Omit

Ordinance Number	Date	Description	Section	Section this Code
4289	10-14-2019	Vacates alley right-of-way		Omit
4290	11-12-2019	Amends Chapter 2.04, Mayor and Council and 3.04, Fiscal Provisions Generally	1	2.04.160
			2	3.04.010
4291	12-09-2019	Amends Ord. No. 3841, rezone		Omit
4292	01-27-2020	Annexation		Omit
4292	01-27-2020	Re-zone		Omit
4294	03-09-2020	Amends Chapter 5.52, Massage Establishments	1	5.52.090, 5.52.100
			Added	5.52.105
4295	03-09-2020	Amends Chapters 8.40, Food and Food Service Establishments and Chapters 10.52, Stopping, Standing and Parking Generally and 10.68, Critical Traffic and Parking Areas	1	8.40.110
			2	10.52.230
			3	10.68.030, 10.68.040
4296	03-09-2020	Amends Chapters 10.12, Administration and Enforcement, 10.16, Arrest and Citation Procedure, 10.52, Stopping, Standing and Parking Generally, 10.60, Parking limitations, 10.64, Loading and Unloading	1	10.12.160.A
				10.12.170
			3	10.16.080—10.16.090
			Added	10.16.140—10.16.160
			4	10.52.010, 10.52.020
			Rpld	10.52.120
			5	10.56.040
				10.60.010
				10.60.030, 10.60.040
				10.64.010.B
4297	03-23-2020	Amends Section 10.12.130, City Traffic Engineer	1	10.12.130

Ordinance Number	Date	Description	Section	Section this Code
4298	03-23-2020	Creates Section 2.04.200, Purchasing Policy	1 Added	2.04.200
4299	04-13-2020	Temporarily suspending a subsection of Chapter 5.12, Alcoholic Liquor and Malt Beverages	1	5.12.070.B.3
4300	04-13-2020	Annexation		Omit
4301	04-13-2020	Rezoning		Omit
4302	04-13-2020	Rezoning		Omit
4304	04-27-2020	Amends solid waste fee schedule		Omit
4305	05-26-2020	Amends Chapter 10.56, Handicapped Parking Spaces	1	10.56.010—10.56.130
4306	05-26-2020	Amends Chapter 5.12, Alcoholic Liquor and Malt Beverages	1	5.12.100.D
4307	05-26-2020	Amends Chapter 6.04, Definitions, Administration and Enforcement, Chapter 6.12, Pet Registration, and Chapter 6.20, Impoundment	1	6.04.020
			2 Added	6.12.010.C
			3	6.20.030
4308	06-08-2020	Amends water/sewer rates		Omit
4309	06-08-2020	Amends UDC		Omit
4310	06-08-2020	Amends UDC		Omit
4311	06-08-2020	Amends UDC		Omit
4312	06-16-2020	Amends Chapter 5.12, Alcoholic Liquor and Malt Beverages	1	5.12.110
			2	5.12.120
4313	06-16-2020	Amends Chapter 8.40, Food and Food Service Establishments	1	8.40.063.C
4314	06-16-020	2021 Budget		Omit
4315	06-22-2020	Franchise		Omit
4316	07-13-2020	Amends Chapter 2.76, Downtown Development Authority	1	2.76.020
4317	07-13-2020	Rezoning		Omit
4318	07-13-2020	Rezoning		Omit
4319	07-27-2020	Rezoning		Omit
4320	08-10-2020	Annexation		Omit
4321	08-10-2020	Rezoning		Omit
4322	08-10-2020	Amends Chapter 2.29, Community Service Officers	1 Added	2.29.010.D

Ordinance Number	Date	Description	Section	Section this Code
			2	2.29.020
			3 Added	2.29.050
4323	08-10-2020	Amends uniformed employees terms and conditions of employment		Omit
4324	08-10-2020	Amends sworn officers, police department, terms and conditions of employment		Omit
4325	09-28-2020	Amends Chapter 15.50, Historic Design Guidelines	1	15.50.020
				15.50.050
4326	10-12-2020	Amends UDC creating the Support Services Zone and establishing design criteria		Omit
4327	10-26-2020	Amends business licenses; creates a new chapter for nicotine product sales; amends smoking in public places and offenses by or against minors	1	5.04.030
			2	5.08.240
			3 Added	5.77.010—5.77.100
			4	8.64.080.A.7
			5 Rpld	9.16.070—9.16.100
			Added	9.16.070
			Rnbd	9.16.100
			as	9.16.080
4328	11-09-2020	Amends loudspeakers, sound cars and trucks	1	8.56.070
4329	11-09-2020	Rezoning		Omit
4330	11-09-2020	Rezoning		Omit
4331	11-09-2020	Vacates Stinson Ave. right-of-way		Omit
4332	11-09-2020	Amends UDC defining, permissibility and creates specific use standards for the use emergency shelter		Omit
4333	12-14-2020	Amends weight limits within Title 10, Vehicles and Traffic	1	10.44.010, 10.44.020, 10.44.040, 10.44.050
			Added	10.44.060—10.44.120

Ordinance Number	Date	Description	Section	Section this Code
			2(Exh. A)	10.44.040
			3(Exh. B)	10.44.050
4334	12-14-2020	Amends board of adjustment	1	2.84.070
4335	12-14-2020	Amends solar access permit system	1	15.52.060.B
			2	15.52.100
4336	12-14-2020	Establishes PUD District for property northwest of North Gate Ave. and Yellowstone Rd.		Omit
4337	1-11-2021	Annexation		Omit
4338	1-11-2021	Rezoning		Omit
4339	1-11-2021	Amends UDC defining, establishing permissibility and creates specific use standards for the use mini storage		Omit
4340	1-11-2021	Amends regulations regarding the election and term of office for the mayor	1	2.04.020
4341	2- 8-2021	Annexation		Omit
4342	2- 8-2021	Rezoning		Omit
4343	2- 8-2021	Rezoning		Omit
4344	2- 8-2021	Rezoning		Omit
4345	3- 8-2021	Amends UDC, Fences		Omit
4346	3- 8-2021	Amends UDC creating definition family unit and amends definition dwelling unit		Omit
4347	3- 8-2021	Amends several sections in Chapter 1.04, Streets, Sidewalks and Driveways	1	12.04.120, 12.04.180, 12.04.210
4348	3-22-2021	Rezoning		Omit
4349	3-22-2021	Amends several sections in Chapter 5.68, Body Art Establishments and Operations	1	5.68.020, 5.68.030
			Added	5.68.031
				5.68.032—5.68.050, 5.68.120, 5.68.130, 5.68.150
4350	3-22-2021	Amends exceptions for open container sales and consumption	1	5.12.110

Ordinance Number	Date	Description	Section	Section this Code
4351	4-12-2021	Amends Section 5.12.110, Open Container-Sales & Consumption-Exceptions	1	5.12.110
4352	4-12-2021	Rezoning		Omit
4353	4-12-2021	Amends UDC Section 6.6.3.b.1,Encroachments		Omit
4354	4-12-2021	Annexation		Omit
4355	4-12-2021	Rezoning		Omit
4356	4-12-2021	Annexation		Omit
4357	4-12-2021	Rezoning		Omit
4358	5-10-2021	Annexation		Omit
4359	5-10-2021	Rezoning		Omit
4360	5-10-2021	Amends various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages	1, 2	5.12.030.A
			2	5.12.050
4361	5-10-2021	Rescinds Footnote 1 in Ord. #4314 Appropriating Moneys for the FY 2021 Budget		Omit
4362	5-24-2021	Amends Solid Waste Fee Schedule		Omit
4363	5-24-2021	Amends UDC increasing Lot Coverage of MD1, P-CV1, P-CV2 and P-CV3 Lot Types		Omit
4364	5-24-2021	Creates Chapter 8.29, Hood System Cleaning Companies	1 Added	8.29.010—8.29.060
4365	6-14-2021	Amends Section 5.12.030, Licenses and Permits-Types	1	5.12.030
4366	6-14-2021	Amends various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages	1	5.12.020, 5.12.070.B, 5.12.160
4367	6-14-2021	Amends various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages	1	5.12.020, 5.12.030, 5.12.140.B
4369	6-14-2021	Repeals Chapter 2.92, Personnel System and creates a new Chapter 2.92, Administrative Hearing Procedure	1 Rpld	2.92.010
			Added	2.92.010—2.92.040
4370	6-14-2021	Grants non-exclusive Franchise to Visionary Communications Inc.		Omit

Ordinance Number	Date	Description	Section	Section this Code
4371	6-14-2021	Amends UDC to align fee schedule		Omit
4372	6-14-2021	Annexation		Omit
4373	6-14-2021	Rezoning		Omit
4374	6-14-2021	Annexation		Omit
4375	6-14-2021	Rezoning		Omit
4376	6-14-2021	Revises water/sewer rates; tap and system development fees; administrative fees; services charges; penalties and septic and commercial waste dump rates		Omit
4377	6-14-2021	Appropriating moneys for FY 2022 Budget		Omit
4378	6-28-2021	Amends Chapter 10.80 Bicycles	1	Ch. 10.80(tit.), 10.80-010—10.80.070
4379	6-28-2021	Creates new Chapter 10.82 Motor-Assisted Scooters, Electric Bicycles and Bicycles Equipped with GPS	1 Added	10.82.010—10.80.080
4380	6-28-2021	Amends Section 5.04.030, Types of Businesses, Activities and Events and creates new Section 5.08.155, Motor-Assisted Scooters, Electric Bicycles and Bicycles Equipped with GPS	1	5.04.030
			2 Added	5.08.155
4381	6-28-2021	Creates new Chapter 2.80, Urban Renewal Authority	1 Added	2.80.010—2.80.070
4382	6-28-2021	Amends UDC creating the Urban Use Overlay District		Omit
4383	6-28-2021	Creates Section 13.04.141, Fee Assessment on Gross Revenues	1 Added	13.04.141
4384	7-12-2021	Amends various sections of Chapter 5.04, Business Licenses Generally	1	5.04.100, 5.04.110
4385	7-12-2021	Amends Section 5.52.130, Denial, suspension or revocation of license or permit	1	5.52.130
4386	7-12-2021	Amends various sections of Chapter 8.60, Nuisances	1	8.60-142—8.60.180, 8.60.200

Ordinance Number	Date	Description	Section	Section this Code
4387	7-26-2021	Annexation		Omit
4388	7-26-2021	Rezoning		Omit
4389	7-26-2021	Annexation		Omit
4390	7-26-2021	Rezoning		Omit
4391	7-26-2021	Rezoning		Omit
4392	7-26-2021	Amends UDC to create Public Safety Fee		Omit
4393	7-26-2021	Amends Section 2.76.020, Members—Term—Vacancies	1	2.76.020
4394	9-13-2021	Rezoning		Omit
4395	9-27-2021	Amends UDC clarifying Cottage Lot Development		Omit
4396	10-11-2021	Amends sworn officers, police department, terms and conditions of employment		Omit
4397	10-11-2021	Rezoning		Omit
4398	10-25-2021	Amends UDC clarifying interpretation of lots and amends accessory buildings regulations		Omit
4399	10-25-2021	Amends UDC modifying density standards of multi-dwelling buildings		Omit
4400	10-25-2021	Amends UDC modifying MUR, MUB and MUE zone districts intent, context and transitions		Omit
4401	11- 8-2021	Creates new Section 10.04.110, Amnesty Program	1 Added	10.04.110
4402	11- 8-2021	Annexation		Omit
4403	11- 8-2021	Rezoning		Omit
4404	11-22-2021	Amends UDC modifying articles 2.1 and 2.2 regarding posted and published notice requirements for divisions of land and zoning applications		Omit
4405	11-22-2021	Amends Section 15.08.031, Building Permit Fees-Exceptions for Incentivization Program	1	15.08.031
4406	12-13-2021	Annexation		Omit
4407	12-13-2021	Rezoning		Omit
4408	12-13-2021	Rezoning		Omit

Ordinance Number	Date	Description	Section	Section this Code
4368	6-14-2021	Repeals provisions pertaining to personnel commission and establishes provisions for personnel system	1 Rpld	2.52.010—2.52.050
			2 Added	2.52.010
4409	1-10-2022	Amends UDC to create definitions and amends various sections of Article 6		Omit
4410	1-10-2022	Rezoning		Omit
4411	1-10-2022	Amends sworn officers, police department, terms and conditions		Omit
4412	1-24-2022	Amends Chapter 10.76, Abandoned Vehicles	1	10.76.010, 10.76.030—10.76.090, 10.76.120—10.76.150
4413	1-24-2022	Amends Chapter 8.60, Nuisances	1	8.60.020, 8.60.035, 8.60.050, 8.60.080
			Rpld	8.60.100
				8.60.142
4414	1-24-2022	Adds Section 6.08.200, Keeping of bees	1 Added	6.08.200
4415	2-14-2022	Rezoning		Omit
4416	2-28-2022	Amends various sections in Chapters 13.04, 13.08, 13.12, and 13.20	1	13.04.010, 13.04.030—13.04.140, 13.04.150—13.04.190, 13.08.010—13.08.160
			Added	13.08.170
				13.12.010, 13.12.030—13.12.050, 13.12.070—13.12.195
			Rpld	13.12.200
				13.12.210
			Rpld	13.12.220
				13.12.250

Ordinance Number	Date	Description	Section	Section this Code
			Rpld	13.12.260
				13.12.320, 13.12.340—13.12.400, 13.20.010—13.20.130
			Rpld	13.20.140, 13.20.150
				13.20.160—13.20.350
			Rpld	13.20.360
				13.20.370—13.20.500, 13.20.520—13.20.540
			Added	13.20.545
				13.20.550, 13.20.560
			Rpld	13.20.570
				13.20.580—13.20.650
			Added	13.20.655
				13.20.660—13.20.780
			Rpld	13.20.790
				13.20.800—13.20.840
4417	3-14-2022	Amends UDC Table 5-1: Zoning District Uses, amending the permissibility of various uses		Omit
4418	3-14-2022	Annexation		Omit
4419	3-14-2022	Rezoning		Omit
4420	3-14-2022	Rezoning		Omit
4421	3-14-2022	Creates new Section 9.08.120, Malicious harassment based on race, color, religion, ancestry, sex, sexual orientation, gender identity and expression, national origin, disability or political affiliation	1 Added	9.08.120
4422	3-14-2022	Amends various sections of Chapter 12.20	1	12.20.160, 12.20.300

Ordinance Number	Date	Description	Section	Section this Code
			Rpld	12.20.310
				12.20.320, 12.20.330, 12.20.350
4423	3-28-2022	Amends UDC repealing UDC 5.4.7, UU Urban Use Overlay District and creating UDC 5.6.9, UU Urban Use Overlay District		Omit
4424	3-28-2022	Rezoning		Omit
4425	4-11-2022	Amends UDC creates a common landscaping plan and defines development footprint		Omit
4426	4-11-2022	Rezoning		Omit
4427	4-25-2022	Creates new Chapter 9.01, Definitions	1 Added	9.01.010
4428	4-25-2022	Repeals Ordinance #3465 and re-establishes and redefines ward boundaries		Omit
4429	4-25-2022	Amends solid waste fee schedule		Omit
4430	4-25-2022	Amends compensation for mayor		Omit
4431	4-25-2022	Amends compensation for members of city council		Omit
4432	5- 9-2022	Rezoning		Omit
4433	5- 9-2022	Amends Section 9.12.080, Electric fences prohibited	1	9.12.080
4434	5-23-2022	Amends Section 10.52.030, Parking not to obstruct traffic		10.52.030
4435	5-23-2022	Amends Section 10.52.230, Downtown construction/maintenance worker parking in an established timed parking zone	1	10.52.230
4436	6-12-2022	Annexation		Omit
4437	6-13-2022	Rezoning		Omit
4438	6-13-2022	Annexation		Omit
4439	6-13-2022	Rezoning		Omit
4440	6-13-2022	Annexation		Omit
4441	6-13-2022	Rezoning		Omit
4442	6-13-2022	Rezoning		Omit
4443	6-13-2022	Rezoning		Omit
4444	6-13-2022	Roundabout vacation		Omit

Ordinance Number	Date	Description	Section	Section this Code
4445	6-13-2022	Roundabout vacation		Omit
4446	6-13-2022	Creates Chapter 13.28, Urban stormwater quality management and discharge control	1 Added	13.28.010—13.28.280
4447	6-13-2022	Revises water/sewer rates; tap and system development fees; administrative fees; service charges; penalties and septic and commercial waste dump rates		Omit
4448	6-13-2022	Appropriates moneys for FY 2023 budget		Omit
4449	6-27-2022	Rezoning		Omit
4450	7-11-2022	Amends UDC to create a definition for Data Center and amends Table 5-1, Zoning District Uses		Omit
4451	7-11-2022	Amends Section 9.08.010(B)(3), Disturbance of the peace and disturbance of property	1	9.08.010.B.3
4452	7-25-2022	Amends Section 2.40.020, Appointment of judges—Powers generally	1	2.40.020
4453	7-25-2022	Amends various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages	1	5.12.010,
				5.12.030,
				5.12.050
4454	8-22-2022	Amends various sections of Chapter 13.12, Sewer System	1	13.12.020,
				13.12.040
4455	8-22-2022	Amends Ordinance #4411, terms and conditions of employment for sworn officers, police department		Omit
4456	8-22-2022	Amends Chapter 1.16, Annexation and Infrastructure Improvements	1	1.16.010
			Rpld	1.16.020, 1.16.030
				1.16.040, 1.16.050,
				1.16.070, 1.16.080
4457	9-12-2022	Rezoning		Omit
4458	9-12-2022	Rezoning		Omit

Ordinance Number	Date	Description	Section	Section this Code
4459	9-12-2022	Amends and repeals portions of Chapter 2.20, Police Department	1	2.20.050.B
			2 Rpld	2.20.050.C,
				2.20.080,
				2.24.010, 2.24.020
4460	9-12-2022	Amends Chapter 2.08, City Officers and Employees Generally and amends and repeals portions of Chapter 2.28, Reserve Police Officers	1	2.08.010,
				2.28.010—2.28.040,
				2.28.070,
				2.28.140, 2.28.150
			2 Rpld	2.28.050, 2.28.060,
				2.28.080—2.28.130,
				2.28.160
4461	9-12-2022	Amends Section 10.52.010, Method of parking	1	10.52.010
4462	9-12-2022	Amends Chapter 2.04, Mayor and City Council and Chapter 12.04, Streets, Sidewalks and Driveways Generally	1	2.04.160,
				12.04.180
4463	9-26-2022	Amends Section 10.08.010, State law adopted	1	10.08.010
4464	9-26-2022	Rezoning		Omit
4465	9-26-2022	Rezoning		Omit
4466	9-26-2022	Amends Section 2.32.020, Department personnel	1	2.32.020.B
4467	10-10-2022	Amends Sections 10.12.160, Authority to Impound Illegally Parked Vehicles and Section 10.12.170, Immobilization	1	10.12.160, 10.12.170
4468	10-10-2022	Rezoning		Omit
4469	10-10-2022	Rezoning		Omit

Ordinance Number	Date	Description	Section	Section this Code
4470	10-24-2022	Amends Section 9.08.020, Annoying, Obscene or Threatening Telephone Calls	1	9.08.020
4471	11-14-2022	Creates Section 9.04.070, Interference with Emergency Calls; Interference with Emergency Reporting System	1 Added	9.04.070
4472	11-14-2022	Amends Section 2.08.010, Appointment and Term—Removal—Vacancy	1	2.08.010
4473	11-14-2022	Annexation		Omit
4474	11-14-2022	Rezoning		Omit
4475	11-28-2022	Amends Section 5.12.110, Open Container—Sales and Consumption—Exceptions	1	5.12.110
4476	12-102-2022	Rezoning		Omit
4477	12-12-2022	Amends Ord. #4447, revises water/sewer rates; tap and system development fees; administrative fees; service charges; penalties and septic and commercial waste dump rates		Omit
4478	12-27-2022	Annexation		Omit
4479	12-27-2022	Rezoning		Omit
4480	12-27-2022	Rezoning		Omit
4481	1-09-2023	Annexation		Omit
4482	1-09-2023	Rezoning		Omit
4483	1-09-2023	Annexation		Omit
4484	1-09-2023	Rezoning		Omit
4485	1-09-2023	Amends Title 15, Buildings and Construction	1	15.08.010—15.08.030
			2	15.09.010
			3	15.10.010, 15.10.020
			4	15.12.010, 15.12.020
			5	15.16.010, 15.16.020
			6	15.22.010, 15.22.020
			7	15.24.010, 15.24.020

Ordinance Number	Date	Description	Section	Section this Code
			8	15.26.010, 15.26.020
4486	1-09-2023	Amends Section 2.84.050, International Fire Code Board of Appeals	1	2.84.050
4487	1-09-2023	Amends various sections of Chapter 8.12, International Fire Code Adopted	1	8.12.010—8.12.030
4488	1-23-2023	Amends Ord. #4455, terms and conditions of employment for sworn officers, Police Department		Omit
4489	2-13-2023	Annexation		Omit
4490	2-13-2023	Rezoning		Omit
4491	2-13-2023	Street vacation		Omit
4492	2-27-2023	Annexation		Omit
4493	3-13-2023	Amends UDC - enforcement regulations		Omit
4494	3-13-2023	Rezoning		Omit
4495	3-27-2023	Annexation		Omit
4496	3-27-2023	Rezoning		Omit
4497	4-10-2023	Annexation		Omit
4498	4-10-2023	Rezoning		Omit
4499	5- 8-2023	Annexation		Omit
4500	5- 8-2023	Rezoning		Omit
4501	5- 8-2023	Rezoning		Omit
4502	5- 8-2023	Amends Chapter 2.04, Mayor and City Council, and Chapter 12.04, Streets, Sidewalks and Driveways Generally	1	2.04.160,
				12.04.180.B
4503	5- 8-2023	Amends Ord. #4429, updating the Solid Waste Fee Schedule		Omit
4504	6-12-2023	Appropriates moneys for FY 2024 budget		Omit
4505	6-12-2023	Revises water/sewer rates; tap and system development fees; administrative fees; service charges; penalties and septic and commercial waste dump rates		Omit
4506	6-12-2023	Rezoning		Omit

Ordinance Number	Date	Description	Section	Section this Code
4509	7-10-2023	Amends Chapter 15.20, National Electrical Code Adopted—Appendix K, International Building Code—Administrative Provisions Adopted	1	15.20.010—15.20.030
			Rpld	15.20.040
4510	7-10-2023	Annexation		Omit
4511	7-10-2023	Rezoning		Omit
4512	7-10-2023	Annexation		Omit
4513	7-10-2023	Rezoning		Omit
4514	7-10-2023	Rezoning		Omit
4515	7-10-2023	Rezoning		Omit
4516	7-10-2023	Amends UDC Section 2.4.2, Annexations and creates Section 2.2.8, Assigned Zoning		Omit
4517	7-10-2023	Amends UDC Sections 2.2.1.c.5 and 2.2.2.c.6 amending protest petitions		Omit
4518	7-24-2023	Creates Chapter 8.68, Camping in Public Places	1 Added	8.68.010—8.68.040
4519	8-14-2023	Rezoning		Omit
4520	8-28-2023	Amends sworn officer, police department, terms and conditions		Omit
4521	8-28-2023	Creates Section 2.08.060, Employees and Immediate Family Members; Conflict of Interest Policy	1 Added	2.08.060
			2	2.52.010
4522	9-11-2023	Submits ballot question to qualified Electors at DDA special mill levy Election		Omit
4523	9-11-2023	Rezoning		Omit
4524	9-11-2023	Amends Sweetgrass PUD		Omit
4525	9-25-2023	Amends Section 15.08.031, Building Permit Fees—Exceptions for Incentivization Program	1	15.08.031
4526	10- 9-2023	Rezoning		Omit
4527	10- 9-2023	Rezoning		Omit

Ordinance Number	Date	Description	Section	Section this Code
4528	10-23-2023	Amends certain sections of Chapter 13.20, Wastewater Treatment and Disposal	1	13.20.050, 13.20.545, 13.20.560, 13.20.590, 13.20.610, 13.20.700, 13.20.730, 13.20.740, 13.20.830
4529	11-13-2023	Amends 2.04.020, Mayor—Election—Term of Office, of Chapter 2.04, Mayor and City Council	1	2.04.020
4530	11-27-2023	Rezoning		Omit
4531	12-11-2023	Creates Section 12.04.240, Mobile Storage Containers on Public Right-of-Way—Permit Required, and amends Section 12.04.080, Construction and Repair—Permits required—Fees—Exception, of Chapter 12.04, Streets, Sidewalks and Driveways Generally	1 Added	12.04.240
			2	12.04.080
4532	12-11-2023	Rezoning		Omit
4533	12-11-2023	Annexation		Omit
4534	12-11-2023	Rezoning		Omit
4535	12-21-2023	Amends UDC Section 5.1.5, removing minimum lot area requirements for detached, semi-attached, attached and multi-dwelling buildings		Omit
4536	12-21-2023	Amends UDC Section 5.1.5, removing density requirements for multi-dwelling buildings		Omit
4537	12-21-2023	Amends UDC Section 6.2.4, amending table 6-2, required automobile parking for multi-family developments		Omit
4538	1- 8-2024	Amends UDC Subsection 6.7.5.b changing building façade design requirements		Omit
4539	1- 8-2024	Amends Ordinance #4520, terms and conditions of employment for sworn officers, police department		Omit
4540	1- 8-2024	Annexation		Omit

Ordinance Number	Date	Description	Section	Section this Code
4541	1- 8-2024	Rezoning		Omit
4542	1- 8-2024	Rezoning		Omit
4543	1- 8-2024	Amends UDC Subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e changing building façade design requirements for multi-family residential development		Omit
4544	1-22-2024	Amends Title 6, Animals	1 Rpld	6.04.010—6.04.040, 6.08-010—6.08.200, 6.12.010—6.12.030, 6.16.010—6.16.050, 6.20.010—6.20.050
			Added	6.04.010—6.04.040, 6.08.010—6.08.150, 6.08.170—6.08.200, 6.12.020, 6.12.030, 6.16.010—6.16.050, 6.20.010—6.20.050
4545	2-12-2024	Annexation		Omit
4546	2-12-2024	Rezoning		Omit
4547	2-12-2024	Annexation		Omit
4548	2-12-2024	Rezoning		Omit
4549	2-12-2024	Rezoning		Omit
4550	2-12-2024	Rezoning		Omit
4551	2-12-2024	Rezoning		Omit
4552	2-26-2024	Amends compensation schedule for members of city council		Omit

Ordinance Number	Date	Description	Section	Section this Code
4553	3-11-2024	Amends sections of Chapter 44, Solid Waste and Chapter 56, Noise Control, of Title 8, Health and Safety and Sections of Chapter 8, Offenses Against Public Peace and Decency, and Chapter 12, Offenses Against Property of Title 9, Public Peace and Welfare	1	8.44.010, 8.44.030, 8.56.010
			2	9.08.010, 9.08.100, 9.12.020, 9.12.060
4554	3-11-2024	Creates Section 2.40.100, Public Defender and Representation of Needy Persons; Determination of Need	1 Added	2.40.100
4555	3-25-2024	Amends Section 10.12.160, Authority to Impound Illegally Parked Vehicles and Section 10.12.170, Immobilization	1	10.12.160
			Rpld	10.12.170
			Added	10.12.170
4556	4- 8-2024	Rezoning		Omit
4557	4- 8-2024	Annexation		Omit
4558	4- 8-2024	Rezoning		Omit
4559	4- 8-2024	Rezoning		Omit
4560	5-13-2024	Rezoning		Omit
4561	5-13-2024	Annexation		Omit
4562	5-13-2024	Annexation		Omit
4563	5-13-2024	Rezoning		Omit
4564	5-13-2024	Annexation		Omit
4565	5-13-2024	Rezoning		Omit
4566	5-13-2024	Rezoning		Omit
4567	5-28-2024	Amends UDC Sections 1.4.3, Defined terms, and 5.8.8, Accessory buildings		Omit
4568	5-28-2024	Rezoning		Omit
4569	5-28-2024	Amends UDC Subsections 6.5.4.b.3, Incentives/bonus, 6.5.4.b.4, Creative sign program, and 6.5.8.j, Billboards		Omit
4570	5-28-2024	Amends UDC Section 5.1.5, Residential buildings and lot types		Omit
4571	5-28-2024	Amends solid waste fee schedule		Omit

Ordinance Number	Date	Description	Section	Section this Code
4572	5-28-2024	Amends Sections 10.82.030, Dockless vehicle license, and 10.82.040, Issuance, renewal, suspension, and revocation of license	1	10.82.030, 10.82.040
4573	6-10-2024	Revises water/sewer rates; tap and system development fees; administrative fees; services charges; penalties and septic and commercial waste dump rates		Omit
4574	6-10-2024	Amends Chapter 5.78, Towing and wrecker recovery operations	1 Rpld	5.78.010—5.78.070
			Added	5.78.010—5.78.070
4575	6-10-2024	Appropriates moneys for FY 2025 budget		Omit
4576	6-24-2024	Amends sworn officers, police department terms and conditions		Omit
4577	6-24-2024	Amends UDC Sections 1.4.3, Defined terms, and 2.2.6, Temporary use approval		Omit
4578	6-24-2024	Amends UDC Sections 1.4.4.c, Service uses, and 5.7.4, Child care uses		Omit
4579	6-24-2024	Creates Section 10.24.190, Critical traffic control areas; creation and administration; enhanced penalties	1 Added	10.24.190
4580	7- 8-2024	Rezoning		Omit
4581	7-22-2024	Amending Section 10.16.150, Parking violation hearings and appeal procedures, modifying the procedures governing the administrative review of parking citations, making conforming amendments and repealing an obsolete provision	1 Rpld	10.16.150
			Added	10.16.150
				10.60.040
			2 Rpld	10.16.140
4582	7-22-2024	Creating Section 10.60.015, Paid on-street parking districts; establishment; administration, and making conforming amendments	1 Added	10.60.015
			2	10.04.020,

Ordinance Number	Date	Description	Section	Section this Code
				10.16.080,
				10.52.220,
				10.60.010,
				10.60.040
4589	9- 9-2024	Amending Section 2.76.040, Designation of downtown development district to expand the downtown development district	1	2.76.040
4592	11-12-2024	Authorizes the contractor licensing board to license and otherwise regulate portable fire extinguisher, hose station equipment and hood system cleaning and maintenance professionals and repealing obsolete provisions of the municipal code	1	5.04.030
				5.44.010, 5.44.020,
				5.44.050
			2 Rpld	8.28.010—8.28.070,
				8.29.010—8.29.060
4601	12- 9-2024	Amending Section 8.60.080, Non-Compliant vehicles as a nuisance, declaring oversized vehicles as a nuisance, providing for their regulation and clarifying provisions	1	8.40.110,
				8.60.020,
				8.60.080,
				8.60.140,
				10.52.020,
				10.52.200,
				13.24.150
4602	12- 9-2024	Creating Chapter 13.32, Stormwater Runoff Management System, establishing said system, imposing a user fee for necessary funding and repealing obsolete provisions	1 Added	13.32.010—13.32.090
			2 Rpld	13.16.010—13.16.030

Ordinance Number	Date	Description	Section	Section this Code
4605	12-23-2024	Amending Section 2.16.010 requiring the city treasurer to annually evaluate and report to the governing body any outstanding debt owed the city by any city board, council or commission member	1	2.16.010
4606	12-23-2024	Amending Chapter 8.68, Camping on Public Property, expanding the general prohibition on camping to all public property of the city, creating a permitting process, making conforming amendments and repealing obsolete provisions	1 Added	8.68.025,
				8.68.035
			2	8.68.010, 8.68.020,
				8.68.030,
				8.68.040
4612	1-13-2025	Amending Section 10.12.020 clarifying that failure to maintain liability coverage is a jailable offense	1	10.12.020
4613	2-24-2025	Amending various sections of Chapters 15.08, 15.09, 15.10, 15.12, 15.16, 15.22, 15.24, and 15.26 updating specified building code requirements and making technical corrections	1	15.08.010, 15.08.020
			2	15.09.010
			3	15.10.010, 15.10.020
			4	15.12.010, 15.12.020
			5	15.16.010, 15.16.020
			6	15.22.010, 15.22.020
			7	15.24.010, 15.24.020
			8	15.26.020

Ordinance Number	Date	Description	Section	Section this Code
4614	2-24-2025	Amending various sections in Chapter 8.12, International Fire Code Adopted, updating the edition adopted by the city and further amending as specified	1	8.12.010—8.12.030
4615	2-24-2025	Amending Section 8.24.020 clarifying and further regulating the installation of above-ground tanks and containers	1	8.24.020
4616	3-10-2025	Repealing the provisions for the paid on-street parking districts program of the code, further amending the regulatory authority governing parking in the city and abrogating any on-street parking district designated by resolution of the governing body	1	10.52.220,
				10.60.010
			2 Rpld	10.60.015
4619	4-28-2025	Amending Section 10.24.190, Critical Traffic Control Areas; Creation and Administration Enhanced Penalties, to modify the provisions governing the creation and enforcement of such areas	1	10.24.109
4620	4-28-2025	Amending Chapter 10.82, Motor-Assisted Scooters, Electric Bicycles, and Bicycles Equipped wit GPS, authorizing dockless vehicle companies to conduct business in the city using the city's formal procurement process	1 Added	10.82.090—10.82.120
			2	10.80.030
			3 Rpld	10.82.010—10.82.080
4622	5-12-2025	Repealing Chapter 12.28, Downtown Graffiti Abatement Pilot Program	1 Rpld	12.28.010—12.28.050
4632	07-14-2025	Amends Section 10.04.050	1	10.04.050
4633	07-28-2025	Amends Section 6.08.180	2	6.08.180
4634	07-28-2025	Amends multiple sections of Chapter 9.24 and repeals section 9.24.120	1	9.24.020
				9.24.030
				9.24.070
				9.24.090

Ordinance Number	Date	Description	Section	Section this Code
			2 Rpld	9.24.120
4643	09-22-2025	Amends Sections 10.08.010 and 10.12.020, adds 10.24.200, and repeals 8.56.050	1 Added	10.24.200
			2	10.08.010
				10.12.020
			3 Rpld	8.56.050
4644	10-13-2025	Annexation		Omit
4645	10-13-2025	Re-zone		Omit
4646	10-27-2025	Amends Section 2.2.8 of the UDC to conform with Laramie County Zoning Regulations		Omit
4647	10-27-2025	Amends Section 8.60.050 Weeds as a Nuisance, revises and clarifies provisions and specify when vegetation is not considered a nuisance	1	8.60.050
4648	10-27-2025	Re-zone		Omit
4649	11-10-2025	Amends Sections 1.4.3, 1.4.4, 5.1.4, 5.7.10 and 5.8.2 of the UDC to define recreational vehicle parks and campgrounds, designate zones for operation, create standards and revise regulations		Omit
4650	12- 8-2025	Annexation		Omit
4651	12- 8-2025	Re-zone		Omit
4652	12- 8-2025	Annexation		Omit
4653	12- 8-2025	Re-zone		Omit
4654	12- 8-2025	Re-zone		Omit
4656	2- 9-2026	Creates Chapter 1.28, Administrative Inspection Warrants, establishing authority for their issuance, amending the Municipal Code to authorize certain city officials to apply for administrative inspection warrants	1 Added	1.28.010—1.28.040
4662	3-23-2026	Repeals Ordinance No. 4603 which specified the monthly Stormwater Runoff Management System user fee in accordance with Section 13.32.050 of the Municipal Code		Omit

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